# Machiavelli *and the* Modern State

*The Prince*, the *Discourses on Livy*, and the Extended Territorial Republic



ALISSA M. ARDITO

## Machiavelli and the Modern State

This book offers a significant reinterpretation of the history of republican political thought and of Niccolò Machiavelli's place in it. It locates Machiavelli's political thought within enduring debates about the proper size of republics. From the sixteenth century onward, as states grew larger, it was believed that only monarchies could govern large territories effectively. Republicanism was a form of government relegated to urban city-states, anachronisms in the new age of the territorial state. For centuries, history and theory were in agreement: constructing an extended republic was as futile as trying to square a circle, but then James Madison devised a compound representative republic that enabled popular government to take on renewed life in the modern era. This work argues that Machiavelli had his own Madisonian impulse and deserves to be recognized as the first modern political theorist to envision the possibility of a republic with a large population extending over a broad territory.

Alissa M. Ardito is a Lecturer and Visiting Fellow in the Department of Political Science at Yale University. She holds a PhD from Yale University and a JD from the University of Virginia School of Law. She has previously served as a Visiting Professor in the Department of Political Science at Duke University and has been a Visiting Scholar at the American Academy in Rome and a Fellow at Monticello's International Center for Jefferson Studies.

# Machiavelli and the Modern State

## *The Prince*, the *Discourses on Livy*, and the Extended Territorial Republic

**ALISSA M. ARDITO**
*Yale University*

CAMBRIDGE
UNIVERSITY PRESS

CAMBRIDGE
UNIVERSITY PRESS

32 Avenue of the Americas, New York, NY 10013-2473, USA

Cambridge University Press is part of the University of Cambridge.

It furthers the University's mission by disseminating knowledge in the pursuit of education, learning, and research at the highest international levels of excellence.

www.cambridge.org
Information on this title: www.cambridge.org/9781107061033

© Alissa M. Ardito 2015

This publication is in copyright. Subject to statutory exception and to the provisions of relevant collective licensing agreements, no reproduction of any part may take place without the written permission of Cambridge University Press.

First published 2015

Printed in the United States of America

*A catalog record for this publication is available from the British Library.*

*Library of Congress Cataloging in Publication Data*
Ardito, Alissa M.
Machiavelli and the modern state : The prince, The discourses on Livy, and the extended territorial republic / Alissa M. Ardito.
pages cm
ISBN 978-1-107-06103-3 (hardback)
1. Republicanism – History. 2. Republics – History. 3. State, The – Philosophy. 4. Machiavelli, Niccolò 1469–1527. I. Title.
JC421.A74 2014
320.1–dc23 2014022517

ISBN 978-1-107-06103-3 Hardback

Cambridge University Press has no responsibility for the persistence or accuracy of URLs for external or third-party Internet Web sites referred to in this publication and does not guarantee that any content on such Web sites is, or will remain, accurate or appropriate.

*To My Mother and Father*
*and to the Memory of My Grandmother*

# Contents

*List of Figures* *page* ix
*Acknowledgments* xi

Introduction 1
1 *The Prince* 12
*The Dedication* 28
*Enter the Work* 39
*Cesare Borgia: Architect of the State* 50
*Found a Composite State on the People* 56
*The Final Three* 65
2 The Spaces of Fortune 68
*The Three Problems of an Extended Republic* 76
*The Search for Answers* 77
*Political Space in Early Modern Europe* 82
*The City of Rome* 86
*Venice, Sparta, Rome* 89
*Territorial Expansion: Books I and II* 95
*The City-State or the Territorial State – Florence or Tuscany* 95
*The Expansion of the Florentine Republic* 100
*City and Countryside* 101
*Book II* 105
*Incorporation Under One Rule* 108
*Dueling Models: Rome and Tuscany* 118
*Tuscany* 122
3 Necessity: The Survival of the Republic 129
*The Second Challenge* 131
*Enter Book II: Power Politics* 136
*Problems with Republican Foreign Policy* 138
*Reason of State* 141

*Foreign Policy in the Florentine Republic* 146
*The Dictator* 149
*Power over Foreign Affairs in Ordinary Times* 153
*The Powers of the People in Foreign Policy* 161
*The Consulship* 168
*The Military Revolution* 172
*Return to Political Thought and Plans* 177

4 Early Modern and Eighteenth-Century Transitions: From Principality to Republic and from Colonies to Extended Republic 183
*The Plan* 184
*The New Beginning* 188
*The Transition to a Republic* 190
*Constructing the Republic: Confederation or Consolidation?* 193
*The Daring Experiment* 197
*Composite Government in Theory* 201
*The Articles of Confederation* 204
*America's Imperiled Republican Experiment* 207
*Prince in a Republic: Power over Foreign Affairs* 211
*The Debate over Foreign Affairs* 221
*The Ghosts of Rome* 226
*Reason of State and the American Republic* 228

5 Envisioning an Extended Republic 232
*The Madisonian Impulse* 233
*Considerations* 241
*France: The Modern Kingdom* 243
*"But Let Us Come to Rome"* 256
*Found on the People* 258
*The Ruins of Rome* 262
*The Tribunate* 265
*Elections* 269
*Assemblies and Freedom of Speech* 272
*The Collective Action Problem* 274
*A Citizen Army* 277
*The Power of People* 281
*Scandalous Gentlemen and Good Citizens* 286
*Ordinary People: Plebeians in the Renaissance* 289
*Territorial Citizenship* 291
*Territorial Institutions/Machiavelli's Federalism* 293
*The Madisonian Impulse Revisited* 296
The Discourses *and* On the Art of Building 301

Epilogue 303

*Index* 307

# Figures

1 Italy about 1494. Insets: The Milanese under the Visconti, 1339–1402; the Republic of Florence, 1300–1494. *page* 38
2 "Estates of the Church, Grand Duchy of Tuscany, Republic of Lucca & c." from *A General Atlas, Being a Collection of Maps of the World and Quarters, the Principal Empires, Kingdoms &c. with Their Several Provinces & Other Subdivisions, Correctly Delineated*. 83

# Acknowledgments

I am delighted to be able to thank the many people and institutions that supported this at times quixotic enterprise. This book began as a dissertation in the Yale Department of Political Science. From the dissertation's earliest incarnation, my dissertation advisors astutely advised and encouraged me on an odyssey that included exploring the Vatican Archives, directed me to sources, and gave me the freedom to grow as a scholar. When I was a graduate student, Norma Thompson, Frank M. Turner, and Vincent Scully provided me with intellectual inspiration, and they remain exemplars.

Most of all, I owe an enormous debt of gratitude to Ian Shapiro whose enduring faith in this project made it possible. For his commitment and scholarly ideals, and for being an inspiring person and mentor, I am forever grateful. Much appreciation is owed to the McMillan Center at Yale University for providing financial support and assistance as I completed work on the manuscript. The Yale Political Science Department once more opened its doors to me and became a much loved home, and for that I will always be thankful. I am also deeply grateful to Steven Smith and Frances Rosenbluth for their continued generosity and willingness to share astute insights, guidance, and encouragement. Steven Smith has always suggested the most illuminating sources, a rare gift, which has benefited my interpretation of Machiavelli in myriad ways.

Quentin Skinner generously took the time to discuss the project with me and provided encouragement, a privilege for which I am truly grateful. I only regret that time did not permit me to incorporate his numerous insights.

Words of appreciation are due to Ryan Greenwood for taking the time to provide valuable comments on the second chapter. I happily acknowledge the incredible and indefatigable research assistance of Amy Rabinowitz and Dimitiros Halikias. In addition, I would like to thank Brad Smith for his enthusiasm for the project and wise counsel, as well as Barry McMillion for his generous help in pursuing maps and illustrations. I must also thank Curtis

Perrin for offering astute comments on my introduction and providing camaraderie and encouragement during a critical time.

I would also like to express my gratitude to the American Academy in Rome, in my mind the most civilized place on earth, for twice granting me the opportunity to reside at the academy as a visiting scholar. It has been my great good fortune to have had the opportunity to take advantage of the brilliant conversation and cultural legacy the academy preserves.

I must also thank Lew Bateman at Cambridge University Press for his support of this project and his patience. I also thank Jeanie Lee, Devasena Vedamurthi, and Suzette Andre Costello, for efficient and meticulous copyediting and proofreading.

My parents, Andrew and Mary Ann Ardito, and my sister Adria have lived with this obsession for many years and have never ceased to offer unconditional love, patience, and good humor.

I dedicate this book to my grandmother and to my father and mother. From my earliest years, my grandmother, Eneria Di Lauro, inspired me with a devotion to learning. At the age of ninety-two she remained eager to discuss my dissertation and provided thoughtful insights and comments. Above all, my grandmother showed me that a questioning intellect and a strong moral character could be united in a loving heart. Throughout my life, my father and mother have remained a constant source of loving support. My father, especially, taught me to appreciate all that is beautiful in the world – in nature, in buildings, in history, and in people. Whatever imagination animates this book and gives it life comes from him. To all of them, then, I dedicate this book with love and gratitude.

# Introduction

The design and purpose of one of the academy's most popular books, *The Prince*, written by a former public servant named Niccolò Machiavelli and first published in 1532, remain mysterious. In the last thirty years alone, *The Prince* has reemerged as a résumé for a patronage job, as a satire, and as an intellectual battle with time. Centuries ago, Spinoza and then Rousseau claimed Machiavelli wrote *The Prince* in order to reveal the machinations of princes to the people.[1] Placed on the Index in 1588, condemned by the Jesuits, contested in writing but followed in practice by Frederick the Great, *The Prince* has eluded the cognitive grasp of each generation.

Lacking the seductive bravura of *The Prince*, the *Discourses on the First Ten Books of Titus Livy* was all too often overlooked in favor of its glamorous companion. At first glance, the *Discourses* is a rather plodding book on republics that appears to contradict the teaching of *The Prince*, and therein lies another, deeper mystery. We know that Charles V, the Holy Roman Emperor and the greatest political figure of the sixteenth century, kept both works together by his bedside – a noteworthy clue. Going backward in time may bring us nearer the light.

To the scholars and activists of the Risorgimento, Machiavelli was a prophet of Italian unity, a patriot of the Italian people, not of princes, as evinced by his

[1] Benedictus de Spinoza, *Theological-Political Treatise*, trans. Michael Silverthorne and Jonathan Israel, ed. Jonathan Israel (Cambridge: Cambridge University Press, 2007). Jean-Jacques Rousseau, *The Social Contract*, trans. G. D. H. Cole (New York: Knopf, 1993). Rousseau writes, "Machiavelli was a proper man and a good citizen; but being attached to the court of the Medici, he could not help veiling his love of liberty in the midst of his country's oppression" (63). It is believed that Alberico Gentili was the first to make this claim in writing, in 1585. Alberico Gentili, *De legationibus livri tres*, trans. Gordon J. Laing (Oxford: Oxford University Press, 1924), II, 156. His claim that *The Prince* reveals the machinations of tyrannical rule to the people while ostensibly guiding the ruler is quoted in L. A. Burd's splendid edition of *The Prince*. Niccolò Machiavelli, *Il Principe*, ed. L. Arthur Burd (Oxford: Clarendon Press, 1891).

acid criticisms of the Italian ruling class in both works. Oreste Tommasini, Pasquale Villari, and Alessandro Manzoni saw a kindred spirit in the man of the people who yearned for a free Italy and who wrote, "Truly no province has ever been united or happy unless it has all come under obedience to one republic or to one prince, as happened to France and to Spain."[2] To scholars in the twentieth century, it seemed that the earnest Risorgimento generation read too much of their triumphant selves into Machiavelli, subsuming his political thought under the current of nationalism. However, they left us with important insights on Machiavelli as a populist and patriotic writer and confirmation that old things concerning Machiavelli have been forgotten.[3]

The question of what precisely constitutes Machiavelli's originality and hence the nature of his contribution to the history of political thought has produced a variety of answers. To Benedetto Croce, who bridged the gap between nineteenth- and twentieth-century interpretations, Machiavelli's original contribution to political thought was his formulation of the autonomy of politics.[4] Isaiah Berlin refined this notion into an interpretation of rival moral universes at the heart of Machiavelli's work.[5] For Leo Strauss, Machiavelli's assumption that people are driven by interests and desires inaugurated a new kind of modern political philosophy that jettisoned the civic virtue previously thought necessary for political freedom.[6] Ernst Cassirer claimed that Machiavelli's originality lay in his technical and lucid style, which holds moral judgment in abeyance.[7] Why do Machiavelli and *The Prince*, in particular, seem so modern? This is at once a question of theory and of style.[8] Had Machiavelli not written *The Prince*, it is unclear how many people would read his works today despite the fact that the

[2] Niccolò Machiavelli, *Discourses on Livy*, trans. and eds. Harvey C. Mansfield and Nathan Tarcov (Chicago: University of Chicago Press, 1998), Book I, chapter 12, 38.

[3] For a classic reading in the nineteenth-century Italian view of Machiavelli, see Francesco De Sanctis, *Storia della letterature italiania*, ed. B. Croce (Bari: Laterza, 1958), I: 141–92. See also Oreste Tommasini, *La vita e gli scritti di Niccolò Machiavelli nello loro relazione col Machiavellismo* (Rome: E. Loescher, 1883–1911).

[4] Benedetto Croce, *Elementi di politica* (Bari: Laterza, 1925), 60.

[5] Isaiah Berlin, "The Originality of Machiavelli," in *The Proper Study of Mankind: An Anthology of Essays*, eds. Henry Hardy and Roger Hausheer (New York: Farrar, Strauss, and Giroux, 1998), 269–325.

[6] Leo Strauss, *Thoughts on Machiavelli* (Chicago: University of Chicago Press, 1958). This statement, of course, does not do justice to Strauss's ruminations on Machiavelli. For a recent study of Machiavelli and English political thought influenced by Strauss, see Paul A. Rahe, *Against Throne and Altar: Machiavelli and Political Theory Under the English Republic* (Cambridge: Cambridge University Press, 2009), and Harvey Mansfield and J. G. A. Pocock, "An Exchange on Strauss's Machiavelli," *Political Theory* 3, no. 4 (1975): 372–405.

[7] Ernst Cassirer, *The Myth of the State* (New Haven: Yale University Press, 2009).

[8] Or in a more scholarly vein, this is a question of ideology on the one hand and of rhetoric on the other. Some scholars would argue that the notion that Machiavelli is "modern" is merely a quality scholars have projected onto an author who was in many respects a Florentine typical of his era and milieu. See Niccolò Capponi, *An Unlikely Prince: The Life and Times of Machiavelli* (Cambridge, MA: Da Capo Press, 2010).

*Discourses* is a more substantive exploration of republicanism, the *Florentine Histories* a mature and highly ruminative work, and his constitution for Florence more relevant in terms of constitutional theory.[9]

In the latter half of the twentieth century, inspired in part by Hans Baron's *The Crisis of the Early Italian Renaissance*, scholars rediscovered the "republican Machiavelli" and sought to place him in context, more specifically within a long line of Florentine republican thought.[10] Studies investigating Machiavelli's intellectual and political milieu have sought to identify ways in which he reflects his time and circumstance, intellectual and political, and to freight him with the civic humanist tradition.[11] The label of civic humanist has been given to Machiavelli, not without controversy, to place him in what is termed an ideological world.[12] To be clear, thinking of Machiavelli as a republican goes back to Rousseau if not earlier and differs from defining him as a civic humanist. Both identifications came to the forefront in the wake of Baron's thesis (which held that the Italian republics became aware of their unusual status as polities governed by citizens enjoying liberty and equality under law during the late trecento and early quattrocento wars against the tyrannical Giangaleazzo Visconti of Milan) and the simultaneous rediscovery of the history of republicanism by political theorists inspired by the work of J. G. A. Pocock. There is no

[9] Niccolò Machiavelli, *Istorie Fiorentine*, ed. F. Gaeta (Milan: Feltrinelli,1962); Allan Gilbert, ed., *Machiavelli: The Chief Works and Others* (Durham: Duke University Press, 1965), III; Niccolò Machiavelli, "Discursus florentinarum rerum post mortem iunioris Laurentii Medices," in *Arte della Guerra e scritti politici minori*, ed. S. Bertelli (Milan: Feltrinelli, 1961); Myron P. Gilmore, ed., *Machiavelli: The History of Florence and Other Selections*, trans. Judith A. Rawson (New York: Washington Square Press, 1970).

[10] Hans Baron, *The Crisis of the Early Italian Renaissance: Civic Humanism and Republican Liberty in an Age of Classicism and Tyranny* (Princeton: Princeton University Press, 1966). John M. Najemy writes, "What Burckhardt was to nineteenth century Renaissance historiography, Baron is to its twentieth century counterpart." John M. Najemy, review of *Essays* by Hans Baron, *Renaissance Quarterly* 45 (1992): 340–50.

[11] For example, Quentin Skinner, *Foundations of Modern Political Thought* (Cambridge: Cambridge University Press, 1978), I: 3–189; Maurizio Viroli, *From Politics to Reason of State: The Acquisition and Transformation of the Language of Politics 1250–1600* (Cambridge: Cambridge University Press, 1992), 2–177.

[12] In answer to the question whether Machiavelli was a humanist, Robert Black writes that Machiavelli knew enough to fill a subordinate rank in the Florentine Chancery, and that "[t]hat should tell us enough." Robert Black, "Machiavelli, Servant of the Florentine Republic," in *Machiavelli and Republicanism*, eds. G. Bock, Q. Skinner, and M. Viroli (Cambridge: Cambridge University Press, 1990), 71–99. J. G. A. Pocock's reconstruction of the ideological world of civic republicanism can be considered part of the Baron tradition. However, Pocock's emphasis on innovation differentiates him slightly from Skinner's focus on anchoring Machiavelli in the civic humanist tradition. Both Skinner and Pocock approach Machiavelli from a perspective that stresses a vocabulary shared by a specific category of intellectuals in various places and times and the chains of meaning elaborated around core concepts. See J. G. A. Pocock, *The Machiavellian Moment: Florentine Political Thought and the Atlantic Republican Tradition* (Princeton: Princeton University Press, 1975). For a skeptical take on the civic humanist approach to Machiavelli, see Mark Hulliung, *Citizen Machiavelli* (Princeton: Princeton University Press, 1983).

doubt that this proved a fruitful line of inquiry, leading, among other things, to reinterpretations of American revolutionary and founding era thought. While these endeavors, in more deeply coloring Machiavelli with the tones of his intellectual milieu, have proven illuminating, they have tended to obscure Machiavelli's originality. This forces us to ask again: if Machiavelli is so much a product of his time, so thoroughly soaked in its ideology, theories, habits, and systems of thought, what is so innovative about his work?[13]

Machiavelli's political experience was quite conventional, which makes his originality all the more astonishing, observes Robert Black. For John Najemy, Machiavelli's style is original: he "speaks of empires, kingdoms, principates, or republics" and is already a comparativist.[14] According to Friedrich Meinecke, Machiavelli's momentous discovery was the doctrine of reason of state.[15] As previously mentioned, for Ernst Cassirer, originality was a matter of an analytical style and an empirical, objective approach. This focus on style received renewed life in the many rhetorical studies of *The Prince* and the *Discourses* that blossomed in reaction to the overtly ideological readings of the "Cambridge School." In the view of Maurizio Viroli and Quentin Skinner, Machiavelli's primary contribution to the history of political thought is in the *Discourses*' theory that conflict between classes, the "two humors" rather than concord, is essential to the survival of a republic and ensures the liberty of its citizens.[16] Elena Fasano Guarini makes the subtle observation that Machiavelli's originality lies in the discontinuity between the civic humanist language he knew and the phenomenon he was witnessing for which there was no established answer – the rise of the territorial state.[17] To explore such valuable insights and others, it behooves us to look more closely at the early sixteenth century.

Unlike the bright and brilliant fifteenth century, which lured legions of historians into the archives to make detailed examinations of its political, cultural, economic, and everyday life, the brooding sixteenth century remains a comparative stranger. The rise of cultural, economic, and micro history and the concomitant decline of archive-based diplomatic history, which reigned supreme

[13] Some readers may claim this is not a question worth asking, but if one is curious about Machiavelli's placement in the canon of great political thinkers, the question is worthwhile. The persistent allure of Machiavelli's writings is due in part to the fact that he is both a product of his time and an avatar of things to come.

[14] Robert Black "Machiavelli: servant of the Florentine republic," 71. Quote from John Najemy, in Black, "The controversy surrounding Machiavelli's service to the republic," in Bock, Skinner, and Viroli, 117.

[15] Friedrich Meinecke, *Machiavellism: The Doctrine of Raison d'état and its Place in Modern History*, trans. Douglas Scott (New Haven: Yale University Press, 1957).

[16] James Tully, "The Pen Is a Mighty Sword: Quentin Skinner's Analysis of Politics," in *Meaning and Context: Quentin Skinner and His Critics*, ed. J. Tully (Cambridge: Polity Press, 1987). See also Hulliung, 230–31, and Paul A. Rahe, "Situating Machiavelli," in *Renaissance Civic Humanism: Reappraisals and Reflections*, ed. James M. Hankins (Cambridge: Cambridge University Press, 2000), 270–308.

[17] Elena Fasano Guarini, "Machiavelli and the Crisis of the Italian Republics," in Bock, Skinner, and Viroli, 17–18.

in the nineteenth century, played a part in dooming the sixteenth century to oblivion or, at best, unpopularity. For example, no one since Ludwig von Pastor has seriously examined the documents of Leo X's pontificate.[18] As a result, materials of consequence for Machiavelli studies have been lingering unread in the Vatican Archives. In seeking to conjure the dimensions of that vanished century, we do not illuminate Machiavelli, but we finally comprehend the darkness that enveloped him. Sixteenth-century Europe was an environment of stunning political transformation. "Every day one sees miraculous losses and acquisitions," Machiavelli observed, of great monarchies on the move, of republics dying, and collectivities uniting in protest movements.[19]

This work seeks to interpret *The Prince* and the *Discourses on Livy* in light of early modern state formation, archival documents from Leo X's pontificate, and the history of popular politics. In recent decades, groundbreaking historical research on the Florentine political arena and Machiavelli's place within it has markedly influenced historians of political thought.[20] Our task is to place these careful studies of the Florentine context against the backdrop of large-scale political and geographic transformation to further illuminate Machiavelli's thought. Scholarship on both early modern-state formation and the history of popular politics has enriched our understanding of various routes that led to the formation of larger states and the role popular collective action played in the development of the early modern state.[21] If we deploy research into state

[18] Recently, Professor Maurizio Gattoni, University of Siena, launched an extraordinary effort to transcribe and publish primary material from the sixteenth century in the archives. For his explanation of why no one has done so until now, see his plea for a renaissance of what he refers to as "geo-political" or diplomatic history in the introduction to his *Leone X e la geo-politica dell Stato Pontifico (1513–1521)* (Citta del Vaticano: Archivio Segreto Vaticano, 2002), 18–21.

[19] *Discourses*, Book II, chapter 30, 202.

[20] Examples include Nicolai Rubinstein, "Florentina Libertas," *Rinascimento*, n.s. 2 (1986); "Oligarchy and Democracy in Fifteenth Century Florence," *Florence and Venice: Comparisons and Relations*, eds. Sergio Bertelli, Nicolai Rubinstein, and Craig Hugh Smith (Florence: La Nuova Italia Editrice, 1979–80), I: 107; John Najemy, "Civic Humanism and Florentine Politics," in *Renaissance Civic Humanism Reconsidered*, ed. James Hankins (Cambridge: Cambridge University Press, 2000), 75–104; Alison Brown, "The Republic's Two Bodies," in *Languages and Images of Renaissance Italy*, ed. Alison Brown (Oxford: Clarendon Press, 1995), 237–62; Alison Brown, *The Medici in Florence: The Exercise and Language of Power* (Florence: Olschki, 1992); "The Language of Empire," *Florentine Tuscany: Structures and Practices of Power*, eds. William Connell and Andrea Zorzi (Cambridge: Cambridge University Press, 2000), 32–47; James Hankins, "The Baron Thesis after Forty Years and Some Recent Studies of Leonardo Bruni," *Journal of the History of Ideas* 56 (1995): 309–38.

[21] Charles Tilly, *Coercion, Capital and European States, A.D. 990–1990* (Oxford: Blackwell, 1990); Thomas Ertman, *Birth of the Leviathan: Building States and Regimes in Medieval and Early Modern Europe* (Cambridge: Cambridge University Press, 1997); Mark Greengrass, ed. *Conquest and Coalescence: The Shaping of the State in Early Modern Europe* (London: Edward Arnold, 1991); Charles Tilly, ed., *Cities and the Rise of States in Europe A.D. 1000 to 1800* (Boulder: Westview Press, 1994); J. H. Elliott, "A Europe of Composite Monarchies," *Past and Present* 137: 48–71; Thomas Brady, *Turning Swiss: Cities and Empire 1450–1550* (Cambridge: Cambridge University Press, 1985); Perry Anderson, *Lineages of the Absolute State* (London: Verso Press,

formation and popular political action in the early modern period alongside the republican Machiavelli revealed by J. G. A. Pocock; the careful historical work of Alison Brown, John Najemy, James Hankins, and Nicolai Rubinstein; the civic humanist emphasized by the work of Quentin Skinner; the comprehensive studies of the bureaucrat Machiavelli's early works and themes by Gennaro Sasso, Sergio Bertelli, and J. J. Marchand; and examinations of the Florentine republic's territorial expansion, we move toward an ever-more richly hued appreciation of *The Prince* and the *Discourses on Livy*.[22]

Niccolò Machiavelli lived and breathed politics during an especially tumultuous epoch, in a republic that was as frenetic in its constitutions and mutations of state as its *soi disant* rival republic, Venice, was imperturbable. With a mixture of contempt and admiration, Machiavelli watched a popular insurrection that brought Florence a most unlikely leader and protector of its liberties, Savonarola.[23] The rise of a Dominican preacher who, thanks to religious fervor and French arms, managed to shape a new constitution and lead Florence from 1494 to 1498, foreshadowed a century that would explode with popular action. "Popular political action helped to precipitate and fashion entirely new polities like the Swiss Confederation and the Dutch Republic."[24] In the early modern period, most Europeans lived within composite states made up of various formerly independent cities and territories that had been assembled by acquisitive princes.[25] Focus on the nation-state at the expense of the early modern

1979); Wayne te Brake, *Shaping History: Ordinary People in European Politics: 1500–1700* (Berkeley: University of California Press, 1998); Brian M. Downing, *The Military Revolution and Political Change: Origins of Democracy and Autocracy in Early Modern Europe* (Princeton: Princeton University Press, 1992).

[22] For Skinner and Viroli, see footnote 11. For Viroli, see also *Machiavelli* (Oxford: Oxford University Press, 1998). Viroli's interpretations of Machiavelli seem to me to be moving beyond contextualizing him as civic humanist; see Pocock, footnote 12. Studies of Machiavelli's early writings from his years in the Florentine Chancery include Sergio Bertelli, "Nota introduttiva," *Niccolò Machiavelli, Arte della Guerra e scrittici politici minori*, ed. S. Bertelli (Milan: Feltrinelli, 1961); J. J. Marchand, *Niccolò Machiavelli. I primi scritti politici 1499–1512* (Padua: Antenore, 1975); and Gennaro Sasso, *Niccolò Machiavelli: Il pensiero politico* (Bologna: Il Mulino, 1980), I. Studies of the Florentine territorial state include Giorgio Chittolini, "The Italian City-State and Its Territory," *City-States in Classical Antiquity and Medieval Italy*, eds. Anthony Molho, Kurt Raaflaub, and Julia Emlen (Stuttgart: Franz Steiner Verlag, 1991), 589–602; Marvin B. Becker, "The Florentine Territorial State and Civic Humanism in the Early Renaissance," in *Florentine Studies: Politics and Society in Renaissance Florence*, ed. Nicolai Rubinstein (London: Faber and Faber, 1968), 109–39; and William J. Connell and Andrea Zorzi, eds., *Florentine Tuscany* (Cambridge: Cambridge University Press, 2000).

[23] Donald Weinstein, *Savonarola and Florence: Prophecy and Patriotism in the Renaissance* (Princeton: Princeton University Press, 1970); Lauro Martines, *Fire in the City: Savonarola and the Struggle for the Soul of Renaissance Florence* (Oxford: Oxford University Press, 2006); Roberto Ridolfi, *The Life of Girolamo Savonarola*, trans. Cecil Grayson (New York: Alfred A. Knopf, 1959).

[24] Te Brake, *Shaping History*, 4.

[25] "It was often in the interstices and margins of these composite early modern state formations that ordinary people enjoyed their greatest political opportunities" (te Brake, *Shaping History*, 2).

composite state, the smaller regional territorial monarchy that dotted the map of sixteenth-century Europe, has obscured the various paths taken in the assemblage of larger territorial states and the critical role popular rather than elite action played in legitimating or contesting elite consolidation. The fractious nature of consolidating conquests meant that popular movements were forces to be reckoned with – a fact that was ignored by previous elite-centered historical accounts of European state formation.[26] Historical research into popular movements and state formation in the early modern period unites the venerable interpretation of Machiavelli as a populist with the detailed contextualist work carried out in recent decades to help us discern the role popular insurrection played in Machiavelli's political thought.[27] If ordinary people were "active participants in the formation of the modern political landscape," one can view *The Prince* and the *Discourses* as Machiavelli's attempt to be a creative participant in the formation of the modern political landscape.[28]

The sixteenth century was a dark time for republics. Republican government, the tradition of conducting government by means of dialogue, was increasingly dismissed as quaint and outmoded. The new era of territorial states ruled by decisive princes in command of mass armies made the small size and collective decision making of municipal republicanism seem a tradition that had outlived its relevance.[29] Those polities that could not compete in the new Europe would be conquered; therefore, values and traditions would have to be sacrificed. The institutions and concepts of republicanism had developed inside the walls of cities, in small face-to-face communes. It was not at all clear how those institutions and concepts could be altered to encompass a larger territory and population.[30] Republics and monarchies faced one another on the plains of Europe and the plateaus of thought in the sixteenth century, and history records the victor. Monarchs would reign preeminent for the next three hundred years.

Machiavelli was not willing to surrender so easily knowing something of great value was in danger of being lost. He wrote, "For a licentious and tumultuous people can be spoken to by a good man, and it can easily be returned to the good way; there is no one who can speak to a wicked prince, nor is there

[26] Te Brake, *Shaping History*, 2.

[27] This approach unites the Spinoza, Gramsci, Althusser, de Grazia interpretive tradition with the detailed historical investigations carried out by Rubinstein, Najemy, Skinner, Viroli, and Brown, for instance.

[28] Te Brake, *Shaping History*,10.

[29] Geoffrey Parker, *The Military Revolution: Military Innovation and the Rise of the West 1500–1800* (Cambridge: Cambridge University Press, 1988).

[30] "Historical criticism has given much attention in fact to Machiavelli's stance on the Florentine political struggle; in general his works have been interpreted in that light, although opinions diverge as to what his political attitude actually was. However, only rarely have historians observed the way in which he considers the problems of the territorial state" (Fasano Guarini, in Skinner, Bock, Viroli, 29). If historians have rarely considered Machiavelli in light of the territorial state, it is doubly true of political theorists who, naturally, rely on historians to anchor theoretical works in historical context.

any remedy other than steel."[31] He was determined to figure out how to adapt traditions of popular rule to the new world order of territorial states. This aspect of Machiavelli's work has not attracted attention; hence the full extent of his role in the history of political thought has not been properly assessed. His solution involved the daring effort to conceptualize a popular territorial state in Tuscany, an extended republic. In a sense, *The Prince* and the *Discourses on Livy* are interlocking parts of a project to found a Tuscan state based on Medici territories in central Italy. *The Prince* presents a blueprint for the acquisition of a Tuscan territorial state while the *Discourses* attempts to graft participatory public freedom onto an extended territory.[32] This interpretation of the relationship between the two works is one way to resolve the problem of the distinction between principalities and republics announced in the first chapter of *The Prince*; it is inspired by J. R. Hale's astute observation that Machiavelli wanted a state that was a prince on the outside and a republic on the inside.[33]

Why does *The Prince* call out and claim its readers, involving them in the drastic action it urges at every turn? The urgency and vitality that constitute the book's perennial youth result from the fact that it speaks to the young, the brave, and the ambitious.[34] *The Prince* is a revolutionary manifesto of liberation. It tells readers to take destiny into their hands and calls out for someone "prudent and virtuous" to lead an Italian rebellion against invaders and save Italy, introducing "a form that would confer honor on himself and be good for all her people."[35] It counsels determined and drastic action, and history has shown that the Swiss, Dutch, French, and American revolutionary regimes have all been the products of drastic action.

[31] Niccolò Machiavelli, *Discourses on Livy*, trans. Harvey C. Mansfield and Nathan Tarcov (Chicago: The University of Chicago Press, 1996), Book I, chapter 58, 115. Niccolò Machiavelli, *Discorsi sopra la prima Deca di Tito Livio*, ed. Francesco Bausi (Rome: Salerno Editrice, 2001), 276.

[32] This thesis diverges from the interpretation of Fasano Guarini, who holds that Machiavelli realized that the political concepts and languages he inherited were incapable of adequately addressing the political phenomena he witnessed. In her view, he cannot see a way out of the crisis. See Fasano Guarini in Skinner, Bock, Viroli, 35, 40. Mikael Hörnqvist makes an erudite case for Machiavelli's goal of a republican empire. Mikael Hörnqvist, *Machiavelli and Empire* (Cambridge: Cambridge University Press, 2004).

[33] John R. Hale, *Florence and the Medici* (London: Thames and Hudson, 1977). Again, though other scholars have resolved the conundrum by stating that Machiavelli was in favor of empire, this study hopes to show that an extended republic is closer to the mark.

[34] Sebastian de Grazia noticed that *The Prince* is a recruiting device: "Niccolò has one task of recruitment and another of education." Sebastian de Grazia, *Machiavelli in Hell* (Princeton: Princeton University Press, 1989), 276. Other readers, including Louis Althusser, have noticed this as well. Louis Althusser, *Machiavelli and Us*, ed. Francois Matheron (New York: Verso Press, 1999).

[35] Niccolò Machiavelli, *The Prince, with Related Documents*, ed. and trans. William J. Connell (Boston: Bedford/St. Martin's, 2005), 119, and Niccolò Machiavelli, *The Prince*, trans. Harvey C. Mansfield (Chicago: University of Chicago Press, 1988).

The entire sixteenth century was a time of chaos and popular rebellion across Europe. Republics were urban. Principalities and monarchies were territorial. City and territory were opposed in the state-building process and republics were falling far behind. Republics needed to become territorial by encompassing both city and countryside. Was this theoretically and practically possible? Machiavelli melded theory and practice in a variegated plan that unfolds through *The Prince* and the *Discourses*.[36]

In brief, Machiavelli's ideal prince was an aggrandizing prince *in favor of liberty*.[37] A prince would lead a popular rebellion against foreign overlords and, leading a citizen army, assemble a composite state rooted in popular rebellion rather than in an alliance between the prince and local elites. As outlined in the *Discourses*, the composite principality would evolve into an extended composite republic. The Medici or fortune's prince would surrender power and bring good to the people or there would be a non-violent revolution, "a mutation of state," and the prince would be thrown out, as the Romans exiled the Tarquins, with "none . . . injured but the head."[38] At the same time, republican elites such as the Strozzi would need to be persuaded to join the revolution and the new republic, for a republic, even a popular one, cannot survive without the audacious spirit of the *grandi*. Then would come the greatest challenge: to develop institutions and procedures that would support an extended territorial republic. Is it possible to involve more people in city and countryside in the political life of a republic? Machiavelli answered by renovating the institutions of that other great territorial republic, ancient Rome, for modern Tuscany. Moreover, Machiavelli was the first political thinker to fully appreciate the crucial role played by ordinary people in sustaining the life of a republic. In his analysis of nonviolent regime change and in his sweeping study of the role of the plebeians in Rome, Machiavelli explored ways of assimilating the power of the people and

[36] The notion that Machiavelli had a plan is not new. In 1538, an Englishman named Reginald Pole stated that Machiavelli wrote *The Prince* in order to trick the Medici, cited in Burd, 36–38. Mary Dietz and Albert Ascoli have each written articles on the topic, and Maurizio Viroli has acknowledged in passing that Machiavelli's aim was to influence policy making, albeit primarily indirectly through education. Maurizio Viroli, "Machiavelli and the Republican Idea of Politics," in Skinner, Bock, and Viroli, 170.Mary G. Dietz, "Trapping *The Prince:* Machiavelli and the Politics of Deception," *American Political Science Review* 80 (1986): 777–99. Albert Ascoli, "Machiavelli's Gift of Counsel," in *Machiavelli and the Discourse of Literature*, eds. Arthur R. Ascoli and Victoria I. Kahn (Ithaca: Cornell University Press, 1993), 238. The differences between those interpretations and the one proffered here, which emphasizes the role of Tuscany, will be addressed in the following chapter.

[37] As mentioned, Sebastian de Grazia noticed that *The Prince* is intended to recruit a leader: "He undertakes these tasks most directly in *The Prince*." De Grazia, 276. See also Corrado Vivanti's introduction to his edition of Machiavelli's works, Niccolò Machiavelli, *Opere*, ed. C. Vivanti (Turin: Einaudi, 1997), I. Vivanti interprets the *Discourses* as a political proposal to reorganize Italian republics during uncertain times.

[38] *Discourses*, Book III, chapter 3: "That It Is Necessary to Kill the Sons of Brutus If One Wishes to Maintain a Newly Acquired Freedom." Mansfield and Tarcov, 214–15; Bausi II: 539–43.

channeling collective action so as to revive rather than destroy republics. Above all, it was his praise of popular movements and his understanding of the vital political role of the common people that drew the leaders of the Risorgimento, one of the great popular movements of the nineteenth century, to Machiavelli.

If *The Prince* can be interpreted as a revolutionary manifesto, the *Discourses* can be read as a work of comparative politics, a survey of the past and present political map of Europe, embracing republics ancient and modern, confederacies, the Tuscan and Swiss leagues, Dutch cities, principalities, the Roman and Ottoman empires, and the kingdoms of France and Spain.[39] It is plausible to analyze the *Discourses* as Machiavelli's effort to solve the three problems faced by an extended republic: how to expand in space, how to survive in times of both war and peace, and how to graft participatory politics onto an extended territory. Chapter 2 of this work, "The Spaces of Fortune," covers early modern state building and, more precisely, how Machiavelli envisioned the expansion of the Florentine republic to embrace city and territory under a single sovereignty. Chapter 3, "Necessity: The Survival of the Republic," examines Florentine foreign policy institutions, the problems Machiavelli discerned in them, and the solutions he believed he found in Roman institutions for ordinary and extraordinary times. Machiavelli's prescriptions appear more traditionally Roman than deceptively elitist or democratically innovative.

Chapter 4, "Early Modern and Eighteenth-Century Transitions," discusses how the transition from a principality to a republic might be effected, various forms of union in the early modern period, from princely consolidation to republican confederations, as well as composite government in theory. In addition, the chapter considers the Articles of Confederation, as both a conventional republican league and as a critical conduit in the practice and theory of federalism, and finally how powers over foreign policy – executive, legislative, and prerogative – the fundamental powers of the Confederation, were debated and allocated in the new American republic. Chapter 5, "Envisioning an Extended Republic," delves into Machiavelli's answer to the question that bedeviled the framers of the American republic: is it possible to extend the concepts and institutions of popular government to large states? Republicanism in practice and theory requires the face-to-face polity. "Why is the experiment of the extended republic to be rejected merely because it may comprise what is new?" James Madison observed in *The Federalist Papers*.[40] This study seeks to demonstrate that Machiavelli had his own "Madisonian Impulse."[41] Chapter 5 reviews Madison's impulse to construct a form of compound union

[39] This is of course one of many ways to interpret *The Prince*.

[40] Alexander Hamilton, James Madison, and John Jay, *The Federalist with Letters of "Brutus,"* ed. Terence Ball (Cambridge: Cambridge University Press, 2003), 63.

[41] This term harkens to Jack Rakove's "Madisonian Moment" in an article that attempted to locate Madison's authoritative interpretation of the U.S. Constitution. See Jack N. Rakove, "The Madisonian Moment," *University of Chicago Law Review* 65 (1988): 473–505.

that might solve the problem of the extended republic, then turns to examine Machiavelli's reflections on French limited monarchy and variations of liberty that in turn shaped the notions of territorial citizenship and territorial institutions found in the *Discourses*. The critical role a citizen army plays in building a sense of common cause and political consciousness among ordinary people in city and countryside receives its due. Laborious study of republican leagues and confederations had convinced Madison that the various states might spin out of control unless a more durable form of union was found. It may be that American federalism, with the judiciary as the lynchpin, and electoral representation, with its stress on place and home district, solved the problem Machiavelli discerned. This is not a study of influence but of unwitting companionship – for Machiavelli and the American Founders were intellectual compatriots in a search for devices and institutions to reinvent urban republicanism for a new political world of extended territorial states.

# 1

# *The Prince*

Most Anglo-American political science scholarship has approached the political thought of Niccolò Machiavelli from every angle but the most obvious one; hence the true significance of his contribution to the history of political thought has been obscured.[1] Machiavelli's celebrated political works comprise an intellectual, spiritual, and practical response to the Italian Wars, from the French invasion of 1494 to the Spanish invasion of 1512 and the collapse of the Florentine republic – in short, a response to the political collapse of Italy entire. The political crisis Machiavelli confronted was the pathetic helplessness of Italian city-states in the presence of strangers, namely, newly united, newly territorial, invading monarchies. After 1494, the petty principalities, republics, and tentatively territorial states that comprised the political system of Renaissance Italy were no match for the great emerging states beyond the Alps that would dominate the European political stage and Italian lands for centuries to come. For too long, Machiavelli's ultimate goal – to see Italy no longer overrun by barbarians and an extended republic in place – has been overshadowed. His *Discourses on the First Ten Books of Titus Livy* and *The Prince* work together as interlocking parts of a single endeavor: to craft an extended republic in Tuscan lands.

Machiavelli's political thought involved the effort to conceptualize a political form unknown in his era – a self-governing territorial state – at a time when republics were conceived of solely in terms of smaller city-states. The *Discourses* and *The Prince*, whose relation has long been the subject of debate, gain their full meaning as part of a project of state building, of building a territorial republic in Tuscany. The dilemma that Machiavelli faced was this: in order for a state to survive in the novel and harsh international environment of the sixteenth

[1] I refer here to the interpretations of the "Cambridge School" and what can be termed the "Straussian School," both of which offer much to the student of Machiavelli while overlooking an important strand of his political thought.

century, it would likely have to extend over a territory too large to sustain a republican way of life. Machiavelli's solution was a territorial state in Tuscany, secure enough to impose order and expel invaders, centered in Florence, and dominating central Italy. *The Prince* explains how to expel invaders and assemble a territorial state. In the *Discourses*, Machiavelli sets himself the vastly more arduous task of laying the groundwork for an extended republic.[2]

*The Prince* can be understood in multiple ways.[3] It is a work uniquely its own and does not easily bear comparison with anything else in the canon of political philosophy. It unites philosophy and politics with astonishing bravura, personifying them in an ascetic militarist prince who will conquer territory with a popular army and then seek to incorporate conquered cities and provinces into his domains via indirect rule (the best way to unite cities that previously possessed their own government) and liberate Italy from foreign domination.[4] *The Prince* is often read as a precursor to the absolute monarchs to come in the next century, but princely authority shorn of its traditional limitations was a radical notion, vastly different from the finely textured, limited consolidation over territory, not subjects, that Machiavelli recommends to his prince.[5]

The year 1494 was remarkably similar to 1914. Italians of Machiavelli's generation looked back on the years before the French invasion with the same

[2] The purpose of *The Prince* is to enjoin the Medici to expel invaders and to acquire a Tuscan state. The purpose of the *Discourses* is to incorporate participatory politics into this Tuscan territorial state, to figure out how it will survive and flourish in the demanding international environment of decisive monarchies on the move, and to excite in the Italian young the desire to imitate ancient Roman political virtue.

[3] It can be understood as a timeless meditation on political action, as a record of early modern state building, as a manual of amoral power politics. The relationship between theory and practice in *The Prince* is a complex issue that has been addressed by many interpreters, and this work will offer yet another gloss.

[4] *The Prince*, chapters 3, 4, 5, 9, 20, and 26. Niccolò Machiavelli, *Il Principe*, ed. Mario Martelli (Rome: Salerno Editrice, 2006); Niccolò Machiavelli, *De Principatibus*, ed. Giorgio Inglese (Rome: Istituto Storico Italiano per Medio Evo, 1994); Niccolò Machiavelli, *Il Principe*, ed. Giorgio Inglese (Turin: Einaudi, 1995). Niccolò Machiavelli, *Il Principe*, ed. L. A. Burd (Oxford: The Clarendon Press, 1891) (hereinafter Burd ed.). The English translations used are Niccolò Machiavelli, *The Prince, with Related Documents*, ed. and trans. William J. Connell (Boston: Bedford/St. Martin's, 2005) (hereinafter Connell ed.), and Niccolò Machiavelli, *The Prince*, trans. Harvey C. Mansfield (Chicago: University of Chicago Press, 1988) (hereinafter Mansfield ed.). Please note that in chapter 26, Machiavelli does not encourage a prince to unite or conquer Italy, but rather to liberate Italy from foreign domination. In the interpretation presented here, conquering Tuscany is part of the process of liberation and is not to be confused with conquering or uniting Italy.

[5] Compare Thomas Hobbes's *The Leviathan* and Jean Bodin's *Six Books of the Republic* to Machiavelli. For more on early modern state building, see J. H. Elliott, "A Europe of Composite Monarchies," *Past and Present*, 137: 48–71; the various essays in *Conquest or Coalescence: The Shaping of the State in Early Modern Europe*, ed. Mark Greengrass (London: Edward Arnold, 1991); Wayne te Brake, *Shaping History: Ordinary People in European Politics: 1500–1700* (Berkeley: University of California Press, 1998); and Thomas Ertman, *Birth of the Leviathan: Building States and Regimes in Medieval and Early Modern Europe* (Cambridge: Cambridge University Press, 1997).

stunned regret that would later characterize the generation that lived through the Great War. After 1494, Renaissance Italy was never the same, shattered beyond recognition by the decades of war, destruction, political tumult, and misery that followed Charles VIII's procession through Florence beneath a canopy of gold.[6] To Italians, it was the ruin of the known world. Francesco Guicciardini observed, "Italy has suffered for many years every kind of calamity that may vex wretched mortals."[7]

The year 1494 is significant for two reasons. First, the dramatic and humiliating collapse revealed to Machiavelli the moral and political bankruptcy of the Italian ruling class.[8] He blamed Italy's decadent civilian princes for its prostrate state and never understood the depth of social and political decay.[9] Secondly, 1494 is still viewed as the turning point in the history of modern Italy, commencing an era of incessant conflict and foreign ascendancy.[10] Machiavelli saw Italian city-states and principalities lose their independence as bona fide political actors. Florence was reduced in status, becoming an irrelevant bystander to the larger struggle of France and the Holy Roman Empire for the domination of Italy.[11] The Florentine republic was insecure at home and abroad. As a civil servant, diplomat, and military reformer, Machiavelli filled a variety of positions for the Florentine republic, being elected secretary and second chancellor of the republic in 1498 and appointed chancellor of the Nine of the Militia in 1507. Significantly, his

[6] "I have decided to write about the events which have taken place in Italy within living memory since the time when French armies called in by our own princes began to trouble her peace with great upheavals. A very rich theme for its variety and extent, and full of appalling disasters, for Italy has suffered for many years every kind of calamity that may vex wretched mortals." In that lugubrious manner begins Guicciardini's *History of Italy*. Francesco Guicciardini, *Storia d'Italia*, 3 vols., ed. E. Mazzanti (Milan: Garzanti, 1988).

[7] Guicciardini, *Storia d'Italia*, preface.

[8] Lauro Martines, *Power and Imagination: City-States in Renaissance Italy* (Baltimore: Johns Hopkins University Press, 1988).

[9] Federico Chabod, *Machiavelli and the Renaissance*, trans. David Moore (New York: Harper and Row, 1965). Machiavelli did begin to understand the depth of corruption and its effects on the social and civic fabric of Florence by the time he wrote the *Florentine Histories*. See John Najemy, "Machiavelli and the Medici: The Lessons of Florentine History," *Renaissance Quarterly* 35, no. 4 (1982): 551–76.

[10] This statement reflects a general consensus among contemporary observers of events and present-day historians. See Francesco Guicciardini, *Storie fiorentine dal 1378 al 1509*, ed. A. Montevecchi (Milan: B.U.R. Rizzoli, 1998); Guicciardini, *Storia d'Italia*; Jacopo Nardi, *Istorie dell città di Firenze*, 2 vols., ed. A. Gelli (Florence: Le Monnier, 1988); and Francesco Vettori, *Scritti sotrici e politici*, ed. E. Niccolini (Bari: Laterza, 1972). See also Peter Burke, Eric Cochrane, J. N. Stephens, Humphrey Butters, John R. Hale, and Lauro Martines. See especially David Laven, "Machiavelli, italianità and the French Invasion," *The French Descent into Renaissance Italy*, ed. David Abulafia (London: Ashgate, 1995). "The French Invasion put an end to Italy's isolation and brought her once more within the orbit of inexorable dynamics of world historical events" (Felix Gilbert, "The Historian's Machiavelli," in *History: Choice and Commitment*, ed. Felix Gilbert [Cambridge MA: Belknap Press, 1977], 104).

[11] Francesco Guicciardini, "Dialogo del reggimento di Firenze," Book II, in *Dialogo e discorsi del reggimento di Firenze*, ed. R. Palmarocchi (Bari: Laterza, 1932), 159.

government service involved the most brutal and intractable dimension of politics – politics among states, or what is today known as international relations.

Politics as an affair of competition and domination, of master and of slave, conducted by cities, principalities, kingdoms, and empires, was cemented by the searing experience of 1512. That fateful year, the fragile and cash-strapped republic that Machiavelli served, and for which he drilled his cherished militia, fell ignominiously but not ignobly to the invading Spanish army. Soon after, the son of Lorenzo de Medici was raised to the unprecedented height of the papal throne, its spiritual authority buttressed by the gleaming arms of Imperial Spain. A foreign monarchy only recently united under Ferdinand and Isabella, Spain then had the power to intervene decisively in the internal affairs of Florence. The fate of republican government in Italy, the survival of *vivere politico* and *vivere civile*, depended on the face the republic showed to the united territorial monarchies of Europe.[12] It was in the shadows of this new international environment that Machiavelli's ideas of the practice of politics developed.[13]

Machiavelli was consumed with state envy, with envy of the territorial state, to be exact.[14] The *Discourses* and the *Art of War* reveal his persistent anxiety over Italy's elaborate division into fragile, small urban states unable to compete with the growing power of France and Spain.[15] This anxiety, which would grip

[12] J. R. Hale, *Florence and the Medici* (London: Thames & Hudson, 1977).

[13] The importance of what is today termed international relations in Machiavelli's political thought is a critical factor in resolving the dilemma of whether Machiavelli can best be described as a classical republican or as the progenitor of a new kind of politics based on interests rather than concepts of justice and the good. Whether Machiavelli can be considered a classical republican or not divides his interpreters in the English-speaking world, that is, the scholars of the Cambridge School from the scholars who follow the interpretive methods and approach of Leo Strauss. According to Paul Rahe, one of the most eminent scholars of Machiavelli sympathetic to the Straussian approach, Cambridge School scholars emphasize the *Discourses* at the expense of *The Prince*, which leads to a false interpretation of Machiavelli as a classical republican and obscures the radical substance of his teaching. See Paul A. Rahe, *Against Throne and Altar: Machiavelli and Political Theory Under the English Republic* (Cambridge: Cambridge University Press, 2009). There is a great deal of evidence to support an interpretation of Machiavelli as a classical republican. However, there remains much in his thought, especially in *The Prince*, that isolates him from his inherited tradition. This work hopes to demonstrate that Machiavelli attempts to modernize the civic republican tradition to accommodate a timely responsiveness to international politics, a realm of necessity that appears immune to discourse of justice and the good. Political thought before Machiavelli assumed a closed polis. Machiavelli integrates the world beyond the borders of the city. Arguably, the Thucydidean and Aristotelian traditions come together in Machiavelli's political thought.

[14] This contention rests on a distinction between the early modern territorial state and the national monarchy or nation-state that reached its zenith in the nineteenth century.

[15] Niccolò Machiavelli, *Discorsi sopra la prima Deca di Tito Livio*, 2 vols., ed. F. Bausi (Rome: Salerno Editrice, 2001); Niccolò Machiavelli, *L'arte della guerra. Scritti politici minori*, eds. D. Fachard, G. Masi, and J. J. Marchand (Rome: Salerno Editrice, 2001); Niccolò Machiavelli, *The Discourses on the First Ten Books of Titus Livy*, trans. and eds. Harvey C. Mansfield and Nathan Tarcov (Chicago: University of Chicago Press, 1996) (hereinafter *Discourses*); Allan Gilbert, *Machiavelli: The Chief Works and Others*, 3 vols. (Durham: Duke University Press, 1965), III.

him all his life, appears most vividly in *The Prince*. Neither a scholarly treatise nor a utopian vision, *The Prince* is a manifesto of action. Again and again, it tells how a prince must act and what a prince must do to acquire new lands, to hold onto them, to maintain a military, to gain prestige, to avoid hatred and flatterers, to prevent the loss of states, and finally "to seize Italy and liberate her from the barbarians."[16] *The Prince* is not a dead work, but a living call to action; it is a manifesto, a summons, *una esortazione* (to use Machiavelli's chosen phrase) that reaches the reader across time and space, exhorting him to rise and change an unacceptable world.

Divided into twenty-six chapters of remarkably ambient prose, *The Prince* is a deliberately structured work. The lineaments of its structure remain vague despite nearly two centuries of scholarly debate. Oreste Tommasini, the greatest of nineteenth-century Machiavelli commentators, discerned a three-part structure.[17] Friedrich Meinecke held that the second half of *The Prince*, beginning with chapter 12, was conceived as a unified extension to the original eleven chapters. He distinguished between the various subsections, holding that chapters 12–14 concerned military matters and chapters 15–18 comprised "a small special treatise on the relations of politics to the ethical values and feelings of the prince's subjects."[18] Meinecke maintained that *The Prince* was a cohesive composition, its chapters deliberately linked from beginning to end.[19] In 1939, historian Felix Gilbert, a student of Meinecke, claimed that chapters 15–19 comprise a self-contained satire on the "mirror for princes" literature, a persuasive claim that spawned much subsequent research.[20] Gilbert also contended

[16] Chapters 1, 3, 14, 21, 23, 19, 24, and 26. Gramsci mentions that Machiavelli spurns the form of the utopia and the scholarly treatise and writes a method of action. Antonio Gramsci, *The Prison Notebooks*, trans. Joseph Buttigeg and Antonio Callari (New York: Columbia University Press, 1992), note 12. Louis Althusser noticed the shattering impact of *The Prince*, which works as a manifesto to enthrall and call readers to action. *Machiavelli and Us*, ed. Francois Matheron (New York: Verso Press, 1999). As Lauro Martines writes, "Appalled by the Italian catastrophe and the puny stature of his native Florence, he yearned to change the course of events" (*Power and Imagination*, 310–11).

[17] Oreste Tommasini, *La vita e gli scritti di Niccolò Machiavelli nello loro relazione col Machiavellismo* (Rome: Ermanno Loescher, 1883–1911).

[18] Friedrich Meinecke, *Machiavellism: The Doctrine of Raison d'état and Its Place in Modern History*, trans. Douglas Scott (New Haven: Yale University Press, 1957).

[19] Arguably, Meinecke's interpretation of *The Prince* is more insightful than that of his student Felix Gilbert, whose vision of *The Prince* pervades the Cambridge School. Machiavelli wrote "on the nature of princely rule" out of mixed motives – to land a job, to articulate a philosophy of state, and to see Italy free. However, Meinecke crucially reminds us that the central idea of Machiavelli's life was the regeneration of Italian political life by means of the virtue of a leader and measures dictated by necessity. *The Prince*, including the last chapter, grew out of this fundamental conception, which unites its various parts (*Machiavellism*, 40–3).

[20] Felix Gilbert, "The Humanist Concept of the Prince and *The Prince* of Machiavelli," in *History: Choice and Commitment*, ed. Felix Gilbert (Cambridge, MA: Harvard University Press, 1979). Allan H. Gilbert, *Machiavelli's Prince and Its Forerunners:* The Prince *as a Typical Book de Regimine Principum* (Durham: Duke University Press, 1938).

that the second part of *The Prince*, chapters 15–26, was inspired by opposition to the humanists and bears no relation to the first half, essentially claiming that *The Prince* has no intentional design or overall purpose. He added that the last chapter, the famous liberation exhortation, was simply tacked on and is "not prepared for by any hint in the preceding sections of the book."[21] Scholars of the "Cambridge School" tend to follow Felix Gilbert's essential insight and demonstrate how *The Prince* is organized in part in accordance with devices of humanist rhetoric.[22]

In an undeniably thrilling reading, Leo Strauss claimed that *The Prince* reveals an intentional structure being divided into four parts. Part I includes chapters 1–11; part II embraces chapters 12–14, rising from the worst military to the best; chapters 15–23 comprise part III, and Machiavelli ends with the trilogy of part IV.[23] Strauss's discernment of the underlying structure and the apprehension that the final three chapters are connected are remarkably useful. Rather than dismiss the final chapter as mere rhetoric, Strauss grasped its essential importance. However, Strauss believed that the last chapter referred to an intellectual rather than political regeneration of Italy, or more precisely, that the former must precede the latter.[24] Elaborating on Strauss's suggestive comments, Mary Dietz has argued it was structured as an anti-princely satire in order to lure the Medici to their destruction.[25]

Historian Sidney Anglo essentially unlocked *The Prince* in his 1968 book *Machiavelli, a Dissection*. He argued that *The Prince* is a deliberately structured work,[26] and that the apex of that structure is the call to the Medici to expel the barbarians – an insight owed to L. Arthur Burd, editor of the superb 1891 Oxford edition.[27] Anglo, however, held that Machiavelli consciously engaged in wishful thinking while composing *The Prince*.[28] If we, instead, take Machiavelli at his word that he wanted his work to be useful, to have practical

[21] Felix Gilbert, "The Historian's Machiavelli," in *History: Choice, and Commitment*, 114.

[22] Quentin Skinner, *Machiavelli* (New York: Hill and Wang, 1981).

[23] Leo Strauss, *Thoughts on Machiavelli* (Seattle: University of Washington Press, 1969, reprint), 56–65.

[24] Strauss, *Thoughts on Machiavelli*, 81.

[25] Mary G. Dietz, "Trapping the Prince: Machiavelli and the Politics of Deception," *American Political Science Review* 80 (1986): 777–9. Dietz's argument is contested by John Langdon in "Machiavelli's Paradox: Trapping or Teaching the Prince," *American Political Science Review* 81 (1987): 1277–83.

[26] Anglo divides *The Prince* into five sections. Sydney Anglo, *Machiavelli: A Dissection* (New York: Harcourt Brace Inc., 1970).

[27] Burd's 1891 Oxford edition of *The Prince* (*Il Principe*) presents *The Prince* as unified by Machiavelli's hopes for Italian political recovery. He also discerns a tripartite structure, dividing it into chapters 1–11, 12–14, and 15–25, crucially noticing that chapter 26 is the climax.

[28] Anglo cites Machiavelli's August 10, 1513, letter to Vettori as evidence Machiavelli knew *The Prince* was wishful thinking. From the same letter, I conclude that he was serious precisely because he laughs at cooperation, which Anglo takes as evidence for Machiavelli's skepticism because *The Prince* is not about cooperation, but conquest. Machiavelli could laugh at the prospect of *cooperation* and still be deadly serious about the acquisition of a unitary Tuscan state/Borgia's

implications, and if we agree to be persuaded by Anglo's analysis that the text has a deliberate structure, we have made progress.[29] All that is missing is an acknowledgment of the territorial agenda found in *The Prince* and its significance as part of a project of state building.

*The Prince* is structured to encourage the Medici to embark on a campaign of acquisition. This interpretation provides a way to reconcile Italian patriotism with republican politics in Machiavelli's works. In reaction to the excesses of Risorgimento scholarship, which cast Machiavelli as a prophet of the Italian nation, political theorists of late have erred in the other direction by emphasizing his republicanism at the expense of his genuine Italian patriotism.

Quentin Skinner emphasizes the extent to which Machiavelli remains within the inherited framework of arguments, terms, and rhetoric of humanist civic republicanism. "Machiavelli not only presents a wholehearted defense of republican values, he presents his defense in a wholeheartedly traditional way."[30] Such an approach naturally has much to recommend it, but it does miss the iconoclasm, the undeniable thrill of discovery that runs through all of Machiavelli's works, which J. G. A. Pocock gamely tried to capture with the term *innovation*. Pocock's impressive study acknowledges the role acquisition plays in *The Prince* but subsumes it under the concept of innovation, which is the animating principle of *The Prince*. According to Pocock, who also discerns

aim as the solution to Italy's ills. Hence the focus on Tuscany in the *Discourses* is important to emphasize. Cooperation and unification certainly were impossible, but a Tuscan territorial state akin to Borgia's was possible. Significantly, that August 10 letter contains the germ of the *Discourses*: "I beg you to reflect ... particularly of republics – how they develop from first not being dominated to dominate others," and provides evidence he was thinking about an expanding republic founded on conquest, not a confederation. See *Machiavelli and His Friends: Their Personal Correspondence*, trans. and eds. James. B. Atkinson and David Sices (De Kalb: Northern Illinois University Press, 1996), 249.

[29] See the preface to Book II of the *Discourses*. The basic idea that there is some sort of plan behind *The Prince* has its share of proponents, from Antonio Gramsci and Louis Althusser to Maurizio Viroli, Sebastian de Grazia, and Albert Ascoli. See, for example, Albert Ascoli, "Machiavelli's Gift of Counsel," in *Machiavelli and the Discourse of Literature*, eds. Albert Ascoli and Victoria Kahn (Ithaca: Cornell University Press, 1993), 238, which argues that one of the Machiavelli's aims in writing *The Prince* is to resolve the Italian political crisis. There is no general agreement among scholars about the specifics of the plan, but as persuasion is endemic to implementing a plan, many scholars have noticed that Machiavelli writes persuasively. This realization gave rise to numerous studies on the rhetorical elements of *The Prince*. Among the most useful rhetorical studies are Victoria Kahn, *Machiavellian Rhetoric: From the Counter-Reformation to Milton* (Princeton: Princeton University Press, 1994), 15–59; John F. Trinkler, "Praise and Advice: Rhetorical Approaches in More's *Utopia* and Machiavelli's *The Prince*," *Sixteenth Century Journal* 19 (1988): 187–207; and J. N. Stephens, "Ciceronian Rhetoric and the Immorality of Machiavelli's Prince," *Renaissance Studies* 2 (1988): 258–67.

[30] Quentin Skinner, "Machiavelli's *Discorsi* and the Pre-Humanist Origins of Republican Ideas," in *Machiavelli and Republicanism*, eds. Quentin Skinner, Gisela Bock, and Maurizio Viroli (Cambridge: Cambridge University Press, 1990), 1–14. See also Quentin Skinner, *The Foundations of Modern Political Thought* (Cambridge: Cambridge University Press, 1978), I: 33–5, 116–18; and J. G. A. Pocock, *The Machiavellian Moment: Florentine Political Thought and the Atlantic Republican Tradition* (Princeton: Princeton University Press, 1975).

a pattern to the organization of Machiavelli's treatise, the republic's survival in time takes precedence over its expansion in space.[31] Skinner and Pocock both prefer, in distinctive ways, to examine ideologies and the specific languages elaborated around them. An exclusive focus on language and intellectual milieu, though an immensely valuable line of inquiry, may overlook the fact that Machiavelli inhabited a collapsed political world characterized by the terrible tension between city-state and territorial state that tormented the writer and unifies his political thought. Machiavelli inherited a vocabulary honed for the world of small city-states that no longer fit the new political world he witnessed, and he knew it.[32] Most readers have found Machiavelli's teaching ambiguous, even strange, and this is bound to be the case unless one interprets his teaching as motivated by the political problems of his day and directed toward expelling invaders and founding a territorial state in Tuscany that is strong and free. The new political landscape formed by the extended composite monarchies coalescing north of the Alps forced Machiavelli to leave the humanist city-state and seek new vistas and promontories of political thought.

In chapter 15 of *The Prince*, Machiavelli wrote, "Since my intent is to write a thing that is useful for whoever understands it, it seemed to me more appropriate to go after the effectual truth of the thing than the imagination of it."[33] The presence of abstract concepts of virtue, necessity, and fortune in the text of *The Prince* should not distract readers from the fact that Machiavelli intended the teachings in which they are embedded to be useful. He wrote in general terms because he believed his study of concrete events and ancient political experience revealed the underlying laws of political life, and that such knowledge could be used to cure present and future ills. Hence, *The Prince* operates on multiple dimensions. At once both general and specific, it is intended to be not only a guide to action for a new prince to apply to the Italian situation, but also a general theoretical work on the invariant laws of leadership, conquest, and the

[31] The first and third sections of *The Prince* comprise an analysis of innovation, according to Pocock, who divides *The Prince* into five sections: chapters 3–5 on the new prince and customary society, chapters 6–9 on innovation and fortune, chapters 12–14 on military strength, and chapters 15–21 on the prince and his relations to his subjects, while chapters 24–26 discuss fortune. Pocock does sense that chapter 26 points to and is resolved in the *Discourses*. Pocock, *The Machiavellian Moment*, 162–3.

[32] Witness his refusal to use "politico" rooted words in *The Prince*, and his ruminations on the usefulness of *parlare* and *ragionare* about politics in the face of "the divergence between language and the actual course of events." John Najemy, *Between Friends: Discourses of Power and Desire in the Machiavelli – Vettori Letters of 1513–1515* (Princeton: Princeton University Press, 1993), 107–9. See also Elena Fasano Guarini, "Machiavelli and the Crisis of the Italian Republics," in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*, 30–33. Guarini points out that there are numerous studies on Machiavelli's use of the term "state," *Lo stato*, but no studies on his use of "city"/*città*.

[33] Connell ed., chapter 15.

maintenance and acquisition of states.[34] Multiple scholars have agreed that there is an educational aspect to *The Prince*. According to Victoria Kahn, *The Prince* is an educative enterprise that seeks to develop the reader's "practical judgment."[35] Maurizio Viroli states that Machiavelli's purpose in writing *The Prince* and the *Discourses* was to educate a great political man who might use the art of the state to restore republican government.[36] "Writing *The Prince* is a task of recruitment and education," observed Sebastian de Grazia, and the reader must jump from the page to active experience.[37] Machiavelli wanted to change the thinking of the reader – to teach the reader to think in terms of the best interest of the state in general and (it will be argued) of an extended territorial state in particular. He did so in part by writing persuasively, and also by embodying his conception in the ideal prince. "Such a procedure stimulates the artistic imagination of those who have to be convinced, and gives political passions a more concrete form."[38]

Machiavelli's advice was supposed to be comparatively easy to translate into reality.[39] "This will not be very difficult for you if you call up before you the actions and lives of those men named above."[40] In fact, the last three chapters of *The Prince* perform this sort of translation, applying the previously general maxims to the specific Italian situation. Chapter 24, entitled "Why the Princes of Italy Have Lost Their States," details precisely how *Italian* princes have failed to follow his maxims, which demand that a prince be a servant of the state, and

[34] "What determined the composition of *The Prince*? In the last resort, only one answer can be given: the general condition of Italy. This answer is, at first sight, perhaps inadequate; but it is nevertheless the only one that is really satisfactory." "The Purpose of the Prince," Burd ed., 22. In *Power and Imagination*, Lauro Martines writes that Machiavelli was the only political thinker who achieved "a unity of vision, thanks to his passionate dogmatism in 1503 to 1515 about the need for action" (311).

[35] Kahn, *Machiavellian Rhetoric*, 19. Kahn analyzes Machiavelli's teaching of politics as a rhetorical activity.

[36] Maurizio Viroli, "Machiavelli and the Republican Idea of Politics," in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*, 167. I agree with Viroli that the purpose of *The Prince* and the *Discourses* was educational, and Machiavelli hopes to educate a great leader who might revive republican government in an era of princes. However, I believe that the educational purpose is only part of the story. In the *Discourses*, Machiavelli attempts to solve a theoretical problem – how to adapt the art of the city-state to the territorial state. Viroli has noticed that Machiavelli is attempting to "rework the vocabulary of civil philosophy to make it useful in a new political context, and seeks to prevent the art of the state from replacing the art of the city" (171). Viroli then focuses on educating the political figure. I agree with Viroli that Machiavelli is attempting to modernize civic republicanism. However, rather than focus entirely on education, I also seek to understand the role of territorial expansion and the specific adjustments to the inherited political tradition Machiavelli makes in his works.

[37] Sebastian de Grazia, *Machiavelli in Hell* (Princeton: Princeton University Press, 1989), 276–86.

[38] Gramsci, *The Prison Notebooks*, notebook 4, note 12.

[39] He writes that there is hope for Tuscany, where a free way of life might be introduced, not by a prince, "but by a prudent man having knowledge of ancient civilizations." *Discourses* Book I, chapter 55.

[40] *The Prince*, chapter 26.

lays the blame for Italy's political degradation at their well-shod feet. Chapter 25 describes how Italy lacked virtue and fell victim to fortune.[41] The last chapter, the oft discounted exhortation, actually does exhort the Medici to behave in the manner of the acquisitive virtuous prince detailed in previous chapters, which in such times meant liberating Italy from the barbarian invaders, assembling a citizen army, and acquiring and consolidating a territorial state.

In the *Discourses*, Machiavelli wrote, "Truly, no land was ever united or happy, if not under the rule of a single republic or Prince as has occurred in France or Spain."[42] This study will attempt to demonstrate that Machiavelli envisioned Tuscany as a united land.[43] In the *Discourses* he writes that Naples, Rome, and Lombardy are so corrupt, so full of worthless nobles, "that no republic or political way of life has ever emerged." He then contrasts those politically dead lands with Tuscany, which lacks gentlemen and where "there is so much equality that a civil way of life would easily be introduced there by a prudent man having knowledge of ancient civilizations."[44] Like Machiavelli, Tuscany has been so maligned by fortune, "that up to these times it has not run into any man who has been able or known how to do it."[45] Machiavelli was

[41] Specific terms in Machivelli's writings generated their own scholarly literature. For virtue, see J. H. Whitfield, "The Anatomy of Virtue," in *Machiavelli*, ed. J. H. Whitfield (Oxford: Blackwell, 1947), and Russell Prince, "The Senses of *virtù* in Machiavelli," *European Studies Review* 3 (1973): 315–45. For fortune, see Josef Macek, "La *fortuna* chez Machiavelli," *Le Moyen Âge* 77 (1971): 305–28.

[42] In *Discourses* Book I, chapters 12 and 55, France and Spain are not prey to the disorders that plague Italy because of the "one king that maintains them united not only through his virtue but through the *order* of those kingdoms." Machiavelli's letters to Vettori of August 10 and 27, 1513, discuss international affairs, unification, *and republics*, which indicates that Machiavelli was thinking and writing about republics as he was writing *The Prince*. In short, he was thinking of both at the same time, which supports the possibility that they were conceived together as interlocking parts of the same endeavor. The letter of August10 contains the germ of the idea motivating the *Discourses*, in which Machiavelli begs Vettori to reflect on how republics develop (from not being dominated to dominating others – the "sweetness of domination"), which can be taken as evidence he was beginning to contemplate the expanding republic of the *Discourses*. In that same letter and the August 27 letter, he worries that the Swiss republics will master Italy. Foreign military power keeps them from expanding, but not forever because "*necessity persuades people to do what they did not intend to do*." It appears Machiavelli thought about republics in conjunction with international relations and state survival, which are issues to which he devotes significant attention in the *Discourses*.

[43] In this chapter, he bemoans the fact that Italy, not Tuscany, is not united because the more resonant and powerful image of Italy serves the purposes of the argument he is making against the Church better than does Tuscany. When he left diatribes and rhetoric and got down to pragmatic politics, it appears he thought in terms of Tuscany.

[44] "This reason is verified with the example of Tuscany, where one sees three republics – Florence, Siena, and Lucca – have long been in a small space of territory" (*Discourses* Book I, chapter 55, 112). For more on this, see the discussion of the Tuscan league in Chapter 2 of this work.

[45] Machiavelli writes of Tuscany's misfortune in much the same way that he writes of himself in the dedication of *The Prince:* Tuscany's "misfortune has been so great," as Machiavelli endures a great and continuous malignity of fortune.

anguished over invasions by the new protagonist of European politics, the large territorial state. As he wrote in his August 26, 1513, letter to Francesco Vettori, "Because these things appall me, I should like to remedy them."[46]

Let us explore the possibility that Machiavelli wrote to the Medici to suggest a unitary central Italian state, secure enough to impose order and expel invaders, centering on Florence and dominating central Italy. First referred to as *De Principatibus*, noteworthy for its territorial connotations, with the title changing only when published after Machiavelli's death, *The Prince* was a memorandum to incite political action toward a new kind of state interlaced with general reflections on the unchanging nature of statecraft – a memorandum and treatise combined.[47] There is textual and historical evidence to support the claim that Machiavelli hoped to encourage the Medici to take up and realize Cesare Borgia's plans to create a territorial Tuscan state as opposed to unification in imitation of France. The main reason Borgia appears with such prominence in *The Prince* is that Borgia's aim corresponded to Machiavelli's own conception of the territorial state in chapter 3. Machiavelli believed Borgia "planned to become lord over Tuscany"[48] (*signore di Toschana*), a state composed of the

[46] The letter also mentions his worry over Italian disarray and the possibility of the Swiss, who appear to him as an ominous new Roman militaristic republic, becoming masters of Italy. Letter to Vettori, December 10, 1513, in Atkinson and Sices, *Machiavelli and His Friends*, 260.

[47] Political acquisition, rule, and diplomacy. See letter to Vettori, December 10, 1513, in Atkinson and Sices, *Machiavelli and His Friends*, 262. Machiavelli's expertise was in the *arte dello stato*, as he describes it in the letter. Machiavelli first refers to his book as *un opouscolo de Principatibus*, "a little work on principalities," in a letter to his friend Francesco Vettori. In the *Discourses*, he refers to it as "our treatise on principalities," *nostro trattato dei principati*, in Book II, chapter 1; and as "our treatise on the prince," *nostro tratto del principe*, in the *Discourses* Book III, chapter 42. Although manuscript copies circulated while Machiavelli lived, *The Prince* was published only after Machiavelli's death. In January 1532, *The Prince* was published in Rome by Blado, and later that year an edition came out in Florence published by Bernardo Giunta. Blado retitled Machiavelli's treatise *On Principalities, The Prince*, the title that endures to this day. See Antonio Blado, "Dedicatory Letter to Filippo Strozzi," Machiavelli, *Opere*, ed., Rinaldo Rinaldi 1: 1, 403–6. See Connell ed., 147–51. See also Bernardo Giunta, "Dedicatory Letter to Giovanni Gaddi," in Machiavelli, *Opere*, ed. Rinaldi 1: 1, 407–9, reprinted in Connell. Connell suggests the impetus for publication of *The Prince* came not from its political content but from its usefulness in contemporary debates concerning the role of the *volgare*, the Tuscan dialect, rather than the traditional Latin in literary texts. Connell ed., 150–2.

[48] Ten years before writing *The Prince*, Machiavelli had the distinct impression that Borgia aspired "to the domination of Tuscany, as being nearer and more suitable to form a kingdom together with the other States which he controls." See "Dispatch on the Val di Chiana Rebellion" in *Machiavelli: The Chief Works and Others*, trans. and ed. Allan Gilbert (Durham: Duke University Press, 1989), I. See also Sergio Bertelli, "Nota Introduttiva," in *Niccolò Machiavelli, Arte della Guerra e scrittci politici miniori*, ed. S. Bertelli (Milan: Feltrinelli, 1961). It should be stressed that the terms "kingdom" and "monarchy" entail hegemony but not necessarily unification along the lines of the modern European national-state. Machiavelli used the expression "Lord of Tuscany" to describe what Florence might had been had it followed his advice in Book II, chapter 21, of the *Discourses*.

lands of Florence, Siena, Pisa, Lucca, Urbino, probably the Romagna,[49] and perhaps the papal states as well, as Machiavelli describes it in the Dedicatory Letter and chapters 3, 7, 17, 20, and 26 of *The Prince*.[50] There was no doubt among his contemporaries and there has been no doubt among generations of historians that such a strong central Italian state was Borgia's aim.[51] Restored in Florence by Spanish arms and in command of the papacy, which had inherited all the territories Borgia and then Julius II had conquered, the House of Medici was ideally positioned to assemble a territorial state large enough to act as a barrier to invasion.[52] When Cardinal Giovanni de Medici was elected to the papacy and took the name Leo X in March 1513, Rome and Florence were governed by the same family for the first time since the fall of Rome. This unprecedented situation was cause for concern and hope in equal measure in Florence. A strong power in central Italy might bring the invasions to an end. Would the Medici turn all their attention to Rome, or would they maintain a Florentine perspective? Would they assemble an empire or a new dominion?[53] To Machiavelli, the Medici had the opportunity, the opportunity of a lifetime, to redeem Italy.[54]

First, it was necessary to throw the barbarians out of Italy, a task best done with a citizen army.[55] Then the Medici or someone similarly capable would proceed to acquire a territorial state.[56] Finally, a founder, a virtuous unknown, a

[49] The Romagna is a region near Tuscany in north-central Italy encompassing a portion of the Adriatic coast and the towns of Ravenna, Forli, Arezzo, and Pesaro.

[50] Credit for this insight goes to Federico Chabod, *Machiavelli and the Renaissance*, 73–5, who in his turn was following a path made by a contemporary of Machiavelli, J. Nardi. *Istorie dell città di Firenze*, 2 vols., ed. A. Gelli (Florence: Le Monnier, 1988), I: 395; and nineteenth-century historian Francesco Nitti, *Machiavelli nella vita e nelle opere* (Naples: Detken and Rocholl, 1876), I. Leo Strauss should also be credited with the insight that Machiavelli may have envisioned the secularization of the papal states (Strauss, *Thoughts on Machiavelli*, 68).

[51] See N. Machiavelli, *Legazioni e Commissarie*, 3 vols., ed. S. Bertelli (Milano: Feltrinelli, 1964), 629–805; Humfrey Butters, *Governors and Government in Early Sixteenth Century Florence 1502–1519* (Oxford: Oxford University Press, 1985); J. N. Stephens, *The Fall of the Florentine Republic 1512–1530* (Oxford: Clarendon Press, 1983). Bartolomeo Cerretani writes of Alexander IV's wish to make Cesare Borgia lord of Tuscany in *Storia fiorentine* (Florence: Olschki, 1994), 300.

[52] *The Prince*, chapter 11, "On Ecclesiastical Principalities." "Then came Pope Julius. He found the Church great, since it possessed all of the Romagna; and the barons of Rome were eliminated since Alexander's blows had annihilated those factions. He also found the road clear for accumulating money in ways that had never been practiced before Alexander. These things Julius not only continued but increased. And he thought to win Bologna, to eliminate the Venetians and to chase the French out of Italy. He succeeded in all of these undertakings" (Connell ed., 75).

[53] Stephens, *The Fall of the Florentine Republic*, 55. See also J. N. Stephens, "Machiavelli's *Prince* and the Florentine Revolution of 1512," *Italian Studies* 41 (1986): 56–7.

[54] "Nor is there to be seen at present anyone in whom she could hope more than in your illustrious house, which, with its fortune and virtue favored by God and by the Church of which it is now prince, can make itself the leader of this redemption" (*The Prince*, chapter 26, Connell ed., 120).

[55] *The Prince*, chapters 12–14, 26, Connell ed.

[56] *The Prince*, chapters 3, 5, 20, Connell ed.

member of the *Orti Oricellari* educated and advised by Machiavelli, would craft a territorial republic. The passage from principality to republic would be fraught with difficulty. However, one can hazard a respectable guess as to what Machiavelli had in mind. When the Medici returned to Florence in 1512 after the defeat of the Florentine republic, prominent Florentine citizens advised Cardinal Giovanni de Medici to return to a traditional constitutional government. The new Medici regime closed the Great Council, made the office of *gonfaloniere* an annual rather than a lifetime office, and reconvened the Council of Seventy, the Council of Hundred, and the Councils of the People and the Commune.[57] Hence, the new regime appeared receptive, but appearances can be deceiving. The Medici were not prepared to restore Florence's ancient liberties. Eight years later, after Machiavelli's imprisonment and exile, Cardinal Giulio de Medici invited him to write a discourse on the best form of government for Florence. In his *Discourse on Florentine Affairs after the Death of Lorenzo*, Machiavelli proposed that Florence return to a republican form of government.[58] Though by then he had abandoned the glorious role he had envisioned for the family in the final chapter of *The Prince*, Machiavelli retained a glimmer of hope the Medici would be public spirited enough to recreate civic institutions and reeducate the Florentine population for republican rule; again such a hope proved overly optimistic.[59]

If the Medici refused to retire from political life or to play the glorious role of founders of a restored republic after expelling the French and Spanish armies, Machiavelli seemed willing to proceed without them, writing, "Men take the courage to attempt new political things."[60] In Book III, chapter 7, of the *Discourses*, he ruminates that when the passage from servitude to freedom is led by the people rather than by leaders, "No one is hurt but the head," which signals an alternative route to a republic. "And of this sort was the state of Rome with the expulsion of the Tarquins, as was also the state of the Medici in Florence, in the ruin of whom later, in 1494, none other than themselves were offended." Earlier in the *Discourses* Machiavelli observes that "a prudent man

[57] See R. von Albertini, *Firenze dalla Repubblica al Principato, Storia e conscienza politica* (Turin: Einaudi, 1970), 362, 367–82. Machiavelli knew of the advice proffered. See *Lettere*, ed. F. Gaeta (Turin: UTET, 1984), 231–5.

[58] "A Discourse on Remodeling the Government of Florence," in *Machiavelli: The Chief Works and Others*, 3 vols., ed. A. Gilbert (Durham: Duke University Press, 1965), III, 101. *Discursus florentinarum rerum post mortem iunioris Laurentii Medices*,in, *Niccolò Machiavelli, Opere*, eds. S. Bertelli and F. Gaeta, 8 vols. (Milan: Feltrinelli, 1961). Vol. 2 ed., S. Bertelli, *L'arte della guerra. Scritti politici minori*, 261–7.

[59] Two years before Machiavelli's death, he appeared before Pope Clement VII, formerly Giulio de Medici, to present his *History of Florence*. Machiavelli took the liberty of submitting a plan to arm the people of the Romagna, which Felix Gilbert described as a new papal version of his old scheme to expel the barbarians. Felix Gilbert, "Machiavelli's Istorie Fiorentine," in *History: Choice or Commitment*, 151.

[60] *Discourses* Book III, chapter 3. *Grandezza*, or glory appears most prominently in *The Prince*, chapters 6, 16, and 26 and the *Discourses* Book I, chapter 10.

with knowledge of ancient civilizations," a prince, a founder from nowhere, a leader ready to "work the good," could introduce a free way of life.[61]

Machiavelli made no effort to publish either *The Prince* or the *Discourses on the First Ten Books of Titus Livy* during his lifetime, but manuscripts circulated in Florence and Rome.[62] Given the cross-references in both works, it is likely Machiavelli conceived of both works as being printed or as being read by multiple readers. By his own admission, in the preface to Book II of the *Discourses*, for instance, he thought of himself as an educator, a teacher of the young – a self-description that would come to fruition in the Rucellai gardens, where he was a teacher of young aristocrats rather than advisor to an aggrandizing prince.[63]

Based on the historical and textual evidence available, Machiavelli likely wrote most of *The Prince* in 1513. He probably continually revised it until 1516, the year he dedicated it to Lorenzo de Medici. Since he worked on the *Discourses* from 1513 to 1519, his work on *The Prince* and the *Discourses* most likely overlapped at some point.[64] From letters Machiavelli exchanged with Vettori, it appears Machiavelli shared specific chapters of his work on principalities while he was composing it, and his celebrated letter to Vettori of December 19, 1513, describes what we recognize as the early chapters.[65] The dating of *The Prince* has been the subject of a long-simmering debate that flared again in the wake of Italian scholars' recent research on the original text. Giorgio Inglese provides a detailed textual commentary encompassing the manuscript and early printed variations.[66] While Inglese argues that *The Prince* achieved

[61] *Discourses* Book I, chapter 55; see also Book I, chapter 18.

[62] Connell ed., Introduction, 22, "How *The Prince* came to be published in Rome in 1532, as part of a project to publish Machiavelli's works five years after his death, is still something of a mystery." For more on the initial reception of Machiavelli's works see Victoria Kahn, "Machiavelli's Reputation to the Eighteenth Century," in *The Cambridge Companion to Machiavelli*, ed. John M. Najemy (Cambridge: Cambridge University Press, 2010), 241.

[63] De Grazia, *Machiavelli in Hell*, 367.

[64] According to the most reasonable examination of available evidence, the dating of Machiavelli's canon is fairly straightforward: *The Prince* (1513–16), the *Discourses* (1513–19), *Art of War* (1519–20), and Florentine History (from 1520). See Anglo, *Machiavelli: A Dissection*, 84. Gennaro Sasso has explored the similarities between *The Prince* and Book I of the *Discourses* that reveal a continuity of thought, implying both were composed around the same time. Sasso also believes chapter 7 of *The Prince* was composed between 1514 and 1517; thus, one cannot hold that all of the text was completed in 1513. See Gennaro Sasso, *Niccolò Machiavelli, Il pensiero politico* (Bologna: Il Mulino, 1980), I: 330, note 6; 349–65.

[65] Atkinson and Sices, *Machiavelli and His Friends*, 264. In a later letter dated January 18, 1514, Vettori writes, in reference to *The Prince*, that he has seen the chapters Machiavelli sent, but would like to reserve judgment until he sees the entire work (Atkinson and Sices, 276). Whether this means *The Prince* was complete and Machiavelli was sharing selectively or was sharing the work while working on it, remains open to debate. Sasso, *Pensiero politico*, 314–15.

[66] Giorgio Inglese's critical edition, Niccolò Machiavelli, *De principatibus*, ed. Giorgio Inglese (Rome: Istituto Storico Italiano per il Medio Evo, 1994). See also Inglese's annotated paperback edition, Machiavelli, *Il Principe*, ed. Giorgio Inglese (Turin: Einaudi, 1995).

final form in 1514, another distinguished Machiavelli scholar, Mario Martelli, claims that Machiavelli continued revising the text until 1518. It is probable the truth lies somewhere in between, as it appears likely that Machiavelli made some minor changes after 1514.[67]

The controversy over dating is an especially glaring issue if one assumes there was an intellectually significant shift from *The Prince* to the *Discourses*. Hans Baron was a powerful proponent of the view that Machiavelli moved from princely idealism to republican realism, and that explains how the same man could author a book counseling princes and then an extended study of republican government.[68] Another venerable view deriving from Alberico Gentili, later to be espoused by Spinoza and Rousseau, states that the differences between the two are not as great as they seem. *The Prince* does not advocate tyranny, but attacks it.[69] This view was revived in recent decades in a more nuanced fashion by Victoria Kahn, who makes the subtle point that *The Prince* presents "an immanent critique of tyranny," which anticipates the argument for republicanism in the *Discourses*.[70] This view places great emphasis on chapter 8, but has difficulty explaining the overall thrust of the rest of the chapters.[71] A view of more recent extraction claims *The Prince* is satirical and deliberately provides bad advice.[72] An additional view emphasizes Machiavelli's preoccupation with founders, but it is not clear that the prince is intended to be such a man because Machiavelli never discusses how to construct a political system in *The Prince*. A fifth view, popularized by Federico Chabod, states that the

[67] See Mario Martelli, "Sette proposte per il testo del Principe," *Interpres* 16 (1997): 189–203; Martelli, *Saggio sul "Principe"* (Rome: Salerno, 1999). See also the small volume announcing the program for a new edition of Machiavelli's works: *Edizione nazionale delle opera di Niccolò Machiavelli* (Rome: Salerno, 1997), 17–20. Mario Casella's 1929 version of the text remains authoritative, according to William J. Connell (Niccolò Machiavelli, *Tutte le opera storiche e letterarie*, eds. Guido Mazzoni and Mario Casella [Florence: Barbèra, 1929]).

[68] In an important series of essays, Hans Baron argued that *The Prince* and the *Discourses* were indeed incompatible and that Machiavelli wrote *The Prince* first in 1513 and then the *Discourses* after 1515, changing his mind in between the two. "The *Principe* and the Puzzle of the Date of Chapter 26," *Journal of Medieval and Renaissance Studies* 2 (1991): 102; "Machiavelli the Republican Citizen and Author of *The Prince*," in *In Search of Florentine Civic Humanism: Essays on the Transition from Medieval to Modern Thought*, 2 vols., ed. Hans Baron (Princeton: Princeton University Press, 1988), II.

[69] Benedictus de Spinoza, *Theological-Political Treatise*, trans. Michael Silverthorne and Jonathan Israel (Cambridge: Cambridge University Press, 2007); Jean-Jacques Rousseau, *The Social Contract*, trans. G. D. H. Cole (New York: Knopf, 1993), 242; Alberico Gentili, *De legationibus livri tres*, trans. Gordon J. Laing (Oxford: Oxford University Press, 1924), II, 156.

[70] Kahn, *Machiavellian Rhetoric*, 36–7.

[71] Robert Kocis argues that Machiavelli uses the concept of glory to lure a princely reader from embracing tyranny to founding laws and institutions – the essence of a glorious ruler discussed in *The Prince*, chapter 9. Robert Kocis, *Machiavelli Redeemed: Retrieving His Humanist Perspectives on Equality, Power, and Glory* (Cranbury, NJ: Associated University Press, 1998), 155.

[72] Dietz, "Trapping the Prince," 777–99. Dietz's argument is contested by John Langdon, "Machiavelli's Paradox: Trapping or Teaching the Prince," *American Political Science Review* 81 (1987): 1277–83.

differences between *The Prince* and the *Discourses* reflect Machiavelli's conviction that republics can only be established under favorable conditions. A similar approach taken by Gennaro Sasso and Mark Hulliung holds that the recommendations, even the unsavory dictatorial advice found in *The Prince*, are designed to lead to the republican government that is the subject of the *Discourses*.[73] Sasso and Hulliung are reluctant to consider the new prince a tyrant and again tend to discount the disturbing recommendations found in the pages of *The Prince*. Thus the question of dating the composition of *The Prince* and *Discourses* invites a discussion of the various views of the relationship between the two, which appears to terminate in a consideration of whether the new prince is a tyrant or a founder. Yet another view states that the underlying values of both works are the same: Machiavelli wants a state conquering others.[74] This is true but avoids the question of whether Machiavelli advocates princely rule or participatory self-government among citizens, so the criticism goes.

A way through the morass is to change the question from "which" to "when," for Machiavelli's advocacy of participatory or princely politics depends on the progress of his state-building project. The views of Sasso and Hulliung, Chabod, and Hörnqvist are each partially correct. Machiavelli needs a prince to organize a popular army, expel the barbarian invaders, and acquire a territorial state. Rather than a founder or a tyrant, the ideal prince could well be described, in the words of Pocock, as an innovator.[75] Machiavelli's prince, though he might prove to be a founder, is ultimately expendable, for Machiavelli recommends that the prince spend all this time on military matters. In chapter 14, he advises that every breath and step the new prince takes should be spent waging war. Only then, after war, after the expulsion of foreign powers, after chapter 26, does the *Discourses* come into its own as a guide to organizing a republic. *The*

[73] Gennaro Sasso, *Machiavelli e gli antiche saggi*, 3 vols. (Milan: Ricciardi, 1987–88), II: 351–490. Mark Hulliung, *Citizen Machiavelli* (Princeton: Princeton University Press, 1983), 220–1.

[74] This view was recently revived in a robust and subtle fashion by Mikael Hörnqvist in *Machiavelli and Empire* (Cambridge: Cambridge University Press, 2004). Hörnqvist argues, "What Machiavelli proposes in *The Prince* and *Discourses* is an imperialist strategy and a constitutional arrangement in which the great and the people, the acquisitive and the security seeking can come together and collaborate for the good of the patria" (74). Essentially, Hörnqvist situates Machiavelli in the tradition of Florentine imperial republicanism. His work definitely overturns Baron's vision of civic humanism and argues, with a detailed analysis of the historical evidence and close readings of several texts, including those of Leonardo Bruni and Giorgio Dati, that civic humanism encompassed territorial expansion and dominion over other republics and peoples. Liberty at home entailed empire abroad. His reading of Machiavelli as a thinker intent on reviving an old tradition is extremely insightful. Nevertheless, I claim that while Machiavelli was aware of that tradition, he was equally aware of new political realities that necessitated a new republican form. The oscillations between a republican empire and an extended republic constitute an unacknowledged and fascinating aspect of his political thought.

[75] Pocock writes that Machiavelli holds up Cesare Borgia as a model because he intended the new prince to be an innovator rather than a founder (Pocock, *The Machiavellian Moment*, 175).

*Prince* and the *Discourses* do not embody alternative political and intellectual stances because they are related to one another; they work together as a political program meant to be applied to north-central Italy.[76]

## THE DEDICATION

"*The Prince* begins as a treatise on forms of states and then begins to look like a mirror for princes."[77] It also reads as a collection of rules to follow in order to accomplish a mission.[78] The Dedicatory Letter is addressed to Lorenzo de Medici, the governor of Florence and, after 1516, Duke of Urbino, grandson of Lorenzo the Magnificent and nephew of the current pope, Leo X.[79] Machiavelli writes that he is giving Lorenzo his most prized possession, his knowledge of the actions of great men gleaned from his "long experience with modern things." What were these modern things that made up Machiavelli's experience and his world? Appointed second chancellor in 1498 and secretary to the Ten of Liberty and Peace later that same year, Machiavelli's firsthand political experience was of Pisa, Siena, and Pistoia (the cities that Florence had acquired as it expanded beyond its walls) and of diplomacy, Florence's relations with foreign powers.[80] Often assigned to diplomatic missions to foreign governments and in 1507 in charge of a new Florentine militia composed of inhabitants of the Florentine territory, Machiavelli inhabited a world of *signores*, moribund city-states, and tentative territorial republics, surrounded and then, in his time, invaded by great emerging states.[81] He could rightly consider himself, as he did in a letter to his friend Francesco Vettori, an expert on the art of the state.[82]

[76] "His diplomatic career had shown him [Machiavelli] some of the facts that led to power in the modern world. Focusing intently on foreign affairs, it was natural for him, though a republican in sympathy, to think in terms of princes." John R. Hale, *Machiavelli and Renaissance Italy* (New York: Macmillan, 1960), 11.

[77] De Grazia, *Machiavelli in Hell*, 369. He asks rhetorically whether this change is due to an underlying structure or if the treatise changed during writing.

[78] Burd ed., introduction.

[79] The Dedicatory Letter is believed to date from early 1515. See Carlo Dionisotti, "Machivelleria ultima," *Rivista storica italiana* 57 (1995): 20–8; Giorgio Inglese, "Introduzione," in Niccolò Machiavelli, *De Principatibus*, ed. G. Inglese (Rome: Istituto Storico Italiano per Medio Evo, 1994), 8–9; Corrado Vivanti, "Introduzione," in Niccolò Machiavelli, *Opere*, ed. C. Vivanti (Turin: Einaudi, 1999), I: 831–2.

[80] See Robert Black, "Machiavelli's Service to the Florentine Republic," in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*. As second chancellor, Machiavelli was responsible for the Florentine republic's correspondence with local officials and territorial governors across the Florentine territorial state in Tuscany. The Ten of Liberty and Peace was the council in charge of military affairs.

[81] As chancellor of the Nine of the Militia, Machiavelli oversaw his pet project.

[82] Viroli has also made note of the fact that Machiavelli considered himself an authority on the art of the state or "conflicts among states over matters of territorial expansion." See Viroli, "Machiavelli and the Republican Idea of Politics," in Skinner, Bock, and Viroli, *Machiavelli*

The Dedicatory Letter and the last chapter of *The Prince* echo one another. Machiavelli writes that he wanted *The Prince* to please Lorenzo, not for the beauty of its style, but for "the variety of the matter and the gravity of the subject."[83] This renunciation of style, of superficial graces, can be viewed as a traditional rhetorical trope or as an explicit announcement of a new kind of clear-eyed, objective writing about politics, and as such this declaration embodies the Janus-faced nature of Machiavelli's writings that has caused so much consternation, disagreement, and fascination.[84] Thus, even specific statements carry the weight of tradition yet seem to be uncanny harbingers of things to come. Gravity, *la gravità*, implies that Machiavelli has something serious to relate; it has the ring of a moral imperative.[85] If the subject is politics, it is therefore a serious topic, but the conventional seriousness of politics is made more grave by contemporary political events, so the gravity of the subject points to the last chapter, the sorrowful, tragic state of Italian lands overrun by barbarian invasions, "more enslaved than the Hebrews, more servile than the Persians, more dispersed than the Athenians, without a head, without order, beaten, despoiled, torn, pillaged, and having endured ruin of every sort."[86] In the last chapter he writes that it appeared Cesare Borgia was ordered for Italy's redemption, but he was repulsed by fortune.

> Although before now there was visible in a certain person a flickering light such that one could judge that he was ordained by God for Italy's redemption, nevertheless, it was seen afterward how, at the very peak of his exertions, he was rejected by fortune, with the result that, remaining as though lifeless, Italy awaits whoever it could be who can heal her wounds, and put an end to the sackings of Lombardy and to the ransoms demanded from Naples and Tuscany and cure her of the sores with which she has been infested for so long.[87]

*and Republicanism*. See also letter to Vettori of April 29, 1513, in *Lettere*, 250–8; and Atkinson and Sices, *Machiavelli and His Friends*, 231–6.

[83] Mansfield ed., 4. Connell translates this as "or that only the variety of the material and the weightiness of the subject should make it welcome" (Connell ed., 40). "O che solamente la varietà della material e la gravità del subbito la faccia grata" (Burd ed., 173).

[84] The many rhetorical studies of *The Prince* in recent years clearly link many statements to rhetorical conventions familiar to contemporaries. Ernst Cassirer promoted the view that this statement means Machiavelli is attempting to analyze politics in a new way. Reading *The Prince* in comparison to examples of the mirror of princes genre does confirm Cassirer's sense that there is something strangely "modern" about Machiavelli's pungent style. Burd claims that the statement is an imitation of Isocrates but adds, "In any case, the value of *The Prince* is quite unaffected by its superficial resemblance to ancient writings; it still remains an *original* work, and is in no sense a mere derivation from Xenophon, Aristotle, or anyone else" (Burd ed., 173, note 4).

[85] I use Mansfield's translation of this statement rather than Connell's.

[86] Connell ed., 120. "E che la fusse più schiava che gli Ebrei, più serve che I Persi, più dispersa che gli Ateniesi, senza capo, senz' ordine, battuta, spogliata, lacera, corsa, ed avesse sopportato di ogni sorta rovine" (Burd ed., 367).

[87] "E benchè infino a qui si sia mostro qualche spiraculo in qualcuno, da poter giudicare che fusse ordinate da Dio per sua redenzione, nientedimanco si è visto come da poi nel più alto corso delle azioni sue e stato della fortune reprobate, in modo che, rimasa come senza vita, aspetta qual possa

It appears Italy's redemption is the grave subject of *The Prince*. It is to encourage the Medici to finish Borgia's project and to show them how to do it that Machiavelli has written *The Prince*.[88] The many studies of the rhetorical aspect of Machiavelli's writings have provided more learned descriptions of the persuasive aspect of Machiavelli's prose. Suffice it to say that *The Prince* has characteristics of both deliberative and epideictic genres. The substance of the plan Machiavelli's rhetorical moves encourage has been less studied.[89]

In the Dedicatory Letter, Machiavelli states his hope that Lorenzo "should arrive at that greatness that fortune and your other qualities promise you."[90] The concluding chapter emphasizes not Lorenzo, but his family, the House of Medici: "Nor is there to be seen at present anyone in whom she could hope more than your illustrious house, which, with its fortune and virtue, favored by God and by the Church of which it is now prince, can make itself leader of this redemption."[91] *The Prince* was written for a variety of reasons, personal and philosophical, but it was dedicated to and directed toward the House of Medici, any Medici, in the hope one might lead the way to liberation. The last chapter reads:

Thus it will not be very difficult, if you will keep in mind the actions and lives of the men named above. Although such men are rare and marvelous, nonetheless they were men, and each of them had a lesser opportunity than the present one, for their undertakings were not more just than this, nor easier, nor was God more a friend to them than you.[92]

esser quello chi sani le sue ferite, e ponga fine alle direpzioni e ai sacchi di Lombardia, alle espilazioni e taglie del Reame e di Toscana, e la guarisca di quelle sue piaghe, già per lungo tempo infistolite Vedesi come la prega Dio che le mandi qualcuno che la redima da queste crudeltà ed insolenzie barbare" (Burd ed., 367). The majority of authorities, including Connell, Burd, and Anglo, agree that *qualcuno* must be Cesare Borgia. As Burd observes, "To mention here any particular person would have been a mistake from a literary point of view" (Burd ed., 367).

[88] Significantly, Machiavelli quotes the same maxim coined by Livy in his *Discourses* Book III, chapter 12, and *Florentine Histories*, Book V, chapter 8: "For war is just to whom it is necessary, and arms are pious when there is no hope but in arms." Livy's speaker is a Samnite general responding to religious objections to his campaign against the Romans.

[89] The most useful studies of Machiavelli as a rhetorician include Maurizio Viroli's *Machiavelli* (Oxford: Oxford University Press, 1998); J.N. Stephens, "Ciceronian Rhetoric and the Immorality of Machiavelli's Prince," *Renaissance Studies* 2 (1988): 258–67, which points out the influence of Cicero; John F. Trinkler, "Praise and Advice: Rhetorical Approaches in More's *Utopia* and Machiavelli's *The Prince*," *Sixteenth Century Journal* 19 (1988): 187–207; Albert Ascoli, "Machiavelli's Gift of Counsel" in *Machiavelli and the Discourse of Literature*, eds. Albert Ascoli and Victoria Kahn (Ithaca: Cornell University Press, 1993); and of course, Victoria Kahn, *Machiavellian Rhetoric* (Princeton, NJ: Princeton University Press, 1994). The consensus is that Machiavelli used Aristotle's *Politics*, Xenophon's *Hiero*, and Cicero's *de Officiis* as models for composition.

[90] Connell ed., 40. "Vi conoscerà dentro un estremo mio desiderio che ella pervenga a qualla grandezza che la fortuna e le alter sue qualità le promettono" (Burd ed., 174).

[91] "Nè ci si vede al presente in quale la possa più sperare che nella illustre casa vostra, la quale con la sui virtù e fortune, favorite da Dio e dalla Chiesa, della quale ora è principe, posso farsi capo di questa redenzione" (Burd ed., 368).

[92] Connell ed., 120. "Il che non fia molto difficile, se vi recherete innanzi le azioni e vite de'sopranominati. E benchè quellli uomini siano rare e maravigloisi, nondimanco furono uomini, ed ebbe

The Medici are poised to do great things, and it is up to them to take up their burden:

> I do not want to fail to give you news of the way Lorenzo the Magnificent is acting, which until now has been of such a sort that he has filled the entire city with high hopes; and it seems that everyone is beginning to recognize in him the beloved memory of his grandfather because His Magnificence is diligent in his work, generous and agreeable during an audience, deliberate and serious in his replies.[93]

*The Prince* was addressed to any member of the Medici family who might have suited Machiavelli's hopes for political renewal. The turbulent politics and small size of many Italian Renaissance cities and principalities inclined observers to exaggerate individual agency, a faith, encouraged by broader cultural currents, which had been only confirmed by the sudden rise and conquests of Cesare Borgia. Someone needed to lead the way to a refounding, a regeneration of an invaded and corrupt people. "This barbarian domination stinks to everyone. Let your illustrious house take up this enterprise with that spirit and that hope with which just undertakings are taken up."[94] Tellingly, Machiavelli did not make any major alterations to *The Prince* when he switched the dedication to Lorenzo de Medici rather than Giuliano after Giuliano de Medici died on March 17, 1516. Machiavelli was not a stranger to the Medici. Though he had served the Florentine republic and was particularly close to Piero Soderini, the *galonfaloniere* or leader of the republic, which meant he clearly was not a partisan of the Medici, as a young man he was friendly with Giuliano di Lorenzo de Medici.[95] After the collapse of the Soderini regime and the reinstallation of the Medici in 1512, Machiavelli remained hopeful. Not long thereafter, however, in February 1513, he was implicated (wrongly, he maintained) in the Boscoli conspiracy; he was sent to prison and tortured. Released from prison in a general amnesty granted after Giovanni de Medici was elected to the papacy as Pope Leo X, Machiavelli attributed his release to the intercessions of Paolo Vettori and Giuliano de Medici.[96] In 1982, the confession of one of the conspirators in the Boscoli plot was found, and it shed additional light on Machiavelli's views of the

ciascuno di loro minore occasione che la presente, perchè l'impresa loro non fu più a loro amico che a voi" (Burd ed., 368).

[93] Letter of February or March 1514 from Machiavelli to Francesco Vettori. Atkinson and Sices, *Machiavelli and His Friends*, 283.

[94] "Adognuno puzza questo barbaro dominio" (Burd ed., 371). Read chapter 24, "Why the Princes of Italy Have Lost Their States," followed by chapter 26, then *Discourses* Book I, chapter 55, "How Easily Things May Be Conducted in Those Cities in Which the Multitude Is Not Corrupt; and That Where There Is Equality, a Principality Cannot Be Made, and Where There Is Not, a Republic Cannot Be Made," and Book III, chapter 41, "That the Fatherland Ought to Be Defended, Whether with Ignominy or with Glory; and It Is Well Defended in Any Mode Whatever." *Discourses*, 109–13, 300–1.

[95] Mario Martelli, "Preistoria (medicea) di Machiavelli," *Studi di Filologia Italiana* 29 (1971): 377–405.

[96] See John Najemy, "Machiavelli and the Medici: The Lessons of Florentine History," *Renaissance Quarterly* 35, no. 4 (1982): 552. See also Roberto Ridolfi, *The Life and Times of Niccolò Machiavelli*, trans. Cecil Grayson (London: Routledge and Kegan Paul, 1963) chapters XII and

new regime. Machiavelli reputedly stated that the new regime needed a strong leader along the lines of Lorenzo the Magnificent.[97] In reference to the Folchi confession, John Najemy has observed, "The mood it bespeaks is also consistent with Machiavelli's appeal to the Medici in the *Prince* to redeem Italy from its suffering and humiliations."[98] Interestingly, just as Florence was dependent on the Medici, Machiavelli believed he was personally dependent on the Medici for his release from prison.[99] In another vein, many readers have noticed a similarity between the role Machiavelli assumes as princely advisor and the role he charts for his princely reader as an innovator and dissimulator.[100] It is not too far a stretch to think that Machiavelli was attempting to act through his reader.

The intended and implied audience of *The Prince* is further clouded by the use of two different forms of the second person pronoun – *voi* and *tu*. Both *voi* and *tu* are translated as "you" in English. *Voi*, which appears the most in *The Prince*, was used as a singular in Machiavelli's era, occasionally as a plural as it is now used in modern Italian. Machiavelli uses *tu*, the familiar, informal second person pronoun most often in hypothetical situations. Leo Strauss, among others, gave in to the temptation to read *voi* as a plural because it implies Machiavelli intentionally addressed a broad audience of readers. It is more likely that *voi* addresses the reader to whom the work was dedicated.[101] As context begins to close in and exclude so many of the most provocative interpretations, there is an additional complicating factor: Machiavelli moves between *voi* and *tu* within the body of the work and often within chapters. The challenges of assimilating disjointed territories are described in chapter 3, "On Mixed Principalities," and the remedies Machiavelli prescribes are directed to *tu*, the impersonal "you." Then abruptly Machiavelli switches to the formal, singular form of address, *voi*, when discussing the present situation in Italy and the errors made by the French King Louis XII: "And you will see how he has done the contrary of those things that should be done to hold a state in a foreign province." He then quickly returns to the *tu* form as he continues his discussion: "I reply with the reasons stated above, that one should never allow a disorder to happen in order to avoid a war, because it is not avoided but is deferred to your

XIII, and Machiavelli's March 18, 1513, letter to Francesco Vettori in Atkinson and Sices, *Machiavelli and His Friends*, 234.

97 J.N. Stephens and H.C. Butters, "New Light on Machiavelli," *English Historical Review* 97 (1982): 58–9, 67.

98 Najemy, "Machiavelli and the Medici," 553, see note 5.

99 Ibid. See also Burd ed., 170: "The *family* of the Medici was the only one in Italy to which Machiavelli could look."

100 Strauss, *Thoughts on Machiavelli*, 70–84; Ascoli, "Machiavelli's Gift of Counsel," 238; Mansfield ed., 3–5, 60–61.

101 In his scrupulous translation of *The Prince*, Connell reaches the provisional conclusion that "Machiavelli's *voi* is consistently singular, and that it refers only to Machiavelli's dedicatee." Connell ed., xi, See also, Strauss, *Thoughts on Machiavelli*, 77, and Cecil Clough, *Machiavelli Researches* (Naples: Istituto Universitario Orientale, 1976), 51–2.

disadvantage."[102] In chapter 16, he uses *tu* as he does in all the examples of perfidy, parsimony, and cruelty that make up the most infamous and celebrated parts of the work: "I answer that either you already are a prince, or you are on the way to acquiring a principality."[103]

Quite often Machiavelli refers to a generic, third person prince, "the prince," as in chapter 9 when he writes, "For a prince of this kind cannot found himself on what he sees in peaceful times, when the citizens have need of his state,"[104] or in the infamous chapter 15, "Hence it is necessary for a prince, if he wishes to maintain himself, to learn to be able to be not good, and to use this faculty and not to use it according to necessity."[105] It is through the series of examples that Machiavelli's pedagogy proceeds, the specific example illustrating the general point, sharpening and clarifying it in application. Thus, the lessons of the memorandum are couched in the third person "prince" with whom the reader may or may not identify or in the familiar *tu*, the impersonal "you" describing the situations in which a hypothetical prince, the *voi* Medici reader *and* any reader might find himself. Hence, reading *voi* accurately as the singular dedicatee does not dismiss the question of audience as Antonio Gramsci posed it. Gramsci asked the old query in a new way: Whom did Machiavelli intend to educate? For those who are born princes are raised to be realists; they already know what Machiavelli seeks to teach. Gramsci had a point. The Medici knew how to dissemble.[106] But did they know how to conquer, acquire, and consolidate like Borgia? Not yet, and if they did know the teachings of chapters 15–18, there were other potential leaders who just might need to know.

On the employment front, Machiavelli admitted he would have been happy to be employed by any Medici, in Florence or Rome.[107] He pursued employment with his former friend and putative rescuer, Giuliano, which prompted a letter from the papal secretary Pietro Ardinghelli, written at the behest of Cardinal Giulio de Medici (later to be Pope Clement VII) to Giuliano dissuading him from hiring Machiavelli, who then sought out Lorenzo de Medici, the young ruler of Florence.[108] Despite Machiavelli's self-proclaimed desire for work and his energetic efforts to find employment in his field, one must be careful not to reduce

[102] Connell ed., 50. "Che no si debbe mai lasciar seguire un disordine per fuggire una guerra, perchè ella non si fugge, ma si differisce a tuo disavvantaggio." Burd ed., 198.

[103] Connell ed., 89. "O tu siei principe fatto, o tu siei in via di acquistarlo." Burd ed., 288.

[104] Connell ed., p. 71. "Perchè simil principe non può fondarsi sopra quello che vede ne' tempi quieti, quando I cittadini hanno bisogno dello Stato." Burd ed., 243.

[105] Connell ed., 87. "Onde è necessario ad un principe, volendosi mantenere, imparare e potere essere non buono, ed usarlo e non usarlo secondo la necessità." Burd ed., 284.

[106] Gramsci, *The Prison Notebooks*, Notebook 4, note 8, 151.

[107] Letter to Vettori, December 10, 1513. "Besides, there is my desire that *these Medici princes* should begin to engage my services, even if they should start out by having me roll a stone." Atkinson and Sices, *Machiavelli and His Friends*, 265.

[108] Tommasini, *Vita e scritti*, 2:2, 1,064–5. Cardinal Giulo de' Medici's letter to Pietro Ardinghelli appears in C. Guasti, *I manoscritti Torrigiani donate al R. Archivio di Stato de Firenze: descrizione e saggio* (Florence: Cellini, 1878), 67.

*The Prince* to a résumé.[109] Machiavelli may have been regarded as an eccentric by contemporaries, and academics may have read too much and made too much of his work. But his letters, his earlier Chancery works, and the preface to the second book of the *Discourses* gather about Machiavelli the aura of man who wanted to shape political events, to act in the theater of politics, albeit as an advisor or educator, the only position allowed him by birth.[110] It would be most unusual for a work of such enduring fame and fascination to have been motivated entirely by immediate self-interest.

> It is enough to notice in this place that *The Prince* was to be dedicated to a member of the Medici family, because that family seemed, at the given moment, to be least unlikely to realize some of those aspirations and ideals which were part and parcel of Machiavelli's life; and that the same family was also in a position to give Machiavelli employment, was a happy coincidence, of which due use was to be made.[111]

Machiavelli's early writings, which have been studied carefully, contain callow versions of some of the ideas that debut, full grown and striking, in *The Prince*.[112] The concern over Florence's poor consolidation of its territory, continued interest in military preparedness and international affairs of state, the political organization of Germany and France, and the admiration of the virtuosic audacity exemplified by Cesare Borgia, the apprehension that political action always involved a choice between extreme alternatives – was being honed.[113] Once in a while the opportunity presents itself to make an audition, at the peak of one's powers, when ideas are robust, and when the excitement of a new discovery (in Machiavelli's case the discovery of a way of reasoning about

[109] Skinner, *Machiavelli* seems to do just this.

[110] Niccolò Capponi's biography of Machiavelli uses contemporary accounts to show that Machiavelli was regarded as a crank or odd duck by his fellow Florentines. Niccolò Capponi, *An Unlikely Prince: The Life and Times of Machiavelli* (Cambridge, MA: Da Capo Press, 2010). Anglo's most recent work claims that Machiavelli's present-day reputation is overblown and the early reception of his works was less than admiring. Sydney Anglo, *Machiavelli – The First Century: Studies in Enthusiasm, Hostility, and Irrelevance* (Oxford: Oxford University Press, 2005), 115–42.

[111] Burd ed., introduction, 22.

[112] On Machiavelli's early Chancery writings, see introduction by Sergio Bertelli to Niccolò Machiavelli, *Arte della guerra e scritti politici minori*, ed. S. Bertelli (Milan: Feltrinelli, 1961); J. J. Marchand, *Niccolò Machiavelli I primi scritti politici (1499–1512): Nascita di un pensiero e di uno stile* (Padua: Antenore, 1975); Gennaro Sasso, *Niccolò Machiavelli: Storia del suo pensiero politico* (Bologna: Il Mulino, 1980); and J. J. Marchand, "Ambiguitè du discourse du pouvoir dans le permiers ècrits de Machiavel," in *Le Pouvoir et la plume. Incitation, contrôle et repression dans l'Italie du XVI siécle* (Paris: Gallimard, 1982), 51–62. See also Sasso, *Niccolò Machiavelli, Il pensiero poltico*, I, chapter 2, "Grandezza e caduta di un 'principe novo' Cesare Borgia fra Imola and Roma."

[113] Chancery-era writings include *Discorso dell'ordinare lo stato di Firenze alle armi* (1506); *Del modo di trattare I popoli della Valdichiana ribellati* in *Arte della Guerra*, 72–5; *Ritratto di cose di Francia* (ca. 1510–11); *Rapporto delle cose della Magna* (1508); *Ritratto delle cose della Magna* (1512); Legations to Borgia; and *Decennale primo* (1508), the "Ghiribizzi" to Giovanbattista Soderini.

politics that gave him access to the real operation of political power) is so intense the words spark and crackle.

David Wootton, who, along with Cecil Clough, has done some of the most detailed historical research on the original purpose of *The Prince*, writes that it was conceived and intended for a northern Italian state for Giuliano de Medici.[114] Arguably, this may state the case rather too narrowly and have the unintended effect of discounting the aspect of *The Prince* that is imbued with contemporary political trauma.[115] Doubtless inspired by Giuliano because he was a Medici about to acquire a new territorial state and therefore might provide employment (a winning combination), *The Prince* is a memorandum on expansion and acquisition "suitable for a new prince."[116] With respect to Giuliano and Lorenzo, "Leo X had great designs for both of them."[117] The extent to which Machiavelli altered the text in 1515 after deciding to dedicate it to Lorenzo remains a topic of debate.[118]

It must be remembered that in 1513, Pope Leo was considering a territorial policy.[119] There was talk of creating larger political territories in northern Italy

[114] "It is this papal objective of acquiring a state for Giuliano that provides the context for *The Prince*." David Wootton, Introduction to *The Prince* (Indianapolis: Hackett Pub., 1995), xix. I believe this thesis, which the Burd edition of 1891 implies was common in the nineteenth century, was revived in the twentieth century by Hans Baron in his essay "The *Principe* and the Puzzle of the Date of Chapter 26," *Journal of Medieval and Renaissance Studies* 21 (1991): 83–102.

[115] The letter to Vettori of December 10, 1513, states that the inspiration for *The Prince* was his dialogue with the ancients. As stated previously, Machiavelli wrote *The Prince* from a variety of motives: personal, political, and philosophical – that is, to win a job, free Italy from the barbarians, articulate his philosophy of state. In addition, early versions of themes of *The Prince* are easily found scattered about his early writings, for example the Ghiribizzi letter of January 1513 to Piero Soderini, which reads as a precursor to *The Prince* as it compresses some of the work's key images and ideas: the multitude judges results not means; opposed actions and manners of proceeding bring about the same result, and "To test fortune, who is the friend of young men, and to change according to what you find, but it is not possible to have fortresses and not to have them, to be cruel and compassionate." He then ruminates on the relationship between an individual character and the character of the times. See also the letter to Vettori of April 1513 on the king of Spain, and the letter to Vettori of December 10, 1514, in which he writes that a ruler should want to be feared but not hated.

[116] In contrast to Wootton, see J. N. Stephens, who writes that *The Prince* was addressed to Lorenzo *or* Giuliano "with a similar purpose in mind to give them encouragement to lead the crusade to drive the barbarians from Italy." *The Fall of the Florentine Republic*, 32.

[117] Burd ed., 170.

[118] Contrast Cecil Clough, *Machiavelli Researches*, 40–67, with Mario Martelli, "La Struttura deformata: sulla diacronia del cap. III del *Principe*," *Studi di filologia italiana* 39 (1981): 77–120, and Martelli, "La logica provvidenzialistica e il capitolo XXVI del Principe," *Interpres* 4 (1982): 262–384; Humfrey Butters, *Governors and Government in Early Sixteenth-Century Florence 1502–1519* (Oxford: The Clarendon Press, 1985), 223–5; Gennaro Sasso, *Niccolò Machiavelli: Storia del suo pensiero politico* (Bologna: Il Mulino, 1980), 331; and John Najemy, *Between Friends*, 177–84.

[119] Guarini, "Machiavelli and the Crisis of the Italian Republics," in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*, 31. See also F. Nitti, *Leo X e la Sua Politica* (Florence:

in the wake of invasions. Machiavelli was aware that Leo was thinking in terms of territory, not the city. Additional evidence relevant to *The Prince* has rested for centuries inside the Vatican Secret Archives, among the forgotten *Registri*, the papal registers or official documents, of Leo X. The registers and other documents in the archives related to the pontificate of Leo X have not been examined with a view to their relationship to Machiavelli since the nineteenth century, the heyday of diplomatic history, during the flutter of excitement generated by the historic opening of the archives to scholars.[120] For more than one hundred years, few studying Machiavelli took the road to Rome, so deep was Machiavelli's association with Florence. As a result, we have an incomplete understanding of how policy made in Rome may have affected Machiavelli's views of the utility of his work and the nature of the political problems he addressed in his writings.[121]

The dimensions of Leo X's "Liberty of Italy" policy have nearly faded out of the historical memory. As Machiavelli knew, Leo X was dedicated to a geo-political project to found a territorial state.[122] Leo X had designs on Ferrara, Modena, Urbino, and Mantua – Italian states that were all variables in the game of territorial state building. The previous pope, Julius II, who appears in *The Prince*, had embarked on an aggressive campaign of territorial consolidation, waging war against Ferrara and Mantua, and conquering Urbino, Bologna, and Perugia for the papacy – as Machiavelli duly notes in *The Prince*. Elected pope in 1513, Leo's early pontificate, from 1513 to 1516, is known as the expansionist period, which is consonant with an interpretation of *The Prince* as a memorandum on conquest and acquisition. From a base in the papal territories, which included the Roman hinterland and the Romagna, Leo planned to expand into Piacenza, Modena, and Reggio Emilia, while consolidating Medici power in Florence.[123] Ferrara, the most feudal and courtly of Italian states, governed by the pro-French d'Este, was a tantalizing prize Pope Leo wished to acquire under the sovereignty of the Church.[124] The acquisition of Ferrara would have completed Leo's geo-political goal to construct a territorial state large and militarily

G. Barbera, 1892), 35, for Leo's territorial plans and their connection to ideas of Italian freedom circulating in those years.

[120] For more on the excitement generated by the opening of the Vatican Secret Archives, see C. H. Haskins, "The Vatican Archives," *The American Historical Review* 2 (1896–7): 40–58.

[121] I believe there is ample reason for Machiavelli scholars to examine or reexamine the materials related to Leo X's pontificate in the Vatican Secret Archives.

[122] Maurizio Gattoni, *Leone X e la geo-politica dello Stato Pontifici (1513–1521)* (Citta Del Vaticano: Archivio Segreto Vaticano, 2002), Collectanea Archivi Vaticani, 47.

[123] ASF, *Manoscritti Torrigiani*, I bis, ff. 13r–14r, P. Ardinghelli a Giuliano de Medici, February 23, 1515.

[124] ASF, *Dieci di Balia. Legazioni e Commissarie, Istruzione e lettere di oratori*, 39, ff. 113r–114r, a F. Guicciardini (December 10, 1512).

strong enough to withstand the French.[125] Territory from Ferrara to Rome would have been under the control of one family.[126]

In a papal bull of 1515, Leo nominated Lorenzo de Medici, our erstwhile dedicatee, Captain General of the Papal Troops.[127] The next year, Leo forcibly removed della Rovere, the nephew of Julius II, from Urbino and, in a papal bull of September 1516, declared Lorenzo de Medici and his descendants "successors in perpetuity" to the dukedom of Urbino and custodians of "Civitas Pisanni," the city of Pisa and its territory as well as the territory of Senigallia.[128] An ambition at once territorial and dynastic is evinced in the repetition of the key phrase, "successor in perpetuity." The acts these documents record were pieces of a concerted policy to create a large territorial state in central Italy. In 1517, the year Machiavelli worked intensely on the *Discourses*, the pontificate of Leo reached the summit of political power by means of the creation of a pontifical government in central Italy, which comprised Florence, Siena, Perugia, Castello, and Urbino – cities and territories of a future state or "mixed principality." Florentine and Roman (papal) foreign policy were coextensive (see Figure 1).[129]

So great was the hope that a prince might conquer Tuscany, that in 1516 a rumor spread through the city that Leo X had made Lorenzo Governor of Tuscany, including Siena and Lucca as well as Florence.[130] Popular opinion had vested Lorenzo with great promise.[131] Later, Machiavelli would write that as Leo in 1513 "wished to return it [Italy] to its ancient freedom, it was necessary to free it from servitude to both the one and the other" ("the one and the other" referencing France and Spain). In retrospect, Leo's strategy was poor,

[125] Gattoni, *Leone X*, 44.

[126] If Leo had been willing to combine papal territories with Medici territories/Florence and its Tuscan empire, the territorial state would have included Florence, Siena, and Pisa, which with their lands composed Tuscany, the *Stato d'Urbino*, which included the Marches of Ancona (and an outlet to the sea), the Emilia Romagna, and Pesaro and Senigallia, in addition to Perugia and the lands of Umbria, and Bologna. Machiavelli's Tuscan republic could have been a regional state far larger and stronger than the Grand Duchy of Tuscany to come, which itself was a sturdy and enduring polity.

[127] ASV, A.A., Arm. X, 429.

[128] ASV, A.A., Arm. E, 69, "bolla di Leone X con cui Francesco Maria Della Rovere viene privato del Ducato di Urbino e viene sustitutio da Lorenzo de medici e suoi successori in perpetuo, settembre 1516."

[129] Whether this meant that Florentine foreign policy was subordinated to that of Rome or vice versa is open to debate. I hold the latter to be the case. Money was raised in Florence for the war in Urbino; the justification for the war was that it was necessary "so that the city's empire might be increased." ASF, Cento Reg. 4, fol. 11, 14, ink. Cited in Stephens, *The Fall of the Florentine Republic*, 158. See also Burd ed., 170.

[130] P. Parenti, *Historia fiorentina* B.N.F. II, IV, 171 fol. 127. P. Parenti, *Storia fiorentina*, 2 vols., ed. A. Matucci (Florence: Olschki, 1994).

[131] "La grandezza e felicità del presente pontificato aveva tanta forze in quel tempo nell opinione degli uomini, che non era così grande e fuor di misura, che non si potesse sperare della esaltazione de Guiliano capitano de santa Chiesa, e di Lorenzo suo nipote." J. Nardi, *Istorie dell città di Firenze*, 2 vols., ed. A. Gelli (Florence: Le Monnier, 1988).




FIGURE 1. Italy about 1494. Insets: The Milanese under the Visconti, 1339–1402; the Republic of Florence, 1300–1494.
*Source*: *The Historical Atlas* by William R. Shepherd, 1926, Courtesy of the University of Texas Libraries, The University of Texas at Austin.

Machiavelli surmised.[132] Machiavelli was aware of plans afoot and sought to arouse enthusiasm among the Medici for a mission of Italian liberation.

Influential political figures and thinkers such as Francesco Guicciardini were aware that their political world had irrevocably changed, and were struggling to conceive short- and long-term solutions for political collapse and foreign invasion.[133] Some thoughtful Italians, such as Leo X, had begun thinking in terms of territory, realizing the only way to prevent recurring invasions was to create larger states. How to enlarge the state was the political problem that no one grasped as well as Machiavelli – a problem that he tried to solve intellectually in order for someone to do so politically. *The Prince*, which reads as a collection of rules to follow to accomplish a mission, contains his solution to this, the first of his problems: how to acquire and consolidate a territorial state.[134]

## ENTER THE WORK

It is possible to discern a basic structure to *The Prince*. The first chapters – roughly chapters 1–10 – cover various types of states and how to acquire them. Chapters 11–14 address military matters, chapter 15–18 discuss princely conduct, chapters 19–23 contain more advice and maxims, and the work culminates in the three last chapters on the humiliation of the Italian states and redemption through the ministrations of the Medici and fortune, which form a unit. I plan to focus on chapters 3, 5, 7, 9, 14, 19, and 20 in order to draw attention to the emphasis on territorial acquisition in *The Prince*, the significance of Cesare Borgia as both founder and an architect of territorial consolidation, and the teachings on founding a composite state of the people.

The first five chapters of *The Prince* discuss ways of acquiring and holding onto various political units. Chapter 1, "How Many Kinds of Principalities There Are, and by What Means They Are Acquired," begins with breathless urgency: "All states, all dominions that have had and do have command over men have been and are either republics or principalities."[135] Significantly,

[132] *Discourses* Book II, chapter 22.

[133] For more on Florentine thinkers during the crisis years of the early sixteenth century, see Felix Gilbert, *Machiavelli and Guicciardini: Politics and History in Sixteenth Century Florence* (Princeton: Princeton University Press, 1965).

[134] Assuming, of course, that chapters, 3, 5, 14, 20, and 26 are among the most important in the work.

[135] Connell ed., 41. "Tutti gli Stati, tutti I domini che hanno avuto ed hanno imperio sopra gli uomini sono stati e sono o repubbliche o principati." Burd ed., 175–6. Mansfield translates *imperio sopra* as "hold empire over." Burd astutely notes that the antithesis between republic and monarchy "runs through the whole of Machiavelli's works" and reminds readers that this same antithesis runs through Tacitus' *Annals*. Burd goes on to note that the discussion of regime types in the *Discourses* Book I, chapter 2, liberally cribbed from Polybius, presents the possibility of a mixed form of government – the Roman constitution – *una repubblica perfetta*. Burd sensibly concludes that the two chapters do not contradict one another as a general categorization of forms of government, as either republics or monarchies can be further divided into

Machiavelli begins with states and dominions, not cities as he would in the *Discourses*; hence there is a conception of political territory extending into the countryside. From the very beginning and throughout *The Prince*, there is the vision of the territorial state.[136] In addition, the main theme of acquisition, of adding onto a preexisting territory, is sounded in the chapter's title. Immediately, Machiavelli attempts to define what he means by states and dominions because these were not common civic republican terms. Renaissance Italians, especially Florentines, thought and spoke about politics in terms of the city and the opposition between freedom and tyranny.[137] City and state exemplify the struggle between city-state and territorial state, which vexed Machiavelli's mind. When he uses *citta* rather than *civitas*, *arte del stato* rather than *vivere politico*, he is reworking the traditional vocabulary of civic republicanism to make it useful in a new context.[138] A state is a territorial dominion that has command over men, and it is the "over men" that brings another significant element to the fore, the significance of people as well as territorial acquisition. An expanding territorial domain, especially if it is a republic, embraces not merely people, but more politically active citizens.[139] A theme has sounded, and the chorus of the people will come in and out of the wings during a reading of *The Prince*. The people are ready to bear arms for the prince in chapter 11. In chapter 20 the reader is told that "the best fortress there is not to be hated by the people."[140]

narrower variations of both broad forms. One of the aims of this work is to explore how Machiavelli attempted to combine elements of monarchical and republican governments or redesign republican government to encompass useful attributes of princely government. Burd concludes with yet another sagacious observation: "And it is worthwhile to notice in conclusion that Machiavelli had never treated of the state *at rest*, self-sufficient and free from external dangers; he is much more exclusively concerned with the foundation of a state, and the establishment of a new power in the face of obstacles: the details of constitutional forms can only be discussed at a later stage." Burd ed., 176–7.

[136] "The establishment of a unitarian state in the Po valley recurs in Machiavelli as an intellectual concept." Chabod, *Machiavelli and the Renaissance*, 62.

[137] For more on the conceptual opposition between freedom and tyranny made by Florentines during the wars with Giangaleazzo Visconti, see Hans Baron, *The Crisis of the Early Italian Renaissance* (Princeton: Princeton University Press, 1966). Baron's vision of civic humanism has come under increasing scrutiny. Whatever one thinks of his use of civic humanism as an accurate descriptive term, Baron's claim that the opposition between freedom and tyranny was fundamental to Florentine political thought and rhetoric remains helpful.

[138] In his study of Machiavelli's political thought, Quentin Skinner chooses to stress the extent to which Machiavelli loyally used the inherited terms, arguments, and rhetoric of humanism, and goes no further. Machiavelli was working within a traditional vocabulary, but it was the tradition of the republican city-state that could not describe the new phenomena he witnessed, and his creativity in attempting to describe what his tradition could not constitutes his enduring fascination and mystery.

[139] De Grazia insightfully noticed that Machiavelli's definition of "state" implies people are the state's reason for being. Machiavelli is presenting a republican doctrine based on an expanded body of people politically active and participating in the military. De Grazia, *Machiavelli in Hell*, 291.

[140] "For this reason the best fortress there is, is not to be hated by the people. For even if you have fortresses, if the people hold you in hatred, the fortresses do not save you, since outsiders who will help them are never lacking for the people once they have taken up arms." Connell ed., 108.

The people then take a leading role in the *Discourses*, which imagines an enlarged republic extending over an unprecedented number of people seeking to participate in political life.

Maurizio Viroli has noticed the absence of any "politico" rooted word in *The Prince* and concludes that in consciously refusing to use the vocabulary of politics in the context of states, princes, and territory, Machiavelli preserved the conventional meaning of politics as the art of the city.[141] I interpret this conspicuous absence as revealing that Machiavelli was conscious he was standing at the juncture of two political worlds. There is no "politico" rooted word in *The Prince* precisely because Machiavelli's political thought in the *Discourses* is a struggle to decide whether politics could apply to matters related to the territorial state and whether an extended territory could support political life as he understood it, as a matter of dialogue and popular participation in the shaping of policy.[142]

Throughout *The Prince*, Machiavelli stretches his terms to describe the new phenomena of territorial states. *Acquistare* is a recurring expression in *The Prince*, and the related terms *maintenere*, *ampliare*, and *faire augumento* appear repeatedly. Much of the book deals with how to administer to newly acquired principalities. Chapter 5 is titled "How Cities or Principalities Which Lived by Their Own Laws Before They Were Occupied Should Be Administered," and chapter 6 is titled "Of New Principalities that Are Acquired Through One's Own Arms and Virtue." Chapter 7 deals with principalities acquired by others' arms. Chapters 10–14 concern war and diplomacy. An expansionist agenda is explicit in *The Prince*.

*Lo stato* is the most famous instance of Machiavelli stretching an old term to cover a new phenomenon. The word *stato* has a dual meaning in *The Prince*, encompassing both state, a structure of power over a bounded territory, and status, the hierarchical rank of that entity in relation to others like it. Machiavelli articulates the notion of the state as a territorial organization of power and an entity unto itself.[143] He is stretching the older term to articulate a new

[141] Viroli reaches a more nuanced sense of Machiavelli's radical traditionalism than does Skinner, noticing that when Machiavelli wrote of states, princes, and territory, "he was not writing about politics as he understood the term." However, as mentioned, Viroli takes this absence to mean Machiavelli was preserving the traditional notion of politics. I think this absence reveals the true nature of Machiavelli's political thought, to renovate traditional notions in order to deal with revolutionary political change. Maurizio Viroli, "Machiavelli and the republican idea of politics," in *Machiavelli and Republicanism*, eds. Giesla Bock, Quentin Skinner, and Maurizio Viroli (Cambridge: Cambridge University Press, 1990) 143–73.

[142] Politics, as Machiavelli envisioned it through a Roman lens, bore little resemblance to civic republicanism, which was premised on an elite-ruled consensus, a passive populace, and an outmoded imperial practice. For more on this issue, see Chapter 5 of this work.

[143] The meaning of the word *stato* has been the subject of extensive study. In the introduction to his translation of *The Prince*, Harvey Mansfield follows historian J. M. Hexter and defines *stato* as status. Hexter held that *The Prince* does not contain the conception of the state as an abstract body that transcends the individuals who compose or rule it. ("'Il Principe' and 'lo stato,'"

meaning.[144] *The Prince* is full of self-conscious adjustments to describe the rise of the state that, it must be stressed, was still in its primitive form and not entirely detached from the personality of the ruler. *The Prince* is fundamentally about this process of detachment, which occurs on its pages.[145] *Lo stato* does not suddenly shift to stand for the abstract notion of the state as an independent entity; it expands progressively throughout the work, broadening with each succeeding chapter.[146] Over the course of chapters 2, 3, 4, 9, and 15 through 19, Machiavelli's use of the word "state" at times appears to encompass the phenomenon of a political organization over a bounded territory.[147]

*Studies in the Renaissance* 4 (1957): 113–38). More convincing is Fredi Chiapelli, who points out that in *The Prince* the word *stato* denotes the political organization of a people over a territory independent from the particular form of their government or regime – the modern abstract notion of the state. *Studi sul Linguaggio del Machiavelli* (Florence: Il Mulino, 1952), 59–68. However, I am more tentative than Chiapelli. I believe the word *stato* has a dual meaning, shifting from rank to abstract political entity on the pages of *The Prince*. It should be noted that political, in the sense it is used here, does not mean regime or constitution but embraces all of them.

[144] Machiavelli is able to shift/expand *stato* from rank to state because the rise of competitive interstate relations, which began in his epoch, embraces territorial states *and* their rank. If state is status, meaning one's rank or position relative to that of another, then it is connected to the state as a supra-individual political actor over a bounded territory. At the same time that the modern notion of the abstract state was forming (personal into institutional), modern international relations conducted among competitive states began to take shape. International relations can be described as a particular sphere of political activity in which the form of government is irrelevant, except to identify who holds political power. In the early sixteenth century, relations among states assume heightened importance, and relations among states conducted according to *reason of state* involve the status of the state – its position and rank relative to other states seeking to survive and expand. It is the increased significance of international relations that is responsible for the transformation of state/status into state/political organizations competing with one another for status. See letter to Vettori of April 19, 1513, discussing *arte dello stato*.

[145] Gianfranco Miglio suggests that the term "state" in Machiavelli signifies a real entity that joins the older meaning of "position" to the modern one of "abstract order." He identifies the doctrine of "reason of state" as a movement toward the abstract concept of a state. "The principal difficulty was in transforming the private and personal interest of the prince and his entourage into the interest of an objective entity external to the prince himself and therefore abstract. The difficulty was overcome by 'inventing' that which we now call the modern state." "Genesi e transformazioni" 2: 823, *La regolarità della politica* (Milan: Giuffrè, 1988).

[146] Expecting such a sudden shift of definition, many scholars have been misled by its absence to conclude that Machiavelli does not conceptualize the state. This conceptualization occurs progressively through the work, not at any particular point. For instance, throughout chapter 3, Machiavelli uses the term "state" indiscriminately when referring to republics, principalities, and kingdoms. The cumulative effect is to convey an idea of the state as a political entity that encompasses principalities, civic republics, and kingdoms. The king of France did not do the things necessary "to hold onto a state in a foreign country."

[147] According to Connell, Machiavelli's possessive use of the definite article, which is still standard in modern Italian, makes his language more immediate and less impersonal than commonly believed. *Lo stato* can mean *his* or *her* or *their state*. Connell ed., xi.

Chapter 3, "On Mixed Principalities," bears closer scrutiny than it has received.[148] One of the longest chapters in *The Prince*, it offers advice on the maintenance and acquisition of a territorial state composed of different provinces.[149] Chapter 2 discussed the ease with which hereditary principalities are held, "But the difficulties are in the new principality," begins chapter 3. Chapter 3 contains the expansionist agenda of the new prince and as such was at the forefront of early modern political developments. The larger political units forming north of the Alps were not united nation-states but "multiple kingdoms" or composite states, new patchworks of inherited principalities, independent towns, and feudal provinces. How to effectively incorporate a new acquisition into a preexisting domain would challenge Europe's state makers for the next century.[150] First, Machiavelli recommends that no matter how strong one's army, a prince who wishes to add another state to his dominions must gain the favor of the inhabitants, "For always, even though a prince is very strong when it comes to armies, he needs the favor of the provincials to enter into a province. For these reasons Louis XII, king of France, quickly occupied Milan and quickly lost it."[151]

If those states that are added to the prince's old state possess the same nationality and language, it is easy to hold them:

> If their former conditions are maintained for them and there is no disparity of customs, men live quietly, as it has been seen that Burgundy, Gascony and Normandy have done, which have been with France for so much time, and although there is some disparity of language, nonetheless their customs are similar and they are easily compatible with one another. Whoever acquires such provinces, if he wants to keep them, must have two concerns: one is that the bloodline of their former prince be eliminated; the other is to alter neither their laws nor their taxes, so that in a very brief time the acquired state becomes, together with the old principality, a single body.[152]

However, when one acquires states that differ in language, customs, and laws, holding onto them proves more arduous, and one of the best ways to cement the expansion is "to go there in person to live. This would make the possession more secure and lasting, as the Turk has done in Greece."[153] The prince who goes and lives in a newly acquired state can quickly discern and resolve disorder, and the people are content knowing the prince is available to them. Familiarity then does not breed contempt, but makes a prince's subjects love him more or fear him

[148] With the exception of Nathan Tarcov who should be credited for noticing the importance of chapter 3 and studying it closely.

[149] "And first, if it is not wholly new, but like a limb (so that all together it may be called almost 'mixed'), its troubles arise in the first place from a natural difficulty which exists in all new principalities, which is that men willingly change their lord if they believe they will be better off, and this belief makes them take up arms against him." Connell ed., 43.

[150] See J. H. Elliott, "A Europe of Composite Monarchies," *Past and Present*, 48–71.

[151] Connell ed., 43.

[152] Connell ed., 44.

[153] Ibid.

more. Sending colonies to settle in the new, culturally distinct territory is another solution and one far superior to an overt military occupation, which is needlessly expensive and counterproductive because it alienates the population.

> And he is much more offensive, because he harms the whole state by moving his army and its lodgings about, at which everyone feels unease, so that each person becomes his enemy. And these are enemies who are able to do harm, since, although defeated they remain in their own homeland.[154]

The significance of this chapter lies in the fact that Machiavelli introduces the reader to the polity of the future, the composite state, extending across territory to encompass mixed cities and provinces that would engage European state makers for the next two centuries. To buttress his recommendations, Machiavelli invokes the Romans, the great exemplars of the *Discourses*. The Romans are praised, tellingly, for the policies they pursued when expanding.

> The Romans observed these points well in the provinces they seized. They sent colonies, they dealt with the less powerful without increasing their power, they reduced the powerful, and they did not permit powerful outsiders to gain reputation there.[155]

What the Romans did when expanding, "all wise princes should do."[156] Princes have to be able to foresee future disorders and address them. The Romans never avoided a war because war is never avoided but only postponed, often at a disadvantage. "Nor did they ever like, what today is in the mouths of the wise men of our times, 'to enjoy the benefit of time'; but instead they liked very much to enjoy the benefit of their own virtue and prudence."[157] Machiavelli here targets temporization, a cherished tenet of Florentine foreign policy, and the establishment statesmen, the "wise men" who also happened to be his former bosses.[158]

Chapter 3 contains the first of many references to Tuscany. While criticizing the French king, Louis XII, for failing to follow what Machiavelli described as the basic principles for maintaining conquests, Machiavelli refers to Pope Alexander VI's ambition to become "lord of Tuscany." Louis made the mistake of helping Pope Alexander occupy the Romagna, which alienated the French king's allies. "And having made a first mistake, he was constrained to follow

[154] Connell ed., 45.
[155] Ibid.
[156] Ibid.
[157] Connell ed., 47.
[158] Temporization in the face of danger or uncertainty was the favored policy of the Florentine establishment. Felix Gilbert, "Florentine Political Assumptions in the Age of Savonarola and Soderini," *Journal of the Warburg and Courtauld Institutes* 20 (1957): 187–214. The most thorough study of *i savi* as one of Machiavelli's prime targets is found in Hörnqvist, *Machiavelli and Empire*, 100–10. See also Gilbert, *Machiavelli and Guicciardini*, 33. See also *Dialogue on the Government of Florence*, trans. Alison Brown (Cambridge: Cambridge University Press, 1994), 87, especially the Capponi criticism of the Medici regime for failing to expand the Florentine republic.

through until, in order to place a limit on the ambition of Alexander and so that he could not become lord of Tuscany, the king was constrained to come into Italy."[159] Later in *The Prince*, Machiavelli will refer to Alexander's son Cesare as "lord of Tuscany." Machiavelli used similar language in 1503 to describe the plans of Pope Alexander and Cesare Borgia to acquire a Tuscan state.[160]

The second sentence of Chapter 4 begins with a restrained decorum that has deceived so many readers rushing by:

> Principalities of which memory remains are found to be governed in two different ways: either by a prince, with everyone else as his servants, who, as ministers, by his grace and leave, assist in governing that kingdom; or by a prince and by barons, who hold that rank not by the grace of their lord but by the antiquity of their bloodlines. Barons such as these have states and subjects of their own, who recognize them as lords, and have a natural affection for them.[161]

Strangely, Turkey and France are neither principalities nor republics. Rather, they are kingdoms, a descriptive term Machiavelli utilizes for the first time in the third paragraph.[162] Chapter 4 analyzes the kingdom of France and the kingdom of Turkey, both vast and powerful territorial monarchies. Could they be the "modern things" referred to in the Dedicatory Letter? Ostensibly a discussion of which type of kingdom is conquered more easily, the analysis contrasts Oriental despotism with European limited monarchy.[163]

> The entire Turkish monarchy is governed by one lord; the others are his servants; and since his kingdom is divided into sanjaks, he sends different administrators to them, and he changes and moves them around at his pleasure. But the king of France is surrounded by a multitude of nobles of long standing who are recognized in that state by their subjects and loved by them. They have their own hereditary privileges, which the king cannot take away except at his peril.[164]

Machiavelli was the first theorist to use the Ottoman states as the antithesis of a European monarchy, a distinction Montesquieu would develop to celebrated effect in his *Persian Letters*. It is nearly impossible to conquer the kingdom of the Turk because its people "are all slaves and dependent on their lord."[165] Once conquered, however, a despotism is more easily held. Though one can find a

[159] Connell ed., 48–9.
[160] "Egli aspiri allo imperio de Toscana, come più propinquo et atto a farne un regno con li atri stat che tiene." From Machiavelli's 1503 memorandum *Del Modo di trattare I popoli della Valdichiana ribellati*, "On the mode of treating the rebelling peoples of the Valdichiana." *Opere* I, ed. Vivanti, 22–6.
[161] Connell ed., 51. I have followed Mansfield's translation for the phrase, "principalities of which memory remains."
[162] Connell ed., 51.
[163] L. A. Burd and Alfredo Bonadeo, in addition to Nathan Tarcov, noticed the significance of Chapter 3.
[164] Connell ed., 51.
[165] Ibid.

baron to foment rebellion and join an invasion, a realm such as France can never be held securely because it is full of independent, powerful, rambunctious lords "who make themselves leaders in new troubles, and since you can neither content them nor eliminate them, you lose that state whenever the opportunity comes."[166]

The kingdom of France is emblematic of broader political processes under way. Like Spain and unlike Italy, it is a complete territorial state, a united province, as Machiavelli would write in the *Discourses*.[167] France captures Machiavelli's attention because it falls outside his familiar political models. City-states in Renaissance Italy were organized as republics or principalities. It is possible Machiavelli was confronted with a completely new problem, the problem of his age, the formation of the territorial state, which took him outside the civic republican tradition and its opposition between republican freedom and princely tyranny.[168] His diplomatic experience in France led Machiavelli to believe that the strength of France was the result of unity and centralization. France reappears in chapter 19 as the paragon of a well-governed kingdom thanks to its institutions or orders, the most important among them being the *parlement*, which preserves the king's neutrality with respect to the great and the common people.

> And for this reason he established a third judge who should be the one who, without blame for the king, would beat down the great and favor the lesser folk. And this order could not have been better or more prudent, nor could there be greater cause for the security of the king and the kingdom.[169]

The next chapter addresses "How Cities or Principalities Which Lived by Their Own Laws Before They Were Occupied Should Be Administered."[170] Machiavelli advises:

> As has been said, when those states that are acquired are accustomed to live with their own laws and in liberty, there are three ways of trying to hold them. The first is to destroy them; the second is to go there in person to live. The third is to allow them to live under their own laws while extracting tribute from them and creating inside a state of the few, who will keep it friendly to you.[171]

Machiavelli appears to favor the third course, indirect rule rather than direct rule or annihilation, because he concludes "it is easier to hold a city used to living in

[166] Connell ed., 52.
[167] *Discourses* Book I, chapter 12.
[168] In *Discourses* Book I, chapter 10, he places kingdoms alongside republics and says those who destroy either are infamous and detestable. He also opposes both to tyranny. Therefore, he holds the two to be equivalent in some way.
[169] Connell ed., 98–9.
[170] See similarities to *Discourses* Book II, chapters 4, 19, 21, and 23. I have used the Mansfield translation of the title of this chapter.
[171] Connell ed., 53.

freedom by means of its own citizens than any other way if one wants to preserve it." In the next paragraph, however, Machiavelli points to Spartan and Roman experience to argue in favor of the first approach,

> And whoever becomes master of a city accustomed to living in freedom and does not destroy it may expect to be destroyed by it, because in rebellion it always takes refuge in the name of liberty and its ancient constitution, which neither through the passage of time nor through benefits are ever forgotten.[172]

At this point it bears mentioning that by the middle of the fifteenth century, Florence had expanded into the surrounding Tuscan territory and was no longer a city-state in the traditional sense. The Florentine republic had an empire comprising Florence *and* the subject cities such as Siena and Pisa, which were treated as conquered cities, not a continuous and uniform state stretching across the territory. Through his work as a Chancery official, which involved administration of the territorial state, Machiavelli had firsthand knowledge of the problems created by the expansion of Florence.[173]

> And whatever is done or provided, if the inhabitants are not divided or scattered, they do not forget its name or their constitution, and immediately in every accident they run back to them, as Pisa did one hundred years after it had been placed in servitude by the Florentines.[174]

A principality acquired may be governed more easily because the people are used to obeying a prince. But conquered republics are not governed so easily for there is more civic spirit and more hatred for the conqueror in republics. "Nor does the memory of their ancient liberty ever allow them to rest, nor can it, so that the most secure way is to eliminate them or live there."[175] The term *spenegere* has generated a good deal of discussion involving its precise meaning and relation to Pisa and to Florence and the Medici.[176] It is true that Pisa was the prime example of a republic accustomed to its own laws and that it thus proved difficult to

[172] Connell ed., 54. "Constitution" can also mean "orders."

[173] Michael Mallett, "The Theory and Practice of Warfare in Machiavelli's Republic," in Skinner, Bock, Viroli, *Machiavelli and Republicanism*, 176; and Federico Chabod, *Machiavelli and the Renaissance*, 85–93. See also Michael Mallett, "Pisa and Florence in the Fifteenth Century: Aspects of the Period of the First Florentine Domination," in *Florentine Studies: Politics and Society in Renaissance Florence*, ed. N. Rubinstein (London: Faber and Faber, 1968), 403–41. Machiavelli's career experience with the Florentine dominion and territory and its influence on the *Discourses* will be discussed in greater detail in Chapter 2.

[174] Connell ed., 54. Florence conquered and acquired the neighboring city-state republic of Pisa in 1406. In 1494, in the wake of the French invasion, Pisa rebelled against Florentine rule. Butters, *Governors and Government*, 26–31. Florence conquered Pisa again in 1509 thanks in no small part to Machiavelli's citizen militia, a high point of his official career.

[175] Connell ed., 54.

[176] Quentin Skinner, "Notes on the Vocabulary of *The Prince*," in Machiavelli, *The Prince*, ed. Skinner, 111–12. See also Hörnqvist, who argues that there are strong reasons for reading "a chronological sequence of Florentine-Pisan relations into the initial stages of the chapter," and adds that the precise meaning of the concluding sentence of Chapter 5 is a directive to the Medici

maintain. However, though it is tempting to over-contextualize every piece of advice in *The Prince*, it is more likely that the last sentence is a pithy epigram of sorts, the handy general "either/or" into which Machiavelli condenses his vast array of historical examples. "Destroy them or live there" is one of the general, invariant principles his exhaustive study of ancient and modern political practice has provided for the edification of a young Medici prince blessed by an unusual concatenation of events to stand at the head of a republic belonging to a family in command of Florence and Rome.

What is more remarkable is the continuity of discussion of territorial acquisition in chapter 5 and chapter 20 with those of the *Discourses*.[177] In Book II, chapter 21 of the *Discourses*, one of many chapters discussing how Rome expanded territorially, Machiavelli writes that if the Florentines had treated subject cities as they did Pistoia, as brothers rather than as enemies, they could have been "Lords of Tuscany." The Pistoiese did not prize their freedom any less than did the Pisans or the Sienese; the Florentines merely treated them differently.[178] Chapter 20 of *The Prince*, in which Machiavelli writes, "Whether fortresses and many other things made or done by princes every day are useful or useless," elaborates some of the issues raised in chapter 5, which will reappear in Book II, chapter 24 of the *Discourses*.[179] Machiavelli begins by enumerating the various methods princes have used to hold onto their states, including disarming subjects, keeping subject towns divided, nourishing hatreds, winning over the opposition, building fortresses or destroying them. Machiavelli, of course, recommends arming one's subjects. However,

> when a prince acquires a new state, which like a limb is attached to his old state, then it is necessary to disarm that state, except for those who were your partisans in acquiring it; and these, too, it is necessary to render soft and effeminate, with time and with opportunities, and to order things so that the arms of all your state belong only to your own soldiers who used to live with you in your old state.[180]

Machiavelli then comments on the traditional Florentine foreign policy "to hold Pistoia with factions and Pisa with fortresses," and then criticizes the Venetian republic's policy to encourage factions among its subject cities. Encouraging factions is the policy of a weak prince and backfires during times of war,

to "go and live in Florence and destroy Pisa." Hörnqvist, *Machiavelli and Empire*, 127. I believe Machiavelli is making a general argument about maintaining acquisitions, as his precise wording clearly shows: "Nè gli lascia nè può lasciare riposare la memoria dell' antica libertà; talchè la più sicura via è spegnerle o abitarvi."

[177] There are variations in the precise lessons drawn from examples, and some readers have focused on the apparent contradictions. But what I believe is worthwhile is not the possibility lurking behind apparent contradictions but the basic fact that Machiavelli focuses on territorial expansion in both works and what this means for our understanding of his political thought.

[178] "And without doubt if the Florentines by way either of laws or of aids had tamed their neighbors and not made them savage, they would without doubt at this hour be lords of Tuscany." *Discourses*, 178.

[179] Connell ed., 104.

[180] Connell ed., 107.

Machiavelli concludes. He also discusses which men can more easily be won over to a new prince and how princes "who have taken a state anew, by means of favors from within it" should view those men who invited him to retake the state.[181] With respect to the practice of building fortresses, which is the policy of princes to hold various states, after a survey of contemporary examples from the Sforza to the Montrefeltro to the Countess of Forli, Machiavelli states that the best fortress is not to be hated by the people.[182] Machiavelli will return to this discussion and elaborate upon it in Book II, chapter 24 of the *Discourses*, titled, "Fortresses Are Generally Much More Harmful Than Useful," which uses the examples of France and Genoa, Florence and Pisa, and the Romans as evidence for the point that fortifications are useless to hold acquired towns.[183]

If we take a broader geo-political perspective, it appears Machiavelli is offering general advice on how to deal with acquired towns and territories: avoid the enmity of the subject population, let them keep their own laws, go and live there, or send a colony. Even more important than the content of the advice is the fact that Machiavelli assumes that any prince will be seeking to assemble a composite state, incorporating conquered cities and provinces into a broader territorial unit.[184]

Studies of early modern state formation illuminate the advice Machiavelli offers in *The Prince*. Wayne te Brake suggests that knowledge of the two dimensions of early modern state formation reveals Machiavelli's advice to be "all the more profound." "One dimension of state formation was lateral, the accumulation of power through the acquisition of new territory. The other dimension was vertical, the consolidation of power through the appropriation of new authority: appropriating powers of taxation or the administration of justice that previously belonged to an incorporated community or feudal fiefdom, for instance."[185] Machiavelli recommends that a prince accumulate power for the state through the acquisition of new territory, but significantly, he does not recommend that the prince appropriate new authority. As will be seen in chapter 14, the prince is encouraged to leave the internal workings of states alone. While Machiavelli is persuading a prince to accumulate power for the state through the acquisition of territory, he recommends that a prince refrain from interfering in the domestic workings of acquired states. The prince is not encouraged to remake provinces but to join them together. In the end, the state is larger, but the prince is not necessarily more powerful.

[181] Ibid.
[182] Ibid.
[183] "The Florentines made fortresses there to hold that city. They did not know that if they wished to hold a city that had always been an enemy to the Florentine name, had lived freely, and had in rebellion had freedom as its refuge it was necessary to observe the Roman order: either to make it a partner or to demolish it." *Discourses*, 188.
[184] Charles Tilly, "Entanglements of European Cities and States," *Cities and the Rise of States in Europe*, ed. Charles Tilly (Boulder: Westview Press, 1994), 2.
[185] Te Brake, *Shaping*, 178.

## CESARE BORGIA: ARCHITECT OF THE STATE

A newly created principality is either acquired by one's own arms and virtue or through the arms of another and luck. Those individuals who came to political power on their own include Moses, Cyrus, Romulus, Theseus, and Hiero of Syracuse, leaders of their people and innovators who reformed and introduced new orders.[186] The dedicatee of *The Prince*, Lorenzo de Medici, and the original dedicatee for that matter, came to prominence via the second route. "New principalities that are acquired with the arms and fortunes of others" could describe the position of Lorenzo as accurately as it does the career of its principal subject, Cesare Borgia, both of them dependent on a papal relative and the arms of foreign powers. At times Machiavelli conflates the ambition of the father with that of the son. Pope Alexander VI, Cesare's father, aimed to be Lord of Tuscany, Machiavelli writes early in the text of *The Prince*.

The events Machiavelli recounts in chapter 7 occurred from 1501 to 1503. Twice Florence sent Machiavelli on diplomatic missions to assist the Florentine ambassador Cardinal Francesco Soderini with negotiations with Cesare, and Machiavelli was as impressed by the decisive energy with which Cesare pursued his goal as he was enthralled by the goal itself.[187] Cesare, together with his father the pope, planned to gain arbitrary control of Tuscany by chastising Florence, conquering Perugia, and attacking the French, which would have left him master of central Italy.[188] Machiavelli believed they planned to unify their conquests into a Tuscan state.[189] As J. R. Hale relates of 1503, "The Borgias, anxious now for a free hand in central Italy, were encouraged not only by fresh, if small successes there, but by continued French reverses in the south. Cesare was only

[186] Chapter 6, "On New Principalities That Are Acquired by One's Own Arms and by Virtue." Connell ed., 54–7.

[187] Gennaro Sasso believes these two legations were of singular importance for Machiavelli's later writings. Gennaro Sasso, *Machiavelli e Cesare Borgia: storia di un giudizio* (Rome: Edizioni dell' Ateneo, 1966). See also the description of Borgia Machiavelli sent to the Florentine government: "This Lord is very splendid and magnificent, and so spirited at arms that there is no great thing that does not seem small to him; and for glory and for acquiring state he never rests, nor recognizes fatigue or danger." (*Legation*, June 26, 1502: 7.125) in Niccolò Machiavelli, *Legazioni, commissarie, scritti di governo*, ed. F. Chiapelli (Bari: Gius, Laterza & Figli, 1971–1985).

[188] Michael Mallett, *The Borgias: The Rise and Fall of a Renaissance Dynasty* (London: The Bodley Head, 1969); Hale, *Machiavellli and Renaissance Italy*, 73; Federico Chabod, *Machiavelli and the Renaissance*, 74, "The creation of such a state had been the aim of Valentino." For the views of nineteenth century historians on Borgia, see Ludwig von Pastor, *The History of the Popes: From the Close of the Middle Ages* (London: Routledge and Kegan Paul, 1936–53); Lord John Acton, "The Borgias and Their Latest Historian," in *Selected Writings* (Indianapolis: Liberty Fund, 1986), II: 249; or the Burd edition of The Prince. Borgia also proposed a league of Ferrara, Bologna, Florence, and the Romagna. *Legazioni e commissarie*, 629–702.

[189] Writing of Alexander and Cesare, two "conoscitori della occasione," Machiavelli wrote, "egli aspiri allo imperio del Toscana, come più propinquo et atto a farne un regno co li altri state che tiene." *Del Modo*, 26. Quoted in Hörnqvist, *Machiavellli and Renaissance Italy*.

stopped in a fresh attempt on Siena, Pisa, and Florence itself by the entry into Italy of a new French expedition aimed at Naples."[190] Cesare's aim appeared to be the creation of a strong state in central Italy that portended, as Machiavelli grasped, the expulsion of foreign invaders and a state strong enough to deal with invading monarchies on equal terms.[191]

Finally, it is important to bear in mind that the similarity between the position of Lorenzo, and of Cesare Borgia in the past, would determine largely the bent of Machiavelli's thought, the only difference between the two being that Lorenzo's position was apparently better adapted to enable him to realise Machiavelli's schemes, than Cesare Borgia's had been.[192]

Exactly what Machiavelli admires in Cesare Borgia bears closer scrutiny. First of all, Borgia conquers territory. Embarking on a successful campaign of conquest, Cesare acquires the Romagna, then captures Faenza, attacks Bologna, takes Urbino, then attacks Tuscany, and is stopped in that last undertaking by the king of France.[193] In Machiavelli's retelling, the French king's power to alter Borgia's plans causes Borgia to realize he must be completely independent and rely no longer "on the arms and fortunes of others." Cesare proceeds to weaken the politically powerful Roman families of the Orsini and Colonna and win over their noblemen and mercenaries to his service. With territory and his own arms, he then decides "to acquire so much empire before the pope died that he could resist a first assault by himself."[194] Machiavelli relates Cesare's plans as he believed them to be:

As for the new acquisition, he had planned to become lord of Tuscany, and he already possessed Perugia and Piombino, and he had taken up the protection of Pisa. And as soon as he did not have to fear France (although he did not have to fear him any longer, since the French had already been despoiled of the kingdom of Naples by the Spanish, with the result that both of them had to purchase his friendship), he would have jumped to Pisa. After this, Luca and Siena would have surrendered immediately, partly out of ill will toward the Florentines, and partly out of fear, and the Florentines would have had no remedy. If this had succeeded for him (it would have happened in the same year that Alexander died), he would have acquired so many forces and such a reputation that he would have been able to stand alone, and he would not have

[190] Hale, *Machiavelli and Renaissance Italy*, 73.
[191] De Grazia, *Machiavelli in Hell*, 303.
[192] Burd ed., 171, quotes Jacopo Nardi as a reliable indication of the general opinion of the time: "La grandezza e felicità del presente pontificato aveva tanta forze in quell tempo nella opinione degli uomini che non era cosa così grande e fuor de misura, che non si potesse sperare della esaltazione di Giuliano capitano di santa Chiesa, e di Lorenzo suo nipote." Burd concludes, "The words 'cosa grande e fuor di misura' accurately describe the task which Machiavelli would entrust to Lorenzo." See also Sasso, *Niccolò Machiavelli, Il pensiero politico* (Bologna: Il Mulino, 1980), I: 128, 137.
[193] Connell ed., 59–60.
[194] Connell ed., 62.

depended any longer on the fortune and forces of others, but on his own power and virtue.[195]

As important as conquest is the theme of independence from others and from fortune and its obverse, dependency. Not only is Lorenzo dependent, but so is Machiavelli, as he admits in the Dedicatory Letter. So is Italy, which, as he will relate in chapter 26, is completely vulnerable to the invading foreign kingdoms. Machiavelli puts Cesare forward as an example to be imitated by all those who rise to rule by fortune and the arms of others. Cesare is exemplary because he conquers territory, and territorial conquest is critical to the quest for independence and empire over oneself and one's state. From the emphasis placed on it, we can discern Machiavelli's belief that both rulers and states must achieve independence. Cesare does not stop at conquest, he consolidates his territory, and significantly, this territory is in central Italy.

Architectural metaphors abound in chapter 7. "He who does not lay his foundations in advance may, with great virtue, lay them afterward, although they be laid with pain for building and peril for the building."[196] A study of Cesare's steps is recommended for a new prince because "one will see that he lay great foundations for his future power."[197] The foundations Cesare laid were the political and military orders for a new state. Cesare is engaged in a project of state building, and much like a building, a state must be built on solid foundations if it is to stand. Cesare is commended for his "high intention" and his great aims, not merely for the aggrandizement of power for its own sake. Cesare's project ennobles his ruthless technique. The disturbing and brutal elimination of Remirro d'Orco is highlighted for theatrical effect, to seize the reader's attention and turn it toward the lesson, which is Cesare's organization of the Romagna. After expelling the rapacious feudal lords who left a state "full of robberies, feuds and every other kind of insolence," to establish his authority Cesare appointed Remirro de Orco, a cruel man whose harsh methods pacified and unified the territory. According to Machiavelli, Cesare did two things, one of them infamous: Realizing that the people would blame him for Remirro's cruelties, Cesare decided to make it clear his minister should be blamed and himself absolved. He had Remirro killed, dismembered, and displayed in the town square of the capital of the Romagna. This scene is open to an array of interpretations – as a symbol of the uniform establishment of law and order, and as an example of the theatricality inherent in politics.

Cesare's second action is less infamous but more consequential. After absolute authority had pacified the tumultuous Romagna, Cesare "appointed there a civil tribunal, in the middle of the province, with a most excellent presiding

[195] Connell ed., 63.
[196] Connell ed., 59.
[197] Ibid.

judge, in which each city had its own advocate."[198] What we have is a process of territorial consolidation and organization, first through the basic imposition of law and order through absolute authority and the pacification of private violence by non-state actors. Then a system of judicial administration was established in place of the absolute, arbitrary rule by one person or delegated authority. Note that each city retained some power to act as "its own advocate" rather than being entirely submerged in the new state. Cesare followed the advice of chapters 3 and 5 on how to organize conquests into a larger territorial unit while recognizing some urban autonomy.

The foundations Cesare laid were military as well as civil. In chapter 13, titled "On Auxiliary Troops, Mixed Troops, and One's Own," Machiavelli writes, "I shall never hesitate to cite Cesare Borgia and his actions." After dealing with the unreliability of mercenary arms, Cesare decided to rely on his own arms, "and he was never esteemed so much as when everyone saw that he was completely in possession of his own arms."[199] And in one of the most famous chapters, on which, however falsely, Machiavelli's reputation as a purveyor of evil rests, Borgia appears:

> Cesare Borgia was believed cruel; nonetheless, that cruelty of his restored the Romagna, unified it, and led it back to peace and to faith. If one considers this well, one will see that he was much more compassionate than the Florentine people, who, to avoid the name of cruelty, allowed the destruction of Pistoia.[200]

A subject city of the Florentine republic, Pistoia was ravaged by an internecine civil war in 1502. Cesare understood how to conquer a territory and unify it, though there remains some ambiguity as to whether Cesare should be classified as a founder or a conqueror. Likewise, while it is unclear whether he acts alone or is still dependent or the instrument of his father, Cesare appears to follow the teaching of the *Discourses* Book I, chapter 9 that it is necessary to be alone. There was in him "a flickering light such that one could judge that he was ordained by God for Italy's redemption."[201]

Unfortunately, through no fault of his own or through one mistake, all that Cesare accomplished fell into the impetuous hands of Pope Julius, who gave all his conquered territories to the papacy.[202]

[198] Connell ed., 61.
[199] Connell ed., 82.
[200] Connell ed., 90.
[201] Connell ed., 120.
[202] Connell ed., 63. "And he told me, in the days when Julius II was created pope, that he had thought through what might happen if his father died, and for everything he had found a remedy, except that he never thought that at his father's death he too would be close to death." This statement appears to cast Borgia as an unfortunate victim of an extreme malignity of fortune, but it should be contrasted with the first sentence in the final paragraph of the same chapter, "Only in the creation of Julius as pontiff, since he made a poor choice, may the duke be criticized." Connell ed., 64.

Chapter 11, "Of Ecclesiastical Principalities," explains how the Church has inherited the lands Borgia conquered and sets up the striking parallel between the nearly identical power and position of the Borgias and the Medici. Remember, Cesare's father was Pope Alexander, and both men aimed to be "lords over Tuscany." At the time of the composition of *The Prince*, the Medici controlled the papacy in the person of Leo X, and controlled Florence through Leo's nephew Lorenzo, the recipient of this princely gift.[203] Significantly, Machiavelli writes of Pope Alexander VI, "With Duke Valentino as his instrument and with the invasion of the French as the opportunity *he did all the things I discussed in the actions of the Duke*."[204] After Cesare's death, the Church inherited his labors, which were now in Leo's possession. Ironically, Cesare's work toward a temporal Tuscan state had made the Church great. Moreover, Pope Julius added Bologna to the papal territories, expelled the French, and enriched the papal treasury. Machiavelli was aware of Leo's geo-political plans for a territorial state, and he writes cognizant of the fact that the Church is currently in possession of a large portion of territory in central Italy. He concludes by asking Leo to retire the Church from political activity: "His Holiness Pope Leo, then, has found this pontificate most powerful; one may hope that if others made it great with arms, he, with his goodness and infinite other virtues, can make it very great and venerable."[205]

The territories assembled by Cesare, Julius, and Leo which the papacy now holds could be put toward the creation of a secular, regional Italian state. The state Cesare almost built might rise again, if Leo would be inclined to enrich his family patrimony at the papacy's expense and Lorenzo proved a worthy student. In his letter of July 12, 1513, Francesco Vettori himself suggested to Machiavelli that Pope Leo would consider handing the papal territories over to his Medici relations:[206] "Beginning with the pope, we shall say that his aim is to maintain the respect for the Church as he found it, not to want its states to be diminished, unless what is diminished should be handed over to his own, namely to Giuliano and Lorenzo, to whom he is thinking of giving states in any case." Later in the same letter he writes, "That he wants to give a state to his relatives is shown by the fact that the past popes Calixtus, Pius, Sixtus, Innocent, Alexander, and Julius, have done so; if any did not do so it was because they were not able to. In addition to this, it can be seen that his relatives in Florence do not think much, which is a sign that they fancy states that are solid and where they do not have to think continually of flattering men. I do not want to get into consideration of

[203] Strauss, of course, stressed the parallel between the position of Lorenzo and Leo X and Cesare and his father, Alexander VI. Strauss takes his analysis in a different direction and does not explore the specific territorial agenda of Pope Leo, which is the focus of this chapter. See Strauss, *Thoughts on Machiavelli*, 71.

[204] Connell ed., 75, *emphasis added*.

[205] *The Prince*, Mansfield ed., 47.

[206] Atkinson and Sices, *Machiavelli and His Friends*, 242–3.

what state he intends, because he will change his plans according to the occasion."[207]

Machiavelli was clearly worried about the division of Italy and its concomitant vulnerability to foreign invasion.[208] That he saw a territorial state in Tuscany as a solution has gone unnoticed. In the *Discourses* Book II, chapter 21, he writes that had the Florentines proceeded in acquisition differently, "they would without doubt at this hour be 'lords of Tuscany.'"[209] His use of the exact phrase used in *The Prince* when praising the Borgias to the Medici can be interpreted to mean Machiavelli wanted someone or some city to be lord of Tuscany. The *Discourses*, especially Book I, chapter 55; Book II, chapter 4; and Book II, chapter 6,[210] inclines one to think Machiavelli saw Tuscany as a distinct province that could and ought to be united under one rule, in the manner of France and Spain. Recent scholars have been too quick to associate the claim that the city-state was increasingly anachronistic and had played out its historical role – and that Machiavelli at times appeared vaguely aware of this – with the claim that Machiavelli foresaw the nation-state monarchy of the eighteenth century. This later argument, favored by nineteenth-century nationalists, has been dismissed, and correctly so. The absolutist monarchy did not arrive until the seventeenth century and the nation-state until the seventeenth and nineteenth century. However, larger territorial states were forming in the fifteenth century, and city-states were being swallowed up. The territorial monarchy, the composite regional state, was on the horizon. Larger states were forming, though not yet at the nation-state size. Leo Strauss had an illumination, but again believing that the domination of Italy was an unlikely dream, turned away from this potential line of inquiry. "In particular, Lorenzo might succeed in building up a strong power in Tuscany. But the thought of defeating the powerful military monarchies which dominate parts of Italy remains for the time being a dream."[211]

[207] See also Burd, who interprets the letter as evidence that Machiavelli was aware of Leo X's intentions to establish a new principality for a member of his family. Burd ed., 170.

[208] Historians Felix Gilbert and Elena Fasano Guarini both view Machiavelli as marked by the political crisis of his time. Guarini notices how Machiavelli's language reflects the political tensions of city and territory, but neither gets the territorial state solution of *The Prince* and the *Discourses*. Felix Gilbert, *History: Choice and Commitment* (Cambridge, MA: Harvard University Press, 1977); Guarini, "Machiavelli and the Crisis of the Italian Republics" in *Machiavelli and Republicanism*. Historians Federico Chabod and Michael Mallet grasp the territorial aspect of Machiavelli's thought, but both miss how this fits in with the *Discourses*, that the *Discourses* tries to preserve political participation in an extended territory. Chabod provides the important insight that Machiavelli blamed the princes of Italy for its corrupt state in his era and hoped princes would be the means for redemption. Chabod, *Machiavelli and the Renaissance;* Michael Mallett, "The Theory and Practice of Warfare in Machiavelli's Republic," in *Machiavelli and Republicanism*.

[209] Book II, chapter 21, 178.

[210] In the *Discourses* Book II, chapter 6, Machiavelli mentions Tuscany, not Florence or a Florentine empire. The Tuscans, not the Florentines, should either imitate Rome and its power state or their ancestors and their confederation.

[211] Strauss, *Thoughts on Machiavelli*, 74.

Parts I and II (chapters 1 through 9) establish the lineaments of the mixed territorial state, which governs newly acquired lands via indirect rule (chapters 3, 4, 5, and 9), allowing a prince to augment the state without consolidating his personal power. The borders of this composite state or "mixed principality" will coincide with the lands Cesare conquered.

## FOUND A COMPOSITE STATE ON THE PEOPLE

Chapter 8, "Of Those Who Have Attained a Principality Through Crimes," is remarkably similar to *Discourses* Book I, chapter 10, "As Much as Founders of a Republic and of a Kingdom Are Praiseworthy, Founders of a Tyranny Are Worthy of Reproach."[212] This similarity indicates a strain of monarchism that Meinecke discerned coursing through *The Prince* and the *Discourses*.[213] Machiavelli was alive to the beneficial aspects of inspiring leaders, to the undeniable role outstanding characters play in political life.[214] But if we can, for a moment, imagine that Machiavelli did hope for someone to assemble a state, we must then ask, is that all? Gennaro Sasso wrote that Book I, chapter 18 of the *Discourses* has a remarkable resonance with *The Prince* and may contain the concept that inspired it. Machiavelli wonders "in what mode a free state, if there is one, can be maintained in corrupt cities; or if there is not, in what mode to order it," and discusses the gradual corruption of Rome and its failure to remake its orders and institutions for corrupt times. When citizen were virtuous, certain orders worked, such as the order that permitted any citizen to propose a law to the people, but when corruption set in, the order became perverse: "When the citizens have become bad, such an order becomes the worst, for only the powerful propose laws, not for the common freedom but for their own power; and for fear of them nobody can speak out against them." Because of this insolence of

[212] With respect to chapter 8, how does one distinguish Borgia and Agathocles? Why is one a successful leader full of virtue and the other lacking it entirely? Agathocles destroyed a free state, which for Machiavelli is an unforgivable crime. In this chapter, Machiavelli both declares himself a principled republican and advises the Medici against the tantalizing temptation to seize power by a coup d'état, according to Wootton's introduction to the Bantam edition of *The Prince*, ed. Daniel Donno (New York: Bantam Classics, 1984), xxii.

[213] Meinecke, *Machiavellism*.

[214] According to Meinecke, virtue is the link between Machiavelli's republican sympathies and his awareness of the need for great personalities and organizers. The two virtues, individual inspiring collective, united in one concept, enabled Machiavelli to write *The Prince* and then move to the study of republican life in the *Discourses*. Such a view is supported by the differing attitudes and descriptions of the people and collective action in the two works. Chabod insists Meinecke was being too theoretical. The point is that conditions require princely politics. What Chabod neglects to mention is that Machiavelli strongly believed individual virtue was necessary for a leader to act decisively in foreign affairs as well as to redeem people. The necessity of war as well as virtue unites *The Prince* and the *Discourses*. So is Machiavelli willing to use princely politics because Italy needs a redeemer or for drastic action in foreign affairs? He is willing to use princes for both reasons, for he is asking how a sick state can be restored and how it can survive in a rough new world.

the powerful, it is difficult to create or renew a republic, and if one has to create or maintain a republic in corrupt times, "it would be necessary to turn it more toward a kingly state than toward a popular state, so that the men who cannot be corrected by the laws because of their insolence should be checked in some mode by an almost kingly power."[215] That Machiavelli believed he lived in corrupt times has been borne out by evidence and numerous studies. The possibly quixotic remedy he considered can be traced from chapters 3 and 5 through chapters 9, 12, 14, 19, and 20.

Chapter 9, "On the Civil Principality," is a highly significant chapter, for it encapsulates the political challenge of the era, as Machiavelli conceived it. Leaving the plains of territory to return to the walls of the city, Machiavelli discusses the situation that occurs when, through a "fortunate astuteness," a citizen becomes prince of a civil principality "through the favor of the people or the great." The Medici ascent to power is recalled. He then moves on to theorize about the social forces that will mean much to his thought:

> For in every city these two different humors are found, when it arises that the people desire to be neither commanded nor oppressed by the great, and the great desire both to command and to oppress the people. From these two different appetites there arises in the city one of three effects; principality, or liberty, or license.[216]

A prince can found a state either on the people or on the elite. The early modern period witnessed a great alliance between ruling monarchs and elites, as formerly restive landed nobles and urban patricians were seduced into joining the administration of new monarchies as high-level bureaucrats, court officials, and commanders of royal armies. The alliance between elites and monarchs, which excluded the people from all aspects of political life, would endure into the twentieth century. With his sharp political instincts, Machiavelli discerns this trend and seeks to disrupt it. The theme of chapter 9 is to win the support of the people and to found a popular rather than an elite-based state. The people ask only not to be oppressed, while the great are always hungry for power, and the unquiet spirits of some will not rest while someone else governs. Rather than building a state on a compact with local elites, a prince should build his foundations on the people:

> But if he is a prince who builds on the people, who is able to command, and if he is a man of heart, who does not take fright in adversities, and does not fail in his other preparations, and who with his spirit and his orders keeps the populace inspired, he will never find himself deceived by the people, and he will judge that he has built good foundations.[217]

This is a controversial statement, as Machiavelli acknowledges. To support it, he cites Giorgio Scali, the leader of the Ciompi regime in Florence from 1378 to

[215] *Discourses*, 50–1. See also J. H. Whitfield, "On Machiavelli's Use of *Ordini*," *Italian Studies* 12 (1954): 19–39 for giving good orders. *Ordini* is the basic task of the prince.
[216] Connell ed., 69.
[217] Connell ed., 71.

1382, and the brothers Gracchi in ancient Rome, populist "princes" all of whom came to unfortunate ends and thus seemed to confirm the conventional wisdom that "He who builds on the people builds on mud." The conventional wisdom is wrong and based on conclusions drawn from princes who did not embody the precepts Machiavelli teaches.

"On the Civil Principality" encapsulates Machiavelli's attempt to "combine the princely model and the *vivere civile* tradition."[218] Rephrasing it slightly provides a startling aperture: in it Machiavelli endeavors to combine the new princely territorial state with the republican city tradition. He begins his enterprise with a taxonomy of princely rule. First, in chapter 2, he touches on rule by inheritance, a legitimate form of rule but one that tends to turn people into veritable slaves. Second, the prince bound by laws, as he is in France, appears in chapters 3 and 19. Third, he discusses a principality by acclamation in chapter 9. Machiavelli seems to believe that the latter two forms of princely rule are legitimate, but neither of them is fully satisfactory. They may provide *libertà* but not *vivere civile*.

From his early writings and the *Discourses*, it appears that, thanks to the example of France, Machiavelli was aware that freedom could be preserved in an extended territory. The feudal estates of the realm limit the king's power. Now Machiavelli can only offer a temporary answer in this chapter because the attempt to graft republican political freedom on an extended territory is the subject of the sprawling *Discourses*. The *Discourses* is Machiavelli's attempt to solve what has become known as the Madisonian problem of the extended republic.

Machiavelli knew well that Italy had no feudal tradition of limited monarchy. For a century, Florence's humanist chancellors had invoked Florence's war for independence against Gian Galeazzo Visconti in 1402. Gian Galeazzo came close to assembling a centralized northern and central Italian monarchy, which was "unparalleled as a threat of despotism, since north and central Italy knew neither parliaments nor estates general nor any other of the counterpoises to unfettered absolutism that feudalism elsewhere in Europe had left as its legacy to the modern nation states."[219] France exemplifies a historically textured liberty that Italy cannot replicate. Can freedom be preserved in a Tuscan state large enough to repel invaders but without institutions to limit power? This monumental problem illuminates Guicciardini's astute observation that a divided Italy preserved more freedom than a united one would have done. It is to this problem that Machiavelli devotes himself in the *Discourses*. The conclusion of chapter 9 subsumes principality and republic under the term "state": "For this reason a wise prince must think of a way by which his citizens

[218] Guarini, "Machiavelli and the Crisis of the Italian Republics," in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*, 33, and Sasso, *Niccolò Machiavelli*, 346–57.

[219] Baron, *The Crisis of the Early Italian Renaissance*, 10.

always and in every kind of circumstance, have need of his state and of himself."[220]

War and military matters figure prominently in *The Prince*. Good foundations, Machiavelli tells us, involve good laws and good arms.[221] In Machiavelli's correspondence with Vettori in 1513, the year of the composition of a significant part of *The Prince*, he ruminates on how to strengthen states with no armies and little common feeling.[222] Since one abiding purpose of *The Prince*, as previously stated, is to free Italy from barbarian domination and assemble a territorial state strong enough to repel invasion, it must discuss things military, and it does in chapters 12, 13, and 14.

Machiavelli castigates the mercenary system that he holds responsible for Italy's ruin. Speaking of condottiere, he writes, "The result of their virtue was that Italy was overrun by Charles, plundered by Louis, forced by Ferdinand, and insulted by the Swiss."[223] Urgency is conveyed by his use of *voi* to address Lorenzo directly and the language decrying Italy's disgrace, which finds its echo in the last chapter. The suggested solution is for the prince to go in person and assume the office of captain and for a republic to send its own citizens. The following chapter recommends that a new prince arm his own citizens rather than rely on mercenaries: "One's own arms are those that are composed of your subjects, your citizens, or your dependents: all the others are either mercenary or auxiliary."[224] Addressing the question of "What a Prince Should Do Regarding the Military," Machiavelli writes, "A ruler should have no other objective, nor thought, nor take anything else for his profession except war and its methods." If the purpose of a prince is to guarantee the defense of the state, he should concern himself solely with war and diplomacy – with foreign affairs rather than internal, domestic politics. Machiavelli presents a vision of a prince incessantly occupied, spending every hour preparing for the inevitable war.

> Therefore he ought never to lift his thought from the exercise of war, and in peace he should train more than in wartime. This he may do in two ways: one is with his deeds, the other with his mind. And as to his deeds, beyond keeping his men ordered and trained, he must be frequently on hunts, and through these accustom his body to hardships, and meanwhile to learn the nature of terrains, and to recognize how mountains rise, how valleys open up, how plains lie, and to understand the nature of rivers and marshes, and in this take very great care.[225]

[220] Connell ed., 71. "E però un principe savio deve pensare un modo per il quale I suoi cittadini sempre ed in ogni modo e qualità di tempo abbiano bisogno dello Stato di lui, e sempre poi gli saranno fedeli." Burd ed., 244.

[221] Connell ed., 76.

[222] See Atkinson and Sices, *Machiavelli and His Friends*, 218–70; Allan Gilbert, *Machiavelli: The Chief Works and Others*, II: 890–940.

[223] Connell ed., 80.

[224] Connell ed., 84. This recommendation is repeated in Book I, chapter 21 of the *Discourses*: "How much blame that prince and that republic merit that lack their own arms." *Discourses*, 54–5.

[225] Connell ed., 85.

Book III, chapter 29 of the *Discourses* is titled "That the Sins of the People Arise from Princes." If princes were the cause of Italy's degradation, they could be the means for its redemption. It is going too far to interpret *The Prince* as a satire to manipulate the Medici, but such a claim does illuminate some lurking possibilities.[226] It seems Machiavelli, at least at the time he wrote *The Prince*, hoped someone would take up Borgia's mantle. Princes were an integral part of his remedy for the dark times that enveloped Florence, the Italian states, and all adherents of popular government. A militaristic prince in service to his state could be the means by which Italy would liberate itself from the barbarian invaders. Persuading a prince to see himself as a servant of the state is a crucial first step.

The longest chapter in *The Prince* advises ruling for the benefit of the people rather than elites. "On Avoiding Contempt and Hatred" is another link in the chain of populist chapters. Though a prince should not hesitate to not be good, to be parsimonious, to be faithless and feared, he should take care not to be hated by his people. Doing so is simple: One must merely abstain from the property and women of his subjects. Ordinary people are not hard to please.[227] As for the powerful elites, "One has only to combat the ambition of the few, which is checked in many ways and with facility."[228] Every prince fears invasion and internal revolt. If a prince is defended by good arms, invasion diminishes as a threat. The threat of conspiracies remains, and Machiavelli's advice on this delicate subject is colored by his recent imprisonment on the charge of conspiracy.[229]

But as to his subjects, if external things are not in motion, he has to fear that they may conspire secretly, against which the prince secures himself very well if he avoids being hated and despised and keeps the people satisfied with him, which it is necessary to achieve, as I said above at length. And one of the most powerful remedies a prince has against conspiracies is not to be hated by his people.[230]

All the difficulties are on the side of conspirators because the prince has the majesty of the state, its laws, and his friends behind him.

So that when popular benevolence is added to these things, it is impossible that anyone should be so foolhardy as to conspire, because where a conspirator ordinarily has to be afraid before the execution of the evil, in this case he must also fear after the crime has happened, since he has the people as his enemy, and for this reason he can hope for no refuge whatsoever.

[226] Dietz, *Trapping the Prince*.
[227] "It makes him hateful above all, as I said, if he is rapacious and the usurper of the property and women of his subjects, from which he should abstain. And whenever he does not take away property or honor from the generality of men they live content." Connell ed., 96.
[228] Connell ed., 96.
[229] Machiavelli was arrested and tortured on a charge of conspiracy, but the charge was never proven.
[230] Connell ed., 97.

Ruling for the benefit of the people is not a sign of weakness, but a strategy employed by judicious princes and states alike.[231]

France reappears as a model kingdom. In it are found infinite good institutions on which the liberty and security of the king depend, of which the first is the Parlement and its authority. For the person who ordered that Kingdom recognized the ambition of the powerful and their insolence, and he judged that a bit in their mouth was necessary to correct them; and on the other hand, he recognized that the hatred of the populace against the great was founded on fear.[232]

The perspective here, naturally, is princely. In the *Discourses*, the very same institution will be discussed for the security it offers the people rather than the king.[233] The praise for the "person who ordered that Kingdom" picks up the leitmotif of founding institutions, and especially how to be a good architect of the state. As in chapter 9, the great are ambitious and powerful, so we better understand the qualities they exhibit and appreciate the instrument needed to rein them in, figuratively speaking. The people hate the great because they fear them. Animosity is based on self-protection. These defining qualities of social groups will be elaborated in the *Discourses*, but for the present and the attention span of a busy prince, it is advisable to give the people security, and the wise founder of France, perhaps King Louis IX, did not want to alienate the great by obviously favoring the people. Nor did he wish to be seen to favor the great.

And for this reason he established a third judge who should be one who, without blame for the king, would beat down the great and favor the lesser folk. And this order could not have been better or more prudent, nor could there be a greater cause for the security of the king and the kingdom.[234]

The *parlement* keeps the kingdom in equilibrium because it beats down the powerful and favors the common people. "Fear" and "security" are used repeatedly and, perhaps purely by coincidence, are terms that will figure

[231] "And well ordered states and wise princes have with all diligence taken care not to make the great desperate and to satisfy the people and keep them content, because this is one of the most important matters that concern a prince." Connell ed., 98.

[232] Connell ed., 98.

[233] See Machiavelli's discussion of the *parlement* in *Discourses* Book III, chapter 1. Hans Baron argues that this difference in perspective indicates opposed political views, meaning Machiavelli's political view changed from *The Prince* and the *Discourses* as he became more republican over time. Baron, "Machiavelli: The Republican Citizen and the Author of 'The Prince,'" *The English Historical Review* 76 (1961): 217–53. I agree with Hörnqvist that any differences in perspective are merely the result of Machiavelli employing rhetorical techniques. He tries to present his case most persuasively by taking the perspective of his audience into account. Hörnqvist, *Machiavelli and Empire*, 225.

[234] Connell ed., 99.

prominently in the liberal political thought of John Locke.[235] The stress on the security of the state and the prince, which comes from securing the people, has the effect of cleverly obscuring the populist thrust of the message. From the example of France, Machiavelli draws another general maxim:

> Princes must have administered by others the things that bring blame, but keep for themselves the things that bring favor. Again I conclude that a prince must esteem the great, but not make himself hated by the people.[236]

Machiavelli then moves into a discussion of Roman emperors, some of whom faced great difficulties when they succeeded to the purple by means other than hereditary right and others who came to bad ends when they were excessively cruel and rapacious. The difficulties of the Roman emperors came from an additional and powerful collective group they had to satisfy – the Roman army. The emperors had to choose between satisfying the people and satisfying the bloodthirsty army, and because the army was powerful and controlled the administration of the vast empire, they chose the latter. Drawing a distinction between the present and the past and thus recognizing the limits of historical analogy as a guide to politics, Machiavelli writes, "Today, for all princes except for the Turk and the Sultan, it is more necessary to satisfy the people than the soldiers, because the people can do more than the soldiers."[237] Continuing undeterred, Machiavelli draws another conclusion. New emperors could not imitate the humane and just Marcus Aurelius because he inherited his position; hereditary principalities are comparatively easy to maintain. Do not be tempted to imitate the violent and cruel Severus unless you have the great virtue, the qualities of the lion and fox to outwit everyone.[238]

> Therefore a new prince in a new principality cannot imitate the actions of Marcus, nor again is it necessary for him to follow those of Severus. But he must choose from Severus those parts that are necessary to found his state, and from Marcus those that are appropriate and glorious for preserving a state that is already established and firm.[239]

Drawing a conclusion pregnant with possibility, Machiavelli returns to the princely task, the task of the reader whom he has so recently addressed directly.[240] A new prince, such as Lorenzo, is not building a state entirely from scratch. Some of his acquired territories may be established states and cities as we

[235] At least as interpreted by Judith Shklar, "The Liberalism of Fear," in Judith N. Shklar, *Political Thought and Political Thinkers*, ed. Stanley Hoffman (Chicago: University of Chicago Press, 1998), 1–20.
[236] Connell ed., 99.
[237] Connell ed., 104.
[238] Connell ed., 101.
[239] Connell ed., 104.
[240] Machiavelli directly addresses Lorenzo in the second to last paragraph: "And you should notice that this state of the Sultan is unlike all the other principalities because it is similar to the Christian pontificate which cannot be called either a hereditary principality or a new principality." Machiavelli uses the second person formal form of address, *voi*.

have seen, but once assembled, a prince must learn how to found a state, and once it is established, know how to preserve it. A prince must adapt to the times.

Chapter 20, "Whether Fortresses and Many Other Things Which Are Made and Done by Princes every Day Are Useful or Useless," again strikes a populist note. It was a time-honored custom for princes to construct fortresses to hold states, especially new ones, more firmly. Moreover, the Florentine republic, though frugal when it came to spending on defense, did construct fortifications that were key elements in the republic's territorial expansion.[241] Today, however, Machiavelli observes, such traditions do not necessarily apply. "For this reason the best fortress there is is not to be hated by the people. For even if you have fortresses, if the people hold you in hatred, the fortresses do not save you, since outsiders who will help them are never lacking for the people once they have taken up arms."[242] Machiavelli points out that fortresses were of little use when Cesare Borgia marched through Tuscany. Had the Countess of Forlì won over her people, she might have saved her state. As it was, her fortresses were no match for popular hatred and Cesare. Thus Machiavelli concludes, "I shall blame anyone who, because he trusts in fortresses, will think little of being hated by the people." Early modern state building was a matter of elite consolidation – a ruler aligned with local elites bringing territories together, excluding the majority of the population. With popular consolidation, a ruler would champion the people against the local nobility, consolidating a broader territory while erasing local independence.[243] Machiavelli's advice is to pursue popular consolidation, the final chapter in the series on how to found a composite state on the people rather than the nobility, comprising chapters 3, 5, 9, 14, 19, and 20.

So much has been written of the celebrated chapters 15, 16, and 17 that the focus of this analysis of *The Prince* is on other chapters. Suffice it to say that these chapters appear to be in part a play on the literary tradition of "mirror for princes" (*speculum principis*), a tradition in which "the humanists attempted to discover a norm and describe the ideal prince."[244] To this tradition Machiavelli brought "the perspective of a practical deliberator," introducing success as a value in a realm that was governed exclusively by virtue.[245] To quote an

[241] Michael Mallett, "The Theory and Practice of Warfare in Machiavelli's Republic," in Skinner, Bock, Viroli, *Machiavelli and Republicanism*, 175. See also J. R. Hale, "To Fortify or Not to Fortify: Machiavelli's Contribution to a Renaissance Debate," in *Renaissance War Studies*, ed. J. R. Hale (London: Hambledon, 1983) 189–210.

[242] Connell ed., 108. In the *Discourses* Book II, chapter 24, also on fortresses, Machiavelli argues from a different angle, stating that fortresses weaken the resolve of citizens to defend themselves.

[243] Te Brake, *Shaping History*, 15.

[244] Felix Gilbert, "The Humanist Concept of the Prince and *The Prince* of Machiavelli." See also Skinner, *Foundations*, 116–17.

[245] John Tinker argues that Machiavelli's "realism," his plain style, his concern with what is practicable and useful indicate that he was consciously using deliberative rhetoric in a tradition that belonged to the demonstrative approach. Ancient rhetorical theory distinguished three genres – the demonstrative, deliberative, and judicial. The deliberative genre involved the discussion of policy and persuasion rather than the praise or censure of the demonstrative. See

observation of Sebastian de Grazia, "*The Prince* begins as a treatise on forms of states and then begins to look like a mirror for princes."[246] Something extraordinary does occur in the opening paragraph of chapter 15, a window into a new world that no amount of assiduous contextualization can bury.

Machiavelli systematizes, rationalizes, and captures disorderly medieval doctrines in a cold, straightforward teaching. He is, in effect, teaching the art of the state.[247] He renovates the old medieval doctrine of expediency for the exceptional case of founders or regenerators, with one crucial difference: for Machiavelli, the state of emergency is permanent since these are corrupt times. Remember, in the previous chapter the ideal prince was to sacrifice his hours and days in the service of war. The prince's purpose is to enlarge and consolidate the state. He must maintain his own power to do so. Hence the survival of the state is still tied to the fortunes and personality of the ruler, but the state has an existence independent of the ruler that is not just an extension of the ruler's rank or authority. It is an existence for which the prince must bend his will.

These chapters bear an important resemblance to Book III, chapter 41 of the *Discourses*, "That the Fatherland Ought to Be Defended, and It Is Well Defended in Any Mode Whatever," and are better understood in conjunction with it. The second formulation is more lucid and refined and sheds light on the first. "For where one deliberates entirely on the safety of his fatherland, there ought not to enter any consideration of either just or unjust, merciful or cruel, praiseworthy or ignominious; indeed every other concern put aside, one ought to follow entirely the policy that saves its life and maintains its liberty." For Gramsci and later Althusser, the traditional interpretation is too theoretical. The point is the singular case; the concrete, real truth of the thing is the sad truth of the state of Italy in comparison to the great monarchies of France and Spain. Machiavelli, Gramsci claimed, formulated the political problem of Italian unity, and the real truth is the historical task of assembling the nation. If not to unite Italy, but to liberate her and assemble a mixed principality in Tuscany strong enough to repel invaders, one must abandon dreams of ideal states and "learn to be able to be not good, and to use this faculty and not use it according to necessity."[248]

John F. Tinker, "Praise and Advice: Rhetorical Approaches in More's *Utopia* and Machiavelli's *The Prince*," *The Sixteenth Century Journal*, Vol. XIX, No.2, (1988) 187–207, 195.

[246] De Grazia, *Machiavelli in Hell*, 369.

[247] Machiavelli teaches the art of the state, *arte del stato*, the counterpoint of which is state as a work of art, "the object of reflection and calculation," as Burkhardt memorably put it, which better expresses that element of Machiavelli's thought which Pocock attempted to describe with "delegitimised politics and innovation." Pocock, *The Machiavellian Moment*, 156. His teaching is not that revolutionary, being an extension of the medieval doctrine of necessity, which excuses otherwise immoral actions if done to preserve the commonwealth or state. "This kind of *ragione*, the *ratio publicae utilitatis*, as we have abundantly seen, was as medieval as modern; *necessitas legem non habet* was a commonplace in the twelfth century." G. Post, *Studies in Medieval Legal Thought: Public Law and the State, 1100–1322* (Princeton: Princeton University Press, 1964), 308.

[248] Connell ed., 87.

## THE FINAL THREE

Chapters 24, 25, and 26 are purposely interlinked in both content and imagery. Chapter 24, "Why the Princes of Italy Have Lost Their Kingdom," begins with a reassurance. If a new prince follows the advice proffered in previous chapters, he will appear ancient, "immediately more secure and more firm in his state, as though he had grown old in it." Recall in chapter 19 that the closer a new prince is to a hereditary one, the more he can imitate a just and humane prince such as Marcus Aurelius. Moreover, great and noble actions bind men more than does ancient lineage.

> In this way he will have doubled his glory, by having given a beginning to a principality, and by having adorned it and strengthened it with good laws, with good arms and good examples; just as a man has doubled his shame if, although born a prince, he has lost his principality through his lack of prudence.[249]

Thus Machiavelli artfully transitions from encouraging a reader to embark on a state-building project to describing the widespread incompetence of Italy's ruling elite. The Italian princes have committed all the errors elaborated in earlier chapters. They used mercenary soldiers. They either made the people their enemies or did not know how to manipulate the powerful. As a result, they have only their own indolence and cowardice to blame. "For they never during quiet times thought that the times could change – which is a common defect of men, to not think of storms during a calm."[250]

"How Much Fortune Is Able to Do in Human Things, and by What Means She May Be Opposed" is one of the most famous and studied of chapters. The dramatic confrontation between virtue and fortune commences circumspectly. The tremendous changes of the recent past have caused men to doubt that people have any control over the world. So great were the dislocations caused by the Italian Wars that a sense of helplessness and doubt in the efficacy of human agency descended. Nevertheless, everything cannot be governed by chance. Half of life is fortune and half is up to people. Great political achievements occur when the character of the times matches the character of the person. Then the language begins to accelerate as it shifts from conveying concepts to expressing images. Fortune is likened to a violently surging river against which Italy should have been protected by dikes, as were Germany, Spain, and France. There seems to be no explanation for why a prince would be happy one day and ruined the next. Machiavelli's suggested solution is *variazione*: one can master the whims of fortune by learning to vary with the times, when to be cautious and when to be impetuous. People tend to be stubborn and inflexible, which appears to leave human events veering out of

[249] Connell ed., 115.
[250] Connell ed., 116.

control.[251] But Machiavelli does not admit defeat. He recommends action. Fortune is a woman, a friend of the impetuous young, and a virile young virtue can seize Lady Fortune at the opportune time.[252] He chooses impetuous action perhaps out of a personal preference for bold and audacious, even theatrical gestures, but also because, as he explains in the next chapter, an opportunity has arisen.

Chapter 26, "The Exhortation to Seize Italy and to Free Her from the Barbarians," is the crescendo and culmination of all that has gone before. After considering whether the times presented the opportunity for someone to organize a state, "it seems to me that so many things are coming together for the benefit of a new prince that I do not know what time for this has ever been more appropriate."[253] The founders Moses, Cyrus, and Theseus reappear, this time explicitly as redeemers. It appeared that one person (Cesare Borgia) was ordained for Italy's redemption, but fortune rejected him.[254] Italy is ready to follow a redeemer. "Nor is there to be seen at present anyone in whom she could hope more than in your illustrious house, which, with its fortune and virtue, favored by God and by the Church, of which it is now the prince, can make itself the leader of this redemption."[255] Gone is the familiar hypothetical *tu*. Scarce even is the formal direct address to Lorenzo. It is incumbent upon the House of Medici to undertake the redemptive task, a responsibility conveyed by the formal form of address "your house" or "your illustrious house" (*la illustre casa vostra*), which Machiavelli deploys throughout the chapter, appealing, as it were, to patrimonial as well as patriotic instincts.[256] This task is beyond one person or dedicatee; it is the calling of a family reigning in Rome and Florence to whom fortune has granted a matchless opportunity.

And nothing confers so much honor on a man who rises anew as do new laws and the new orders he invents. These things, when they are well established and have greatness in them, make him worthy of reverence and admirable. And in Italy there is no want of

[251] Machiavelli also faced this problem in Book III, chapter 9, of the *Discourses*. Rather than point to princes, he uses Piero Soderini as an example of one who could not adapt to changing circumstances. The problem of variation, of drastic change and how to adapt to it, is a reason to prefer republics over principalities, for a republic "can accommodate itself better than one prince can to the diversity of the times through the diversity of the citizens that are in it." *Discourses*, 239–40. The order in which the chapters were composed and whether Book III, chapter 9 is a solution to chapter 25 is not clear.

[252] Gennaro Sasso interprets chapter 25 as embodying the tension between the quest for intelligibility and the will to action. Machiavelli subjectively chose action. *Niccolò Machiavelli: Storia del suo pensiero politico* (Naplies L'Instituto italiano per gli studi storici, 1958): 438–32.

[253] Connell ed., 119.

[254] *Qualcuno* refers to Borgia.

[255] Connell ed., 120.

[256] Again, Strauss did notice this switch in emphasis. "As it appears from the last chapter, however, that imitation is expected less of Lorenzo by himself than of the illustrious house to which he belongs." Strauss, *Thoughts on Machiavelli*, 71.

material into which every form may be introduced; here there is great virtue in the limbs, provided she does not lack leaders.

He continues:

If your illustrious house wishes to follow these excellent men who redeemed their provinces, it is necessary, before all other things, as the true foundation of every undertaking, that you provide yourself with your own arms. For you cannot have more faithful, more true, or better soldiers.[257]

This opportunity, therefore, should not be allowed to pass, so that Italy, after so much time, may see a redeemer for herself.[258]

Written during a time of chaos and rebellion across Europe, *The Prince* is a manifesto of liberation. The creation of larger political units via territorial consolidation was a princely endeavor, which cities and localities resisted in defense of popular liberty. This state of affairs made the consolidation of larger political units a near impossibility in republican, municipal Italy. The main unit of popular insurrection and protest in early modern Europe was the city. Machiavelli had the power of perception to feel and the lucidity to express the way to unite aggressive princes and liberty-loving people in a movement of the people. All the hopes of the Italian people were focused on Pope Leo during those dark years. The liberty of Italy policy would mobilize the people, the people who would form the bulk of a citizen army[259] to answer the call, to serve, and to acquiesce to the consolidation of a larger state in central Italy.

I cannot express with what love he would be received in all those provinces which have suffered because of foreign inundations, with what thirst for vengeance, with what steadfast loyalty, with what piety, with what tears. What doors would be closed against him? What people would refuse him obedience? What envy would oppose him? What Italian would refuse him homage?[260]

The Reformation would engender just such a popular mass movement, a cross-class rebellion in Germany. In Italy, the people and a populist conquering prince would form the revolutionary coalition that would act and change the world.

Machiavelli writes, "Let your illustrious house therefore take up this enterprise with that spirit and that hope with which just undertakings are taken up, so that under its insignia this fatherland may be ennobled."[261] Liberation was only the first stage in Machiavelli's project to revive the Roman territorial republic and renovate it for Tuscany and modern times.

[257] Connell ed., 121–22.
[258] Connell ed., 122.
[259] "It is necessary before other things, as the true foundation of every undertaking, to provide yourself with your own arms, for you cannot have more loyal or truer or better soldiers." Connell ed., 122.
[260] Connell ed., 122.
[261] Connell ed., 123.

2

# The Spaces of Fortune

Can anything new be said about Machiavelli? Perhaps not, but it may be possible that old things have been forgotten – things so long lost that, when found again, seem to possess all the freshness of novelty. The political thought of Machiavelli has proven both singularly elusive and singularly gripping as it persists, continuing to enthrall successive generations in the manner of some legendary mystery. And the mystery remains despite the fact that Machiavelli wrote with unprecedented clarity and directness, in an unseasonably astringent prose, remarkably shorn of the rhetoric, the elaborate grandiloquence that was the humanist calling card of the age.[1] He promises to reveal to the attentive reader neither more nor less than the "verrita effetuale della cosa," the real truth of the matter. Yet, all the while, he remains distant and recedes from view more each year. Machiavelli's thought is out of reach in part because we have attempted to understand his ideas and writings according to categories bequeathed to us by the Enlightenment or in terms of the inexorable advance toward a system of sovereign nation-states.[2] The Enlightenment and the nation-state stand between Machiavelli and us, enveloping his thought in shadows. The legacy of the Enlightenment is a marked tendency to analyze, to interpret, and to evaluate political thinking in terms of light, according to metaphors and categories derived from light's qualities, to hold illumination to be the equivalent of truth

[1] Contrast Leonardo Bruni's *Laudatio Florentinae Urbis* with Machiavelli's *The Prince* or *Discourses on Livy*. The original text of the *Laudatio* is found in Hans Baron, *From Petrarch to Leonardo Bruni: Studies in Humanistic and Political Literature* (Chicago: University of Chicago Press, 1968), 232–63. For more on civic humanism, see Quentin Skinner, *The Foundations of Modern Political Thought* (Cambridge: Cambridge University Press, 1978), I.

[2] An imaginative alternative has been proffered by J. G. A. Pocock, *The Machiavellian Moment: Florentine Political Thought and the Atlantic Republican Tradition* (Princeton: Princeton University Press, 1983).

and consequently deploy standards of conceptual clarity and transparency.[3] To understand Machiavelli and the early modern political period of which he was a part, we need to think, not of light, but of space, of the space of politics, the space of sovereignty – the space of territory.[4] It behooves us to think of the palpable, unsettling presence of another beside one, of the physical extension of the territorial unit, of city walls falling and sovereignty extending outward in space, of the spaces where decisions are made, of maps and borders, and of mountains and seas, the vistas and landscapes of Machiavelli, the indefatigable political walker. And the variegated map of early modern Europe presented much to stimulate and excite the political *flâneur*.

It is likewise with the nation-state, an entity that has also dominated and delimited the interpretive horizon, blocking the most spectacular view. Both Risorgimento scholarship and the twentieth-century reaction[5] – that Machiavelli either envisioned some form of the Italian nation-state or had absolutely nothing to say about the Italian crisis – overlook the composite state and the dazzling variety of political forms that littered the map of Europe. Hence, it is advisable to think back to a time when the political imagination was not constrained by the paradigm of the nation-state, to think of empires, composite states, city republics, and confederations uniting to form larger political units, to think not of the nation-state but of the regional state. Most states of the early modern period were composite or regional states, meaning they were patchworks of provinces and cities and smaller in size than the modern nation-state. "If sixteenth century Europe was a Europe of composite states, coexisting with a myriad of smaller territorial and jurisdictional units jealously guarding their independent status, its history needs to be assessed from that standpoint rather than from that of the society of unitary nation states that it was later to become."[6] The development of the sovereign nation-state and the ideas that traveled it its wake remain the focus of political theorists' attention while alternative forms of political organization are dismissed as anachronistic.

Students of political development call war the mother of all states.[7] War raged all around Machiavelli and his fellow Italians. In 1494, again in 1512, and

[3] For more on this aspect of the difficulties of post-Enlightenment interpretation, see Louis Althusser, *Machiavelli and Us*, ed. Francois Matheron (London: Verso Press, 1999) and Freidrich Meinecke, *Machiavellism: The Doctrine of Raison d'État and Its Place in Modern History*, trans. Douglas Scott (New Haven: Yale University Press, 1957).

[4] "The peculiar feature of Europe's political past is the unusual perception that states should be viewed as primarily *territorial* rather than legal, cultural, or dynastic entities." *Conquest and Coalescence: The Shaping of the State in Early Modern Europe*, ed. Mark Greengrass (London: Edward Arnold, 1991), 1.

[5] Especially the civic republican reaction deriving from Hans Baron, *The Crisis of the Early Italian Renaissance: Civic Humanism and Republican Liberty in an Age of Classicism and Tyranny* (Princeton: Princeton University Press, 1966).

[6] John Elliott, "A Europe of Composite Monarchies," *Past & Present* 137: 49–69.

[7] Charles Tilly, *The Formation of National States in Western Europe* (Princeton: Princeton University Press, 1975).

repeatedly until 1559, the republics, petty principalities, and tentatively territorial states that comprised Renaissance Italy were invaded and subjugated by the great emerging states beyond the Alps. The "barbarous" monarchs of feudal Europe turned Renaissance Italy into their personal peninsular battlefield, having militarily overpowered the Italian princes, not to mention republics – one of the "real truths" Machiavelli laid bare in *The Prince*.[8] So began *la rovina nostra*, the decades of destruction and suffering that would culminate in the notorious and savage sack of Rome in 1527, the year Machiavelli and, some might say, the Renaissance itself died.[9] For centuries thereafter, the Italian peninsula would be a conquered land, relegated to the periphery, haunted by vanished glories while history marched onward to France, Britain, Spain, and Prussia. Machiavelli, then, was blessed or cursed to draw breath during one of the decisive turning points of political history; the Italian Wars were the birth agonies of a new political world – the modern one.[10]

The Italian Wars spelled the end of Italy. The epochal defeat of the Italians, *Le Calamita d'Italia*, as it came to be known among Italian writers of the 1520s and 1530s,[11] was the crisis Machiavelli faced. And this crisis would not fade; it would endure and become part of the collective memory of Italian political thinkers. From the grave opening words of Guicciardini's *Storia d'Italia* – "Now begin the years of our ruin and our suffering" – to the "hundred cities of silence" Gramsci mourned in his prison cell during the long night of fascism four hundred years later, the same underlying question reverberates: Why was Italy not unified like France? Both *The Prince* and the *Discourses on Livy* may be read in light of that all-consuming obsession. "The Italian fascination with the state can be traced back to the days of Machiavelli and Guicciardini, as they and many of their contemporaries were compelled to meditate upon the epochal defeats of the Italians in the late fifteenth and early sixteenth centuries."[12]

[8] Richard Mackenney, *Sixteenth Century Europe: Expansion and Conflict* (London: Macmillan Press, 1993). This is one of the main points of *The Prince*.

[9] See Jacob Burckhardt, "The Fall of the Humanists," in *The Civilization of the Renaissance in Italy* (New York: Harper and Row, 1975), II, and Francesco De Sanctis, *Storia della letteratura italiana*, 2 vols., ed. B. Croce (Bari: Laterza, 1958), II. Giorgio Spini aptly labels the chapter of his vast *Storia dell'eta moderna* the *Finis Italiae* – the "End of Italy" (Turin: Einaudi, 1965), I: 121. On the severity of the Italian Wars and their long-term effects, see also Eric Cochrane, *Historians and Historiography in the Italian Renaissance* (Chicago: University of Chicago Press, 1981), 175, 184–5.

[10] There is general agreement on the significance of the sixteenth century, from Hans Morgenthau and Hedley Bull to Otto Gierke and Fernand Braudel. See also Richard Mackenney, *Sixteenth Century Europe: Expansion and Conflict*, and Perry Anderson, *Lineages of the Absolutist State* (London: Verso Press, 1978).

[11] Eric Cochrane, *The Late Italian Renaissance 1525–1630* (London: Macmillan Press, 1970), introduction.

[12] Anthony Molho, "Recent Works on the History of Tuscany: Fifteenth to Eighteenth Centuries," *Journal of Modern History* 62 (1990): 57–77.

While Machiavelli was working on *The Prince* and the *Discourses* from 1512 to 1519, city republics were in dire shape and republicanism, in theory and practice, began to beat a rapid retreat for the next two hundred years. Writers from the period 1512 to 1527 bear witness to a decisive break in mentality: the entry of the monarchs of northern and western Europe, "the barbarians," had undermined the theoretical and practical basis of the communal and republican governments.[13] Individuals such as Machiavelli; his friend Francesco Vettori; Donato Gianotti, a generation younger; and the Venetian Gasparo Contarini, who defended popular government, lately so ill favored by fortune, were lonely figures living in the shadow of monarchs.[14]

The realities of the time forced a generation to reexamine previous beliefs and values.[15] It was hard to deny that the sun had set on republics. Monarchy had success and power on its side, exemplified by the sudden and overwhelming dominance of France, which had emerged as the preeminent force on the European stage after an extraordinary round of territorial expansion incorporating Champagne, then Brittany, Gascony, Burgundy, and Flanders. As a consequence, monarchy seemed to be the inevitable political order of the future. "Secessionist movements culminating in some form of republic were looked at askance in the monarchical world of early modern Europe."[16] City-states were unable to compete in the endless rounds of wars, which also diminished the economic trade and production upon which cities depended. "The scale of their human material resources could no longer compete with those mobilized by the larger monarchies."[17] The existence of urban leagues did not increase or deepen ties among cities, which could not rely on the loyalty of resentful subject towns.[18] Circumstances seemed so inimical to republics that, as devout a republican as Donato Giannotti was, he had to admit that the greatness of republics

[13] J. N. Stephens, *The Fall of the Florentine Republic 1512–1530* (Oxford: The Clarendon Press, 1983), 47. For more on the state of republicanism in Italy in the sixteenth and seventeenth centuries, see Vittor Ivo Comparato, "From the Crisis of Civil Culture to the Neapolitan Republic of 1647: Republicanism in Italy between the 16th and 17th Centuries," in *Republicanism: A Shared Heritage* I, *Republicanism and Constitutionalism in Early Modern Europe*, eds. Martin van Gelderen and Quentin Skinner (Cambridge: Cambridge University Press, 2002), 169–93.

[14] Donato Gianotti, *La Reppublica Fiorentina*, Manuscript #565, Holkham Library, Holkham Hall; *Il modo di riordinare*, Manuscript #566, Holkham Library, Holkham Hall. See William J. Bouwsma, *Venice and the Defense of Republican Liberty: Renaissance Values in the Age of the Counter-Reformation* (Berkeley: University of California Press, 1968).

[15] See Antonio Gramsci, *The Prison Notebooks*, ed. and trans. Quintin Hoare (London: Lawrence & Wishart, 1971), II, notebook 4, note 8.

[16] H. G. Koenigsberger, "Republicanism, Monarchism, and Liberty," in *Royal and Republican Sovereignty in Europe*, ed. R. Oresko (Cambridge: Cambridge University Press, 1997), 58.

[17] Wim P. Blockmans, "State Formation in Preindustrial Europe," in *Cities and the Rise of States in Europe A.D. 1000 to 1800*, ed. Charles Tilly (Boulder: Westview Press, 1994), 245.

[18] Thomas A. Brady, "The Rise of Merchant Empires, 1400–1700: A European Counterpoint," in *The Political Economy of Merchant Empires: State Power and World Trade, 1350–1750*, ed. James D. Tracy (Cambridge University Press, 1991), 140.

did not consist in breadth of empire but peace at home.[19] Freedom and territorial expansion appeared incompatible. Republicanism was a form of government confined to urban city-states, useless in an era of territorial expansion. This would remain the favorite stock criticism of republics for the next three hundred years, until James Madison faced the issue in *The Federalist* Nos. 10, 14, and 39.

Furthermore, the splendid ceremonial ethos of court society flourished all around city republics. Emotionally reassuring and allied with the landowning military nobility, monarchism was a tough competitor. Republicanism was psychologically challenging and increasingly appeared a strange, intellectual, and elite conceit.[20] Republicanism was losing the war of ideas. The lack of a coherent republican theory for larger states engendered a loss of confidence. In a few decades, the great popular families of Florence, the most staunch and proud of republics, would genuflect and sacrifice the equality of twenty generations and with it the conviction that rule by the many was superior to rule by one, and the free state of Florence would be transformed into a patrimonial grand duchy.[21]

The political future was not so clear in the early sixteenth century, when Italian intellectual life veered between bitter recrimination and ardent hope. Many yearned for a savior, military or religious, and blamed the Church and incompetent princes for the ruin and defeat.[22] Equally, if not more significant, movements were afoot; there was life in municipal republicanism yet. For example, territorial monarchies were still fragile patchworks in 1520, the year that Castile, the heart of the Spanish royal realm, trembled on the verge of civil war. The *Comunero* movement was close to turning the kingdom into a country of city republics. Inspired by Italian city republics, the towns of Toledo and Valladolid formed a league and set up a junta general. One by one other Castilian towns followed suit as citizens formed communes and appointed

[19] D. Giannotti, "Della repubblica de' Viniziani," in *Opere politiche e letterarie de Donato Gionnotti*, ed. F. L. Polidori (Florence: Le Monnier, 1850), II, 14.

[20] Whether or not there really was genuine republicanism rather than elite oligarchy in Renaissance republics remains open to debate. Did it really matter to people at that time if they lived under a republic or principality? "In Florence, one of the most popular and broadly based republics of the day, approximately 3,000 of the city's total of 20,000 inhabitants were qualified to hold public office at the beginning of the fifteenth century." See Nicolai Rubinstein, "Oligarchy and Democracy in Fifteenth Century Florence," in *Florence and Venice: Comparisons and Relations*, 2 vols., eds. Sergio Bertelli, Nicolai Rubinstein, and Craig Hugh Smith (Florence: La Nuova Italia Editrice, 1979–80), I: 107.

[21] Of course that is not saying very much. See Rubinstein, "Oligarchy and Democracy."

[22] For historical accounts of Machiavelli's contemporaries, see Francesco Guicciardini, *Storia d' Italia*, 3 vols., ed. E. Mazzanti (Milan: Garzanti, 1988); Francesco Vettori, *Sommario della Istoria d'Italia, 1511–1527* in Francesco Vettori, *Scritti storici e politici*, ed. E. Niccolini (Bari: Laterza, 1972); Jacopo Nardi, *Istorie dell città di Firenze*, 2 vols., ed. A. Gelli (Florence: Le Monnier, 1988); P. Parenti, *Storia fiorentina*, 2 vols., ed. A. Matucci (Florence: Olschki, 1994); in addition to Niccolò Machiavelli, *Istorie Fiorentine*, ed. F. Gaeta (Milan: Feltrinelli,1962), book 7, 117.

officials.[23] The Castilian junta general boldly declared that the cities together were the kingdom, the political order of which the king was no longer the head.

In Florence, territorial expansion was a burning issue in the early sixteenth century as Francesco Guicciardini, Francesco Vettori, and Machiavelli, among others, energetically analyzed its glories and its practicalities.[24] Over the course of the fourteenth and fifteenth centuries, the Florentine republic had expanded far into the surrounding territory,. By the 1430s, Florence ruled over nearly all of Tuscany[25] and had increased the dimensions of its state, which extended from Arezzo to the Tyrrenian Sea, to 12,000 square kilometers. Florence was the mistress of a number of cities, including Arezzo, Fiesole, Pistoia, and Pisa. During the second and third decades of the fifteenth century, Florence organized and consolidated the territories it had acquired, a process of administrative reorganization of which the great Catasto of 1427 stands as the enduring testament.[26] At the same time, humanist chancellors exhorted Florentines to look upon their city as destined to be the leader of a Tuscan state in central Italy in emulation of ancient Rome.[27]

In 1494, encouraged by the French invasion, Pisa rebelled against Florence. For Florentines, the rebellion of Pisa was as grave a disaster as the French invasion.[28] Now, more than ever, expansion was a necessity if the republic was to survive.[29] Perceptive Italians realized that the only solution to recurring

[23] Koenigsberger, "Republicanism, Monarchism, and Liberty," 69.

[24] *Dialogue on the Government of Florence*, trans. Alison Brown (Cambridge: Cambridge University Press, 1994), 87, especially the Capponi criticism of the Medici regime for failing to expand the Florentine republic. See also Vettori, *Sommario della storia d'Italia*. See also Stephens, *The Fall of the Florentine Republic*, 154.

[25] With the exception of the territories of Siena and Lucca.

[26] Molho, "Recent Works on the History of Tuscany."

[27] The classic statement is Leonardo Bruni, *Laudatio Florentinae Urbis*, found in Hans Baron, *From Petrarch to Leonardo Bruni: Studies in Humanistic and Political Literature* (Chicago: University of Chicago Press, 1968), 232–63; "Panegyric to the City of Florence," in *The Earthly Republic: Italian Humanists on Government and Society*, trans. B. G. Kohl, eds. B. G. Kohl and R. G. Witt (Philadelphia: University of Pennsylvania Press, 1978), 135–75. See also Coluccio Salutati, "De Tyranno," in *Humanism and Tyranny: Studies in the Italian Renaissance*, ed. Ephraim Emerton (Cambridge, MA: Harvard University Press, 1925), 70–116; Alamanno Rinuccini, *De Libertate,, Humanism and Liberty: Writings on Freedom from Fifteenth Century Florence*, trans. and ed. Renée Neu Watkins (Columbia: University of South Carolina Press), 193–223; N. Rubinstein, "The Beginnings of Political Thought in Florence: A Study of Medieval Historiography," *Journal of the Warburg and Courtauld Institutes* 5 (1942): 198–227; and Michael Hörnqvist, "The Two Myths of Civic Humanism," *Renaissance Civic Humanism: Reappraisals and Reflections*, ed. James Hankins (Cambridge: Cambridge University Press, 2000).

[28] Francesco Guicciardini, *Storie fiorentine dal 1378 al 1509* (Bari: Laterza, 1931), 99. See also H. C. Butters, *Governors and Government in Early Sixteenth Century Florence 1502–1519* (Oxford: Clarendon Press, 1985), 26–31; 86–89. See also *Consulte e pratiche 1505–1512*, ed. D. Fachard (Geneva: Droz, 1988), 49–51. On August 19, 1505, four speakers refer to the reconquest of Pisa as the universal desire of the city.

[29] Niccolò Machiavelli, *Discourses on Livy*, trans. and eds. Harvey C. Mansfield and Nathan Tarcov (Chicago: University of Chicago Press, 1997) (hereinafter *Discourses*), Book III, chapter 27, "How

invasions lay in the creation of larger states.[30] Pope Leo de Medici, "he who wished to return Italy to its ancient freedom,"[31] from 1513 to 1517 advocated a territorial policy combining old Florentine ambitions with new international political realities.[32] With the election of Leo as pope in 1513, the Medici had gained control of Rome as well as Florence and assumed de facto leadership of the Italian states. Rumors flew about the plans being laid in Florence and Rome, for the time was ripe for action.[33] In 1516, it was rumored that Leo X had made Lorenzo Governor of Tuscany, including Siena and Lucca as well as Florence, "fueling hope that a prince might yet conquer Tuscany for Florence."[34] For a time, plans and expectations centered on his nephew Lorenzo, the prospective conqueror of a state in central Italy.[35]

As boundaries shifted, provinces merged, towns rebelled, and new states were forged, Machiavelli, in exile at his farm outside Florence, realized that the practical and theoretical problem of the hour and of the age was the question

One Has to Unite a Divided City; and How That Opinion Is Not True That to Hold Cities One Needs to Hold Them Divided," 274–6, Francesco Vettori, *Sommario*.

[30] See Machiavelli, *The Prince*, chapter 3; the *Discourses* Book II, chapter 19, "That Acquisitions by Republics That Are Not Well Ordered and That Do Not Proceed According to Roman Virtue Are for Their Ruin, Not Their Exaltation," 172–5; *Discourses* Book III, chapter 12, "Such obstinacy also arises from the natural hatreds that neighboring princes and neighboring republics have for one another, which proceeds from the ambition to dominate and from jealousy for their state – especially if they are republics – as happened in Tuscany," 247; Guicciardini, *Ricordi*, B. 113; 215 (R. Spongano).

[31] Machiavelli, *Discourses* Book II, chapter 22, 179–80. "Pope Leo did not cede to the king's wishes but was persuaded by those who counseled him (according to what is said) to stay neutral, since they showed him that in this policy consisted certain victory. For it did not suit the Church to have powers in Italy, neither the king nor the Swiss, but since he wished to return it to its ancient freedom, it was necessary to free it from servitude to both the one and the other." See also *Discorsi sopra la prima Deca di Tito Livio*, 2 vols., ed. Francesco Bausi (Rome: Salerno Editrice, 2001), I: 450–3. Also known as the "liberty of Italy" policy that Machiavelli explicitly refers to in chapter 11 of *The Prince*. Francesco Vettori, who was the Florentine Ambassador to Rome, kept Machiavelli apprised of Leo's territorial plans. See the two letters of December 20, 1514, in *Machiavelli and His Friends: Their Personal Correspondence*, trans. and eds. James B. Atkinson and David Sices (De Kalb: Northern Illinois University Press, 1996), 303–306. See also Stephens, 33.

[32] See letter of Machiavelli to Vettori of June 20, 1513: "The pope is young, rich, and rightly eager for glory – and that the pope, aware of his brothers' and nephews' lack of territory is unwilling to give any less account of himself than did his predecessors." Atkinson and Sices, 237. Gaeta interprets this statement as "a hint at a concentration of Medici power that might lead to a powerful state." Atkinson and Sices, note 7. See also letter of July 12, 1513, 242.

[33] When Cardinal Giovanni de Medici was elected Pope Leo X, Florentines celebrated in the belief that Florence would enjoy preeminence in Italy. Machiavelli refers to these celebrations in his letter of March 13, 1513, to Vettori. I refer readers back to Chapter 1, which discussed Machiavelli's hopes that the Medici ascendancy might result in the expulsion of invaders and the opportunity for a new beginning in Florence. See also Machiavelli's letter to Vettori dated February or March 1514, Atkinson and Sices, 283.

[34] P. Parenti, *Historia fiorentine*, B.N.F. II, IV, 171, fol. 127v.

[35] See the prologue to the legal instrument by which the Otto di Practica elected Lorenzo Captain-General of the Florentines, which emphasized that it was necessary "so that the city might be increased." ASF Cento Reg. 4 fol. 7 v.

of how to enlarge the republic. To save a free way of life in Italy, Machiavelli would need to wage a two-front war – a war fought on the timeless plateaus of political thought and on the ground, in Tuscany. Understanding the ramifications of Leo's territorial policy more deeply than any of his contemporaries, Niccolò Machiavelli grasped the immediate opportunity for political action as well as the larger issues at stake. He conceived of a daunting project, grounded in ancient learning and modern politics, to remedy the Italian situation and *modernize republics* for the brave new world of territorial monarchies on the move. Machiavelli intended *The Prince* and the *Discourses* "to work the good" as manifestos that would inspire and guide the founding of an unprecedented republic for a new political era.[36] From Florentines' ancient memories of Roman and Etruscan republics, he would awaken a territorial republican state, "so that the spirits of youths who may read these writings of mine can flee the latter and prepare themselves to imitate the former at whatever time fortune may give them the opportunity for it."[37] It was to the prospective conqueror of a state in central Italy that Machiavelli dedicated *The Prince*.[38] The *Discourses*, dedicated to loyal republicans, is an attempt to extend the concepts, institutions, and ideology of civic republicanism to large states; it is also an intensive examination of the consolidation and maintenance of the territorial republican state, the founding of which would have been the ultimate fulfillment of the Renaissance.

The traditional reasons given for the delayed development of the Italian state are the Italian invasions, the transatlantic voyages, and the rise of the northern European monarchical states, three things that are critical to understanding Machiavelli's political thought. His thought is a response to the Italian invasions and the rise of territorial states, and he is conscious of the transatlantic voyages of discovery, of the new lands and seas transforming the European geographical imagination. Machiavelli promised to take readers of the *Discourses* on a voyage to antiquity as momentous as the voyages of discovery crossing the Atlantic, it being "no less dangerous to find new modes and orders than to seek unknown seas and lands."[39] As gold would pour into Spain from South American mines to

[36] Maurizio Viroli also sees Machiavelli fighting an intellectual battle. Viroli chooses to focus on education as Machiavelli's method or weapon of choice, which is accurate, but he does not address Machiavelli's focus on the problem of expansion and how to adapt urban politics to a territorial state – the content of the teaching Machiavelli hoped to impart to those more loved by heaven. See Viroli, "Machiavelli and the Republican Idea of Politics," in *Machiavelli and Republicanism*, eds. Quentin Skinner, Gisela Bock, and Maurizio Viroli (Cambridge: Cambridge University Press, 1990), 171. "The possibility of seeing the good and free city taking the place of princely government was dependent upon the appearance on the stage of a truly political man capable also of using the art of the state if necessary. Machiavelli's purpose was to educate such a great political man. He believed that only then would a free city again come into existence."

[37] Niccolò Machiavelli, *Discourses on Livy*, Book II, preface, 125.

[38] This has been averred by historians ranging from the mid-century Italian Federico Chabod to the English J. N. Stephens, but has gone unnoticed by political theorists.

[39] *Discourses*, Book I, preface, 5.

finance the Hapsburg monarchy's domination of Italy, so Machiavelli would mine the gold buried in the past, in the Roman historian Livy and in the institutions and policies of the Roman territorial state, for "it will at least show the path to someone who, with more virtue, more discourse and judgment, will be able to fulfill this intention of mine."[40] And his discoveries in the *Discourses* were intended to take effect in a particular political space, not the space of Florence, not the space of Italy, but the space of Tuscany. The *Discourses* would show the way to a new political entity ("I have decided to take a path as yet untrodden by anyone"[41]), an extended republic in Tuscany ordered with the guidance of France and Rome, with borders extending across the Apennines to the Adriatic coast, with rich and poor challenging one another peacefully, exercising a decisive foreign policy, with *libertà* and *vivere civile* for all citizens, not only city dwellers. The walls of Florence would fall so that the city and its empire would unite as one territorial sovereignty. Tuscany would have been a republic, rather than a grand duchy, reconciling freedom and territorial expansion, a supreme fusion of ancient Rome and modern France.[42] This was Machiavelli's enterprise: "And although this enterprise may be difficult, nonetheless, aided by those who have encouraged me to accept this burden, I believe I can carry it far enough so that a short road will remain for another to bring it to the destined place."[43]

## THE THREE PROBLEMS OF AN EXTENDED REPUBLIC

For republicanism to take the offensive into modernity, it had to be able to govern multiple cities and territories as the Roman republic did. An extended territorial republic faced three problems.[44] The first problem was the republic's

[40] Ibid. For a discussion of the first chapter of Book I, which does not appear in the first two print editions of the *Discourses*, see Harvey C. Mansfield, Jr., *Machiavelli's New Modes and Orders* (Ithaca: Cornell University Press, 1979), note 25.

[41] Ibid., Book I, preface.

[42] See Gramsci's *Prison Notebooks*, notebook 5, note 127, discussion of Chapter 3 of *The Prince*, Machiavelli's anecdote to the Cardinal of Rouen. According to Gramsci, Machiavelli "admired the way in which the monarchy (Louis XI) had made a unitary state out of France, and he used the actions of the French state as a comparison for Italy."

[43] Book I, preface, 6.

[44] I do not claim that Machiavelli is a prophet of Italian nationalism. I do claim that the invasions of Italian states by territorial monarchies and his enforced retirement, which gave him the time and intellectual space to think creatively, convinced Machiavelli that republics and especially Florence had to enlarge themselves, as Rome did, otherwise they would remain vulnerable to stronger states. If this makes Machiavelli a prophet of extended republicanism or of a form of Tuscan or central Italian consolidation, so be it. For readings of Machiavelli as proponent of nationalism, see Francesco de Sanctis, *Storia della letterature italiana*, ed. B. Croce, 2 vols. (Bari: Laterza, 1958), I: 141–92, and Myron P. Gilmore, *The World of Humanism 1453–1517* (New York: Harper and Row, 1952), 132–6. See also Vincent Illardi, "Italinita Among Some Italian Intellectuals in the Early Sixteenth Century," in *Studies in Italian Renaissance Diplomatic History*, ed. Vincent Ilardi (London: Variorum Reprints, 1986).

expansion in space, how to incorporate countryside and cities under one territorial sovereignty.[45] The next problem was the survival and endurance of the new state, essentially how to modernize republics for a new international situation, accomplished with devices such as dictatorship in war, multiple sources of power over foreign policy, reason of state, and citizen soldiers.[46] The third problem involved grafting participatory politics, institutions, and ideology onto an extended territory, for which Machiavelli looked to the public life of ancient Rome and the institutions of modern France.[47]

## THE SEARCH FOR ANSWERS

Machiavelli set out to solve the three problems of an extended republic in the *Discourses on Livy*. Ostensibly a learned commentary on the first ten books of Titus Livy,[48] The *Discourses* resembles a work of comparative government rather than a tightly reasoned philosophical or rhetorical tract.[49] As such, it stands alone in a brief historical space between two ideological worlds or traditions of political thought – the civic republican tradition of the past and the social contract one to come. The bulk of the *Discourses* was written after *The Prince*, and the task Machiavelli set for himself was a Herculean endeavor[50] – to determine how government of the many could survive in an extended territory and, in so doing, discover an unknown political form for a new world. The answer would not come by illumination but by exploration, for the *Discourses* is

[45] *Discourses* Book I, chapters 1, 7, 8, 14, 29, 39, 40, and 55; Book II, chapter 4.

[46] Book I, chapters 1, 15, 20, 33, and 38; Book II, chapters 1–30; Book III, chapters 3, 5, and 7.

[47] Book I, chapters 1–6, 9, 10, 16–19, 25, 26, 55, and 58; Book III, chapters 24, 29, 40, and 41.

[48] Fergus Millar has noted that Machiavelli purposely limited himself to Livy's first ten books, which concern the origin and founding of Rome, despite the fact that others were available. Titus Livy, *The Rise of Rome: Books 1–5*, trans. T. J. Luce (Oxford: Oxford University Press, 1998).

[49] The two are not mutually exclusive, of course, but the distinction is exemplified by the difference between Locke's *Second Treatise* and the *Declaration of Independence*. It is one of Machiavelli's many accomplishments that *The Prince* falls somewhere in between.

[50] The dating of the composition of *Discourses* and *The Prince* is addressed in Chapter 1. Briefly, we know *The Prince* was written in 1513 and underwent revisions until 1516. It is likely work on the *Discourses* also began in 1513. The *Discourses* does not mention Tacitus' *Annals*, first published in 1515, until Book III. Work on the *Discourses* may have continued until 1519. The *Discourses* contains references to Cosimo Rucellai and Emperor Maximilian, who were both dead by 1519. See Sydney Anglo's *Machiavelli: A Dissection* (New York: Harcourt Brace Inc., 1970), 84, for the most cogent discussion of the dates of composition. Speculation that Machiavelli underwent an intellectual evolution toward republicanism does not appear warranted by a close reading of *The Prince* and the *Discourses*. Moreover, the cross-references among all four major works render theories of an intellectual volte-face unlikely. His thought on the fundamental issues of republican expansion and survival in Italy remained the same through the period of composition of *The Prince* and *Discourses*. In addition, Machiavelli's mode of thought – his manner of reasoning in the form of parallel exempla and dialectical procedures – remains unchanged in all his major works. See Kenneth C. Shellhise, *Tacitus in Renaissance Political Thought* (Chicago: University of Chicago Press, 1976), 3–10, 66–84; and Felix Gilbert, "The Composition and Structure of Machiavelli's *Discoursi*," in *Journal of the History of Ideas* 14, I (1953): 136–56.

a book of space rather than light, surveying republics ancient and modern, crossing confederacies, ranging over the Tuscan and Swiss leagues, sweeping through principalities and signores to empires Roman and Ottoman, and the kingdoms of Spain and France, comparing, contrasting, evaluating the suitability of forms, the institutions, the policies, for the modern extended republic. It appears Machiavelli considered comparative historical analysis a congenial way to discover practical remedies for contemporary difficulties, for he wrote to his friend Francesco Vettori on August 25, 1513, "I do not know what Aristotle says about confederated republics, but I certainly can say what might reasonably exist, what exists, and what has existed."[51] Although the problems were modern, the method of the search, comparative historical analysis, had an ancient guide. In this, Polybius was Machiavelli's Virgil. He relied on Polybius as much as Livy, for Polybius' magisterial analytic study of the existing republics of Sparta, Carthage, and Rome served as a model to surpass.[52] On a crucial detail, however, Machiavelli wisely followed Livy rather than Polybius, who had failed to grasp the distinctiveness of the Roman political experience, its rootedness in place, and who had mistakenly applied to the Roman polity the label of Greek polis.[53] To fully articulate the Roman experience, Livy used the proper Latin term *urbs*, with its connotations of territory and place, when discussing the Roman Empire. It was the *urbs Romana*, not the *civitas Romana*, and this would prove enormously important in shaping Machiavelli's vision of Rome.

The *Discourses* shows signs of inadequate revision, being somewhat haphazard in structure.[54] It is divided into three books. Book I discusses the institutions and policies inside Rome, or what is now properly termed domestic policy. Book II deals with foreign policy, and Book III concerns individual political actions as

[51] He continues: "I recall having read that the Etruscans held all Italy as far as the Alps until the Gauls drove them out of Lombardy." Atkinson and Sices, 258.

[52] The preface to Book I, the first six chapters, and the abandonment of the ideal in favor of discussing real and existing republics each had a precedent in Polybius' *Histories*. See A.D. Momigliano, "Polybius' Reappearance in Western Europe," in *Essays in Ancient and Modern Historiography* (Oxford: Oxford University Press, 1977), 79–98.

[53] The Greek polis has no equivalent in Roman political thought, which could not conceive of the political community in the abstract, without territory attached. See Moses Finlay, *Politics in the Ancient World* (Cambridge: Cambridge University Press, 1983), 84. For a remarkable exploration of the fundamental differences in Greek and Roman political thought, focused on the concept of property, see Eric Nelson, *The Greek Tradition in Republican Thought* (Cambridge: Cambridge University Press, 2004).

[54] According to Francesco Bausi, the *Discourses* is hard to follow because of its provisional and unfinished character. N. Machiavelli, *Discorsi sopra la prima Deca di Tito Livio*, 2 vols., ed. F. Bausi (Rome: Salerno Editrice, 2001), ix–xxxiii. In contrast, Harvey Mansfield claims that what appears unfinished is a ruse designed to trick readers unable to read closely enough to understand the text's esoteric message. Harvey C. Mansfield, *Machiavelli's Modes and Orders: A Study of the Discourses on Livy* (Ithaca: Cornell University Press, 1978). There is much debate over whether the first paragraph of the preface to Book I is provisional or definitive, for instance. See Carlo Pincin, "Le prefazione la dedicatoria dei *Discorsi* di Machaivelli," in *Giornale storica della letteratura italiana* 143 (1966): 72, and Mansfield, *Machiavelli's Modes and Orders*, 25.

well as matters relevant to Books I and II. However, that division does not tell us much because the reality is more complex, as similar topics and themes are discussed in all three books. Some chapters form independent sections, or are linked by interrelated arguments and cross-references, or develop points from earlier chapters.[55] The main point to be taken is that there is little design behind the edifice, which appears to have expanded organically in response to waves of inspiration, unlike the scrupulously constructed *The Prince*, so a structural analysis yields little valuable information.[56] Many chapters of the *Discourses* are related to chapters in *The Prince*, but the full extent of their interlocking relationship becomes apparent only after walking with Machiavelli.

The view from the preface to Book I is unsurpassed, as it takes the reader over and across unknown lands and seas yet to be discovered and backward to the ruins of the city of Rome. Machiavelli has the audacity to draw the far-fetched contemporary comparison that the search for new modes and orders is as dangerous an endeavor as the voyages sailing out to the unknown. Like Columbus, Cortes, and Prince Henry the Navigator, he has embarked on an undiscovered path, one "untrodden by anyone."[57] Thus, Machiavelli intentionally distances himself from the quattrocento humanist tradition[58] and finds camaraderie with the bold explorers of the dawning age of discovery. Here, in the preface, there is no timeless philosophical distance, but present urgency. He envisions someone translating his thought into action:[59]

> If poor talent, little experience of present things and weak knowledge of ancient things make this attempt of mine defective and not of much utility, it will at least show the path to someone who with more virtue, more discourse, and judgment, will be able to fulfill this intention of mine, which, if it will not bring me praise ought not to incur blame.[60]

Who is the intended reader? Who could follow the path, fulfill his intention, and carry the burden to the destined place? The *Discourses* is dedicated to Zanobi Buondelmonti and Cosimo Rucellai, young aristocrats of republican leanings who frequented the philosophical and political discussions hosted by Cosimo Rucellai in his gardens. Machiavelli first attended the discussions in 1514 or 1515 and became a frequent attendee by 1516. The "seminars" in the

[55] Book I, chapter 38 and Book II, chapter 15 comprise just one example of many available.

[56] Federico Chabod, "Machiavelli's Method and Style," in *Machiavelli and the Renaissance*, trans. David Moore (New York: Harper and Row, 1965). For a discussion of the evidence that Machiavelli was revising the *Discourses* at the time of his death, see Cecil H. Clough, "Father Walker's Presentation and Translation of Machiavelli's *Discourses* in Perspective," in *The Discourses of Machiavelli*, ed. and trans. Leslie J. Walker, SJ (London: Routledge and Kegan Paul, 1975), xv–xlviii.

[57] *Discourses*, Book I, preface, 5.

[58] As John Najemy has noted, "A 'humanist' who wrote almost no Latin was almost a contradiction in terms." *Between Friends* (Princeton: Princeton University Press, 1993), 59.

[59] Mansfield, too, has noticed that "Rather than speaking abstractly, Machiavelli is trying to persuade an audience."

[60] *Discourses*, Book I, preface, 5.

Rucellai Gardens, the *Orti Oricellari*, provided Machiavelli with the intellectual camaraderie he had lacked during his isolating exile, and they inspired him to compose literary as well as political works.[61] Unlike those writers consumed with ambition who dedicate their works to princes, Machiavelli tellingly writes, "So as not to incur this error, I have chosen not those who are princes but those who for their infinite good parts deserve to be."[62] Those members of the Circle who deserved to be princes were aristocrats with popular sympathies, who may have been prone to the excessive admiration for Venice shared by many Florentine elites in those years, which would explain Machiavelli's critical approach to Venice throughout the *Discourses*.[63] Machiavelli calls out to all those present and future who wish to rebuild states, but especially to "those more loved by heaven" among his contemporaries.[64] It should be noted that one of the dedicatees, Zanobi Buondelmonti, along with some other members of the Circle, participated in the republican conspiracy against Cardinal Giulio de Medici in 1522.[65] He calls upon them to take action: "That It Is Necessary to Be Alone to Order a Republic Anew or Reform It Outside Its Ancient Orders" (chapter 9). The republic must be ordered anew for a new age. What could better convey Machiavelli's distance from the old way of city-state politics? Significantly, there is the crucial recognition that we are working with preexisting material – reforming a preexisting political body,

[61] *Belfagor, La Mandragola*, a translation of a comedy by Terence, and the *Dialogo intorno alla nostra lingua* (attributed to Machiavelli) are among the literary works Machiavelli composed during the time he frequented the *Orti Oricellari*. Machiavelli mentions the *Orti* in a letter dated December 17, 1517. In it he mentions some of the other members of the Circle, including Zanobi Buondelmonti, Amerigo Morelli, Battista della Palla, Cosimo Rucellai, and Luigi Alamanni. Atkinson and Sices, 318.

[62] *Discourses*, dedicatory letter.

[63] See Pocock, who contextualizes Machiavelli in an intellectual milieu (the *Orti*) that had fallen under Venice's spell. Thus the *Discourses* is best interpreted "as a systematic dissent from the Venetian paradigm." *The Machiavellian Moment*, 185. See also Felix Gilbert, "Bernardo Rucellai and the *Orti Oricellari*: A Study on the Origin of Modern Political Thought," *Journal of the Warburg and Courtauld Institutes* 12 (1949): 101–31.

[64] There were quite a few Medici opponents who were unfortunately not any more loved by heaven than Machiavelli, including the entire Strozzi family, Luigi Alamanni, Varchi, and Cavalcanti. R. von Albertini, *Firenze dalla Republica al Prinicipato, Storia e conscienza politica* (Turin: Einaudi, 1970). Of the prefaces, Viroli states, "Here he was speaking about himself and making explicit the goal he was trying to achieve. This was the message he wanted to convey to future generations. If you want eternal glory you must devote yourself to the establishment and the preservation of the *vivere politico* following the examples of the heroes of republican politics." Viroli, "Machiavelli and the Republican Idea of Politics," in *Machiavelli and Republicanism*, 171. I argue that Machiavelli wanted to convey his message to like-minded Florentines, not merely to future generations living in a time he could not foresee.

[65] Jacopo Nardi, *Istorie della città di Firenze*, 2 vols., ed. L. Arbib (Florence: Società editrice delle Storie del Nardi e del Varchi, 1842), II: 77. Buondelmonti died in 1527. Della Palla was arrested after the fall of the last Florentine republic, the "Second Republic," in 1530, and died in prison.

founding a state on the ruins of the old – as "Rome grew from the ruin of Alba."[66]

The preface to the *Discourses* promises a stirring rediscovery of the classical past, to excite in the Italian young the desire to imitate ancient Roman political virtue. For Machiavelli's antiquity is not of culture but rather of political practice.[67] "Considering how much honor is awarded to antiquity, and how many times a fragment of an ancient statute has been bought at a high price because someone wants to have it near oneself, to honor one's house with it, and to be able to have it imitated by those who delight in that art," he can only grieve and mourn that no one imitates ancient statecraft.[68] No one imitates ancient examples "in ordering republics, maintaining states, governing kingdoms, ordering military and administering war, judging subjects, and increasing empire," not because of Christian teachings but because no one has a true knowledge of history. Florentines do not read properly, "though not getting from them [ancient histories] that sense nor tasting that flavor they have in themselves." Here is Machiavelli the teacher, the man of enormous faith in the power of ideas, for whom thought and practice are coextensive. Because of these defective reading habits, no thought is given to imitating ancient political practice.[69]

It is important to distinguish Machiavelli's notion of imitation from more pervasive conceptions. Machiavelli utilized the classical model in a unique manner, unprecedented in the annals of political thought. Machiavelli's Rome is neither a moral storehouse of exemplary actions, as it was for the civic humanists before him, nor an ideological world as it would be for the French Revolutionists to come. The goal for Machiavelli is to imitate the ancient practice of state building in order to rebuild the Florentine state.[70] The difference between prevailing modes of imitation and the one Machiavelli had in mind is exemplified by the difference between the imitation practiced by the painter Jacques-Louis David in *The Oath of the Horatii* of 1784 and that practiced by Leon Battista Alberti in the Church of San' Andrea in Mantua circa 1468. Whereas David's painting presented a visual image of heroic Roman virtue for the ideological edification of the population of revolutionary France in order revive the spirit of ancient republican virtue, Alberti's great barrel vault and triumphal arch order actually recovered Roman interior space. What

[66] *Discourses*, Book II, chapter 3, 133. This calls to mind Stephen Skowronek's use of "creative destruction" to describe American state building. *Building a New American State: The Expansion of National Administrative Capacities 1877–1920* (Cambridge: Cambridge University Press, 1982).

[67] Book II, preface.

[68] Book I, preface, paragraph 2.

[69] Ibid.

[70] See Fredi Chiappelli, "Athens and Rome/Florence and Venice," *City-States in Classical Antiquity and Medieval Italy*, eds. Anthony Mohlo, Kurt Raaflaub, and Julia Emlen (Stuttgardt: F. Steiner, 1991).

Machiavelli meant by imitation is closely related to imitation as practiced by Renaissance architects and their recovery of the ancient practice of building: the patient measuring and detailed study of ancient ruins gave rise to architectural imitation, the construction of the very spaces of the ancient world in the modern.[71] This eminently practical as well as theoretical endeavor, the recovery of the ancient art of building, which melds tradition with innovation, Machiavelli hopes to replicate on an urban and ultimately on a regional scale.

Machiavelli has written a commentary on those books of Titus Livy that have survived:

> So that those who read these statements of mine can more easily draw from them that utility for which one should seek knowledge of histories. Although this enterprise may be difficult, nonetheless, aided by those who have encouraged me to accept this burden, I believe I can carry it far enough so that a short road will remain for another to bring it to the destined place.[72]

## POLITICAL SPACE IN EARLY MODERN EUROPE

At the beginning of the sixteenth century, there were five hundred independent polities in Europe, down from one thousand in the fourteenth. Regional political entities replaced local ones as expansive monarchies jostled new principalities, dynastic empires, city-states, and confederations. Domains of political authority did not always coincide with territory, being seigniorial, ecclesiastical, and juridical, but compared to the feudal fretwork of overlapping control that prevailed just a century before, sovereignty was clearly becoming more exclusively territorial.[73] (See Figure 2 and return to Figure 1 in Chapter 1) A sixteenth-century map reveals the impressive advance of monarchies, boasting a new type of military leadership and a reawakened ambition for conquest. Smaller political entities were incorporated into larger political frameworks, which, despite a few famous exceptions, remained smaller than the modern nation-state.[74] The map of early modern Europe was dominated by "a multiplicity of regional political entities."[75] On the Iberian Peninsula, Spain's monarchy was a very recent union of the crowns of Castile, Leon, Navarre, and Aragon and with them the territories of Catalonia and Valencia.[76] The Reconquista of southern Spain had expelled the Moors in 1492 and helped to cement the union of crowns, but two decades

[71] *The Prince* has much in common with architectural treatises. See Leon Battista Alberti, *De re aedifcatora, On the Art of Building in Ten Books*, trans. Joseph Rykwert (Cambridge, MA: MIT Press, 1988), and Alina Payne, *The Architectural Treatise in the Renaissance: Architectural Invention, Ornament, and Literary Culture* (Cambridge: Cambridge University Press, 1999).

[72] *Discourses*, Book I, preface, 6.

[73] Greengrass, *Conquest and Coalescence*, 2, 4.

[74] Ibid.

[75] Ibid.

[76] Greengrass, *Conquest and Coalescence*, 11.




FIGURE 2. "Estates of the Church, Grand Duchy of Tuscany, Republic of Lucca & c." from *A General Atlas, Being a Collection of Maps of the World and Quarters, the Principal Empires, Kingdoms & c. with Their Several Provinces & Other Subdivisions, Correctly Delineated*.

*Source:* Robert Wilkinson, 1800, Courtesy of the David Rumsey Map Collection, www.davidrumsey.com, Image No. 1202038.

later, Castile was restive. To the north of Spain, over the Pyrenees and the independent state of Navarre, lay the great territorial monarchy of France, the territorial integrity of which, despite the resistance of Béarn and Avignon, was matched only by that of England. Above England, Scotland remained independent, with large tracts controlled by powerful clans. Over the Irish Sea, Ireland had a few more years as a free and fractious kingdom. Across the English Channel, just north of Calais, were the boundaries of the Holy Roman Empire, within which the Netherlands, Dutch and Flemish towns, and the estates of Brabant were situated. The Holy Roman Empire itself was a capacious realm of pint-sized and protean autonomous cities, duchies, bishoprics, and principalities. South of the Alps lay the borders of the Duchy of Milan, the regional states of Tuscany and Venice, the courtly lands of Ferrara and Mantua, the broad swath of the papal states across the center of Italy, and the kingdom of Naples. North of the Alps, Hapsburg lands, dynastic and disparate, reached outward from a Danubian base. The Hapsburgs had not yet acquired but were in silent pursuit of the populous and wealthy independent kingdom of Bohemia. Hungary and all Europe to the southeast were ruled by the Ottoman Empire, which menaced Venice and Europe.[77] Northeast of Bohemia and above Hungary was the great kingdom of Poland.

Sovereignty was republican as well as royal, for political authority not only inhered in the person of the ruler and the land but in the city and town.[78] Independent city republics could be found across the map of Europe. Impressive in number, city republics controlled nowhere near the territory of royal polities, and did not seem able to do so. Small in territory, predominantly urban, collectively they were a presence to be reckoned with for their intellectual, mercantile, political, and cultural wealth. First and foremost were the Italian city republics of Florence and Venice. Within the Holy Roman Empire, the towns and villages of Germany enjoyed a large degree of autonomy.[79] Along the Baltic, the seafaring republics formed the Hanseatic League. While Machiavelli was alive, the Swiss rebelled from the Holy Roman Empire and formed a league of republics, much to his delight.[80] Above France, there were the Brabant and Flemish towns of Antwerp, Ghent, Bruges, and Ypres, which behaved like city republics and

[77] A contemporary threat. See *The Prince*, chapter 3, and Richard Mackenney, *Sixteenth Century Europe: Expansion and Conflict* (New York: St. Martin's Press, 1993).

[78] Otto von Gierke, *The Development of Political Theory* (New York: W.W. Norton, 1939). "Sovereignty was also fragmented, as hundred of principalities, bishoprics, and city states exercised overlapping control." See Charles Tilly and Wim P. Blockmans, *Cities and the Rise of States in Europe A.D. 1000 to 1800* (Boulder: Westview Press, 1994).

[79] Koenigsberger, "Republicanism, Monarchism, and Liberty," 58.

[80] Thomas Brady, *Turning Swiss, Cities and Empire, 1450–1550* (Cambridge: Cambridge University Press, 1985). See Machiavelli's letter to Vettori dated August 10 in *Between Friends: Discourses of Power and Desire in the Machiavelli and Vettori Letters of 1513–1515*, ed. John Najemy (Princeton: Princeton University Press, 1993).

defended their quasi-autonomy with intrepid persistence.[81] Most famously, in the sixteenth century the Dutch towns of the Netherlands rose up and rebelled from Spain in 1555, and after thirty dogged years, prevailed and formed the United Provinces of the Netherlands in 1581, to the astonishment of the world.[82] Despite the republican victories in Switzerland and the Netherlands, republics were on the defensive before monarchs and their allies, the landowning nobility.[83] Republics were in trouble partly because of their inability to extend sovereignty over broad expanses of territory and partly because they lacked a powerful theory, for ideas do matter, or mattered then: "The failure of German cities to develop a coherent republican theory put them at a disadvantage against territorial princes with Bodinian theories."[84] Italian cities were more sophisticated, having taken the trouble to elaborate theories based on natural law or classical arguments, but old justifications no longer seemed persuasive in the new century.

The Italian republics of Florence and Venice were in an exceptional position. Beyond the Alps, all other European mercantile centers, even autonomous ones, were located within larger territorial entities: empires, kingdoms, and principalities, or in leagues and urban federations such as the Hanseatic League. Florence and Venice, by contrast, were old urban mercantile centers that had acquired dominions of regional dimensions. Theirs was a situation unique to northern and central Italy, where the medieval communes and robust local political vitality had prevented larger political structures from forming.[85]

The communes and corresponding political vitality owed their existence to the centuries-old standoff between popes and Hohenstaufen emperors, which opened a free space in central and northern Italy.[86]

As a result, Florence and Venice had room to expand, whereas the cities beyond the Alps were confined to their walls. Urban republics with their territory around them, Florence and Venice had elided the divide between city and territory that limited cities and empowered monarchies. This free space and the unique opportunity it offered to expand territorially had been squandered because neither republic knew how to acquire (*aquistare*) or how to integrate territorial conquests into a larger political unit.[87]

[81] G. Chittolini, "Cities, 'City States,' and Regional States in Italy," *Cities and the Rise of States in Europe A.D. 1000 to 1800*, ed. Charles Tilly (Boulder: Westview Press, 1994), 33; and Jan de Vries, *European Urbanization, 1500–1800* (Cambridge, MA: Harvard University Press, 1984).

[82] The Dutch were not completely victorious until 1590, when the Spanish finally admitted defeat. See H. G. Koenigsberger, *Monarchies, States-Generals and Parliaments: The Netherlands in the Fifteenth and Sixteenth Centuries* (Cambridge: Cambridge University Press, 2001).

[83] Ibid.

[84] Ibid., 65.

[85] G. Chittolini, *City States in Classical Antiquity and Medieval Italy*, eds. A. Mohlo, K. Raaflaub, J. Emlen (Stuttgart: Franz Steiner Verlag, 1991), 597.

[86] Jacob Burckhardt, introduction to vol. I, *The Civilization of the Renaissance in Italy*.

[87] *Discourses*, Book II, chapter 19, 174. "Whoever impoverishes himself through wars cannot acquire forces, even should he be victorious since he spends more than he obtains from his acquisitions, as the Venetians and the Florentines have done, who have been much weaker

*The Prince* is strikingly free of what is now termed the vocabulary of civic republicanism, words such as *libertà* and *vivere civile, bene commune, equalita, popolo*, and *grandi*.[88] Opting instead for alternative terms to describe the new territorial politics he is witness to, *aquistare* is a recurring expression, along with *maintenere*, *ampliare*, and *faire augumento*. *The Prince* is in part a memorandum on conquest as Machiavelli described it in Book II, chapter 1, of the *Discourses*: "the mode taken by the Roman people in entering into the provinces of others would have to be shown for this purpose if we had not spoken of it at length in our treatise of principalities."[89] Conquest was the first and easier part of the theoretical and practical project that links *The Prince* to the *Discourses*. The second part – how to turn a territorial monarchy into a republic, how to make it possible for politics as conventionally understood to be applied to an extended composite state, and how to root the practices and theoretical foundations of republicanism into a vast territory – was an endeavor of enormous proportions.

## THE CITY OF ROME

While *The Prince* begins with the vision of land and lordship, the *Discourses on Livy* begins with cities – with the city of Rome and the themes that will grow and mature throughout the work. This urban focus and the reappearance of the traditional language of civic republicanism make the *Discourses* appear more connected to the conventions of Renaissance political discourse and less radically novel than *The Prince*. The reappearance of familiar terms appears reassuring, but words gain meaning in specific contexts, and a tension exists whenever a traditional vocabulary is being stretched to describe unprecedented phenomena. An examination of why Machiavelli looks to Rome and the particular ancient and contemporary examples he deploys reveals the *Discourses* to be trying to do something imaginative with the republican inheritance.[90]

when one had Lombardy and the other Tuscany than they were when one was content with the sea and the other with six miles of borders. For all arose from their having wished to acquire and not having known how to take up the mode to do so." "Perché tutto è natto da avere voluto acquistare e non avere saputo pigliare il modo." Bausi ed., I: 438.

[88] Elena Fasano Guarini, "Machiavelli and the Crisis of the Italian Republics," in *Machiavelli and Republicanism*, eds. Quentin Skinner, Gisela Bock, and Maurizio Viroli (Cambridge: Cambridge University Press, 1990), 18; Pocock, *The Machiavellian Moment;* Quentin Skinner, *The Foundations of Modern Political Thought I: The Renaissance* (Cambridge: Cambridge University Press, 1978).

[89] *Discourses*, Book II, chapter 1, 128.

[90] For a model of this type of reading, see Guarini in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*. Alberto Teneti's works are extremely useful and explore the tension and multiple meanings found in Machiavelli's use of certain terms. A. Teneti, "La nozione di 'stato' nell' Italia del Rinascimento" in Teneti, *Stato. Un'idea, una logica. Dal commune italiano all'assolutismo francese* (Bologna: Il Mulino, 1987), 53–97. See also Fredi Chiappelli, *Studi sul linguaggio del Machivelli* (Florence: Le Monnier, 1952).

The awesome grandeur of Rome lies not just in its empire, but in its endurance. The long life of Rome is as worthy of awe as the "empire the republic attained."[91] Time, in the guise of longevity, is as critical a political variable as space, the extent of territory. Immediately, he discusses state building. Cities are built when inhabitants dispersed in small towns cannot live securely and are prey to assaults and do not have time to unite for their defense. To avoid these dangers, communities decide to unite and live together, an apt and succinct analogy to the position in which the Italian city-states find themselves. Two cities founded in that manner were Athens and Venice, the two other great republican cities and models, which will figure prominently in later books. The beginning of Rome is remarkable because it was a free beginning, "without depending on anyone." Rome was a consciously made state. Many statesman and rulers sought to do exactly the same thing in the early fifteenth century, to craft and construct states out of disparate provinces and cities. In the *Discourses*, Machiavelli endeavors to understand how a state is made, for it is not God given: "I say that all cities are *built* either by men native to the place or by foreigners."[92] "For Romulus and all the other kings *made* many and good laws."[93] The Romans responded to circumstances with "the *creation* of the Tribunes of the Plebs," and they "*made* religion serve to reorder the city and to carry out their enterprises."[94] The Romans made their state; they *crafted it*.

What it meant to make a state for an early modern ruler was realized most spectacularly by Emmanuel Philibert of Savoy, who after recovering his war-devastated territories in 1559, had to construct his state from scratch, which made Piedmont an exceptionally unified state.[95] Rather than "delegitimized politics,"[96] statecraft/state building best captures the foundational material of Machiavelli's enterprise. Crafting a state is a pragmatic and continuous endeavor because the state must endure in time – it is to be remembered that the borders of the Grand Duchy of Tuscany shifted until 1559 – and new necessities arrive every day. For example, the Tribunes of the Plebs were a creative response to popular pressure.[97] As a remedy in times of danger, the Romans "invented the mode of creating the dictator."[98] They needed to do this

[91] *Discourses*, Book I, preface, 7.
[92] Book I, chapter 1.
[93] Book I, chapter 2.
[94] Book I, chapter 14; see also Book I, chapters 7, 9, 33, 34, 19, and 55.
[95] H. G. Koenigsberger, *Politicians and Virtuosi: Essays in Early Modern History* (London: Bloomsbury Academic, 1986).
[96] As Pocock explains it, the republic exists in profane time. Everything is contingent. Virtue is innovation, etc. For clarity of perception, contrast that with Burckhardt's contention that "[a] new fact appears in history – the state as an outcome of reflection and calculation, the state as a work of art."
[97] Book I, chapter 7.
[98] Book I, chapter 34.

not just to ward off corruption, but to come up with new modes and orders to accommodate the republic's expanding size.[99] Now we comprehend why Machiavelli looked to Rome, for Livy and Rome have answers, insights to shed on the passage from the republican city-state to the territorial state. Rome presents a singular case applicable to the Tuscan situation. Rome's vital political life did not freeze or deteriorate but rather was enhanced by expansion; this must have struck Machiavelli, who had been schooled in a tradition which held that politics was primarily the art of the city.

"But let us come to Rome" and to the walls of the city, where Machiavelli stands waiting to "begin to discourse of things occurring inside and by public counsel."[100] He will begin the first book walking inside the city, through its "modes and orders" – the institutions, laws, and customs wrought by strife between the aristocrats and the people. In the second book, he ventures outside the walls to follow the great theme of expansion and war, Rome's foreign policy. Returning to Book I, inside the city, in chapter 2, Machiavelli takes the first turn out of the gleaming ancient world of the humanists and into the eternal Roman present.[101] The classical theory of cycles of regimes and an ideal mixed regime is oblivious to the existence of neighboring powers.[102] Machiavelli does not want a perfect regime, but a state that endures. How much more impressive, then, is the longevity of Rome, which came from good fortune and the disunion between the senate and the common people. Romulus' and the kings' intentions were to found a kingdom, not a republic. But the kingdom passed to a republic when the aristocrats and the people joined to expel the Tarquins.[103] The Tribunes of the Plebs created to mediate between the two groups for the security of the people, were one of the unplanned accidents, the virtuosic adjustments to circumstances unique to Rome. Chapter 4 dwells on the crucial time of passage between the expulsion of the Tarquins and the creation of the Tribunes, the passage from kingdom to republic. Then the great theme sounds: that the strife and internal tumults of Rome, "that many inconsiderately damn," rather than weakening the city and leaving it prey to outside powers, kept it free and powerful.[104] "I say that every city ought to have its modes with which the people can vent its ambition, and especially those cities that wish to avail themselves of the people *in important things* [emphasis added]."[105]

Chapter 5, "Where the Guard of Freedom May Be Settled More Securely," reveals the concern for freedom (*libertà*) and the desire to solve the problem of

[99] Book I, chapter 33.
[100] Book I, chapter 1.
[101] Book I, chapter 2, paragraph 2.
[102] Book I, chapter 2, paragraph 3.
[103] Book I, chapter 3, 15.
[104] Who are the many? possibly Sallust, Appian, St. Augustine in *City of God*. Given that the Venetian republic was looked on as a model by Florentines precisely for its serene stability, it is possible that Machiavelli had some contemporaries in mind as well.
[105] Book I, chapter 4, 17.

the extended republic.[106] It advises that "those who have prudently constituted a republic" guard freedom so that a free way of life will last for a long time. It is not just a free way of life, but a freedom that endures that matters. The Spartans and the Venetians placed the control over the institutions of the republic in the hands of the nobles. The Romans alone placed power in the people. Republics made different choices because they had different ends or goals in mind:

> In the end, he who subtly examines the whole will draw this conclusion from it: you are reasoning either about a republic that wishes to make an empire, such as Rome, or about one for whom it is enough to maintain itself. In the first case, it is necessary to do everything as did Rome; in the second, it can imitate Venice and Sparta, for the causes that will be told in the following chapter.[107]

## VENICE, SPARTA, ROME

Chapter 6 continues to compare Rome to ancient Sparta and modern Venice, popular counter models to Rome because both were republics "that have been free for a long while."[108] In this instance "free" refers to an autonomous state free from domination by another. Venice could maintain its state united and without tumult because it limited political power to a closed patrician caste. In Sparta, the kings defended the plebeians from injury:

> Since the plebs neither had nor feared rule, the rivalry that it could have had with the nobility was taken away, as well as the causes of tumults; and they could live united for a long time.[109]

More than that, Sparta remained small and did not admit foreigners, which enabled it to be governed in its own peculiar manner. Trying to elucidate the choice made by the Romans, Machiavelli explains that if they had wanted a quiet and stable republic they would have had to:

> either not employ the plebs in war, as did the Venetians, or not open the way to foreigners, as did the Spartans. They did both, which gave the plebs strength and infinite opportunities for tumult.[110]

The Romans took two consequential steps: they employed ordinary people in war *and* – a step commonly overlooked but given equal weight by Machiavelli –

[106] The full title of the chapter is "Where the Guard of Freedom May Be Settled More Securely, in the People or in the Great; and Which Has Greater Cause for Tumult, He Who Wishes to Acquire or He Who Wishes to Maintain." The title contains many of Machiavelli's common terms – freedom, security, the people, the great, acquire, and maintain. "*Dove più sicuramente si ponga la guardia della libertà, o nel popolo o ne' grandi' e quail hanno maggiore cagione di tomultare, o chi vuole acquistare o chi vuole maintenere*." Bausi ed., I: 37.

[107] Book I, chapter 5.

[108] Book I, chapter 6, 20.

[109] Book I, chapter 6, 21.

[110] Ibid.

they had an open immigration policy, encouraging and assimilating foreigners. In a world where the citizens of Florence's conquered cities were deprived of citizenship, this statement was provocative to say the least.[111] Immigration and citizen armies will prove enormously important in chapters to come. As much as he considers the vital class strife that made Rome powerful and free (Book I, chapters 3, 4, 5, 6) and the perpetual creation of new modes and orders (Book I, chapters 9 and 18, and Book III, chapters 1, 8, 9), Machiavelli pays attention to the policies Rome used to expand. Rome could have been quieter, like Venice and Sparta, but if it had been, an unfortunate consequence would have followed:

> that it would also have been weaker because it cut off the way by which it could come to the greatness it achieved, so that if Rome wished to remove the causes of tumults, it removed too the causes of expansion.[112]

The appearance of stability masks weakness. Without the tumults, Rome could not have fielded its armies. Then, he stops short, turns, and indulging in one of the devices that constitutes the perpetual excitement of his works – the sense of expectation that great things are about to happen – he addresses the reader directly, intimately:

> Therefore, if you [*tu*] wish to make a people numerous and armed so as to make a great empire, you make it of such a quality that you cannot then manage it in your mode; if you maintain it either small or unarmed so as to be able to manage it, then if you acquire dominion you cannot hold it or it becomes so cowardly that you are the prey of whoever assaults you.[113]

Because Rome wished to expand, it could not, like Sparta, "refuse to increase the number of its citizens." Here, Sparta, Venice, and by implication Florence are rejected because as city-states they could not expand or hold, *maintain*, their conquests. "The point here is in part Machiavelli's concern, typical of his generation, with the republic's ability to control its external environment."[114] Elites of republican cities must recognize that they have to share power with the people. The patrician republics or oligarchies exemplified by Sparta and Venice are unworkable in the modern environment. Critically, Machiavelli connects two things, expansion and tumult, placing a premium on expansion. It is expansion that is necessary and something that most elites, in particular the

[111] "Lordship at home, it was called tyranny. Lordship abroad was right and proper for Florentines of all opinions." Stephens, *The Fall of the Florentine Republic*, 157. After Pisa, Arezzo, and Prato were conquered by Florence, their citizens lost all political rights and were not admitted by Florentine citizenship.

[112] Book I, chapter 5, 21.

[113] *Discourses* Book I, chapter 6, 22: "Pertanto, se tu vuoi fare uno popolo numeroso e armato, per foter fare un grande imperio, lo fai di qualità che tu non lo puoi po maneggiare a tuo modo, se tu lo mantieni o piccolo o disarmato per poter maneggiarlo, se tu acquisti dominio non lo puos tenere, o ei diventa sì vile che tu sei preda di qualunque ti assalta." Bausi ed., I: 45. Note the use of the familiar *tu*.

[114] Pocock, *The Machiavellian Moment*, 194.

elite audience of the *Discourses*, recognize to be of vital importance. If the majority of the Florentine political class accepts that expansion is now a necessity, then they must realize that giving the people a share in power, enough to enable them to foment tumult, is not negotiable.[115]

> If someone wished, therefore, *to order a republic anew* [emphasis added] he would have to examine whether he wished it to expand like Rome in dominion and in power or truly to remain in narrow limits. In the first case it is necessary to order it like Rome and make a place for tumults and universal dissensions, as best one can; for without *a great number of men and well armed* [emphasis added], a republic can never grow, or, if it grows maintain itself.[116]

A republic must have a large population and a large army. Sparta and Venice had neither and both republics ultimately proved vulnerable. Venice, though, had expanded over a large territory. Machiavelli preempts this challenge by dismissing Venetian expansion as an expansion bought rather than honorably won in war.[117] Moreover, Venice could not hold onto its territorial conquests, losing its entire terra firma empire in a single day. Aristocratic republics may offer an ideal of quiet stability, "the true political way of life and the true quiet of a city," but one must be prepared for the whims of fortune. Circumstances have changed. "But since all things of men are in motion and cannot stay steady, they must either rise or fall, and to many things that reason does not bring you, necessity brings you."[118] Rational inquiry may lead one to the ideal republics of Venice and Sparta, but reality – the twists and turns of fortune and the presence of foreign invaders – requires a different mode of thought. Machiavelli shares his choice with us:

> Therefore, since one cannot as I believe, balance this thing, nor maintain the middle way exactly, in ordering a republic there is need to think of the more honorable part and to order it so that if indeed necessity brings it to expand, it can conserve what it has seized. To return to the first reasoning, I believe it is necessary to follow the Roman order and not that of other republics.[119]

[115] At this point my analysis of Book I, chapter 6 differs from that of John McCormick, for instance. See John McCormick, *Machiavellian Democracy* (Cambridge: Cambridge University Press, 2011). I do not think Machiavelli needs to give potential oppressors a "carrot" of oppression abroad for them to accept a popular republic. Rather, Machiavelli's argument is more direct and liberally partakes of necessity. In the post-1494 era of territorial conquest and expansion, Florentine elites understood that a failure to expand risked conquest and invasion. The choice, Machiavelli tries to convey, is *not* between Venice and Rome as an aristocratic republic is doomed, the choice is between following Rome toward a strong, territorially expansive popular republic or a principality. History demonstrates that this was the choice, and Florentine patricians chose the latter.

[116] Book I, chapter 6, 22.

[117] "Similarly, having seized a great part of Italy – and the greater part not with war but with money and astuteness – when it had to put its forces to the proof, Venice lost everything in one day." Ibid.

[118] Book I, chapter 6, 23.

[119] Ibid.

To follow the Roman order means to incorporate popular government to "put the guard of freedom in the people" – to arm them and to offer them citizenship.

Various commentators have noticed flaws in Machiavelli's analysis of Sparta and Venice, and have concluded that his preference for Rome cannot be rationally justified.[120] Machiavelli recommends his readers pay attention to Rome only because of his own preference for glory, typical of a bureaucrat, or his view of human nature as primarily acquisitive. If we pay close attention to the historical context in which Machiavelli is embedded, we must ask if it is his own preference or what he believes to be necessity driving him to delve in Livy. The crucial point of Book I, chapter 6, is neither appetite nor greatness, though both concepts are relevant to Machiavelli's thought and cannot be discounted, but external events viewed through the prism of necessity. In the new, post-Concert of Italy era of war and invasion, a republic must be strong enough to survive or it will be conquered and lose its independence, becoming a nominally independent client-state of an ultramontane monarchy, usually in the form of a principality. The other option is to turn toward principality, the appeal of which was heightened by the new external environment. Suffice it to say then, that a larger republic looms on the horizon. A republic spreading over various cities and provinces must use the people in war, offer them a share in government, and accept foreigners. Machiavelli concludes the chapter praising the Tribunate, the consummate populist institution and the centerpiece of his Roman republic and its authority to accuse. The animating theme of the *Discourses* is that one must involve the mass of the population in government if free government is to survive. The great and powerful must acquiesce to a tribunate or serve a monarchy.[121]

Who would wish to order a republic anew? With those who would wish to order a republic anew, those willing to work the good, those more "loved by heaven," Machiavelli shares his knowledge. In addition to the Circle of the *Orti Orcellari*, there were many loyal and active republicans in Florence and Siena. Republicanism still had strong support in the popular imagination.[122] Florence was not yet a grand duchy.

[120] See David Armitage, *The Ideological Origins of the British Empire* (Cambridge: Cambridge University Press, 2000), 128–32; Patrick J. Coby, *Machiavelli's Romans: Liberty and Greatness in the Discourses on Livy* (Lanham, MD: Lexington Books, 1999), 39–41; Harvey Mansfield, *Machiavelli's Virtue* (Chicago: University of Chicago Press, 1996), 85–92; Leo Strauss, *Thoughts on Machiavelli* (Seattle: University of Washington Press, 1969, reprint), 110–14.

[121] In the end, of course, the *optimates*, the leading citizens, of Florence chose to serve the Medici Principate, but it would take decades. See Stephens, 162–3, who cites Guicciardini as emblematic of an entire class. "Guicciardini for his part, since he had not yet given up all hope that an aristocratic government might be achieved, could not approve of a principate. But between the government of one and that of the whole enfranchised class (*popolo*), which he saw as the likely choice, he much preferred the rule of one."

[122] See diaries of Florentine republicans Antonio da Sangallo and Bastiano Arditi, cited in A. Molho, "Recent Works on the History of Tuscany: Fifteenth to Eighteenth Centuries," *Journal of*

Chapters 1 to 6 teach the reader that republics are not anachronisms. Rome has the answers to the political problems faced by popular governments because it was a singular case, a republic that was vast and powerful. How intriguing Rome must have seemed, a territorial republic ordered to expand at a time when republics had been humiliated by monarchies. "Republican regimes were more popular – popular clamor created them, but popularity at home ceased to be crucial for political success in the Italy of the Italian Wars."[123] Only a prince could guarantee peace inside the walls and the pursuit of effective foreign policy outside the walls.[124] Francesco Guicciardini is emblematic of the changing mindset among Florentines when he states that the Medici were better stewards of territorial expansion than the popular government.[125] Republicanism was a form of government practiced within city-states, and there appeared no conceivable way its practices or concepts could break through city walls.[126]

The *Discourses* will be an examination of the conditions for the existence of a territorial popular state on a regional scale. But will it culminate with a republican empire or a truly extended republic?

Mikael Hörnqvist in *Machiavelli and Empire* presents a compelling case for reading Machiavelli as a proponent of a renewed Roman empire.[127] He reads *The Prince* and *Discourses* as complementary works that together provide a blueprint for an "imperialist strategy." In contrast, I believe that Machiavelli was not so clearly an advocate of empire, despite his use of the term (*imperio*) in the text of the *Discourses*. Based on the reading of the *Discourses* presented here, I argue that Machiavelli is consciously trying to renovate Roman practices and popular government not to recreate an empire, but to pave the way for a territorially expansive republic. His experience and familiarity with new models of government, in particular territorial kingdoms, that were not accounted for in civic humanist political thought, caused him to realize that a civil form of government could be instituted by a prince (Book I, chapter 25) and that civic life could spread across an extended territory. How to enlarge the republic was the problem, and Machiavelli studies Rome in order to do so in a more creative way than an imperialist strategy suggests. This is not to say that Machiavelli does not contemplate an imperialist republic in passages. It is just to say that he also contemplates a republican league and an extended republic, and these

*Modern History* 62 (March 1990): 57–77. See also H. C. Butters, *Governors and Government in Early Sixteenth Century Florence, 1502–1519* (Oxford: Clarendon Press, 1985).

[123] Stephens, 46.

[124] David Herlihy, "*The Rulers of Florence, 1282–1530*," in *City States in Classical Antiquity and Medieval Italy*, eds. Anthony Molho, Kurt A. Raaflaub, and Thomas J. Watson (Ann Arbor, MI: University of Michigan Press, 1991), 225.

[125] "Dialogo del reggimento di Firenze," in Francesco Guicciardini, *Dialogo e discorsi del reggimento di Firenze*, ed. R. Palmarocchi (Bari: Laterza, 1932), 60, 68, 101, also cited in Stephens, 158.

[126] "Within the cluttered horizons of modern times republicanism was the sole affair of city-states." Stephens, 160.

[127] Michael Hörnqvist, *Machiavelli and Empire* (Cambridge: Cambridge University Press, 2004). Hörnqvist devotes more attention to *The Prince* than he does to the *Discourses*.

oscillations comprise an unappreciated aspect of his thought. Furthermore, Florence did have an empire, but an extremely small one even by standards of the time. The fact that Machiavelli studies the expansionist policies of the Roman republic does not mean he envisioned Florence taking up the mantle of world empire. While Machiavelli was an imaginative thinker, even a dreamer (many scholars have noticed his almost touching lack of realism), I contend he was realistic enough to see that Florence could not hope to follow Rome and conquer the world, though this was a trope of a particularly Florentine brand of civic humanist rhetoric. To be precise, the argument is that Machiavelli realized that how to enlarge a republic to encompass various territories and cities without losing its essentially popular character was the problem Florence and all urban republics faced in the sixteenth century.

Chapter 7 discusses a Roman order, accusations, one of the institutions that maintain freedom. Appropriately, as the ruling imperative of *The Prince* is to maintain the state, *maintenere lo stato*, here it is *maintenere en libertà*. In place of the flattering comparisons civic humanists made between Rome and Florence,[128] Machiavelli contrasts Roman stability with the incessant instability of Florence. Because Rome had institutionalized discord, its social groups did not need to resort to external forces. In contrast, the palleschi, those opposed to Gonfaloniere Piero Soderini, called in the Spanish army in 1512, causing the second shattering invasion. Machiavelli is explicitly attempting to remedy contemporary difficulties.[129] He always applies the mementos of his antique voyages to the present ruins, part of the strategy of this great walker who always returns home to Italy.[130] In chapter 12, from the lamplight of his nocturnal walks through Rome, Machiavelli interprets the Italian crisis of the daylight, "And truly no province has ever been united or happy unless it has come under obedience to one republic or one prince, as happened to France and to Spain."[131]

[128] Bruni, *Laudatio*, *Salutati Invectiva* cited in Hörnqvist, *Renaissance Civic Humanism: Reappraisals and Reflections*, ed. James Hankins (Cambridge: Cambridge University Press), 113.

[129] See letter to Vettori of August 10, 1513, in Atkinson and Sices, 249.

[130] There is an order to these opening chapters: chapter 6 is the turning point – expand or remain in limits. Chapters 7 and 8 introduce orders that enable freedom to endure. Chapters 9 and 10 invoke the prince and the passage to republic. Chapters 11 and 12 discuss the political importance of religion and how "Italy, lacking it has been ruined." This emphasis on the political utility of religion may be taken from Polybius, who stated that the Romans made religion the theatrical center of private and public life.

[131] He continues, "The cause that Italy is not in the same condition and does not also have one republic or one prince to govern it is solely the church." And "[t]hus since the church has not been powerful enough to seize Italy, nor permitted another to seize it, it has been the cause that [Italy] has not been able to come under one head but has been under many princes and lords, from whom so much disunion and so much weakness have arisen that it has been led to be the prey not only of barbarian powers but whoever assaults it." *Discourses*, Book I, chapter 12, 38.

## TERRITORIAL EXPANSION: BOOKS I AND II

Territorial expansion received renewed attention after the Spanish invasion of 1512.[132] Territorial aggrandizement had accelerated across the continent, and it was growing risky to be too small. The modern state in its final form had not arisen, but something new was on the horizon: the imposition of law and order under one rule over the regional landscape.[133] Early modern state making, roughly from 1500 to 1700, occurred at a smaller regional, rather than national, scale, involving cities, provinces, and principalities; the papal conquest of Bologna, Umbria, and Emilia Romagna of 1506 serves as a fine example. Typically these were small-scale aggrandizements, partial integrations of independent provinces and piecemeal reshapings.[134] Whereas historical inquiry into European state making has tended to concentrate on the larger states, the majority of early modern states – Sicily and Savoy, for instance – were smaller regional entities.[135] Nevertheless, expanding from the local to the regional level posed quite a problem for republics and for Florence in particular. Again, Florence had been expanding into the surrounding territory since the thirteenth and fourteenth centuries, but this expansion was modest when compared to the regional scale of state formation that would take place from 1500 to 1700. Paradoxically, the very space that nourished republicanism, that fateful power vacuum which allowed Italian towns to govern themselves for centuries, was part of the problem. All the while the political system of northern and central Italy was fragmented into city-states zealously preserving their autonomy, governing themselves, idealizing their practices in theories of civic republicanism, the great western monarchies "were consolidating." "The roots of a strong municipal tradition dating back to the Middle Ages held back the forces tending toward the territorial unification."[136] Municipality and monarchy, city and territory, were opposites in competition. The very circumstances that had allowed a free way of life to develop in Florence threatened to be its undoing.

## THE CITY-STATE OR THE TERRITORIAL STATE – FLORENCE OR TUSCANY

No city state ever solved the problem of incorporating new territories and new populations into its existing structure, of involving really large numbers of people in its political

[132] Again, Luigi Guicciardini, F. Guicciardini, F. Vettori, and N. Machiavelli.

[133] Charles Tilly, ed., *Cities and the Rise of States in Europe, A.D. 1000 to 1800* (Boulder: Westview Press, 1994).

[134] Mark Greengrass, ed., *Conquest and Coalescence: The Shaping of the State in Early Modern Europe* (London: Edward Arnold, 1991).

[135] Koenigsberger, *Politicians and Virtuosi*.

[136] Chittolini, in Tilly ed., 28. In addition, Florence, Milan, Venice, the Papacy, and Naples were relatively equal in strength, which enabled them to maintain a relative equilibrium. The involvement of foreign powers after 1494 presented an additional barrier to broader integration.

life. Either the city state became the nucleus of an empire (as ancient Rome did), and so became subject to the ills of empire, or it remained small, militarily weak, and, sooner or later, the victim of conquest.[137]

Of course, it was hard to see this at the time Machiavelli wrote and lived, and as city-state republicanism was the only world republicans knew, naturally there were doctrinaire republicans who could not imagine popular government in any other context. They had only to point to the defining moment of Florentine history, the defeat of the formidable Gian Galeazzo Visconti by a Florentine-led league of urban republics a century earlier. From Milan, Gian Galeazzo Visconti had embarked on a campaign of military conquest as part of a determined policy of territorial expansion in order to gain hegemony over northern and central Italy and found a centralized monarchical state. Florence and other city-states appeared doomed to be incorporated into this territorial monarchy whose political structure appeared different from the old tradition of municipal liberty and urban political structure. Determined to resist, Florence and other free towns joined in a league to defend themselves. The firm resistance of Florence and its urban allies to absorption into larger state structures was critical in cementing the belief that liberty could only exist in the small city-state and that territorial states were at odds with republican city-states. The great confrontation between city-state republics and the territorially ravenous monarchical state was critical to Florence's self-definition, thanks to the efforts of her humanist chancellors, and to subsequent political thought. The experience forced Florentines to contemplate and articulate their political practices and beliefs in a series of theoretical works and rhetorical addresses that formed the bases for what became known as civic republicanism, the philosophy and the ideology of the Florentine state, a tradition over a century old in Machiavelli's time.[138] Victory ensured that medieval communal practices of self-government, free speech, political participation, and equality under law would not vanish but survive to be conceptualized systematically.[139]

[137] J. R. Strayer, *On the Medieval Origins of the Modern State* (Princeton: Princeton University Press, 1970), 11.

[138] Baron, *The Crisis of the Early Italian Renaissance*. Baron set the terms of twentieth-century Renaissance historiography, orienting it around the civic humanism of the early fifteenth century. This revived interest in the long dormant republican influence on modern liberal democracy that was recovered by J. G. A. Pocock.

[139] The resulting civic republicanism prevented absolutist thought from dominating the marketplace of ideas. This was an event of world historical importance according to Baron's view of the crisis. Baron's view of the content and importance of civic humanism has come under its share of criticism. Subsequent historical research has revealed Florence to be more of an imperialist oligarchy than figured in Baron's picture. Other scholars argue that civic humanism was neither particularly Florentine nor republican and should be thought of as a Roman inheritance concerned with the education and socialization of elites. See James Hankins, "The 'Baron Thesis' After Forty Years and Some Recent Studies of Leonardo Bruni," *Journal of the History of Ideas* 56 (1995): 309–38.

Republican skepticism and the Visconti Wars pointed to a broader problem throughout the continent: cities tended to oppose the rise of states and did not initiate the process of state formation. To those conservative republicans who would object to his modernizing program of expansion and point to the German republics as modern city republics Florence should imitate, Machiavelli has this to say: If a republic rejects expansion and chooses to remain inside its walls and think only of defending itself, it will be in for a rude surprise. "Nonetheless, as I said at another point when I discoursed of the difference between ordering to acquire and ordering to maintain, it is impossible for a republic to succeed in staying quiet and enjoying its freedom and little borders."[140]

Machiavelli perceived that the city-state was a thing of the past.[141] "An old urban world was under attack," writes Jan de Vries of the long sixteenth century, adding, "The work of state-building, most notably in England, France, and Spain had the effect of undermining the independence and autonomy of many cities and subordinating their economic interests to those of Renaissance monarchies."[142] Machiavelli is aware that the old mercantile republic's days are over. He writes that if the republics of Germany remain urban city-states, confined to their walls, it arises "from certain conditions in that country that are not elsewhere." In the fashion of a true comparative political scientist, he elaborates those specific conditions: German city republics need not expand and can live inside their walls because they are collectively part of the Holy Roman Empire:

> Those communities can thus live content with their small dominion, because, thanks to the imperial authority, they do not have cause to desire more. They can live united inside their wall because they have nearby the enemy who would take the opportunity to seize them whenever they are in discord. If that province were in other condition, it would suit them to seek to expand and break that quiet of theirs.[143]

The emperor mediates disputes between the tiny states and prevents wars. The city republics are not entirely vulnerable to invasion because they are subject to a protective organization. The *verrita effetuale della cosa* is that such conditions are not present in Italy; Germany and the small city-state are a false alternative. The old urban republican way of life is doomed to survive only under certain conditions. The conditions for the small republic are not present in Italy. "Since there are no such conditions elsewhere, one cannot take this mode of life and

[140] *Discourses* Book II, chapter 19, 173. He continues, "For if it will not molest others, it will be molested, and from being molested will raise the wish and the necessity to acquire; and if it does not have an enemy outside, it will find one at home, as it appears necessarily happens to all great cities."

[141] That Machiavelli perceived this is a critical part of the larger claim I am making. Genoa, Venice, and Lucca were the only city-states to survive the 1494 and 1512 crisis.

[142] Jan de Vries, *European Urbanization 1500–1800* (Cambridge, MA: Harvard University Press, 1984).

[143] Book II, chapter 19.

needs either to expand by way of leagues or to expand like the Romans." The city-state was an anachronism and from now on the territorial state would take precedence. Italian lands would have to reorganize themselves politically.[144]

Machiavelli's professional experience, in addition to his independent intellectual bent and period of exile, provided him with a unique perspective on political change and enabled him to sense the deeper structures moving beneath the waves of current events. In 1498, Florence's Great Council appointed Machiavelli second chancellor. Chancelleries functioned in a manner similar to a modern-day civil service, and chancellors were charged with implementing foreign and domestic policy. Later that year, Machiavelli was made Secretary of the Ten of War. Essentially, Machiavelli was what we would call an advisor or policy expert. In addition, he was sent on several diplomatic missions for the Florentine republic during his time in the Chancery. At the end of a mission, it was customary to write a general report for superiors in Florence. Machiavelli wrote reports after missions to Venice, France, and the Holy Roman Empire.[145] His reports after missions to Germany in 1508 and 1509 discuss the political organization and social structure of the empire and makes note of the defense of every community offered by the imperial power, which he mentions as one of the particular conditions of German republics.[146] His report also mentions, with remarkable prescience, the tensions between cities and princes, princes and the emperor, the free cities and the Swiss. Germany is not, like France, a cohesive monarchy moving toward centralization, but an unusual amalgamation that permits free communities to survive.[147] Soon after Machiavelli made these observations, a wave of revolts would shake the German free cities in 1509 and 1514.[148] While the importance attached to Machiavelli's Chancery writings has been debated, it is clear that the opportunity to study foreign governments provided him with an unusual perspective on various forms of political order, the formation of the territorial state, political culture and conditions that permit certain political forms to develop. Studying foreign governments also, quite

[144] E. Fasano Guarini, "Gli stati dell'Italian centro-settentrionale fra Quattro e Cinquecento: continuita e trasformazioni," *Societa e storia* 6 (1983): 617–39.

[145] Niccolò Machiavelli, *Arte della Guerra e scritti politici minori*, ed. S. Bertelli (Milan: Feltrinelli, 1961).

[146] It is interesting to note that Machiavelli's praise of the robust civic culture and attachment to freedom found in the German cities is reminiscent, not only of Tactius' famous praise of the German people but of Enea Silvio Piccolomini's (the future Pope Pius II) paean to the German cities: "In Germany everything is pleasant and charming. No one is robbed of his property ... Here no parties rage against one another, as they do in Italian cities. More than one hundred cities enjoy this freedom. They are allied in leagues and defend themselves with their own forces against the princes' depredations." Piccolomini, *Germania*, ed. Adolf Schmidt (Cologne and Graz: Böhlau, 1962), 62.

[147] "Rapporto delle cose della Magna" in *Arte della guerra*, 203. "Ritratto delle cose della Magna," Ibid., 211. "Ritratto di cose di Francia," Ibid., 164–92.

[148] Brady, *Turning Swiss*, 13.

possibly, gave Machiavelli an awareness of larger historical movements.[149] His reports on France, which will be discussed in Chapter 5, are remarkable in this regard. Because the kingdom exists outside inherited conceptual categories, his reports signal his awareness of an unfamiliar and new political form, a non-republic where freedom is possible.

Furthermore, the Italian republics have their own unique conditions to take into account. Machiavelli grasped the uniqueness of Italian conditions and Florence's position. In the Holy Roman Empire, for example, cities were excluded from the state-building process, which was led by the emperor or the princes.[150] "Faced with a rivalry between the House of Habsburg and the great princely houses of the South, plus the princes' collective pressure on the cities in the Imperial Diet, the free cities had to choose between old fashioned urban federations and Hapsburg patronage. They generally chose the latter."[151] The German pattern is indicative of a broader pattern in European political history. City and territorial state constitute an opposing pair in the history of European political systems. It was not simply republic versus monarchy in the abstract, but republican cities versus monarchical territories for those, like Machiavelli, who lived through the height of the confrontation.[152] Remarkably, Venice and Florence had managed to escape the opposition between city-state and territorial state that prevailed elsewhere in Europe. In Italy, beginning in the trecento, the mercantile commune underwent a decline as larger territorial units formed.[153] Most communes turned into subject cities, while a few turned into capital cities. Venetian history duly records the crucial turn from the sea to the terra firma, regretted by Doge Foscari on his deathbed. Venice and Florence were especially unique, being old urban mercantile republics that had acquired large regional dominions, escaping the fate of cities north of the Alps that had subordinated themselves to larger state structures. During the Middle Ages, Florence and

[149] For the most persuasive interpretation of Machiavelli's Chancery writings familiarizing him with the development of the large state, see Gennaro Sasso, *Niccolò Machiavelli: Storia del suo pensiero politico* (Bologna: Il Mulino, 1980), 353–6. See also Guarini, in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*, 24–6. See also Bertelli's introductory note, as well as J. J. Marchand, *Niccolò Machiavelli. I primi scritti politici (1499–1512): Nascita di un pensiero e di uno stile* (Padua: Antenore, 1975); and Anthony J. Parel, "Machiavelli's Notion of Justice: Text and Analysis," *Political Theory* 18 (1990): 528–44.

[150] For the reality of cities in the Holy Roman Empire, see Peter Moraw, "Cities and Citizenry as Factors of State Formation in the Roman-German Empire of the Late Middle Ages," *Theory and Society* 18, no. 5 (1989): 631–62.

[151] It continues, "and from their choices arose two great alliances – the Swabian League (1488–1534) and the Lower Union." Brady, *Turning Swiss*, 43.

[152] "Europe's chief exit from the feudal age moved through the dualistic prince-and-estates constitution towards the absolutist monarchy. A second exit formed around communalism." Brady, *Turning Swiss*, 28.

[153] Daniel P. Waley, *The Italian City-Republics* (New York: Weidenfeld and Nicolson, 1969). See also Marvin B. Becker, *Florence in Transition: Studies in the Rise of the Territorial State*, 2 vols. (Baltimore: Johns Hopkins University Press, 1968).

Venice had sought colonies and trade agreements. After 1400, both republics were forced to become larger territorial states in response to the rise of the signore. They expanded into the surrounding territory, beyond the bounds of the traditional city-state. There was no equivalent of the Florentine and Venetian *contado* north of the Alps.[154]

Despite the fact that Florence and Venice had formed large dominions, the republics maintained their old institutional arrangements. They did not adjust their modes, orders, laws, institutions, and self-conceptions to their larger dimensions. In effect, they had not adjusted to the fact that they were no longer city-states. As a result, their acquisitions were tenuously held and did not become part of one body politic, as Machiavelli noted. This raises the question, What were the problems with Florentine expansion into the surrounding territory that Machiavelli's new modes and orders were intended to address?

## THE EXPANSION OF THE FLORENTINE REPUBLIC

By the 1430s, Florence ruled over all of Tuscany, with the exception of Siena and Lucca. Florence's republican empire extended from Arezzo to the Tyrrhenian Sea and encompassed a number of subject cities including Arezzo, Fiesole, Pistoia, and Pisa. The dimensions of the state had increased to 12,000 square kilometers.[155] The republic began to expand outside its walls in the mid-fourteenth century through a series of wars to conquer surrounding territory. Florence subjected Colle di Val D'Elsa in 1338, Prato and Pistoia in 1351, San Gimignano in 1354, and Volterra in 1361. The justifications changed over the decades – the preservation of Guelf libertas, Christendom, Tuscan liberty – but the expansion continued. The goal was to establish empire over all of Tuscany. From the fall of the Ciompi regime in 1382 until 1435, Florence was constantly at war. Florentines were encouraged to believe they were participating in the foundation of a new territorial entity, which they referred to as the *dominio* – the dominion.[156] The laws of 1409 used the word *territorium*, never *imperio*, in reference to the Florentine dominion. In 1415, Florence revised its legal codes to bring unity to its disparate conquests and acquisitions.[157] And in 1425 and

[154] Giorgio Chittolini, "The Italian City-State and Its Territory," in Molho, Raaflaub, and Emlen, 597. See also essays in *Florentine Tuscany: Structures and Practices of Power*, eds. W. J. Connell and A. Zorzi (Cambridge: Cambridge University Press, 2000).

[155] Anthony Molho, "Recent Works on the History of Tuscany: Fifteenth to Eighteenth Centuries," *The Journal of Modern History* 62 (March 1990): 57–77.

[156] Marvin B. Becker, "The Florentine Territorial State and Civic Humanism in the Early Renaissance," in *Florentine Studies: Politics and Society in Renaissance Florence*, ed. Nicolai Rubinstein (London: Faber and Faber, 1968), 109–39. Ricardo Fubini, "La rivndicazione de Firenze della sovranita statale e il contributo delle *Historiae* di Leonardo Bruni," in *Leonardo Bruni cancelliere della Repubblica di Firenze, Convengo di studi, Firenze, 27–9, ottobre 1987*, ed. Paolo Viti (Florence: Olschki, 1990), 45.

[157] Lauro Martines, *Lawyers and Statecraft in Renaissance Florence* (Princeton: Princeton University Press, 1968), 184.

1427, the republic inaugurated the Dowry Fund and Catasto for public finance.[158] The general statutes of Florence drawn up in 1455 remained in effect to the end of the eighteenth century.[159] As a result of the expansion of Florence, "The republic about which Machiavelli was writing was no longer a city-state in the true sense of the word."[160]

## CITY AND COUNTRYSIDE

Unlike the ancient city, town and country did not form an interlocked unit in the Italian medieval and Renaissance city. Rather, city and country were distinct variables in conflict. Florence's dominion was divided into two legal categories: the *contado* (countryside) and the *distretto* (district). The *contado* was the area of the earliest expansion into the surrounding countryside. Its inhabitants were considered "original subjects" of the city of Florence. They lived directly under its laws, and they were subject to its taxes. The *distretto* included all those outlying territories, cities with their own *contadi* and feudal communities, which the republic took over later. They could continue to live under their own laws (juridical autonomy) and were granted privileges so long as they were loyal.[161] Florence had its *contado* and *distretto*, and the larger towns in its distretto – Pistoia, Arezzo, and Pisa – each had their own *contado*.

Florentine citizenship and the freedom that went with it could only be enjoyed by Florentine male city dwellers. After being incorporated into Florence's *distretto*, Pisans still were not considered Florentine citizens. Nor were the residents of Pisa's own *contado* granted Pisan citizenship. But living inside the walls of Florence or a subject city was still no guarantee of citizenship. The subjects of the Florentine republic could be divided into two principal categories, the disenfranchised workers living within the city walls and the people of the dominion. The citizens of subject cities such as Pistoia, Arezzo, and Pisa were considered people of the dominion.[162] How vastly different, then, was Rome, "where city and countryside were one and the same thing."

[158] Whether the Renaissance republican states of Venice and Florence were the first centralized modern states, albeit in miniature (the Burckhardt/Weber/Chabod interpretation), or the idea of traditional dominions founded on conquest (Angelo Ventura on the Venetian terra firma) or patchworks of power assembled from local institutions and provinces (Elena Fasano Guarini), remains open to debate.

[159] So much for new modes and orders.

[160] Michael Mallett, "The Theory and Practice of Warfare in Machiavelli's Republic," in Skinner, Bock, and Viroli, 177.

[161] Elena Fasano Guarini, "Tuscany, a Historical Map," *The Journal of Italian History* 2, no. 3 (1979): 520–30. See also Chittolini, in Tilly ed., 33.

[162] A. Molho, *City States*, 628. Michael Mallett, "Pisa and Florence in the Fifteenth Century: Aspects of the Period of the First Florentine Domination," in *Florentine Studies: Politics and Society in Renaissance Florence*, ed. N. Rubinstein (London: Faber and Faber, 1968), 403. Patrizia Salvadri, "Florentines and the Communities of the Territorial State," in *Florentine Tuscany*, eds. W. J. Connell and A. Zorzi (Cambridge: Cambridge University Press, 2000), 207–24.

Once a city was conquered, it did not become part of a larger entity; instead it was subjugated, stripped of independence, and economically exploited for the benefit of the ruling city, Florence. Cities such as Arezzo, Verona, and Pavia had to be content with whatever autonomy Florence chose to grant. Florence imposed taxes, appointed governors, and eradicated a city's liberty.[163] This territorial vocation was archaic, and this inability to conceive of anything outside of an exploitative relationship with an appendage "became a braking element and a factor of the grave backwardness of these cities."[164] The inability to break out of the master-slave relationship is what Machiavelli sought to change; the problem was finding room for two free cities under one territorial sovereignty. If anyone was well placed to solve the problem, it was Machiavelli, for in his capacity as secretary of the Ten of War, he was able to exercise executive authority in the territory, and he spent much of his time dealing with problems in Florence's territory, from rebellions to the recruitment of militia.[165] He was all too familiar with the inadequacies of Florence's territorial regime as his Chancery era writings such as his *Discorso sopra Pisa*, *Del modo di trattare I popoli dell Valdichiana ribellati*, and *Decennale primo* attest.[166]

"Everyone also knows how much enmity there has been between the Florentines and the Pisans, Lucchese, and Sienese."[167] By exploiting conquered cities, the Florentines had lost their chance to be "lords of Tuscany." Lordship over Tuscany was Florence's manifest destiny, according to a gallery of Florentine civic humanists – Leonardo Bruni, Coluccio Salutati, Giorgio Dati, and Matteo Palimieri – all of whom would have agreed with Machiavelli when he wrote, "A city that lives free has two ends – one to acquire, the other to maintain itself free."[168] In the Renaissance, it was thought the republic had two ends, one domestic, focused on liberty, and one foreign, involving the acquisition of dominion, material wealth, and glory. The liberty of Pisa and other independent states had to be sacrificed to maintain that of the city of Florence, for reasons of economic exploitation as well as security from invasion. *Florentina Libertas* meant the city's independence, based upon territory as well as an individual's

[163] Chittolini, in Tilly ed., 31.

[164] Chittolini, *La formazione dello stato regionale e le instituzioni del contado* (Turin: Einaudi, 1979), xxi.

[165] Guarini, in Skinner, Bock, and Viroli, 21. See Machiavelli's address to his Florentine superiors, *Discorso dell'ordinare lo stato di Firenze alle armi*, where he writes that Florence has no justice and no arms, in Bertelli ed., *Arte della guerra*, 95. See also Machiavelli's *Del modo di trattare I popoli dell Valdichiana ribellati*, Bertelli ed., 72–5.

[166] See "Discorso sopra Pisa" (1499) in Marchand, *I primi scritti*, 5–16. For more on the *Decennale primo* (1504), which covers events in Italy following the French invasion of 1494, see Butters, *Governors and Government in Early Sixteenth Century Florence*, 72, and Sergio Bertelli, "Machiavelli and Soderini," *Renaissance Quarterly* 28 (1975): 10–13.

[167] Book II, chapter 21.

[168] Book I, chapter 29.

free status within the city.[169] Liberty at home and empire abroad was the dominant theme of a Florentine patriotic tradition that harkened back to Sallust's *Bellum Catilinae*. The historical precedent of Rome extending its territory and conquering others in order to remain free – a precedent transmitted via Livy, Sallust, and Cicero – was potent and often invoked.[170]

Florence's civic myth involved a claim to a special Roman heritage. Most civic humanists justified Florence's republican empire as its right as defender of Tuscan liberty against the Visconti's attempted hegemony. The fundamental text was Leonardo Bruni's *Laudatio Florentinae urbis*, which exhorts Florentines to liberate Italy from the threat of servitude and to follow Rome by achieving Italian liberty under the aegis of a strong imperialist republic.[171] "The problem facing Florentine humanists was that, working within an ideological framework based on the fundamental distinction between the dominant city and its subject territory, they were often forced to express themselves in terms that revealed a princely set of mind within a generally republican outlook."[172] The struggles between cities "could only end with the total subjection of one city and *contado* to a stronger one."[173] Machiavelli separated himself from the tradition by stating the obvious truth that expansion did not strengthen Florence but weakened it, for Florence was paradoxically much weaker with all of Tuscany than it was with six miles of borders.[174]

[169] Rubinstein, in *The Government of Florence Under the Medici* (Oxford: Clarendon Press, 1966), cites evidence from a political debate of 1465. One could argue that Florentine liberty was not for that reason "inherently imperialistic," as Hörnqvist would describe it. Rather, Florentine liberty was a domestic policy that was paired with an imperialistic foreign policy. Arguably, the distinction between foreign and domestic policy explains some disturbing hypocrisy and contradictions better than broad claims about the nature of ideas.

[170] See Hörnqvist's able deconstruction of the Baron and Skinnerian civic humanist myth "The Two Myths of Civic Humanism" in *Renaissance Civic Humanism, Reappraisals and Reflections*, ed. James Hankins (Cambridge: Cambridge University Press, 2000), 142. See also Hörnqvist's *Machiavelli and Empire*, 41–50. Nicolai Rubinstein, "The Beginnings of Political Thought in Florence: A Study of Medieval Historiography," *Journal of the Warburg and Courtauld Institutes* 5 (1942): 198–227.

[171] Bruni recommends "enlarging empire to exalt the glory and splendor of the city." *Laudatio Florentinae Urbis*, found in Hans Baron, *From Petrarch to Leonardo Bruni: Studies in Humanistic and Political Literature* (Chicago: University of Chicago Press, 1968), 232–63; "Panegyric to the City of Florence," in *The Earthly Republic: Italian Humanists on Government and Society*, trans. and eds. B. G. Kohl and R. G. Witt (Philadelphia: University of Pennsylvania Press, 1978), 135–75. See also Coluccio Salutati, "De Tyranno" in *Humanism and Tyranny: Studies in the Italian Renaissance*, ed. Ephraim Emerton (Cambridge, MA: Harvard University Press: 1925), 70–116; Alamanno Rinuccini, *De Libertate, Humanism and Liberty: Writings on Freedom from Fifteenth Century Florence*, trans. and ed. Renée Neu Watkins (Columbia: University of South Carolina Press), 193–223; N. Rubinstein, "The Beginnings of Political Thought in Florence: A Study of Medieval Historiography," *Journal of the Warburg and Courtauld Institutes* 5 (1942): 198–227.

[172] Hörnqvist, in Hankins ed., 116.

[173] Chittolini, in Tilly ed., 33.

[174] Book II, chapter 19.

Machiavelli's critique of Florentine expansionism has been neglected by interpreters who view him as remaining within the civic republican tradition and Florentine imperialism. Such a view misses an important aspect of Machiavelli's thought that is novel, innovative, and creative. There was also, as recent scholarship revealed, an aspect of the civic republican tradition that aspired to Tuscan hegemony, a tradition of imperialism, simply put. It is with this tradition, the foreign policy of civic republicanism, in practice and in rhetoric, that Machiavelli takes issue and charts his own course on the seas of political thought. His awareness of new political realities, of the rise of monarchical states, and his direct experience in the Florentine territory enabled him to discern the weaknesses in received ideas and practices of territorial government.

Machiavelli found the traditional republican policies of subordinating subject cities dangerously outmoded. This was the first of the paradoxes of traditional republican foreign policy he sought to overcome. "And of all hard servitudes, that is hardest that submits you to a republic."[175] Machiavelli knew well what this meant, as did the people of Prato. Florence conquered Prato in the mid-fourteenth century and immediately put it in legal subjugation. Prato's citizens were barred from Florentine citizenship just as residents of Prato's *contado* were barred from citizenship within Prato. Prato was incorporated into the Florentine *contado*, deprived of the juridical definition of a city, and reduced to the lowly status of a *terra*. By the early sixteenth century, citizens of Prato owned 19 percent of taxable land while Florentines owned 44 percent.[176] Prato was ruined like a slave.[177] The lordship of a republic is harsh "because the end of the republic is to enervate and to weaken all other bodies so as to increase its own body."[178]

Territorial monarchies, even regional ones, embrace many cities,[179] but in Machiavelli's republican world, the ruling and subject city are locked in an asymmetrical relationship. To solve the dilemma that taxes his fellow Florentines, Machiavelli has to find room for both cities under one territorial sovereignty. And for this, Rome has answers: Appius could not gain countryside to himself "since the countryside and Rome were one and the same thing"[180] and if Florence had followed Rome they would "at this hour be lords of Tuscany."[181]

Most states in the early modern period, even the monarchies of France and Spain that Machiavelli admired, were "composite states" composed of smaller provinces, cities, and principalities. How was this accomplished? Conquest is one thing, as Machiavelli reminded his readers, expansion is another, it being no

[175] Book II, chapter 2.
[176] Elena Fasano Guarini, ed., *Prato storia di una citta* (Florence: Le Monnier, 1986), II. In addition, Holkham Library has a very rare edition of a *Storia de Prato* by Guardini, a citizen of Prato. The only other copy is in the archives of the Commune of Prato, Manuscript #570, Holkham Hall.
[177] Book II, chapter 2.
[178] Ibid.
[179] Ibid.
[180] Book I, chapter 40.
[181] Book II, chapter 21.

easy matter to integrate a conquest, a preexisting political unit, into a larger framework. Integration was one of the imperative political questions of early modern Europe, for which he proffers suggestions in chapters 1 to 7 of *The Prince* and the *Discourses* Book II, chapters 19 to 23, in particular.[182] The typology of extended (composite) republic, a republican empire, and league of cities clarifies the alternatives Machiavelli works through in Book II.

## BOOK II

In the preface to the second book of the *Discourses*, Machiavelli states that he will examine the territorial expansion of Rome, in particular the decisions that ordered it for expansion.[183] Accordingly in chapter 1 of Book II, he is even more emphatic about the significance of Rome for his project: never has there been a republic that was so organized to acquire as was Rome.

> There are so many orders observed by Rome, pertaining to the things inside as well as to those outside, are not only imitated, but not held of any account in our present times, since some are judged not true, some impossible. So much so that, since we are in this ignorance, we are prey to whoever has wished to overrun this province.[184]

Machiavelli is about to discover the secret to republican expansion – a glimpse of the new lands and seas he promised. Not only could Rome acquire, but its laws enabled it to maintain what it acquired. This capacity was especially relevant to Florence, which could not hold onto its conquered territories. If one is interested in conquest, he refers one to "our treatise of principalities," because he intends to address the acquiring and holding of provinces – territorial expansion and consolidation more broadly speaking – in the *Discourses*.

In chapter 2 of Book II, he discusses the possibility of merging principalities and republics.[185] Free cities expand because life for most people is better in them, and life is better because republics look after the common good.[186] Given the

[182] Rome has answers on the passage from the city-state to the territorial state; this sheds light on the genesis of the *Discourses*. It is conceivable that Machiavelli looked to Livy for answers, took down notes, and then fashioned the book, with the *Discourses* thus growing organically out of the notes.

[183] Of course, he speaks of decisions "pertaining to the increase of its empire," which imply the traditional republican/imperialism perspective, but it also seems that although Machiavelli may on occasion use the language of empire, he is seeking to overcome it. Book I, chapter 40, for example, and the Roman model for those reasons differ from the empire model celebrated by Bruni and Salutati, etc.

[184] Book II, preface.

[185] This interpretation of Book II, chapter 2 is inspired by Gennaro Sasso's reading of chapter 9 of *The Prince*, which Sasso interprets as an attempt to merge the princely model with the civic republican tradition. Sasso, *Niccolò Machiavelli*, 346–57.

[186] "But above all it is very marvelous to consider how much greatness Rome arrived at after it was freed from its kings. The reason is easy to understand, for it is not the particular good but the common good that makes cities great. And without doubt this common good is not observed if

advantages republics offer, why are republics so scarce at present and why were they so plentiful in the ancient world, he asks? After considering the effects of the Christian religion, which encourages suffering and acceptance rather than virtue, Machiavelli concludes that the scarcity of republics is the fault not of the Church but of the Roman Empire:

> Still, I believe the cause of this to be rather that the Roman Empire, with its arms and its greatness, eliminated all republics and all civil ways of life. And although that empire was dissolved the cities still have not been able to put themselves back together or reorder themselves for a civil way of life except in very few places of that empire.[187]

One simple interpretation is that Machiavelli is attributing blame to the Roman Empire, not the Roman republic. However, the Roman republic acquired an empire and governed it until the republic itself ceased to exist and was replaced by an imperial regime. Attributing a suffocation of civil and civic life to the Roman republican empire is further indicated by the statements that follow:

> And of all hard servitudes, that is hardest that submits you to a republic. First, because it is more lasting and there can be less hope to escape from it; second because the end of the republic is to enervate and to weaken all other bodies so as to increase its own body.[188]

Machiavelli does not elide or discount the complexities involved in thinking about how to expand republics and following the Roman example. Republics snuff out the life in cities they conquer. This is admittedly a negative. However, Machiavelli observes, princes are more humane than republics when it comes to dealing with subject cities: "A prince who makes you submit does not do this." He continues, "But if he has within himself human and ordinary orders, he usually loves his subject cities equally and leaves them all their arts and almost all their ancient orders. So if they cannot grow like the free, still they are not ruined like slaves."[189]

Although the common good is observed inside the walls of republics, outside the walls of Florence, one finds exploitation and servitude. A prince is better to his subject cities, "loves all equally." This contrast between modes of rule delineates the key elements of the dilemma; after the praise of the free way of life inside the walls of republics we walk outside to face the subjection on which it depends. In this manner, Machiavelli highlights the problems with expansion into surrounding cities. Cities were antagonists in central and northern Italy. "These conflicts, however, had as their object conquest and subordination of the territories of other city-states," and resulted in "territorial aggregates" prone to fragmentation.[190] Machiavelli highlights this antagonism and sets forth the

not in republics." Book II, chapter 2, 130. This language is highly traditional, as Quentin Skinner has stressed.

[187] Book II, chapter 2, 132.

[188] Book II, chapter 2, 133.

[189] Ibid.

[190] Chittolini, in Tilly ed., 33.

problem of combining the free way of life in republics with a principality's ability to accommodate expansion and treat all cities as equals.[191]

The challenge takes us directly to chapter 3, which reminds us that Rome grew through the ruin of Alba. Before assuming that Machiavelli wholeheartedly accepts the inherited premise that an expanding republic enslaves and "ruins" conquered cities, a closer inspection reveals that Rome became a great city by doing more than conquering its neighbors. "Rome became a great city" by admitting foreigners and increasing its population: "Those who plan for a city to make a great empire should contrive to make it full of inhabitants."[192] This is done by love (an open immigration policy) and by force (forcible immigration). By admitting inhabitants into marriages and citizenship, Rome "thickened the body of its city." It is not through subjecting cities but through absorbing them into the body of the state that a republic must expand. Here is another problem with expansion:

> A small republic cannot seize cities or kingdoms that are sounder or thicker than it. If however, it seizes one, what happens is as with a tree that has a branch thicker than a stem; it supports with labor and every small wind breaks it. Thus it was seen to happen in Sparta, which had seized all the cities of Greece. No sooner did Thebes rebel than all the other cities rebelled, and the trunk alone remained without branches. This could not happen to Rome since its stem was so thick it could easily support any branch whatever.[193]

It is possible Machiavelli looks over Florence's empire across to Tuscany on the horizon and offers advice to his fellow Florentines on a pressing and complicated issue. I venture to suggest that he had a specific audience in mind – those in Italy who, like himself, do not support the invaders and also mourn the "extreme misery, infamy, and reproach" that stain the laws, religion, and military of Italy with filth.[194]

"Republics Have Taken Three Modes of Expanding" is the title of chapter 4, Book II, one of the most important chapters in the entire *Discourses*. In his search for new modes and orders that will enable republics to expand in size and acquire the population and land to compete with monarchies, Machiavelli reaches a crossroads. Should a republic expand by way of leagues or by way of the territorial state? He surveys the alternatives, the first being to expand by forming a league of republics, making partners rather than slaves of neighboring

[191] Whether this constitutes a fourth mode of expansion in the typology of the *Discourses* remains to be seen. This aspect of Machiavelli's thought has been overlooked by Cambridge School interpretations.

[192] Of course, here he is using the inherited language of city and empire, but I contend he is trying to express something else with it. The assimilation of foreigners was *not* typical republican policy, so Machiavelli was not advocating what a cursory reading of the sentence implies.

[193] Book II, chapter 3, 134–5.

[194] "There is no observance of religion, or laws, and of the military but they are stained with every type of filth. And these vices are so much more detestable as they are in those who sit as tribunals, command everyone, and wish to be adored." Book II, preface, 124.

cities, "in which none was before another in either authority or rank." There was once a powerful league of republics in Tuscany, and the Tuscan league becomes a paradigm in chapter 4. The legacy of Rome has nearly effaced the memory of the Tuscans, but the little memory that remains of their greatness provides precedent for a peaceful way for republics to expand in an era of larger states. The second alternative is to seek partners by stealth through an asymmetrical but non-oppressive relation as the Romans did, which sought allies, not subjects, "but always reserved for itself the seat of empire and the title of command." The third option is to seek direct subjects as did the Spartans, Athenians, and obviously, the Florentines.

> Of these three modes, the last is entirely useless, as was seen in the two republics written about above, which were not ruined otherwise than by having acquired dominion they could not keep. For taking care of governing cities by violence, especially those accustomed to living freely, is a difficult and laborious thing.[195]

Machiavelli's thirst to discover the means for a renascent republicanism that can match territorial monarchies is palpable. Then he reveals a discovery as valuable as the Americas, one that will enable republics to compete with monarchies.

> For it got many partners throughout all Italy who in many things lived with it, *under equal laws*, and, on the other side, it always reserved for itself the seat of empire and the title of command.[196]

Rome acquired partners who lived under equal laws – this is one of Machiavelli's discoveries. Another later discovery is the knowledge that Rome had expanded by incorporating foreign peoples through treaties and extending citizenship.[197] Florence did not incorporate non-Florentines and this is the key to Machiavelli's original Roman revival, for it distinguishes Machiavelli from the civic humanist Romanism.[198] The terrain spreads out before him, and the vision of Rome arises to match contemporary monarchies that encompass multiple cities.

## INCORPORATION UNDER ONE RULE

In Book II, chapter 19, titled "That Acquisitions by Republics That Are Not Well Ordered and That Do Not Proceed According to Roman Virtue Are for Their Ruin, Not Their Exaltation," Machiavelli writes that those in power are stuck in bad customs, "in these corrupt centuries of ours." Expansion is not the only problem. Florence and Venice cannot hold on to their acquisitions. Reviving ancient practices is an opportunity for improvement: "those who have in their

[195] Book I, chapter 4, 136.
[196] Ibid.
[197] Book I, chapter 23.
[198] In addition to recommending the embrace of various cities, the emphasis on incorporating foreigners into citizenship as well as various cities also distinguishes Machiavelli's original Romanism.

hands a civil way of life would know better how to direct it." The Roman mode of acquiring territory will be the salvation of republics. Increasing the inhabitants of a city, getting partners and not subjects, sending colonies to guard cities "is the true way to make a republic great and acquire empire."[199] To those individuals who claim that a republic has to remain small to function properly, Machiavelli has this to say:

> It is impossible for a republic to succeed in staying quiet and enjoying its freedom and little borders. For if it will not molest others, it will be molested, and from being molested will arise the wish and the necessity to acquire; and if it does not have an enemy outside, it will find one at home, as it appears necessarily happens to all great cities.[200]

The republics of Germany remain urban and endure. "And if the republics of Germany can live in that mode, and have been able to endure for a time, it arises from certain conditions in that country that are not elsewhere, without which they could not keep to a like mode of life." The specific conditions are the political organization of the Holy Roman Empire, specifically the emperor, who acts as a conciliator among the various republics and principalities of the empire. Because the emperor can be counted upon to act as a mediator and protector, urban republics have no reason to fear their neighbor and have little reason to expand. These conditions do not exist in Italy: "Since there are no such conditions elsewhere, one cannot take this mode of life and needs either to expand by way of leagues or to expand like the Romans."[201]

From chapter 19 on to the end of Book II, a pattern begins in which an ancient Roman practice is deliberately followed by a modern Florentine example. Each chapter condenses the formula used in *The Prince*, in which all that has gone before is applied to the Italian situation in the last three chapters.

Along with chapter 5 of *The Prince*, "How Cities or Principalities Which Lived by Their Own Laws Before They Were *Occupied* Should Be *Administered*," the *Discourses* addresses one of the major issues of early modern political thought – incorporation under one rule. How to unite newly acquired countries, provinces, and territories with their distinctive ethnic groups, cultures, and political traditions was a problem that vexed state makers in the sixteenth and seventeenth centuries. The minds of monarchs from James I to Louis XII and political thinkers such as Giovanni Botero and Tommaso Campanella would be occupied with the problem of incorporation, and Machiavelli was one of the first political thinkers to address the issue of how to treat conquered territories.

"In any union the problem was how to hold onto such new acquisitions in a ruthlessly competitive world."[202] "Maintenere lo stato" recurs in *The Prince*

[199] The other orders include making capital out of booty, subduing the enemy with raids and battles and not with sieges, keeping the public rich and the private poor, and maintaining military exercises. Book II, chapter 19, 173.

[200] Ibid.

[201] Book II, chapter 19, 174.

[202] Elliott, "A Europe of Composite Monarchies," 51.

and the *Discourses* in the context of advice on how to merge provinces and cities and found a new state on the ruins of the old. It was extremely difficult to maintain the state in early modern Europe, for states were composite states, composed of various inherited or conquered kingdoms, cities, and patrimonial lands, and the continuous pursuit of new territory, driven by dynastic ambition or deeper systemic forces, threatened to undermine whatever internal cohesion had already achieved. Valois France was a mosaic of *pays d'élections* and *pays d'états*, a composite state, as was the Hapsburg empire, a state created out of inherited kingdoms and patrimonial lands with a composite character that would remain with it into the twentieth century. Spain was not a state but a vast conglomerate monarchy, likewise the Hohenzollern monarchy of Brandenburg-Prussia, England and Ireland, England and Wales, Piedmont and Savoy, Poland and Lithuania.[203] They were all composite states or "mixed principalities" as Machiavelli phrased it in chapter 3 of *The Prince*, and much of *The Prince* dispenses useful advice on how to administer to newly acquired principalities (chapters 1 to 7).

Time has shadowed the essence of the guidance Machiavelli proffered in chapter 5 of *The Prince*, but historical case studies provide evidence for what he had in mind and what his "long experience with modern things" really entailed. "When those states which have been acquired are accustomed to live at liberty under their own laws, there are three ways of holding them. The first is to despoil them; the second is to go and live there in person; the third is to allow them to live under their own laws."[204]

Of the three options – destruction, direct rule, or indirect rule – Machiavelli recommends the third course. In so doing, he advises union on the method of *aeque principaliter*, which was employed by the Spanish Habsburgs over the course of the sixteenth century. According to the seventeenth-century Spanish jurist Juan de Solorzano Pereira, there were two ways in which newly acquired territory might be united to a king's other dominion or dominions: (1) accessory union in which the province is regarded as juridically part of the original territory and the inhabitants possess the same rights and are subject to the same laws, or (2) *aeque principaliter*, according to which the kingdoms continue to be treated as distinct entities. In the Acts of Union of 1536 and 1543, England juridically incorporated Wales in an act of accessory union. *Aeque principaliter*, in contrast, often meant the perpetuation of estates and representative institutions.[205] For example, Spain's monarchy was a union of the crowns of Castile, Leon, Navarre, and Aragon. The separate identity of each kingdom was retained, and each was linked to the monarch in distinctive ways. The two constitutional systems coexisted, and as the institutional restraints on kingship

[203] Ibid., 50–51. See also H.G. Koenigsberger, *Politicians and Virtuosi: Essays in Early Modern History*.
[204] *The Prince*, chapter 5.
[205] Elliott, "A Europe of Composite Monarchies," 48–71.

were stronger in Aragon and Castile, the Spanish crown had to adjust its style of governing and restrain its power in Aragon, where stronger traditional limits on monarchical power prevailed. There was no common council, currency, legal framework, or administrative organization for all Spain.[206]

Machiavelli addressed the same issue in Book I of the *Discourses*, recommending in chapters 25 ("He Who Wishes to Reform an Antiquated State in a Free City May Retain a Shadow of Its Ancient Modes") and 26 ("A New Prince Should Make Everything New in a City of a Province Taken by Him") that a new prince should respect ancient modes or make things new – *aeque principaliter* or accessory union, respectively. Ultimately Machiavelli came down in favor of *aeque principaliter*, warning that "Princes begin to lose their state when they begin to break the laws and those modes and those customs that are ancient, under which men have lived a long time."[207]

The alternative posited in Book II, chapter 23, when dealing with cities that are used to living freely, "one must either eliminate them or caress them." Eliminate or caress, conquest or coalesce, was a contemporary dilemma. After acquiring a new kingdom or province and uniting it via *aeque principaliter*, therefore leaving much governmental machinery in place, some initial degree of integration was required for the new ruler to take effective control. Acquisitions had to be maintained "well ordered"; otherwise they lead to ruin.[208] The maintenance of any army of occupation, mentioned in chapter 5 of *The Prince* ("go and live there") and Book II, chapter 24, of the *Discourses* ("Fortresses Are Generally Much More Harmful Than Useful") was not only an expensive business; it was risky and ultimately counterproductive, as the Florentines found in Pisa, as the English found in Ireland, and as the Austrian Hapsburgs would find in Hungary in the next century.

Alternatively, the creation of new institutional bodies – new modes and orders – and patronage to win the allegiance of local elites seemed more likely to succeed. The first and most important institutional change experienced by a kingdom or province brought into union was the loss of capital status for its principal city.[209] Rome acquired partners under equal laws but always reserved for itself the seat of empire and title of command, Machiavelli reminded readers in Book II, chapter 4. Rome made itself the capital of an extended territory. The message for his fellow Florentines was that Florence should not subject other cities but treat them as equals while making itself capital of a new territorial entity. Paris went from the capital of the Île de France to the capital of the kingdom of France via a system of piecemeal integration. It was likewise with Madrid as the capital of the composite Spanish monarchy.

[206] Ibid., 54.
[207] Book III, chapter 5.
[208] Book II, chapter 19.
[209] Elliott, "A Europe of Composite Monarchies," 55.

Chapter 21 of Book II continues to distinguish the Roman mode of acquisition from the Florentine expansion of jurisdiction. The Romans let towns live under their own laws. Even if cities surrendered as subjects, the Romans raised them to partners. "They did not leave any sign of the empire of the Roman people but obliged them to some conditions, which if observed, kept them in their state and dignity."[210]

What a contrast this makes with the heavy-handed politics of the Republic of Florence. "These modes were followed until they went out of Italy and began to reduce kingdoms and states to provinces." He then discusses the first Roman praetor sent to Capua and the request of the Capuans to resolve internal discord. The lesson Machiavelli draws is that cities that are accustomed to governing themselves or "being governed by those of their own province remain more content under a dominion that they do not see, even though it may have in itself some hardship, than under one they see every day that appears to them to reprove them every day for their servitude."[211] He also recommends leaving the administration of justice in local hands because doing so eliminates many causes of hatred. After praising the "tameness and liberality" of the Romans he exclaims,

> But what need is there to go for examples to Capua and Rome, having them in Florence and Tuscany? Everyone knows about Pistoia coming voluntarily under Florentine rule. Everyone also knows how much enmity there has been between the Florentines and the Pisans, Lucchese, and Sienese.[212]

This passage refers of course to the other city-states that came under Florentine rule. The difference is due to the fact that the Florentines "always treated the Pistoiese like brothers, like equals," not like slaves. "And without doubt if the Florentines by way of either laws or of aids had tamed their neighbors and not made them savage, they would without doubt at this hour be lords of Tuscany." Interestingly, Machiavelli uses the same expression in *The Prince* to describe the aspirations of Alexander VI and Cesare Borgia.

Machiavelli's study of Roman expansion amounts to an original and unrecognized theory of political consolidation through indirect rule and gradual accommodation through a composite state. This sort of pragmatic, textured political thinking would be bypassed by the glistening theoretical economy of monarchical absolutism. The viability of composite states was forgotten during centuries of centralization and, as a result, this aspect of Machiavelli's thought was lost in time.[213]

[210] Book II, chapter 21, 177.
[211] Ibid.
[212] Book II, chapter 21, 178.
[213] Tilly and te Brake noticed that Machiavelli's thinking on expansion was remarkably consonant with the composite state. I took their insight and explored it by systematically examining *The Prince* and *Discourses*. See Tilly, *Cities and the Rise of States in Europe*, 2; and Wayne te Brake,

In 1494 many cities that had once been independent revolted and reclaimed their ancient liberties, demonstrating that the traditional republican manner of acquisition could not lead to a unified political organization. Speaking before the French king in 1495, the Pisans complained of the "crudelta e avarizia" of the Florentines and of not having any official role in the administration of the Florentine empire.[214] To avoid repetition of that fiasco, Machiavelli recommends either treating subject cities like Pistoia, thus breaking out of the master/subject city mindset, or destroying the conquered territory. A state must flee from "the middle way" when dealing with conquered subjects. The context of the "middle way," which was a favored policy of the Florentine political class, has been ably discussed elsewhere.[215] What should not be forgotten is Machiavelli's emphasis on citizenship. Either give conquered peoples the privilege of citizenship, as Rome made the Latins Roman citizens, he says, or crush the city and disperse the citizens to colonies:

> Bringing forward, town by town, all those of some moment, they either benefited them or eliminated them. They gave exemptions and privileges to those who were benefited, giving them citizenship and securing them on every side.[216]

In that manner he criticizes Florence's actions dealing with the 1502 Arezzo and Val de Chiana rebellion.[217] The Florentines should have known how to punish

*Shaping History: Ordinary People in European Politics, 1500–1700* (Berkeley: University of California Press, 1998), 166–70.

[214] Burgundio Leoli, speaking on behalf of Pisans not having been "*ammessi a qualita alcuna d'uffici o d'amministrazioni nel domino foirentino*." Michael Mallett, "Pisa and Florence in the Fifteenth Century: Aspects of the Period of the First Florentine Domination," in *Florentine Studies: Politics and Society in Renaissance Florence*, ed. Nicolai Rubinstein (London: Faber and Faber, 1968), 404.

[215] See Hörnqvist, *Machiavelli and Empire*, 136–47, for a highly contextualized reading of the chapter. I do not read Machiavelli as arguing subtextually that the "door had been closed to more subtle forms of manipulation" (143). The Laurentian republic had blown opportunities, as had Soderini's republic to a lesser extent. But the very act of writing the *Discourses* belies the hope Machiavelli had that a "connoisseur of opportunity" might use the present political flux to expand – guided by the lessons of Rome as he distilled them. Connoisseurs of the opportunity (*conoscitori della occasione*) is an expression Machiavelli uses in *Del Modo* to describe Pope Alexander VI and his son Cesare Borgia. See Marchand ed., *I primi scritti*, 105.

[216] Book II, chapter 23, 182. He continues, "They demolished the towns of the others, sent colonies there, brought them to Rome, and dispersed them so that they could no longer hurt either through arms or counsel."

[217] The origin of this chapter is found in one of Machiavelli's early Chancery era writings, *Del modo di trattare I popoli dell Valdichiana ribellati*, "On the mode of treating the rebelling peoples of the Valdichiana." The piece contains Machiavelli's first use of the Romans as exemplary models of political wisdom. *Opere*, ed. C. Vivanti (Turin: Einaudi, 1999), I: 22–6. Machiavelli's retelling streamlines Livy's to emphasize the policy of two extremes, according to J. J. Marchand. See Marchand, *I primi scritti*, 107–14. Sergio Bertelli and Gennaro Sasso both interpreted *Il modo* as primarily literary in character. Sergio Bertelli, "Nota introduttiva," in *Arte della Guerra e scrittici politici minori*, ed. S. Bertelli (Milan: Feltrinelli, 1961), 68. Marchand finds *Del modo* useful because in it Machiavelli departs openly from official Florentine foreign policy. Marchand, *I primi scritti*, 324. Elena Fasasno Guarini and Mikael Hörnqvist find more value in it as a reflection of Machiavelli's early territorial preoccupations in office.

Arezzo by demolishing it, which would have secured their rule, rather than exiling half the city, depriving the remaining citizens of their ranks and then leaving the city intact. When dealing with powerful cities used to living freely, one should choose one of two extremes: eliminate or caress, destroy them or live there, and the decision should be based on good sense and prudence.[218] After the Privernates rebelled, Rome did not punish a free people, but rather the senate wisely sought to secure a long peace by making them Roman citizens and "honoring them with the privileges of citizenship." Machiavelli quotes Livy accurately for the justification of extending citizenship to the rebellious Privernates: "Only those who think of nothing except freedom are worthy to become Romans."[219] He observes that such a generous response pleased generous spirits and any other response would have been a cowardly lie.[220] He continues:

> Those who believe otherwise of men, especially of those used to being or seeming to themselves to be free, are deceived in this and under this deception take up policies that are not good for themselves and not such as to satisfy them. From this arises frequent rebellions and the ruin of states.[221]

Machiavelli seems to be saying that freedom-loving people, even those who rebel, are worthy of citizenship and generosity. If you think otherwise and choose to denigrate free citizens of a conquered city, thinking them unworthy, you deceive yourself. From such self-deception arise ruin and rebellion. This leads to the famous conclusion that when one has to judge powerful free cities, "one must either eliminate them or caress them."[222] It is easy to be intrigued by the bravura of "eliminate them" and focus on it to the exclusion of the recommendation to extend citizenship to conquered people.[223] Given that Florence's expansion involved the conquest of formerly free cities, many of which remained restive and rebelled repeatedly, it would seem wise to respect their citizens' commitment to freedom and attempt to integrate them into a broader political community. Of course, while such a recommendation is applicable to the Florentine situation, it is not exclusively limited to it, because

[218] Book II, chapter 23.
[219] Quoted precisely from Livy, VIII, chapter 21, 184.
[220] "Tanto piacque agli animi generosi questa vera e generosa risposta, perché ogni altra risposta sarebbe stata bugiarda e vile." Bausi ed., I: 461.
[221] Book II, chapter 23, 184.
[222] "Quando si ha a giudicare cittadini potenti, e che sono use a vivere libere, onviene o spegnerle o carezzarle; altrimenti ogni giudizio è vano." Bausi ed., I: 462.
[223] This is what Guarini does when she accuses Machiavelli of ignoring the Roman practice of extending citizenship, instead emphasizing middle-of-the-road solutions. Guarini in Skinner, Bock, and Viroli, 39. In my reading he does not ignore citizenship. The Roman practice of extending citizenship is a prominent part of the chapter, and is more prominent in the *Discourses* than it is in *Del Modo*.

the problem of how to treat conquered territories is an intractable and enduring political problem.[224]

How to consolidate a conquered city was another contentious issue for Florentines. While the Florentine republic was reluctant to invest in defense or any of the other accoutrements of foreign policy, it did invest in fortresses. Fortresses were the lynchpin of territorial expansion, and citadels placed across the walls of a subject city both dominated the city and protected a precious conquest from being snatched by another aggressor.[225] However promising fortresses appeared on paper, in practice they did not work as planned. Florence surrendered its new fortresses to the French in 1494. Pisa revolted that same year, despite the fortresses Florence had constructed. Nor did Florence's investments prevent Borgia from crossing Tuscany in a march that, aside from providing a thrilling example of what an Italian leader with courage and luck might accomplish, gave Machiavelli an additional reason to dissent from the standard practices of the Florentine government establishment.[226] And he clearly targets the Florentine governing class, *i savi*, the wise ones, in the opening sentence of chapter 24 of Book II:

> To the wise men of our times it will perhaps seem a thing not well considered that when the Romans wished to secure themselves against the people of Latium and the city of Privernum, they did not think of building some fortresses, which would be a check to keep them in faith, especially since it is a saying in Florence, cited by our wise ones, that Pisa and other similar cities should be held with fortresses.[227]

Rome, by contrast, when it lived freely, never built fortresses to hold cities or provinces. Given the contrast between Roman and Florentine practice, Machiavelli proceeds to examine the issue in greater depth. Fortresses give both princes and republics a false sense of security and make them more audaciously brutal toward their subjects, observes Machiavelli. He counsels against trying to hold a subject city with violence and oppressive

[224] Hörnqvist writes, "Although Machiavelli's argument is couched in general terms, there can be little doubt that his targets are the Florentine *Ottimati*." *Machiavelli and Empire*, 101. While it is clear from the text of the *Discourses* that Machiavelli had issues with the policies of "the wise men of Florence," the middle way being one of them, I do not believe that the chapter need be interpreted so narrowly. Machiavelli draws a general conclusion because he believes he has unearthed unchanging precepts of political behavior that happen to be applicable to the situation in which Florence finds itself, but that may well be equally applicable to republics and principalities and other forms of states in the future.

[225] Mallett, "The Theory and Practice of Warfare," in Skinner, Bock, and Viroli, 176.

[226] Ibid.

[227] Book II, chapter 23, 184: "E' parrà forse a questi savi di' nostri tempi cosa non bene considerate chi I Romani nel volere assicurasi de' popoli di Lazio e della città di Priverno, non pensassono di edificarvi qualche fortezza, la quale fosse uno freno a tenergli in fede; sendo massime un detto in Firenze, allegato da' nostril savi, che Pisa e l'altre simili città di debbono tenere con le fortezze." Bausi ed., I: 463.

force.[228] If you drain a city of its resources and impoverish its people, he quotes Juvenal, "arms remain to the despoiled." If you disarm a subject people, "fury supplies arms" (quoting Virgil). And remarkably, "if you kill their heads and follow by injuring the others, the heads are reborn like those of hydra."[229] Thus, common imperialist practices of impoverishing a city, disarming it, and killing its leaders are all futile, warns Machiavelli.

Moreover, in times of peace, citadels, structures of violence, "give you spirit to do evil," an interesting commentary on the psychological allure of instruments of oppression. For princes, fortresses induce a dynamic of violence. "For it makes you more prompt and less hesitant to crush them, and this crushing makes them so disposed toward your ruin and inflames them so that the fortress, which is the cause of that, cannot defend you."[230] Because Guidobaldo of Urbino was loved by his people, out of respect for them he eliminated all its fortresses, relates Machiavelli. Being a benevolent and humane prince may have benefits after all.[231] Returning to republics, Machiavelli believes the experience of Florence with Pisa is example enough.

> The Florentines made fortresses there to hold that city. They did not know that if they wished to hold a city that had always been an enemy to the Florentine name, had lived freely, and in rebellion had freedom as its refuge, it was necessary to observe the Roman mode: either to make it a partner or demolish it.[232]

As well as recapitulating the oft-repeated Roman lesson, this quote highlights the problems involved in creating a larger territorial unit in north central Italy – the fact that each city was so committed to its own liberties, expansion might mean crushing another republic, as Rome grew from the ruin of Alba.[233] Machiavelli admits Florence could have held Pisa by its customary policies (the middle way) were it not for the fortresses that made it easy for King Charles to take Pisa away, a rare departure from his scathing critiques of Florentine territorial policy.[234] After again delineating the uselessness of fortresses, Machiavelli concludes in praise of generosity and partnership with defeated republics:

[228] That is, he counsels against it unless one can put a good army in the field or "disperse, eliminate, disorder, and disunite them in such a mode they cannot get together to hurt you." *Discourses*, Book II, chapter 24, 185. "Disperse, eliminate, disorder, and disunite" captures more fully the optional extreme of "destroying" them – the other being "living there" or making partner cities. Whether Machiavelli actually thought this was a realistic option is an open question.

[229] Book II, chapter 24, 185.

[230] Book II, chapter 24, 186.

[231] Later in the same paragraph he praises Ottaviano Fregoso for holding his state on virtue and prudence, which sounds more like the Machiavelli we have come to know.

[232] Book II, chapter 24, 188.

[233] See also Book III, chapter 12, 247, which discusses the challenges Florence faced when expanding in Tuscany because of the preponderance of free cities.

[234] "The modes by which it had been kept until that time would perhaps have been sufficient to preserve it, and without doubt would not have given a worse proof than the fortresses." Book II, chapter 24, 188.

And so he who will consider all I have said will come to know that as the Romans were wise in every order of theirs, so were they prudent in this judgment of the Latins and of the Privernates, in which, not thinking of fortresses, they secured themselves against them with more virtuous and wiser modes.[235]

Relying on fortresses, violence, and military rule without trying to build a state through the Roman methods of citizenship and gradual integration leads to a chaotic political landscape of insecure acquisitions and ramshackle states.

Furthermore, the traditional Florentine policy of dividing conquered cities was ill advised. Machiavelli addresses this, yet another misguided policy Florence used to consolidate its territorial conquests, in chapter 27 of Book III: "How One Has to Unite a Divided City; and How That Opinion Is Not True That to Hold Cities One Needs to Hold Them divided." To unite or "to compose" a divided city, there are three options: kill the leaders of the factions, exile the leaders, or make them agree to lay down arms and agree peacefully. The last mode he judges impossible, "[s]ince every day they together look themselves in the face; and it is difficult for them to abstain from injuring one another, since every day new causes of quarrel can arise among them through conversation."

Subsequent centuries would prove this difficult but not impossible. While Machiavelli refrains from discussing exile, he recommends following another Roman practice gleaned from the way the Roman consuls reconciled the Ardeans: "kill the heads of tumults." As a contemporary example he offers the city of Pistoia, which had come under Florentine rule. The Florentines used the third mode, attempting to broker peace between the two warring parties, to no avail. They then moved to the second mode and sent party leaders to prison or exile. Putting the party leaders to death would have been the best strategy, but "because such executions have in them something of the great and generous," a weak republic will not dare to do so.[236] Machiavelli is recommending a harsh and violent course of action, but he does not simply advocate destruction. Therefore his advice cannot be considered part of the strategy of total destruction that is the alternative to bringing conquered cities into citizenship – the strategies of caress the Romans used to great effect. Pistoia is not to be destroyed, but its leading agitators are.

Along with fortresses, Florence attempted to consolidate its territorial conquests by fomenting internal division within cities. As with fortresses, Machiavelli judges this policy not only futile but dangerous because of its insidious effects on a republic attempting to consolidate authority. He continues,

There is no finer mode of making your citizens wicked and of making your city divided than to have a divided city to govern; for each part seeks to have support, and each makes friends for itself with various corruptions. So two very great inconveniences arise from it, one that you never make them friends to yourself through not being able to govern them

[235] Book II, chapter 24, 190.
[236] Book III, chapter 27, 274.

well, since the government often varies, now with one, now with the other humor; the other, that such concern for party of necessity divides your republic.[237]

Finally, Florence and Venice had a habit of acquiring territory through money and mercenaries, and have found "that the things they acquire with gold, they do not know how to defend with steel." Both republics chose to disarm their people, which made them vulnerable to invasion.[238] The Roman republic, though not the later empire, which fell into the same habit of paying for protection, arises as a paradigm of invulnerable territorial consolidation:

For the foundation of its state was the people of Rome, the Latin name, the other partner towns in Italy, and their colonies, from which they drew so many soldiers that with them they were sufficient to combat and hold the world.[239]

## DUELING MODELS: ROME AND TUSCANY

As previously mentioned, the very survival of republican government in Florence was a central issue in the early sixteenth century, and republican government was under threat because of its inability to expand.[240] Returning once more to Book II, chapter 4 ("Republics Have Taken Three Modes of Expanding"), we have explored the Roman option of acquiring partner cities while preserving primacy in the capital city and the rejected Florentine (also Spartan and Athenian) policy of reducing conquered cities to subservient status. There remains a third option:

One has been that which the ancient Tuscans observed, being a league of several republics together in which none was before another in either authority or rank; in acquiring other cities they made them partners, in a like mode to what the Swiss do in this time and what the Achaeans and the Aetolians did in Greece in ancient times.[241]

He relates that the Tuscan or Etruscan League eventually counted twelve cities of equal rank, among them Arezzo, Fiesole, and Volterra, which any Florentine would recognized immediately as Florence's subject cities, "that governed their empire by way of a league."[242] The league could not expand beyond Italy but even so it "is the best mode after that of the Romans." Unlike Rome, which made itself the sovereign capital, a republican league has no leading or capital city.

[237] Book III, chapter 27, 275.

[238] "What this disorder has done to Florence was seen and is seen every day; as soon as an army passes beyond its borders and enters near its heart, it does not find any more remedy." Book II, chapter 30, 201.

[239] Ibid.

[240] Herlihy, *The Rulers of Florence*, 225; Guicciardini, *Dialogo del reggimento di Firenze*, has interlocutor Capponi blame the Medici regime for its inability to expand its territory.

[241] Book II, chapter 4, 135.

[242] Notice that Machiavelli uses "empire" to mean "rule," obviously not the establishment of a hegemonic imperial system. "E furono dodici città, tra le quail era Chiusi, Veios, Arezzo, Fiesole, Volterra e simili, I quail per per via de legal governavano lo imperio loro." Bausi ed., I: 330.

Political authority is shared and resides in various cities. "The cause of its inability to expand is its being a republic that is disunited and placed in various seats which enables them to consult or decide with difficulty." This limited ability to expand has positive effects: "Since you cannot expand very much with it, two goods follow: one, that you do not easily take a war on your back; the other, that you easily keep as much as you take." Republican leagues lack the thirst for domination because the rewards of domination must be shared among participating cities. The fixed limit of leagues Machiavelli estimates to be around twelve or fourteen communities.

> For having arrived at a rank that seems to enable them to defend themselves from everyone, they do not seek larger dominion, both because necessity does not constrain them to have more power and because they do not see any usefulness in acquisitions for the causes said above.[243]

Expanding by way of leagues or federated bodies was not merely an antiquarian idea; it was a modern option that presented a powerful non-imperial model for expansion.[244] Before the nation-state straitjacket, political bodies organized themselves in a variety of creative ways, which made for a colorful and complex political geography. In early modern Europe, expanding by way of leagues had definite possibilities, as shown by the Hanseatic League, the Swabian League (which Machiavelli noticed), and the newly formed Helvetic (Swiss) Confederation. The Swiss were a potent force in politics and in the political imagination of early modern Europe. The possibility of provinces "turning Swiss" sent fear into the hearts of Europe's ruling elite.[245] The Swiss fascinated Machiavelli, as evidenced by the wondrous admiration for them in his letters to Vettori, because the Swiss League was militarily strong enough to withstand the blows of monarchical states, but its military strength did not destroy the liberty of its cities.[246] The Swiss Confederation had defeated the great armies of the Holy Roman Emperor Maximilian I in 1499, thereby winning its independence and preserving communal self-government. In contrast to the republican model practiced by the Swiss, "Rome Became a Great City Through Ruining the Surrounding Cities."[247] Expanding by means of an inclusive

[243] Book II, chapter 4, 137.

[244] With respect to glory or *grandezza*, Hulliung and Hörnqvist read Machiavelli as extolling the virtues of a strong imperialist power. In contrast, Baron and Viroli contend that Machiavelli's true preference is for a plurality of states, with imperialism as a second choice. I do not believe one answer is correct. Machiavelli probably preferred peaceful coexistence but admitted that it was impossible. What I wish to emphasize is that both sides (the peaceful and ferocious Machiavelli) overlook the idea of an extended republic.

[245] Thomas Brady, *Turning Swiss, Cities and Empire, 1450–1550* (Cambridge: Cambridge University Press, 1985).

[246] For more on Machiavelli's admiration for the Swiss Confederation see Book I, chapter 12; Book II, chapters 4, 12, 16; and John Najemy, *Between Friends*, chapter 4, "The Swiss and the Sweetness of Domination," 156–67.

[247] Book II, chapter 3.

confederation preserves local liberties, rather than sacrificing them for the preservation of the liberty of a single city's inhabitants.

Expanding by means of an inclusive confederation would seem to be the solution to the difficulties of expansion peculiar to Tuscany, a land overflowing with proud free cities. In Book III, chapter 12, in the context of advising how difficult it is to recapture a town after a rebellion, Machiavelli states that such obstinacy and defiance arise because of the jealousy that neighboring republics have for one another (as happened in Tuscany). He proceeds to explain the difficulties in creating larger state units in Tuscany. The multiplicity of city-states accustomed to freedom makes the creation of an enlarged republic more difficult.

> Therefore, whoever considers well the neighbors of the city of Florence and the neighbors of the city of Venice will not marvel, as many do, that Florence had more expense in wars and acquired less than Venice. For it all arises from the Venetians' not having had neighboring towns so obstinate for defense as Florence has had, because all the cities next to Venice had been used to living under a prince, and not free, and those who were accustomed to serving often reckoned little a change of patron – indeed, they often desired it. So although Venice has had more powerful neighbors than Florence, because it found the towns less obstinate, it has been able to conquer them sooner than did the latter, which was surrounded all by free cities.[248]

It has been claimed that some civic humanists advocated a system of independent city-states in central Italy.[249] Hans Baron, for instance, offered a reading of Coluccio Salutati and other civic humanists as favoring peaceful coexistence. Mikael Hörnqvist, by contrast, views them as favoring imperial conquest. It is more likely that civic humanists were divided on the issue. Rhetoric aside, in 1403, an urban league, with Florence at the head, had formed to defend the city republics from Visconti aggression. A century later, Cesare Borgia proposed that Florence, Bologna, and Ferrara join with his new duchy in Romagna to form a league.[250] An alliance with Lucca helped Florence reconquer Pisa in 1509, and Florence and Siena negotiated when Borgia's shadow loomed over Tuscany.[251] Elsewhere in the *Discourses*, Machiavelli raises the example of Tuscany, "where one sees three republics – Florence, Siena, and Lucca – have long been in a small space of territory."[252] A Tuscan league then along the lines Machiavelli suggests was timely.

[248] Book III, chapter 12, 247.

[249] One could also argue that 15th century humanists envisioned what might be termed "imperialistic" benefits or consequences of territorial conquest without directly advocating conquest. It is also possible they did not seriously consider the issue.

[250] Niccolò Machiavelli, *Legazioni e Commissarie*, ed. S. Bertelli (Milan: Feltrinellli, 1964), II: 699–702.

[251] Stephens, *The Fall of the Florentine Republic*, 97–107.

[252] Book I, chapter 55, 112.

The success of the Swiss republican league in defending republics from monarchical hegemony made expansion by way of a league a credible option for those struggling with the issue in the sixteenth century. "The formation of leagues or confederations in defense of common political interests vis à vis aggressive princes was characteristic of large scale conflicts in very diverse settings."[253] Leagues were ubiquitous in early modern Europe, from the *Comuneros* of Castile to the peasant leagues of rural Germany, the Huguenot and Catholic leagues in France, the Swiss Confederation, and the most successful of all, the Dutch Confederation. After the American Revolution the thirteen American colonies, in time-honored fashion, established a league of sovereign individual states governed by the Articles of Confederation. "In 1776 Americans constituted not a body politic but an association of bodies politic – a league of firm friendship, a *republique federative*."[254] The problems with this arrangement necessitated the creation of an empowered extended republic. Urban federations or leagues were not devoid of problems, as Machiavelli observed centuries before the thirteen former colonies of Great Britain realized as much. Republican leagues "govern themselves through a council and must be slower in every decision than those who live within one and the same wall."[255]

Machiavelli's seriousness on the subject of leagues has been debated. Interpreters who insist Machiavelli has eyes only for an imperialist republic do not take him at his word.[256] Others claim the opposite – that a league of republics rather than the Roman republic is Machiavelli's ideal given his praise for the multitude of free republics that existed before the Roman Empire.[257] It seems sensible to let Machiavelli speak for himself. The Roman model is unmatched for its brilliant originality:

[253] Te brake, *Shaping History*, 173.

[254] David C. Hendrickson, introduction to *Peace Pact: The Lost World of the American Founding* (Lawrence: University of Kansas Press, 2003).

[255] Book II, chapter 4, 137. The Dutch solved this problem with the Union of Utrecht, a defensive alliance.

[256] Leo Strauss, *Thoughts on Machiavelli* (Chicago: University of Chicago Press, 1958), 89; Mark Hulliung, *Citizen Machiavelli* (Princeton: Princeton University Press, 1983), 5–10, 26.

[257] Hans Baron, *In Search of Florentine Civic Humanism: Essays on the Transition from Medieval to Modern Thought*, 2 vols. (Princeton: Princeton University Press, 1988), II: 148–50. Maurizio Viroli argues that Machiavelli recommends that Florentines follow the example of the ancient Tuscans, a reading I find persuasive. Maurizio Viroli, *From Politics to Reason of State: The Acquisition and Transformation of the Language of Politics 1250–1600* (Cambridge: Cambridge University Press, 1992), 162. Hörnqvist presents the possibility that Machiavelli advocated the deceptive use of leagues based on his statements regarding Florentine treatment of Pistoia and his belief that, had they treated it as a partner, Florentines would be "Lords of Tuscany." *Machiavelli and Empire*, 140. Such a reading of the text may be accurate. However, I believe the policy of partnership Machiavelli refers to in Book II, chapter 21 is the Roman *carezze*, which does lead to encirclement and subjection by deception, but not the league model.

That which the Romans took is known therefore to be the true mode, which is so much more wonderful inasmuch as before Rome there is no example of it, and after Rome there was no one who imitated it.[258]

However, Machiavelli was realistic and acknowledged that imitating Rome might be too much to ask of the Italians of his day, "since some are judged not true, some impossible, some not to the purpose and useless. So much so that we are prey to whoever has wished to overrun this province." Machiavelli concedes there may be another non-Roman viable remedy:

And if imitation of the Romans seems difficult, that of the ancient Tuscans should not seem so, *especially to the present Tuscans* [emphasis added]. For if they could not, for the causes said, make an empire like that of Rome, they could acquire the power in Italy that their mode of proceeding conceded them. This was secure for a great time, with the highest glory of empire and of arms and special praise for customs and religion.[259]

While writing the *Discourses*, Machiavelli was thinking outside the walls of republican thought and struggling with the state beyond the walls of Florence. Likewise, his use of the term *Tuscans* rather than *Florentines* indicates the territorial dimensions of his political thought. Although Machiavelli devotes the *Discourses* to exploring the extended Roman republic, he never closes the door on the Tuscan league model. The league model might not lead to a great empire, Machiavelli concedes, but it would lead to security for a long time.

## TUSCANY

Conscious of the powerful connotations of *Tuscany*, Machiavelli used the expression "lords of Tuscany" memorably and repeatedly, as in, "The Florentines would at this hour be lords of Tuscany."[260] An attentive reader of the *Discourses* will recall the other use of the expression in reference to Cesare Borgia and Pope Alexander VI in *The Prince*. Hegemony or lordship over Tuscany had long been the goal of the Florentine republic, and "lord of Tuscany" was a venerable expression that figured prominently in public speeches. Florentines justified their aggrandizement with their historic role as defenders of Tuscan liberty in the wars against the Visconti.[261] Hence, when the Tuscan league appears as a model for present-day Tuscans, the emphasis is on the territorial expanse of "this province," for the league would have embraced most of Tuscany, including the eminent Tuscan cities of Florence, Siena, and

[258] Book II, chapter 4, 138.
[259] Ibid. "E quando la imitazione de' Romane paresse dificile, non doverrebbe parere così quela degli antichi Toscani, massime a' presenti Toscani. Perché se quelli non poterono, per le cagioni dette, fare uno imperio simile a quel di Roma, poterono acquistare in Italia quella potenza che quell modo del procedure concesse loro. Il che fu per un gran tempo sicuro, con soma Gloria di'imperio e d'arme, e massime laude di costume e di religione." Bausi ed., 337–8.
[260] Book II, chapter 21.
[261] Baron, *The Crisis of the Early Italian Renaissance*.

Lucca. Tuscany is unique among Italian provinces and holds out the promise of a republican renewal.

The *Discourses'* great chapter on political culture, Book I, chapter 55, contrasts the corrupt regions of Italy with Tuscany, which alone is fertile ground for republics.[262] Gentlemen who live off income from land and especially those who live in castles and command "are pernicious in every republic and in every province." The city of Rome, the kingdom of Naples, the Romagna, and Lombardy are full of gentlemen. "From this it arises that in these provinces no republic or political way of life has ever emerged for such kinds of men are altogether hostile to every civilization."[263] For that reason Machiavelli surmises that it would not be possible to introduce a republic in such lands. If one wished to construct a state, "there would be no other way than to make a kingdom there,"[264] because only a kingly hand can control the ambition of powerful aristocracy.[265] In contrast, Tuscany is a civic republican paradigm; it is overflowing with independent free cities. Not only Florence, Lucca, and Siena, but even the conquered republics are rambunctious and thirst for freedom: "The other cities of that province are seen to be servile in such a mode that one sees that with spirit and with order they would maintain or would like to maintain their freedom."[266]

He continues:

> All this has arisen because in that province there is no lord of a castle and no or very few gentlemen, but there is so much equality that a civil way of life could easily be introduced there by a prudent man having knowledge of ancient civilizations. But its misfortune has been so great that it has not run into any man who has known how to do it.[267]

These words warrant closer examination. First, he refers to province, *in quella provincia*, not city. Moreover the issue is introducing a civil way of life, *vivere civile*, into that province. *Vivere civile* is a basic term of civic republicanism and its frame of reference was *città*; it was used most often in reference to the city. This civil way of life that Machiavelli envisions (and it should be noted that Florence, Lucca, and Siena were independent republics that could already boast

[262] The chapter is titled "How Easily Things May Be Conducted in Those Cities in Which the Multitude Is Not Corrupt; and That Where There Is Equality, a Principality Cannot Be Made, and Where There Is Not, a Republic Cannot Be Made." For a powerful and searching reading of Book I, chapter 55, see Gennaro Sasso, *Studi su Machiavelli* (Naples: Morano, 1967), 111–59.

[263] Book I, chapter 55, 111.

[264] Ibid.

[265] The reader is reminded of a similar observation Machiavelli makes about the kingdom of France in chapter 3 of *The Prince*.

[266] Book I, chapter 55, 112.

[267] Ibid.: "Tutto è nato per non essere in quella provincia alcuno signore di castella e nessuno o pochissimi gentili uomini, ma esservi tanta equalità che facilmente da uno uomo prudente, e che delle antiche civilità avesse cognizione, vi s'introdurrebbe uno vivere civile. Ma lo infortunio sou è stato tanto grande che infino a questi tempi non si è abbattuta a alcuno uomo che lo abbia possuto o saputo fare." Bausi ed., 267.

a civil way of life within their walls and *contado*) must therefore be something new – a provincial *vivere civile*. And this civil life of territorial dimensions will be introduced by a prudent man. It has been Tuscany's misfortune that it has not "run into any man," which is more accurately translated as "been beaten by any man," *non si è abbattuta a alcuno uomo*. Recall the lesson of chapter 25 of *The Prince*, that to capture fortune one has to beat her, "for fortune is a lady, and it is necessary if one wants to hold her down, to beat her *(batterla)* and to dash her."[268]

The Tuscan league discussed in Book II, chapter 2, was an option, but by Machiavelli's own words a second best, and he does not explore leagues in greater depth. Reading the *Discourses* together with *The Prince*, which the cross-references suggest a reader do, we read Book I, chapter 55, together with chapters 3, 5, 9, 14, 24, 25, and 26 of *The Prince*.[269] Machiavelli encourages the princely reader to embark on a campaign of conquest – in particular to model himself on Cesare Borgia, who almost became lord of Tuscany; to introduce new orders; to prepare for war with a popular army; and to assemble a state out of conquered territories. Tuscany is the ideal province for introducing a civil way of life and then expanding perhaps to encompass papal territories. The House of Medici, the illustrious house addressed in chapter 26, controls one of Tuscany's great cities and all the papal territories.[270] The prefaces to Books I and II suggest that, while for a time Machiavelli did pin his hopes on the Medici, on Leo and Lorenzo, after being disappointed, he began to hope that another great man might arise. Rather than speculate on the precise recipient, we would do well to focus on what Machiavelli hoped a prudent man with classical political acumen would do. Based on historical and textual evidence it is possible Machiavelli envisioned replacing Florence's fragile empire with an extended or composite republic, composed of the various cities and territories of Florence's empire in Tuscany, that might expand to encompass the other cities and territories of Tuscany where "there is so much equality a civil way of life would easily be introduced there."

To encompass this wider community, he used the term *Tuscany*, drawing on ancient Etruscan memories.[271] This was popular, as monarchs uniting the crowns of Castile and Aragon chose Spain as a new name to revive old memories of Visigothic Hispania in order to evoke and encourage a wider focus of

[268] Niccolò Machiavelli, *The Prince, with Related Documents*, ed. and trans. William J. Connell (Boston: Bedford/St. Martin's, 2005) (hereinafter Connell ed.), 119: "perchè la fortuna è donne, ed è necessario, volendola tener sotto, batterla eduurtarla." Niccolò Machiavelli, *Il Principe*, ed. L. A. Burd (Oxford: The Clarendon Press, 1891) (hereinafter Burd ed.), 365.

[269] And with chapters 19 and 20. Chapters 15–17 should be read with Book III, chapter 41.

[270] Of Leo X, Francesco Vettori observed to Machiavelli, "I am not talking of the pope, who if he were not a priest would be a great prince." Letter of August 5, 1513, in Atkinson and Sices 246.

[271] "[H]is hope was also grounded on his recollection of Tuscan glory," wrote Leo Strauss, but in the context of religion rather than territory. Strauss, *Thoughts on Machiavelli*, 81.

loyalty.[272] The right name was a potent tool of statecraft. In 1569, the name of the Medici state was changed from Florence to Tuscany when Pope Pius V conferred on Cosimo Medici the crown of Grand Duke of Tuscany. The name selected to designate the new state complex reflected the territorial rather than dynastic nature of the dominions. *Tuscany* had such powerful connotations that its use enraged Philip II of Spain so much so that he threatened to wage war. The king of Spain bitterly opposed the use of *Tuscany* rather than *Florence* or hereditary dominion of the Medici precisely because the name itself could evoke collective memories and give the state structure an integrity and independence in the mind of Europeans that would thereby affect the balance of power.[273] Though the Medici grand dukes tried, Tuscan hegemony remained a distant goal. Siena would not join the grand duchy until 1555 and Lucca was encompassed by the larger state complex of Etruria only after it fell to Napoleon in 1799.

Was there a notion of Tuscany in the early sixteenth century? The roots of Tuscany go back at least to the tradition of Tuscan liberty invoked in the mid trecento, and the concept of Tuscany had been emblazoned on the communal political consciousness during the fight against Visconti aggression. Circumstances endowed Italian states with common history and cohesion for the common experience of war and an urban, republican, mercantile way of life created a community experience. Moreover, the idea of Tuscany had popular appeal in the Renaissance. Ordinary citizens of Italian communes such as Siena and Florence, which sprang up in the area of Italy known as Tuscany after the Etruscans, preserved a sense of common identity as Etruscan or Tuscan.[274] The resonance of Tuscany appealed to the educated humanists too as the discipline of Etruscan studies/Etruscology began in the Renaissance alongside the study of ancient Rome. Etruria, the name Florentine humanists used in reference to ancient Tuscany, had been divided into free city-states, which endowed the Tuscan communes of the Renaissance with historical legitimacy.

Tuscan (Florentine, Sienese, and Pisan) humanists used Etruria and its free city-states as a model of cooperative political organization to contrast with the pretensions of the papacy to inherit the legacy of the Roman Empire, a legacy inimical to freedom.[275] Machiavelli would have known about the ancient free cities of Tuscany before delving into Livy because such knowledge was common to all educated Tuscans, those who lived in the part of Italy previously dominated by Etruscans.[276] Machiavelli uses the image of the ancient Etruscan cities,

[272] Elliott, "A Europe of Composite Monarchies," 57.
[273] Anthony Molho, "Recent Works on the History of Tuscany: Fifteenth to Eighteenth Centuries," *Journal of Modern History* LXII/1 (1990): 273.
[274] Ingrid D. Rowland, "A History of Etruscan Studies, 1450–1750," *Etruscan Studies in the Renaissance*, unpublished manuscript, 1.
[275] Giovanni Cipriani, *Il Mito Etrusco nel rinascimento fiorentino* (Firenze: L. Olschki, 1980).
[276] Rowland, "A History of Etruscan Studies."

which were famous archaeological sites when he wrote, as a political model to be evaluated and possibly imitated alongside ancient Rome and modern France.

The conquests of Cesare Borgia that were chronicled in *The Prince* – conquests that Cesare intended to use to form a kingdom in central Italy – instead went to the "Patrimonium Sancti Petri."[277] In 1506, Pope Julius II conquered Urbino, Bologna, and Perugia, and later added Parma and Piacenza to the papal territories. Based on Machiavelli's familiarity with Leo's territorial policy and its goal of freeing Italy from foreign domination, and Machiavelli's own hopes for a papacy removed from political activity, a Tuscan republic might well have included some portion of the papal states and might thereby have extended to the Adriatic coast.[278] Such a state would have been of regional dimensions, including Florence, Siena, and Pisa along with the Tuscan territory, the papal state of Urbino, which included the Marches of Ancona, the Emilia Romagna, Pesaro, Perugia, and the territory of Umbria, Bologna, Parma, Piacenza, and possibly Ferrara.[279] Of course, Machiavelli makes it clear that territories full of gentlemen that are more "feudal" in their social and economic structure are not suited for republican government. However, in *The Prince* he admits that an acquired principality may be governed more easily because its people are accustomed to obedience.[280] *The Prince* unveils the mixed principality – a polity composed of various cities and provinces – and discusses the acquisition of states that differ in laws and customs. Machiavelli suggests avoiding the hatred of the new population, not altering its laws or taxes, going to live there or sending a colony, and essentially indirect rule or *aeque principaliter* (accessory union). Following these guidelines, the acquired state will merge with the old state and form a single body.[281] A prince could best assemble a state like the one Machiavelli suggests the Medici assemble in Tuscany and central Italy, and then the same prince or a virtuous prudential individual (such as those to whom the *Discourses* is dedicated) could organize it for republican rule.

Tuscany, Machiavelli noted, was suited for republican government because of its socio-economic character. The absence of lords and gentlemen and the feudal social and economic system in Tuscany distinguished it from the other "corrupt" regions of Italy. Tuscany, Machiavelli writes, is urban rather than rural. There are class differences but none of the extremes one finds in feudal lands. The rich are merchants, not lords. In short, "there is so much equality that

[277] *The Prince*, chapters 7 and 26. *Patrimonium Sancti Petri* is the expression used to designate the States of the Church, as the landed possessions of the Church of St. Peter at Rome were known.
[278] Book I, chapter 11.
[279] Julius had also taken Reggio and Modena from the Duke of Ferrara, but Leo X returned them in 1515. See "States of the Church," *The Catholic Encyclopedia: An International Work of Reference on the Constitution, Doctrine, Discipline, and History of the Catholic Church* (The Encyclopedia Press: New York, 1913).
[280] Connell ed., 54.
[281] Connell ed., 44.

a civil way of life could easily be introduced there."[282] A historical map of Tuscany provides support for Machiavelli's judgment on the uniqueness of Tuscany and its suitability for republicanism. "In the Tuscan Grand Duchy and especially in the State of Florence, feudal power appears sharply reduced and retains a presence only in limited outlying areas."[283] It is worth noting that the Medici principality that formed after the fall of the last Florentine republic in 1530 remained shaky for decades thereafter. The republic retained a place in the public imagination. Diaries attest to the tremendous hatred felt by colonies of Florentines living in exile. Headed by the Strozzi, colonies of exiles, aristocratic and democratic, were focal points of opposition to the Medici regime until 1559.[284] Republicanism, Florentine patriotism, and nationalistic sentiment intertwined in opposition to the Medici dynastic state.[285]

Smaller states retained much of their viability in the sixteenth century. Territorial expansion in the sixteenth and seventeenth centuries meant expanding to a regional rather than national size. From Machiavelli's lifetime until 1800, the continent would be dominated by a "multiplicity of regional political entities" that were "remarkably durable and robust."[286] The Dutch state remained a potent political force throughout the seventeenth century until the new international balance of power in the eighteenth century rendered the Dutch state an anachronism. Tuscany retained its shape from 1559 until unification of Italy three centuries later. The conquests of Cesare Borgia became part of the papal states, which endured until the unification of Italy in the nineteenth century. In the annals of history, the Tuscan state that might have been was split into two relatively durable, though rather smaller, pieces. In fact, in 1859, much of the territory that forms the landscape of *The Prince* and *Discourses* did become a territorial republic. The United Provinces of Central Italy was formed from the former Grand Duchy of Tuscany, the Duchy of Parma, the Duchy of Modena, and the Papal Legations (the lands under the control of the Medici while Machiavelli was writing his two major works) after a popular revolution overthrew respective monarchs.

Would Machiavelli's erstwhile Republic of Tuscany eventually conquer all of Italy, or did Machiavelli envision it surviving as a regional state via wily

[282] Book I, chapter 55.

[283] Guarini, "Tuscany, a Historical Map," *The Journal of Italian History* 2, no. 3 (1979): 522.

[284] See the diaries of Antonio da Sangallo and Bastiano Arditi, cited in A. Molho, *Journal of Modern History*, 62. B. Arditi, *Diario di Firenze e di altre parti dell cristianita*, ed. R. Cantagalli (Florence: Olschki, 1970); for A. da Sangallo, *Diario de Firenze dal 1536 al 1555*, see R. Cantagali, "Sul Diario de A. de Sangallo" in *Nascita della Toscana*, ed. M. Tarassi (Florence: Olschki, 1980), 105–28.

[285] Alessandra Contini, "Aspects of Medicean Diplomacy in the Sixteenth Century," in *Politics and Diplomacy in Early Modern Italy*, ed. Daniela Frigo, trans. Adrian Belton (Cambridge: Cambridge University Press, 2011) 49–94, 55.

[286] Greengrass, *Conquest and Coalescence*, 11.

diplomacy? The example of Prussia is instructive in this regard, especially the career of Frederick II, a devotee of *The Prince*.

The invasions by the French and Spanish monarchies signaled the rise of the territorial state. As a consequence, monarchy seemed to be the inevitable political order of the future. Machiavelli's political experience, his time apart in exile, and his unique turn of mind enabled him to grasp that urban republics needed to expand in order to survive in the new, post-invasion, age. Machiavelli walks the reader through several alternatives: the extended republic modeled on Rome, the old republican empire based on Florence, and a league of cities modeled on ancient Etruscan and modern Swiss practices. He renovates Florence's outmoded imperial practices under the auspices of Rome, encouraging a republic to consider granting citizenship to subject peoples, to refrain from building fortresses, and to make partner cities in an attempt to break the barriers between cities and extend sovereignty over them. This would enable a republic to love all cities equally as a prince does. Much remained to be learned from Rome, which had expanded the republic to encompass multiple cities. Loyalty, for instance, was problematic. "It was easier to generate a sense of loyalty to a transcendent monarch than to a wider community created by political union."[287] Yet another problem was the nature of citizenship. Only a minority of the inhabitants living within the territory of an Italian republic could call themselves citizens and enjoy participatory public freedom. For a composite territorial state to survive, more people needed to be involved as citizens. The composite monarchies that Machiavelli respected were built on a mutual compact between the crown and the ruling classes of different provinces. Founding a state on the people rather than elites was a quixotic enterprise not least because the survival of the state was at risk, "for if it will not molest others, it will be molested." For this too Rome has answers.[288]

[287] Elliott, "A Europe of Composite Monarchies," 65–7.
[288] Book II, chapter 19.

# 3

# Necessity

## *The Survival of the Republic*

In Book II of the *Discourses*, Machiavelli tells us he will venture outside the walls of the ancient city of Rome to explore the republic's conduct in war and diplomacy, its foreign policy:

> And having spoken in the discourses of the book above of decisions made by the Romans pertaining to the inside of the city, in this we will speak of those that the Roman people made pertaining to the territorial expansion of its empire.[1]

He was driven to do so by the real truth of the matter, the ruthless new power politics conducted by states competing for status and territory that commenced with the sixteenth century. Across the lands of Europe the new century thundered with apparently apocalyptic political tumult. Every day, "[o]ne sees miraculous losses and acquisitions," Machiavelli observed.[2] The French armies that flooded over the Alps in 1494, the "scourge of God," marked the abandonment of the *ius commune*, the commune-based international law. With that, the sword of Damocles fell. The French captured Milan and reduced the duchy to a

[1] Niccolò Machiavelli, *The Discourses on the First Ten Books of Titus Livy*, trans. and eds. Harvey C. Mansfield and Nathan Tarcov (hereinafter *Discourses*) (Chicago: University of Chicago Press, 1996), Book II, preface, 125; Niccolò Machiavelli, *Discorsi sopra la prima Deca di Tito Livio*, 2 vols., ed. Francesco Bausi (Rome: Salerno Editrice, 2001) (hereinafter Bausi ed.), "E avendo ne' discorsi del superiore libro parlato delle deliberazioni fatted al Romani pertinenti al di dentro della città, in questo parleremo di quelle chi il popolo romano fece pertinenti allo augumento dello imperio suo." Bausi ed., I: 302. I have followed the Mansfield translation except for the last sentence, where I have followed Bausi, who notes that *augumento* in context means *espansione territoriale*.

[2] *Discourses*, Book II, chapter 30, 202. This observation is used to indicate how much the power of fortune prevails in the present, in contrast to antiquity, "For where men have little virtue, fortune shows its power very much." "International armed conflict became virtually permanent." Perry Anderson, *Lineages of the Absolutist State* (London: Verso Press, 1974).

puppet.[3] In 1508, the Italian states combined with France, Spain, and the Holy Roman Empire to form the League of Cambrai and stripped Venice of its territorial empire. The popes revived ancient claims as the Borgias carved out principalities in the Romagna. In 1509, a German army swept down to avenge Venetian usurpation. Foreign powers, territorial states with resources, returned to the peninsula. The Holy Roman Emperor, Maximilian I, conquered Milan and invaded Naples. Louis XII of France would invade Italy three more times attempting to retake Milan. The Battle of Ravenna established the Spanish as a permanent presence and the dominant power in Italy. Then came the tragedies of the 1520s, when Emperor Charles V attempted to exert control over Italy: the capture of the French king at Pavia in 1525, the sack of Rome in 1527, the fall of the Florentine republic in 1530.[4]

Dynastic realms now had the benefit of extensive resources and reserves of manpower, which enabled rulers to launch invasions on a new continental scale.[5] The old feudal, ecclesiastical, city-state world of variegated sovereignties was under attack all over Europe. Power, pursued ruthlessly, replaced precedent, and medieval Christendom came crashing down.[6] The comparative tranquility of the fifteenth century, on the European stage, had concealed the reality beneath. The wars that would rage in Italy until the Treaty of Cateau-Cambrésis in 1559, and elsewhere in Europe for the rest of century (a century that would record only twenty-five years without military conflict), were different – the result of long-term developments in military capabilities, public finance, and territorial consolidation.[7] Eventually, the Westphalian system of sovereign states would arise on the ruins of the Respublica Christiana. Until 1648, however, the chaos of construction would prevail.[8] From necessity, political reflection and action in Florence shifted to the external world in the early sixteenth century.

"Republican regimes were more popular, popular clamor created them, but popularity at home ceased to be crucial for political success in Italy of the

[3] Witness Machiavelli's admiration for Swiss power, which he discussed with his friend Franceso Vettori in letters of August 10 and 26, 1513.

[4] Eric Cochrane, *Historians and Historiography in the Italian Renaissance* (Chicago: University of Chicago Press, 1981), 175, 184–5. Francesco Guicciardini, *The History of Italy*, trans. and ed. Sidney Alexander (Princeton: Princeton University Press, 1984), 4, 7, 32, 48–9.

[5] "Absolutist states were machines built for the battlefield." Anderson, *Lineages of the Absolutist State*, 5.

[6] See Hedley Bull, *The Anarchical Society* (London: Macmillan Press, 1985), for the vestiges of the medieval *civitas* that survived.

[7] Fernand Braudel, *The Mediterranean and the Mediterranean World in the Age of Philip II* (London: Collins, 1972), and Charles Tilly "Entanglements of European Cities and States," *Cities and the Rise of States in Europe, A.D. 1000 to 1800*, ed. Charles Tilly (Boulder: Westview Press, 1994). Commercialization and capital accumulation in larger states reduced advantages enjoyed by smaller states. Changes in war made small-scale sovereignty a clear disadvantage.

[8] Bull, *The Anarchical Society*, 26.

Italians."[9] Prowess in war and the ability to withstand foreign invasion were crucial, and republics, as all dedicated republicans knew by direct experience, lacked precisely those qualities.[10] The problem, Machiavelli observed, is that "a republic lacking in council becomes subject to a neighboring state that is better ordered." In the sixteenth century, those neighboring states were always monarchies. How can a republic survive in the demanding new environment of monarchies on the move? For a start, Machiavelli tells us, "One sees, therefore, both from this discourse and from what we have often said elsewhere, how much difference there is between the mode of proceeding of present republics and that of the ancient ones."[11]

## THE SECOND CHALLENGE

Once assembled, the survival of the territorial republican state Machiavelli envisioned was anything but certain. The expansion of the republic was not enough, for "If you maintain it either small or unarmed so as to be able to manage it, then if you acquire dominion you cannot hold it or it becomes so cowardly that you are the prey of whoever assaults you."[12] A republic had to be ordered to expand and ordered to defend its acquisitions. This necessary realization led to the conclusion summed up by historian J. R. Hale: "Republics ought to behave like princes when facing the outside world."[13] This crucial point enables us to begin to understand the depth as well as the range of connections tying *The Prince* to the *Discourses*.[14] In order to overcome the "extreme misery, infamy, and reproach,"[15] Machiavelli needs to solve the second problem of an extended republic: how to modernize republics for a new international situation. Civic republicanism had emerged during the two centuries when Italy was left

[9] J. N. Stephens, *The Fall of the Florentine Republic 1512–1530* (Oxford: The Clarendon Press, 1983), 46.

[10] A. Anzilotti, *La crisi costituzionale della Repubblica fiorentina* (Florence: B. Seeber, 1912).

[11] *Discourses* Book II, chapter 30, 202.

[12] Book I, chapter 6, 22.

[13] J. R. Hale, *Machiavelli and Renaissance Italy* (New York: The Macmillan Press, 1960). This interpretation of Machiavelli's appreciation of princely foreign policy and his attempt to co-opt it for republics in light of the political developments of the sixteenth century is shared by Friedrich Meinecke and L. A. Burd, editor of the 1891 Oxford edition of *The Prince*.

[14] In the first chapter of Book II, Machiavelli immediately refers to *The Prince*, "The mode taken by the Roman people in *entering into the provinces of others* would have to be shown for *this purpose* if we had not spoken of it at length in our treatise of principalities." Hence, we know they are not only related, as *The Prince* concerns conquest and Book II addresses how to hold conquests, but related in support of a specific purpose. The purpose of Book II is to learn how a modern republic might be able to combat other polities and defend its freedom, thus seizing fortune by the hair, and overcoming circumstances.

[15] Preface to Book II.

alone by other European powers.[16] The condition of isolation no longer exists, as Machiavelli sees it. And in chapter 2 of Book II, he lays out the challenge as he sees it: how to found a state that is a republic inside and a principality outside.[17]

That Machiavelli was a proponent of *governo largo* or a more inclusive, populist form of republicanism has been convincingly argued by an array of prominent scholars.[18] What remains unexplored is precisely how the requirements of a successful foreign policy are related to the widely participatory domestic institutions Machiavelli recommends. The traditional answer, proffered by another prominent school of thought, is that Machiavelli empowers the executive, who is the heart of Machiavelli's innovations.[19] The *Discourses* suggests, however, that Machiavelli is neither as much a proponent of popular decision making in the context of foreign affairs as democratic readings imply. Nor does he embrace executive power in foreign affairs as the primary solution. Both interpretations neglect perhaps the most superficially traditional element of Machiavelli's political thought. The people do appear to debate foreign policy. The consuls and the dictator do face outward and act decisively

[16] Likewise it has been argued, European integration, the peaceful expansion of economic and political ties, the surrender of sovereignty to supranational institutions, and the observance of the rule of law governing relations between states have occurred in a similar context of strategic disengagement, shielded from external threats by the U.S. security guarantee. See Robert Kagan, *Of Paradise and Power* (New York: Alfred A. Knopf, 2003).

[17] In chapter 2, Machiavelli discusses the virtues of a free way of life found in republics. "People are fond of a free way of life because only free cities expand in dominion and riches" which benefits life inside the walls. Outside the walls however, republics enslave conquered cities ("the harshest servitude is that which submits you to a republic"). Republican foreign policy is problematic because it enervates subject cities. In contrast, princely foreign policy is superior to that of a republic because princes are more humane masters of subject cities. Outside the walls of the city, princely politics are superior. A prince makes a better master. The key is to make room for both under one sovereignty, and this can be accomplished by melding republican and princely governments, ideally by taking the best of both. How to preserve a republican domestic and princely foreign policy is the issue on the surface. Below the surface the conundrum grows more complex.

[18] Felix Gilbert, *Machiavelli and Guicciardini: Politics and History in Sixteenth Century Florence* (Princeton: Princeton University Press, 1965). Gilbert distinguishes between *governo largo* and *governo stretto* (59) and judges Machiavelli a proponent of the former model centered around Savonarola's reform, the major constitutional change effected in 1494, the Great Council. The most comprehensive examination of Machiavelli as a populist democratic theorist is John McCormick's *Machiavellian Democracy* (Cambridge: Cambridge University Press, 2011). Mikael Hörnqvist also states that Machiavelli envisioned a new form of mixed government with an empowered executive and people in *Machiavelli and Empire* (Cambridge: Cambridge University, 2004).

[19] See the essays in Paul Rahe, ed. *Machiavelli's Liberal Republican Legacy* (Cambridge: Cambridge University Press, 2005), "the executive is the centerpiece of Machiavelli's political theory," Matthew Spalding, "The American Prince? George Washington's Anti-Machiavellian Moment," in Rahe ed., 183. See also Harvey Mansfield, *Taming the Prince: The Ambivalence of Modern Executive Power* (New York: The Free Press, 1989). The overlap of Rahe and Mansfield, both what might be termed Straussian theorists and Hornqvist, a Cambridge School theorist, on this issue is remarkable.

to expand and preserve the republic. The senate, however, that most patrician of institutions, returns, not as the loci of aggressive aristocratic dominance, but the source of wisdom in foreign affairs. The prominent role of the senate partially reflects ancient Rome's middle republican period when foreign policy dominated the republic. Prominent but not preeminent, Machiavelli's sagacious senate directs external relations, advises the counsels, decides when a dictator is needed, and is embedded in a broader framework of shared power over foreign policy in which the three institutions check one another at multiple points. Especially in foreign policy, the people, the executive magistrates, and the senate check not merely potential abuse of power but the poor decisions of the other institutions.

In addition to reviving the senate, reason of state, the dictatorship in war, and required military service were to be the means by which those "more loved by heaven" could make republican foreign policy effective.[20] But the attempt to craft effective institutions of foreign policy could not be embraced uncritically, for this melding of republic and monarchy carried grave risks. Foremost was the danger that effective institutions would subvert the very republic they were designed to save – for readers knew that in the late republican period, the senate's approval of imperial expansion led to the prolongation of military commands, the impoverishment of citizen soldiers, and the decline of the republic. The results of Machiavelli's nocturnal wanderings in Roman foreign policy would be the masterful reflections on republican foreign policy, on power politics and republican ideals that would remain unaddressed until the American founding. For the challenge that Machiavelli faced was the same one the founders of the American republic would face in due time, namely, how a new kind of state could secure itself in an international system that suited decisive militarist monarchies.

In the early sixteenth century, international armed conflict became permanent. This state of affairs transformed the perception of politics and in that manner affected political thought. By the late fifteenth and early sixteenth century, "the republican ideal was already losing credibility."[21] Increasingly, relations among states began to be based on power rather than principles of legitimacy or precedent.[22] Henceforth, the form of government would matter

[20] Reason of state, dictatorship in war, and a citizen army are the new modes and orders.

[21] Alison Brown, "De-masking Renaissance republicanism," in *Renaissance Civic Humanism*, ed. James Hankins (Cambridge: Cambridge University Press, 2000), 179. See also "City and Citizen: Changing Perceptions in the Fifteenth and Sixteenth Centuries," *City States in Classical Antiquity and Medieval Italy*, eds. A. Mohlo, K. Raaflaub, and J. Emlen (Stuttgart: Franz Steiner Verlag, 1991), 93–111.

[22] The term "state" is used in accordance with the standard set by Hedley Bull, an independent political community that asserts sovereignty in relation to territory and a population group, "The independent political communities that are states in this sense include city-states, such as those of ancient Greece or renaissance Italy as well as modern nation states." Bull, *The Anarchical Society*, 16.

less while the power at a state's disposal would matter all the more.[23] The condition of unceasing rivalry and conflict has shaped the most basic elements of the architecture of states, their modes and orders, and their internal organization.[24] This work argues that Machiavelli was alert to the new international political situation and its effects on the modes and orders of states, and that his consciousness of both domestic and foreign policy is unusual in the annals of political thought.[25] In itself, this argument is not strikingly new. Decades ago, Harvey Mansfield, in his magisterial study of the development of the idea of executive power, observed Machiavelli's new domestic policy is justified by the primacy of foreign policy – both are supported by an expanded executive.[26] This interpretation charts a slightly different course. Machiavelli's executive is not so empowered it will take centuries to render the concept fit for constitutional government. In the context of the recommendations offered in the *Discourses*, Machiavelli's executive is already tamed. Democratic readings suggest that Machiavelli's goal was to revive a more inclusive republicanism. This is persuasive but lacks an appreciation of the significance of foreign policy to Machiavelli's project. Machiavelli promotes a democratic rather than an aristocratic republic, but he is also consciously engaged in an intellectual battle to determine if a republic can exist at all in the new era of territorially ravenous monarchies. His enemies were not just patricians in favor of *governo stretto* but foreign powers as well.

In the early sixteenth century, Italy was divided into a variety of republics and principalities "from whom so much disunion and so much weakness have arisen that it has been led to be the prey not only of barbarian powers but of whomever assaults it."[27] Diplomacy and war comprise a significant strand of Machiavelli's

[23] The classic statement of this fundamental approach to politics was made by Lord Salisbury: "The question of a reformed or unreformed Turkey does not affect the necessity of keeping Russia from Constantinople and from the Aegean. In past times we have not inquired what the government of a country was in deciding to protect great strategic positions which it was necessary for the interests of England and Europe should be kept from an overwhelming power." Speech in Manchester, October 2, 1879, F. S. Pulling: *The Life and Speeches of the Marquis of Salisbury, K.G.* (London: Sampson Low, Marston, Searle, & Rivington, 1885), II: 42–3.

[24] "In Europe before 1800 most important changes in state structure stemmed from rulers' efforts to acquire the requisites of war." Charles Tilly, *Cities and the Rise of States in Europe*, 15.

[25] Felix Gilbert argued that Machiavelli was the first modern political thinker to grasp the significance of war in international relations. Gilbert claimed that Machiavelli was essentially a military thinker and that his political thought is a product of his military thinking, mainly that a state's orders must be geared to producing and maintaining an army. See Felix Gilbert, "Machiavelli: The Renaissance of the Art of War," *Makers of Modern Strategy from Machiavelli to the Nuclear Age*, eds. P. Paret, G. A. Craig, and F. Gilbert (Oxford: Clarendon Press, 1986), 11–31. I agree that Machiavelli grasped the increasing importance of war in international relations, but I believe he was also aware of the effect war and the altered international climate have on the domestic orders of a republic and was determined to find a way to modernize republics for this new world of war.

[26] Mansfield also concludes that the primacy of foreign policy enables the people to gain command through a popular army. *Taming the Prince*, 136.

[27] Book I, chapter 12, 38.

political thought. Scholars of the realist school of international relations, propounded and for the most part founded in America by Hans Morgenthau and Reinhold Niebhur, have access to a Machiavelli whom scholars of civic republicanism have overlooked[28] – the Machiavelli of Book II and its classic account of international power politics. Book II of the *Discourses*, as well as large parts of Book III, concern the shadowy world of power politics among states, a world that absorbed the better part of Machiavelli's professional and intellectual life. He continued to explore the world of war and assault, of predators and prey, of reason of state, in order to answer the all-consuming question of how a republic should deal with other states. To Machiavelli, domestic and foreign politics were two sides of the same coin, with different faces.[29]

Over the centuries, three competing traditions of thought have been elaborated to explain the underlying patterns and motivations governing international relations. The first, the Grotian or internationalist tradition, formidably propounded in this century by Hedley Bull, views relations between states as governed by the complex norms of a society as well as the imperatives of survival. States are linked by common rules, shared ideas, and institutions. It is not war but humble trade that constitutes the marrow of international relations. The second tradition is the universalist tradition, expounded by Kant, who secularized the medieval Christian community of mankind into a universalist organization of humankind. What Kant termed, "perpetual peace," would come through the gradual expansion of the rule of law and liberal democracy spilling over state borders, which would eventually lead to a peace transcending the system of states. The last tradition views international politics as a state of war against all. War is the exemplary, the essential activity of politics among nations, and peace is merely an intermezzo between acts. The world beyond the borders is a dangerous political desert of endless anarchy. To survive as sovereign and independent, a state must learn to operate under conditions of insecurity and fear. Machiavelli could well be said to have founded the modern realist school when he announced that he would venture outside the walls of Rome to discourse on the orders of Rome and the strategic decisions the Romans made in foreign policy. Although it is not uncommon to criticize Machiavelli for his lowering of sights, his studied indifference to both the high-minded morality of classical political thought evinced in its tireless search for the best regime and to the scholastic juridical tradition, such observations recognize but refuse to countenance his

[28] Scholars of civic republicanism have focused on corruption, and rightly so. However, Machiavelli was worried not only about corruption but about foreign invasion. More fully sketched, the problem Machiavelli faced was that foreign powers took advantage of corruption to conquer the republic. Machiavelli knew what was distinctive about modern corruption and the modern political situation: namely the new territorial states to the north.

[29] Machiavelli would have agreed with Hans Morgenthau, "Domestic and international politics are two different manifestations of the same phenomenon, the struggle for power," the critical difference being that the domestic struggle is more circumscribed. See *Politics among Nations: The Struggle for Power and Peace* (New York: McGraw Hill, 1985).

innovative approach. For Machiavelli perceived and, arguably, was alone able to form a just estimate of the measure and quality of the political transformations that were breaking up the medieval Christian world.[30]

## ENTER BOOK II: POWER POLITICS

Chapter 1 of Book II contains a general observation on the political psychology of power, the truth of which Roman foreign policy will illustrate:

> For it is a very certain thing that as soon as a prince and a people come into so much reputation that every neighboring prince and people is afraid for itself to assault it, and fears it, it always happens that none of them will ever assault it if not necessary to do so. So it will be the choice of that power to make war with whichever of its neighbor it likes, and to quiet the others with its devices.[31]

The sentence bristles with the words of fear – *assault, war, reputation* – the chosen vocabulary of Book II. Roman foreign policy and supporting institutions (decisions and modes) were designed around the necessity of war and the drive to expand. Chapters 1 through 5 cover the project of a territorially expansionist republic and the need to order a state that is a republic inside and a principality outside.[32] Chapter 6, "How the Romans Proceeded in Making War," reveals another singular, long-buried Roman secret that could revolutionize the present. The point of war is to acquire territory and maintain it, which the Romans knew how to do. The Romans waged short, massive wars, refrained from damaging the countryside, which they took for themselves, turned conquests into colonies, and thus secured a lasting expansion. According to chapter 9, "What Causes Commonly Make Wars Arise Among Powers," wars arise for a variety of reasons. Rome had to defend its client states and wage war on their behalf. Chapter 12, "Whether, When Fearing to Be Assaulted, It Is Better to Bring On or

[30] According to Felix Gilbert, Renaissance Florentines believed law and diplomacy were equal to force in the conduct of foreign relations. The notion that politics relied primarily on force emerged in the second decade of the sixteenth century (*Machiavelli and Guicciardini*, 128). For more on Machiavelli's relationship to just war theory, see Hörnqvist, *Machiavelli and Empire*. For a study of how the early modern military revolution contributed to the collapse of medieval constitutionalism see Brian M. Downing, *The Military Revolution and Political Change: Origins of Democracy and Autocracy in Early Modern Europe* (Princeton: Princeton University Press, 1992). See also Kenneth Pennington on Machiavelli's "rejection of four centuries of juristic reflections on the limitation of power." *The Prince and the Law 1200–1600: Sovereignty and Rights in the Western Legal Tradition* (Berkeley: University of California Press, 1993).

[31] Book II, chapter 1, 127.

[32] See chapter 2 of this dissertation. For example, Book II, chapter 2 of the *Discourses*, "What Peoples the Romans Had to Combat," lays out the plan to merge principalities and republics. Chapter 3, "Rome Became a Great City Through Admitting Foreigners," covers Rome's immigration policy. Chapter 4, "Republics Have Taken Three Modes of Expanding," contrasts the league with the territorial state. Chapter 5, "The Variation of Sects and Languages Eliminates the Memory of Things," discusses the ancient Tuscany destroyed by Tuscan power and its heritage effaced.

Await War," weighs the benefits of preemptive action in the context of looming aggression and constant insecurity. In chapter 30, Machiavelli states that the key to assaulting a disunited city is to stimulate dissension, which is how the Florentines conquered Pistoia and the Romans conquered the Veientes and the Tuscans. Powerful republics and princes buy allies with their reputations for strength rather than with money. Rome intimidated its neighbors whereas modern Florence buys protection with incentives.[33] The Romans seized towns in a variety of modes, through storming them with violence or forcing surrender through a combination of force and fraud.[34]

The landscape of Book II is a terrain first surveyed by Thucydides, where "the strong do as they can and the weak do as they must." We know Machiavelli read Thucydides because he cites the revolt in Corcyra as an example of the obstinacy with which people defend their freedom.[35] In Book III, chapter 12, Machiavelli partakes of the language of Thucydides:

> Such obstinacy also arises from the natural hatreds that neighboring princes and neighboring republics have for one another, which proceeds from the ambition to dominate and from jealousy for their state – especially if they are republics – as happened in Tuscany.[36]

Machiavelli and Thucydides observe the scenery of savagery and war from the same precipice, but the statement is nonetheless indicative of the distance separating them. How different, in his Italian fashion, is Machiavelli from the heavy tragic realism of Thucydides. This difference stimulated Nietzsche to write of the "allegrissimo" of Machiavelli, the cynical hand that lays so lightly on the word. It is in the contrast with Thucydides that the Renaissance colors Machiavelli's realism most strongly. Jacob Burckhardt wrote of the statistical, empirical urge at the heart of the Renaissance, the "spirit of calculation" that represents one important side of modern political life – in brief, a mentality arising from the practical activity of daily life, the merchant banking activity, the weighing, the measuring, the calculating of gains and losses. The hard-headed practicality of Florence, "the workshop of the modern European spirit," responsible for the both body consciousness visible in the most rarefied reaches of Renaissance fine art and for the most advanced economy in Europe it its day, evinces itself in the

[33] Book II, chapter 30.

[34] Book II, chapter 32. For more of the same, see also Book III, chapter 45, "What the Better Policy Is in Battles, to Resist the Thrust of Enemies and, Having Resisted It, to Charge Them; or Indeed to Assault Them with Fury from the First." In contrast to those scholars who take force and fraud to be the heart of Machiavelli's political teaching, it should be remembered that he limits his recommendations to specific situations – the founding of a state and the waging of war. Within an established nontyrannical state, which he describes as republic or kingdom, such methods are inappropriate.

[35] Book II, chapter 2, 130. Thucydides, *History of the Peloponnesian War*, ed. M. I. Finley, trans. Rex Warner (London: Penguin, 1954) 1972 reprint, III, 70–85; IV, 46–48.

[36] *Discourses*, Book III, chapter 12, 247.

form of the *Discourses*, a practical distillation of accumulated wisdom. However, the pieces, lessons, and suggestions float in "a deformed space" in the *Discourses* – in an environment of extremes, inhospitable to law, conscience, or tradition. During the Renaissance, the states of the Italian peninsula had solved the political problem of how one state can coexist with potentially hostile states through the balance of power. But that era was over.

## PROBLEMS WITH REPUBLICAN FOREIGN POLICY

From the earliest days of modern Machiavelli interpretation, the autonomy of politics was believed to be his most controversial legacy. The purely rational treatment of political questions was a discovery of great philosophical significance because "it alters the whole conception of the world," as Antonio Gramsci, looking out from his prison cell at a Europe Machiavelli had a hand in shaping, surmised. That ethics and politics were mutually exclusive was Isaiah Berlin's answer to the mystery that made the venerable Benedetto Croce sigh.[37] In recent decades, study of civic republicanism overshadowed this older interpretation of Machiavelli's political thought.[38] But an interpretation of Machiavelli as a realist rather than simply republican has powerful precedent,[39] and lies midway between the recent extremes exemplified by prominent schools of thought.[40] Gramsci made the important distinction between the autonomy of politics in the abstract and the practical and immediate content of reason of state, which in the early sixteenth century meant recovering some autonomy or dignity in the face of humiliating defeat. "The art of politics ... is studied and articulated with realistic objectivity, in accordance with the first, the abstract principle."[41] The degradation of the sixteenth century, "so manifest that

[37] Isaiah Berlin, "The Originality of Machiavelli," in *The Proper Study of Mankind: An Anthology of Essays*, eds. Henry Hardy and Roger Hausheer (New York: Farrar, Strauss, and Giroux, 1998), 269–325. Benedetto Croce, *Elementi di politica* (Bari: Laterza, 1925), 60.

[38] Quentin Skinner, *The Foundations of Modern Political Thought: The Renaissance* (Cambridge: Cambridge University Press, 1978).

[39] According to Alison Brown, Machiavelli and Guicciardini, "shared much common ground, not only in their political realism and tough view of the state, but also in their view of man's ambitious nature and the need to create an upwardly mobile society." *City and Citizen*, 108. Of Machiavelli's supposed humanism, Najemy writes, "A 'humanist' who wrote no Latin was almost a contradiction in terms." John Najemy, *Between Friends: Discourses of Power and Desire in the Machiavelli-Vettori Letters of 1513–1515* (Princeton: Princeton University Press, 1993), 59.

[40] The Straussian interpretation tends to focus on the autonomy of politics in the abstract at the expense of reason of state, thus missing important elements of Machiavelli's modernizing republican program. The Skinnerian "civic republican" interpretation cannot explain Machiavelli's avowed emphasis on his own originality and his conscious distancing from civic republicanism.

[41] Antonio Gramsci, *Selections from Gramsci's Prison Notebooks*, Vol. II, ed. Joseph A. Buttigieg, trans. Joseph Buttigeg and Antonio Callari (New York: Columbia University Press, 1992), notebook 4, note 8, 151.

everyone sees it,"[42] set Machiavelli apart from civic humanism as it did his contemporary, content in the superior wisdom of his class, Francesco Guicciardini, Machiavelli's aristocratic interlocutor.[43]

Machiavelli's experience in politics primarily involved diplomacy and war – politics outside the walls of Florence – which today would be described as foreign affairs. One of the few political theorists to actually hold political office, Machiavelli entered public life in June 1498 upon his election as head of the second chancery, an administrative office responsible for the administration of Florence's Tuscan territories. On July 14 of the same year, Machiavelli was appointed Secretary to the Ten, the *Dieci de Balìa*, the magistracy in charge of Florentine foreign relations, a position he held until the fall of the republic in 1512.[44] In 1507, his career in ascent, Machiavelli became chancellor of the Nine, the *Nove di Milizia*, a magistracy supervising Florence's new citizen militia, but later that year prominent citizens obstructed his nomination as ambassador Holy Roman Emperor Maximilian.[45] Some of the most famous passages of *The Prince* and the *Discourses* originated in Machiavelli's official reports to his superiors in Florence. The Florentine republic sent Machiavelli on missions to Cesare Borgia in 1502, to Rome to witness a papal election and Cesare's downfall in 1503, to secure the recovery of Pisa in 1509, to negotiate with the Holy Roman Emperor in 1509, to Mantua in 1509, and to the French royal court. Those diplomatic missions, known as *legations*, gave Machiavelli practical insight into the shortcomings of republican foreign policy.

Machiavelli's diagnosis of the principal problem of republican foreign policy forms the title of chapter 38 of Book I: "Weak Republics Are Hardly Resolute and Do Not Know How to Decide; And If They Ever Take Up Any Policy, It Arises More from Necessity Than from Choice." In an international environment that had recently become far more dangerous and fluid, with military monarchies on the move, the freedom of action necessary for survival is dangerously compromised by republican statecraft. Chapter 38 is in fact Machiavelli's distillation of his diplomatic experience and diagnosis of Florence's foreign policy weaknesses. He begins by contrasting the Roman republic's decisive and honest response, which was to advise allies to defend themselves, with the

[42] "There is no observance of religion, of laws, and of military, but they are stained with every type of filth." Book II, preface.

[43] Of Machiavelli and Guicciardini, Alison Brown observes, "Although both men are usually defined as republicans in arguing for political liberty and popular participation in government, they mark a complete break with the past." Alison Brown, "City and Citizen: Changing Perceptions in the Fifteenth and Sixteenth Centuries." 103. See also Felix Gilbert, *Machiavelli and Guicciardini*.

[44] On Machiavelli's early career in politics, see Nicolai Rubinstein, "The Beginnings of Niccolò Machiavelli's Career in the Florentine Chancery," *Italian Studies II* (1956): 72–91, in addition to Robert Black, "Machiavelli, Servant of the Florentine Republic," in *Machiavelli and Republicanism*, eds. Q. Skinner, G. Bock, and M. Viroli (Cambridge: Cambridge University Press, 1990), 71–99.

[45] Black, "Machiavelli, Servant of the Florentine Republic," in Skinner, Bock, and Viroli, 71–99; Najemy, *Between Friends*, 102–17.

spineless example of Florence, which, though unable to prevent Borgia from marching through Tuscany, never conceded it to him:

In this one did not follow the Roman mode, for since the duke was very well armed and the Florentines so unarmed that they could not prevent him from passing through, it was much more to their honor that he should appear to pass by their will rather than by force.[46]

He continues:

But the worst part that weak republics take is to be irresolute, so that all the policies they take up are taken up by force; and if any good comes to be done by them, they do it forced and not by their prudence.

Machiavelli then provides two additional examples of Florence's problematic caution in foreign policy. Florence's refusal to sanction an accord negotiated with the rebellions Arentines so frustrated the hired condottiere Imbault that he took matters into his own hands and negotiated with Arezzo

without the participation of the commissioners since it was apparent to him that the Florentines understood little of this. So he concluded it in his own mode and under it entered Arezzo with his troops, giving the Florentines to understand that they were mad and did not understand worldy things.[47]

The title of chapter 15 of Book II looms large: "Weak States Will Always Be Ambiguous in Their Resolutions; And Slow Decisions Are Always Harmful." After praising the statement of a praetor who advised deciding a course of action before debating how to phrase it, Machiavelli observes:

I have noticed this part the more willingly in as much as I have often known such ambiguity to have hurt public actions, with harm and with shame for our republic. It will be verified that among doubtful policies, where spirit is needed to decide them, this ambiguity will always be there when weak men have to give counsel about and decide them. Slow and tardy decisions are not less hurtful than ambiguous ones, especially those that have to be decided in favor of some friend; for with their slowness one aids no one and hurts oneself.[48]

In Book I, chapter 59, a pact made with a republic is more trustworthy than one made with a prince:

For although republics have the same intent and the same wish as a prince, their slow motion will make them always have more trouble in resolving than the prince, and because of this have more trouble in breaking faith than he.[49]

[46] Book I, chapter 38, 82.
[47] Ibid., 83.
[48] Ibid., 158.
[49] *Discourses*, Book I, chapter 59, 120.

Chapter 2 touched on Machiavelli's contempt for "the wise of our times" in the context of Florentine territorial policy.[50] *I savi* were the wise men, the experienced men of affairs, whom the Signoria and the executive boards would consult to gain the benefit of their collective wisdom in addressing the many challenges the new regime had to confront. Known as *pratiche*, these consultations often revolved around foreign policy given the repeated rebellions of conquered cities and multiple strategic conundrums engendered by the invasions of Italy, which threw the republic's long standing alliance with France into question.[51] The wise men knew Florence was vulnerable, small in territory compared to France and Spain, its once robust trade-based economy sputtering. Rather than rational interests, the actions of France and Spain seemed driven by nothing more substantial than the will or the whim of the reigning monarch.[52] It would appear all was lost, but the wise men had, as Felix Gilbert described it, a weapon of their own – reason, *ragione*. According the protocols of the *pratiche*, there were two approaches to foreign policy – force and reason – and Florentines preferred to rely on intelligence.[53] The other doctrines flowed from that foundational principle. Play it safe; delay when possible; "enjoy the benefit of time"; choose the middle way; maintain neutrality until the last moment.[54] It was a wise approach. It was a sensible approach. It was a fine policy for old men, but history, Machiavelli discerned, is made by the young, the forceful, and the impetuous.[55] At this juncture one might ask if Machiavelli takes umbrage at the committee structure directing Florentine foreign policy or merely the policy itself. After reviewing the innovative doctrine he devised to replace the policy of wary rational analysis, we will examine the institutional changes he recommends.

## REASON OF STATE

In Book I, chapter 6, the doctrine of reason of state appears. It then skirts through Book I, chapter 25, and Book II, chapters 21 and 23, and culminates in the trilogy of Book III, which propounds the use of fraud and other deceptions

[50] Machiavelli's criticisms of Florence's cautious approach to foreign policy are discussed in Gilbert, *Machiavelli and Guicciardini*, 33. His criticism of Florence's policy of noncommitment is found in Najemy, *Between Friends*, 62; Niccolò Machiavelli, *Opere*, ed. C, Vivanti (Turin: Einaudi, 1999), I: 731; and *Machiavelli: The Chief Works and Others*, trans. and ed. Allan Gilbert, 3 vols. (Durham: Duke University Press, 1965), I: 116–19.

[51] Gilbert, *Machiavelli and Guicciardini*, 30.

[52] Gilbert, *Machiavelli and Guicciardini*, 32.

[53] Ibid., 34.

[54] "Nelle cose dubie è manco periculo godere el beneficio del tempo," A.S.F., *Consulte e Pratiche*, vol. 69, f. 116r, quoted in Gilbert, *Machiavelli and Guicciardini*, 33. For a thorough examination of Florence's traditional foreign policy doctrines, see Hörnqvist who notes that the middle way was central to Aristotelian ethics as well as Florentine tradition. *Machiavelli and Empire*, 274.

[55] Machiavelli was not alone in his appreciation for the new efficacy of force and impetuous action in politics. Gilbert, *Machiavelli and Guicciardini*, 122.

in service of the fatherland.[56] Rather than "innovation" the formulation of the doctrine that would be known to generations of European statesman as *raison d'état* was Machiavelli's response to the fate of Florence. Reason of state, given its classic definition by Friedrich Meinecke, is the pursuit of political ends by all necessary means. "He did not name it, but his whole thought is nothing else but a process of thinking about reason of state."[57] Reason of state means that "virtue has to be malicious when fortune is malicious." It is a matter of self-defense writ large. In national behavior, unclean methods are justified when it is a question of preserving the power necessary for the state.[58]

Book III, chapters 3 and 9, directly excoriate Machiavelli's patron, the chief executive or *gonfaloniere* of Florence, Piero Soderini for personal moral fastidiousness, because he "refused to do evil in order that good may come of it but instead brought about ruin." Soderini refused to punish, imprison, torture, or intimidate those who were actively scheming to restore the Medici to power and bring down the republic. The reward for such compunction was the downfall of the republic, the installation of the Medici as de facto princes, and the torture of Soderini's most loyal employee, Niccolò Machiavelli.

Reason of state is invariably accompanied by a related tenet, necessity. Necessity, for Machiavelli, meant that external conditions limit one's freedom of action. Given the drive for acquisition animating men and states, it is necessary for a republic to expand or else it will be conquered.[59] Moral freedom as well as political freedom are conditional upon particular favorable circumstances – an opening and closing of possibilities.[60] Necessity equals self-preservation. The state, which relies on religion and law, must kill and injure, violating injunctions against violence, whenever self-preservation compels it to do so. In fact, Machiavellism is not dead, but stands beside us still: "The security and defense of a liberal order depend on violence, force, deceit."[61] Machiavelli's earliest critics argued that if one embraces the double standard then everything, in effect, is

[56] Book III, chapters 40–43.

[57] Friedrich Meinecke, *Machiavellism: The Doctrine of Raison d'état and Its Place in Modern History*, trans. Douglas Scott (New Haven: Yale University Press, 1957).

[58] There is of course a distinction between the preservation of the state as a functioning political entity/community and the preservation of the power of the one or the many believed necessary to maintain the state. The ease of the elision between the two is precisely the problem, and its potentiality for abuse rightly distresses liberals in whatever recent guise reason of state appears.

[59] Book I, chapter 6.

[60] Meinecke, *Machiavellism*. See *Discourses*, Book III, chapter 27; Book II, chapter 23. For more on Machiavelli's view of necessity, see Eugene Garver, "After *Virtu:* Rhetoric, Prudence, and Moral Pluralism in Machiavelli," *History of Political Thought* 17 (1996): 195–222; Harvey Mansfield, *Machiavelli's Virtue* (Chicago: University of Chicago Press, 1996), 14–15, 39–78.

[61] Kagan, *Of Paradise and Power*, 75, 99. For the enduring reality of national or imperial interest beneath the rhetoric, see also Andrew J. Bacevich, *American Empire, the Realities and Consequences of U.S. Diplomacy* (Cambridge, MA: Harvard University Press, 2003).

permitted.[62] Despite the outrage of Gentillet and Campanella, whether Machiavelli's vision of necessity differs radically from the contemporaneous juridical concept of *necessitas* or not remains debated.[63]

In the early years of the twentieth century, Antonio Gramsci tried to conjure the practical political reality in which the doctrine of reason of state was born rather than the abstract notion it had become. Rather than the best possible state, Machiavelli teaches us the best interest of the state, noted Gramsci. Machiavelli blamed city-states and their leaders for their incessant feuding and failure to place country above private interest, a critical point.[64] "That a Good Citizen Ought to Forget Private Injuries for Love of His Fatherland" is the title of chapter 47 of Book III. Not unexpectedly, Gramsci also brought a class perspective to bear on his interpretation of Machiavelli, to some extent following up on the insights of Rousseau and Spinoza. In *The Prince*, Machiavelli sought to make available old tricks of government to a callow new class of government officials, the Soderini and others like Machiavelli, middle men on their way up in the world.[65] One could argue by extension that in the *Discourses*, Machiavelli does for commercial republics (the middle class, nonaristocratic polities) what he did for the new class interests in *The Prince*. In a flash of profound insight Gramsci wrote, "Machiavelli represents and tries to reconcile the political inclinations of the bourgeoisie (republics) and of princes insofar as both want to establish states or increase their territorial and military power."[66]

In Book III, chapter 43, Machiavelli explains his teaching: Florence has been duped, but if the republic had known and made use of all the teachings contained in Book II such as "How the Romans Proceeded in Making War," "Whether It Is

[62] This consequence was noticed right away by Innocent Gentillet and Tommaseo Campanella. See Meinecke, *Machiavellism*.

[63] Pennington, *The Prince and the Law 1200–1600, Sovereignty and Rights in the Western Legal Tradition*, 271. Mark Hulliung, *Citizen Machiavelli* (Princeton: Princeton University Press, 1983).

[64] In Machiavelli's writings, the contrast between public or state interest and private ambition or factionalism becomes one of the basic problems faced by the late medieval commune. See his *Florentine Histories*, eds. Harvey C. Mansfield and Laura F. Banfield (Princeton: Princeton University Press, 1988), Book III, 105–45. See "The 'Material Constitution' of the Florentine Dominion," by Andrea Zorzi in *Florentine Tuscany: Structures and Practices of Power*, eds. W. J. Connell and A. Zorzi (Cambridge: Cambridge University Press, 2000), 6–32.

[65] Gramsci, *The Prison Notebooks*, notebook 4, note 8, 151. "Machiavelli, therefore, was thinking of 'those not in the know,' those who are not born into the tradition of statesman; in the case of someone born within that tradition, the entire complex of de facto education combines with family interest (dynastic or patrimonial) to produce the character of the realistic politician. And who is not in the know? The revolutionary class of the time, the Italian people and nation, the democracy that gave birth to Soderini rather than Valentino." Gramsci's class consciousness is confirmed by the observation of noted Renaissance specialist John Najemy, who writes that the great families of Florence "viewed with contempt this restored republic with its Great Council, its many *middle-class officeholders* and chancery bureaucrats, and its stubborn loyalty to France." *Between Friends, 71*.

[66] Gramsci, *The Prison Notebooks*, notebook 4, note 8, 151 emphasis added.

Better to Assault or Wait," "How to Buy Friendship with Strength"[67] – in other words, if Florence had known how the world outside the walls really worked, it would never have been deceived by the barbarians:

> Whoever reads of things past in our city of Florence and considers also those that have occurred in the nearest times will find German and French peoples full of avarice, pride, ferocity, and faithlessness, for all those things have much offended our city in diverse times.[68]

He then adds:

> So, if Florence had not been either constrained by necessity or overcome by passion and had read and known the ancient customs of the barbarians, it would not have been deceived either this or many other times by them as they have always been in one mode and have used the same means in every part and with everyone.[69]

One of the momentous developments in modern political thought occurs on the pages of the *Discourses*, as the traditional republican concept of the common good merges with reason of state. "A republic lacking in council becomes subject to a neighboring state that is better ordered."[70] Only in a republic will the public good take precedence, Machiavelli readily admits, but the paradox is that republics can no longer survive.[71] *Buon commune* was the traditional expression used to capture the virtues of the municipal republicanism developed in medieval and Renaissance Italy. It can be roughly translated as the "common good," a government for the good of all citizens rather than for a few elites. It described a system of government in which all, or at least all male citizens of a certain economic status, take part in policy making, as opposed to feudal principalities or tyrannies. Common good to Machiavelli meant a variety of things, which no single definition can effectively encompass.[72] It encompassed the right of citizens to vent their anger and to protest vociferously to protect themselves from oppression.[73]

The common good for Machiavelli merges with reason of state, as acting according to the dictates of reason of state was in effect acting in the common

[67] Book II, chapters 6, 11, 12, 30.
[68] Book III, chapter 43, 302.
[69] Book III, chapter 43.
[70] Book I, chapter 2.
[71] Book II, chapter 2.
[72] I agree with J. H. Whitfield that Machiavelli was not concerned with exactness in terminology: "An unscientific use of terms is not untypical of Machiavelli." Whitfield agrees with Felix Gilbert that it is more appropriate to give a descriptive discussion of Machiavelli's terms than to attempt a precise definition. J. H. Whitfield, *Machiavelli* (Oxford: Clarendon Press, 1947), 93–5. See also Gennaro Sasso, *Niccolò Machiavelli: Storia del suo Pensiero Politico* (Bologna: Il Mulino, 1980), 247–80.
[73] See more on this in Chapter 4. Machiavelli's ferocious populism is covered in McCormick, *Machiavellian Democracy*.

good.[74] When the threat of invasion or internal strife looms, the common good lies in the survival of the state and the willingness to use any methods to ensure that survival. "For where one deliberates entirely on the safety of his fatherland, there ought not to enter any consideration of either just or unjust, merciful or cruel, praiseworthy or ignominious; one ought to follow entirely the policy that saves its life and *maintains its liberty*."[75]

The doctrine of reason of state, with which Machiavelli hoped to modernize the traditional republican discourse of common good, and to save republics, is an enduring witness to Florence's struggle to remain a republic and survive.[76] The fact that politicians and citizens think and discuss national interest as a real entity is, in part, a legacy of Machiavelli's desperate attempt to rouse his fellow Florentines from private factionalism to work together for their state. It was not to be. The increase of private ambition and factionalism at the expense of the common good would only grow worse as the sixteenth century wore on until it culminated in what has become known as the "patrimonial state," organized in accordance with patronage and cronyism.[77]

In the words of diplomatic historian James Grubb, one prerequisite for a continuous foreign policy is "internal coherence."[78] How can this be possible with the factionalism endemic to republics and to Florence above all? Jacob Burckhardt aptly described Florence as the city of incessant movement, in possession of a surfeit of political energy, raising regimes and then bringing

[74] Chapter 40, "That to Use Fraud in War Is a Glorious Thing"; Chapter 41, "That the Fatherland Ought to Be Defended, Whether with Ignominy or with Glory; and It Is Well Defended in Any Mode Whatever"; and Chapter 42, "That Promises Made Through Force Ought Not to Be Observed."

[75] Book III, chapter 41. Chapter 40, "That to Use Fraud in War Is a Glorious Thing"; Chapter 41, "That the Fatherland Ought to Be Defended, Whether with Ignominy or with Glory; and It Is Well Defended in Any Mode Whatever"; and Chapter 42, "That Promises Made Through Force Ought Not to Be Observed."

[76] David Armitage distinguishes between a Grotian or Ciceronian understanding of reason of state and a Machiavellian one. David Armitage, "Edmund Burke and Reason of State," *Journal of the History of Ideas* 61 (2000): 617–34.

[77] Diplomats, especially those of the Venetian republic, did so before Machiavelli. For the consummate American account of national interest, or American Machiavellism, see Alexander Hamilton, "Pacificus," in *Principles and Problems of International Politics: Selected Readings*, eds. Hans J. Morgenthau and Kenneth W. Thompson (New York: Knopf, 1950). Again "state" is used in the dual meaning of the collective status, *stato*, of the territorial state, *lo stato*. See also Book III, chapter 17. The increase of private ambition and factionalism at the expense of the common good would only grow worse as the sixteenth century wore on until it culminated in what has become known as the "patrimonial state," organized in accordance with patronage and cronyism. For this disappearance of the public in the Grand Duchy of Tuscany and of Italy more broadly speaking, see R. Burr Litchfield, *Emergence of a Bureaucracy: The Florentine Patricians 1530–1790* (Princeton: Princeton University Press, 1986), and Furio Diaz, *Il Granducato di Toscana: I Medici* (Turin: UTET, 1976).

[78] James Grubb, "Diplomacy in the Italian City-State," in *City States in Classical Antiquity and Medieval Italy*, eds. A. Molho, K. Raaflaub, and J. Emlen (Ann Arbor, MI, University of Michigan Press, 1992), 603–17, 604.

them down again. The problem is that a consistent and continuous foreign policy comes at the cost of republican or popular control. Public participation in the crafting of policy, the core of republicanism, is viewed in turn as an unworkable, even dangerous, luxury. In the last decades of the fifteenth century, Florentine political thought focused on the problems of republican government and its concomitant instability. "Only a principate could ensure peace at home and the pursuit of effective foreign policy abroad."[79] The necessity of survival elevates defense and diplomacy and demands a reduction in participatory practices. In necessity, those individuals opposed to republican government would find their most powerful argument for generations to come.[80] This begs the question of the extent of popular involvement in the development of foreign policy fifteenth- and sixteenth-century Florence. Let us consider the relevant institutions to determine if the blame, in Machiavelli's eyes, lay in the structure of government or in the people.

## FOREIGN POLICY IN THE FLORENTINE REPUBLIC

Though often idealized as a model of social justice and communal concord, a tradition that commenced with Jacob Burckhardt's suggestive introductions to his chapters on the Renaissance, the late medieval commune was also the site of developments of novel, less participatory modes of governance.[81] In Florence, roughly from the conquest of Arezzo in 1384 to the Peace of Lodi in 1455, a declared state of emergency became permanent owing to the perpetual need to wage war and raise taxes to defend and expand the Florentine empire.[82] During states of emergency, traditional councils were bypassed by *balie*, extraordinary

[79] David Herlihy, "The Rulers of Florence, 1282–1530," in *Women, Family and Society in Medieval Europe: Historical Essays, 1978–1991* (Providence, RI: Berghahn Books, 1995), 225. Herlihy cites Machiavelli and Guicciardini as evidence for the importance of effective foreign policy in the thought of both Florentines. See also Riccardo Fubini, "For Guicciardini, the aristocratic solution, in this and other more general respects, was also a condition for the survival of a republic, almost its last defense indeed, in a princely world governed by change and arbitrary will." In "Diplomacy and Government in the Italian City-States of the Fifteenth Century (Florence and Venice)," in *Politics and Diplomacy in Early Modern Italy*, ed. Daniela Frigo (Cambridge: Cambridge University Press, 2000), 25–48. See also Gilbert, *Machiavelli and Guicciardini*.

[80] See Anderson, *Lineages of the Absolutist State*. See also Nicholas Henshall, *The Myth of Absolutism: Change and Continuity in Early Modern European Monarchy* (London: Longman Press, 1992).

[81] For Riccardo Fubini, whose perspective bears some resemblance to that of Machiavelli, the contrast between state interest and private ambition forms one of the main problems faced by the late medieval commune; see Machiavelli's *Florentine Histories*.

[82] See Marvin B. Becker, *Florence in Transition: Studies in the Rise of the Territorial State*, 2 vols. (Baltimore: Johns Hopkins University Press, 1968), II: 19, and Riccardo Fubini, "From Social to Political Representation in Renaissance Florence," in Connell and Zorzi, ed., *Florentine Tuscany*. See Fubini's seminal series of articles Florence's transformation after 1400 from a communal to a regional state with an oligarchic political culture. See also Gene Brucker, *Renaissance Florence* (Berkeley: University of California Press, 1969), 259.

commissions appointed to govern for limited periods. Almost always staffed by the same patricians, the *balie* became permanent as an elite political machine took hold.[83] At the same time, a new executive magistracy, the Ten of War, appeared. This oligarchical reordering replaced the guild regime that had previously organized the institutions of the republic. Greater numbers of citizens became eligible for public office, but fewer participated in real decision making.[84] Whether the course of fifteenth-century politics in Florence is best described as a passage from guild corporatism to consensual politics or from a municipal republic to a territorial state,[85] it is clear that somewhere along the way, popular control was lost. Machiavelli deeply regretted this subversion of the republic. However, despite his reservations concerning the fate of the republic at the hands of the ambitious banking family, he did approve of some aspects of the Medici ascendancy.

After 1434, control over foreign policy rested with the Medici, which accounts for the relative consistency of Florentine foreign policy in succeeding decades. "From the time of Cosimo onward, arriving ambassadors went straight to the Medici palace for serious discussion, then proceeded to the communal palace for formalities . . . The Florentine people, whatever the constitution, were hardly self-governing, especially when it came to the republic's policy abroad. Civic humanism enjoyed an ephemeral success in foreign policy."[86]

The pursuit of effective foreign policy had precedents, if not in the loquacious humanist chancellors, in the *signore* – the ambitious, self-made lords of Italian cities – and had an outstanding contemporary example in the diplomatic cadenzas of *Il Magnifico*, Lorenzo the Magnificent. A signore's claim to power depended on his effectiveness, not on his ruthlessness alone. He had to deliver. If the virtuosity of the ruler inside the walls did not convince stalwart proponents of municipal liberty and popular government, there was something in the decisive pursuit of foreign policy that gave them pause. The Italian League and the policy of preserving the balance of power in Italy commenced with the Treaty of Lodi of 1455, the brainchild, by and large, of Lorenzo de Medici. With his accession to power as de facto ruler of Florence, he pursued a policy dedicated to promoting mutual cooperation among the five powers on the Italian peninsula in order to protect it from conflicts. By the mid-fifteenth century, the consolidation of territory into five major states in relative balance gave rise to a more coherent diplomacy. The familiar modern panoply of chanceries, permanent embassies, and resident ambassadors coalesced. Lorenzo's Italian line of conduct was successful, for it resulted, as Machiavelli

[83] The Albizzi regime prefigured that of the Medici.

[84] Najemy, *Corporatism and Consensus in Florentine Electoral Politics: 1280–1400* (Chapel Hill: University of North Carolina Press, 1982).

[85] Ibid.; Becker, *Florence in Transition*.

[86] Grubb, "Diplomacy in the Italian City-State," 611, 612. See also Fubini, "Diplomacy and Government in the Italian City-States of the Fifteenth Century (Florence and Venice)" in *Politics and Diplomacy in Early Modern Italy*, 44–5.

readily acknowledged, in Florence's acquisition of extraordinary influence and security.[87] The most powerful product of his policy was the influence he came to exert over the papacy. This too affected Machiavelli, not only for the powerful potential of a pontifical-Tuscan state combination (the Rome/Florence axis discussed in Chapter 1), but in understanding the power in the papacy's stature as a player on the European political scene. Machiavelli blamed the papacy for pursuing, without consulting the other major Italian states, a shortsighted policy that had brought France and Spain into the peninsula.[88] Machiavelli and Francesco Guicciardini were both unabashedly nostalgic for Lorenzo's Italian and princely line of conduct.[89] Their admiration was not an isolated phenomenon. Viewed as a tyrant during the years of the Savonarolan republic, Lorenzo's reputation began to improve in early years of the new century.[90] The locus of this reappraisal was the Rucellai gardens, where, among the humanists in attendance, a new, more favorable opinion of Lorenzo took hold, an apotheosis which would reach its zenith in the opening pages of Guicciardini's *History of Italy*, which lauds Lorenzo as the *grand seigneur* of all Italy.[91]

One of the intentions of the revolution of 1494, which overthrew the Medici regime, was to restore the true republic in its purity as it had existed before the Medici subversion. The law of December 22/23 reformed the government by eliminating the byzantine network of councils through which the Medici had obscured their dominance and fusing the venerable Council of the People and the Council of the Commune into one Great Council, along the lines of Venice's Consiglio Maggiore.[92] Comprising three thousand citizens, the broadly inclusive council voted on laws, taxes, and the men to serve on executive boards.[93] For our purposes, the most salient feature of the republic's structure is the fact that the formulation and execution of policy were collective endeavors.[94] Not only were there no individual executive functions, the members of the boards rotated rapidly, as a long term of service was considered conductive to tyranny. Two venerable boards, the board of the Twelve Good Men and the board of Sixteen Gonfaloniere advised the republic's chief executive board, the nine

[87] See *Istorie Fiorentine*, ed. P. Carli, 2 vols. (Florence: Sansoni, 1927), 2: 219. Cited in R. Fubini, "The Italian League and the Policy of the Balance of Power at the Accession of Lorenzo de Medici," in *The Origins of the State in Italy*, ed. Julius Kirshner (Chicago: University of Chicago Press, 1996), 166–99. Lorenzo undertook a personal diplomatic role that overlapped with official public diplomacy.

[88] Book I, chapter 12.

[89] According to the confession of Giovanni Folchi in March 1513, Machiavelli reportedly expressed the need for "someone to stand at the rudder," or "Perche manchava di chi stesse a timone, chome stava sufficientement Lorenzo de Medici." See "New Light on Machiavelli," *English Historical Review* XCVII (1982): 58.

[90] Gilbert, *Machiavelli and Guicciardini*, 110–11.

[91] Gilbert, *Machiavelli and Guicciardini*, 113; Guicciardini, *History of Italy*, book I, chapter I.

[92] Gilbert, *Machiavelli and Guicciardini*, 8–9.

[93] Combination of election and allotment.

[94] Gilbert, *Machiavelli and Guicciardini*, 12.

member Signoria. Various boards, such as the Ten, the Eight, the *Monte* formed an entrenched administrative bureaucracy that the reform of 1494 did not attempt to uproot.[95] The board of the Ten supervised war and diplomacy. As previously discussed, the Ten of War and the Signoria, themselves collective bodies, would summon influential citizens for consultation on specific foreign policy problems, but *ragione* could no longer be relied upon to outwit fortune. This somewhat ponderous committee structure with its rotating cast of experts comprise the foreign policy making institutions of the popular republic Machiavelli had served. Let us now turn to the institutional changes Machiavelli recommends to modernize republics before it is too late because "the ruin of cities arises through not varying the orders of republics with the times."[96]

## THE DICTATOR

An empowered executive acting decisively abroad as the sole agent of a people whose tacit approval legitimates all appears to be Machiavelli's signal solution. In this interpretation, the two most prominent schools of thought on Machiavelli come close to converging.[97] Prominent democratic scholars caution that Machiavelli favors popular decision making and reserves unilateral executive action, described as an "extraordinary" measure, for corrupt republics.[98] We can build on this democratic caveat keeping in mind the predominant view that Machiavelli originates the modern doctrine of executive power which is subsequent political theorists restrict, constitutionalize, and, in a word, civilize.[99] Machiavelli does deploy the unitary executive to replace the executive committee structure in emergencies, but this magistrate operates within a constitutional structure that limits him through formal procedures and informal checks.

In chapters 33 and 34 of Book I, Machiavelli presents his solution, "The Dictatorial Authority Did Good and Not Harm to the Roman Republic." Conventional wisdom, based on ancient authorities, held that the institution

[95] Gilbert, *Machiavelli and Guicciardini*, 13–14.

[96] Book III, chapter 9, "How One Must Vary with the Times If One Wishes Always to Have Good Fortune."

[97] Harvey Mansfield is a leading exponent of the "Straussian School." In his *Taming the Prince*, which remains the classic study of executive power, he writes, "People are the natural allies of the strong executive who rules indirectly in their name." Mikael Hörnqvist is an exponent of the "Cambridge School" who writes that "Machiavelli would have enforced the regime's monarchic elements as well as a spectacular return of the people to the political scene." (225).

[98] McCormick, *Machiavellian Democracy*, 210, note 47. In *Machiavellian Democracy*, the people debate foreign policy in popular assemblies, but McCormick does not describe how executive power fits into the populist democratic model he persuasively interprets Machiavelli as espousing. See also page 78: "Machiavelli varies with Roman practice in his preference for greater popular discussion over and control of policy formation, lawmaking, and magistrate behavior."

[99] "The answer is that the history of Machiavellism is chiefly a process of domestication whereby Machiavelli's thought was appropriated and absorbed by liberal constitutionalism so that it could be regularized and legitimated." Mansfield, *Taming the Prince*, xxiii.

destroyed the republic as Sulla and later Julius Caesar exploited the office to aggrandize power. In typically contrarian fashion, Machiavelli argues otherwise.[100] The dictatorship not only assured the survival of the Roman republic, it made its territorial expansion possible.[101] In Machiavelli's Rome, the dictator could act decisively to address emergencies without consultation and punish without appeal.[102] Consultation refers to the guiding tradition of the Roman republic through which the consuls would consult with the senate before taking action, and, given his emphasis on popular voice, may also encompass the role of popular assemblies in debating foreign policy. Appeal, of course, refers to one of the principle republican freedoms, the appeal to the people. Why take such a risk? Because the office of the dictator helped republics in foreign affairs:

> Because the customary orders in republics have a slow motion (since no council and no magistrate can work anything by itself, but in many things one has need of another, and because it takes time to add these wills together), their remedies are very dangerous when they have to remedy a thing that time does not wait for.[103]

The passage quivers in anticipation of Montesquieu for whom the republic is also composed of various wills (*questi voleri*), which ultimately must be reconciled. When mortal danger approaches, decisive and immediate action must bypass normal routes of inclusive decision making.

Machiavelli recommends that all republics make use of this "mode" or office just as the Venetian republic

> has reserved authority to a few citizens who in urgent needs can decide, all in accord, without further consultation. For when a like mode is lacking in a republic, it is necessary

[100] "For it was neither the name nor the rank of dictator that made Rome servile, but it was the authority taken by citizens because of the length of command." Mansfield ed., 75. Here Machiavelli is referring to the prolongation of commands owing to imperial expansion, encouraged by the greed of the senate, through which military commanders (consuls and generals) secured the loyalty of the army.

[101] "And truly, among other Roman orders, this is one that deserves to be considered and numbered among those that were the cause of the greatness of so great an empire, for without t such an order cities escape from extraordinary accidents with difficulty." Bausi ed., 74. "E veramente, infra gli altri ordini romani, questo è uno che merita essere considerato e numerato infra quelgli che furon cagione della grandezza di tanto imperio: perché sanza uno simile ordine le cittadini con difficultà usciranno degli accidenti istrasordinarii." Bausi ed., 169.

[102] Book I, chapters 33, 34, Mansfield ed., 71, 74. "Cioè dare potestà a uno uomo che sanza alcuna consulta potesse deliberare, e sanza alcuna appellagione potesse eseguire le sue diliberazioni." Bausi ed., 161. According to Mario Martelli, Machiavelli confuses the Second Latin War (340–338 BC) with earlier conflicts collectively known as the "Latin-Roman Wars." See Mario Martelli, *Machiavelli e gli storici antichi: osservazioni su alcuni luoghi dei Discorsi sopra la prima deca di Tito Livio* (Rome: Salerno, 1998), 32.

[103] *Discourses*, Book I, chapter 34, Mansfield ed., 74. "Perc hé gli ordini consueti nelle republiche hanno il moto tardo, non potendo alcuno né alcuno magistrato per se stesso operare ogni cosa; ma avendo in molte cose bisogno l'uno dell'altro, perché nel raccozzare insieme questi voleri va tempo, sono i rimedii loro pericolosissimi quando egli hanno a rimediare a una cosa che non aspetti tempo." Bausi, ed. 169–70.

either that it be ruined by observing the orders or that it break them so as not to be ruined.[104]

This emergency office, which performed what today could be described as a "national security" function, prevents two types of constitutional crises.[105] A republic can be ruined by following time-consuming procedures when only rapid action can secure the state from invasion or a similar threat. This strict adherence to the law indirectly allows the state to be conquered or to shatter from within.[106] Another type of constitutional crisis arises from breaking laws to save the state during an emergency, a choice that secures the immediate survival of the republic but slowly drains the political order of its legitimacy to its eventual doom. It sets a dangerous precedent, Machiavelli argues, "of breaking the orders for the sake of the good, then later, under that coloring they are broken for ill."[107] At this point it is not unreasonable to inquire how investing a magistrate with such emergency powers is not invidious.

The dictatorship in war was an emergency innovation that emerged during the middle republican period, 327–70 BC. During that time, the Roman republic believed itself to be continually under threat and went to war nearly every year.[108] The powers of the dictator were not absolute but were balanced controlled within an evolving constitutional system. Machiavelli adheres to the traditional view that the dictator was given the discretion to make emergency decisions without prior approval, but he could not make new laws or alter the constitution. This view is probably inaccurate, as some dictators did alter the constitution, and the incentive and accountability structure in which all magistrates were embedded did not simply vanish on the dictator's appointment.[109] The Romans, however, did neutralize the pernicious potential of concentrated power in a variety of ways Machiavelli assiduously covers. First, the dictator was a magistrate with special powers, but a constitutional magistracy, meaning its powers were contained within the constitution obviating the need to break or circumvent the law. He could not declare an emergency or extend his term.[110] The senate would decide when a dictator was required and instruct a consul to appoint one which, in addition to being at variance with the usual process through which magistrates assumed office through election, wisely separated the execution of emergency measures from the identification of emergency.[111] Machiavelli refers to both this older method of

[104] *Discourses*, Book I, chapter 34, 74–75.
[105] See Sanford Levinson and Jack M. Balkin, "Constitutional Dictatorship: Its Dangers and Its Design," 94 *Minnesota Law Review* 1789, 1800.
[106] Ibid. Sanford and Levinson describe this as a "Type Two constitutional crisis."
[107] Mansfield ed., 75.
[108] William Harris, *War and Imperialism in Republican Rome, 327–70 B.C.* (Oxford: Clarendon Press, 1979).
[109] Nomi Lazar, *States of Emergency in Liberal Democracies* (Cambridge: Cambridge University Press, 2011), 125–8.
[110] Book I, chapters 34 and 35.
[111] Lazar, *States of Emergency*, 123–5.

appointment and, in the last paragraph of Book I, chapter 34, to the appointment procedure of the late republic, through which the senate would issue the *senatus consultum ultimum*, "the final decree of the senate" or the "final act" to a consul informing him that the republic was threatened and he should take all necessary measures.[112] Whether the dictator's powers were limited or absolute depends on the inclination of the ancient source.[113] Machiavelli consciously chose to emphasize the limits on the dictator's powers and his ultimate accountability "for an absolute authority corrupts the matter in a very short time and makes friends and partisans for itself."[114]

It is generally agreed the tribunes of the plebs remained in power, their bodies sacrosanct and authority undiminished, during the dictator's tenure, but it is not abundantly clear that the senate and counsels retained their independent authority. However, they do in Machiavelli's Rome.

> For when the dictator was created, the tribunes, consuls, and Senate remained with their authority; nor was the dictator able to take it away from them. If he had been able to deprive one of them of the consulate, one of the Senate, he could not annul the senatorial order and make new laws. So the Senate, the consuls, the tribunes, remaining in their authority, came to be like a guard on him to make him not depart from the right way.[115]

By "guard" Machiavelli may refer to the fact that the dictator was immune from prosecution while in office, but could be prosecuted after his departure.[116] The limited time of the dictatorship was key in assuring the benefits of this executive office outweighed the potential dangers, for as Machiavelli observes, free authority given for a long time, "calling a long time a year or more – it will always be dangerous."[117]

Machiavelli's use of Livy and Roman precedent do not obscure his innovations as much as they illuminate his departures.[118] In Rome, the office of dictator, "the last resort in a desperate crisis" as Livy described it, had two primary purposes: to quell domestic sedition and to protect the republic from external threat.[119] Like the prince in chapter 14, Machiavelli's dictator

[112] Ibid. Through this method rather than a consul appointing a dictator, the consul himself was appointed dictator by the senate. See also Andrew Lintott, *The Constitution of the Roman Republic* (Oxford: Oxford University Press, 1999), 89–93.

[113] Lintott, *The Constitution of the Roman Republic*, 110.

[114] Book I, chapter 35, Mansfield ed., 77.

[115] Book I, chapter 35, Mansfield ed., 76. "In modo che il senato, i console, i tribune, restando con l'autorità loro, venivano a essere come sua guardia a farlo non uscire della via diritta."

[116] *Guardia* means guard or watch. In Machiavelli's parlance "guardia" often means to hold accountable, dervied from *guardare*.

[117] Book I, chapter 35, 76.

[118] Mansfield argues that Machiavelli and Bodin "disguised the extent of their innovation by invoking misleading Roman precedent." *Taming the Prince*, 83.

[119] Titus Livy, *The Rise of Rome*, trans. T. J. Luce (Oxford: Oxford University Press, 1998), IV, 56: 275. Modern historians stress the extent to which the dictator was used to quell plebian insurrection.

perpetually faces outward, saving the republic from foreign conquest.[120] The dictator also illustrates one of Machiavelli's favorite themes, the contrast between public and private power. The dictator does not threaten the political order because he is "appointed according to public orders," in contrast to Cosimo de Medici's silent, ominous rise to power out of public view.[121] Machiavelli's cautions with respect to the dictator, his emphasis on the office's boundaries, are in marked contrast to John Locke on prerogative in his *Second Treatise on Government*. Ironically, Locke's concept of prerogative, "this power to act according to discretion for the public good," is remarkably capacious for there are no temporal limits, no guards on the discretion of the monarch, who himself decides when the occasion calls for an exercise of the prerogative. Should the monarchical executive abuse the prerogative, the only remedy is the appeal to heaven – rebellion or revolution.[122] Both theorists are engaged in an effort to utilize executive power without that power swallowing the constitution. Machiavelli, however, insists it is of the highest importance that the constitution itself contain emergency procedures granting discretionary power: "So a republic will never be perfect unless it has provided for everything with its laws and has established a remedy for every accident and given the mode to govern it."[123]

## POWER OVER FOREIGN AFFAIRS IN ORDINARY TIMES

The question of who exercises foreign affairs powers in Machiavelli's democratic and territorially expansive republic during ordinary times remains. Not without reason, the conventional answer is that foreign policy is the executive's natural habitat, and the dictator and prince present a prescient vision of the unitary executive abroad. The prince, however, has fulfilled his task in

[120] Only once in the *Discourses* is the dictator appointed for a domestic threat, and, strikingly, he quells not plebian insurrection but patrician aggrandizement. When private aggrandizement went too far, "[t]he Romans ordered the creation of the Dictator who with his kingly Arm, made whoever had gone out of bounds return to them." Book III, chapter 28. "Every man the least conversant the Roman story knows how often that republic was obliged to take refuge in the absolute power of a single man, under the formidable title of Dictator, as well against the intrigues of ambitious individuals who aspired to the tyranny ... as against the invasions of external enemies." *Federalist 70*.

[121] Book I, chapter 35, Mansfield ed.,74. Book I, chapter 34, 72.

[122] John Locke, *Two Treatises of Government*, ed. Peter Laslett (Cambridge: Cambridge University Press, 1988), Section 160, 375; Section 168, 379; See Pasquale Pasquino, "Locke on King's Prerogative," *Political Theory*, 26, no. 2 (Apr., 1998) 200, 205. See also Levinson and Balkin ("Constitutional Dictatorship," 1804), who argue that Machiavelli, in crisis situations, comes out more strongly in favor of the rule of law than do John Locke, James Madison, and Carl Schmitt. It may be more accurately put that Machiavelli comes out in favor of a more flexible constitutional order, and Levinson and Balkin may be too quick to group Madison, Locke, and Schmitt together. Madison and Locke have a more pragmatic view of executive power and its relation to constitutionalism than does Schmitt, who focused on the formal legalism of Hans Kelsen. For Schmitt's focus on Kelsen, see Lazar, *States of Emergency in Liberal Democracies*, 65–6.

[123] Mansfield ed., 75.

conquering surrounding territories and becoming "Lord of Tuscany," and vanishes from the scene.[124] Leo X, as prince of Florence and pope, blundered monumentally, one of the many examples contributing to Machiavelli's observation that a prince can err in mighty enterprises.[125] In both ancient Rome and the Florentine republic legislative and executive powers over foreign policy were exercised by various institutions and committees. The long-term solution in foreign policy does not involve vesting power in one person, and in this area we find the *Discourses* a retreat to a familiar world, albeit with notable modulations. When Machiavelli is viewed as a traditionalist, it is generally in terms of his fascination with Roman grandeur, as one who looks wistfully back to a glorious republic capable of military conquest and empire building.[126] But it is not so much in *grandezza* that Machiavelli's forged his true *Romanitas*, but in his prosaic analysis of the Roman institutions responsible for foreign policy. As he put it by way of explanation, "All the modes of proceeding of the Roman people and Senate should be considered."[127]

When the *Discourses* delves into foreign policy, the senate is the cynosure, prudently checking the impulsive will of the people given their inveterate weakness for foreign adventure. Foreign policy may be the one realm where Machiavelli approves of a degree of elite rule provided they are ultimately accountable to the people.[128] And yet, Machiavelli's Rome is not an oligarchy reliant on a mounted nobility. Decision making in this most popular of republics is inclusive, but while tribunes take the lead in domestic policy, power over foreign policy is more clearly divided among the senate, consuls, and popular assemblies. Though the constitution evolved over time, multilayered checks throughout the decision-making process ingeniously minimize error.

[124] Once again the question arises: Does Machiavelli envision an extended republic, meaning one that tends to remain within its borders, or a ravenous republican empire? Though at points Machiavelli is evidently enthralled with the grandeur of the Roman republic's conquests, an approach analyzed in Hörnqvist, this work is an argument that Machiavelli, in realistic moments, offers a vision of a larger territorial republic that he knew was unlikely to conquer the world as an empire. For whether Machiavelli preferred peace or war, stability or glory, see note 225 in Chapter 2 of this work. In addition, Book I, chapter 53, can be read as a warning that military glory is incompatible with a popular republic. "There is no easier way to make a republic where the people have authority come to ruin than to put into it mighty enterprises." This statement can be interpreted to mean Machiavelli desired a militarily strong but nonimperial republic, meaning once it expanded to a size large enough to defend against invaders, it should remain within those borders.

[125] Book II, chapter 22, relates that Leo "wished to return Italy to its ancient freedom" and hoped to be "Lord of Lombardy and arbiter of Italy," but he made numerous mistakes. Book I, chapter 58, Mansfield ed., 118.

[126] Patrick J. Coby, *Machiavelli's Romans: Liberty and Greatness in the Discourses on Livy* (Lanham, MD: Lexington Books, 1999). See also the essays in Paul A. Rahe ed., *Machiavelli's Liberal Republican Legacy*.

[127] Book II, chapter 33.

[128] Or it may not, depending on how senators are appointed.

Composed of patricians and wealthy plebians, all of whom had served the republic as executive magistrates, the senate represented the aristocratic element in the theory of the "mixed constitution" that looms over premodern political thought.[129] The venerable senate stretched back into deepest antiquity as the advisory council to Rome's founding kings.[130] The senate was not a legislative body, nor could it point to enumerated powers, yet it wielded an authority, *auctoritas*, no parchment could guarantee. In a society that revered the past as none other, the senate's legitimacy resided in its august age and, by extension, on the accumulated wisdom it embodied. The great social and economic power held by the senators did not diminish the institution's political legitimacy but rather emphasized its constitutional function. Senators did not inherit their position but earned it, so to speak, through election to and serving in office.[131] More to the point, the senate exercised substantial power over foreign affairs.[132] The senate directed diplomatic affairs.[133] It would send and receive diplomatic missions, declare war, set terms, and negotiate with a conquered city-state.[134] In addition, the senate supervised the republic's executive magistrates, the consuls, and praetors, in Rome and abroad, through its decrees, *senatus consulta*, which did not have the authority of law but nonetheless were followed uniformly. Such were the powers of the Roman senate in history.

Machiavelli's senate declares war, ratifies peace, sends consuls to conduct its wars, and appoints dictators in times of peril.[135] The senate determines the path the republic will follow in foreign policy. As Machiavelli explains, when the senate realizes that it can no longer rely on citizens serving in the military without pay if Rome wants to wage longer and more distant wars, the senate decides to pay soldiers a wage, naturally funded by a new tax.[136] As previously discussed, prominent scholars have analyzed Book II, chapter 23, "The Romans Fled from

[129] In this tradition, each element or order of society was embodied in its own institution.

[130] Livy, *The Rise of Rome*, Book II, chapter 1, 72.

[131] Henrik Mouritsen, *Plebs and Politics in the Late Roman Republic* (Cambridge: Cambridge University Press, 2001), 13.

[132] Some of the powers the senate exercised over foreign affairs could be described in terms of eighteenth-century separation of powers theory as legislative (declaring war), others as executive (policy determination, foreign negotiations, sending and receiving diplomatic missions).

[133] In addition to supervising public finance. P. A. Brunt, *The Fall of the Roman Republic and Related Essays* (Oxford: Clarendon Press, 1988).

[134] Polybius, *the Histories*, ed. Brian McGing, trans. Robin Waterfield (Oxford: Oxford University Press, 2010); Lazar, *States of Emergency in Liberal Democracies*; Lintott, *The Constitution of the Roman Republic*.

[135] Book I, chapter 40, Mansfield ed., 87. The Ten realize that they cannot "order for the war" without the senate meeting. In Rome, a declaration of war was not lawful until people approved it through a vote in the popular assembly. For the senate ratifying peace, see Book II, chapters 23 and 33, Mansfield ed.,(183, 206). For the senate giving Camillus a tribune with consular power, the highest command over the war with the Latins, Henrici, and Volsci, see Book III, chapter 30, Mansfield ed., 279.

[136] Book I, chapter 51, Mansfield ed., 103; Livy, *The Rise of Rome*, IV, 59–60. Both Machiavelli and Livy view the senate's motives with skepticism and remark on the tribune's attempts to dissuade

the Middle Way," in terms of Machiavelli's disdain for the conventions of Florentine foreign policy. More germane to our purpose is the fact that in this chapter, the consul Camillus makes a proposal to the senate on the treatment of conquered parties, and the senate chooses the best course of action. In accord with Roman political practice, the senate decides how to deal with the vanquished city-states through providing its authoritative advice. Machiavelli relates another instance where the Roman senate gathered to judge the conquered Privernates. In response to senatorial interrogation, the consul of the Privernates replies with such persuasive reasoning that the senate wisely opted to reward the Privernates with citizenship, exemplifying the policy of *carezze* Machiavelli prefers. In the next chapter (Book II, chapter 24), Machiavelli rebukes the wise men of Florence, leaving the impression he approves of the wise men of Rome, an impression confirmed in Book I, chapter 38, where he relates that though the senate had forbidden conquered peoples to arm and defend themselves, they prudently changed the policy when Rome was unable to provide adequate forces during a plague.

> Here one recognizes the generosity and prudence of the Senate and how in every fortune it always wished to be the one that was prince over the decisions that *its own* [emphasis added] would have to make. Nor was it ever ashamed to decide a thing that was contrary to its mode of life or to other decisions it had made when necessity commanded them to.[137]

*I suoi*, meaning "its own," applies to conquered city-states that have become part of Rome as described by the shrewd expansionist policies discussed in Chapter 2 of this work. Moreover, this statement implies the senate centralized defense policy, but was flexible enough to recognize the benefits of decentralization and local authority when necessary.

> I say this because at other times the same Senate had forbidden the said peoples to arm and defend themselves, so that a Senate less prudent than this one would have appeared to be falling from its rank to concede such defense to them. But this one always judged things as they should be judged and always took the less bad policy for the better.[138]

People may be concerned with appearances (*The Prince*, chapter 15), but the senate of Rome is not. Notably, other elite senatorial-like institutions make major mistakes, as Machiavelli proceeds to discuss three instances in which the expert foreign

the people from interpreting the wage as an example of senatorial beneficence. The Roman senate controlled public finance.

[137] Book I, chapter 38, Mansfield ed., 81. I have replaced "subjects" with "its own," which is more accurate and does not possess the imperialist connotations of subjects. Bausi ed., 186–7: "Dove si conosce le generosità e prudenza di quell senato, e come sempre in ogni fortuna volle essere quello che fusse principe delle diliberazoni che avessero a pigliare i suoi; né si vergognò mai diliberare una cosa che fusse contrary al suo modo di vivere o ad alter diliberazioni fatte da lui, quando la necessità gliene commandava."

[138] Book I, chapter 38, Mansfield ed., 81. Bausi ed., 187: "Questo dico perché alter volte il medesimo senato aveva vietato ai detti popoli l'armarsi e difendersi; tale che a uno senato meno prudente di questo sarebbe paruto cadere del grado suo a concedere loro tale difensione. Ma quello sempre giudicò le cose come si debbano guidicare, e sempre prese il meno reo partito per migliore."

policy consultations in Florence resulted in poor policies. When Cesare Borgia at the height of his powers asks for passage through Florentine territory,

> In Florence they consulted one another as to how one might have to govern this affair, and it was never counseled by anyone to concede it to him. In this, one did not follow the Roman mode.[139]

In 1500, Florence could have held onto Pisa but, distrusting the king of France, Florence lost the city-state altogether. In 1502, the French king sent troops and military commanders to assist Florence with the rebellion of Arezzo, a city in its territorial domain. So frustrated by the Florentine foreign policy elite and the two Florentine commissioners, naturally from impressive families, Monsieur Imbault himself negotiated an accord with the citizens of Arezzo and entered Arezzo with his troops, "giving the Florentines to understand that they were mad and did not understand worldly things."[140] There is something remarkable about the Roman senate that prevents it from making the mistakes other elite bodies are all to often prone to make. It seems preternaturally sage. At this point one wonders if Machiavelli's admiration extends to the institution as well as to its policies.

Machiavelli's senate works with tribunes to force obdurate consuls to act, ensuring effective governance.[141] The senate also checks impetuous popular will in foreign policy. In Book I, chapter 53, Machiavelli explains that the Roman people believed half the population should go and inhabit the captured city of Veii. The wisest Romans and the senate disagreed with popular opinion. The opposition between the senate and the people would have turned violent "if the Senate had not made itself a shield of some old and esteemed citizens, reverence for whom checked the plebs, which did not proceed further with its insolence."[142] People need to be informed by "someone in whom it has faith" which in Rome invariably were the elders. Senators, of course, were also addressed as fathers.[143] Machiavelli concludes that grave patricians prevented the people from bringing the republic to ruin. Notably, Livy does not praise the senate for choosing the wiser course.[144] In fact, Livy is consistently more cynical about the senate's motives, even in foreign policy. In Book I, chapter 53, Machiavelli pursues his own

[139] For since the duke was very well armed and the Florentines so unarmed that they could not prevent him from passing through, it was much more to their honor that he should appear to pass by their will rather than by force. Mansfield ed.,82.

[140] Mansfield ed., 83. Bausi ed., 193: "faccendo intendere ai Fiorentini come egli erano matti e non s'intendevano dell cose del mondo;" Bausi notes that this statement is similar to the Cardinal of Rouen's reproof to the Florentines that they did not understand matters of state. The two Florentine commissioners were Giacomini Tebalducci and Alamanno Salviati. Bausi ed., note 53.

[141] Book I, chapter 50.

[142] Book I, chapter 53, Mansfield ed., 106.

[143] However, Machiavelli warns, deceptions can cause people to lose faith in wise men of authority.

[144] Livy, *The Rise of Rome*, Book V, chapter 25, 309, Book V, chapter 49, 334 and chapters 51–53, 333–41 for Camillus' pivotal speech. For some of Livy's negative comments on the greed and selfishness of the senate, see, for example, Book IV, chapters 50–1, 270–1, and Book IV, chapter 54, 273.

line of argument: Fabius Maximus tries to persuade the Roman people not to engage Hannibal directly. Rather than follow the wise strategy of an experienced magistrate, the Roman people rashly gave authority to bellicose men without merit who nearly ruined Rome. Hammering the point, Machiavelli raises yet another example, Marcus Centenius Penula, a military official who asked the senate to give him a volunteer army with which he might defeat Hannibal. "To the senate his request appeared rash." Nevertheless, realizing the people, ever more impatient with the unending war, might rise up in anger, the senate appeared to acquiesce to Penula and the popular will, sending him and his volunteers on their way to certain doom. Finally, when Scipio becomes consul he proposed to the senate that he invade Africa and conquer Carthage. Influenced by Fabius Maximus, the senate again opposes what appears another impetuous adventure to which Scipio "threatened to propose it to the people, as one who knew very well how much such decisions please peoples."[145]

From this chapter, we draw provisional conclusions: the people favor rash action in foreign policy; the senate does not entirely control foreign policy, but it does exercise great authority. However, this authority is checked by the people who appear to have a voice in certain crucial decisions. As a corollary, in the Rome of Machiavelli's imagination, the senate shares power over foreign policy because the people could not bring a republic to ruin without authority in such matters of state. Moreover, the senate checks the impetuosity of the people and the occasional consul. This checking power is not a decisive veto, as the people make Varro consul and nearly bring the republic to ruin against the wishes of the senate, but this example indicates the people and senate exert separate influences on foreign policy. One could query that Machiavelli turns on the reader: Scipio's audacity in invading Africa led to the defeat of Hannibal at the Battle of Zama and Rome's victory in the Second Punic War. The people judged correctly, and the senate's restraint suddenly seems questionable.[146] The people's weakness for foreign adventure is an invariant tendency that may impair popular judgment. Scipio's example is not about who possesses superior wisdom. The people were right because Scipio was the right man for the time. Possessing heroic virtue, fortune favored him, and his audacity and the people's matched the times. More than that, the senate's reasons for doubting his scheme were valid and sensible, Machiavelli allows. Most significantly, the senate does give Scipio permission to sail from Sicily to Africa *because* he threatened to take his cause to the people. If the senate had dominated foreign policy completely, it would have misjudged Scipio and lost a great victory. The existence of an opposing force with a different point of view, the fact that the people have a role, enables a wise magistrate to play one against the other and forces the senate to review and reconsider its policy. From the clash of opposed wills, good policy results.

[145] Mansfield ed., 107.
[146] See McCormick, *Machiavellian Democracy*, for an alternative interpretation of this chapter.

In the *Discourses*, the senate's significant role in foreign policy is generally a positive one as it is the only institution capable of setting long term goals for the republic abroad – as Livy put it the senate "guided the ship of state"; its size and composition allows it to think strategically and carefully about the formulation of policy. Of equal significance, the senate acts as lateral check to restrain an impetuous majority.[147]

> Thus, to return to the text cited before, one sees with how much obstinacy the Roman plebs accepted the policy of going to Veii because it judged it useful; nor did it recognize the harm that was there underneath; and since very many tumults were arising from it, scandals would have arisen if the Senate with its grave men full of reverence had not checked their fury.[148]

Prominent scholars contend that Machiavelli prefers covert elite rule.[149] From the text of the *Discourses*, it is reasonable to conclude that Machiavelli favors an overt, but certainly not omnipotent, role for a senatorial body in foreign policy. As discussed, at multiple times he praises the senate's restraint and wisdom in foreign affairs. If rule can be defined as an authoritative but not absolute power in foreign policy, then he does approve of the rule of an elite body such as the Roman senate on matters of foreign policy provided the senate's power is limited by the powers of the consul and popular assemblies. By recognizing the senate's eminence in foreign policy, Machiavelli establishes, not that he does not favor elite rule behind closed doors, but that he does favor transparent public authority, meaning the institution's constitutional responsibilities are stable and widely acknowledged.[150] This prompts one to wonder if Machiavelli is praising the social and economic elites who fill the senate or the senate as an institution. The two were coeval in the ancient theory of mixed government to which he appears to ascribe, but in this too Machiavelli can be read as an archaic avatar of things to come.

An inveterate believer in senatorial dominance, Francesco Guicciardini is remarkably clear who should populate the senate he envisions: patricians with wide political experience, exactly like himself.[151] By contrast, Machiavelli seems almost coy about the makeup of the senate in his once and future republic. As

[147] Livy, *The Rise of Rome*, V, 39: 324.

[148] Book I, chapter 54, 109.

[149] Leo Strauss, *Thoughts on Machiavelli* (Chicago: University of Chicago Press, 1958), 137. Mansfield, *Machiavelli's Virtue*, 235–7. Undeniably, there is some truth to this claim.

[150] Given Machiavelli's repeated disdain for the Medicis' covert exercise of power in the *Discourses*, and the fact that the contrast between private power and public office is one of the animating themes of the work based on the assumption that private power endangers republican liberty, arguing that Machiavelli favors rule by covert elites runs counter to the weight of textual and historical evidence. This observation does not immediately negate the argument, but emphasizes that a purely textual argument at odds with historical evidence must be nearly self-evident to be persuasive. It is not obvious that the covert elitism argument has met that high bar.

[151] *Dialogue on the Government of Florence* (Cambridge: Cambridge University Press, 1994), Alison Brown ed. and trans., 116–118, 131.

stated, Roman senators were patricians or wealthy plebians who had been co-opted into the ruling elite. All of them had served the republic as magistrates. At many points, Machiavelli approves of plebians (ordinary people) seeking high office. In Book I, chapter 47, he explains that the people felt they deserved the consulate (i.e., access to the republic's highest office) because they shouldered the burden in war.[152] In a remarkable passage in Book II, chapter 2, praising the benefits of republics, he writes that sons of the people can become princes. By this he means not a hereditary prince nor one who seizes power but those individuals who serve as executive magistrates in a republic such as Piero Soderini, chief executive of the Florentine republic or senators and consuls in ancient Rome, all of whom he refers to as "princes" in the *Discourses*. If the senate in Machiavelli's republic will eventually be filled with plebians and patricians, then, one could argue, it is no longer the aristocratic branch *par excellence*. However, by the mid republic the Roman senate itself was composed of wealthy plebians and patricians, yet it continued to embody the interests of the social and economic elite rather than ordinary people.[153] While the senate in Livy, more often than not, is motivated by narrow interests (forever railing against the "free handouts"

[152] Book I, chapter 47, Mansfield ed., 98. At this point, one might reply that Machiavelli is being disingenuous because the following chapter (Book I, chapter 48) describes how the senators manipulated plebians by sending the most meritorious patricians to stand for consular office. The people then voted for patricians rather than for members of their own class. This can be read many ways including as a testament to the wisdom of popular judgment. No matter their class loyalty, one might argue, when confronted with choosing particular candidates for office, the people choose the most qualified candidate. Machiavelli bases I.48 on Livy's telling in Book IV, chapter 56, 275. Also, a reader of the *Discourses* would likely have been familiar with Livy's history and would probably have remembered Livy Book IV, chapter 54, 273, where the people purposely elect all plebians as quaestors rather than of scions of noble houses. In this election, Livy notes, the people "show their displeasure" and are encouraged to do so by the Icillii, a prominent plebeian clan. (273). Even if one chooses to interpret Book I, chapter 47 as approving of patrician manipulation rather than praising popular judgment, it would appear Machiavelli and most readers assumed that plebians would vote for plebians, despite any attempted interference, when the candidates are qualified.

[153] Mouritsen, *Plebs and Politics in the Late Roman Republic*, 13, 136. McCormick interprets Book I, chapter 53 as a warning of the dangerous plans demagogues might use to curry favor with the people and as a validation of popular judgment. It is not obvious that Scipio's conquest of Carthage is a rebuke to the senate and a vindication of the people because Scipio pointed to the people's perpetual weakness for foreign adventure, irrespective of the virtue of the consul or the merit of the enterprise. McCormick is correct to stress that Machiavelli does not elevate senatorial judgment as superior to the people in general. McCormick notes that Machiavelli is critical of Carthage's senate (*Discourses*, Book II, chapter 27) and in Book I, chapter 6 criticized the aristocratic republics of Venice and Sparta for poor choices in foreign policy (McCormick, *Machiavellian Democracy*, 82). However, the Carthaginian and Venetian senates are not the *Roman* senate. Aristocratic republics do not win Machiavelli's praise, in particular because they are incapable of expansion. The Roman senate, however, generally understands foreign affairs, given Machiavelli's particular praise of Roman expansion. The power the people have in foreign policy keeps the senate accountable and more responsible. In addition, admitting that the people have a weakness, that their judgment, excellent in particulars, may not be perfect in foreign affairs does not mean Machiavelli favors senatorial dominance in domestic and foreign policy,

proposed by plebian tribunes), Machiavelli's senate does not merely represent or give voice to elite interests in matters of foreign policy. It strategizes, deliberates, and develops the policies and doctrines that successfully guide the republic's external relations and win Machiavelli's praise. With the senate, Machiavelli begins, tentatively, to conceive of political institutions according to function, in this case an executive function, rather than composition, and at such moments, he appears more a prescient separation of powers theorist than an adherent of mixed government.[154]

In opposition to those scholars arguing for Machiavelli's concealed elitism, others contend that Machiavelli consistently takes the side of the people rather than elites, for it is the few rather than the many who threaten liberty. Thus, Machiavelli's political theory is best understood as a concerted effort to empower ordinary people to contest elite power through political channels and to directly determine public policy.[155] Let us examine this claim through the prism of foreign policy, to better discern whether Machiavelli's prescriptions are traditionally Roman, deceptively elitist, or democratically innovative.

## THE POWERS OF THE PEOPLE IN FOREIGN POLICY

The Roman republic was that most rare and unusual of entities, a self-proclaimed popular republic. The Roman people possessed sufficient formal powers to participate in rule as the equal to the senate and consuls through their own assemblies, which achieved greater authority over time, and the tribunate. However, in practice such powers were limited by a variety of factors including weighted voting in electoral assemblies, elite collusion and co-option of plebian tribunes, the authority exercised by the magistrates presiding over assemblies, and the institutional and practical barriers to large-scale plebian participation in legislative assemblies.[156] Foreign policy was of paramount

but the experience and wisdom embodied in a deliberative institution is conductive to good policy abroad, provided it is checked by popular assemblies.

[154] The relationship between mixed government and separation of powers theory is a complex one. Rather than representing the one, the few, and the many as the building blocks of society, separation of powers views the branches or organs of government based on function (legislative, executive, and judicial) as opposed to composition or purpose in relation to social groups. The Roman senate was not a legislative body, but a deliberative, advisory council performing some executive functions, so it does not fit squarely into separation of powers theory. However, Machiavelli does discuss the senate in terms of its functional role rather than embodying the views of a social group. The senate formulates foreign policy, checks the impetuosity of the multitude on such issues, and functions as an experienced and steady organ of government with respect to the republic's external relations.

[155] McCormick, *Machiavellian Democracy*. This view has historical evidence in its favor as decades ago Felix Gilbert observed that Machiavelli was in favor of *governo largo* in Florence.

[156] Mouritsen, *Plebs and Politics in the Late Roman Republic*, 37: "The small scale of popular political institutions meant that they, quite literally, represented the few rather than the many. Technically, however, they remained open to a wide section of the population, which held extensive formal powers in the Roman state." See also 63–89 and 117.

importance in the early and middle republic, so the senate took the lead, given the need for expeditious action and complex decision making. However, while the senate declared war through a decree, the decision had to be ratified by a majority vote in the centuriate assembly (*comitia centuriata*) which also elected the republic's supreme magistrates, the consuls, who commanded the Roman legions and were often abroad.[157] Through the *intercessio*, tribunes, the magistrates representing the plebians, could veto any act of the senate or assemblies, including the act of war. In addition, tribunes could refuse to allow the conscription of troops to proceed if they objected to a war or felt refusing the levy could be utilized to protest or pursue other policies in the interest of plebians.[158] Debate was not permitted in Roman assemblies, which were reserved solely for voting. However, people gathered to hear political speeches on domestic and foreign policy in informal conventions *contiones* before proceeding to vote in assemblies.

To repeat, foreign policy was never open to debate in Florentine republic where the Great Council was reserved for voting on legislation and selecting magistrates, often by a combination of sortition and election. Executive committees meeting outside the purview of the citizenry controlled foreign policy. Moreover, the informal but highly consequential deliberations of the *pratiche* occurred behind closed doors. Machiavelli's Rome affords people the opportunity to discuss foreign policy.[159] The people judged Fabius' prudence cowardly and gave authority to his master of the horse and later made the bellicose Varro, who promised to destroy Hannibal, consul. Scipio informs the senate he will take his proposal to the people, who will, one assumes, debate and vote on it. The people discuss and coalesce behind the movement to relocate to the conquered city of Veii.[160] The people decide for themselves the consulate should be open to plebians because they shoulder the burden of the republic's wars.[161] Roman assemblies, whether the centuriate assembly where voting was weighted in favor of the propertied or the tribal assembly, *comitia tributa*, or the plebian council, *concilium plebis*, did not permit discussion or deliberation. Presiding magistrates, either consuls or tribunes, controlled the agenda, and only the elite dominated centuriate assembly could declare war. Originally a law produced by the plebian assembly applied only to plebians and it was only after 287 BC that such laws applied to the senate and patricians. Machiavelli never makes distinctions between assemblies, fails to mention weighted voting, and claims "that anyone who cared for the public good could propose laws, and that

[157] War was declared by order of the people or a decree of the senate. A consul had to bring the question of war before the centuriate assembly. Livy, *The Rise of Rome*, Book IV, chapter 30, 249.

[158] Livy, *The Rise of Rome*, Book II, chapter 44, 116, Book IV, chapter 6, 223, and Book IV, chapter 56, 275.

[159] Mansfield ed., Book I, chapters 53 and 54.

[160] Book I, chapter Mansfield ed., 54.

[161] Book I, chapter Mansfield ed.,47.

everyone could speak their mind on it so that the people could subsequently choose what was best"[162] Machiavelli interprets the Roman assemblies as more egalitarian, deliberative, and inclusive than they were in reality. However, Livy does not draw clear distinctions among assemblies either, in all likelihood assuming that the Romans for whom he was writing understood the intricacies of the Roman constitution. In failing to mention the hierarchical nature and procedural limitations of the Roman legislative process Machiavelli may simply be following Livy or he may be consciously writing a revisionist history of Rome.

Less ambiguous is the fact that Machiavelli's demonstrates more disdain for popular judgment in foreign policy than does Livy. This criticism does not obviate his conviction that people should be involved in political decision making, but it reveals his realistic awareness of the strengths as well as the weaknesses of popular rule. "There is no easier way to make a republic where the people has authority come to ruin than to put into it mighty enterprises."[163] And foreign expansion of the kind that predominated in his day was the mighty public enterprise on his mind, evinced by the examples he uses to illustrate his point: Nicias and the Sicilian expedition and one of Florence's numerous foreign policy fiascoes, the Florentine attack on Pisa in 1505.

In 1494, Florence lost part of its empire. In Book I, chapter 39, Machiavelli relates that the government wished to recover its lost territories, but the war required heavy taxes and the people began to resent the burden of war. The people thought the war would go away if they eliminated the Ten of War, which recalled a similar misapprehension on the part of the people of ancient Rome ("This same humor was raised in Rome against the consuls"). The people tired of war and thought it arose from the nobles rather than "from the ambition of neighbors who wished to crush them."[164] When the time came to replace the new members of the Ten, no appointments were made, so the executive committee disappeared and the Signoria took over foreign policy. "Since those men who were administering it with prudence were taken away" Florence lost even more of its territorial empire. The people, finally "saw better its error" and the true cause of the wars and taxes were foreign enemies not a government committee, they restored the Ten of War. Machiavelli's consciousness of the stubborn impatience of people does not arise from aristocratic prejudice but rather from personal experience. As a Second Chancery official, he drafted a speech – "Words to pronounce on the provision of money" – to be delivered by the chief executive of the Florentine republic, the *gonfaloniere a vita*, Piero Soderini, in April 1503. The previous year, Cesare's threatening conquests and the

[162] Book I, chapter Mansfield ed.,18. For more on Machiavelli's variations from Roman practice, see McCormick, *Machiavellian Democracy*, 76–80 as well as Harvey C. Mansfield, *Machiavelli's New Modes and Orders: A Study of the Discourses on Livy* (Chicago: University of Chicago Press, 2001) reprint.

[163] Book I, chapter Mansfield ed., 53.

[164] See Book I, chapter Mansfield ed., 39, which can be read in light of Book I, chapters 33, 44, "A Multitude Without a Head Is Useless"; and Book I, chapter 54.

Val di Chiana revolt seemed to Florentines to shatter the foundations of the territorial state. In direct opposition to the old republican faith in rapid rotation in office, the Great Council voted to create the office of lifetime chief executive to provide the republic with the consistent direction it sorely needed. Not unexpectedly, Soderini found he needed to raise taxes and asked Machiavelli to fashion a strong argument. Attempting to pierce through popular opinion, he bluntly stated that Florence should finance its wars or it would be conquered because "without force cities don't maintain themselves but come to their end. The end is either desolation or servitude; this year you've come close to both." Florence was surrounded by cities "who desire your death more than their own lives." Rather than pay off the Venetians or trust in the French alliance, Florence's only hope for security was to pay for its own arms through the raising of taxes.[165]

More directly, in Book I, chapter 53, he states that popular republics are ill suited to great enterprises because the people are often "Deceived by a False Appearance of Good; and That Great Hopes and Promises Easily Move It." At first glance it appears the lesson is that foreign policy should be isolated from the democratic multitude because people cannot understand the nuances of foreign policy. Across the seas of time and space, Alexis de Tocqueville, writing in America during the height of Jacksonian democracy, would eerily echo Machiavelli: "Foreign politics demand scarcely any of those qualities which are peculiar to a democracy; they require, the perfect use of almost all those in which it is deficient ... A democracy can only with great difficulties regulate the details of an important undertaking, persevere in a fixed design, and work out its execution in spite of serious obstacles. It cannot combine its measures with secrecy or await their consequences with patience."[166] In the twentieth century, Hans Morgenthau would also reconfirm Machiavelli's observations.

> The conditions under which popular support can be obtained are not identical with the conditions under which a foreign policy can be successfully pursued. This leaves leaders with a tragic choice: sacrifice good foreign policy upon the altar of public opinion, or by devious means gain popular support for polities whose true nature is concealed from the public.[167]

[165] Niccolò Machiavelli, "Parole da dirle sopra la provisione del danaio," Mar. 1503 in Vivanti, ed. *Opere*, 12–16. For a discussion of the piece in relation to early American foreign policy, see John Lamberton Harper, *American Machiavelli: Alexander Hamilton and the Origins of American Foreign Policy* (Cambridge: Cambridge University Press, 2004), 43–4.

[166] Alexis de Tocqueville, *Democracy in America*, ed. Arthur Goldhammer (New York: Library of America, 2004), 210–11.

[167] Hans Morgenthau, "How to Conduct Foreign Affairs the Hard Way," in *Principles and Problems of International Politics*, eds. Hans Morgenthau and Kenneth W. Thompson (New York: Knopf, 1950), 163–73.

The argument sanctions the removal of the public from participation in the foreign policy–making process, and some might argue that it is antithetical to the principles of popular government.[168]

Machiavelli was more complex than many who followed in his path. After all, the people learn from their mistakes; as he relates in Book I, chapter 38, the Florentines realized other powers, not their own magistrates, caused the numerous wars, so they restored the Ten of War. People are capable of revising their opinions. If the people are not informed about the benefits and dangers of consequences of certain courses of action "by someone in whom it has faith, infinite dangers and harm are brought into republics."[169] As a corollary to the principle point that people can cause harm if plebiscites determine foreign policy, is the point that people should be informed. Incomplete information, group psychology, or an inaccurate assessment of the costs and benefits of war may well cause people to err in favor of military aggression.[170] Foreign policy requires experience and dispassionate analysis, but that in itself is not reason enough to make foreign affairs the exclusive preserve of a senate. The judgment of the people can err more readily when it comes to foreign affairs, but this weakness can be remedied, though the solution is not immediately apparent.

On occasion there is not enough time to inform people to allow for dispassionate analysis of the external environment and decisive resolution. Transforming rash opinion into considered judgment is a slow process.[171] People may be deceived in generalities, Machiavelli observes, but not in particulars. When people play a part in government and see things as they are, their perspective changes. "They have one mind in the piazza and another in the palazzo."[172] This proverb is a fine justification for rapid rotation in office,

[168] Robert Dahl's critique of guardianship in *A Preface to Democratic Theory, Expanded Edition* (Chicago: University of Chicago Press, 2006) highlights the American foreign policy process as an area where such arguments have actually served to exclude the electorate from participating in foreign policy decision making. At issue are two values: effective dispatch and control over the agenda. Only under very unusual and narrow circumstances is it necessary for the president to act expeditiously. The founders did make it clear that foreign policy making is not the exclusive preserve of the president.

[169] Book I, chapter 53.

[170] John Ferejohn and Frances Rosenbluth, "Warlike Democracies," *Journal of Conflict Resolution* 52, no. 3 (2008): 24.

[171] McCormick attempts to resolve this ambiguity in Machiavelli's thought on popular will by drawing a distinction between popular opinion and popular judgment. Machiavelli criticizes popular opinion but praises the popular judgment that deliberation develops. Hence, the goal is to provide as many opportunities as possible for popular deliberation. This distinction is an important one, but I would argue that Machiavelli draws yet another distinction between domestic and foreign policy. Popular opinion is more likely to need correction on matters of foreign policy, and it is difficult under conditions of insufficient information and time to cultivate good judgment on the part of the people. The remedy, as will be seen, is a division of power over foreign policy, with an important role for the senate and for consuls as mediators between the senate and popular assemblies. McCormick, *Machiavellian Democracy*, 81–5.

[172] Book I, chapter 47, Mansfield ed., 98.

selection for office by sortition and other premodern republican methods used to permit participation in office by the widest number of citizens, but not everyone can rotate into or gain sufficient experience in foreign policy. In foreign policy, more popular control does not seem to be the immediate answer. He praises popular judgment most heartily in praise of the people's ability to discern the most able magistrates.[173] The people do learn from their mistakes, but human nature being what is, how are we to know the same mistakes will not be made by the next generation, perhaps to the republic's ruin?

Machiavelli is careful to demonstrate that his criticism of popular impetuosity in foreign policy is no reason to entrust it to the discretion of a prince. As he writes, a people with political power under a constitution "will be stable, prudent, and grateful no otherwise than a prince, or better than a prince, even one esteemed wise."[174] A people may misjudge great enterprises, but a prince will mislead by his own passions far more often.[175] Here Machiavelli states directly that the weakness of people in foreign policy is no reason to favor a prince. He continues, the people can be spoken to, but there is no one who can speak to a wicked prince, "nor is there any remedy other than steel." The preceding remark reveals a Machiavelli who prefers discourse, debate, and discussion. While words are enough to remonstrate with the wayward people, for the prince there is no recourse except violence. Politics is about talking to one another, using persuasion rather than violence. Although the decisiveness and efficiency of the princely power beyond the walls is to be admired and imitated, it has critical disadvantages. Once a decision is made, it can endanger the republic from within, for bad policies, decided by one ruler, can also ruin the republic.

Foreign policy requires deliberation in addition to expeditious action. The dialogue among the senate, people, and consuls create a dynamic process through which superior policy will emerge. Different constitutional components check one another. While the people retain ultimate judgment, foreign policy is conducted at some degree of remove form the people. The people have a role in ratifying the declaration of war or voting for war preemptively. They elect the consuls based on speeches and policies proposed. The senate provides the consuls with wise advice and sets the course for the republic. While the people constrain elites with respect to policy inside the walls of Machiavelli's Rome, the senate constrains the people when developing policy outside the walls. Rather than oppression, the checks on popular will by the senate make it more likely informed judgment rather than popular passion will guide the republic's actions abroad. The people, of course, check the senate by refusing to ratify a decree of war or by refusing conscription. Most notably, the senate and people work together as Machiavelli explains, "For once the people and the Senate had decided upon a war" (note that this is a shared task) – "for instance against

[173] Book I, chapter 48, Book I, chapter 58, Book III, chapter 34.
[174] Book I, chapter 58, Mansfield ed., 117.
[175] Book I, chapter 18.

the Latins – the consigned all the rest to the judgment of the consul."[176] The people may not formulate foreign policy in the sense of conducting negotiations with foreign missions or determining strategy, but they do act (to declare war) and react (to consular proposals).[177] The people know the deliberations of the senate, which is conveyed to them by the tribunes and the consuls. In contrast, the *pratiche* occurred informally behind closed doors, out of sight. While the people's primary controls are in war, conscription, and electing consuls who propose policies to the people, there is one example of the people originating a specific policy option. The proposal to for the plebs to relocate to the Tuscan city of Veii originated with the people and was introduced as a bill by the tribunes, the plebian magistrates.[178]

Returning to the question animating this exploration of foreign policy in the *Discourses*, it appears Machiavelli's recommendations are grounded in Roman political tradition. Direction in foreign policy continues to be provided by a plural body rather than one man. Other recommendations contain important innovations to give the people prerogatives in foreign policy, possibly surpassing what the Roman people possessed in fact and certainly more power than allotted to them in the mixed government traditional prominent in his day which focusing on Venice, excluded the people from foreign policy. Machiavelli's vision of a Rome where people have a voice in foreign policy is all the more novel in comparison to the Florentine republic where people outside the corridors of power had no voice and little influence. Having a voice does not mean having a determinative voice; however, the peculiar nature of foreign affairs demands experience, deliberation, and expedient decision making. For that a senate is required, one peopled with experienced individuals of valor, sagacity, and virtue familiar with exercising reason of state. The senate, conveniently, provides a goal and a home for great men, for ambitious plebians and patricians to serve rather than subvert the republic.[179] The *Discourses* celebrates both senatorial wisdom and plebian power in foreign policy. The Roman people emerge from the shadows of the ages to argue, to vote, to be persuaded, and to sway policy, and the Roman senate, blazing with an intense luster, deliberates, advises, and directs with generous wisdom before vanishing forever.[180]

[176] Mansfield, ed.,Book II, chapter 33, 206.

[177] Machiavelli's clear endorsement of the active involvement of the people in foreign policy indicates that he supports rule by the people through democratic institutions rather than conceiving as popular participation that is limited to a negative check on elite policy choices.

[178] Livy, *The Rise of Rome*, V, 29: 314.

[179] Machiavelli diagnosed one of the flaws of the Florentine republic of 1494–1512 as the fact that it did not provide patricians with a formal institution, such as a council, to assuage their need for exclusivity and to make them feel as though they were a fundamental part of the new regime. See Roslyn Pesman, "Machiavelli, Soderini, and the Republic of 1494–1512," in John Najemy ed., *The Cambridge Companion to Machiavelli* (Cambridge: Cambridge University Press, 2010), 60.

[180] "The expiring senate displayed a sudden luster, blazed for a moment and was extinguished forever." Edward Gibbon, *The Decline and Fall of the Roman Empire*, Hans-Friedrich Mueller ed. (New York: Random House, 2003), 182.

## THE CONSULSHIP

The consuls, the Roman republic's two supreme magistrates, comprise the third source of foreign affairs power. The republic's chief executives do not play a leading role in the formulation of foreign policy. Each year the centuriate assembly elected two consuls, each of whom had two essential powers: to command the Roman legions on campaign and to head Roman administration when residing in the city, *imperium* and *potestas*, respectively.[181] Polybius and Livy establish that military rather than administrative duties dominated the consuls during the early and middle republic.[182] When in Rome, functions of the consuls involved acting as an intermediary between the senate and the people. The consuls presented foreign embassies to the senate, discussed domestic and foreign policy within the senate, executed the senate's decrees and the laws passed by popular assemblies, presided over popular assemblies, and presented proposed bills before the people.[183]

Machiavelli's consuls appear in Rome at pivotal moments, to mediate between the senate and the popular assemblies and to act as a third check on the formulation of foreign policy. Both aspects of Machiavelli's consulship are grounded in Roman tradition. He describes the consuls as receiving *imperium*, military command through "free votes."[184] "Free votes" is historically accurate in context given that Machiavelli is contrasting election with the acquisition of political power through inheritance, deception, or "violent ambition" but is technically imprecise as the centuriate assembly exercised weighted voting. In Book II, chapter 11, the Roman consul while commanding the legions in battle receives the ambassadors of the Tarantines and responds to their offer of arbitration with memorable audacity, a significant alteration from Livy to illustrate Machiavelli's preference for deeds over words.[185] Though he may vary from Livy, having a consul negotiate with the ambassadors of foreign states is consistent with the discretion that accompanied a consul's *imperium*. And Machiavelli approves heartily of the discretion granted to the consuls abroad. "All the modes of proceeding of the Roman people and Senate should be considered," which reminds us that the people were equal to the senate in foreign policy. More pertinent in the discretion they would grant to the consuls:

[181] Francisco Pina Polo, *The Consul at Rome: The Civil Functions of the Consuls in the Roman Republic* (Cambridge: Cambridge University Press, 2011), 3. See also Lintott, *The Constitution of the Roman Republic*, 104–7, on the consulship.

[182] Ibid. Polybius, *The Histories*, (Oxford: Oxford University Press, 2010) Brian McGing ed., Robin Waterfield, trans., Book VI, chapter 12, 380–1.

[183] Pina Polo, *The Consul at Rome*, 4.

[184] "*Imperium* was the right to exercise military command – outside the *pomerium* – and no more." Fred Drogula, "Imperium, Potestas, and the Pomerium in the Roman Republic," *Historia*, 56, no. 4 (2007): 431. The *pomerium* was the sacred boundary of the city.

[185] Mansfield ed., 150–1.

For once the people and the Senate had decided upon a war – for instance against the Latins – they consigned all the rest to the judgment of the consul who could either wage a battle or not wage it, encamp at this town or that other one, as he liked.[186]

When exercising military command, then, consuls have broad discretion, a generous grant of authority at odds with the minutiae obsessed habits of Florentine and Venetian republics "if their captains, superintendents, or commissioners have to set up one artillery piece, they wish to understand and give counsel about it."[187] The emphasis on one person exercising military command is connected to the militarist prince of chapter 14, but this tenet should not mislead readers into assuming executive power abroad is the principle lesson of the ancients for the senate always retains its ultimate authority. Consuls abroad relied on the senate, which controlled the treasury, for funds to conduct campaigns.[188] In Book II, chapter 23, as presiding officer of the senate, the consul Camillus makes a proposal to the body, but the collective senate is the last word. In Book III, chapter 27, the Roman consuls negotiate with the Ardeans, true to Roman tradition in which the consuls were chief diplomats as well as commanders-in-chief. While the discretion consuls possessed when outside the city had no parallel in Florence, the consuls conjured by the *Discourses* generally are faithful to historical precedent.

Critical to the success of Roman foreign policy was the multiple decision-making checks scattered through the process. We have seen how the senate checks the will of the people, and the people check the senate. The consuls, too, can check the intentions of the senate by addressing the people in an assembly, at least in the centuriate or curiate assemblies and conventions, but not in the tribal assembly over which the tribunes presided. Recall in Book I, chapter 53, when Scipio, as consul, threatens the senate to go directly to the people with his proposal to take his troops to Africa. Even the domestically oriented tribunes of the plebs participate in this network of constitutional checks. In Book I, chapter 50, the tribunes and senate cooperate to check consuls and force them to act for the good of the republic. "It should never be ordered in

[186] Mansfield ed., 206.

[187] Mansfield ed., 207. See also Book III, chapter 15, "That One Individual and Not Many Should Be Put over an Army; and That Several Commanders Hurt." At first the Romans created four tribunes with consular power to deal with foreign relations, specifically with the rebellion of a conquered people. This division brought forth only confusion and dishonor. In response to this accident, and revealing the capacity to adjust to circumstances by creating the new institutional mechanisms or "orders" Machiavelli so admired, the Romans created the dictator, "so that one alone might reorder what three had disordered." He then raises the example of Florence in 1500 to illustrate Livy's advice that in the administration of great things, the command ought to be with one individual: "That is contrary to what these republics and princes of ours do today in sending to places more than one commissioner, more than one head, to administer them better, which produces confusion beyond reckoning." He continues, "If one seeks the causes of the ruin of Italian and French armies in our times, one will find the most powerful to have been this." A superior policy is to send one man of common prudence alone.

[188] Polybius, *The Histories*, Book VI, chapter 13, 381. Mansfield ed., 253–54.

a city that the few can hold up any of those decisions that ordinarily are necessary to maintain the republic."[189] In Machiavelli's telling, the senate, popular assemblies, and consuls all have their respective responsibilities and roles that are not strictly defined but are based upon evolving precedent. Each component zealously watches the others.[190] All institutions are embedded in a web of surveillance, constantly watching and restraining one another.

I say that in Rome there was the order of the government, or truly of the state, and afterward of the laws, which together with the magistrates checked the citizens.[191]

This mutual distrust, the perpetual checking of one institution by another reduces error in policy making, and in fact, may produce superior policy through the various opportunities for debate and revision offered through the interaction of assemblies, senate, and consuls.

Beneath the multiple sources of authority and policy checks, the reality of external threat unites the Roman people for "the whole city," as Machiavelli describes it, "both the nobles and ignobles – were put to work in war."[192] War sublimates the patrician appetite for oppression into a thirst for honor.[193] The quest for glory replaces the desire to dominate.[194]

So many virtuous men emerged in every age, decorated from various victories, that the people did not have cause to fear any one of them, since they were very many and guarded one another. They kept themselves so upright, and so hesitant to cast a shadow of any ambition or to give cause to the people to offend them for being ambitious, that when one came to the dictatorship he carried away from it the greater glory the sooner he laid it down.[195]

[189] Book I, chapter 50.

[190] The checking function Machiavelli stresses also derives from Polybius, who observed of the senate, consuls, and popular assemblies that "[e]ach is able to work with or against the other two" (Polybius, *The Histories*, 381). Machiavelli defines constitution in Book I, chapter 18 as "the authority of the people, of the senate, of the tribunes, of the consuls; the mode of soliciting and creating magistrates; and the mode of making the laws" (49).

[191] Book I, chapter 18, 49. "E per dare ad intendere meglio questa parte, dico come in Roma era l'ordine del governo, o vero dello state, e le leggi dipoi, che con i magistrate frenavano i cittadini." Bausi ed., 113. *Frenavano* could also be translated as "restrained" or "bridled."

[192] *Discourses*, Book I, chapter 30, Mansfield ed., 68.

[193] Many interpreters stress glory, greatness, or appetite in Machiavelli's endorsement of empire. See Coby, *Machiavelli's Romans*, 261–8. See also the essays in Rahe, *Machiavelli's Liberal Republican Legacy*. Obviously, I do not interpret Machiavelli as an uncomplicated exponent of empire. I interpret his thought as focused on the territorial expansion of the republic and how its stunning success in foreign policy could be revived for city-state republics such as Florence in the era of larger states.

[194] One must be careful not to conflate the elite/grandi/patrician appetite for domination with the desire for glory. See Mansfield, *Machiavelli's Virtue*, 238, and McCormick, *Machiavellian Democracy*, note 54.

[195] Book I, chapter 30, Mansfield ed., 68.

It is remarkable the system works as well as it does for so long. Eventually the republic dissolves into its opposite, tyranny. The republic's controlled conflict between patrician and plebian shatters in the wake of the revival of the Agrarian laws and the prolongation of command. The revival of laws intended to distribute conquered lands to plebians had the effect of seizing the immense wealth of the patrician class, which had already seized the property for the creation of vast estates. In the end, the greed of the senatorial class foments violence and the plebians respond in kind.[196] At the same time, the immense territorial conquests of the Roman legions, Rome's tremendous success abroad, plays a part in is ultimate undoing. The discretion granted to consuls abroad to better execute the will of the senate and the people turns insidious as the legions roam far into Europe and the wars last longer. It seemed unwise to the senate to change a policy that had been successful or to switch commanders during a long military campaign.[197] In consequence, fewer men are permitted to gain the prestigious experience of military command, and ordinary soldiers, far from home for long periods, become loyal to their commanders. Generals turn into warlords, gain partisans, and drown the republic in bloody civil war. Machiavelli's investigation into Rome's decline offers yet another lesson on the weaknesses endemic to republics, their vulnerability to private power.[198]

Does the Roman republic's violent demise negate its value for Machiavelli's contemporaries? Private aggrandizement and restive elites had weakened the Florentine republic. But does the prolongation of commands, the dangers of expansion throw Machiavelli's study of Roman expansion or its foreign policy doctrines and institutions into doubt? Given the geopolitics of Europe in the early sixteenth century, it was highly unlikely a republic might expand to encompass the territory of the late republic and stare into the same abyss. The Swiss republican confederation was militarily powerful, and the Italian republics were at the mercy of the French and Spanish monarchies. Machiavelli did not envision empire on a grand scale but devotes his discourse to the first ten books of Livy. In those books, Rome is small and surrounded by neighboring city-states such as the various Etruscan cities and peoples, Veii, the Volsci, the Henrici, the Aequi – circumstances remarkably similar to those of Florence seeking to expand and maintain its restive neighbors such as Pisa, Arezzo, and Siena.

Having covered Machiavelli's recommendations, at once traditional and unconventional, exactly why he believes the people should have a voice in the complex and fast moving realm of foreign policy requires some explanation. Rome armed its people and conquered the world with its own citizen soldiers.

[196] Book I, chapter 37.

[197] "The farther the Romans took the armies, the more such extensions of command seemed necessary to them, and the more they did it." Book III, chapter 24.

[198] John Najemy, "Society, Class, and State in the *Discourses on Livy*." in John Najemy, ed., *The Cambridge Companion to Machiavelli* (Cambridge: Cambridge University Press, 2010), 110.

A major weakness of the city-state – and one which became increasingly obvious in the time of the consolidation of the territorial monarchies – was the narrow base from which it drew its political strength.[199]

## THE MILITARY REVOLUTION

War was the fate of princes in the sixteenth century. They may have preferred to collect art or form learned academies like their predecessors, but war came nevertheless.[200] "A Prince, therefore, must have no other object or thought, or take up anything as his profession, except war and its rules and discipline."[201] Machiavelli's extended republic seems most distant from the version created by the American founders when it comes to his emphasis on war. His preoccupation with war was dictated not by choice but by necessity. In the sixteenth century, the known world was constantly at war. These were wars of an unprecedented kind, fought with new weapons by vast armies marching over large swaths of territory.[202] The French army that crossed the Alps to ruin Italy in 1494 was composed of permanent heavy cavalry, Swiss infantry, and horse-drawn guns.[203] Every day Machiavelli saw "miraculous losses and miraculous acquisitions" because of a military revolution that had bypassed Florence. Like most commercial republics, Florence had poor military institutions and was loath to raise the taxes needed to devote money to military forces and defenses.[204] Florence paid dearly for its frugality in Machiavelli's era. In the sixteenth century, military power became a key feature of international relations. The invention of gunpowder, the Italian invasions, and the Renaissance culture of innovation radically changed military practice.[205]

Unlike the American or Venetian republics, which were surrounded by water and thus had natural barriers to invasion, Tuscany was the battleground of the sixteenth century. It is an oft-overlooked fact that utopias are always isolated and free of war. The ideal state is always the safest state. Ideal states such as More's *Utopia*, Campanella's *Sun State*, and Cabet's *Icarie* are almost always situated on islands in order to eliminate the need to deal with the intractable side of politics – relations with other states or, simply put, war and diplomacy. Ideal states or utopias represent a flight from competition, a flight from power. The

[199] Gilbert, *Machiavelli and Guicciardini*, 45.

[200] Anderson, *Lineages of the Absolutist State*. Machiavelli noted that Venice lost its state in one day. See also *The Prince*, chapter 11, "A Prince Should Have No Other Thought or Aim Than War." Connell ed.

[201] *The Prince*, chapter 14, Connell ed.

[202] Michael Mallett and John Hale, *The Military Organization of a Renaissance State* (Cambridge: Cambridge University Press, 1984).

[203] Ibid.

[204] See *Discourses* Book II, chapter 30, in which Machiavelli criticizes Florence and Venice for attempting to purchase security.

[205] Thomas Arnold, "War in Sixteenth-Century Europe: Revolution and Renaissance," in *European Warfare 1453–1815*, ed. Jeremy Black (New Haven: Yale University Press, 1994).

fundamental problem of state security is not resolved or even addressed but avoided altogether. The majority of canonical political philosophers have not given the problem much more attention. Recall James Madison's observation that the permanent military establishments cost Europe its liberties.

Machiavelli attempted to resolve the tension between liberty and state security – to find a way for a republic to conduct war without resorting to military demagoguery and a professional warrior class. He is concerned not simply with the orders and institutions needed to support effective policy outside the walls, but specifically with how a republic should wage war.[206] War was critically important for any earnest republican, for specific developments in war, in addition to its omnipresence, were killing republics.

War changed in a direction that made small scale and fragmented sovereignty a clear disadvantage, and as a result, republics lost out to large states. "It is now generally accepted that the territorial state triumphed over other possible forms (empire, city-state, lordship) because of the superior fighting ability which it derived from access to both urban capital and coercive authority over peasant taxpayers and army recruits."[207] The military revolution enabled states with access to large populations, and thus access to manpower and taxes, to gain a clear advantage. Dynastic princes took control of territorial consolidation and state construction.[208] While feudal relationships dissolved, monarchies increased power and authority over subjects by manipulating the more advanced money and credit economy.[209] As the state's powers increased, the state asserted control over warfare, and distinct chains of command in royal armies replaced the formerly more freewheeling "entrepreneurial war system," which in Italy was known as the condottiere system. Royal France started the trend toward permanent standing armies and increased state control over the military with the *ordonnances* of Charles VII of 1439 and 1445. These statutes regularized the size of cavalry companies and forbade unsanctioned recruitment of troops.[210] The increased politicization and bureaucratization of armies created new

[206] Rome waged war in a manner designed to acquire and maintain territory. The republic knew how to expand by waging short and massive wars that did not spoil the countryside. In recommending the Roman method, Machiavelli reveals his awareness of the importance of territory in the sixteenth century (see Anderson, *Lineages of the Absolutist State*). In addition, Rome used booty and colonies, not taxes, to finance wars.

[207] Thomas Ertman, *Birth of the Leviathan: Building States and Regimes in Medieval and Early Modern Europe* (Cambridge: Cambridge University Press, 1997).

[208] This worked in two dimensions: the accumulation of power through acquisition of territory and the consolidation of power through acquisition of new authority. See Wayne te Brake, *Shaping History: Ordinary People in European Politics, 1500–1700* (Berkeley: University of California Press, 1998), 179, and Charles Tilly, *Coercion, Capital, and European States, A.D. 990–1990* (Cambridge: Blackwell, 1992).

[209] H. G. Koenigsberger, *Estates and Revolutions* (Ithaca: Cornell University Press, 1971).

[210] Mallett and Hale, *The Military Organization of a Renaissance State*. Interestingly, Machiavelli mentions the *ordonnances* in *The Prince*, chapter 13: "for the kingdom of France would be unconquerable if the ordinances of Charles had been preserved or augmented."

opportunities for the nobility and henceforth they would dominate the war machine. In short, changes in the conduct of war empowered ruling elites.

Military competition had a critical effect on patterns of state development. War "opened an era of ferocious competition between states, which from the fourteenth century onwards had to extract more and more resources and to invest them into the war business. States which could not cope with the tide of conflict just disappeared."[211] Territorial monarchies were turning into "machines built for the battlefield," able to deploy vast numbers of soldiers, often recruited from outside their borders. Armed conflict became virtually permanent. Early modern composite states needed powers of coercion and capital, to conscript peasants for war and to force them to pay for it. "From 1494 onward, successive French monarchs were determined to pursue their foreign policy goals free from any possible constraints that might be imposed by an assembly of the entire kingdom."[212] Talkative republics – for which everything is decided with difficulty and where public approval matters – were at a disadvantage.[213] The Florentine republic crumbled under the weight of new military requirements. Florence had neglected to spend money on defense because that would have entailed raising taxes.[214] Consequently, the republic had poor military institutions and was ill equipped to deal with the new onslaught from the north. Florence's military unpreparedness and its need to devise new orders for the military preoccupied Machiavelli. He headed the commission that would recommend fortifications for the Florentine republic, which were built under the direction of Michelangelo. He focused extensive portions of the *Discourses* on recommendations for the military policy of an extended republic.[215] It was too little too late, for large armies, heavy artillery, and extensive fortifications overwhelmed the Italian city-states.[216]

[211] Jean Philippe Genet, "Which State Rises," *Historical Research* 65 (1992): 131.

[212] J. Russell Major, *Representative Institutions in Renaissance France 1421–1559* (Madison: University of Wisconsin Press, 1960).

[213] Tilly, *Coercion, Capital, and European States*.

[214] However, Florence was willing to promulgate forced loans to finance the war against Pisa.

[215] Book I, chapters 21 and 43; Book II, chapters 10–20, 24, and 30; and Book III, chapter 31. Machiavelli knew that critical changes were taking place in the size of military force alone. Whether or not Machiavelli really understood the military revolution taking place around him still bears scrutiny. For the purposes of this work, it is enough to know that he was aware that drastic changes in the conduct of war were taking place. Whether he understood it in detail is best left to military historians and strategists to debate. For more on Machiavelli's method of political thinking, which works primarily by intuition and has much in common with politicians, see Federico Chabod's still illuminating essay, "Machiavelli's Method and Style," in *Machiavelli and the Renaissance* (Cambridge, MA: Harvard University Press, 1958). For more on the military revolution of the early modern period, see J. R. Hale, *War and Society in Renaissance Europe, 1450–1620* (Montreal and Kingston: McGill Queen's University Press, 1998), and G. Parker, *The Military Revolution, Military Innovation, and the Rise of the West, 1500–1800* (Cambridge: Cambridge University Press, 1996).

[216] Tilly, "Entanglements of European Cities and States," 25.

War and wealth were linked and contributed to a state's strength. The fifteenth century witnessed the creation of permanent military establishments, made possible by revenues and improvements in administration and coercion.[217] France was not only the envy of Europe because it was united. France had a taxable capacity that was already impressive; by the sixteenth century, its revenues surpassed those of all of Europe. The ability to wage war on a vast scale depended on a transformation in the state's ability to extract large amounts of capital in the form of taxes from its citizens. The relationship between war and wealth was taken to its logical extreme in the seventeenth century by the Count-Duke of Olivares, who as prime minister of Spain sought to bind the military and economic spheres together to ensure the survival of the Spanish monarchy.[218] Machiavelli commented on the issue of military spending repeatedly in the *Discourses*, insisting that "Money is not the Sinew of War." Good and loyal soldiers are the essential element in fighting and winning wars.[219] Furthermore, he asserted that the use of money in foreign affairs, which Florence and Venice preferred, is corrupt. Commercial republics preferred to live and die by the purse rather than the sword. The Roman republic "never acquired lands with money, never made peace with money, but always with the virtue of arms." By contrast, Florence and Venice have "bought themselves off in their wars," and moreover, "[i]t would be lengthy to tell how many lands the Florentines and the Venetians have bought: one saw later the disorder of this: that the things they acquire with gold they do not know how to defend with steel."

Machiavelli drew his own conclusion. The inability to maintain territorial acquisitions and the dependence on money arise from having disarmed the people. "What this disorder has done in Florence was seen and is seen every day: as soon as an army passes beyond its borders and enters near its head, it does not find any more remedy."[220] Venice could escape the results of disastrous policy because it was "wrapped by waters." He blamed the princes of Italy for the ignominious defeat at the hands of invaders.[221] "There is no observance of religion, of laws, and of the military but they are stained with every type of filth. And these vices are so much more detestable as they are in those who sit as tribunals, command everyone, and wish to be adored."[222] For instance, "[a]mong the sins of Italian princes that have made Italy servile towards foreigners" is the disregard of infantry in favor of flashy cavalry, a fixation arising

[217] Tilly, "Entanglements of European Cities and States," 9.

[218] J. H. Elliott, "A Europe of Composite Monarchies," *Past and Present* 137: 49–69. See also his *The Count-Duke of Olivares: The Statesman in an Age of Decline* (New Haven: Yale University Press, 1986).

[219] Book II, chapter 10.

[220] Book II, chapter 30.

[221] It is fair to say he blamed the papacy for fomenting the invasions and then Italian princes for the military weakness that failed to defend Italy when the invaders came. See *The Prince*, chapters 12 and 24, along with the *Discourses*.

[222] Book II, preface.

"from the ignorance of those who held states."[223] Machiavelli blamed princes for their lavish lifestyles, for their voluptuous aestheticism, for their interest in culture rather than war. He observed "That the Sins of People Arise from Princes," and the plethora of "idle princes" always drew his ire.[224]

When criticizing Italian princes in the *Discourses*, Machiavelli refers readers to *The Prince*, which contained the first of his remedies for reordering the military.[225] The two work together to diagnose and remedy Italian military weaknesses, with *The Prince* addressing immediate problems, specifically assembling a territorial state and expelling foreign invaders, while the *Discourses* focuses on longer-term reforms of republics.[226] "When these idle princes and effeminate republics send out a captain of theirs, the wisest commission it seems to them they give him is to impose on him that he not come to battle in any mode – indeed that above all he guard himself against fighting."[227] Machiavelli is very clear about "What a Prince Should Do Regarding the Military," the title of the fourteenth chapter of *The Prince*. The modern prince, as first servant of the state, is entrusted with the security of the state and should do nothing but prepare for war, dedicating his life every waking hour to war. Among the sins of Italian princes and republics, sins that "made Italy servile towards foreigners," none was more to blame than the contracting of hired military forces, mercenaries, "[f]or since the Italian military was transferred twenty five years ago to men who did not hold states but were like captains of fortune. This made the Italian military weak so that this province has been easily trampled over by

[223] Book II, chapter 18: "Since a large number of infantrymen could not be continually paid by them [Italian princes] and they did not have subjects they could avail themselves of, and a small number did not give them reputation, they turned to keeping horse."

[224] In Book III, chapter 10 he also criticizes "effeminate republics" as well as idle princes for the same shortsighted use of mercenaries. See also Book III, chapter 29. In chapter 16 of *The Prince*, "Of Liberality and Parsimony," Machiavelli advises against the fashionable politics of display, the establishment of elaborate courts and ceremonial ritual which contributed to a prince's reputation for grandiose liberality. Machiavelli recommends avoiding sumptuous display because such display "will consume all his wealth in such activities and he will at last be compelled, if he wants to maintain his reputation for liberality, to impose a heavy tax burden on the people, and become an extortionist." Not only did spending on splendor overshadow the old communal politics, it endangered the state, for a prince focused on spending was not paying attention to defense. Machiavelli holds up Pope Julius and kings of France and Spain as examples of wise spending on war. "The present king of France has waged many wars without imposing an extra tax on his people, because his additional expenses were taken care of by his long-practiced parsimony. The present king of Spain, if he had a reputation for generosity, would not have engaged in and won so many campaigns." Princes should be parsimonious so as to spend the budget on defense and military campaigns.

[225] Book II, chapter 20 refers readers to *The Prince*, chapters 12 and 13: "Beware of mercenaries, you have no authority over them." Book II, chapter 18 also refers the reader to *The Prince*.

[226] So that a prince can liberate and a republic can be maintained. See *The Prince*, chapters 12, 13, 14, 16, and 20. In addition, see the *Discourses* Book I, chapters 21 and 43; Book II, chapters 10, 12, 16, 17, 18, 20, 24, and 30; and Book III, chapters 31 and 49.

[227] Book III, chapter 10.

all the ultramontanes."[228] His contempt is encapsulated in an unforgettably pungent epigram, "The arms of others either slip off your back, or weigh you down, or tie you up."[229] "Nothing makes modern princes repent," not destruction nor the thrilling example of Cesare Borgia, "so great is the unhappiness of these times."[230]

## RETURN TO POLITICAL THOUGHT AND PLANS

The modern state that emerged triumphant from two centuries of chaos and transformation was the baroque monarchy, shorn of medieval trappings and traditional limitations. All economic, political, philosophical, and military trends pointed toward princes and monarchs as the political figures of the future, and the coming centuries would be the great age of monarchs. During the fifteenth, sixteenth, and seventeenth centuries, as the Christian political world was shattered and new sovereign states were built on the ruins, three schools of political thought crystallized. The first school of thought made deductions from the vision of states confronting one another in a wasteland. The second group of political thinkers promulgated imperialist ideas on behalf of popes or emperors, for empire seemed the only way out of the brutal disorder and the new deadly competition among states. The third school of thought comprised natural law thinkers, who began to elaborate the idea that princes were bound by rules.[231] These were the three ways in which political thinkers attempted to comprehend, order, and in some sense overcome the chaos that surrounded them. Machiavelli is often grouped in the former category along with Hobbes and Bodin. Although Machiavelli did share with them the premise that states exist in a moral wasteland, rather than deduce something inevitable from it, he attempted to envision a republican form that could be constructed to withstand the blows of fortune and the harsh conditions of an altered political climate.

Politics in sixteenth- and seventeenth-century Europe was an elite activity; dynastic princes had taken control of the process of territorial consolidation and state construction. Machiavelli knew the virtues of swift princely action in conquest and foreign affairs, but he wished to involve the people in the political life of new territorial states. How to adapt traditions of popular rule to the new territorial politics was the principal challenge. The canonical theorists of the new age, Hobbes and Bodin, contended that anything less than indivisible sovereign political authority, basically monarchical absolutism, would bring on chaos.

[228] Book II, chapter 18.

[229] *The Prince*, chapter 8, 56.

[230] Book II, chapter 18. In this quote, Machiavelli reveals his apprehension of the manner in which historical conditions delimit the range of political possibility, or open and close opportunities, so to speak. This dialectic between freedom and necessity in the realm of political action would be picked up by Hegel and Marx, both theorists of freedom. See Ian Shapiro's *Moral Foundations of Politics* for an interpretation of Marx as a theorist of freedom.

[231] Bull, *The Anarchical Society*, 26.

They proffered the new political idea of absolute sovereignty, which they attributed to a supreme magistrate, and they denied the viability of composite states and shared or divided sovereignty.[232] It was all or nothing, absolutism under one ruler or civil war and chaos. Territorial consolidation was an elite affair, a matter for princes. No one could envision a composite extended republic.

However, the historical process of state formation was not entirely or necessarily an elite matter. Accounts of territorial state formation are traditionally elite centered – something Machiavelli predicted would occur – because, as he observed, control over the writing of history is one of the spoils of victory.[233] Ordinary people staged revolts, reformations, uprisings, protests; but they simply could not always figure out how to get involved effectively, how to adapt old participatory customs to the new style of politics.[234] Guilds and city councils had decisively lost the struggle for political power to princes and patricians, which left people bereft of any traditional means of political action or resistance.[235] Machiavelli had his own popular alternative for state formation, and the Machiavellian alternative is another one of his original contributions to political thought.

"Neither commune nor republic was a state in Machiavelli's eyes since both lacked not only a sizable territory but also a population capable of supporting a military force that would make it possible for them to pursue an autonomous foreign policy."[236] Gramsci's observation raises several important points. The first is that communes and republics were forms of popular government, and they were behind in the process of state formation. Foreign policy was their principal weakness. Territorial expansion and decisive policymaking posed challenges, and their inability to field a large fighting force hindered them from challenging the monarchical territorial states. Princes had taken control of the process of state formation and the huge, permanent military force was one of the ways they did so.[237] This had geographical as well as political dimensions. Control of a massive permanent armed force was crucial to the political and economic success of states, and this was one of the reasons that the city-states of the Mediterranean were unable to compete with the territorial states of the Atlantic.[238] A republic needed territory and population.

In an era of international chaos and military revolution, was a territorial republic viable? "Certainly not," replied the principal theorists of political

[232] Bodin attributes sovereignty to the ruler in 1576. In 1614, Johannes Althusius attributes sovereignty to the commonwealth or universal associations instead of the supreme magistrate. Cited in te Brake, *Shaping History*.

[233] Book II, preface and chapter 5.

[234] See te Brake, *Shaping History*, introduction, 13–21.

[235] Koenigsberger, *Estates and Revolutions*, 4.

[236] Gramsci, *The Prison Notebooks*, 151.

[237] Te Brake, *Shaping History*, 8.

[238] See Fernand Braudel, *The Mediterranean and the Mediterranean World in the Age of Philip II* trans. Sian Reynolds, (New York: Harper and Row, 1972).

consolidation, who asserted that states needed sovereign political authority, the absolute rule of one monarch to maintain the state.[239] Book III, chapter 16, is important for the glimpse it offers of the movements of Machiavelli's mind using ancient practices to fix republican weaknesses: "Thinking over what could be the remedies," the choice is "either make the citizens poor or maintain a standing army."[240] This alternative is the complement of the choice first posited in chapter 6 of Book I between the traditional model of the poor republic isolated within its small borders or the expansive Roman republic – the choice that revolutionizes republican practice. In chapter 13 of *The Prince*, "Of Auxiliary, Mixed, and Citizen Soldiers," Machiavelli first mentions the solution. With a standing citizen army, a territorial republic would indeed be viable because populism and territorial expansion go hand in hand. Rome could not be defeated because "its heart," its citizens were well armed. "In Rome the foundation of its state was the people of Rome, the Latin name, the other partner towns in Italy and their colonies."[241]

The citizen army plays a critical role in bringing popular politics and state formation together.[242] How can a popular state expand and consolidate its acquisitions when princes have a monopoly on the process? Machiavelli envisions elite, then popular consolidation, and Machiavelli counsels working with local elites. Remember that he counseled expansion in the timely manner of the composite state. *The Prince* chapters 5 and 20 are part of the local consolidation plan as Machiavelli advises the Medici or the leader who has liberated provinces and cities to work patiently with local political elites to establish orderly, limited, and indirect rule. "And a city used to living in freedom can be held more easily by means of its citizens than in any other way." New legislation works only if the ruler goes there or if a city has been devastated. Do not bother building fortresses, Machiavelli advises, for the best fortress is to be liked by the people. This was union *aeque principaliter* – how to expand the state in a composite fashion via elites.[243] This was a different route to a larger regional state, a piecemeal method of territorial aggrandizement that often worked in the sixteenth and seventeenth centuries.[244] Machiavelli's daring plan is to build a composite republic with consolidation working on popular as well as elite levels.

[239] Again, Bodin and Hobbes.

[240] For the most lucid discussion of Machiavelli's understanding of the role played by collective and individual virtue/leadership in the process of regeneration, see Meinecke, *Machiavellism*, or Book I, chapter 57.

[241] Book II, chapter 30.

[242] Machiavelli's emphasis on a citizen army and the debt he owes to civic humanist thought on the issue has been much discussed (see Chapter 1 of this work). What is new about this interpretation is the connection made between a citizen army and popular rather than elite-led state formation.

[243] For more on this matter, see Chapter 2 of this work.

[244] See Mark Greengrass, ed., *Conquest and Coalescence: The Shaping of the State in Early Modern Europe* (London: Edward Arnold, 1991), and Elliott, "A Europe of Composite Monarchies," *Past and Present*.

Machiavelli knew precisely what the problems were for republics. Resistance to princes in defense of popular government was predominantly urban; the determined resistance of Siena, Pisa, and Pistoia to the Florentine empire come to mind. The example of the fate of the *Comunero* movement in Castile reveals the vitality of republicanism in the sixteenth century as well as the political obstacles, in both theory and practice, that stood in the way of an extended republic. The rebellion of city republics of Castile began in 1520. Eighteen cities in Castile joined to form the Sacred League, which claimed power as the sole legitimate government in Castile. From the first, this united league circumvented the state making strategy of monarchs, which was to take cities gradually via a strategy of divide and conquer. A league was the first step in overcoming this vulnerability.[245] With the first waves of urban insurrection the monarchy of Spain, less than fifty years old at this point, began to totter. The Sacred League, a coalition of the leading cities of the kingdom, claimed that together the cities were the sovereign government of Castile, not the king. The Sacred League is important because it went beyond Italian models, which could not conceive of two cities – Florence and Siena, for example – in anything other than a master-slave relationship. However, the *Comunero* movement remained an urban movement of parishes and urban militias, "but in the end the Comuneros' failure to advantage of or ally themselves with the rising tide of rural discontent which exposed the limits of this sort of *urban resistance to aggressive dynasts*."[246] It ultimately failed because the cities did not reach out and attempt to address the increasing rural discontent. This inability to incorporate the countryside doomed the movement, revealing the critical weakness of republics in the era of territorial states. No matter how committed urban populations were to older traditions of popular government, they faced a limited future unless cities joined forces with local rural resistance. A promising state was stillborn because the cities could not see beyond the city walls to the rising tide of rural insurrection and discontent spreading across the landscape. The historical consequences of this were enormous. Spain would come to stand for everything opposed to popular government for centuries to come.[247]

It has not been acknowledged that Machiavelli found a remedy for the inability of urban republics to reach out to the countryside, which doomed the *Comunero* movement. Machiavelli proposed uniting rural and urban insurrection with citizen soldiers. A citizen army was not only one of the remedies for republics in hard times; it was one of the great personal causes of his life, from *The Prince* to the *Discourses* to the *Art of War*. Convinced a citizen army was the

[245] Machiavelli tried to solve this as well. Uniting two cities under one sovereignty and changing the master-subject relationship between cities were among his principal concerns. See the discussion in Chapter 2.

[246] Te Brake, *Shaping History*, 28.

[247] S. L. Haliczar, *The* Comuneros *of Castile: The Forging of a Revolution, 1475–1521* (Madison: University of Wisconsin Press, 1981).

solution to the Italian and republican crisis, while employed by Soderini Machiavelli drilled a Florentine militia culled from the countryside, and years later pleaded with Clement de Medici to give the militia another chance.[248]

The new monarchies recruited soldiers from outside their borders. From 1500 to 1700, monarchies turned to mercenary forces, in the form of large-scale standing armies; infantry with siege artillery had displaced the urban militias Machiavelli admired. Tellingly, mercenaries were popular in monarchies because the noble class refused to arm its own peasants.[249] In notable contrast, Machiavelli recommends that a prince cultivate and rely on the people rather than base his power on a feudal nobility or urban elite. Arm your subjects, Machiavelli instructs those who lead republics and principalities.[250] The foundation of all states is a good military, which must be composed of its citizens.[251] It is necessary to arm one's subjects "if one wishes to maintain a republic or a kingdom." Note the use of *kingdom* rather than *principality*. Kingdoms are territorial entities, and by extension republics can be, too, provided their subjects are armed. A citizen army works in the interests of popular government precisely because it is composed of citizens, whereas the standing armies of territorial monarchies serve the coercive powers of the state. "Employing the plebs in war gave them the strength to contest the patricians and infinite opportunities for tumult." The Roman republic achieved security through a *large army* and military expansions, which inspired the tumults that enabled it to maintain a free way of life while it grew.[252]

A citizen army composed of urban and rural citizens is the way republics can combat the new standing mercenary armies that have replaced old urban militias. More specifically, a Tuscan/central Italian standing army would have been composed of all those incorporated into an enlarged territorial republic – various cities, their *contado* and *distretto*, as well as provinces. Machiavelli writes that the foundation of the Roman state was the people of Rome and "the other partner towns in Italy and their colonies, from which they

[248] Machiavelli's "special project," as John Najemy terms it, was the Florentine militia. Machiavelli was secretary and representative of the governmental board supervising the militia, the Nine, *Nove dell'Ordinanza*. See Najemy, *Between Friends*, 59. See also Sydney Anglo, *Machiavelli: A Dissection* (New York: Harcourt Brace & Co., 1970), 13–57. Federico Chabod, *Scritti su Machiavelli* (Turin: Einaudi, 1964), 241–368. Machiavelli could be said to be ahead of his time by two hundred years, as states would only begin hiring troops from their own citizens around 1700 or behind the times, as Perry Anderson claims. I would argue that Machiavelli was ahead of his time by nearly three hundred years: The citizen army he advocates became a reality in the citizen army of 1792 defending the French republic from the monarchies of Europe.

[249] Tilly, *Cities and the Rise of States in Europe*.

[250] With respect to whom the term *subjects* refers, for republics it means citizens of subject territories; for princes it means everyone.

[251] Book III, chapter 31.

[252] For more on this process, see Chapter 4 of this work.

drew so many soldiers that with them they were sufficient to combat and hold the world."[253]

> Thus if a city is armed and ordered as was Rome, and every day it falls to its citizens, both in particular and in public, to make experiment of their virtue and of the power of fortune, it will always happen that they are of the same spirit in every condition of time and will maintain their same dignity.[254]

The army solves the more pressing and prosaic problem of loyalty better than the concept of civic virtue. "It was easier to generate a sense of loyalty to a transcendent monarch than to a wider community created by political union."[255] Arguably, military service is important for Machiavelli precisely because it generates loyalty beyond the walls of a city. "When a citizen militia is established states previously disunited and unruly became united and the city's aggression, hitherto turned inward in factional strife, is turned to public advantage."[256] Citizenship would have been extended to all willing soldiers, following Roman practice, "because of the liberality that the Romans practiced in giving citizenship to foreigners."[257]

Ordinary people in the cities, villages, towns, and countryside of Tuscany and central Italy could seize control of their political destiny and help to consolidate a state of their own if they joined together in a citizen army. The problem was that a solitary leader first had to liberate Florence and lead the first round of territorial acquisition. But where to find such a populist patriot, who would wish to save the Italian tradition of popular government?

> For where people have little virtue, fortune often shows its power very much; and because it is variable, republics and states often vary and will always vary until someone emerges who is so much a lover of antiquity that he regulates it in such a mode that it does not have cause to show at every turning of the sun how much it can do.[258]

[253] Book II, chapter 30.
[254] Book III, chapter 31.
[255] Elliott, "A Europe of Composite Monarchies," *Past and Present*, 57.
[256] Factional strife was one of the reasons for the Florentine republic's eventual demise. *Florentine Histories*, Book II, chapter 3.
[257] Book III, chapter 49.
[258] Book II, chapter 31.

# 4

# Early Modern and Eighteenth-Century Transitions

## *From Principality to Republic and from Colonies to Extended Republic*

Of Machiavelli, Louis Althusser observed, "His writing is a political act."[1] If Machiavelli hoped to influence the future of republicanism and the fate of Florence, it behooves us to examine how he might have envisioned a larger territorial principality making the transition to an extended republic. As alluded to in Chapter 1 of this work, an ambitious and patriotic princely figure might assemble a Tuscan territorial state, in the form of a composite monarchy, which ideally would then be turned over to the people through a peaceful transfer of power; afterward popular rule would be institutionalized. The struggle was not for the Italian nation, but for Italian liberation from foreign domination.[2] Machiavelli was engaged in a paradox, for larger polities took the form of patchwork composite monarchies. Whether a composite territorial republic could exist was not known. The place of this experiment, this new beginning, was Tuscany, not yet corrupt as were other parts of Italy and suited for free government.[3] Both the founders of the American republic and Niccolò Machiavelli had lands not yet corrupt, "and so they were able to wish, and in wishing, to give color to their plan."[4]

[1] Louis Althusser, *Machiavelli and Us*, ed. Francois Matheron (London: Verso Press, 1999), 23. "Machiavelli uses all the resources of rhetoric to win partisans to his cause, he elaborates the means at the disposal of the Prince to save Italy and treats his own text as one of those means." Althusser sensibly adds the caveat, "A manifesto is not a leaflet; a manifesto or a leaflet is not a strike, a demonstration, or an insurrection."

[2] See Federico Chabod, "Alcuni Questioni di Terminologia: Stato, Nazione, Patria nel Linguaggio del Cinquecento," in *L'Idea de Nazione*, (Bari: Laterza, 1967), 145–53.

[3] Niccolò Machiavelli, *The Discourses on the First Ten Books of Titus Livy*, trans. and eds. Harvey C. Mansfield and Nathan Tarcov (hereinafter *Discourses*) (Chicago: University of Chicago Press, 1996), Book I, chapter 55, "How Easily Things May Be Conducted in Those Cities in Which the Multitude Is Not Corrupt; and That Where There Is Equality, a Principality Cannot Be Made, and Where There Is Not, a Republic Cannot Be Made."

[4] Book I, chapter 19.

## THE PLAN

In chapter 26 of *The Prince*, after describing the misery of Italy in comparison to unified France and Spain, Machiavelli exhorts the House of Medici, having inherited Cesare Borgia's territories, to take up Borgia's project of uniting Tuscany and liberating Italy from the invading barbarians. The time has come to seize fortune; "it seems to me that so many things are coming together for the benefit of a new prince that I do not know what time for this has ever been more appropriate."[5] In the fluid political environment, amid the ruins of Florence's republican empire in Tuscany and before the Grand Duchy of Tuscany to come, Machiavelli has a brief window of time to build a state, "so that by introducing form to the material, it would do honor to him and good to the collectivity of its inhabitants."[6] Following Charles Tilly's suggestion that history can be treated "as an opening and closing of possibilities," one can discern that possibilities were open in Tuscany during the composition of *The Prince* and the *Discourses*. Florence was in a "revolutionary situation," meaning two coalitions advance rival claims to the state, until 1540.[7] Other intellectuals such as Donato Giannotti and Bartolomeo Cavalcanti who shared Machiavelli's sympathies were directly involved in anti-Medici conspiracies and were forced to take refuge at the Este and French courts.[8] Likewise, the free cities of South German lurched from insurrection to insurrection in the same decades that rocked Florence. Revolts in 1509 and 1514 culminating in the Revolution of 1525, also known as the "German Peasants' War," presented a similar opportunity for the formation of a larger territorial unit in South Germany through a federation of free cities along the lines of the Swiss Confederacy.[9] From the fifteenth to the seventeenth centuries, from Burgundy to Naples, "peasant revolts and urban revolutions abounded."[10] Resistance to aggrandizing princes was localized, defending the inherited rights and privileges of the small community.[11] Upon the death of Charles the Bold, Duke of Burgundy in 1477, the formerly free cities of Ghent, Bruges, and Ypres rebelled in the hope of restoring local liberties. The anti-centralist sentiment embodied in the "three members of Flanders" was but

[5] Niccolo Machiavelli, *The Prince, with Related Documents*, ed. and trans. William J. Connell (Boston: Bedford/St. Martin's, 2005) (hereinafter Connell ed.), 119.

[6] Ibid.

[7] See Charles Tilly, *European Revolutions* (Oxford: Blackwell, 1993), 17. The dating of the closure of possibility in 1540 for Florence comes from H. G. Koenigsberger, *Estates and Revolutions* (Ithaca: Cornell University Press, 1971), epilogue.

[8] R. von Albertini, *Firenze dalla Republica al Principato, Storia e conscienza politica* (Turin: G. Einauci, 1970), 145–78. Machiavelli saw how to use the Medici productively, and died in his bed, in Florence, rather than in Ferrara or France.

[9] Thomas Brady, *Turning Swiss Cities and Empire, 1450–1550* (Cambridge: Cambridge University Press, 1985), 4, 29–33.

[10] Koenigsberger, *Estates and Revolutions*, 3.

[11] Astorre Manfredi leading the citizens of Faenza in its heroic defense against Cesare Borgia comes to mind.

an incipient intimation of an oncoming roar.[12] Popular politics and princely conquest were opposed.[13] Although city-states were governed by elite-led oligarchies, the ideals of communal citizenship and liberty they still represented were a barrier to the consolidation of hierarchy. Of the "communal-federal" principle that inspired the Revolution of 1525, Thomas Brady observes, "It would have required the political emasculation of the lords of the land, a condition that had already been met only in the nearby Swiss Confederacy."[14] It is possible Machiavelli saw that he could overcome the opposition between conquering princes and popular localism with a prince leading the people in a popular rebellion.[15] Territorial consolidation may not have been popular, but consolidation could become a popular movement if it symbolized liberation. Under the banner of Italy – Leo X's "Liberty of Italy" policy a prince might have had widespread popular support and could lead a resistance to invading monarchies at the broader territorial level.

If the House of Medici had answered the call in chapter 26 to make themselves "lords of Tuscany" by following the advice in the previous chapters for annexing territories and cities, and thereby assembling a "mixed principality" of multiple cities and territories, essentially a composite territorial state, what then?[16] At this juncture, the *Discourses on Livy* becomes the focus.[17] Machiavelli dedicated the *Discourses* to Cosimo Rucellai and Zanobi Buondelmonti, members of the *Orti Orcellari*, an erudite literary circle whose members were dedicated, albeit elitist, republicans.[18] It is also likely other elites of republican leanings would be inclined to read the *Discourses*, which was circulated privately but was not published until 1531. Oligarchic prejudices varied from family to family. For instance, the Guicciardini were far more inclined to elitist oligarchy than were the Strozzi and Capponi families, whereas the Soderini tended to favor a more inclusive, populist republic or *governo largo*.[19]

[12] Brady, *Turning Swiss Cities and Empire*, 81.

[13] See Koenigsberger, *Estates and Revolutions*; Tilly, *European Revolutions*; and Wayne te Brake, *Shaping History: Ordinary People in European Politics, 1500–1700* (Berkeley: University of California Press, 1998).

[14] Brady, *Turning Swiss Cities and Empire*, 29.

[15] See chapters 5, 19, 20, 21, and 26 of *The Prince*.

[16] The Medici were the most likely protagonists; however, Machiavelli would have been open to and would have welcomed some virtuoso individual coming forward as well.

[17] This answers the question of how Machiavelli could be caught in the contradiction of denouncing a prince who is called upon to accomplish the great work of Italian liberation.

[18] See Felix Gilbert, "Bernardo Rucealli and the Orti Oricellari: A Study of the Origin of Modern Political Thought," in *History: Choice and Commitment*, ed. Felix Gilbert (Cambridge, MA: Harvard University Press, 1977), and Nicolai Rubinstein, "The Venetian Constitution in Florentine Political Thought," in *Florentine Studies: Politics and Society in Renaissance Florence*, N. Rubinstein, ed. (Evanston, Il: Northwestern University Press, 1968).

[19] "The ottimati were also a divided class, some siding with the Medici, some supporting the republic, and still others keeping their distance from both and waiting for whatever came. These divisions found their way into families." John Najemy, *Between Friends: Discourses of*

Any rebellion against conquering powers, of the sort envisioned in the preface to the *Discourses* Book II or chapter 26 of *The Prince*, would last only if elites were involved. Thus, Machiavelli instructed the prince to allow conquered territories to live under their own laws and to set up a friendly oligarchy.[20] And the loyalty of provincial elites could be earned and retained only by patronage.[21] Again, a glance at past revolutions and revolts is instructive. Ordinary people could instigate a revolutionary situation on their own, although most revolutionary situations resulted from some coalition of discontented elites and the local population. However, revolts that successfully culminated in an enduring transfer of power, as in German cities during the Reformation or in the Netherlands, were supported by some or all of the local elite. Of the revolutions in Palermo, Naples, Portugal, and Catalonia in the seventeenth century, only Portugal, united for sixty years with Castile, was successful in liberating itself.[22] In Portugal regional elites seized the political opportunity generated by popular opposition to the Spanish monarchy to act as political brokers "who enabled the establishments of revolutionary governments on the grander scale of a constituent kingdom."[23] The century before, the *Comunero* revolt had collapsed because isolated cities had failed to reach out to and build coalitions with regional elites.[24] Elites, the great or the *grandi* in Machiavellian parlance, were crucial to the historical task of building an extended republic.

In Tuscany there were elites who could be co-opted as part of a republican coalition. The Strozzi never reconciled themselves to Medici hegemony and were the greatest of republican *grandi*, leaders of intrigues and plots against the Medici in Machiavelli's lifetime and after his death.[25] Co-opting elites could turn a revolutionary situation, which was common enough in early sixteenth–century Florence, into a durable republican form.

*Power and Desire in the Machiavelli-Vettori Letters of 1513–1515* (Princeton: Princeton University Press, 1993), 72. On the various political positions elites took during the restored republic, see H. C. Butters, *Governors and Government in Early Sixteenth Century Florence, 1502–1519* (Oxford: Clarendon Press, 1985); von Albertini, *Firenze dalla Republica al Principato*; and Melissa Bullard, *Filippo Strozzi and the Medici: Favor and Finance in Sixteenth Century Florence and Rome* (Cambridge: Cambridge University Press, 1980).

[20] *The Prince*, chapters 17–19.

[21] J. H. Elliott, "A Europe of Composite Monarchies," *Past and Present* 137: 56.

[22] See J. H. Elliott, "The Spanish Monarchy and the Kingdom of Portugal, 1580–1640," in *Conquest and Coalescence: The Shaping of the State in Early Modern Europe*, ed. Mark Greengrass (London: Edward Arnold, 1991).

[23] Te brake, *Shaping History*, 135.

[24] Stephen Haliczer, *The Comuneros of Castile: The Forging of a Revolution* (Madison: University of Wisconsin Press, 1981), 115–21; J. H. Elliott, *Imperial Spain 1469–1714* (London: St. Martin's Press, 1964), 81–5.

[25] Alessandra Contini, "Aspects of Medicean Diplomacy in the Sixteenth Century," in *Politics and Diplomacy in Early Modern Italy*, ed. Daniela Frigo, trans. Adrian Belton (Cambridge: Cambridge University Press, 2011), 55.

To contemporary eyes, the Medici families' rise to power in Florence must well have appeared reversible; especially to the more powerful families of the mercantile oligarchy, who in some cases fashioned themselves into champions of republican freedom.[26]

The great mercantile families formed the driving force of aristocratic republican opposition against Medici ambitions. This mysterious party of opposition, as Giorgio Spini termed it, composed of intellectuals and writers as well as great bankers and merchants, was aristocratic and mercantile but also democratic and republican in sympathies.[27] The problem for the people and their erstwhile champions was either the unforgiving fact of a lost opportunity, or that most elites never trusted the people in Florence and finally preferred to serve a parvenu grand duke rather than share government with ordinary people.[28] In contemporary parlance, unlike the Netherlands, where a cross-class revolution gave way to an elite-led state formation, in Italy there was scant cooperative interaction across status groups.[29]

Let us provisionally accept that Machiavelli wanted to inspire Italians of all classes and especially those residing in the areas he suggests a prince conquer to leave suspicions and enmities behind for the greater cause of Italian liberation from the French and Spanish: "To everyone this barbarian domination stinks." In a more eloquent vein, he culminates *The Prince* with the words of Petrarch, "since the ancient valor in Italian hearts is not yet dead."[30] What Machiavelli projected in *The Prince* was for a prince to reach over the provincial nobility directly to the people via a campaign to liberate Italy and assemble a Tuscan/central Italian state in the process.[31] In that manner, ordinary Italians would align with a distant leader willing to champion their interests against the local elite, creating the conditions for the consolidation of a broader territorial sovereignty.[32] Consolidation would occur in part through the easy-going methods of indirect government via *aeque principaliter*, leaving cities their own laws and institutions, as Machiavelli described in chapters 3, 5, 7, and 9 of *The Prince*. Most often princely consolidation in early modern Europe went one of two ways: when a distant prince threatened conquest, ordinary people tended to align with local rulers willing to champion local privileges, because the strongest

[26] Ibid.

[27] Giorgio Spini, "Il Principato dei Medici e il sistema degli state europei del Cinquecento" in *Firenze e la toscana de Medici nell' Europa del Cinquecento*, 3 vols. (Florence: Olshiki, 1983), I: 177–216.

[28] J. N. Stephens, *The Fall of the Florentine Republic 1512–1530* (Oxford: The Clarendon Press, 1983).

[29] Tilly, *European Revolutions*.

[30] Niccolò Machiavelli, *The Prince, with Related Documents*, ed. and trans. William J. Connell (Boston: Bedford/St. Martin's, 2005) (hereinafter Connell ed.), 123.

[31] For more on a prince who goes over the provincial nobility directly to the people, see *The Prince*, chapter 13, and the *Discourses*, Book I, chapters 16 and 27, and Book II, chapter 2.

[32] For more on the assemblage of the Tuscan state, see Chapter 2 of this work. There were three sets of actors in composite state formation: subjects, local rulers, and regional or national aspirants to power.

alternative to princely consolidation was local self-determination.[33] In other cases, local elites aligned with regional leaders, reinforcing an elite-controlled state-building process. Neither scenario would come to pass if someone followed Machiavelli's suggestions in *The Prince*. An Italian "prince" promising liberation from foreign occupation, respectful of the people and willing to found on them, would not alienate people or elites in defense of local privileges or attract only elites and shut out the people. Assembling a territorial republic was also a task of Italian liberation.

If in central Italy local elites could be useful in the early stages of the consolidation process, inside Florence the situation was more difficult. The Florentine nobility was greater, stronger, prouder than the nobility of Siena, Pisa, or Perugia. The future of an extended republic, a composite state formed of the principalities and city republics of Tuscany and central Italy, depended upon the great families of Florence. Florence would likely be the capital city of such an enlarged republic, and territorial consolidation would not reduce the nobility's power within the walls of Florence. How to channel the power of the *grandi* into paths that supported rather than endangered the republic remained one of Machiavelli's most complex problems, unresolved in *The Prince*.

## THE NEW BEGINNING

After the barbarians leave the Italian peninsula, there will be a new beginning. From the first chapter, "What Have Been Universally the Beginnings of Any City Whatever, and What Was That of Rome," we witness a return to Rome to begin again.[34] At once Machiavelli establishes a distance from the humiliated present. The next chapter gives us an inclination of the passage from a territorial state to extended republic. "For Romulus and all the other kings made many and good laws conforming to a free way of life; but because their end was to found a kingdom and not a republic, when that city was left free, many things that were necessary to order in favor of freedom were lacking."[35] The end of Romulus was to found a kingdom. Fortune was favorable to Rome because "it passed from the government of kings and aristocrats to that of the people."[36] Here is the discovery as valuable as the Americas: a kingdom can turn into a republic. Rome has gone through a similar historical experience, a passage from kingdom to republic and this passage is one of the accidents Machiavelli insists ought to be

[33] As stated in the beginning of this chapter, Machiavelli planned a composite state rooted in popular rebellion rather than the common opposition between aggrandizing princes and local liberty.

[34] As Chiappelli noted in his commentary in *City States*, "Machiavelli saw the classical city state Rome as a reality of the past to be studied *in an attempt to conceive a refounding of the city and the state that went with it.*" Fredi Chiappelli, "Athens and Rome/Florence and Venice," *City States in Classical Antiquity and Medieval Italy*, eds. Anthony Mohlo, Kurt Raaflaub, and Julia Emlen (Stuttgardt: F. Steiner, 1991), 127.

[35] Book I, chapter 2.

[36] Ibid.

imitated as well as admired. Rome is the singular mystery – a republic founded by kings. Could a newly united composite monarchy turn into a republic?

In the first chapters of the *Discourses*, we learn more about the relationship between kingdom and republic. "That It Is Necessary to Be Alone If One Wishes to Order a Republic Anew or to Reform It Outside Its Ancient Orders," explains why Machiavelli wanted one prince, one king, one solitary individual to undertake the task of introducing a form that would bring good to the community.[37] Chapter 9 reveals how to reconcile his republican commitment with his appreciation for the virtues of executive power and charismatic leadership. A republic is not ordered well or "reformed altogether anew outside its old orders unless it is ordered by one individual." He continues, "A prudent orderer of a republic, who has the intent to wish to help not himself but the common good, not for his own succession but for the common fatherland, should contrive to have authority alone." A founder must be alone because the many are not capable or ordering "because of the diverse opinions among them." It will be seen that this is temporary state of affairs is a pragmatic compromise and not an enduring combination.[38]

The republic of Florence has never been well ordered, since people ordered it for partisan purposes. More than that, Florence is now servile, which makes things ever more difficult.[39] The solution is to impose laws until they take root.[40] In chapter 10, "As Much As the Founders of a Republic and of a Kingdom Are Praiseworthy, So Much Those of a Tyranny Are Worthy of Reproach," he gives advice to "He who has become a prince in a republic."[41] Such an unusual notion is significant for it implies that becoming a prince in a republic is within range of the possible. Given that the spirit of the times favors princes, "one must vary with the times," the intention is to persuade a prince to act in the public spirit for the common good. The Medici were not only princes of the Church; they had become princes in a republic. Various members of the Medici family, Lorenzo the dedicatee of *The Prince*, Giulio, later Clement VII, and Leo X were in just that position. It is not unworthy of notice that the *Discourses* is dedicated not to princes, "but to those who for their infinite good parts deserve to be." While *The Prince* hopes to persuade the Medici to liberate Italy, the *Discourses* is less direct, exemplifying Machiavelli's belief that if the Medici were unwilling to surrender power, "lay down the principate,"[42] there were other public spirited individuals who might be able to undertake the task of reordering the new state, "[f]or it is

[37] Book I, chapter 9, and *The Prince*, chapter 26.

[38] A founder must also be alone because Machiavelli could not imagine a group of public-spirited founders such as those who framed the American constitution. There was a dearth of political leadership in sixteenth-century Italy.

[39] Book I, chapters 8 and 11.

[40] Book I, chapter 49. One could argue this was the thinking behind the imposition of democratic laws in Germany and Japan after the Second World War.

[41] Book I, chapter 10, paragraph 4; see also paragraph 2.

[42] Book I, chapter 10.

the duty of a good man to teach others the good that you could not work because of the malignity of the times and of fortune, so that when many are capable of it, someone of them more loved by heaven may be able to work it."[43]

The *Discourses* is addressed to all those entrusted with constituting a republic, close or distant in time. In chapter 10, he pleads with a new prince not to be a tyrant, praising the golden age of the Roman empire in contrast to the misery of the late empire. Tellingly, he advises, "If a prince seeks the glory of the world, he ought to desire to possess a corrupt city."[44] The goal of possession is "not to spoil the city as did Caesar but to reorder it as did Romulus."[45] This embellished rhetoric, "And truly the heavens cannot give to man a greater opportunity for glory" is deployed to encourage potential princes to reorder a state toward popular rule.[46] Founding a republic leads to a secure life on earth and glory after death. Tyrannical rule leads to a fearful life and death in infamy. It must be stressed that the emphasis on reordering rather than founding a state de novo is unique.

## THE TRANSITION TO A REPUBLIC

Machiavelli thought about the passage or transition from kingdom (an extended or mixed "composite" principality) to republic all his life. He never abandoned his belief that founders needed to be alone. Machiavelli reportedly spoke of the need for "someone to stand at the tiller," according to the confession of Giovanni Folchi.[47] In the blueprint of government he wrote at the request of Cardinal Giulio de Medici in 1520, after Pope Leo's plans for a territorial state had died, the *Discorso sopra il Riformare lo Stato di Firenze*,[48] Machiavelli

[43] Book II, preface, See Althusser, *Machiavelli and Us*, 52, on why Machiavelli is not more specific and why he leaves the names of the protagonists completely blank: "It is a mistake to identify the anonymity with generality and abstraction, anonymity is a political condition and objective. The stance is that Italian unity cannot be ensured starting out from any of the existing Italian states. The new prince implies the rejection of all the old. This encounter of the virtuous individual and new state will occur outside existing states and rulers." My interpretation differs in some respects from that of Althusser. I think the Medici entered into Machiavelli's thinking more than Althusser admits; nevertheless, his insights are remarkably astute and penetrating.

[44] Book I, chapter 10, 33.

[45] Ibid.

[46] Ibid.

[47] "Perche manchava de chi stesse a timone, chome stava sufficientement Lorenzo de'Medici," according to the confession of Giovanni Folchi in March 1513; see J.N. Stephens and H.C. Butters, "New Light on Machiavelli," *English Historical Review*, XCVII (1982): 58.

[48] See *Niccolò Machiavelli, Opere*, Vol. 2, *Arte della guerra e scrittci politici minori*, ed. S. Bertelli (Milan: Feltrinelli, 1961), 274. The notion that this was done at the request of Pope Leo is legend, writes Villari. Machiavelli did not directly question the Pope but directed his works to the cardinal. "Sebbene le stampe dicono che il discorso fu fatto 'ad instanze di papa Leone X," pure "leggendolo, si vede chiaro che il Machiavelli non fu interrogato directtamente dal papa, ma dal cardinale." See Pasquale Villari, *The Life and Times of Niccolo Machiavelli*, trans. Linda Villari (London: T. F. Unwin, 1892), vol. III, note 54.

combined republic with kingdom by retaining the Great Council but giving Giulio effective sovereignty during his lifetime since "you command the army, you command the criminal judges, you have the laws in your breast." Without Cardinal Giulio, the state would be a republic, with him, "una monarchia." Machiavelli hoped that Giulio (later Clement VII) would reeducate the population for republican rule and turn the state back to the people after his death.[49] As Machiavelli observed in chapter 11, "Thus it is the safety of a republic or a kingdom not to have one prince who governs prudently while he lives but one individual who orders it is maintained when he dies."[50]

Founders should be alone because of the diverse opinions of the many, "But the thing itself is to last long, not if it remains on the shoulders of one individual, but rather if it remains in the care of the many and its maintenance stays with the many."[51] A good person can revive a corrupt polity, but the community, people sustain good orders.[52] Kingdoms that depend on one person cannot endure. A republic or a kingdom protects itself; it is wise "not to have one prince who governs prudently while he lives, but one individual who orders it so that it is also maintained when he dies."[53]

Machiavelli defines orders as "the authority of the people, of the Senate, of the tribunes, of the consuls; the mode of soliciting and creating the magistrates, and the mode of making the laws." Orders are the institutions of government, what might be termed constitution or more scrupulously, the constitutional order.[54] The "Ordinazioni of 1532" would reorganize the constitutional order of Florence juridically codifying Medici power as a mixed form of government.[55] In early modern Europe, it was not uncommon for jurists to rediscover customary laws and constitutions.[56] But was it realistic to expect a Medici or someone who managed to empower oneself would follow Machiavelli's

[49] This is evidence for the passage from principality to republic. Machiavelli's extended republic does try to merge republic with principality, but not in this instance. This specific combination of forms is a pragmatic temporary compromise to accomplish his political project and is to be distinguished from the combination of monarchical, democratic/populist, and republican institutions and practices that will sustain the extended republic in Tuscany over the long term.

[50] This Discourse on the Reform of the Government of Florence is not to be confused with the new constitution for Florence that Machiavelli wrote for Giulo after he became Clement VII in 1522.

[51] Book I, chapter 9.

[52] The relationship of De Gaulle and France is an illustration of this principle. A great leader revived a nation, but the Fifth Republic is sustained by day-to-day participation of citizens.

[53] Book I, chapter 11, paragraph 5.

[54] Orders is more closely associated with unwritten constitutions, such as the Roman and today the British constitution. A written constitution, such as the American Constitution, would have appeared to be too static and unable to evolve with the times for Machiavelli's approval. It is to be remembered that Machiavelli is not writing a constitution. The *Discourses* is a comparative rather than constitutional work. Nevertheless, Machiavelli does have suggestions for constitutional provisions. For more on distinction, see Book I, chapter 18.

[55] Contini, "Aspects of Medicean Diplomacy in the Sixteenth Century."

[56] Elliott, "A Europe of Composite Monarchies," *Past and Present*, 60.

suggestions?[57] Machiavelli conceded that the new beginning he proposed, reordering conquered republics and principalities through a public-spirited individual, might not happen. The reordering of a city for "a political way of life" he envisions presupposes a good public spirited individual. However, those who deserve to be princes seldom acquire the authority to reorder republics.[58] Being made prince in a republic implies subverting the republican order. When wicked men become princes, they seldom wish to work for the public good, and never use the authority they have acquired badly for good ends. This is the problem, one cannot by legitimate means acquire the extraordinary authority to reorder the republic, which excludes the vast majority of dedicated republicans. The *Discourses* is written in part to remedy this difficulty, to persuade the Medici, and to encourage those more loved by fortune, to acquire such authority in republics should fortune ever favor them. Unfortunately, seventeen years later fortune would favor the Medici who would become princes in the Florentine republic. Rather than create an extended republic in Tuscany, Cosimo I never surrendered extraordinary authority and preferred to build a monarchical grand duchy.

In Book I, chapter 19, Machiavelli writes that principalities, states under the government of one, are vulnerable to the times and successions. With typical astuteness, he pinpoints the critical weakness of kingdoms and all hereditary regimes broadly speaking – succession. In early modern Europe dynastic regimes were vulnerable at the time of succession, running "the risk of revolutionary situations when the heir was young or incompetent."[59] More often than not, disputed successions were the occasion for the outbreak of revolution, a source of recurrent instability.

Even if the Medici popes did not decide to return power to the people on their deaths, regime change can still occur. Machiavelli recommends that the passage from tutelage to freedom imitate Rome's expulsion of the Tarquins. Machiavelli mentions Rome and its expulsion of the Tarquins in chapters 16 and 17. Lest the reader miss the point, he asks rhetorically in chapter 20, What transpired in Rome after they expelled the kings? Rome went on to longer and greater life.

[57] Guicciardini was skeptical of the prospects for Machiavelli's scheme. Commenting on Book I, chapter 10, Guicciardini observes, "Hence these ideas that tyrants should abandon their tyranny and kings find a wise system for their realms, depriving their heirs of succession, are more easily given form in books and in men's imaginations than carried into effect; rather, though private citizens have frequently discussed them, real examples are extremely rare." Francesco Guicciardini, *Selected Writings*, Considerations on the 'Discourses' of Machiavelli, ed. Cecil Grayson, trans. Margaret Grayson (London: Oxford University Press, 1965), 79.

[58] Book I, chapter 18: "Because the reordering of a city for a political way of life presupposes a good man, and becoming prince of a republic by violence presupposes a bad man, one will find that it very rarely happens that someone good wishes to become prince by bad ways, even though his end be good."

[59] Tilly, *European Revolutions*.

Later in Book III, chapter 7, immediately following his notorious chapter on conspiracies, Machiavelli explores how the passage from composite monarchy to republic might be effected. When the transfer of power occurs, "by common consent of a collectivity," "The people do not offend other than the leader." A state can alter its status, its form of government, without violence. Velvet Revolutions are possible. "And of this sort was the state of Rome with the expulsion of the Tarquins, as was also the state of the Medici in Florence, in the ruin of whom later, in 1494, none other than themselves were offended." As Rome passed to freedom after it had been ordered, so can Tuscany, a composite state in Tuscany.[60] In fact, Book III, chapter 5 sends out a warning to the Medici should they restore Florence to its traditional republican form. The plebs and senate expelled the Tarquins for not observing Rome's ancient orders.[61]

As Federico Chabod noted, despite Medici power in the years following the composition of the *Discourses*, possibilities were available to republicans. The Medici dynasty was a new dynasty with scant entitlements to lineage and prestige compared to the rules of other Italian and European states, such as Valois of France or the d'Este of Ferrara.[62] "To contemporary eyes, the Medici family's rise to power must well have appeared reversible."[63] Florentines had expelled the Medici in 1494. They could do so again.

After the peaceful banishment of the Medici in imitation of the Roman expulsion of the Tarquins,[64] the next step might well have been to "kill the sons of Brutus," to eliminate or expel those elites opposed to the new republic. Ironically, that advice was put into practice by the Grand Duke Cosimo of Tuscany who, with decisive zeal, pursued the exiled Strozzi across Europe, hunting down every member of that noble Florentine family whose republican sympathies and ceaseless machinations made them the dangerous enemies of the Medici regime.

## CONSTRUCTING THE REPUBLIC: CONFEDERATION OR CONSOLIDATION?

Machiavelli's project is not a matter of creating a state de novo, but constructing one out of preexisting cities and territories. Chapter 25 conveys a sense of the

[60] Machiavelli also discusses popular collective action in the overthrow of a king who has begun to violate ancient laws in Book III, chapter 5.

[61] Book III, chapters 1–9 cover the transition from principality to republic: chapter 3, "Sons of Burtus"; chapter 5, "Be Loved by the People"; chapter 6, "Of Conspiracies"; chapter 7, "Changes from Servitude to Freedom"; chapter 8, "Altering a Republic"; chapter 9, "Republics Have Diverse Peoples."

[62] On the precarious political situation Grand Duke Cosimo I faced, see Giorgio Spini's biography *Cosimo I* (Florence: Vallecchi, 1980), 187.

[63] Alessandra Contini, who adds, "especially to the more powerful families of the mercantile oligarchy, which in some cases fashioned themselves into champions of republican freedom." Contini, "Aspects of Medicean Diplomacy in the Sixteenth Century," 55.

[64] Or a similarly uncooperative leader, should the Medici refuse to carry out the proposal of chapter 26.

larger project because it specifies what should be observed by those wishing to institute a free way of life in a city accustomed to princely rule. "He who wishes to reform an antiquated state should retain a shadow of its ancient modes." In accordance with political consensus on assembling composite states, Machiavelli recommends instituting freedom obliquely: if you wish to turn a state to a new and free way of life, "you should contrive that those alterations retain as much of the ancient as possible." This generally meant the preservation of traditional laws and customs. Ferrara and Urbino were accustomed to princely rule, while Pisa and Siena were formerly free republics with ancient laws that had fallen under the empire of Florence. Furthermore, Ferrara and Urbino were outside the boundaries of Tuscany. Given the composite or mixed nature of polities in that era of aggrandizement, an extended state in Central Italy could encompass the Papal States, including Bologna, Perugia, the Romangna, and the Roman hinterland. Although the latter two territories did not "live politically" in the manner of the cities of Tuscany with their relative social equality, the materials existed to construct an abiding form of political union.

How to weave disparate cities and territories together was a problem for ambitious monarchs and republics alike. The goal was always "a more perfect union," but consolidation by desultory consensual methods preserving local customs, laws, and institutions remained the norm. Between the extremes of unity and multiplicity, the trend was toward multiplicity. Moreover, if union was a problem for ambitious princes, who in order to enlarge their realms needed to break, conquer, or literally purchase their way through the fretwork of medieval and corporate rights and privileges – uniting republics into some form of a larger territorial unit was an even more puzzling conundrum. The South German free cities had the potential to "turn Swiss" and form a larger political unit or "confederacy" through the venerable method of the urban federation. Unlike north-central Italy with its city-states that had expanded into the surrounding countryside, the divide between rural territory and municipality was more abrupt in South Germany. The imperial cities remained locked inside their walls for the countryside was, more often than not, controlled by princes. Searching for "alternate strategies for urban government" during the twilight of the free city, the urban ruling classes in South Germany faced two options: shelter under a monarch or form a federation – monarchism or communalism respectively. Given the radical populist tinge of the Swiss Confederacy and the fact that prices controlled vast swaths of territory between the cities, the imperial monarchy was the more reliable option.[65]

Of the Swiss Confederation, the object of his unfettered awe, Machiavelli observed:

[65] Brady, *Turning Swiss Cities and Empire*, 3.

At the first opportunity, they will make themselves the complete masters of Milan, liquidating the duke's line and every one of that government's nobility; at the next opportunity, they will overrun all of Italy, producing the same result. Hence, I conclude that they will not be satisfied with ransacking Italy and withdrawing: on the contrary, we have to be prodigiously afraid of them.[66]

Composed of rural leagues and city-states, the Swiss Confederacy was a federated system. Originating in the fourteenth century, the confederation achieved the status of an independent state for purposes of external relations after the Swabian War of 1499. The urban federation was the venerable method of republican expansion. Captivating urban republicans and horrifying the feudal nobility, the Swiss Confederacy represented a compelling counter-model to territorial monarchy.[67] Composite monarchy did not fire the imagination of urban republicans, but it offered some advantages. Most notably, composite monarchy was an appealing alternative to empire. "In general, imperialism and composite monarchy made uncomfortable bedfellows."[68] Empire's principle tenets of domination and subordination were in distinct opposition to the essence of a composite monarchy held together by indirect government *aeque principaliter*.[69] "A prince treats all his subject cities equally," Machiavelli reminds us. Composite monarchy offered Machiavelli a vision of a polity that did not enslave its territory, as Florence, operating according the dictates of empire, invariably did. Contra empire, early modern monarchy offers a vision of cities and territories coexisting on equal footing. Is there a way to combine composite monarchy and republic to build a new kind of state?

Composite monarchies of the sixteenth and seventeenth centuries were founded on elites; the composite republic Machiavelli envisions assembling in Tuscany had to be founded on the people.[70] "Ordinary people remain salient and potentially decisive actors even under political conditions that appear to guarantee the long term survival of elite consolidation."[71] Political conditions in early sixteenth–century Europe were conductive to popular political action. In addition to the federative principle, "turning Swiss" had a secondary meaning, one that destabilized reigning hierarchies; it meant ordinary people were capable of self-rule and equal citizenship.[72] The German Peasants' War/the Revolution of 1525 was the occasion for common people to take political action on a vast scale. This fusion of religious fervor and populist passion, was not only the final, splendid flowering of the egalitarian guild spirit of centuries past, it seemed to have been

[66] Letter to Vettori dated August 10, 1513, in *Machiavelli and His Friends*, trans. and eds. James B. Atkinson and David Sices (De Kalb: Northern Illinois University Press, 1996), 250.
[67] Brady, *Turning Swiss Cities and Empire*, 22.
[68] Elliott, "A Europe of Composite Monarchies," *Past and Present*, 60.
[69] Ibid.
[70] Composite monarchies were built on a mutual compact between the crown and the ruling classes of different provinces. See Elliott, "A Europe of Composite Monarchies," *Past and Present*, 57.
[71] Te Brake, *Shaping History*, 5.
[72] Brady, *Turning Swiss Cities and Empire*.

presaged, on a the urban stage Florence, by the Dominican preacher, Savonarola, who brought ordinary Florentines back into the political life of the city and inspired the Great Council.

"No writer of that age understood better than did Machiavelli the politics of urban republics." In Book I, chapter 6, the great hinge on which the *Discourses* turns, Machiavelli writes, "If someone wished, therefore, *to order a republic anew*, he would have to examine whether he wished it to expand like Rome in dominion and in power or truly to remain in narrow limits." We know why republics need to be ordered anew – because they have been invaded and the international environment is unfavorable to free governments. A larger state looms on the horizon; its form, though, is open to fortune. There is no real choice; Machiavelli recommends following the Roman order so that the republic might survive in an era of war, give the people strength, and tolerate the social strife that ensues because the new republic will encompass more territory than ever before, spreading over various cities and provinces. But precisely how the new republic will reach across space remains unanswered in the sixteenth century. It was established that a republic could expand via an empire or via a confederation or league such as the Etruscan league, but whether it could expand like the composite monarchies of the era Machiavelli would need to explore.

> When the domination of Rome was limited to Italy, the republic could easily maintain itself. A soldier was equally a citizen. [. . . .] Since the number of troops was not excessive, care was taken to admit into the militia only people who had enough property to have an interest in preserving the city. Finally, the senate was able to observe the conduct of the generals and removed any thought they might have of violating their duty. But when the legions crossed the Alps and the sea, the warriors who had to be left in the countries they were subjugating for the duration of several campaigns, gradually lost their citizen spirit.

So Montesquieu thought a republic could endure despite territorial expansion, but in his *Considerations on the Causes of the Greatness of the Romans and Their Decline*, he still used the old urban republican language of empire and domination. In *The Prince*, Machiavelli tentatively broached the innovative subject that he would explore in the *Discourses*, the possibility of combining the new territorial state with the city-state tradition in a manner that does not destroy the liberty of its component parts. Can politics as the art of city, politics as Machiavelli understood it, be applied to territory? To solve the problem of the extended republic was to think the unthinkable.[73] Let us now turn to see if political practice and thought in the centuries separating Machiavelli from the founders of the American republic offered any additional resources.

[73] Althusser, *Machiavelli and Us*, 52: "Because he faced up to the effort of thinking the unthinkable that Machiavelli found himself engaged in forms of thought without any precedent."

## THE DARING EXPERIMENT

"The experiment of the extended republic is entirely new," wrote Madison in *Federalist* 14. To attempt to conjure how the political world appeared to Americans of the revolutionary and founding period, we must, in the words of the historian Maitland, "[t]hink ourselves back into a twilight." From their remote corner of the earth the outlook for republics seemed darker in the eighteenth century. Nearly three hundred years after Machiavelli looked out on a world of dying city republics and youthful composite monarchies energetically swallowing smaller political units, late eighteenth–century Americans would see the triumph of the Westphalian system, of territorial monarchy, of one faith, one ruler, one realm writ across the map of Europe. Territorial sovereignty, embodied in the concept of the realm, had overwhelmed the multilayered sovereignty of old. One basic consequence was simply far less variety in terms of the types and number of political bodies; their spaces were larger, broader, of an extent and scale that were only hinted at in Machiavelli's era.[74] With his appreciation of Rome and the new voyages of discovery, Machiavelli alone seemed to have an intimation of the expansion of political bodies that was taking place. Walls had collapsed, oceans became boundaries instead, and "city and countryside were one."

By 1789, the composite Spanish monarchy had centralized and conquered a vast overseas empire in the New World. The Valladolid rebellion of the towns of Castile, fought in 1520–1 over principles of municipal self-government and peasant liberation, had been lost to history, just as Machiavelli wrote of Etruscan cities that the vicissitudes of geography and human history "eliminate the memories of things." The union of Castile and Portugal lasted sixty years until Portugal seceded into the arms of the duke of Braganza in 1640.[75] Before that, the secession of the Netherlands in the 1570s had furthered Spain's evolution from composite monarchy to a centralized state dominating a New World empire. In 1707, the *Neuva Planta* decrees of Philip V had eliminated the venerable charters, *fueros*, of the Crown of Aragon. Aragon, Catalonia, and Valencia lived under their own laws no longer; the laws of Castile prevailed, sending Spain on the path toward modernization in contrast with the variegated multiplicity that had previously characterized its structure.[76] Bourbon France,

[74] The extension of sovereignty not only on paper but in the reality of processes of order and control distinguishes the eighteenth century from the fifteenth, despite the tendency by Foucault among others to group them together under the term *old regime*. As Tocqueville reminds us, the old regime in the seventeenth and eighteenth centuries was the radical, centralizing new order. Alexis de Tocqueville, *The Old Regime and the Revolution* (Chicago: University of Chicago Press, 1989).

[75] Elliott, "A Europe of Composite Monarchies," *Past and Present*, 68.

[76] See Henry Kamen, *The War of Succession in Spain 1700–1715* (London: Weidenfield & Nicolson, 1969), chapters 12–13. Regional differences were not entirely effaced; J. H. Elliott notes the Catalans retained the majority of their civil and penal law, and use of the Castilian language was only required for official acts and proclamations. See Elliott, "A Europe of Composite Monarchies," *Past and Present*, 68.

whose intellectual life was vivacious and comparatively free, had stamped out local self-government through a century of administrative centralization.

The British monarchy, ostensibly constitutional but corrupting under its own new financial and overseas empire, remained eclectic in its approach to consolidation. The Acts of Union of 1536 and 1543 placed Wales under the direct jurisdiction (accessory union) of England, meaning the Welsh no longer lived under their own laws. The dream of Jacobeans, the union of the two independent kingdoms of Scotland and England, had finally been achieved, thanks in no small part to the Glorious Revolution and the Act of Settlement.[77] The Habsburgs continued to extend their disparate assortment of territories generally remaining faithful to the old, dare we say 'Machiavellian', ways of intermarriage, patronage, and a light touch on local institutions, customs, and laws. But the Austrian Habsburgs were not immune to the trend for closer union, and in 1711 agreed to respect the Magyar constitution so that they might reign as kings of Hungary.[78] A noted model of limited government in the early modern period, the constitutional kingdom of Poland, had disappeared from the map entirely, divided between the Russian Empire, Prussia, and the Habsburgs. The flashy new state on the continent, Prussia, was a militarist monarchy. In brief, with a few anachronistic exceptions, it was a world in which the possibilities of a functioning republic appeared even more remote than in the sixteenth century, when people with practical experience in popular government were still alive. Civic life, if it survived, did so in the new civil society that chattered in the confined spaces of coffeehouses and salons.

More than monarchy, it was empire that republicans dreaded, for empire appeared to be the doom of extended republics. Dreams of reestablishing the Roman republic, whether articulated in poetry with Petrarch or in action with Cola di Rienzo, always culminated in the grand vision of universal empire. During the sixteenth century, world empire, not the nation-state, seemed to be Europe's destiny. Despite the heroic last stand in Florence in 1530 and Petrucci's Siena in 1535, it was empire, in the guise of Imperial Spain rather than republic that captivated the popular imagination of the sixteenth century.[79] The dream of a specious security, of a peaceful hegemony under Augustan Rome or Catholic Spain, had its allure. The dream of hegemony caught Machiavelli; it remains tempting.[80] Republicans knew that empires are born of war and that war is the

[77] H. R. Trevor-Roper, "The Union of the Britain in the Seventeenth Century," in Trevor-Roper, *Religion, the Reformation and Social Change* (New York: Harper and Row, 1967), 464–6.

[78] Elliott, "A Europe of Composite Monarchies," *Past and Present*, 67.

[79] Frances Yates, *Astrea, The Imperial Theme in the Sixteenth Century* (London, Routledge & Kegan Paul, 1975).

[80] "Challenges to the continued existence of the society of states have sometimes come from a particular dominant state – the Hapsburg Empire, the France of Louis XIV, the France of Napoleon, Hitler's Germany, perhaps post-1945 America – which seemed capable of overthrowing the system of states and transforming it into a universal empire." Hedley Bull, *The Anarchical Society* (London: Macmillan Press, 1985), 16.

natural environment of repression by a privileged few. An empire would concentrate power in the hands of one, restrict public and private freedom, and spend taxes on war.[81]

Was there an alternative to empire and monarchy in the sixteenth and eighteenth centuries? Leagues and confederations were the great anti-imperial standard bearers in the years between the *Discourses* and the American Constitution and *Federalist Papers*. The oft-derided Articles of Confederation were based on tried and true republican practice. Rather than hegemonic empire or Lilliputian isolation, the league or confederation provided a model for an expanding republic. The Tuscan league Machiavelli considers was an egalitarian confederation of twelve cities joined to provide for a common defense. Perhaps the answer to the dilemma of republics is to "expand by way of leagues." This manner of providing for external security bridges the abyss between conquering or being conquered, for if they could not make an empire they could at least acquire enough power in Italy to secure themselves. Machiavelli is prepared to surrender his idolatry of Rome if a confederation can ensure a free way of life and security. Why then does he continue to explore Rome? When many communities are united in a league they "consult and decide only with difficulty." In Machiavelli's era, the Swiss republics were a formidable feature of European politics, their league a famous counter-model to trends of the era. Swiss citizen armies defeated the army of Emperor Maximilian I in 1499, securing their independence.[82] Again, "turning Swiss" appeared to be a valid alternative with the potential to destroy the plans of state making princes to eradicate republics from the map. The formation of leagues or confederations against aggressive princes was characteristic of early modern Europe, from the league of cities in Castile to the Swiss league to peasant leagues in Germany to the Huguenot league in France.

A model unavailable for Machiavelli but available to the American founders was the Dutch republic. "In the early years of the American Revolution, the Dutch experience seemed particularly close, and Adams referred frequently to it in his correspondence."[83] An active and thriving republic in the dark years of the seventeenth century, the United Provinces of the Netherlands was the symbol of

[81] This happened in Florence over the course of the fifteenth century, which is one of the reasons Machiavelli believed a strong and vociferous populist politics was especially necessary in the expansionist republic he envisioned.

[82] Brady, *Turning Swiss Cities and Empire*.

[83] David Henrickson, *Peace Pact* (Lawrence: University Press of Kansas, 2003), 47; Jack P. Green, "The Background of the Articles of Confederation," *Publius*, 12, no. 4 (Autumn, 1982): 22: "The people who contrived the first American national union were familiar with the confederated governments of the United Provinces of the Netherlands and the league of Swiss cantons, each of which was a limited confederacy that reserved considerable local autonomy to its constituent parts." During the initial debates over the Articles of Confederation in the summer of 1776, several delegates revealed their familiarity with the Dutch Confederacy, including Josiah Bartlett, John Adams (not unexpectedly), Benjamin Rush, John Witherspoon, and William Henry Drayton; see Green, "The Background of the Articles of Confederation," note 28.

opposition to Spanish pretensions to universal monarchy. The commercial republics that composed United Provinces had formed a league that operated as one united entity in foreign affairs via the Union of Utrecht. The principal constitution of the new polity, the Union bound the republics to a permanent defensive alliance and set the framework for political and economic relations among the provinces and cities. Essentially, the Dutch state was a federation with a States-General, in which the provinces remained sovereign and had autonomous financial institutions.[84] Issues such as war or peace or taxation required unanimity to be resolved. As the Americans would soon realize, the requirement of unanimity and concomitant lack of coercive power were the fatal flaws of confederated systems.

The great revolt of the Netherlands was a war in which the provinces used the most advanced economic policies in the service of old traditions of republicanism in order to wage war against the politically modern Spanish centralization policy. The Netherlands combined small urban republicanism and advanced capitalism to refashion an alternative to the powerful model of monarchical centralization. The fact of the matter is that the most potent defense against aggrandizing princes was local mobilization in defense of entrenched privileges.[85] Thus, old privileges and oligarchic rule were revived in the federated republic. Unlike Switzerland, the federation was not located in an isolated region of Europe but at its economic heart, which challenged beliefs about the viability of republics. Initially, the United Provinces appeared to survive and even thrive as a republic without being conquered or turning to conquest.

The Dutch state was a success because its institutions could deploy extensive financial resources, essentially conducting diplomacy via finance and commerce. Located in a capital-intensive region, Dutch command of financial capital translated into political power. During its wars with England, the republic did behave in a more conventional manner as a militarily belligerent polity in the later seventeenth century. However, it could not adapt to the new international balance of power that came with the eighteenth century, as *Federalist* 20 makes clear.[86] However unique the Dutch republic was internally, its foreign policy did not differ from prevailing norms, according to Hamilton, who in

[84] See Martin Van Gelderen, *The Political Thought of the Dutch Revolt, 1555–1590* (Cambridge: Cambridge University Press, 2002). The autonomous financial institutions did not work well in the days of the Confederation; Alexander Hamilton was at pains to solve this problem.

[85] The practical need to compromise with elites presented great difficulties for Machiavelli. For more about his strenuous attempt to make republics relevant without relying on elites, which he felt he had to do in the initial process of expansion and given his preference for indirect rule, see Chapter 5 and John McCormick, *Machiavellian Democracy* (Cambridge: Cambridge University Press, 2011).

[86] Marjolein 't Hart, "The Making of the Dutch State," in *Cities and the Rise of States in Europe, A.D. 1000 to 1800*, ed. Charles Tilly (Boulder: Westview Press, 1994). See also H. G. Koenigsberger, *Monarchies, States-Generals and Parliaments: The Netherlands in the Fifteenth and Sixteenth Centuries* (Cambridge: Cambridge University Press, 2001).

*Federalist* 6, "On the Universality of Power Politics," claims that republican foreign policy, based on immutable imperatives of power, is no different in content from that of militarist monarchies. Hamilton cited Venice and Holland as examples of republics fully adept at international power politics. However, Hamilton rather overstated the case. In fact, commercial republics tried isolationist policies, partly for anti-military reasons, because governing classes believed that their political enemies at home, the traditional aristocratic military leaders, could not be trusted with large armaments. Great Britain's splendid isolation remains the preeminent example of a state's attempt to distance itself, through self-interest and moral superiority, from power politics as conducted on the continent.[87] Empire, power politics, and isolation comprise the three categories of relations between states.[88] It seems we have come full circle and returned to the *Discourses* Book II, chapter 2: republics have three modes of expanding.

## COMPOSITE GOVERNMENT IN THEORY

In the seventeenth and eighteenth centuries, integration and consolidation not only remained a constant endeavor for Europe's princely state makers, like all messy practical problems, sooner or later it attracted the attentions of political theorists, eager to discern and systematize the principles animating the seemingly discordant methods aiming at political union. The fashion of the day was for the unitary sovereignty theorized by Jean Bodin and personified in Louis XIV, long the aspirational figure for generations of petty princes and second-tier monarchs who studied the rituals of his spectacular court as assiduously as they sought to imitate his policy of Gallicization to bring cultural and administrative uniformity to a disparate realm. In reality, absolutism remained an ambitious goal. While monarchs had succeeded in eliminating the multilayered sovereignty of old, just enough sovereign rights and local privileges remained to continue to puzzle political actors and thinkers alike during the successive rounds of acquisition and consolidation.

In the early seventeenth century, Dutch theorist Hugo Grotius offered a model of political cooperation based on a law of nations operating over and above individual states. Sovereignty, in the mind of Grotius, was divisible rather than unitary.[89] Influenced by that most composite of monarchies, the Holy

[87] Great Britain's policy of "splendid isolation" from the continent justified Britain's focus on its colonial empire. Whether the eighteenth-century empire was a commercial or imperial venture is open to debate. By the nineteenth century, in particular after the Indian Mutiny, it became a militarist imperial venture of the hallowed Roman type.

[88] *Imperium mundi, principium diversitates, principium insularis*, respectively. See Hans Morgenthau, *Politics among Nations: The Struggle for Power and Peace* (New York: Knopf, 1954).

[89] Edward Keene, *Beyond the Anarchical Society: Grotius, Colonialism, and Order in World Politics* (Cambridge: Cambridge University Press, 2002), 3. Richard Tuck's introduction in Hugo Grotius, *The Rights of War and Peace* (Indianapolis: Liberty Fund, 2005) 1: xxxiii.

Roman Empire, Samuel von Pufendorf offered an alternative vision of non-centralized sovereignty. In Machiavelli's era, the Holy Roman Emperor, Maximillian, and his imperial system, for instance, was the ultimate arbiter of disputes among the free cities and principalities of South Germany. The free cities had not "turned Swiss" but succumbed to join larger ducal or princely statelets or that most vestigial of old political formations, the prince-bishopric, each of which retained sovereignty and the authority to exercise its own foreign relations. Pufendorf smoothed the rocky records of ancient city-state confederacies and the intriguingly ramshackle structure of the Holy Roman Empire into what he termed the "system of states." In his theoretical construct: "Several states are joined to each other, each by a perpetual League or Alliance." In accordance with the agreement joining the states, they agree that "they shall not exercise some Part of that Sovereignty there specified, without the general Consent of each other."[90] Each state could continue to exercise extraneous sovereign powers, powers related to internal government that did not involve foreign relations, for instance.[91] Pufendorf's "system of states" shares a family resemblance with the, by that time old-fashioned, dictum of "let them under their own laws" of composite monarchy. Another fair conclusion to draw is that "Pufendorf's conception allowed for the possibility that political authority might be cross jurisdictional boundaries and, on occasion, be shared among multiple states tied together in a single system."[92]

As opposed to the "eighteenth century fiscal military state," which on closer inspection tended to reveal its composite core, political theorists continued to elaborate alternative political arrangements. Popular in the American colonies was Emerich de Vattel's *Law of Nations* of 1758, which intoned, "several sovereign and independent states may unite themselves together by a perpetual confederacy without each in particular ceasing to be a perfect state." Common deliberations would not diminish the sovereignty of each participating state.[93] Vattel's Enlightenment vision of a "republic of republics" based on the law of nations made the time-honored principles of the league and confederation seem innovative and fashionable and whetted the appetite for more venerable forms of political association.[94]

[90] Samuel von Pufendorf, *The Law of Nature and Nations: Or, a General System of the Most Important Principles of Morality, Jurisprudence, and Politics*, trans. Basil Kennet, 5th ed. (London: J. and J. Bonwicke, 1749), 681–3.

[91] "[T]he particular States reserve to themselves all the Branches of the supreme Authority, the Management of which can have little or no Influence (at least directly) on the affairs of the rest." Ibid.

[92] Alison L. LaCroix, *The Ideological Origins of American Federalism* (Cambridge, MA: Harvard University Press, 2010), 20.

[93] Emmerich de Vattel, *The Law of Nations; Or Principles of the Law of Nature* (Indianapolis: Liberty Fund, 2008), 84.

[94] Peter Onuf and Nicholas Onuf, *Federal Union, Modern World: The Law of Nations in an Age of Revolutions, 1776–1814* (Madison, WI: Madison House, 1993), 5–7; LaCroix, *The Ideological Origins of American Federalism*, 79.

The disparate cases of Scotland and Ireland drew extensive attention in the Anglo-American world for the lessons of state building exemplified by each. Machiavelli could scarce find a better illustration for his dictum "destroy them or live there," than in England's treatment of Ireland and Scotland. After the coronation of James VI, King of Scotland as James I, King of England in 1603, both kingdoms were united by the "union of crowns" which was much as its name suggested. It was a union *aeque principaltier* by which James VI might reside in England as James I, but each kingdom remained an independent sovereign state with its own parliament, laws, and customs. Succeeding Stuarts tried the old methods of patronage to bind the composite monarchy, but to no avail.[95] The Acts of Union of 1707 joining the kingdom of Scotland with the kingdom of England was something more, an "accessory" union in early modern parlance, otherwise known as an "incorporating" union by the terms of the early eighteenth century, which bound both nations by the same legislative authority embodied in a new parliament, that of Great Britain, constructed on the ruins of the old ones.[96] As Alison LaCroix has delineated, Scottish debates about the union of crowns and the Act of Union touched on "concepts of federalism" or how sovereignty might be extended and layered.[97] Translating and modernizing the old Latin terms for union, English-speaking theorists replaced accessory union and *aeque principaliter* with "incorporating" and "federal" unions. Scottish thinkers and commentators favored a confederate or federal form of union, which they understood as permitting each kingdom to retain its own laws, customs, and sovereignty with England rather than the incorporation union, in which one kingdom lost its institutions and laws and was juridically united with another.[98] Scottish commentator James Hodges, for instance, emphasized that in a federal union, such as the Dutch confederacy or the Swiss, polities unite for matters of war, taxes, and trade, but for all other matters, each retained its own laws, customs, and internal government. The persistent idea is that each state continued to possess some independent authority while consenting to share or pool sovereignty over specific areas with other states. In an accessory or incorporating union, all sovereignty is lost.[99] Furthermore, incorporating union had also become associated not merely with centralization in the manner of Bourbon France but with the acquisition of empire.[100] This too had an early modern precedent as the Spanish Indies

[95] Trevor-Roper, "Union of Britain," 466.

[96] Elliott, "A Europe of Composite Monarchies," *Past and Present*, 67; LaCroix, *The Ideological Origins of American Federalism*, 24–6. See also John Robertson, "An Elusive Sovereignty: The Course of the Union Debate in Scotland, 1698–1707," in *A Union for Empire: Political Thought and the Union of 1707*, ed. John Robertson (Cambridge: Cambridge University Press, 1995), 206.

[97] LaCroix, *The Ideological Origins of American Federalism*, 26.

[98] Ibid., 27.

[99] Ibid. See also Robertson, "An Elusive Sovereignty," 209–10.

[100] Robertson, "An Elusive Sovereignty," 215.

"were juridically incorporated into the crown of Castile."[101] It could have been worse, as a reconquered kingdom Ireland had been destroyed, one might say, or at the very least descended to the status of a colony.[102] "And of all harsh servitudes, that is hardest that submits you to a republic."[103] If the flurry of discussion around the case of Scotland and the popularity of Grotius and Vattel might demonstrate a salutary progress, the example of Ireland demonstrated the problem that bedeviled Florence had not been left behind.

## THE ARTICLES OF CONFEDERATION

Initially after independence, the American Revolutionists had invested their republican faith and their intellects in the design of state constitutions.[104] The thirteen diverse states were linked together in a loose national confederation that was more a consultative body than a functioning government with the powers associated with national states. More to the point, the league established in 1781 by ratification of the Articles of Confederation was consonant with received republican practice and theory.[105] Republics expanded through leagues such as the Dutch or Swiss or Tuscan league based on treaties or similar agreements, the details of which many delegates familiarized themselves.[106] Such expansion did not entail a surrender of sovereignty. Recall Machiavelli's discussion of the Tuscan league in Book II, chapter 4 in which cities come together as partners "in which none was before another in either authority or rank."[107] Pufendorf clarified and systematized this venerable political tradition into a vision of cooperation whereby, "several states are, *by some special Band*, [emphasis

[101] Elliott, *Turning Swiss Cities and Empire*, 52.

[102] David Armitage, *The Ideological Origins of the British Empire* (Cambridge: Cambridge University Press), 25.

[103] Book II, chapter 2.

[104] Gordon Wood, *The Creation of the American Republic 1776–1787* (Chapel Hill: University of North Carolina Press, 1967), 254.

[105] Alison LaCroix has argued that "three distinct strands of precedent for thinking about union were represented by individuals who were present in the Congress." Benjamin Franklin, as author of the Albany Plan, represented colonial experience with union. John Witherspoon brought his knowledge of Scotland's long history of negotiation and eventual union with England. Thomas Jefferson offered his extensive study of political theory. LaCroix, *The Ideological Origins of American Federalism*, 127.

[106] See LaCroix, *The Ideological Origins of American Federalism*, 129, on the notes of Josiah Bartlett, delegate from New Hampshire. The anti-Federalist position was that federalism ought to be interpreted in the strict sense as the principle of league or confederation. The Federalists asserted that sovereignty could be shared by the union and the states. In *Federalist* 39, Publius claims to bridge the gap with a new form of union party national and party federal. The anti-Federalists responded by arguing the impossibility of dual sovereignty. Dividing power between central and local government was an untried solution to the problem of extending sovereignty without involving the uniformity, centralization, and absolutism believed to attend Bodinian sovereignty, the only known model.

[107] Book II, chapter 4.

added] so closely united, as that they seem to compose one Body, yet retain each of them the sovereign Command in their respective Dominions."[108] So the Articles joined the thirteen states in a "firm league of friendship ... for their common defense, the security of their liberties, and their mutual and general welfare."[109] Whether a genuine or post hoc rationalization, the delegates of large states argued that for purposes of issues arising before the Congress, "we are one large state" or as John Adams phrased it, "become a single individual as to all questions submitted to the Confederacy." Delegates from small states, by contrast, including the expert on Scotland's union with England, John Witherspoon, argued that the Articles did not establish an "incorporating" union. Confederacies never entailed the sacrifice of individual sovereignty on the altar of a common union.[110]

All executive, judicial, and legislative functions were housed in the Congress, which existed intermittently, exercising only those powers expressly delegated to it, namely foreign affairs, by the thirteen sovereign states. All of the other traditional powers of government, commercial regulation, and taxation for instance, remained with the states. A serious engagement with the problem of union did not characterize the drafting process, consumed as it was with more parochial state issues. Given such distractions and the fact that many Americans did not see the need for any sort of confederation, the Articles, especially Article 9 granting significant powers to Congress, united the league by a bond at least as strong that of any other republican confederation in history. The Congress was the face of the thirteen colonies to the outside world, shouldering the responsibilities of the Roman senate, the domain of Europe's kings, Locke's federative power. Slender as it was, the Articles created a government that operated over and above its constituent parts.[111] The theoretical challenge to the prevailing notion of unitary sovereignty presented, ever so obliquely, by the Confederation, would have to wait a few years to be met.[112]

"Republics have taken three modes of expanding," Machiavelli told his readers. The first option for a republic was to expand by the league model, as links in a chain. Another option was the way of empire, as the Athenians, Spartans, and Florentines did. The option he recommended was the Roman republican model, the option of the territorial state midway between the league and empire. Rome sought allies not subjects "but always reserved for itself the seat of empire and the title of command."[113] Machiavelli's intermittent vision of Rome as a republic that expands like a principality for a prince "usually loves his

[108] Pufendorf, *The Law of Nature and Nations*, 681.
[109] Articles of Confederation.
[110] Adams, cited in Wood, *The Creation of the American Republic*, 358.
[111] LaCroix, *The Ideological Origins of American Federalism*, 128.
[112] Gordon Wood, *The Creation of the American Republic*, 354–5. Debate about the Articles was insignificant compared to the "the exciting and sweeping debates over the formation of state constitutions."
[113] Book II, chapter 4.

subject cities equally and leaves them all their arts and almost all their ancient orders."[114] The main problem of the confederation created by the Articles was that the Congress lacked coercive power. States could flagrantly defy the Congress. Machiavelli's Rome and his princes left cities alone but reserved for themselves authority over external relations, ultimate decision-making power, the last word, Jean Bodin's definition of sovereignty. And as sovereignty was the ultimate theoretical obstacle to a union of the city-states of central Italy, so it seemed an insuperable barrier to a stronger union among the thirteen colonies.

Whereas in the late medieval period sovereignty was splintered, overlapping, and shared among monarchs, the Catholic Church, a feudal nobility, independent towns, corporations and guilds, by the later sixteenth century, theory followed upon the heels of princely conquest. To repeat, Machiavelli's problem was that multiple sovereign city-states could not coexist in the same territory without one falling under the domination of the other; a republican empire could not be avoided. Leagues were one option, composite monarchy another. In 1572, Jean Bodin christened a glistening definition of sovereignty that smoothed over the concept's rocky past in a manner consonant with the trend toward princes, who did at least possess the potential to bring order to contumacious religious conflict tearing states apart. Sovereignty was "the absolute and perpetual power of a commonwealth."[115] "Absolute" avails itself of no division or sharing among multiple sources. In 1631, this abstract concept became the ruling legal principle of Europe, the sovereign state, in the Peace of Westphalia, which brought the Thirty Years War to an end.

Although Bodin was French, his justification for the rise of new, centralizing "absolute" monarchs with little patience for the milder ways of composite monarchy had widespread appeal, and the English-speaking world was not immune to the stirring vision of unitary sovereignty he offered. The same year as Westphalia, Thomas Hobbes, following the path of Bodin, believed the solution for the ills of the English civil war lay in absolute authority. Sovereignty for Hobbes could inhere only in one absolute center of authority, the *Leviathan*, not in any of its subjects. Still novel in the eighteenth century, the theory of unitary sovereignty achieved a measure of acceptance in the Anglo-American world when it appeared in William Blackstone's *Commentaries on the Laws of England*. For Blackstone and the common law tradition for which he anointed himself the exemplary guide, there could only be one sovereign power in any polity. Sovereignty could be neither shared nor divided, and any appearance to the contrary was just that: a phantasm, an "*imperium in imperio*." There could be no empire within an empire, and that catchphrase became a carapace to trap the venerable notion

[114] Book II, chapter 2.

[115] Jean Bodin, *On Sovereignty: Four Chapters from "The Six Books of the Commonwealth,"* ed. and trans. Julian H. Franklin (Cambridge: Cambridge University Press, 1992), 1, 49–50.

of sovereignty of bygone days. No longer could separate and equal sovereign powers inhabit the same territory or city.[116]

Distinctively British was the accompanying constitutional controversy over the location of sovereignty – was it found in the king or in parliament? The controversial principle of parliamentary sovereignty emerged during the English civil war, and after a momentary abeyance during the Restoration, the supremacy of parliament became guiding spirit of English Whig constitutional thought through the Glorious Revolution of 1688. Still contested, the concept of unitary sovereignty and the pejorative accusation of *imperium in imperio* were powerful obstacles to the invention of a different kind of political community in continental Europe, Great Britain, or the American colonies.[117] More often than not scholars and citizens attend to the first clause of the preamble to the United States Constitution "We the people" and the commitment to popular, as opposed to royal, sovereignty expressed. The clause that follows "in order to form a more perfect union" is equally pregnant with meaning, for a more perfect union was a goal that had vexed state makers for centuries, the decisive challenge of republics, how to imagine a larger political body composed of various free states.

## AMERICA'S IMPERILED REPUBLICAN EXPERIMENT

Italy awaits whoever it could be who can heal her wounds, and put an end to the sackings of Lombardy and to the ransoms demanded from Naples and Tuscany, and cure her of the sores with which she has been infested for so long. One sees how she prays to God that he send someone to redeem her from these cruelties and barbaric insolences.[118]

Italian republics appeared unable to adapt to the new international climate in the early sixteenth century, and the inability to vary old orders left them vulnerable to invasion and internal disorder. Most interesting and little remarked upon is the fact that chapter 26 of *The Prince* finds an echo in *Federalist Paper* No. 15, "Insufficiency of the Present Confederation to Preserve the Union."[119]

I cannot express with what love he would be received in all those provinces which have suffered because of foreign inundations, with what thirst for vengeance, with what steadfast loyalty, with what piety, with what tears.[120]

[116] "The idea that separate and equal authorities could exist within the same juridical boundaries offended contemporary understandings of the nature of government power." LaCroix, *The Ideological Origins of American Federalism*, 14.

[117] Gordon Wood, *The Creation of the American Republic*, 350–1.

[118] Connell ed., 120.

[119] Alexander Hamilton, James Madison, and John Jay, *The Federalist: With Letters of "Brutus,"* ed. Terence Ball (Cambridge: Cambridge University Press, 2003) (hereinafter Ball ed.), 64–71. With the exception of David Hendrickson and John Lamberton Harper, I do not believe other scholars have noticed this connection.

[120] Connell ed., 120.

The Florentine republic and the American confederation were vulnerable to internal collapse and external aggression.[121]

We may indeed with propriety be said to have reached almost the last stage of national humiliation. There is scarcely anything that can wound the pride or degrade the character of an independent nation which we do not experience.[122]

This barbarian domination stinks to everyone.[123]

Is respectability in the eyes of foreign powers a safeguard against foreign encroachments? The imbecility of our government even forbids them to treat with us. Our ambassadors abroad are the mere pageants of mimic sovereignty.[124]

This is the very melancholy situation to which we have been brought by those very maxims and councils which would now deter us from adopting the proposed Constitution; and which, not content with having conducted us to this brink of a precipice, seem resolved to plunge us into the abyss that awaits us below.[125]

And nothing confers so much honor on a man who rises anew as do new laws and the new orders he invents. These things, when they are well established and have greatness in them, make him worthy of reverence and admirable. And in Italy there is no want of material into which every form may be introduced; here there is great virtue in the limbs, provided she does not lack leaders.[126]

This renders a full display of the principal defects of the Confederation necessary, in order to show that the evils we experience do not proceed form minute or partial imperfections, but from fundamental errors in the structure of the building, which cannot be amended otherwise than by an alteration in the first principles and main pillars of the fabric.[127]

Machiavelli's search for solutions for the problems of republican foreign policy unites him across time with the founders of the American republic. Neither Niccolò Machiavelli nor Alexander Hamilton, James Madison, Thomas Jefferson, John Jay, or John Adams were philosophical or abstract constitutionalists but were firmly placed in the real world, "alive to all the vicissitudes and calamities which have befallen other nations."[128] Like Machiavelli, the Founders too had dipped into Polybius' Book VI, which is a study of the Roman constitution.[129] Likewise, the problems faced by Machiavelli in his

[121] David C. Hendrickson, *Peace Pact: The Lost World of the American Founding* (Lawrence: University of Kansas Press, 2003).
[122] *Federalist* 15, Ball ed., 64.
[123] Connell ed., 122.
[124] Ball ed., 65.
[125] Ball ed., 165.
[126] Connell ed., 121.
[127] Ball ed., 169.
[128] Hamilton, *Federalist* 30, Ball ed. 141, cited in Bailyn, *To Begin the World Anew*, 113.
[129] Like Machiavelli and the American Founders, Polybius' primary interest in political theory arose from its utility as a tool to help explain history and to help statesmen in controlling political developments. See David E. Hahm, "Kings and Constitutions: Hellenistic Theories," *The Cambridge History of Greek and Roman Political Thought* (Cambridge: Cambridge University Press, 2003).

struggle to conceptualize an extended republic were also faced by the founders of the American republic, for their project too was an experiment of the creative political imagination.[130] In particular, in asking how a new kind of state could secure itself, the mind had to leave the comfort of received ideas and traditions behind, imagine vast new stretches of political space, and discover new modes and orders. Both the architects of the American republic and the prospective founder of a territorial republic in Italy had to determine whether a new kind of state could secure itself without subverting its principles. For all practical purposes, they had to decide who should exercise power over foreign policy.

Foreign relations were always problematic for federated republics, as republican leagues were also known. Under the Articles of Confederation, which eschewed the phrase "executive power," Congress had the exclusive right to determine peace and war, send and receive ambassadors, enter into treaties and alliances, and grant letters of marque and reprisal in peacetime.[131] Through this article, scholars have argued, Congress exercised the powers of the British Crown in foreign policy.[132] The effectiveness, secrecy, and efficiency required in state action abroad was absent in the Congress, which moreover lacked the requisite formal authority to negotiate on behalf of the national interest with foreign powers, as the ambassador to the Court of St. James, John Adams, was to learn, much to his dismay.[133] John Jay, the second Secretary of the Department of Foreign Affairs, wrote to Thomas Jefferson of the "unseasonable delays and successive obstacles in obtaining the decision and sentiments of Congress."[134] Jay complained to George Washington that "the executive business of sovereignty, depending on so many wills," would never be successfully fulfilled.[135] By the mid-1780s, the Congress barely functioned, rarely gathering a quorum. Even Thomas Jefferson was compelled to write, in a letter to Edward Carrington, that Congress was proving unequal to the task.[136] The end result was what amounted to calamity abroad, as James Madison would observe in retrospect when he wrote, "The feebleness of our general government" encouraged foreign powers to "openly declare their unwillingness" to negotiate with the United States.[137] The New York Trespass Act of 1783 explicitly challenged

[130] Bailyn, *To Begin the World Anew*.

[131] Article IX, paragraphs 1–2.

[132] Rakove describes the Congress as "a body which had the appearance of a legislature but responsibilities customarily associated with the Crown." Jack N. Rakove, *Original Meanings: Politics and Ideas in the Making of the Constitution* (New York: Knopf, 1996), 253. See also Jerrilyn Marston, *King and Congress: The Transfer of Political Legitimacy, 1774–1776* (Princeton: Princeton University Press, 1987).

[133] Rakove, *Original Meanings*, 27.

[134] Letter from John Jay to Thomas Jefferson (August 18, 1786), in *The Correspondence and Public Papers of John Jay*, ed. Henry P. Johnston, A.M. (New York: G. P. Putnam's Sons, 1890–93), 3: 210.

[135] Letter from John Jay to George Washington (January 7, 1787), in *Correspondence*, 3: 227–9.

[136] Letter from Thomas Jefferson to Edward Carrington (August 14, 1787), in *The Writings of Thomas Jefferson*, ed. Paul Leicester Ford (New York: G.P. Putnam and Sons, 1894), 424.

[137] Ibid.

multiple articles of the Treaty of Paris, and other states seemed poised to violate the treaty in a similar fashion.[138] In contravention of the Articles, individual states had begun to take on all the powers of sovereign states "even in some cases carrying on separate diplomatic correspondence and negotiations abroad."[139] The existence of a national interest over and above the individual states and the people began to be questioned, and even if it did indeed exist, the Congress was unable to pursue it, lacking the formal authority over interstate or foreign commerce to protect American interests, which were primarily commercial, abroad.[140] Problems of foreign policy, Jack Rakove observed, "dominated efforts to strengthen the confederation."[141] Then in 1787, driven by a widely shared sense of crisis on multiple fronts, heightened by the increasing chaos bedeviling state governments, came the Philadelphia Convention and the chance for the delegates to give their undivided attention to the multiple weaknesses of the Confederation that had also enervated republican leagues in the past.

There appeared to be no easy institutional solution to the problem of effective republican foreign policy. It was such a crucial concern that *Federalist* 3 to 5 addressed the looming problem that the "Articles of Confederation do not adequately provide for the national defense against foreign invasion."[142] Thirteen of the first twenty *Federalist Papers* are works on comparative government and foreign affairs. *Federalist* 15 to 20, part of a great collaborative effort by Hamilton and Madison, offer a journey through various republics ancient and modern. *Federalist* 23 to 28 concern "The Powers Necessary to the Common Defense." Discussing the weaknesses of republics in *Federalist* 19 and 20, Madison observed that republics were incapable of self-defense because "military preparations must be preceded by so many tedious discussions that before the diet can settle arrangements, the enemy are in the field." Poland, the Swiss republic, and the Dutch were all weak states. The States General handled foreign policy for the Confederacy of the United Netherlands, but the requirement of unanimity became another example of the vulnerability of republics to war and invasion. Poland too was unfit for self-defense and at the mercy of

[138] *The Federalist*, No. 22; *The Law Practice of Alexander Hamilton*, 2 vols., ed. Julius Goebel, Jr. (New York: Columbia University Press, 1964), I: 282–315.

[139] Wood, *The Creation of the American Republic*, 257; see generally, Onuf and Onuf, *Federal Union, Modern World*, 117–128, entitled "Diplomatic Frustrations."

[140] Rakove, *Original Meanings*, 26–7. As Rakove relates, the Congress was unable to resolve three vital issues of foreign policy because it lacked the authority to do so – the protection of commercial interests abroad, the ability to assure the compliance of state legislature and courts with Articles IV and V of the Treaty of Paris permitting British subjects to sue for confiscated property, and Spain's 1784 decision to close the lower Mississippi to American ships.

[141] Rakove, *Original Meanings*, 28.

[142] Ball ed., xxxiii; *Federalist* 3–5, Ball ed., 9–19. "Though a wide ocean separates the United States from Europe, yet there are various considerations that warn us against an excess of confidence or security. On the one side of us, and stretching far into our rear, are growing settlements subject to the dominion of Britain. On the other side, and extending to meet the British settlements, are colonies and establishments subject to the dominion of Spain." Hamilton, *Federalist* 24, Ball ed., 113.

powerful neighbors.[143] So in *Federalist* 23, Hamilton felt justified in asserting that the power to defend the union from external attack ought to exist without limitation because it is impossible to form a just estimate of the extent and variety of national emergencies and the means necessary to overcome them: "The circumstances that endanger the safety of nations are infinite."[144] Territories of foreign nations encircled the union from Maine to Georgia.[145]

In the early sixteenth century, Machiavelli had ruefully surmised that foreign relations was the preserve of princes, who better knew how to respond to emergencies, to act decisively, to design and execute a strategy. Republics, slow to decide, trundled along behind, but it had not always been this way. Rome was a republic preeminent in foreign policy. Machiavelli's excursions into Livy's history of early Rome revealed a republic equipped to manage war and peace and territorial expansion. Rome not only invariably chose the superior policy, it did so expeditiously. Rome was a republic that acted like a prince abroad. But was its secret a unitary executive removed from accountability? We have seen that the Roman senate formulated foreign policy to be executed, as appropriate, by the consuls. Citizen assemblies approved or rejected the declaration of war. In Machiavelli's considered opinion, it was the judicious division of power over foreign policy with precedence given to the senate.

## PRINCE IN A REPUBLIC: POWER OVER FOREIGN AFFAIRS

For the delegates at the Philadelphia Convention debating how to allocate power over foreign relations, neither history nor theory could offer much in the way of guidance. The most modern and celebrated political theorist Montesquieu, seemingly at his most Machiavellian, had suggested the concept of the *république federative* in his *Spirit of the Laws*. This type of constitution, which Alexander Hamilton translated as "confederate republic" in *Federalist* 9, "has all the internal advantages of a republican government and the external force of a monarchy."[146] Montesquieu continues:

> This form of government is an agreement by which many political bodies consent to become citizens of the larger state that they want to form. It is a society of societies that make a new one, which can be enlarged by new associations that unite with it."[147]

[143] *Federalist* 19 and 20, Ball ed., 84–93.

[144] *Federalist* 23, Ball ed., 107. This is because "it is impossible to foresee or define the extent and variety of national exigencies, or the correspondent extent and variety of the means which may be necessary to satisfy them" (Ball ed., 106–7). Compare that to Machiavelli, "The ruin of republics comes in a thousand different ways."

[145] *Federalist* 25, Ball ed., 115.

[146] Charles de Secondat, Baron de Montesquieu, *The Spirit of the Laws*, eds. Anne M. Cohler, Basia C. Miller, Harold S. Stone (Cambridge: Cambridge University Press, 1989), book IX, chapter 1, 131.

[147] Ibid.

Other than noting that this type of "association" characterized the Romans who nearly conquered the world, and that the Republic of Holland controlled foreign policy through the principle of unanimity, Montesquieu did not explore the institutional structures through which confederate republics conducted foreign affairs.[148] Machiavelli's Roman republic divided power over foreign affairs. But the precise meaning of such a statement is opaque. Which powers are properly legislative and truly executive under separation of powers theory is not self-evident, and is it even proper to apply an eighteenth-century paradigm to interpret a sixteenth-century work? Add to that the lingering hold mixed government exercised on the delegates at the Philadelphia Convention; so easy was it, and so it remains, to lapse into older patterns of language and imagery, that there may be no link at all. It may be more likely that, when facing the same problem, with different tools at their disposal, Machiavelli and the Philadelphia delegates happened upon a strikingly similar solution.[149] The Americans were neither scrupulous students of Montesquieu nor admirers of the British Crown.[150]

The challenge was to elaborate the exact lineaments of the paradoxical relationship between executive power and republican freedom. "It is essential to the protection of the community against foreign attacks."[151]

It bears repeating the Congress established by the Articles was a deliberating executive assembly with multiple functions, reminiscent of Roman senate and executive committees of the Florentine republic.[152] The Convention opened in May of 1787. The first round of debate lasted from June 1 to June 6.[153] By June 4, the committee of the whole chose to place executive power in a single person.[154] The influential Virginia Plan provided a foundation for debate. Article 7 of the Plan put the "Executive rights vested in Congress by the Confederation" in the hands of the executive. Charles Pinckney criticized the transfer of the executive powers of the Congress to the executive because this "might extend to peace and war and ... would render the Executive a

[148] Montesquieu, of course, examined the Roman republic's institutions in considerable depth in his *Considerations*, but eighteenth-century Americans were far more familiar with the *Spirit of the Laws*.

[149] Or perhaps not, when it comes to the institution of the dictator.

[150] Judith N. Shklar, "Montesquieu and the New Republicanism" in *Political Thought and Political Thinkers*, ed. Stanley Hoffman (Chicago: the University of Chicago Press, 1998). Some legal scholars have alleged that the founders grafted the powers of the British Crown onto the presidency. This interpretation is belied by primary sources and the complex legacy of mixed government as well as monarchical prerogative, as other scholars have duly noted.

[151] *Federalist* 70.

[152] One could argue that a deliberative assembly exercising executive functions in foreign affairs is precisely what Machiavelli had in mind.

[153] For this brief narrative of the creation of the presidency, I rely primarily on Rakove, *Original Meanings*, 244–87; Wood, *The Creation of the American Republic*.

[154] As Jack Rakove notes, a fair share of the enduring conceptual confusion over the powers of the presidency is owed to fact that Article II vests the "executive power" in the president without providing a definition. Rakove, *Original Meanings*, 244.

Monarchy."[155] Thinking analytically rather than historically, James Wilson, who had first suggested the unitary executive, declared that war and diplomacy were not evidently executive. Wilson was adamant that the royal prerogative was not a guide to determining the bounds of executive power, and he found an ally in James Madison. Although the British king had prerogative powers over war and peace, such decisions were legislative powers.[156] Ancient history was on Wilson's side. In Rome the legislative assembles voted on the senate's recommendation to wage war. The senate formulated policy, which was implemented by the executive consuls. Before continuing, it is necessary to distinguish separation of powers from mixed government from monarchical prerogative.

By the Philadelphia Convention, the doctrine of separation of powers was a century and a half old, coming to prominence during the English civil war through the efforts of the proponents of parliament in its long contest for supremacy with the Stuart kings.[157] In its mature form, the doctrine classifies the powers of government along functional lines as legislative, executive, and judicial and requires that these powers be placed in distinct institutions and in different people.[158] The seventeenth-century version abstracted the various functions of government into two basic categories: legislative and executive, the latter of which was coterminous with the judicial power.[159] Whether John Locke can be considered a separation of powers theorist remains contested. However, his *Second Treatise* did serve to clarify the distinct functions of the legislative and executive powers, a division that had attained some popularity during the civil war, and added the "federative" power encompassing foreign relations, the "Power of War and Peace, Leagues and Alliances, and all the Transactions, with All Persons and Communities without the Commonwealth."[160] Given the dearth of standing international law and the need to respond to the unforeseen, the federative power permits more discretion than the executive power "and so

[155] Max Farrand, *The Records of the Federal Convention of 1787* (New Haven: Yale University Press, 1966), I: 65.

[156] Rakove, *Original Meanings*, 257. Wilson believed that executing the laws and appointing officers were clearly executive powers. Farrand, *Records* I, 64–6.

[157] M. J. C. Vile, *Constitutionalism and the Separation of Powers* (Oxford: Oxford University Press, 1967), 39, 51. "By the year of the execution of Charles I, then, the doctrine of the separation of powers, in one form or another, had emerged in England, but as yet was still closely related to the theory of mixed government." Vile, *Constitutionalism*, 47.

[158] See Vile, *Constitutionalism*, and W. B. Gwyn, *The Meaning of the Separation of Powers: An Analysis of the Doctrine from Its Origin to the Adoption of the United States Constitution* (New Orleans: Tulane University Press, 1965).

[159] Vile, *Constitutionalism*, 28–9.

[160] While Peter Laslett argues that Locke should not be viewed as a separation of powers theorist, both Vile and Gwyn contend that Locke was familiar with preliminary formulations of the idea of separation in the mid-seventeenth century and that it is proper to read his works as a contribution to the history of the concept. See John Locke, *Two Treatises of Government*, 2nd. ed., ed. Peter Laslett (Cambridge: Cambridge University Press, 1989), 117–21. See also Vile, *Constitutionalism*, 51, 58–68; Gwyn, *The Meaning of Separation of Powers*, 66–81. Locke, *Two Treatises*, 364.

must be left to the Prudence and Wisdom of those whose hands it is in."[161] Limited governments and "moderated monarchies" require that the legislative and executive powers be exercised by different individuals. Nonetheless, Locke recommended that both executive and federative powers, though different, be exercised by one and the same person and furthermore asserted that both "ministerial" powers were subordinate to the legislative power, properly so in a political culture still anxious to place constitutional limits on royal prerogative, despite the aggrandizing extremes of the Long Parliament. The prerogative was not a distinct power on par with the executive, legislative, or federative, but the old royal privilege clung to the *Second Treatise*. Defined as the "the Power to act according to discretion for the public good," Locke's version of prerogative encompassed the royal veto power over parliamentary legislation, the pardon power, and the right to summon a meeting of parliament. As we have seen, this ability to act outside or against the law, as necessity dictates, is not accompanied by any corresponding remedy or accountability should it be misused.[162] It would be left to Montesquieu to offer the classic statement of separation of powers, though he never used the precise term, in book XI, chapter 6, of his 1748, *The Spirit of the Laws*.[163] Montesquieu ignored Locke's federative power and divided government into three powers "that of enacting laws, that of executing the public resolutions, and of trying the causes of individuals."[164] In isolating the judicial power from its original home in the executive (royal judges served the Crown), Montesquieu inaugurated the vision of government as a tripartite structure which had the perhaps unintended effect of mimicking the taxonomy of mixed government thus ensuring constitutional design would remain the perennial search for equipoise.[165]

Mixed government, on the other hand, was far older, tracing its origins to ancient Greek political thought. The core principle of the theory was that each of the three elements of society, the one, the few, and the many should be represented in government. In this theory government was not viewed as an entity apart from society but is interwoven with it. In point of fact, social class became a key piece of the theory. The ideal combination of the monarchy, aristocracy, and democracy would prevent the inevitable slide to corrupt arbitrary power into which each of the purer forms was doomed to fall. Polybius, as we have seen, celebrated the Roman constitution as the ideal mixed regime. The specific

[161] Locke, *Two Treatises*, 378–9. Vile takes pains to stress that the federative and executive powers are "very distinct and different functions." In foreign affairs, the government is not executing law promulgated by the legislature. See Vile, *Constitutionalism*, 60–1.

[162] Locke, *Two Treatises*, 378–9. According to Vile, the legislature has ultimate authority over the exercise of prerogative. *Constitutionalism*, 65. In contrast, Pasquino contends that Locke's prerogative is uncontrolled and is answerable only to the appeal to heaven. See Pasquale Pasquino "Locke on King's Prerogative," Political Theory, 26, no.2 (April 1998).

[163] Vile, *Constitutionalism*, 90.

[164] Montesquieu, *The Spirit of the Laws*, book XI, chapter 6.

[165] Ibid. Vile, *Constitutionalism*, 96.

nature of powers exercised commands far less attention than whether each social group has a share in political power that is divided among separate agencies of government, though not divided on the basis of specific functions. Recall how Polybius describes each institution in the Roman republic watching the other. This principle of surveillance, of one organ of government checking the other, presaged the future of the theory.[166] Likewise, balance was a key term, and, more often than not, the aristocratic institution performed the critical role of balancing the extremes of the one and the many. The Roman senate remains the paradigmatic aristocratic institution, a deliberative body that exercised both executive and legislative powers, as mixed government did not organize powers on the basis of function. When Charles I relied on mixed government to buttress his retort to the propositions of parliament, he used the theory to bring conceptual order to the variegated medieval inherence that had left its distinguishing mark on English government through the evolution of representative institutions.[167] After the Act of Settlement of 1701 confirmed the supremacy of parliament and a refashioned limited monarchy, legislative supremacy, mixed government, and separation of powers were all blended into theory of balanced constitution. In this version of mixed government offered by English thinkers, the presence of the three estates of the realm – King, Lords (which also functioned as a high court), and Commons in parliament – constituted the balanced and enduring genius of English government.[168] The fact that the three estates shared legislative power was the essence of the balanced constitution. Meanwhile, the controversies of the eighteenth century melded the old checking principle of mixed government with newer functional emphasis of separation of powers into a secondary theory of checks and balances.[169]

A. V. Dicey defined the royal prerogative (and it is always royal) as "the residue of discretionary or arbitrary authority, which at any given time is legally left in the hands of the Crown."[170] This classic formulation captures the peculiar characteristics of the royal prerogative as a historical and legal concept. It was, precisely, what remained of the original "medieval plenum of power" possessed by the prince by virtue of his supreme rank as sovereign and the kingdom as his

[166] Vile, *Constitutionalism*, 33, 36. See also the discussion of Polybius in K. von Fritz, *The Theory of the Mixed Constitution in Antiquity*, (New York: Columbia University Press, 1954).

[167] Charles I, *His Majesty's Answer to the XIX Propositions of Both Houses of Parliament* (1642). Vile, *Constitutionalism*, 38.

[168] Vile, *Constitutionalism*, 53. See also Zera Fink, *The Classical Republicans: An Essay in the Recovery of a Pattern of Thought in Seventeenth Century England* (Evanston, IL: Northwestern University Press, 1945), 188–9.

[169] Vile, *Constitutionalism*, 72.

[170] "The prerogative is always qualified by the adjective 'royal' and, by the use of the words, 'in the hands of the Crown.'" B. S. Markensis, "The Royal Prerogative Re-Visited," *Cambridge Law Journal*, 32, no. 2: 287–309, 287. Dicey's definition of the prerogative is the one used most frequently by English courts. Markensis, "Royal Prerogative," 287.

personal realm.[171] "Discretionary" is a more amenable term, but the royal prerogative partook of the sword as well as the scepter, which Dicey's inclusion of "arbitrary" betrays. Like any time-honored inheritance, the royal prerogative was vague, originating deep in the past; it was neither pellucid nor Platonic, but moss-covered, ancient, impervious to analytic precision. So closely bound is the royal prerogative to the medieval realm of English law and custom, it cannot plausibly be deracinated as an abstract concept and applied elsewhere with ease. More than that, there is no one overarching royal prerogative, but various prerogatives, an attic of old furniture. In identifying the prerogatives and their reach Maitland warned, "our course is set about with difficulties, with prerogatives disused, with prerogatives of doubtful existence, with prerogatives which exist by sufferance, merely because no one has thought it worth while to abolish them."[172] The prerogative to appoint and dismiss the prime minister and the prerogative to confer honors and awards remain to this day, in the hands of the Queen.[173] The prerogative to veto legislation is a distinct power. The prerogative to pardon criminals is yet another. The conduct of foreign affairs and the negotiation of treaties are separate prerogative powers.[174] The right to dissolve Parliament is another, and still controversial, prerogative. Other prerogatives include relator actions, the *nolle prosequi*, and the power to make an infant a ward of the court.[175]

Efforts to constrain prerogative powers began after the death of Elizabeth I, with common law courts leading the charge: "the King hath no prerogative, but that which the law of the land allows him."[176] But political conflict and the English civil war quickly superseded judicial efforts to restrict the Crown and culminated in the doctrine of legislative supremacy through which statues can regulate or abolish particular prerogatives.[177] The version of the royal prerogative successive Stuart monarchs espoused had as much in common with

[171] Even in the medieval period, this plenum of power was limited by a variety of customary rights and privileges. See J. N. Figgis, *From Gerson to Grotius 1414–1625* (Cambridge: Cambridge University Press, 1907), 7–14.

[172] F. W. Maitland, *The Constitutional History of England* (Cambridge: Cambridge University Press, 1965 reprint), 421.

[173] Markensis, "Royal Prerogative," 289. See also J. G. A. Pocock, *The Ancient Constitution and Feudal Law: A Study of English Historical Thought in the Seventeenth Century; A Reissue with a Retrospect* (New York: Norton, 1987), 233–6.

[174] Markensis, "Royal Prerogative," 288–90.

[175] Markensis, "Royal Prerogative," 303.

[176] *The Case of Proclamations* (1611) 12 Co.Rep. 74. To this day, the orthodox doctrine is that while the courts determine the existence and extent of the royal prerogatives, they cannot question the manner in which a particular prerogative is exercised. Markensis, "Royal Prerogative," 293–5. John Cowell, professor at Cambridge, argued otherwise in his 1607 legal dictionary *The Interpreter*, which stated that the royal prerogative is above the common law. See F. Oakley, "Jacobean Political Theology: The Absolute and Ordinary Powers of the King," *Journal of the History of Ideas* 29, no. 3 (1968): 323–46.

[177] Markensis, "Royal Prerogative," 299.

contemporary pretensions to absolute rule by continental monarchs than did with tradition.[178] The Glorious Revolution of 1688 chained the royal prerogative to Parliament. Of the royal prerogative, the Bill of Rights of 1689 stated "[t]hat the pretended power of suspending laws, or the execution of the laws by regal authority, without the consent of parliament, is illegal. That the pretended power of dispensing with laws, or the execution of laws, by regal authority, as it hath been assumed and exercised of late, is illegal."[179] The absolute or "extraordinary" form of the royal prerogative, through which the king could claim to transcend positive law for the public good, disappeared forever.[180] The king's veto, an "ordinary" royal prerogative power remained, but surviving prerogative powers did so in diminished form. The king could no longer maintain a standing army in peacetime without the consent of Parliament. The First Mutiny Act of 1689 limited the prerogative power to promulgate military law and through that the ability to administer the military. The king retained the prerogative power to declare war, but parliament had to vote supplies for the army.[181]

Conventional eighteenth-century constitutional doctrine held that decisions about war and peace were prerogative powers.[182] This was by habit of history not by virtue of the king's executive power. Lord Bolingbroke affirmed that the royal prerogative is but an accumulation of particular powers and privileges exemplified by his definition of prerogative as "the king's other powers and privileges annexed to the executive power with which he is entrusted."[183] From Bolingbroke we can deduce a few relevant points. The royal prerogative encompassed various powers belonging to the monarch. By accident of history, that same monarch had been given executive power, in the abstract terms of separation of powers doctrine. Prerogative powers were royal accessories, so to speak, that were "annexed" to the executive, as a new territory might be. Prerogative powers were not inherent in the executive power or in whomever exercised that power. Furthermore, executive power is a trust and held by means of it.[184] By

[178] See C. Weston and J. R. Greenberg, *Subjects and Sovereigns: The Grand Controversy over Legal Sovereignty in Stuart England* (Cambridge: Cambridge University Press, 1981).

[179] The Bill of Rights of 1689.

[180] See Pasquino, "Locke on King's Prerogative," *Political Theory*, note 9. In the Jacobean world, the royal prerogative could be ordinary or absolute. The absolute form of the royal prerogative was outside positive law and could be used only for the benefit of the people. It was defined in Bates's Case as that "which is applied to the general benefit of the people and is s*alus populi*" Bates's Case, 1609, *A Complete Collection of State Trials*, ed. T. B. Howell (London: Longman, 1916–26), II: 389.

[181] Jack N. Rakove, "Taking the Prerogative Out of the Presidency: An Originalist Perspective," *Presidential Studies Quarterly*, 37, no. 1 (Mar. 2007): 89. Parliament had to vote a new Mutiny Act every year and established the practice of voting military supplies for the army each year.

[182] Rakove, "Taking the Prerogative Out of the Presidency," 89.

[183] Henry St. John, Viscount Bolingbroke, *Remarks on the History of England* (London: R. Francklin, 1747), 82.

[184] Locke used the language of trust in reference to the executive power in sec. 222 of the *Second Treatise*, which discusses the executive's three trusts, Locke, *Two Treatises*, 413.

extension that trust may be broken, and the king himself, should he violate that trust could be deprived of the executive power. In sum, when Americans in the revolutionary and founding period thought of the royal prerogative, they had in mind the limited prerogative as it existed after 1688. Although some colonists may have embraced the "dominion" theory of empire in the 1760s and argued the colonies were part of the personal realm of the monarch and outside the authority of parliament, it was an expedient embrace of Stuart pretensions to royal prerogative in service of an anticipatory federalism rather than a foreshadowing of the presidency. A fanciful fretwork of theories and arguments abounded in the years before independence.[185] When the framers came to find a place for executive power in a new republic, they availed themselves of a variety of theories, historical examples, and old-fashioned compromise. Based on all available evidence, an apparition of Charles I did not factor in the proceedings.[186]

John Locke's *Second Treatise* also discussed the prerogative. Locke's prerogative is not the royal prerogative of English constitutional tradition; it is an abstract concept that slithers in and out of the executive and federative powers, but like the royal prerogative it embraces multiple powers. Locke defines prerogative as

> [t]his Power to act according to discretion, for the publick good, without the prescription of the law, and sometimes even against it is that which is called *Prerogative*. For since in some Governments the Law-making Power is not always in being, and is usually too numerous, and too slow, for the dispatch requisite to Execution.[187]

[185] See, LaCroix, *The Ideological Origins*, chapters 2–3, 30–105.

[186] Recently, Eric Nelson suggested that the colonists' embrace of the dominion theory of empire and corresponding Stuart-era royal prerogative influenced the creation of the chief executive. This is no doubt a compelling suggestion, but it discounts the version of royal prerogative most familiar to the colonists, which was the limited Hanoverian prerogative, the substantial prerogative and federative powers given to the Congress, and, not least of all, the fact that the presidency was a brokered compromise and no evidence, either from the records of the Convention, the ratification debates, or the anti-Federalist publications, appears to exist to indicate Stuart royalism was a significant factor. See Eric Nelson, "Patriot Royalism: The Stuart Monarchy in American Political Thought, 1769–75," *William and Mary Quarterly*, 3rd ser., 68, no. 4 (October 2011). Nelson also claims that James Madison "retrospectively endorsed the patriot Royalist position" and cites LaCroix, *The Ideological Origins of American Federalism*, 150–1. However, as Gordon Wood emphasized, Nelson failed to address the doctrine of sovereignty. Gordon Wood, "The Problem of Sovereignty," *William and Mary Quarterly*, 3rd ser., 68, no. 4 (October 2011). Madison discussed the prerogative in reference to the Privy Council's authority to review colonial legislation. The Privy Council used the royal prerogative power of the veto to maintain order in a multifarious empire. Madison thought that "the republican prerogative, via Congress, would keep the states from spinning into the turmoil that had characterized the Confederation." LaCroix, *The Ideological Origins of American Federalism*, 150. Madison did not endorse or revive the prerogative in reference to the creation of the presidency, but to solve the problem of union.

[187] Locke, *Second Treatise*, sec. 160, 375.

Thus the first prerogative power is to act during two situations: when the legislature is not in session or when it cannot come to decision quickly enough during an emergency.[188] Other prerogative powers arise because

> [i]t is impossible to foresee, and so by laws to provide for, all Accidents and Necessities, that may concern the public or to make such Laws, as will do no harm, if they are Executed with an inflexible rigor, on all occasions, and upon all Persons, that may come in their way.[189]

Here we find the prerogative to act on behalf of the public in response to the unexpected, according to necessity, which standing law cannot address. There is also another power to mitigate the law if someone defies the letter of the law but not its purpose. Yet another prerogative power is the pardon power "to mitigate the severity of the Law, and pardon some Offenders"[190] Of the first prerogative power – for the executive to contravene the law or act without it according to necessity Locke observes that it is proper for the laws to "give way" in some specific situations "to the Executive Power, or rather to this Fundamental Law of Nature and Government, *viz*. That as much as may be, *all* the Members of the Society are to be *preserved*."[191] This is a critical innovation in prerogative power. First, this prerogative power to act against or without the sanction of law is not an attribute of a sovereign exercising inherited rights over a personal domain but a duty to act according to natural law. Second, this "extra-legal" power does not provide the executive alone with a plenum of power. In instances of emergency, such as the example Locke provides of a man who demolishes a house to stop a fire from spreading, the power of the executive does not qualitatively differ from the right of any citizen to act according to the law of nature for the good of society.[192]

According to Machiavelli, war was the domain of princes, individual or collective. Locke enveloped foreign affairs in the federative power, which he then tied to the executive. The question then becomes whether the federative power and the prerogative power overlap at any point. The federative is a realm bereft of standing law where the executive must exercise "prudence and wisdom."[193] One would hope when exercising the prerogative, the executive would likewise with prudence and wisdom, but those are not the necessary attributes of

[188] As Thomas S. Langston and Michael E. Lind observe, the prerogative power Locke describes would not be applicable to a government that has a small legislative council perpetually in session. "John Locke and the Limits of Presidential Prerogative," *Polity*, XXIV, no. 1 (Fall 1991): 56.

[189] Locke, *Second Treatise*, sec. 160, 375. He continues, "therefore there is a latitude left to the Executive power, to do many things of choice, which the Laws do not prescribe."

[190] "For the *end of government* being the *preservation of all*, as much as may be, even the guilty are to be spared, where it can prove not prejudice to the innocent." Locke, *Second Treatise*, sec. 159, 375.

[191] Locke, *Second Treatise*, sec. 159, 375.

[192] Ibid. See Ruth Grant, *John Locke's Liberalism* (Chicago: University of Chicago Press, 1987), 83–5.

[193] Locke, *Second Treatise*, sec. 147, 365–6.

prerogative powers. Locke leaves us with no reason to assume the exercise of prudence and wisdom is unaccountable to the legislature. In as much as government action without standing law partakes of discretion, it touches that prerogative power which permits action when the legislature is unable to meet or act expeditiously. In response to an emergency, which Machiavelli called necessity and today is described as a matter of "national security," Locke's executive may call upon a prerogative power when exercising the federative power. Even so, the executive must use this power in the domain of foreign affairs, as he does domestically, for the public good. If not, he is answerable to the legislature and to the people who retain the right "to appeal to heaven."

More recent historical experience also had a hand in shaping Article II. The passionate anti-monarchism of the hour had encouraged the framers of early state constitutions to starve the executive of the majority if its powers. In a victory for legislative supremacy, the governors lacked veto power, the ability to summon the legislature, or otherwise act without the imprimatur of the legislature.[194] "Had Americans not learned the history of the Long Parliament and the dicta of Montesquieu so well, they might have moved to deconstitutionalize the executive entirely,"[195] Further, the old colonial councils which had performed multiple functions in a manner reminiscent of the House of Lords or the Roman senate, were banished as antiquated vestiges of mixed government and their functions vested in upper legislative houses, courts of appeal, and councils of state. The vogue for councils of state whose advice the governor was required to consider gives a fair indication of Americans' preference for a plural or conciliar executive.[196] Judging by the New York and Massachusetts constitutions, the tide began to turn early.[197] The war and Congress's mismanagement of the peace treaty had moved some framers, such as John Adams, John Jay, Alexander Hamilton, and Robert Morris, toward a renewed appreciation of executive power. James Madison, however, remained dubious. In a letter, Madison admitted the "great powers which are properly executive" were transferred to the Congress, but whether and how many such great powers should be lodged in a unitary executive remained to be seen.[198]

[194] Rakove, *Original Meanings*, 250; Wood, *The Creation of the American Republic*, 157.

[195] Rakove, *Original Meanings*, 252.

[196] Ibid.; Wood, *The Creation of the American Republic*, 138–9.

[197] The governors of both states had limited veto power, but this check on the legislature could only be exercised by a council of revision in New York. The Massachusetts governor could exercise a limited veto alone, but his appointments were required to receive the consent of a council.

[198] Jack N. Rakove, *James Madison: Writings* (New York: Library of America, 1999), 41. Legislative history, in particular the New Jersey Plan of mid-June 1787, which proposed a plural executive; Hamilton's speech of June 18, which proposed a unitary executive with some but not all federative power; and the original form of the vesting clause as reported by the Committee of Detail, suggests that the meaning of Vesting Clause of Article II was to emphasize the choice of a unitary rather than plural executive and moreover one who possessed the specific powers the Convention, after much debate, decided were best lodged in the executive, rather than a grant of sweeping or absolute power inherent in the abstract concept.

## THE DEBATE OVER FOREIGN AFFAIRS

The fulcrum would be the debates of August 17 and 23, 1787, over the war and treaty powers. These were no subsidiary debates; war, peace, and foreign commerce comprised the bulk of the new national government's responsibilities.[199] That the royal prerogative power over war and peace was not the place to start for prerogative conflated powers that ought to be separate, according to the most advanced doctrine of the day, had already been agreed during the debate of June 1 over Article 7 of the Virginia Plan.[200] Using separation of powers as a guide in distributing power over foreign affairs, the question became which functions of war and peace were executive and which were actually legislative. Classification, however, was merely a place to start. The experience of the states had demonstrated that constitutions based on a strict and complete separation were problematic. A modulation of the strict principle appeared in the reemergence of the old mixed government principle of surveillance. Equally significant was the divergence from Locke's teachings. Those powers that comprised Locke's federative power were not necessarily lodged in the executive nor were they intrinsically connected to the prerogative power. Essentially, the tenor of the debate gives the distinct impression the delegates ignored Locke, and their decision to open every received teaching and doctrine to debate was not heedless. The appellation of federative to the power over foreign affairs belied its origin for "to federate" meant "to treat" to sign a treaty of alliance "to protect against external threat" which was a matter of creating a legally valid agreement, and as such a matter of law making.[201] To federate, of course, was the primary means by which ancient, medieval, and early modern republics conducted foreign relations. Wilson and Madison were correct to question the association Locke made between the federative and executive powers, which he justified on pragmatic grounds. The federative power was not coextensive with the executive power; nor did the power to federate necessarily need to be lodged in the executive.

The August 6 report of the Committee of Detail indicated the widespread assumption that the senate would exercise the federative powers over foreign

[199] James Madison, *The Federalist*, No. 45; the national government's powers "will be exercised principally on external objects, as war, peace, negotiation, and foreign commerce."

[200] James Madison argued that the royal prerogatives were not "a proper guide to the Executive powers. Some of these prerogatives were of a Legislative nature. Among others that of war & peace &c" (Farrand, *Records* I: 65–6). Madison seconded Wilson's point and made a motion to have "the executive rights" removed (Farrand, *Records* I: 67). At this point, Rakove suggests the powers of war and peace migrated to "legislative rights" under Article 6 of the Plan (Rakove, "Taking the Prerogative Out of the Presidency," 93).

[201] Onuf and Onuf, *Federal Union, Modern World*, 54–5. Unlike Locke, Montesquieu held that the federative power could be divided in the case of "perpetual republics" in which sovereign states voluntarily surrender some of their federative power to the larger confederacy. Montesquieu, *The Spirit of the Laws*, book IX.

affairs (war and diplomacy). The report gave Congress the power "to make war" and gave the Senate power over treaties and other agreements.[202] But doubts about leaving the war power to the entire Congress remained, so the delegates from South Carolina urged that either the Senate or the president, rather than Congress as a whole, be given the power. At this moment, Madison and Elbridge Gerry proposed a semantic solution: replace "make war" with "declare war" and leave the power in Congress. The president would have, by implication, "the power to repel sudden attacks." Then the comments came, all agreeing that the president should not have the latitude to start a war. Finally, Rufus King made a critical distinction: make war meant "to *conduct* it, which was an Executive function." With a principled sleight of hand, and a collective eye toward distributing functions logically, the war power was split into its legislative and administrative components.[203] In agreement with Machiavelli's advice in Book III, chapter 15, of the *Discourses*, "That One Individual and Not Many Should Be Put over an Army," Hamilton would later argue, "Of all the cares and concerns of government, the direction of war most peculiarly demands those qualities which distinguish the exercise of power by a single hand."[204]

The power to negotiate and sign treaties was a prerogative power of the British Crown. Influenced by Emmerich de Vattel's hugely popular *the Law of Nations*, many of the American delegates tended to think of treaties as law or at least "higher law."[205] The treaty power, however, which had executive as well as legislative qualities, the delegates initially lodged in the Senate, a decision that partook far more of Roman than British precedent. Attendant upon the treaty power are the nebulous but significant powers to engage in negotiations with foreign states and to manage diplomatic relations writ large. Long into the summer the Senate was to be the stronghold foreign affairs powers. With the war power divided into its legislative and administrative elements, the debate of August 23 focused on the power to negotiate and sign treaties with foreign governments. Debate questioned the wisdom of giving the Senate sole authority over treaties (which given war powers would have lodged all principle "federative"/foreign affairs powers in the Senate).[206] The delegates referred the treaty power to the Committee on Postponed Parts, and that committee's report on September 4 produced considerable debate. The committee had made a critical change, moving the treaty power from the Senate to the president with the advice

[202] The August 6 report did make the president commander-in-chief, but all major military decisions were to be made by the Congress (Farrand, *Records* II: 183). See also Rakove, "Taking the Prerogative Out of the Presidency," 94.

[203] Farrand, *Records*, II: 318–19. See also Rakove, "Taking the Prerogative Out of the Presidency," 94.

[204] Mansfield ed., 253; *Federalist* No. 74.

[205] Emmerich de Vattel, *The Law of Nations or the Principles of Natural Law Applied to the Conduct and the Affairs of Nations and of Sovereigns* (Indianapolis: Liberty Fund, 2008) ); Onuf and Onuf, *Federal Union, Modern World*, 108.

[206] Farrand, *Records* II: 540–51; Onuf and Onuf, *Federal Union, Modern World*, 108.

and consent of the senate through a two-thirds majority vote.[207] The Senate, rather than the president, remained the cynosure of debates during September 4–10. The treaty power, then, was to be shared by both branches. While approving and signing a legal obligation, such as a treaty, seemed properly legislative, though this too could be questioned, diplomacy and treaty negotiations could be classified as either executive or legislative. As Alexander Hamilton would later write of the treaty-making power in *Federalist* 75:

> The qualities elsewhere detailed as indispensable to the management of foreign negotiations, point out the executive as the most fit agent in these transactions; whilst the vast importance of the trust, and the operation of treaties as laws, plead strongly for the participation of the whole or a part of the legislative body, in the office of making them.[208]

The solution was a mixing and sharing of powers; the Senate was given some executive responsibilities.[209] Equally important, though less remarked upon, the delegates viewed the Senate as a source of advice for the president.[210] "Advice and consent" well recalls the authority of the old Roman senate, which did not legislate, but exercised its vast authority through its advice. Especially in foreign policy, we find this ancient echo, for the framers viewed the Senate as "a council-like body in direct and continuous consultation with the Executive on matters of foreign policy."[211] There was another reason to involve the Senate in the process of negotiating treaties as well as in approving them, namely to safeguard the interests of the states that were represented on equal terms in the Senate.[212] Federalism, then, also influenced the allocation of the treaty power.

The war and treaty power did not exhaust external relations. The delegates vested the Congress with other more conventionally executive powers such as the powers to regulate the military, to summon the militia, and to regulate captures on land and sea.[213] Last was the power to admit new states into the union and "to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States."[214] There was no

[207] The report had also given the president power over appointments, with the advice and consent of the senate. See Rakove, *Original Meanings*, 275.

[208] *Federalist* No. 75.

[209] Rakove, *Original Meanings*, 278.

[210] The president was given the power to appointment ambassadors, a fundamental aspect of diplomacy, but with the "advice and consent" of the senate. U.S. Constitution, Article 2, Section 2.

[211] Arthur Bestor, "'Advice' from the Very Beginning, 'Consent' When the End Is Achieved," 83 *Am. J. Int. L.* 718, 726 (1989).

[212] Curtis A. Bradley, "The Treaty Power and American Federalism," 97 *Michigan Law Review*, 390–461, 1998, 412. See also *The Federalist*, No. 64, "The Debates in the Convention of the State of Pennsylvania," reprinted in 2 *Elliot's Debates* at 415, 507; Rakove, *Original Meanings*, 275–80.

[213] U.S. Constitution, Article I, Section 8.

[214] U.S. Constitution, Article IV, Section 3, quoted in Daniel J. Hulsebosch, "The Plural Prerogative," *William and Mary Quarterly*, 3rd ser., 68, no. 4 (October 2011).

need for a prince to knit territories together. Composite monarchy had finally turned republican. Of this last nod to old Rome, Machiavelli would have approved. And of prerogative? Left was power to "repel sudden attacks" more reminiscent of Locke than of Stuart aspirations, likewise with the pardon power, and the veto over legislation which Congress could override.[215] If the executive was to share formal power in foreign affairs, in practice the energy and decisiveness characteristic of executive power would enable the president to seize the initiative when necessity required. This combination of formal limits and informal strength Harvey Mansfield memorably called "the ambivalence of executive power." And of the president, few have described it better:

> The American president is neither a revived Roman dictator nor a moderated British monarch; he is the one main feature of a new experiment in self-government which will attempt to found the first successful republic.[216]

The framers, then, brokered a delicate compromise splitting and sharing power over foreign affairs in ordinary times. In extraordinary times, we recall, Rome resorted to the dictator. The senate determined whether a threat to the republic existed and instructed the consults to appoint a dictator or, in the later republic, issued the ultimate decree and vested a consul with dictatorial powers. The American framers chose not to utilize this office, but necessities and emergencies would plague the republic they created. As the chief executive, the president naturally emerged as the preeminent power in national security. Unlike Rome, as discussed, another organ of government does not determine when an emergency exists. The president decides whether he can take emergency measures and exactly what those measures are, an issue that had generated a vast amount of scholarly literature in law and political science. It is interesting to note that Hamilton, seeking to persuade readers that executive power is not opposed to republican freedom but essential to it, pointed to the Roman dictator in the first paragraph of *Federalist* 70. He emphasized the requisite decisiveness and energy that will ensure good government but not endanger its republican nature. Energy and rapid action are desirable in the legislature, but "the energy of the Executive is the bulwark of national security." More crucially, Hamilton argued that a unitary executive would be less dangerous and more accountable to the nation than would a collective or plural executive that was customary republican practice. He addressed the fear directly, stating that no additional security from tyranny is attained by multiplying executives or dividing power between two or more men, or a council; rather, doing so diminishes democratic and

[215] For an examination of the presidential pardon power as exemplifying the Lockean prerogative, see John C. Harrison, "Pardon as Prerogative," *Federal Sentencing Reporter*, 13, no. 3–4, (2000): 147–9.

[216] Harvey C. Mansfield, *Taming the Prince: The Ambivalence of Modern Executive Power* (New York: The Free Press, 1989), xxiii, 247.

constitutional accountability.[217] Or the reverse is the case: power is more easily confined when one man holds it. *Federalist* 37 addressed the difficulties of ensuring the stability and energy essential to securing the nation from external danger while at the same time preserving liberty and republican forms. "Energy in government requires not only a certain duration of power, but the execution of it by a single hand." So ingrained was the republican suspicion of executive power especially when wielded by one person, that ten *Federalist Papers* (67 to 77) were devoted to the effort to demonstrate that "an energetic executive could be republicanized" or in Machiavelli's terminology, to merge prince with republic.[218]

The extended federal republic was a dangerous innovation that made many republicans extremely uncomfortable, even frightened, since it ran counter to all known political experience. It was thought that territories had to be empires or kingdoms. Hamilton concluded *Federalist* 1 by addressing what he admitted was the opposition's most powerful argument, that the thirteen states were too vast a territory in extent for one government and that the whole ought to be divided into separate confederacies. Voices, including distinguished ones, were heard asserting that the largest states had historically been the worst governed.[219] The step toward union, which the Federalists believed necessary for the survival of the American republic, appeared, to the anti-Federalists, to be a giant step toward an ominous concentration of power.[220] However, while the anti-Federalists were committed to individual liberty, which they believed was secured through the primacy of the states, they also wanted a union to provide defense against foreign enemies seeking to extinguish hard-won liberties. The anti-Federalists recognized the need for an effective government to provide defense against foreign enemies. State security, or the need for a republic to maintain its independence, was the issue that had launched Machiavelli's political reflections, and ultimately it brought the two sides together.[221]

[217] Here he means accountability in the court of public opinion and in legal removal from office and actual punishment.

[218] Mansfield, *Taming the Prince*, 247.

[219] Farrand, *Records* I:, 406.

[220] In Hamilton's words, the anti-Federalists "still seem to cherish with blind devotion the political monster of an imperium in imperio." *Federalist* 15. Fear of recreating a dangerous central power system dominated the ratification debate, according to Bernard Bailyn.

[221] A shared interest in commerical prosperity also brought them together. See Herbert Storing, *What the Anti-Federalists Were For* (Chicago: University of Chicago Press, 1981). It could also be stated that fear of invasion outweighed fear of the abuse of power in the minds of the anti-Federalists. It should be noted that Pocock stresses the passage from republic to empire as the crux of America's Machiavellian moment. However, as David Hendrickson has noticed, Pocock did not devote attention to the ideas that formed the "unionist paradigm" – the republican fear of internal division and foreign intervention, leading inexorably to despotism. This fear, Hendrickson argues persuasively, constitutes "the alpha and omega of American thought." Hendrickson, *Peace Pact*, 324, note 16.

## THE GHOSTS OF ROME

The framers of the American republic and the prospective founder of a Tuscan republic shared a collective historical memory and were attuned to ideological talismans.[222] Both colonists and Machiavelli had read Livy, Sallust, Cicero and Tacitus – all republicans in an era of empire who looked back with regret on a better and more honorable past.[223] The framers, therefore, knew that in Rome the middle republic had given way to the empire. Polybius, a Greek and therefore less politically nostalgic, was slightly inaccurate but prophetic in detecting a monarchic element in the office of consul. By the late republic, the institution of the dictator had been replaced by the consul, the "executive power" responsible for leading the army and waging war. The consuls possessed *imperium*, unrestricted discretionary power to do whatever the public welfare required during emergencies.[224] Before 133, the direction of diplomatic affairs had been the preserve of the senate, which also supervised public finance.[225] However, the pro consuls/provincial governors and commanders in the field had wide discretion and what amounted to absolute power within their sphere.[226] Caesar, like Pompey in 67 and 68 BC, had received an extraordinary long-term command from the people, independent of the senate. The grant of consular *imperium* to Augustus had precedents in the grants to Pompey and Caesar.[227] "Because of this Caesar could seize the fatherland," Machiavelli observed.

Today it is all too easy forget the power that Rome exercised over generations of European state makers. In fact it was the ruins, the cadences, the history of

[222] Bernard Bailyn, *Ideological Origins of the American Revolution* (Cambridge, MA: Harvard University Press, 1968), 25. Wood, "The Appeal of Antiquity," in *The Creation of the American Republic*, 48–53. The majority of colonists read classical authors in popular translations such as Thomas Gordon's *Sallust* and *Tacitus*, Basil Kennet's *Roman Antiquities*, and Edward Wortley Montagu's *Reflections of the Rise and Fall of the Ancient Republicks* (Wood, *The Creation of the American Republic*, 50).

[223] I do not mean to overstate the significance of similar reading material. The founders were read in Locke, which of course Machiavelli was not, and it is the Lockean influence that divides the founders from being colonial appendages of the country or commonwealth polemicists of early eighteenth-century Britain. In addition, the political space in which the founders operated was far different from the already unitary "national" political space of England and Wales within which the Whigs and Tories (or the "country party") battled for power. The vast difference in scale of the political unit and the types of problems faced make any family resemblance between the Tories, on the one hand, and Madison's science of the extended republic and Hamilton's political economy for instance on the other, superficial. In addition, the founders used multiple political languages – Locke, republican, political economy. The point of this chapter is to demonstrate that when it came to foreign policy, the language of the founders was partly and/or half-heartedly Machiavellian.

[224] Titus Livy 11.17, *The Rise of Rome: Books I–V*, trans. T. J. Luce (Oxford: Clarendon Press, 1998).

[225] P. A. Brunt, *The Fall of the Roman Republic and Related Essays* (Oxford: Clarendon Press, 1988).

[226] Ibid.

[227] Livy, *The Rise of Rome*.

Rome that formed the education, the political memories of statesmen and political thinkers, not the brief and dazzling experience of ancient Greece.[228] The influence Rome exerted was "also the result of the peculiar character of the literary legacy Rome had passed on to the modern world, a body of writing that was obsessed with the same questions about degeneracy that fascinated the eighteenth century."[229] In the ratification debates, the powerful opposition was there to remind the Federalists of the dangers of excessive executive power, demagoguery, and military adventurism, namely, the loss of civil liberties and the emergence of aristocratic domination.[230] For all the talk of energy and decisiveness in emergencies, they knew the dangers, for history had taught them that much. It had taught Thomas Jefferson, who "never ceased to fear that the great experiment might fail, that the United States might be overwhelmed by the pressures of the outside world and, like so many other nations, in the end forfeit its freedom for a specious security."[231] The prolongation of commands, in time made Rome servile. James Madison, the architect of the extended, empowered republic, knew what Rome had lost when it became an empire.

"Not the less true is it that the liberties of Rome proved to be the final victim to her military triumphs; and that the liberties of Europe, as far as they ever existed, have, with few exceptions, been the price of her military establishments." The founding generation, both Federalists and anti-Federalists, feared an immense concentration of power in the executive branch, which would, as before and always, constrict freedom and override the people's representatives in the interests of security. Then military spending would crowd social spending and in the end chart the course of the country. Empire abroad would destroy the republic at home.[232] It would fall to Abraham Lincoln, as commander-in-chief, to demonstrate the presidency's great potential to assume extraordinary powers during times of national emergency.[233] When he reflected on his own presidency and its significance for the history of political thought, Lincoln stated, "It has long been a grave question whether any government, not too strong for the liberties of

[228] Bailyn, *The Ideological Origins of the American Revolution* and *To Begin the World Anew*. Both the framers and Machiavelli had read (and reread) Polybius' Book VI.

[229] Wood, *The Creation of the American Republic*, 51.

[230] Bailyn, *To Begin the World Anew*, 109–15.

[231] Ibid., 59.

[232] Ibid., 115.

[233] The Civil War began while Congress was in recess, and for eleven weeks Lincoln acted as a "constitutional dictator" in the words of Clinton Rossiter. Every action Lincoln took, such as the blockade of southern ports, lacked legislative authorization. See Sanford Levinson and Jack M. Balkin, "Constitutional Dictatorship: Its Dangers and Its Design," 94 *Minnesota Law Review* 1815–1816. Clinton Rossiter, *Constitutional Dictatorship: Crisis Government in the Modern Democracies* (Princeton: Princeton University Press, 1948), 224–6; Lincoln's suspension of habeas corpus and the extent to which the suspension clause is an "emergency clause" (in that sense similar to the senatus consultum ultimum) and precisely what the clause permits remains debated. See Amanda Tyler, "Suspension as an Emergency Power," 188 *The Yale Law Journal* 600 (2008).

its people, can be strong enough to maintain its existence in great emergencies."[234]

## REASON OF STATE AND THE AMERICAN REPUBLIC

The spirit of monarchy is war and enlargement of dominion: peace and moderation are the spirit of a republic.[235]

The problem of whether to embrace reason of state or to conduct foreign relations on another basis was obvious to the nation's founders. After 1776, John Adams left for Europe with the Draft Treaty of 1776, a model commercial agreement, which the young confederation hoped would be the basis for a new enlightened mode of relations between states. Through reciprocal trading privileges for American merchants, shortsighted barriers to commercial relations would tumble then free exchange among nations promoted which in turn would engender peace rather than war.[236] The treaty was not taken seriously in a Europe that preferred its own subtle and worldly solution to the problem of international anarchy – a balance of power regulated by the rules lain down by François de la Callières.[237] After ratification, Americans had a new confidence, leading Benjamin Rush to exult:

The United States have taught the nations of the world that it is possible to terminate disputes by appeals to reason instead of by force, ... I do not despair of this mode of deciding national disputes becoming general in the course of the approaching century.

[234] "Response to a Serenade," Nov. 10, 1864, in *The Collected Works of Abraham Lincoln*, Vol. 8, ed. Roy P. Basler (New Brunswick, NJ: Rutgers University Press, 1953), 100–1. Lincoln, of course, used the extraordinary powers at his disposal to save the Union. And the singularity of Lincoln's presidency was made clear by the desuetude of the executive branch for the remainder of the century, when the Supreme Court and Congress, the two other branches, promptly checked the executive branch and proceeded to chart the course of the country. However, the subsequent steady accumulation of power in the executive branch during the twentieth century, which accelerated after World War II and occurred chiefly in the realm of foreign affairs, renewed serious ruminations on the place of executive power in the American system of republican government.

[235] Montesquieu, *The Spirit of the Laws*, book IX, chapter 2.

[236] The Plan of Treaties, July 18, 1776, *Journals of the Continental Congress*, 34 vols., ed. Worthington C. Ford (Washington: U.S. Govt. Print Off., 1904–1937), 5: 576–89. See also Onuf and Onuf, *Federal Union, Modern World*, 106–7; Felix Gilbert, *To the Farewell Address: Ideas of Early American Foreign Policy* (Princeton: Princeton University Press, 1961).

[237] The response of European diplomats to the Draft Treaty in the eighteenth century is mirrored in the reaction of an English diplomat of the "French school," Harold Nicholson, to the "ideological" style brought to Europe by President Wilson in 1919. See H. Nicholson, *The Evolution of Diplomatic Method* (London: Cassell Publishers, 1957). In addition, the distinction between the balance of power (the French system regulated by de la Callières, which traces its origins to Guicciardini) and the Machiavellian/realist school of diplomacy is important to keep in mind. See F. de la Callières, *De la manière de négocier avec les souverains* (*On the Manner of Negotiating with Princes*), (New York: Houghton Mifflin, 2000).

Rather than a jejune provincial confederation, to be greeted with a collective yawn by the courts of Europe, the new federal union foreshadowed the future of Europe, a system Rush, for one, predicted to James Madison the states of Europe would adopt to peacefully arbitrate disputes.[238] For Madison and Jefferson, a strong union would enable American diplomats to promote peace under a progressive international legal system through commercial treaties. A fair system of trade was the key to a world order based on rational and liberal principles.[239] Then the French Revolution shattered the balance of power, and American foreign policy was no longer a matter of improving upon Enlightenment civilization, but how to avoid a cauldron. The Federalists had an answer: the mother country whatever the costs, and so with the contentious Jay Treaty with Britain, in which America agreed to abjure commercial sanctions and other accoutrements of Jeffersonian commercial diplomacy, the eager Republic's efforts to transform diplomacy came to an end.[240]

Beaten in efforts to remake the world through trade and commercial sanctions and eschewing the more traditional approach of the Federalists, who, believing the republic militarily weak, thought an alliance with Britain was the only hope for survival, the Jeffersonians took refuge in isolation as the superior foreign policy doctrine. If it wouldn't transform the world, at least a studied indifference might ensure the survival of the new republic.[241] George Washington devoted his final presidential speech to foreign policy, and in his famous farewell address warned Americans to avoid entangling alliances. In it, he presented isolation as the ideal republican foreign policy and the model that the American republic would follow for the rest of the century, though the territorial extension of the republic hewed closely to the model of Roman imperialism.[242]

With multiple copies of the *Discourses* in his library at Monticello, Thomas Jefferson wrote:

[238] Benjamin Rush, "Observations of the Federal Procession in Philadelphia," July 9, 1788, in *The Letters of Benjamin Rush*, 2 vols., ed. Lyman Butterfield (Princeton: Princeton University Press, 1951), I: 473, 475. Letter of Rush to Madison, Feb. 27, 1790, *Letters of Benjamin Rush*, I: 540.

[239] Onuf and Onuf, *Federal Union, Modern World*, 155–6. See also Merrill Peterson, "Thomas Jefferson and Commercial Policy, 1783–1793," *William and Mary Quarterly*, 3rd ser., 22, no. 4 (Oct. 1965).

[240] Onuf and Onuf, *Federal Union, Modern World*, 160–3.

[241] Ibid., 163.

[242] See Walter Russell Meade, *Special Providence: American Foreign Policy and How It Changed the World* (New York and London: Routledge, 2002), which challenges the venerable canard that before the Cold War, the United States was a republic and not an empire. He traces four schools of thought about the role of the American republic in the world: (1) Hamiltonian – U.S. interests are the equivalent of business interests; (2) Jeffersonian – roughly the old-fashioned isolationist exemplary republic model; (3) Jacksonian – American security lies in the spread of its values; and (4) Wilsonian – especially the grassroots missionary activities of the early part of the twentieth century.

A strict observance of written laws is doubtless one of the high duties of a good citizen, but it is not the highest. The laws of necessity, of self-preservation, of saving our country when in danger, are of higher obligation.[243]

It would seem that those responsible for the survival of republics have elective affinities:

For where one deliberates entirely on the safety of his fatherland, there ought not to enter any consideration of either just or unjust, merciful or cruel, praiseworthy or ignominious; one ought to follow entirely the policy that saves its life and maintains its liberty.[244]

Reason of state was one of the teachings deployed to enable republics to survive in a new and threatening international environment. Various intellectual developments falling under the aegis of the Enlightenment, in particular the philosophical exposition of the law of nations by Grotius, Pufendorf, and Vattel, presented insecure republics with an option unavailable to Machiavelli. Rather than wage war against all, nations would recognize one another's sovereignty, judge wars to be just or unjust, decide the actions permissible in just wars, and accept duties and limitations on conduct. This new system of international law won adherents among the founders of the American republic from Hamilton to James Wilson to Chief Justice Marshall, who held that Congress could not violate the principles of international law unless it expressly passed legislation.[245] Enlightened republicans no longer needed to avail themselves of unclean methods, breaking faith or committing violence. Enlightened self-interest prevailed among nations as it did among citizens, but the protections it offered could not ensure the survival of an unprecedented kind of state; nor could it guarantee that leaders could jettison reason of state or that the world, even if less anarchical, was more hospitable to republics than it was in Machiavelli's day.

In the aftermath of World War I, President Woodrow Wilson presented to the war weary world a new democratic vision of international relations. The draft treaty that John Adams had been forced to abandon found renewed life in a vision of a world where the interests of self-governing peoples replace ossified war machine states.

Self governed nations do not fill their neighbor states with spies or set the course of intrigue to bring about some critical posture of affairs which will give them an

[243] Letter of Thomas Jefferson to John B. Colvin, September 20, 1810, in Merrill Peterson, *Thomas Jefferson: Writings* (New York: Library of America, 1984), 1231.

[244] *Discourses* Book III, chapter 42.

[245] Daniel G. Lang, *Foreign Policy in the New Republic: The Law of Nations and the Balance of Power* (Baton Rouge: Louisiana State University Press, 1985). James Wilson, "Of the Law of Nations," in *Selected Political Essasys of James Wilson*, ed. Randolph G. Adams (New York: A. A. Knopf, 1930), 302–3. See also the Supreme Court case of *The Nereide, Bennett Master*, 13 U.S. 388 (1815).

opportunity to strike and make conquest. Such designs are worked out only undercover.[246]

Over the course of the nineteenth century, the British constitutional monarchy made its own contribution to the enduring conundrum that vexes all proponents of popular government. The British liberal tradition of conscience in world affairs, articulated by practical politicians and humanitarians, questioned the coherence, morality, and practical effectiveness of realism and its suitability as the sole guide to foreign policy for a government premised on popular sovereignty. The great debates between Gladstone and Disraeli on the Eastern Question in 1877 articulated the dilemma of republican foreign policy – whether a government should allow its foreign policy to be guided by principles of conscience and humanity as well as calculations of power – at a remarkable level of fluency.[247]

The question of how to define a genuinely republican foreign policy endures. A foreign policy may be described as republican on account of its moral and principled content, or in reference to its fidelity to international law and contributions to its advancement, as James Madison would have wished, or on account of the decision-making process.[248] Or republics may be indistinguishable from other forms of government in action abroad, which was Machiavelli's goal. The content of the policy or the level of popular participation that went into crafting it may be the distinguishing characteristic.[249] This is not a question of metaphysics or ethics, but, as Machiavelli and the founders recognized, an eminently practical one asking whether there are modes and orders to support either definition. In the early modern period, the historian H. G. Koenigsberger writes, "[T]he participation of citizens in civic life, in the making and enforcing of laws, in agreeing to taxes and expenditure, in the taking of decisions about relations with the city's neighbors ... All this was done through dialogue." It was open-ended, risky and always in danger of being overwhelmed by its opposite, rule and servitude. "The problem was to devise some form of participatory relationship in larger political units."[250] As Machiavelli cogently observed, "A Republic Has Need of New Acts of Foresight Every Day If One Wishes to Maintain It Free."[251]

[246] Wilson, cited in Morgenthau, *Politics among Nations*, 512. After the Cold War, concentrating foreign affairs authority in the executive branch appeared to be the choice. Machiavelli's compromise was embraced, at times seemingly without the doubts he entertained.

[247] The other way to phrase the question, the one Disraeli would prefer, is: Can a government *afford* to allow its foreign policy to be guided by principles of conscience and morality as well as calculations of power? No government can afford that risk, was Disraeli's answer.

[248] See James Madison's legal brief written while he was Secretary of State, *An Examination of the British Doctrine, Which Subjects to Capture a Legal Trade, No Open in Time of Peace* (1806) and the analysis of it in Onuf and Onuf, *Federal Union, Modern World*, 201–11.

[249] Essentially the degree of democratic control.

[250] H. G. Koenigsberger, Monarchies, States Generals and Parliaments (Cambridge: Cambridge University Press, 2001) 1–2.

[251] Book III, chapter 49.

# 5

# Envisioning an Extended Republic

> But whoever is born in Italy and in Greece and has not become either an ultramontane in Italy or a Turk in Greece has reason to blame his times and to praise the others, for in the latter there are many things that make them marvelous and in the former there is nothing that recompenses them for every extreme misery, infamy, and reproach – there is no observance of religion, of laws, and of the military but they are stained with every type of filth. And these vices are so much more detestable as they are in those who sit as tribunals, command everyone, and wish to be adored.[1]

From the start of the *Discourses*, there is a preoccupation with beginnings: "What Have Been the Beginnings of Any City and What Was That of Rome" is the title of the first chapter. What follows is an exploration of how to construct a new republic based on a careful study of the institutions and policies of the Roman republic. In the manner of Brunelleschi, Alberti, Palladio, and so many other Renaissance architects who went to Rome to study its ruins so that the basilicas and temples of antiquity might rise once more, so Machiavelli pores over Livy's *The Rise of Rome* in the hope that it might be the source of a rebirth of freedom.[2] While nearly every aspect and avenue of the *Discourses* has been discussed so comprehensively there would seem to be little to add, emphasis has not been placed on one important aspect of Machiavelli's thought. This chapter is an attempt to understand the *Discourses* from the perspective of debates concerning the possibility of an extended territorial republic – in particular, the resounding solution offered by James Madison.

[1] Niccolò Machiavelli, *The Discourses on the First Ten Books of Titus Livy*, trans. and eds. Harvey C. Mansfield and Nathan Tarcov (hereinafter *Discourses*) (Chicago: University of Chicago Press, 1996), Book II, preface, 125.

[2] Filippo Brunelleschi left Florence for Rome and studied the city's ruins roughly from 1402 to 1404. Leon Battista Alberti went to Rome in 1432 and lived there intermittently for the remainder of his life. Andrea Palladio visited Rome for long periods in the 1530s and again in 1554.

## THE MADISONIAN IMPULSE

J. G. A. Pocock and Gordon Wood, in their equally magisterial works, recovered the classical republican influence on American political thought in the founding era. In consequence, the dominance of the liberal Lockean tradition among scholars gave way to a more rounded portrait of American political thought as both liberal and republican.[3] In both works, the anti-Federalists received renewed attention as the standard bearers of the classical republican tradition, which came to the shores of the Atlantic via a path that meandered from Rome to Florence and Venice to England, where Harrington and Sidney in the seventeenth century and Bolingbroke and other Tory party political thinkers of the eighteenth century explored its possibilities. Pocock gave Machiavelli the starring role in his study of the republican tradition, resurrecting a forgotten conceptual world together with its language laden with virtue and corruption. At the risk of reducing Pocock's complex and penetrating work to a sentence or two, the Machiavellian Moment first occurs in Florence in the early sixteenth century, when the invasions of Italy shatter inherited practices and beliefs about political life. Suddenly and unexpectedly, the republic's survival in time is called into question, and the inherited concepts and vocabulary appear unequal to the task. Shorn of hereditary custom and divine guidance, republics find themselves in an unprecedented situation, and Florentine political theorists, in particular Machiavelli, begin to reflect on the fundamental principles of republics – the qualities that enable them to endure the vicissitudes of secular time and fortune. This entirely new mode of thinking about politics draws on classical sources, yet is resolutely original. Centered on the experience of citizenship and the civic and individual virtue required to sustain popular government, the new mode of political thought endures beyond the moment of its birth to shape political language and thought in Puritan and Stuart England and Revolutionary America. Machiavelli is the linchpin of this critical juncture in the history of political thought because he, more thoroughly and radically than anyone else, explored the ramifications of deracinating politics from its customary and divine roots, "asking whether the *vivere civile* and its values could indeed be held stable in time."[4] *The Prince* is, among other things, a tract on innovation and

[3] J. G. A. Pocock, *The Machiavellian Moment: Florentine Political Thought and the Atlantic Republican Tradition* (Princeton: Princeton University Press, 1983); Gordon Wood, *The Creation of the American Republic 1776–1787* (Chapel Hill: University of North Carolina Press, 1967); Bernard Bailyn, *The Ideological Origins of the American Revolution* (Cambridge, MA: Harvard University Press, 1967). The preeminent exponent of the liberal strain in American political thought remains Louis Hartz, *The Liberal Tradition in America: An Interpretation of American Political Thought since the Revolution* (New York: Harcourt Brace, 1955).

[4] Pocock, *The Machiavellian Moment*, 83. He continues, "At both practical and theoretical levels, the conceptual vocabulary of 'the Machiavellian moment' discharged a function and has a history which can be written" (84). More specifically, Pocock argues that in 1512 and 1527–30, the Florentine republic's inability to control its external environment (i.e., its military weakness in the face of war and invasion) as well as its inability to "harmonize its internal civic relationships"

individual virtue as a substitute basis for political authority that is usually founded on custom.[5] Exploring the founding and rise of Rome through its accidental constitution and class strife, the *Discourses* is a "drastic experiment in secularization."[6]

Just as there was a Machiavellian Moment, a critical juncture in the history of political thought when all accumulated wisdom seemed inadequate to the task, so there was what might well be termed a "Madisonian Moment."[7] In 1787, after the Jay-Gardoqui conflict and an armed rebellion against the Massachusetts state government, the Confederation of the thirteen colonies, a league of sovereign states, was "tottering to its foundations."[8] As noted in Machiavelli's analysis of the Tuscan league in Chapter 2, small republics traditionally expanded by forming leagues or confederations with other sovereign republics. The Confederation had proven unequal to the task:

brought about a collapse of *vivere civile*. These failures of what I would term foreign and domestic political life "touched off a complex crisis in thought; and in each crisis it is possible to study what was happening in contemporary minds as they sought to employ the epistemology of the particular, the ethical political categories of Aristotelian citizenship and the radically new terminology which some thinkers were developing in order to understand political behavior at its least legitimated and rational." Pocock, *The Machiavellian Moment*, 117. As will be seen, I view the problem or the crisis in thought as a crisis of republics related to size, and I see Machiavelli as seeking to develop new orders to enable republics to control their external environment (as Pocock would say) by reforming Florence's foreign policy, in particular its territorial expansion, and by developing institutions to preserve popular rule across an extended territory. Thus, my analysis of Machiavelli's Madisonian Impulse is less abstract, or, perhaps better said, the problem Machiavelli faced and sought to solve is less abstract and more immediate – namely, can a republic be larger and stronger?

[5] In Chapter 1, I claim that Pocock misses or chooses to ignore the territorially acquisitive aspect of *The Prince*.

[6] Pocock, *The Machiavellian Moment*, 186–91. Intriguingly, Pocock argues, contrary to conventional wisdom, that the *Discourses* is more subversive than *The Prince*, which has not left the realm of the sacred due to its emphasis on a leader/legislator/prophet figure.

[7] The use of this term is not meant to imply that Madison's constitutional thought is reducible to a specific date, such as the months of the Convention, or a specific work, such as *Federalist* 10. Rather, the term is used to capture a process in the history of republican thought and the importance of Madison's role in it. Madison's contribution to the history of political and constitutional thought is wide ranging. The term *moment* is used in order to highlight one aspect of his thought, his theory of extended republic, just as "Machiavellian Moment" was used "to isolate a process in the history of ideas." Thus the term bears something in common with Jack Rakove's use of the term in his article "The Madisonian Moment," *University of Chicago Law Review* 65 (1988): 473–505. Rakove's moment referred to the attempt to locate Madison's authoritative interpretation of the Constitution, which is dissimilar to the moment posited here. More relevant is Rakove's recommendation that an attempt to find the historical Madison's interpretation of the Constitution "requires relating to the familiar arguments of *The Federalist* to the more complex body of ideas and concerns from which they emerged and of which they were only a partial expression." Rakove, "The Madisonian Moment," 475.

[8] Letter from James Madison to Edmund Randolph, February 24, 1787, quoted in Lance Banning, *The Sacred Fire of Liberty: James Madison and the Founding of the Federal Republic* (Ithaca: Cornell University Press, 1998), 106. David C. Hendrickson, *Peace Pact: The Lost World of the American Founding* (Lawrence: University of Kansas Press, 2003).

No money is paid into the public treasury; no respect is paid to the federal authority. Not a single state complies with the requisitions, several pass them over in silence, and some positively reject them. The payments ever since the peace have been decreasing and of late fall short even of the pittance necessary for the civil list.[9]

Not only was the present form of union ineffective, unchecked majorities in state legislatures were running rampant over the rights of minorities. It was reasonable to fear that such democratic excesses, though well intentioned, would provide ample reason for many people to question the radical experiment with democracy and favor a return to hereditary monarchy. For all its faults, monarchy provided a certain security for private rights, and fears of counterrevolution mounted.[10] James Madison was unique in perceiving that the excesses in state legislatures were directly tied to flaws in the very structure of the Confederation, stating that such flaws "were also more responsible than any other fact for the popular abuses in the states and thus for growing doubts about the benefits of the republican experiment itself."[11] Unfortunately, history offered no apparent remedies for the Confederation's weaknesses, an alarming state of affairs confirmed by the study of ancient and modern confederacies Madison undertook in preparation for the Constitutional Convention.[12] There seemed to be no solution for the problem of authority, whether a higher sovereignty might resolve differences among the sovereign states, a division of authority that conventional wisdom deemed an impossibility.[13]

The crisis of the American Confederation was more than an incident in a former British colony an ocean away from the centers of European civilization. It was a decisive moment in the history of republican government and of political thought. History offered no example of a territorially extensive republican government. *Federalist* 14, tellingly entitled "Objections from Extent of

[9] Letter from James Madison to Edmund Pendleton, February 24, 1787, quoted in Banning, *The Sacred Fire of Liberty*, 106.

[10] Banning, *The Sacred Fire of Liberty*, 250. Immediately before the Constitutional Convention, Madison worried about growing disenchantment with republican government based on the inability of small confederations to deal with civil unrest and rising support for a monarchical government. As Madison wrote to George Washington, "Those who may lean towards a monarchical government and who, I suspect, are swayed by very indigested ideas will of course abandon an unobtainable object whenever a prospect opens of rending the republican form competent to its purposes." Letter from James Madison to George Washington, February 21, 1787, quoted in Banning, *The Sacred Fire of Liberty*, 123.

[11] Banning, *The Sacred Fire of Liberty*, 120.

[12] Madison prepared notes on ancient and modern confederacies to prepare himself for the Constitutional Convention. These notes influenced the *Federalist Papers* Nos. 18, 19, 20, and 21, which he wrote in conjunction with Alexander Hamilton on republican confederations. Alexander Hamilton, James Madison, and John Jay, *The Federalist with Letters of "Brutus,"* ed. Terence Ball (Cambridge: Cambridge University Press, 2003) (hereinafter Ball ed.), 79–98.

[13] See Bailyn, *The Ideological Origins of the American Revolution*, 1968; Alison L. LaCroix, *The Ideological Origins of American Federalism* (Cambridge, MA: Harvard University Press, 2010).

Territory Answered," is a rare window into the intellectual atmosphere of another age and the strange darkness in which adherents of government by the people found themselves. It was generally believed that republics could only extend over a small territory among a small number of people, and furthermore, republics were uniformly portrayed in an unfavorable light by political thinkers who themselves were the subjects of monarchs.[14] *Federalist* 18 surveyed the Achaean league in classical Greece, which illustrated the tendency of confederations to lapse into anarchy. *Federalist* 19 observed that the Germanic league was a deformed political monster. Poland was scarcely more edifying, and the Swiss had so little in common that their organization scarcely deserved to be described as a confederacy. The great hope of modern republicans, the United Provinces of the Netherlands, featured all the deficiencies of ancient confederacies and endured thanks to the existence of the Stadholdership.[15]

Theoretical reflection offered no reassurance, either. Political theorists were adamant that republics could not be territorially expansive.[16] No less an authority than Montesquieu insisted that free republican states, like the Swiss Cantons, must be small:

> By its nature a republic has but a small area, otherwise it cannot continue to exist . . . In a large republic, the common good is sacrificed to any number of other considerations; it is subject to exceptions; it comes to depend upon accidents. In a small republic the public

[14] *Federalist* 14 also emphasizes that republics are unfairly criticized for the faults of direct democracies.

[15] The stadholder and surrounding powers assure the Union, but those powers keep the provinces weak. *Federalist Papers*, Ball ed., 92. See also Hamilton on the Belgic confederacy: "Such is the nature of the celebrated Belgic confederacy, as delineated on parchment. What are the characters which practice has stamp upon it? Imbecility in the government; discord among the provinces; foreign influences and indignities; a precarious existence in peace, and peculiar calamities from war." *Federalist* 20, Ball ed, 89–93, "The Same Subject Continued: The Insufficiency of the Present Confederation to Preserve the Union."

[16] With the exception of David Hume. The extent to which Hume's essays influenced James Madison has been studied and debated at length. See "Of the Independency of Parliament," "Of Parties in General," and "Idea of a Perfect Commonwealth," in *Essays: Moral, Political, and Literary*, ed. Eugene F. Miller (Indianapolis: Liberty Fund Press, 1985), 43, 55–6, 528. See Douglass Adair, "That Politics May be Reduced to a Science: David Hume, James Madison, and the Tenth *Federalist*," *Huntington Library Quarterly* 20 (1957): 343–60; Theodore Draper, "Hume and Madison: The Secrets of Federalist Paper No. 10," *Encounter* 58 (1982): 34–47; and Drew R. McCoy, *The Last of the Fathers: James Madison and the Republican Legacy* (Cambridge: Cambridge University Press, 1989). According to Banning, recent scholars agree that Madison's concept of extending the sphere of popular government to include multiple interests does not share much of substance with Hume's analysis of large republics. Madison took from Hume a typology of faction. "But Hume's analysis of factions was not explicitly concerned with majority violations of private rights, nor did Hume discuss the multiplicity of factions in the modern state. The burden of Madison's analysis was therefore quite distinctive, as was his conception of the proper structure of the large republic." Banning, *The Sacred Fire of Liberty*, 468.

good is more keenly felt, better known, closer to every citizen; abuses are spread less widely, and consequently, are less tolerated.[17]

During the Virginia Ratifying Convention, the erudite author of Virginia's Declaration of Rights, George Mason, observed, "Popular government can only exist in small territories. Is there a single example, on the face of the earth, to support a contrary opinion?"[18]

History and theory were in agreement: constructing an extended republic was as futile as trying to square the circle. The Constitution's opponents cited Montesquieu time and again to argue that a vast territory could not be governed by a republic.[19] The inability of republics to encompass a large territory was the prime reason republicanism had been relegated the backwater of political development. From the sixteenth century onward, as states grew larger, only monarchies could govern large territories effectively. The argument that an extended republic was impossible was "the most profound objection to the Constitution."[20]

Madison's counterintuitive answer was a turning point in the history of political thought. The reality was at odds with theory, Madison claimed in *Federalist* 10. Popular governments were stronger and more enduring when they were larger in size. Making an important distinction, he redefined republic as "a government in which the scheme of representation takes place." At once the turbulent direct democracies of Greece, which were the standard examples of Montesquieu, became irrelevant. Representation moderates and distills public opinion and furthermore works best in a large republic where it is more difficult for corrupt leaders to seize control. "In the extent and proper structure of the

[17] Charles de Secondat, Baron de Montesquieu, "The Spirit of the Laws" in *Montesquieu, Selected Political Writings*, trans. and ed. Melvin Richter (Indianapolis: Hackett, 1990), book VIII, chapter 16, 170.

[18] George Mason, "Objections to the Proposed Federal Constitution," in *The Documentary History of the Ratification of the Constitution*, eds. Merrill Jensen et al. (Madison: State Historical Society of Wisconsin, 1976) 13: 348–51.

[19] Moreover, popular government rested on consensus, and the vast territory covered by the thirteen states caused many to ask: "Would not the sheer size of the country make it impossible to achieve the consensus needed to sustain government?" Bernard Bailyn, *To Begin the World Anew* (New York: Knopf, 2003), 117. For more on the small republic argument, see also Wood, *The Creation of the American Republic*.

[20] Banning, *The Sacred Fire of Liberty*, 204. So powerful was the criticism based on size that additional papers were devoted to it, including *Federalist* 9 by Hamilton, which argues that the new union is analogous to Montesquieu's "confederated republic." Hamilton states, "The definition of a *Confederate Republic* seems simply to be, an 'assemblage of societies' or an association of two or more States into one State." He continues, "The proposed Constitution, so far from implying an abolition of the State Governments, makes them constituent parts of the national sovereignty by allowing them a direct representation in the Senate, and leaves in their possession certain exclusive and very important portions of sovereign power." Ball ed., 39. Madison's *Federalist* 14 addresses the objection that the extent of territory was too vast to be governed as a republic. Ball ed., 59–64. See also Herbert Storing, *What the Anti-Federalists Were For* (Chicago: University of Chicago Press, 1981).

Union, therefore, we behold a republican remedy for the diseases most incident to republican government."[21] A compound, but not consolidated, republic offered more protections from majority abuses. Faction, a group motivated by its own good rather than the common good, had long been the mortal illness of republics. The very multiplicity and diversity of factions found in a large territory composed of various regions, religious sects, and economies would make it unlikely any one faction would dominate.[22] Larger electoral districts would also favor enlightened representatives.[23] "Well constructed" republics could extend across a continent "by a judicious modification and mixture of the federal principle."[24] Only a representative republic constructed according to federal principles, with states maintaining some powers – a whisper of the federative republics of old – could extend without concentrating power in distant rulers or shattering into anarchy. Thus, the received wisdom about republics was false. Republicanism, government by the people, would endure and take on a renewed life in the modern age. Monarchy would no longer dominate political life and discourse. This was what has been called "the Madisonian Moment."[25]

Niccolò Machiavelli had a Madisonian impulse. It will be argued that Machiavelli deserves to be recognized as the first modern political theorist to envision the possibility of a republic with a large population extending over a wide territory. Envisioning the possibility does not mean that he settled the issue as decisively as did Madison. But if we reconsider Machiavelli's thought as an effort to resolve the same problem, it acquires an altogether new allure because we witness an exceptional political imagination roaming beyond the boundaries of the city-state world that shaped and constricted the imagination of contemporaries.[26] Machiavelli could not avail himself of the richness of political ideas elaborated in reaction to the religious wars, the English civil war, and the

[21] *Federalist* 10, Ball ed., 46.

[22] According to Banning, Madison's experience in Virginia regarding state support for religion teachers – a struggle in which no one sect had the majority and none was able to form an alliance – made him realize that the multiplicity of sects could do what no appeal to revolutionary principle had managed, to block the measure. "He leaped to the conclusion – in the face of the prevailing wisdom – that private liberties and public good might both be safer in a large than in a small republic." Banning, *The Sacred Fire of Liberty*, 207–8.

[23] It is easy to misread Madison as recommending a consolidation of governmental activity at the national level, and many readers have done so. Even though the best or most enlightened representatives would be sent to Congress, representatives in state legislatures would affect the lives of Americans more directly and more often.

[24] *Federalist* 51. Ball ed., 251–5.

[25] Rakove, "The Madisonian Moment," 473–505.

[26] For devotees of popular government, the early modern period is not an especially satisfying moment in the history of political thought. It is much more rewarding to study a progression of ideas that eventually emerge victorious, which is why the narration of the social contract tradition maintains a steady appeal. The regression and retreat of republicanism in the early sixteenth century is less than triumphant, and though the thought of the era was rehabilitated by Felix Gilbert and then by J. G. A. Pocock, the fact that popular government went into retreat for

Enlightenment. But the fact that he had the idea, that he wrestled with it, even if he was unable to bring it to full fruition, ought not to be forgotten:

> Although this enterprise may be difficult, nonetheless, aided by those who have encouraged me to accept this burden, I believe I can carry it far enough so that a short road will remain for another to bring it to the destined place.[27]

If we read the *Discourses on Livy* as if Machiavelli were struggling to solve the same problem Madison faced, the problem of the extended republic, the work takes a new place in the history of political thought.

The science of politics has progressed, Alexander Hamilton observed, doubtless referencing the Enlightenment, to find "wholly new discoveries."[28] These new discoveries – checks and balances, judicial courts, and the representation of the people by an elected legislature – are the powerful means by which republics can be improved and renovated for modern times.[29]

> Although the envious nature of men has always made it no less dangerous to find new modes and orders than to seek unknown waters and lands, because men are more ready to blame than to praise the actions of others, nonetheless, driven by that natural desire that has always been in me to work, without any respect for those things that I believe will bring common benefit to everyone, I have decided to take a path as yet untrodden by anyone.[30]

The previous chapters discussed Machiavelli's territorially expansive republic and recommendations for foreign affairs based on Roman institutions and practices. His appreciation for Rome's division of power in foreign affairs finds its complement in his attempt to modernize domestic institutions. France reveals itself to be a territorial state that manages to preserve freedom and prevent domination by the rich and powerful. The tribunate should be revived in a way that disrupts the balance of the mixed regime through a turbulent bargaining process. In addition, citizenship should be expanded and a popular army embraced. In turn, people who have given military service will be empowered to use their civil and political rights.

We have seen how Machiavelli used *The Prince* to persuade the Medici to assemble a state in Tuscany and central Italy along the lines of the composite monarchies taking shape and encircling the Italian peninsula. Potentially, a charismatic political leader could assemble a composite state rooted in popular rebellion, overcoming the common opposition between aggrandizing princes and local liberty. This state would be constructed of various parts on the ruins of

generations and did so in part because republics were unable to expand territorially, has not received sufficient attention.

[27] Book I, preface.

[28] The choice of the word *discoveries* recalls Machiavelli's declaration in the preface to Book I that he too is engaged in a process of discovery. *Federalist* 9, Ball ed., 36.

[29] "They are the means, and powerful means, by which the excellences of republican government may be retained and its imperfections lessened or avoided." *Federalist* 9, Ball ed. 36.

[30] Book I, preface, 5.

the old republics and principalities of central Italy, and it would not remain in the hands of one prince. If the reordering of a composite republic in Tuscany must occur under the auspices of one virtuous individual, educated in ancient politics, it must not long remain so. Power must pass from the one to the many. Founders should be alone because of the diverse opinions of the many. "But the thing itself is to last long, not if it remains on the shoulders of one individual, but rather if it remains in the care of the many and its maintenance stays with the many."[31] A good man can revive a corrupt polity, but the community together sustains good orders. It is wise "not to have one prince who governs prudently while he lives, but one individual who orders it so that it is also maintained when he dies."[32]

Machiavelli's goal is to found a state on the people in contrast to composite monarchies founded on elites. "If princes are superior to peoples in ordering laws, forming civil lives, and ordering new statutes and orders, peoples are so much superior in maintaining things that without doubt they attain the glory of those who order them."[33] "If someone wished, therefore, to order a republic anew," one must follow Machiavelli's peregrinations into the Roman republic's modes and orders, the exploration of a political terrain unknown in the modern world. The republic Machiavelli sees ahead is unlike any other in his era, an extended territorial republic reaching over city walls from the Apennines to the Adriatic.[34]

The eminent historian of early modern Europe, H. G. Koenigsberger observed that "[f]or republics to take the offensive into modernity the first needed change was more democracy, to admit more than the republican elite into the process of government; second, the extension of the concepts, institutions, and ideology to large states."[35] Moreover, city-states, the traditional environment of republican government, could not command the human and material resources at the disposal of larger monarchies.[36] Therefore, "The problem was to devise some form of participatory relationship in larger units."[37] A refashioned territorial citizenship and institutional devices to render republican foreign policy effective were significant first steps.[38] But the most grueling work – how to enable large numbers of ordinary people "to reason

[31] Book I, chapter 9.
[32] Book I, chapter 11.
[33] Book I, chapter 58. On the fact that republican Rome came to greatness, "That cannot arise from anything other than that governments of peoples are better than those of princes."
[34] It is likely that the Tuscan republic Machiavelli envisioned would have had the same boundaries as Leo's territorial state attempted to assemble from 1513–17, embracing the Romagna in the Apennines and Urbino by the Adriatic.
[35] H. G. Koenigsberger, "Republicanism, Monarchism, and Liberty," in *Royal and Republican Sovereignty in Early Modern Europe*, ed. R. Oresko (Cambridge: Cambridge University Press, 1997).
[36] Wim T. Blockmans, "State Formation in Preindustrial Europe," in *Cities and the Rise of States in Europe A.D. 1000 to 1800*, ed. Charles Tilly (Boulder: Westview Press, 1994), 245.
[37] Koenigsberger, "Republicanism, Monarchism, and Liberty."
[38] See Chapter 2 on citizenship and Chapter 4 on reinventing republican foreign policy.

about public defense or public offense" – lay ahead.[39] That was only the beginning of the odyssey, for in order to extend the practices and institutions of urban republics across large states, one would have to devise participatory practices or representative institutions that would work across a territorial landscape. Can republican politics as the art of the city be applied to a larger territory? This was one of the great, classic problems of politics, ancient, medieval, and modern. It was the third problem Machiavelli confronted in his enterprise to plan a composite territorial republic.[40]

## CONSIDERATIONS

In chapter 9 of *The Prince*, "On the Civil Principality," Machiavelli tentatively broaches the subject that he will explore in the *Discourses*: the possibility of combining the new princely territorial state with the city-state tradition. The crucial element of popular government, the type Machiavelli wished to preserve and renovate, is often explained by the term *vivere civile*, which signified a variety of things by the early sixteenth century, most commonly a civic life or a life of civic involvement in government affairs (in contrast to a contemplative life), and the constitution that permitted such a life to flourish.[41] More directly, however, Machiavelli captures what he means by *vivere civile* or free way of life, by describing what a people lose when governed by a prince for many years. "The same happens to a people: since it is used to living under a government of others, *not knowing how to reason about either public defense or public offense*."[42] A collectivity deliberating (or engaging in public reason) together about public matters, both domestic and foreign, is a practice peculiar to popular

[39] "Although this enterprise may be difficult, nonetheless, aided by those who have encouraged me to accept this burden, I believe I can carry it far enough so that a short road will remain for another to bring it to the destined place." Book I, preface.

[40] As Athanasios Moulakis notes, this is no revival of Aristotle. "The decisive novelty in Florentine republican thought is not the revival of ancient republicanism, but the advocacy of a new republicanism – a republicanism having much in common with other forms of the emerging modern state." See "Realist Constitutionalism," in *Renaissance Civic Humanism Reconsidered*, ed. James Hankins (Cambridge: Cambridge University Press, 2000). Once we admit this, we do not have to explain away those parts of Machiavelli that cannot be integrated into Aristotelian civic humanism, as Baron, Skinner, Gilbert, and Pocock try to do.

[41] Hans Baron, *The Crisis of the Early Italian Renaissance: Civic Humanism and Republican Liberty in an Age of Classicism and Tyranny* (Princeton: Princeton University Press, 1966). Felix Gilbert, *Machiavelli and Guicciardini: Politics and History in Sixteenth Century Florence* (Princeton: Princeton University Press, 1965), chapter 1, "Florentine Political Institutions, Issues, and Ideas at the End of the Fifteenth Century." See also Felix Gilbert, "Florentine Political Assumptions in the Period of Savonarola and Soderini," *Journal of the Warburg and Courtauld Institutes* 20 (1957): 187–214. John Najemy, "Civic Humanism and Florentine Politics," in *Renaissance Civic Humanism Reconsidered*, ed. James Hankins (Cambridge: Cambridge University Press, 2000), 75–104.

[42] "Neither knowing princes nor known by them, it quickly returns beneath a yoke that is more often heavier than the one it had removed from its neck a little before." Book I, chapter 16, 44.

government and its distinguishing feature. Unlike *The Prince*, the vocabulary of the *Discourses* draws on the tradition of civic humanism, making use of terms such as *vivere civile, bene commune*, *equalità, libertà*, and *vivere politico*. However, the reappearance of traditional terminology does not signify that the *Discourses* is any less innovative a work. Machiavelli uses the vocabulary of city-state republicanism in a critical and questioning way, seeking to enlarge its boundaries conceptually so that republics may enlarge territorially.[43]

The more recent Florentine past could offer some limited guidance. In the late medieval period, Florence was governed as an association of trade and manufacturing corporations.[44] This democratic guild republicanism of the late Middle Ages boasted impressive levels of popular participation.[45] The character of equality as well as a populist ethos distinguished guild republicanism from what might be termed civic (or classical) republicanism, which took hold in the fourteenth century after the failed Ciompi Revolt of 1376–81.[46] However, in the sixteenth century, one needed to do more than look back to the populist Florence of the guilds, for the medieval republic was precisely the sort of small, urban community all but swept away by the changes in the intervening centuries, in particular by the rise of regional powers in Italy and the conquest of the countryside. In the post-1494 era, the challenge for political thinkers was to reinvent republicanism, to refashion its institutions, practices, ideology, and social relations for larger states. This problem of the extended republic was multifaceted. First, it encompassed the design of participatory practices and concomitant institutions in order to involve the masses in politics. Second, it involved exploring ways of preventing tyranny and oligarchy, both of which would be more tempting and more dangerous in a large state. Third, one had to determine how to control the deadly disease of faction and maintain the consensus necessary to sustain free government. With respect to the last conundrum, Machiavelli

"Questo medesimo interviene a uno popolo il quail, sendo uso a vivere sotti i governi d'altrui, non sappiendo ragionare né delle difese o offese publiche, non conscendo i princìpi nè essendo conosciuto da loro, ritorna presto sotto uno giogo, il quail il più delle volte è più grave che quello che poco innanzi si avea levato d'in sul collo." Niccolò Machiavelli, *Discorsi sopra la prima Deca di Tito Livio*, 2 vols., ed. Francesco Bausi (Rome: Salerno Editrice, 2001) (hereinafter Bausi ed.), I: 100.

[43] Elena Fasano Guarini was the first to notice the fact that Machiavelli "questions some of the fundamental premises of the city-state republican ideology." "Machiavelli and the Crisis of the Italian Republics," in *Machiavelli and Republicanism*, eds. Q. Skinner, G. Bock, and M. Viroli (Cambridge: Cambridge University Press, 1990), 34. Guarini sees Machiavelli moving away from the republican tradition but contends that in the end he "does not make a radical break with it." My examination of the *Discourses* is inspired by her observations. I do believe Machiavelli went further in exploring a territorial republic than she appears to acknowledge, though I agree he did not make a complete break.

[44] Riccardo Fubini, *Italia Quattrocentesca* (Milan: FrancoAngeli, 1994), 31, who cites the *Statuti del Capitano del Popolo* of 1355.

[45] Daniel Waley, *The Italian City Republics* (London: Longman Press, 1978).

[46] Classical or civic republicanism was more aristocratic and imperialist than the medieval guild republic.

declared that consensus was overrated. Open but controlled conflict between minority elites and the majority of ordinary people would sustain freedom. James Madison would flout conventional wisdom and embrace factions as the lifeblood of a stable republic. James Madison and the other Founders of the American republic faced and overcame these nearly insuperable obstacles to great acclaim. The fact that Machiavelli attempted to face the same challenge has been overlooked.

The composition of Book I, chapter 8, was an extraordinary moment in the history of political thought, on par with Plato's writing of the death of Socrates, as common people and the privileged elite arrived on the stage of Rome and the world in one grand and dramatic scene: "And the two came out in public confronting each other, the dictator in the midst of the nobles and Manilus in the midst of the plebs." This scene encapsulates the entrenchment of opposition between the great and the people, which is Machiavelli's major domestic discovery ("the Roman plebs had equal command with the nobility").[47]

## FRANCE: THE MODERN KINGDOM

In Italy beginning in 1500, increasing in intensity through the century and reaching a fever pitch after 1530, political thinkers in Italy fixated on the Republic of Venice.[48] Venice was the inspiration for the constitution Florence adopted after the expulsion of the Medici in 1494. This constitution *alla viniziana* encompassed a *consiglio grande*, a *signoria*, and a *gonfaloniere*, thus allotting a role for the many, the few, and the one respectively, in such a way as to parallel the equipoise of the Venetian constitution.[49] The position of

[47] Book III, chapter 19. I think this quote demonstrates that Machiavelli believes that the common people had power in Rome, more than they had in Florence in his lifetime.

[48] See Felix Gilbert, "The Venetian Constitution in Florentine Political Thought" in *Florentine Studies: Politics and Society in Renaissance Florence*, ed. Nicolai Rubinstein (London: Faber and Faber, 1968), and William J. Bouwsma, *Venice and the Defense of Republican Liberty* (Berkeley: University of Califorina Press, 1968). Florentine thinkers in the *quattrocento* were unfamiliar with Polybius' sixth book and viewed Venice in light of civic humanism and Platonic thought. The mixed regime/Polybian view of Venice began to take hold in Florence in the sixteenth century. Gilbert, "The Venetian Constitution in Florentine Political Thought," 463–500.

[49] Gilbert, *Machiavelli and Guicciardini*, chapter 1, especially 9–11. Venice held a special allure for Florence's elite, the optimates or *ottimati*, who wished to play a greater role in the government of Florence than that allotted to them by the Medicean regime. The *ottimati* imagined themselves a political aristocracy, like the aristocracy of Venice, and accordingly envisioned reducing the role of the *popolo* in Florentine government. The Florentine elite, then, viewed Venice more as an example of aristocratic government than as the ideal mixed regime because a mixed regime entails a political role for the many equal to that allotted for the one and the few. Felix Gilbert, "Bernardo Rucellai and the Orti Oricellari: A Study on the Origin of Modern Political Thought," *Journal of the Warburg and Courtauld Institutes* 12 (1949): 101–31, and *Machiavelli and Guicciardini*, 80–1.

*gonfaloniere for life*, which Piero Soderini took in 1502, was modeled on that of the Doge (duke) of Venice. It should be noted that membership in the *consiglio grande* was open to the *popolo*, or nonelite citizens, a decision that symbolized a continued belief in the importance of ruling and being ruled in turn and the benefits of widespread participation. This decision to favor the Florentine tradition of *governo largo*, and the principle on which it rested, was to come under close scrutiny in succeeding years, and with each year the myth of Venice became more firmly fixed in the firmament of political thought.[50] For Italian political thinkers, the Venetian constitution represented a refuge from the mercurial gusts of fortune; its vaunted stability enabled it to ride above time. "Gasparo Contarini, Donato Giannotti, Giovan Maria Memmo, Bartolommeo Cavalcanti, Sebastiano Erizzo, and Paolo Paruta were among the best-known of a train of thinkers for whom the Venetian constitution was the supreme political construct. It was a wall against the forces of disorder."[51] Machiavelli, however, consistently criticized the Venetian republic. Its aristocracy was not a true aristocracy but a mercantile one. It did not admit foreigners to honors. Its acquisitions were held tenuously. Lastly, its mainland empire did not become one organic and growing state, in contrast to the Roman republic.[52] While so many of Machiavelli's fellow Florentines and political thinkers focused on Venice, Machiavelli, idiosyncratically or brilliantly, chose to look elsewhere.

Extended, unified, and free, France was the opposite of conquered, divided, war-torn Italy. France embodied the new phenomenon of the territorial state.[53] Machiavelli's apprehension of the large territorial state as the critical political form of the future is one of the most innovative elements in his thought. The old city-state world was dead, "[a]nd truly no province has ever been united or happy unless it has all come under obedience to one republic or to one prince, as

[50] Gilbert, *Machiavelli and Guicciardini*, 9–10. *Governo*, a word analogous to *constitution*, could be either *largo*, open to many to enjoy political rights (though still limited to those who had citizenship) or *stretto*, closed to a limited group of citizens.

[51] Lauro Martines, *Power and Imagination: City States in Renaissance Italy* (Baltimore: Johns Hopkins University Press, 1988).

[52] See Book I, chapter 55 on the characterization of the Venetian aristocracy as mercantile rather than feudal. See Book I, chapter 6 for the criticism of Venice's immigration policy and fragile mainland empire.

[53] The significance of France for Machiavelli's political thought is overlooked by the majority of leading scholars. As for the choice of the term *modern state* as coextensive with *territorial state* used elsewhere to describe the novel form of political organization that came to being in early modern Europe, this is not meant to refer to the nineteenth- and early-twentieth-century European nation-state. Other terms used to describe the early modern territorial state include *sovereign territorial state* (Thomas Ertman), *organic state* (John Hall, Michael Mann), and *national state* (Charles Tilly, Patricia Crone). On the use of *modern state* to describe the new political form that arose across Europe circa 1500, see Werner Naf, "Fruhfromen des 'modernen Staates' im Spatmittelalter," in *Die Entstehung des Modernen Staates*, ed. Hans Hofmann (Koln: Kiepenheuer & Witsch, 1967), 101–14.

happened to France and to Spain."[54] It is well established that Machiavelli, who had studied France while there on diplomatic missions, admired it as a united territory. France was indicative of developments underway, the assemblage of the large territorial state, the powerful new creature transforming European politics.[55] But France was intriguing for another reason. France not only was a large extended territory; it was free. Liberty was found within its borders. Civic humanism drew a sharp contrast between freedom, which existed only in a municipal republic, and tyranny, which encompassed government by a lord, signore, prince, or single man. The rule of one man meant tyranny; the rule of the many meant freedom. The civic humanist tradition could not classify France precisely. If the goal was to reconcile principality and republic, and overcome the traditional opposition between the two, one had to look to France.[56]

In the early modern period, *kingdom* meant the perpetuation of estates and representative institutions. The kingdom of France Machiavelli visits is not the absolute monarchy of the Bourbons, the royal France living on in popular memory, but the earlier Valois France – the old France of independent municipalities and a restive nobility, a complex state riddled with variegated powers, towns, religious orders, and nobility, crisscrossed by laws, inherited privileges, and rights. Machiavelli first visited France in 1502 and wrote numerous legations back to Florence. The veracity of his observations on France has been contested.[57] It is quite possible that the freedom he thought he espied did not exist, but what concerns us here is not the reality of France, but what Machiavelli thought he saw there: freedom in an extended territory.

In the *Discourses* Book I, chapter 2, Machiavelli writes that he wishes to discuss those cities "that had a beginning far from all external servitude and were at once governed by their own will, either as a republic or as a principality."[58] Two points are important: Machiavelli is discussing what we might term "free states/cities" (those that had an origin, *principio*, far from *servitú esterna*, domination by another city or state) and in so doing he is reverting to the old, fourteenth-century conception of liberty meaning freedom from domination by a foreign power.[59] It is also worth noting that principalities and republics are

[54] Book I, chapter 12, 28. In the *Discourses* Book I, chapters 10 and 12, Machiavelli praises Rome in much the same way he praises France in *The Prince*.

[55] Gennaro Sasso, *Niccolò Machiavelli* (Bologna: Il Mulino, 1980), 353–6.

[56] This we know from Machiavelli's statements about wishing to combine the effectiveness of principalities in foreign affairs with the advantages of domestic freedom.

[57] Thomas Ertman, *Birth of the Leviathan: Building States and Regimes in Medieval and Early Modern Europe* (Cambridge: Cambridge University Press, 1997).

[58] Book I; chapter 2,10, "E parlerò ki quelle che hanno avuto il principio lontano da ogni servitù esterna, ma si sono subito governate per loro arbitrio o come republiche o come principato." Bausi ed., 17.

[59] See Alison Brown, "City and Citizen: Changing Perceptions in the Fifteenth and Sixteenth Centuries," in *City States in Classical Antiquity and Medieval Italy*, eds. A. Molho,

held as equivalent. Both can be autonomous states, and this is crucial to Machiavelli and his modification of the Polybian conception of mixed government in Book I, chapter 2. In chapter 9 of *The Prince*, "On the Civil Principality," liberty or freedom (*libertà*) means something unavailable in a principality, for "from these two different appetites there arises in the city one of three effects: principality, or liberty, or license."[60] Gennaro Sasso noticed and explored the close connection between *The Prince*, chapter 9, and the *Discourses* Book I, chapter 16, which discusses France.[61] In *The Prince*, chapter 9, Machiavelli uses *liberty* to mean a particular form of government – one that differs from the form of government expressed by the term *principality*. Principality, rather than anarchy or liberty/republic, results from one of two situations: when the great "see that they cannot resist the people, they begin to polish the reputation of one of their own, and they make him prince so as to be able, under his shadow, to satisfy their appetite."[62] A principality also occurs when the people "see that they cannot resist the great, polish the reputation of one man, and they make him prince in order to be defended by means of his authority."[63] A civil principality is not an absolute tyranny ("These principalities are usually imperiled when they are about to ascent ascend from a civil to an absolute order") but a form of government that is caused by a social group's sense of vulnerability. The great may feel vulnerable because social or economic inequality has become so extreme the people refuse to remain quiescent or because socio-economic equality has empowered the people to an extent that unnerves the great. In turn, the people may feel unable to resist the great due to

K. Raaflaub, and J. Emlen (Stuttgart, Franz Steiner Verlag, 1991), 93–111. Nicolai Rubinstein, "Florentina Libertas," *Rinascimento*, n.s. 26 (1986). There may be a continuity of meaning in the reference to "free state" as independent political community in Book I, chapter 2, with that found in Book II, chapter 2. "E facil cosa è conoscere donde nasca ne' popoli questa affezione del vivere liberto: perché si vede per esperienza le cittadini non aver mai ampliato né di ricchezza, se non mentre sono state in libertà." Bausi ed., 312. *Libertà* here also means freedom from external servitude. See Quentin Skinner, "On Justice, the Common Good, and the Priority of Liberty," in *Dimensions of Radical Democracy*, ed. Chantal Mouffe (New York: Verso Press, 1992), 211–24.;

[60] Niccolò Machiavelli, *The Prince, with Related Documents*, ed. and trans. William J. Connell (Boston: Bedford/St. Martin's, 2005) (hereinafter Connell ed.), 69. "E da qusti due appetite diversi surge nelle città uno de' tre ef fetti, o principato o libertà o licenza." Niccolò Machiavelli, *Il Principe*, ed. L. A. Burd (Oxford: The Clarendon Press, 1891) (hereinafter Burd ed.), 238.

[61] Gennaro Sasso, *Machiavelli e gli antichi e altri saggi* (Milan: Riccardo Ricciardi, 1987), 367. See also A. J. Parel, *The Machiavellian Cosmos* (New Haven: Yale University Press, 1992), 140.

[62] Connell ed., 69. "Il principato è causato o dal popolo o da' grandi, secondo che l'una o l'altra di queste parti ne ha l'occasione; perchè vedendo I grandi non poter resistere al popolo, cominciano a voltare la riputazione ad uno di lori, e lo fanno principe per poter sotto la ombra sua sfogare il loro appetite." Burd ed., 238.

[63] Connell ed., 69. "Il popolo ancora volta la riputazione ad un solo, vedendo non poter resistere ai grandi, e lo fa princpe per essere con l'autorità sua difeso." Burd ed. 238. Burd suggests that this chapter be read in light of Book I, chapter 40, where tyranny arises from too great a desire of the great to command and of the people to be free. This may be relevant, but excessive desire differs from inability to resist, and the result in *The Prince*, chapter 9, is a "civil principality," which differs from the "tyranny" that results from excessive desires in Book I, chapter 40.

an excessive concentration of political or economic power in their hands, most probably a socio-economic concentration of power enabling political domination.[64] This principality founded on the people via acclamation can be a legitimate form of rule. Three types of principality appear in *The Prince*, the civil principality founded on the people in chapter 9; the hereditary principality in chapter 2 where the people live in servitude, and in chapters 3 and 19 principality where the prince is bound by laws.[65]

In the beginning of Book I, chapter 16, of the *Discourses, libertà* is used in the same manner as in chapters 1 and 9 of *The Prince*, as a synonym for *republic*. "Infinite examples read in the remembrances of ancient histories demonstrate how much difficulty there is for a people used to living under a prince to preserve its freedom afterwards, if by some accident it acquires it, as Rome acquired it after the expulsion of the Tarquins."[66] The freedom acquired is freedom to "reason about either public defense or public offense," participatory freedom to exercise self-government. A people can be governed "either by the way of freedom or by the way of principality."[67] Then something else happens. People have two desires: to be avenged and to recover and remain free. Of the people "a small part of them desires to be free so as to command, but all the others, who are infinite, *desire freedom so as to live secure*."[68] About forty of fifty citizens in every republic reach elite status and wish to command:

> The others, to whom it is enough to live secure, are easily satisfied by making orders and laws in which *universal security* (*la sicurtà universale*) is included, together with one's own power. If a prince does this, and the people see that he does not break such laws in because of any accident, in a short time he will begin to live secure and content.[69]

[64] It is not clear to me that the civil principality results from excessive economic inequality, though this is a fair reading in light of Book I, Chapter 55. See Sasso, *Machiavelli e gli antichi*, 367.

[65] Book I, chapter 2; Book I, chapter 55. This distinction between republic and principality is first announced in the opening line of *The Prince*: "All states, all dominions that have had and do have command over men, have been and are either republics or principalities." Connell ed., 41. "Tutti gli Stati, tutti I domini che hanno avuto ed hanno imperio sopra gli uomini sono state e sono o repubbliche o principati." Burd ed., 175–6.

[66] "Quanta difficultà sia a uno popolo uso a vivere sott uno principato pe persevere dipoi la libertà, se per alcuno accident l'acquista come l'acquistò Roma dopo la cacciata de' Tarquini" and "non sappiendo ragionare né delle difese o offese publiche." Bausi ed., 100.

[67] "E chi prende a governare una moltitudine, o per via di libertà per via di principato." Burd ed., 103.

[68] "E troverrà che una piccolo parte di loro desidera di essere libera per comandare, ma tutti gli altri, che sono infiniti, desiderano la libertà per vivere sicuri." Bausi ed., 105. Bausi compares this statement to *The Prince*, chapter 9: "whence it arises that the people desire to be neither commanded nor oppressed by the great." Connell, ed., 69.

[69] "Quegli altri, ai quail basta vivere sicuri, si sodisfanno facilmente, faccendo ordini e leggi dove, insieme con la potenza sua, is comprenda la sicurtà universale. E quando uno principe faccia questo, c che il popolo vegga che per accidente nessuno ei non rompa tali lieggi, comincerà in breve tempo a vivere sicuro e contento." Bausi ed., 106. Again compare to *The Prince*, chapter 9.

In this instance, liberty does not mean a free state or independent polity, nor does it mean active participation in the process of government, reasoning about public offense and defense. Liberty is the rule of law. One group desires liberty to command (*desidera di essere libera per comandare*). Most people desire liberty to live secure (*desiderano la libertà per vivere sicuri*). What is meant by living securely is perhaps described earlier in the chapter as the "common utility that is drawn from a free way of life." It is "being able to enjoy one's things freely, without any suspicion, not fearing for the honor of wives and of children, not to be afraid for oneself."[70] The liberty Machiavelli discusses here sounds a Lockean note, having much in common with what Benjamin Constant would describe as "modern liberty" and the liberal tradition would describe as "negative liberty," the absence of constraint, the most important perhaps being the absence of arbitrary power. What is most extraordinary is Machiavelli's focus on the individual: "not to be afraid for oneself," *non temere di te*. At the risk of reducing traditions of thought to caricatures, premodern political thought or the classical political tradition begins with social groups as irreducible concepts. The individual is conceived in terms of his relation to the group. Political order comes from harmonizing the various socio-economic groups. When done properly the result is a mixed government at times coextensive with republic, and the ideal result is *politeia*, as Aristotle presented it in the *Politics*. In modern political thought, more specifically the liberal political tradition, the individual is the irreducible core, and the focus is on his relationship, conceived in legal terms, to the state. Freedom from arbitrary power achieved through the rule of law is fundamental: "orders and laws in which *universal security* (*la sicurtà universale*) is included."[71]

Machiavelli names France as an example of a state where universal security through settled law is found:

[70] Book I, chapter 16, 45. "Oltre a di questo, qualla comuna utilità che del vivere libero sit re non è da alcuno, mentre che la si possiede, conosciuta: la quale e di potere godere liberamente le cose sue sanza alcuno sospetto, non dubitare dell'onore delle donne, di quell de' figliuoli, non temere di te, perché nessuno confesserà mai avere obligo con uno che non lo offenda." Bausi ed., 102. This statement bears much in common with a similar praise of the benefit of republics in Book II, chapter 2: "For all towns and provinces that live freely in every part make very great profits. For larger peoples are seen there because marriages are freer and more desirable to men since each willingly procreates those children he believes he can nourish. He does not fear that his patrimony will be taken away, and he knows not only that they are born free and not slaves, but that they can, through their virtue, become princes." *Discourses*, 132.

[71] Elena Fasano Guarini states that the sharp contrast between the concepts of *libertà* and *sicurtà* traditional in fifteenth-century debates on the merits of republics and principalities, seems to disappear. She goes on to state that these "linguistic discontinuities" are significant but are not radical changes. Most often *libertà* and *vivere civile* are used in the sense proper to republican humanism. Guarini in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*, 28. See also J. H. Whitfield, "On Machiavelli's Use of Ordini," in *Italian Studies* 10 (1955): 19–39. Again, this apprehension of a dual meaning of *liberty* could represent a significant ambivalence or, as Guarini views it, a linguistic discontinuity.

As an example there is the kingdom of France, which lives secure because of nothing other than that the kings are obligated by infinite laws in which the security of all its peoples is included. And he who ordered that state wished those kings to act in their own mode as to arms and money, but in every other thing they should not be able to dispose except as the laws order.[72]

Liberty (*libertà* or *vivere libero)* can mean a form of government, such as a republic, that is opposed to principality and offers its citizens the opportunity to participate in government and the security that is one of the benefits of a free way of life, *del vivere libero*.[73] The point to be taken is that liberty can also mean security and the rule of law, and this liberty can be found in either a principality or a republic. Strikingly, people do not need to participate in government to enjoy the security provided by settled law that is the benefit of liberty and its main value.

Quentin Skinner has offered a powerful interpretation of Machiavelli as a traditional proponent of republican or neo-roman liberty. Machiavelli's praise of a "free way of life" in Book II means that Machiavelli believes it is only possible to live in a "free state" under a self-governing republic. Skinner adds that Machiavelli "is not completely consistent in drawing the corollary that servitude will prove inevitable under monarchical forms of government. But in general, he makes a sharp distinction between the freedom of republics and the slavery imposed not merely by tyrants but even by the best kings and princes."[74] In addition to offering support for Skinner's interpretation, Book I, chapter 16 also contains Machiavelli's intriguing comments on the kingdom of France.[75] In the opening sentences of the chapter, Machiavelli sounds traditional republican

[72] Book I, chapter 16, 46. "In esempio ci è il regno di Francia, il quale non vive sicuro per altro, che per esserse quegli re obligate a infinite leggi, nelle quail si comprende la sicurtà di tutti di suoi popoli. E chi ordinò quello stato volle che quegli re dell'armi de del danaio facessero a loro modo, ma che d'ogni altra cosa non ne potessono altrimenti disporre che le leggi si ordinassero." Bausi ed., 106.

[73] In an important article, Martha Colish demonstrated that Machiavelli at times opposes *libertà* and *vivere libero* to monarchy and principality and sometimes to tyranny, *podestà assoluta*. Martha Colish, "The Idea of Liberty in Machiavelli," *Journal of the History of Ideas* XXXII (1971): 323–50, 330. In Rinuccini's 1479 *Dialogue, liberty* is defined as a free capacity to act and do things "if it is not limited by force or by consideration of externals, but acts in accordance with the dictates of right reason." He continues, "Isn't it well known that the basic principle of all liberty is citizen equality? This is a fundamental to keep the rich from oppressing the poor or the poor, for their part, from violently robbing the rich. On this basis everyone keeps what is his and is secure from attack." (Alamanno Rinuccini, *De Libertate* in *Humanism and Liberty: Writings on Freedom from Fifteenth Century Florence*, trans. and ed. Renée Neu Watkins [Columbia: University of South Carolina Press, 1978], 202, 204). Liberty has three dimensions in the *Discourses*: security, participation, and non-oppression.

[74] See Quentin Skinner, "Machiavelli's *Discorsi* and the Pre-Humanist Origins of Republican Ideas," in *Machiavelli and Republicanism*, eds. Q. Skinner, G. Bock, and M. Viroli (Cambridge: Cambridge University Press, 1990), 140–1.

[75] As evidence for the claim that Machiavelli believes freedom is only possible in a self-governing republic, Skinner cites Book I, chapter 16 (Ibid., 140, note 136). In addition to offering support for

themes, but later he comments on the French kingdom and the value the majority of people attribute to freedom.[76] The vast majority of people, Machiavelli surmises, desire freedom only to live securely.[77] As a matter of course, Machiavelli favors republican self-government through citizen participation, *vivere civile*, and he never discusses the common good in reference to principalities or kingdoms. But the benefits of freedom that Machiavelli praises in Book II, chapter 2, are the very benefits of *sicurta* – of negative liberty – he praises in France. For ordinary people, a kingdom where the rule of law prevails offers the same freedom, the benefits of security or "freedom from interference," that a republic offers.

Later in the *Discourses*, Machiavelli equates kingdom with republic and opposes both to tyranny, one of the many daring ways he breaks free of inherited civic republican conventions:

> This as I said, he should observe who wishes to order a political way of life by the way either of republic or of kingdom; but he who wishes to make an absolute power, which is called tyranny by the authors, should renew everything as will be told in the following chapter.[78]

France is preeminently a kingdom of laws. France may be somewhat corrupt, but it does not fall into the disorder of Italy because it has one king, an executive authority, who unites the people thanks to his virtue and its constitutional organization or "orders."[79] Ancient orders not only maintain France's freedom, they maintain its territorial integrity. The importance of the rule of law exemplified by France is again stressed in Book I, chapter 58, "The Multitude Is Wiser and More Constant Than a Prince."

Skinner's interpretation, Book I, chapter 16 also contains Machiavelli's intriguing comments on the kingdom of France.

[76] In addition to the civil principality in *The Prince*, chapter 9.

[77] Furthermore, in the revived Roman republic Machiavelli envisions, ordinary people are not participating by rotation in office or active citizenship in the manner enshrined in the republican municipal tradition into which Skinner places Machiavelli. In Machiavelli's Rome, because of its massive size, the great number of people it contains and the territory over which it expands, active participation of the kind humanists and pre-humanists envisioned is no longer possible. The people elect tribunes, are citizen soldiers, and engage in civil disobedience.

[78] Book I, chapter 25. "He Who Wishes to Reform an Antiquated State in a Free City May Retain at Least the Shadow of Its Ancient Modes." Niccolò Machiavelli, *The Prince*, trans. Harvey C. Mansfield (Chicago: University of Chicago Press, 1988) (hereinafter Mansfield ed.), 61; "E questo, come ho ditto, debbe osservre colui che vuole ordinare uno vivere politico, o per via di republica o di regno; ma quello cho vuole fare una potestà assoluta, la quale dagli autori è chimata tirannide, debbe rinnovare ogni cosa, come nel seguent capitolo si dirà." Bausi ed., 137.

[79] Book I, chapter 55, 110. "If as many disorders as arise in Italy are not seen every day in those provinces, it derives not so much from the goodness of the peoples, which is in a good part lacking, as from having one king that maintains them united not only through his virtue but through the order of those kingdoms which is not yet spoiled."

I say, thus, that all men particularly, and especially princes, can be accused of that defect of which the writers accuse the multitude; for everyone who is not regulated by laws would make the same errors as the unshackled multitude.[80]

Machiavelli adds the caveat that he speaks of princes

who have been able to break *the bridle that can correct them*, among whom are not those kings who arose in Egypt when, in that most ancient antiquity, the province was governed with laws, nor those who arose in Sparta; nor those who in our times arise in France, a kingdom *that is more moderated by laws* than any other kingdom of which knowledge is had in our times.[81]

Laws or constitutional orders act as a bridle on the king and restrain the exercise of arbitrary will. A tyranny or an absolute principality (as opposed to civil) lacks the rule of law. The rule of law inclines France more to a free way of life rather than an absolute or tyrannical one.[82] "These kings who arose under such constitutions" are not vain and inconstant because they are regulated by laws.[83] Likewise, a multitude regulated by laws does not display vanity and inconstancy. When a people are regulated by laws, they show the same goodness found in those kings:

neither to dominate nor to serve humbly – as was the Roman people, which never served humbly nor dominated proudly while the republic lasted uncorrupt; indeed with its orders and magistrates it held its rank honorably.[84]

France has overcome fortune and endures because it is not dependent upon the personality of one individual. After describing the problems with successions, inherited rule, Machiavelli writes, "after a weak one [prince] no kingdom can be maintained with another weak one, unless indeed it is like that of France, which its ancient orders maintain."[85] Like a republic, a kingdom has virtuous successions because it, surprisingly, is not dependent on the virtue of one individual.

In chapter 19 of *The Prince*, Machiavelli recommends that the prince take the side of people against the great. He praises the kingdom of France for the liberty and security its institutions provide the king (not the people). The most important institution is the *parlement* (he is probably thinking of the *parlement* of Paris), which was a judicial court rather than a legislative assembly.[86]

[80] Book I, chapter 55, 116.

[81] Ibid. "Io dico de' principi che hanno potuto rompere quell freno che gli può correggere, intra I quli non sono quegli re che nascevano in Egitto, quando in quella antichissimi antichità si sovernava quella provincial con le leggi, né quegli che nascevano in Sparta, ne quegli che a' nostril tempi nascano in Francia, il quale regno è moderato piú dale leggi che alcuno altro regno di che ne' nostril tempi si abbia notizia." Bausi ed., 279.

[82] Book I, chapter 12.

[83] "Costituzioni" and "regolata dale leggi come sono loro."

[84] Book I, chapter 55, 116. "Come era il popolo romano, il quale, metre durò la repubica incorrotta, non serví mai umilmente né mai domino superbamente." Bausi ed. 279.

[85] Book I, chapter 19.

[86] *Parlements* were the chief judicial bodies in the *ancient régime* and functioned as appellate courts. Beginning as law courts, *parlements* acquired additional power through the process of registering

For the person who ordered that Kingdom recognized the ambition of the powerful and their insolence, and he judged that a bit in their mouth was necessary to correct them and on the other hand he recognized that the hatred of the populace against the great was founded on fear.[87]

In order to secure the people while not making it appear that the king was favoring the people,

he established a third judge who should be one who, without blame for the king, would *beat down the great and favor the lesser folk*. [emphasis added] And this order could not have been better or more prudent, nor could there be a greater cause for the security of the king.[88]

*Parlement*, a judicial institution, beats down the great and protects the people. The king remains aloof, but the people are protected from domination. The great are dangerous to the people and to the security of the king. This was true in fact as France was a composite monarchy and the restive feudal nobility was a continual threat to the integrity of the crown. Unlike Alexis de Tocqueville later, Machiavelli does not see aristocratic privilege and self-assertion as a social force conducive to freedom. Most appropriately Janus faced, looking backward to the republican tradition that feared domination by groups and ahead to the liberal world that fears central power, for Machiavelli, the nobility of France is as dangerous as the monarch.

Finally in chapter 1 of Book III, on drawing republics back to beginnings, Machiavelli draws an explicit comparison between France and Rome. *Parlements* maintain these laws and orders. The laws and by extension the liberty of the kingdom are renewed

whenever it [*parlement*] makes an execution against a prince of that kingdom and when it condemns the king in its verdicts. Up until now it has maintained itself by having been an obstinate executor against the nobility; but whenever it should leave any of them unpunished and they should come to multiply, without doubt it would arise either that they would have to be corrected with great disorder or that the kingdom would be dissolved.[89]

royal edicts before they became law. If a *parlement*, most often the *Parlement of Paris*, disapproved of a royal edict because it violated tradition, it would refuse to register the edict. This refusal "right of remonstrance" acted as a check on arbitrary royal power. If the king held a *lit de justice*, a meeting of the *parlement* in the royal presence or sent a *lettre de jussion*, he could override the "veto" and force the registration. See G. W. Prothero, "The Parliament of Paris," *The English Historical Review* 13, no. 50 (April 1898): 229–41.

87 Connell ed., 98.

88 Connell ed., 99.

89 Book III, chapter I, 212. Beating down the great, cutting them to pieces also appears in Book I, chapter 16 in reference to Clearchus of Heraclea, who "cut to pieces all the aristocrats, to the extreme satisfaction of the people." Book I, chapter 16, 46.

France is not only a land of laws, it is a land where the great are "in harness," so to speak, beaten down and unable to dominate. *Parlement* checks aristocratic oppression (the few) when it dispenses justice without favor and checks capricious monarchical authority (the one) when it exercises the "right of remonstrance" and refuses to register royal edicts. Machiavelli then reminds the reader that the Roman republic too was maintained by orders that beat down the great, "the tribunes of the plebs, the censors and all the other laws that went against the ambition and the insolence of men."

Principalities and kingdoms possess virtues that republics lack. Most importantly, the princely or monarchical form of government, provided it is a civil principality or a kingdom moderated by laws, is able to overcome domination between cities and between citizens. After extolling the benefits, public and private, that come from a free way of life/life in a self-governing republic, Machiavelli admits that "of all hard servitudes, that is hardest that submits you to a republic." He explains that "the end of the republic is to enervate and to weaken all other bodies so as to increase its own body."[90] Chapter 2 discussed this phrase in reference to Machiavelli's awareness of the limitations of republican expansion. He adds:

> A prince who makes you submit does not do this . . .. But if he has within himself human and ordinary orders, he usually loves his subject cities equally and leaves them all their arts and almost all their ancient orders. So if they cannot grow like the free, still they are not ruined like slaves.[91]

This statement demonstrates Machiavelli's interest in taking the virtues of princely expansionist policy to remedy the outmoded republican policy that emphasized the domination of conquered cities rather than their integration into a broader political body. In a principality, the capital city is prevented from dominating other cities across a territory just as a kingdom such as France or the civil principality of chapter 9 prevents domination of the great by the poor. A prince prevents the capital republic from dominating subject cities and prevents domination of the poor by the great. This parallel between domestic and territorial expansion – a prince loves his subject cities equally and by analogy loves his people equally – is suggestive. He prevents domination of one group of his people by another and prevents one city from dominating and destroying another. Republics have a systematic weakness – a tendency toward power imbalances that lead to domination and servility (the loss of liberty) inside and outside city walls. These examples give rise to a considered judgment. Monarchical government prevents power asymmetries from devolving into relationships of abusive control. This knowledge is especially applicable to those who seek to found a republican rather than monarchical form of

[90] Book II, chapter 2, 133.
[91] Ibid.

government. Speaking of preserving or founding a republic in a corrupt city, Machiavelli writes:

> If indeed one had to create or maintain one [a republic] there, it would be necessary to turn it more toward a kingly state than toward a popular state, so that the men who cannot be correct by the laws because of their insolence should be checked in some mode by an almost kingly power.[92]

The king of France focuses on arms and finance, exemplifying executive power in foreign affairs, as did Romulus, who also confined himself in such a manner.[93] Like the ideal prince in chapter 14 of *The Prince*, the king's focus is on the borders of the state, leading the military, preparing for war. The executive is outward facing and dedicated to defense and acquisition. His domestic power is limited. France exemplifies the rule of law, demonstrating that the great and powerful can be restrained over an extended territory by regional judicial institutions.[94] Most strikingly, people can be protected and live in security without actively participating in government, provided the great are harnessed. France, then, is a critical guide as it reveals that freedom as security can be preserved in an extended territory. Machiavelli distinguishes liberty as rule of law from liberty as active participation, but he is not willing, as one influential school of thought has claimed, to dispense with active participation entirely.[95] If it were so, his investigations would have ended with France. Machiavelli proceeds because the people of early modern France are silent. Not so the people of ancient Rome.

It has been claimed that France, a hereditary monarchy based on ancient orders, could not offer the Italian world any guidance.[96] We hope to have demonstrated that it did offer Machiavelli guidance as a contemporaneous example of an extended free territory. Machiavelli does not mention the Estates-Generale, but he does praise constitutional methods, which included the *parlement*s, local assemblies, and inherited rights and privileges – essentially the myriad legacy of feudalism that together formed a counterweight to the centralizing dynamic of monarchical authority. The French monarchy had a tradition of annexation and integration, incorporating feudal territories from its

[92] Book I, chapter 18, 51.

[93] Book I, chapter 9.

[94] Some scholars have argued that this description of a separate judicial power in France anticipates Montesquieu. See Paul A. Rahe, ed., *Machiavelli's Liberal Republican Legacy* (Cambridge: Cambridge University Press, 2010), xxvi.

[95] Straussian scholars claim that Machiavelli favored rule by elites and conveyed a subtle message that people only want to be left alone and do not wish to govern. I hope to demonstrate that a close reading of Machiavelli's own words combined with an awareness of historical context reveals a more accurate portrait of Machiavelli as a populist patriot. See Leo Strauss, *Thoughts on Machiavelli* (Glencoe, IL: The Free Press, 1958), 127. Harvey C. Mansfield, *Machiavelli's Virtue* (Chicago: The University of Chicago Press, 1996), 237.

[96] Guarini in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*, 28.

basis in the Île de France.[97] France's liberty was an inheritance of feudal laws and structures that spread across territory. Italy had inherited a communal or municipal liberty. "Only three Italian parliaments survived into the Renaissance." They survived in the most feudal, the least "Italian" of the Italian states, Sardinia, Piedmont, and Sicily.[98]

Cities were the basic political units in Italy because feudal social structures had failed to embed themselves very deeply outside southern Italy.[99] The contest for power between the papacy and the Holy Roman Emperor left in its wake a power vacuum that allowed innumerable precocious municipalities to develop. City-state sovereignty along with urban-centered economic and social structures such as municipal guilds and confraternities stood in the way of the evolution of territorial institutions. There were various ruling groups but no real Italian nobility based on the land and bred for war, as there was in France. There was no aristocratic caste, no territorial representative institutions, to oppose a potential monarch.

In brief, hazards accompanied any attempt to build a large state in Italy. A larger state could bring on greater oppression, for a larger state centralizes more power, creating the potential for greater tyranny. Francesco Guicciardini, who himself was not opposed to a well-established freedom, looked askance at Machiavelli's plans for a larger state, which he recognized as Machiavelli's intention, and gave a considered reply – namely, that there is a raw freedom in the plurality of states that the world should not surrender easily. If division kept Italy weak, it at least preserved some space so that freedom might develop.[100]

[97] First Toulouse and Champagne, then Brittany, Gascogny, Burgundy, and Flanders were absorbed into the French kingdom. Mark Greengrass, ed., *Conquest and Coalescence: The Shaping of the State in Early Modern Europe* (London: Edward Arnold, 1991).

[98] One could easily substitute "constitutional" and "republican" for territorial and municipal, respectively. H. G. Koenigsberger, "The Parliament of Piedmont during the Renaissance: 1460–1560," in *Estates and Revolutions* (Ithaca: Cornell University Press, 1971).

[99] This is debated by Philip Jones and Sergio Bertelli, who claim that Italian history demonstrates persistent domination by a largely landed oligarchy. See Sergio Bertelli, *Il potere oligarchici nello state-citte medievale* (Florence: La Nuova Italia, 1978), and Philip Jones, "Economica e societa nell' Italia medievale: la leggenda dell borghesia," in *Storia d' Italia, Annali*, I (Turin: Einaudi, 1978), 230–58, 308–37. Historians John Najemy and James S. Grubb dispute the "aristocratic hegemony" interpretation, arguing that power and influence change over time and territory, so the view of Jones and Bertelli sweeps reality and specific circumstances under a general judgment. Jones essentially claims that land prevailed over commerce in Italy. Machiavelli would reply that this happened in Milan and Naples, not in Tuscany. Jones is right to note that the survival of the *civitas*, the union of city and territory, prevented the development of an independent mercantile bourgeoisie encompassing various cities. This is true, but the fragmented political system also prevented the development of a cross-city landed class along the lines of the French or English aristocracy.

[100] "Hence if the Roman Church has opposed unity I would not easily agree that it was the misfortune of this province, since it has preserved her in that way of living nearest her most ancient habit and inclination." Francesco Guicciardini, "Considerations on the 'Discourses' of

## "BUT LET US COME TO ROME"

It would be appropriate to wonder why the people of Rome should have mattered to a sixteenth-century Florentine. As it happened, ordinary people were mobilizing across the continent of Europe. The early modern period was an era of large-scale popular conflict. The city-states of Brabant, the Burgundian Netherlands, rebelled in 1477 and again from 1484 to 1488. In 1494, a popular uprising in Florence expelled the Medici and installed a charismatic preacher, Savonarola, as leader of Florence. In 1520, the *Comunero* movement plunged Castile into revolution. From 1525 to 1526, great peasant uprisings flamed across Germany in what would come to be known as the Revolution of 1525. The Swiss defeated the formidable armies of Emperor Maximilian I in 1499 and turned themselves into a self-governing confederation of intimidating power as Machiavelli worked on the *Discourses*.[101] Despite the abundant uprisings, the Swiss were an anomaly. Many revolutionary situations were short lived, with lords and monarchs eventually reclaiming power over rebellious peasants and lands and towns. Ordinary people were not as well organized as governing elites and, furthermore, could not organize on a scale to match incipient monarchies.[102] Popular mobilizations flared with impressive regularity but, with the exception of the Netherlands, would not be institutionalized until the revolutions of the eighteenth century. In the sixteenth and seventeenth centuries, political conditions favored elite survival and consolidation. The divide between city and country, regional traditions, and local privileges prevented urban-rural alliances against aggrandizing elites who led the process of state formation. The problem for an advocate of the people was how to institutionalize their power. In Book I, chapter 16, Machiavelli articulates the challenge before him: "How much difficulty there is for a people used to living under a prince to preserve

Machiavelli," in *Selected Writings*, ed. Cecil Grayson, trans. Margaret Grayson (Oxford: Oxford University Press, 1965), 81–2.

[101] By the fifteenth century, the Burgundian Netherlands had a long experience of rebellion. Its next two centuries brought forth one of Europe's great revolutionary struggles. Ertman, *Birth of the Leviathan*, 53. The *Comunero* revolt of 1520–1 was the classic form of local resistance to an aggressive dynast. Wayne te Brake, *Shaping History: Ordinary People in European Politics, 1500–1700* (Berkeley: University of California Press, 1998). The "Twelve Articles of the Peasantry of Swabia" reflected a profound crisis of agrarian society and expressed a revolutionary set of principles that expressed the hopes of a broad coalition of popular groups in southern Germany. The Swiss, who were a prominent feature of European political culture in the early modern period and in increasingly princely early modern Europe, played the role of republican counter model. Thomas Brady, *Turning Swiss Cities and Empire, 1450–1550* (Cambridge: Cambridge University Press, 1985), 42.

[102] See Wayne te Brake on the political dynamics of the Reformation process. "In hundreds of rural jurisdictions, locally formidable coalitions were mobilized to press for redress of a range of social, economic, and religious grievances. In the long run the radical visions of social and political revolution were not likely to find a receptive audience among the lords and princes. As local conflicts aggregated into a general war, the likelihood of a well organized and durable popular political challenge *on that scale* diminished while the collective strength of princes increased." Te Brake, *Shaping History*, 45.

its freedom afterward."[103] State formation in early modern Europe was led by elites; their bargains with individual territories and cities often prevented organized resistance. The challenge was to alter this trajectory so that a new state could be maintained by the people, in effect transforming a composite state into a composite republic.

What does Machiavelli see in raucous, greedy, class- and strife-ridden Rome? "But above all it is very marvelous to consider how much greatness Rome arrived at after it was freed from its kings. The reason is easy to understand for it is not the particular good but the common good that makes cities great."[104] Its foreign policy, its tribunes, dictatorship, evolving constitution and wooing of Fortune, most of all, its people power – "the inclusion of people brought Rome to perfection," and also brought turbulent domestic politics.[105] Complicated, astute, and slightly eccentric, Machiavelli's appreciation of the Roman republic surpasses what he read in the pages of Livy.[106] How glorious Rome, a mighty popular republic, must have seemed in an age when Italy was defeated, subject to barbarians, and where republics were no match for militant monarchies beyond the Alps. As Leo Strauss observed with enormous insight, "the restoration of something which has been disestablished for a long time is no less revolutionary or shocking than the introduction of something wholly new."[107]

At the start the *Discourses*, Machiavelli seems to have stepped back from the precipice of *The Prince* and returned to the familiar world of the city. Inside the walls of the city is the traditional domain of political life. After referring to Florence's botched constitutional moments in 1502 and 1512, he launches into a discussion of regime types in the manner of Polybius' sixth book. The discussion begins decorously enough. There are three forms of government – monarchy, aristocracy, and democracy – each of which has its parallel corrupt version. Each republic goes through all regimes in a cycle. The critical differences

[103] He continues, "... if by some accident it acquires it, as Rome acquired it after the expulsion of the Tarquins" (Book I, chapter 16).

[104] Book II, chapter 2, 129–30.

[105] Hörnqvist is right to state that Machiavelli would have enforced the regime's monarchic elements as well as provide for a "spectacular return of the people to the political scene." However, he does not explore this innovative scheme. Michael Hörnqvist, *Machiavelli and Empire* (Cambridge: Cambridge University Press, 2004), 226.

[106] The ostensible focus of the *Discourses*, the first ten books of Titus Livy cover the legendary founding of Rome. Livy never describes Rome's constitution, for he assumed that the reader would be familiar with the political institutions of Rome. *Cambridge History of Greek and Roman Political Thought*, eds. Christopher Rowe and Malcolm Schofield (Cambridge: Cambridge University Press, 2006). Latin lacked a word to denote "constitution" or form of government such as the Greek *politeia*. Cicero used "res publica" (see P. A. Brunt, *The Fall of the Roman Republic and Related Essays* [Oxford: Clarendon Press, 1988]). *Consilium, libertas*, and *imperium* are key elements of the Roman *res publica*. The Romans themselves, when indulging in political thought, did so in terms of *exempla*, telling examples.

[107] Leo Strauss, *Thoughts on Machiavelli*, 317.

Machiavelli introduces have been ably discussed elsewhere.[108] For present purposes what is relevant is the sudden intrusion of the threat of conquest into the theoretical construct. Few republics survive long enough to endure many regime changes.

> But indeed it happens that in its travails, *a republic always lacking in counsel and forces becomes subject to a neighboring state that is better ordered than it*; assuming that this were not so, however, a republic would be capable of revolving for an infinite time in these governments.[109]

The republic is no longer a self-contained, autonomous realm, but open to invasion. This fact decisively changes reasoning about political life and constitutions. The theory of the polis was fundamental to civic humanists and Italian cities.[110] International anarchy, the condition of war against all, invades the closed world of classical political thought. Thucydides interrupts Polybius; the reality of history warps theory. Rome was founded by kings. But when the Tarquins were banished after a successful rebellion led by "those who were in advance of others in generosity, greatness of spirit and nobility," Romans preserved "the kingly power" or executive authority by creating "two consuls who stood in the place of the kings." The senate provided the aristocratic element. All that was needed was the democratic element for Rome to become the perfect mixed regime, *governo misto*, and the moment arrived when the people, excessively oppressed by the nobility, rose in rebellion. Then the nobility granted a concession and allowed for the creation of the Tribunes of the Plebs, which stabilized the republic. "But remaining mixed, it made a perfect republic, to which perfection it came through the disunion of the plebs and the Senate."[111] Another surprise: the perfection of Rome does not come from it being mixed or balanced the right way, but through an unusual type of disorder and disagreement.

## FOUND ON THE PEOPLE

There was no consensus in Rome, Machiavelli admits. There were tumults between the nobles and the plebeians, but these tumults kept Rome free of external servitude and free of tyranny and domination inside the republic. In every republic there are "two diverse humors." Both social groups have a distinct humor – a mood, a character trait. Most radically, laws in favor of freedom arise from disunion, not consensus or agreement about the common

[108] Gennaro Sasso, "La teoria dell'anacyclosis," in *Studi su Machiavelli* (Naples: Morano, 1967). See also Harvey C. Mansfield, Jr., *Machiavelli's New Modes and Orders* (Ithaca: Cornell University Press, 1979), 34–40. Polybius, *Histories*, ed. and trans. E. S. Shuckburgh (Bloomington: Indiana University Press, 1962).

[109] *Discourses*, 13. "Ma, rimanendo mista, fece una repubblica perfetta; alla quale perfezione venne per la disunione della plebe e del senato." Bausi ed., 29.

[110] Pocock, *The Machiavellian Moment*, 74.

[111] *Discourses*, Book I, chapter 2, 14.

good.[112] This claim strikes at the heart of the civic republican tradition, for its core premises were the need for consensus and the concomitant danger of discord. The two humors should be seen in contrast to "false consensus" through which a powerful elite minority subsumed the rights of the poor under the mantle of the common good of Florence.[113] The older corporate ties that characterized the guild society of the medieval commune were replaced in the late fourteenth century by a new regime that ruled through a carefully managed consensus.[114] For civic humanists such as Bruni, consensus meant obedience to authority.[115] Machiavelli had discerned the weakness in the fifteenth-century republican system. Consensus politics brought the simulacra of stability while suffocating conflict.

Beneath Rome's superficial disorder lay a vital and nonviolent civic life, with people running through the streets or shutting down their shops in protest against senatorial action – "the whole plebs leaving Rome." The "tumults" or open disagreements that often took the form of civil disobedience gave the people the power to demand a share in government and guarded the freedom of the republic.[116] The dramatic but nonviolent strife between patricians and plebs is crucial because it made Rome *powerful* as well as free. The power of the Roman republic is a large part of its charismatic appeal and its long life. This power derived from the rambunctious nature of its people, for the people compose the army and a republic that wishes to harness the power of the people for war needs to accommodate their demands, which are rarely dangerous to freedom in any case, as the people only rise up in collective self-defense against oppression.

I say that every city ought to have its modes with which the people can vent its ambition, and especially cities that *wish to avail themselves of the people in important things*. Among these the city of Rome had this mode: that when the people wished to obtain a

[112] Skinner acknowledges that the theory of the two humors is original and has no precedent in the civic republican tradition. "By insisting that tumults represent a principle *cause* of freedom and greatness, Machiavelli is placing a question mark against this entire tradition of thought. What he is repudiating is nothing less than the Ciceronian vision of the *concordia ordinum*, a vision hitherto endorsed by the defenders of self-governing republics in an almost uncritical way". Quentin Skinner, "Pre-Humanist Origins of Republican Ideas," in Skinner, Bock, and Viroli, *Machiavelli and Republicanism*, 136.

[113] John Najemy characterized Renaissance Florentine political life as a "false consensus." John Najemy, *Corporatism and Consensus in Florentine Electoral Politics 1280–1400* (Chapel Hill: University of North Carolina Press, 1982).

[114] Gene A. Brucker, *The Civic World of Early Renaissance Florence* (Princeton: Princeton University Press, 1977). See also Najemy, *Corporatism*.

[115] See Bruni's *Laudatio Florentinae Urbis* (in Hans Baron, *From Petrarch to Leonardo Bruni: Studies in Humanistic and Political Literature* [Chicago: University of Chicago Press, 1968]).

[116] "For whoever examines their end well will find that they have engendered not any exile or violence unfavorable to the common good but laws and orders in benefit of public freedom." Book I, chaper 4, 16. Conflict and strife are not violence but peaceful ordered contestation, kept within limits by "civil mode and custom." Book I, chapter 37.

law, either they did one of the things said above or they refused to enroll their names to go to war, so that to placate them there was need to satisfy them in part.[117]

The ability to wage war not only enables a republic to survive as a free state rather than live as a servile conquest, but it also empowers ordinary people. Provided the army is composed of ordinary people, the people then hold a valuable bargaining chip. The great are dependent on the people for the defense of the republic and its continued life.

Rome is unique among ancient republics and those admired in Machiavelli's time because it placed its trust in the people, empowering them to guard liberty. A prudent founder of a new republic should consider Rome's strategy because the people are less harmful to the republic. A tentative theory in chapter 9 of *The Prince* is now a resounding conviction. The ultimate goal of the great is to dominate. Ordinary people wish only not to be dominated. It makes sense then to put the guard of freedom in the people because they have no desire to usurp it. Their weakness renders them harmless and their vulnerability inclines them to value and protect freedom.[118]

If one considers the end of the nobles and of the ignobles, one will see great desire to dominate in the former, and in the latter only desire not to be dominated; and, in consequence, *a greater will to live free*, being less able to hope to usurp it than the great.[119]

It should be noted that to live free is not coterminous with to live politically – *libertas* is not coterminous with *vivere politico*, which includes participatory practices. When the people are responsible for guarding freedom, "it is reasonable that they have more care for it, and since they are not able to seize it, they do not permit others to seize it."[120] Pressing the point, the defining trait of the plebs as a social group is the desire to acquire. Nobles, or the great, as a social order want to maintain their acquisitions. The great are more ambitious, for their greed is never quenched. Moreover the great have the power to realize their desires and disrupt the state. "There is this besides: that since they possess much, they are able to make an alteration with greater power and greater motion." The people desire only not to be dominated and do not have the power to endanger the common good.[121]

[117] Book I, chapter 4, 17.

[118] Book I, chapter 4, 18.

[119] Book I, chapter 5. Machiavelli means that ordinary people have a greater will to live free than do the powerful for strategic considerations and are able to live free and maintain freedom in lands where socio-economic conditions have enabled civic trust and associations to develop, which makes Tuscany fertile ground for a free way of life. Living free is not the same as "living politically" (i.e., *libertas* v. *vivere civile*). The latter includes participatory practices.

[120] Book I, chapter 5. "E sanza dubbio, se si considerrà il fine de' nobili e degli ignobili, si vedrà in quegli desiderio grande di dominare, e in questi solo desiderio di non esserre dominati, e per conseguente maggiore volontà di vivere liberi, potendo menno sperare di usurparla che non possono i grandi." Bausi ed., 38.

[121] The humors of both classes relate to diverse approaches to acquisition. The *ends* of both classes relate to domination. Nobles acquire in order to dominate. The people acquire in order not to be

Good reasons argue against placing power in the hands of the people, for the people will want more power or will fall for a populist demagogue. But to those who think that Sparta and Venice, both aristocratic/oligarchic republics that put "the guard of freedom" in the hands of the powerful, have more to teach, Machiavelli raises this decisive argument. Are you reasoning about a closed or expansionist republic? Rome is relevant because it can defend itself, conquer, and make an empire. When "one sees miraculous losses and miraculous acquisitions every day," a republic must be able to expand.[122] And in Book I, chapter 6, the axis on which the *Discourses* turns, Machiavelli writes that one cannot choose for once and for all not to expand – the utopian option of the quiet and small republic.[123] Machiavelli seems to say: this undertaking to which you, reader, and I, writer, are committed is not a utopian but a practical enterprise. It is unwise to build on ideal conditions. Time passes, nothing remains the same, one might be required to expand; a republic not ordered to expand might have to expand, and would then be ruined.[124]

The responsible, realistic choice is to forget about perfection and order a republic to expand. And expansion and people power work together. Rome became great through harnessing the population's talent – by giving the people a larger role in government and, in so doing, the ability to entrust the population with the republic's defense. The conclusion of Book I, chapter 6, is that public disorder is a necessary inconvenience to arrive at republican greatness. Rome used its own citizens in war and had an open immigration policy. If it had not done so, it would have been weaker.

> But if the Roman state had come to be quieter, this inconvenience would have followed: that it would also have been weaker because it cut off the way by which it could come to the greatness it achieved, so that if Rome wished to remove the causes of tumults, it removed too the causes of expansion.[125]

The way of Sparta and Venice may be the ideal, but all things are in motion and necessity makes demands. A republic that is not prepared to expand will come to ruin sooner: "In ordering a republic there is need to think of the more honorable part and to order it so that if necessity brings it to expand it can conserve what it has seized." Machiavelli reaffirms his conclusion: "I believe it is necessary to

dominated. Machiavelli's focus on the less ethereal aspect of political life, on interests and appetites, mark him as one of the first of the moderns, claims Paul Rahe.

[122] Book I, chapter 30, 202. He continues "For where men have little virtue, fortune shows its power very much; and because it is variable, republics and states often vary and will always vary until someone emerges who is so much a lover of antiquity that he regulates it in such a mode that it does not have cause to show at every turning of the sun how much it can do."

[123] "The true political way of life and the true quiet of a city." Book I, chapter 5.

[124] "But since all things of men are in motion and cannot stay steady, they must either rise or fall; and to many things that reason does not bring you, necessity brings you. So when a republic that has been ordered so as to be capable of maintaining itself does not expand, and necessity leads it to expand, this would come to take away its foundations and make it come to ruin sooner." Book I, chapter 6.

[125] Book I, chapter 6, 21.

follow the Roman order and not that of other republics." Ordering a state like Rome is to give power to the people because "without a great number of men, and well armed, a republic can never grow or, if it grows, maintain itself."[126] Put another way, a republic must grow in population and field a large army to survive, and this means giving the masses a voice in government.[127] This is Machiavelli's message to the elites of his time. If one wishes for peace and quiet or the simulacra of consensus, surrender to a monarchy, for republics are not long for this world.

## THE RUINS OF ROME

The goal from such a perspective is to find, envision, and construct institutions and procedures that will enable the common people to check the ambition of powerful elites. Therefore, Machiavelli does not describe Roman constitutional arrangements in orderly detail. He never orients the reader but rather leaves him or her to wander amid the fragments strewn across the *Discourses*, as a tourist wanders through the ruins of the Roman Forum and Trajan's market. The notable institutions of Rome – the senate, tribunate, and consulate – appear as fragments in a deformed space, floating through the various scenes, background accessories to the central drama of patrician and plebeian competition for power. The strange, murky atmosphere bears on Machiavelli's singular originality.

The relationship between mixed government and Renaissance civic republicanism is complex. As a body of thought based on Aristotle's *Politics*, mixed government influenced Italian civic humanists who began to conceive of political life through the prism of the citizen and his relation to the one, the few, and the many.[128] Each citizen is a member of a larger social group that has its own virtue and role in decision making. Based on the group that predominated in each regime, a three-fold classification of regime types was elaborated, accompanied by its perverse double: monarchy and tyranny, aristocracy and oligarchy, polity and democracy. Inspired by the rise of Rome, Polybius took Aristotle's classification of constitutional regimes and put it in a temporal cycle.[129] The only way to escape the cycle would be to blend or balance the three regimes – monarchy, aristocracy, and democracy.[130] Placing the static theory of polity in a temporal

[126] Book I, chapter 6, 22.

[127] While Straussian scholars insist Machiavelli does not envision giving the people any sort of voice in government (a conclusion that seems hard to justify textually), democratic theorists tend to argue that Machiavelli envisioned giving the people a reactive voice. Therefore, precisely what sort of voice he intends for the people to have – a reactive or proactive one – is consequential.

[128] Pocock, *The Machiavellian Moment*, 67.

[129] Pocock, *The Machiavellian Moment*, 77.

[130] Ibid.; K. von Fritz, *The Theory of the Mixed Constitution in Antiquity* (New York: Columbia University Press, 1954).

cycle captivated the Renaissance mind, which dedicated itself to finding the mixed regime that might escape the cycle and defy the depredations of time. The Republic of Venice assumed the role of ideal embodiment of mixed government. This vision of Venice would play a large part in cementing its myth, a myth that would later move to Britain, which was viewed as the ideal incarnation of mixed government in the eighteenth century. Virtue has a role in mixed government theory, but so does institutional design. Attempts to squeeze Florentine constitutional history into the corset of mixed government theory proved more difficult, though humanists tried. After the Balia of 1393, Leonardo Bruni wrote a description of the new Florentine constitution, celebrating it as a mixed constitution to be compared favorably to the old guild constitution.[131] The *Ordinazioni* of 1532 would reorganize the constitutional order of Florence by codifying Medici power as a mixed form of government.[132]

If scholars of the Straussian School of political thought tend to devalue the Roman republican inheritance of mixed government, which was concerned with institutional design (which in turn makes it difficult to get a precise grip on Machiavelli's political thought), scholars of Cambridge School of intellectual history may overlook significant differences between mixed regime thought and the Renaissance republican experience, collecting both theory and practice under the rubric of "civic republicanism." Italian city republics adopted the mixed regime as a way to theorize themselves, but one must resist the urge to collapse one into the other. Civic republicanism grew out of and to some extent turned against the medieval commune and its reigning ideology of guild republicanism, which was more popular in its method of selecting leaders and in levels of citizen participation, and more populist in its policies than the fifteenth-century regimes often termed civic republican. The relevant point is that Machiavelli takes the "architectural" elements of the mixed regime body of thought, infuses it with memories of the old guild republic, and modifies it to encompass a greater territory and unprecedented number of citizens. Despite his emphasis on institutional design (modes and orders), it is evident that individual and collective virtue remain critically important to the success of any republic. The notion that individual citizens must possess a self-sacrificing virtue is of classical extraction. But Machiavelli's radicalization of virtue testifies to the various intellectual traditions alive in his work: classical political thought, Roman mixed government theory, Roman history, civic humanism, the Florentine political experience, the guild republic, and how he transforms them into something entirely original.[133]

[131] Baron, *The Crisis of the Early Italian Renaissance*.

[132] Alessandra Contini, "Aspects of Medicean Diplomacy in the Sixteenth Century," in *Society and the Individual in Renaissance Florence* (Berkeley: University of California Press, 2000), 57–8.

[133] Two recent penetrating works on Machiavelli view him as working within the mixed government tradition. Michael Hörnqvist examines *The Prince* and the *Discourses* in the context of Florentine civic humanism as opposed to the broader context of medieval and Renaissance

Rome was a democratic mixed regime that divided power between senators, consuls, tribunes, censors, and citizen assemblies. Unlike Greece, where the directly elected assembly was involved in administrative decisions, in Rome the people elected leaders to direct matters of state. Thus, Rome was an elected republic as well as a mixed government. Machiavelli summarizes Rome's constitution in Book I, chapter 18:

> I say that in Rome there was the order of the government, or truly of the state, and afterward the laws, which together with the magistrates checked the citizens. The order of the state was the authority of the people, of the Senate, of the tribunes, of the consuls; the mode of soliciting and creating the magistrates; and the mode of making the laws.[134]

The Roman people had unlimited powers constitutionally, which could and still does inspire a democratic reading of the Roman republic. However, drawing a distinction between the formal powers of the Roman people and their powers in practice is a controversial endeavor.[135] What remains remarkable is the reality that set Rome apart, the ideology that ordinary people had a share in the state. Soldiers elected generals. Tribunes looked after the popular interest. Popular assemblies handled legislation, and laws protected individuals from the power of magistrates.

Machiavelli relied on the classic political map of ancient Roman politics provided by Polybius, who famously claimed that the popular assemblies represented the democratic element in an ideal, balanced constitution. The

republicanism. Hörnqvist expands upon Hans Baron's and Felix Gilbert's research into the aspect of Florentine political thought that cast Florence as an elect city with a special destiny. Machiavelli draws on this Florentine ideology of empire and a Roman heritage. In contrast, I am attempting to argue that Machiavelli is not clearly an imperialist and seeks to overcome the elements of Florentine imperialism that doomed any attempt to enlarge the republic. I disagree that the invocation of Italy in chapter 26 of *The Prince* is a façade for the pursuit of Florentine imperialist aspirations. Hörnqvist in the end claims that the regime Machiavelli hopes to found is a variation of Roman mixed government with an emphasis on the kingly and popular elements. This sounds accurate, but Hörnqvist does not explore exactly what he means or explain what the kingly and popular elements are. John McCormick's *Machiavellian Democracy* (Cambridge: Cambridge University Press, 2011) offers a comprehensive examination of the specific institutional innovations Machiavelli devised to democratize mixed government, though McCormick does not mention or discuss the theory of mixed government.

[134] *Discourses*, 49.

[135] Fergus Millar seeks to rehabilitate the political role of the plebians and to present them as serious political actors. The traditional scholarly opinion has been that the Roman people's vast constitutional powers meant little in a profoundly aristocratic society. Millar asserts that modern historians of ancient Rome have occupied themselves with the power struggles of the elite and have dismissed or overlooked the role of the people. Millar claims the plebians were the dominant factor in political life. The establishment claims that the people's involvement in politics was largely symbolic. Rhetoric notwithstanding, who among the working classes really took the time to make the journey to Rome or leave work to attend the assemblies? Henrik Mouritsen examined literary and architectural sources in an effort to reconstruct the level of attendance at meetings. See Henrik Mouritsen, *Plebs and Politics in the Late Roman Republic* (Cambridge: Cambridge University Press, 2001), 1–18.

assemblies were key elements in Roman democracy; they elected magistrates that would eventually determine the composition of the senate, decided peace and war, admission to Roman citizenship, and changes to the criminal law. However, in Machiavelli's Rome, the tribunate takes precedence over popular assemblies as the preeminent institution of popular government and merits the most prominent chapter in the entire *Discourses*.[136] After the first chapter on the beginnings of Rome and the second chapter on varieties of republics, Machiavelli writes of the creation of the Tribunes of the Plebs, "Which Made the Republic More Perfect."

## THE TRIBUNATE

The Office of the Tribunes of the Plebs was created soon after the expulsion of the Tarquins when the great – rich and powerful citizens – started abusing people or, as Machiavelli colorfully phrases it, "they began to spit out that poison against the plebs that they held in their breasts." The Tarquins had restrained the nobility. The kingly power, as evinced by the orders of France, harnesses and restrains the mighty.[137] After much tumultuous debate and disorder both the plebs and the nobility agree on the creation of an institution "for the security of the plebs."[138] At this juncture, two points should be made. One is the assumption Machiavelli announces in the first sentence:

> As all those who reason on a civil way of life, and as every history is full of examples, it is necessary to whoever disposes a republic and orders law in it to presuppose that all men are bad, and that they have always to use the malignity of their spirit whenever they have a free opportunity for it.[139]

When designing political institutions, one should start from the premise than men are weak, greedy, and cowardly – essentially anything but virtuous – for as James Madison famously observed, "If men were angels, there would be no need of government." This assumption, it has long been held by one prominent scholarly tradition, marks Machiavelli as the first of the moderns, concerned with institutional architecture rather than the moral fiber and civic socialization

[136] Patrick J. Coby, *Machiavelli's Romans: Liberty and Greatness in the Discourses on Livy* (Lanham, MD: Lexington Books, 1999). Machiavelli's statements on the assemblies do not necessarily amount to a systematic emphasis on assemblies as the core democratic institution of ancient Rome. Machiavelli mentions assemblies in passing. For instance, see Book I, chapter 18, paragraph 3; Book III, chapter 34, paragraph 4; Book I, chapter 5: "Menenius laid down the dictatorship and submitted himself to the judgment that might be made of him by the people;" or Book III, chapter 46: "Although very many assemblies were held over this, and very many tumults generated."

[137] "When the Tarquins, who had kept the nobility in check with fear of themselves, were missing, it was fitting to think of a new order that would have the same *effect* as the Tarquins had had when they were alive." Book I, chapter 3.

[138] *Discourses*, 15.

[139] Ibid.

of the ideal citizen that are the focus of classical, predominantly Greek, political thought.[140] This may well be true as such statements seem to bear the mark of what we might term a liberal turn of mind. However, that which seems precociously modern can appear antediluvian from another angle. There was another Florentine political tradition in addition to the civic republican/civic humanist one that developed after 1400, more specifically after the Balia of 1393 and the Visconti Wars. This tradition had no humanists to eloquently espouse its perfections in terms of Aristotle's *Politics*, but it remained alive in the popular memory. The late medieval guild republic ordered its institutions on the premise that men were bad and the great needed to be restrained. The Ordinances of Justice of 1293 were the guild republic's most spectacular legacy. The Ordinances forbade noble familes from participating in government and forced them to cut down their towers, which had loomed over the urban environment as symbolic structures of private power. The Florentine people established their own councils and offices to balance the legislative and executive institutions dominated by the great, the Council of the Commune and the Podesta.[141]

The second point is the purpose of the tribunes. "They arrived at the creation of the tribunes for the security of the plebs," Machiavelli tells us, using the same term, *sciurtà*, that he used when describing the chief benefit of liberty for ordinary people, the security provided in France by the rule of law and the *parlements* that enforce it.[142] Likewise, in Book I, chapter 45, Machiavelli praises Savonarola, who reordered Florence in a more populist direction with institutions intended "to secure the citizens."[143] Tribunes possessed the power, the *auxilium*, to demand the release of any plebeian seized by a patrician citizen or magistrate – effectively habeas corpus. In ancient Rome, the tribunate was an effective guarantee of the legal rights of any Roman, and it exercised a type of veto called the *intercessio*, which could be exercised against a magistrate's

[140] Paul Rahe's work on Machiavelli is the most erudite exponent of this approach, which may be termed Straussian or at least was influenced greatly by the work of Leo Strauss. While of immense value, this approach tends to favor Greek political thought and history at the expense of Roman. The Romans may have taken to Greek political thought and applied it to theorize their own native institutions, but this does not make the Roman experience of secondary importance.

[141] Lauro Martines, *Power and Imagination*, 4–62. In the years 1343–8 and 1378–82, the guild republic established the Council of the People and the office of the People's Captain. The republic reserved two of the six seats in the Signoria for members of each of the major, minor, and *minuti*guilds. John Najemy, *From Corporatism to Consensus* (Chapel Hill: University of North Carolina Press, 1982), 126–65, 217–63. This process, which proceeded by lot, was based on guild status rather than neighborhood/place, which again emphasizes how unfamiliar the notion of territorial or regional place-based representation was to the Tuscan urban republican mindset.

[142] Book I, chapter 3, 15.

[143] The exact quote is as follows: "Florence, after '94, had been reordered in its state by the aid of Friar Girolamo Savonarola, whose writings show the learning, the prudence and the virtue of his spirit. Among other institutions to secure the citizens, he had had a law made so that one could appeal to the people from sentences that the Eight and the Signoria gave in state cases" (Book I, chapter 45, 93).

decree, an act of a magistrate, or a *senatus consultum*.[144] It appears that in Machiavelli's Rome, the tribunate functions in a manner similar to his French *parlement*, as an institution embodying the rule of law.[145] However, in Machiavelli's telling, the tribunes do more than provide security through the veto and protect legal rights.[146] Tribunes begin to function as mediators over time, finding "that they could ever after be intermediaries between the plebs and the Senate and prevent the insolence of the nobles."[147] They even mediate conflicts among patricians.[148] In addition, Machiavelli's tribunes take the initiative to propose laws.[149]

Most notable, thought Machiavelli, was "the benefit produced in republics by the authority to accuse, which was among others committed to the tribunes."[150] One way the tribunes guarded freedom was through the authority to make accusations, officially indicting government officials and prominent citizens in public for acts judged to endanger the freedom of the state or transgress the constitution. Suspicions of ambitious citizens with tyrannical aspirations, clandestine plots, covert deals, were aired publicly and crushed immediately, if necessary.[151] The tribunate could compel a citizen to give account of his actions before the assemblies.[152] Chapter 3 of this work delineated Machiavelli's stress on transparency in foreign policy decision-making. Accusations offers another instance of the principle of surveillance in institutional design. Moreover, like the dictatorship, accusations provide a routine and ordinary procedure to address the flaws of the Florentine republican institutions, in particular the common

[144] Andrew Lintott, *The Constitution of the Roman Republic* (Oxford: Oxford University Press, 1999).

[145] And as a more effective *Podestà*, a judicial office in the medieval guild republic that was reserved for foreigners. See Martines, *Power and Imagination*, 34–62.

[146] Whether the tribunate actively pursues policies of benefit to the people or is primarily a reactive institution is a matter of debate. Miguel Vatter holds that the tribunate is a passive institution that exercises the veto. McCormick views it as more activist. Machiavelli's description of the tribunate's purpose as providing security for the plebs inclines one to Vatter's interpretation. However, the tribunate was always given the "activist" power to accuse, and over time it acquired the power to propose legislation. The tribunate thus has more proactive authority than the French *parlement*. So often does Machiavelli equate the two that it is easy to overlook the slight but significant difference that evolved over time. See Miguel Vatter, *Between Form and Event: Machiavelli's Theory of Political Freedom* (Amsterdam: Kluwer Academic Publishers, 2000).

[147] Book I, chapter 3.

[148] Book I, chapter 50; Book III, chapter 8.

[149] Book I, chapter 18. As McCormick succinctly and accurately phrases it, the tribunes were both active and reactive.

[150] Book I, chapter 7. For additional information on the powers of the tribunate in ancient Rome, see Lintott, *The Constitution of the Roman Republic*; Mouritsen, *Plebs and Politics*; and John P. McCormick, "Machiavellian Democracy: Controlling Elites with Ferocious Populism," *American Political Science Review* 95, no. 2 (June 2001): 297–314.

[151] Book III, chapter 8.

[152] Book I, chapter 7.

tendency of prominent citizens to resort to extraordinary or extra-legal modes. Going outside the constitutional order has a destabilizing effect and enervates the body-politic over time.

The tribunate makes the two humors effective because it provides the people with their own institution to contest the patricians, who have the senate to give voice to their views (and the consulship to reliably execute the laws). From the standpoint of constitutional design, the tribunate, as an institution, incorporated the democratic element, making Rome a complete mixed constitution. The tribunate thus represents the people and guards freedom as a class-based rather than a regionally based advocacy institution.[153]

Most significant are the powers of the tribunate "that went against the ambition and the insolence of men."[154] This function is critical because the great are more dangerous than the people. The people want only to be left alone. The great have a boundless ambition fueled by resources:

> For so great is the ambition of the great that it soon brings a city to ruin if it is not beaten down in a city by various ways and modes.[155]

The French *parlement* functions like the tribunate when it condemns feudal princes or the king. The *parlement*, like the tribunate, is "an obstinate executor against the nobility."[156]

In a larger territorial state, the nobility are even more powerful and even more likely to capture political offices to serve their interests or "particular good," which is to aggrandize ever more resources, according to Machiavelli, rather than the common good. Moreover, it is hard for any political power to control them. Should the *parlement* fail to punish just one feudal lord, they will rise up and foment disorder.

> The power of the tribunes of the plebs in the city of Rome was great, and it was necessary, as has been discoursed by us many times, because otherwise one would not have been able to place a check on the ambition of the nobility, which would have corrupted the republic a long time before it did corrupt itself.[157]

[153] For a deeper analysis of the tribunate, see John McCormick's discussion in "Contain the Wealthy and Patrol the Magistrates: How Popular Government before Liberal Democracy Controlled Elites," *American Political Science Review* 100, no. 2 (May 2006): 147–63.

[154] Book III, chapter 1. The tribunate also checked the poisonous ambitions of the powerful against one another. To preserve freedom, the tribunes might actually work with the senate. Attempting to restrain warring consuls, the senate appealed to the tribunes for aid. Both institutions forced errant consuls to appoint a dictator (Book I, chapter 50). In Book III, chapter 8, Machiavelli describes another instance in which the tribunes, who consistently favored policies for the benefit of the plebs, once again worked with the nobles to crush Manilus, a potential demagogue. Such instances are the exception rather than the rule.

[155] Book I, chapter 37, 80. See also the opening sentence of Book III, chapter 11, 244.

[156] Book III, chapter 1, 212.

[157] Book III, chapter 11.

The tribunes were not immune from the allure of excessive ambition and at least once they acquired excessive authority, "insolent and formidable to the great and to all of Rome," but the nobles quickly found a way around that potential danger by singling out one tribune to intimidate or trick.[158] This instance of patrician trickery has been interpreted to signify Machiavelli's tacit approval of elite domination.[159] Given that tribunes are manipulated through their "love of the common good" (hoodwinked rather than corrupted) and that in Machiavelli's considered judgment the tribunes always supported what they thought would benefit the people, in addition the fact that elsewhere in the *Discourses* the tribunes are shown protecting the interests of the people, this charge seems dubious.[160] The tribunes are never able to manipulate the senate, though the senate can find a way to go over the tribunes and manipulate the people.[161] The power of the tribunes is great "in the city," but expansion and war outside the city, as we have seen, are equally important to Machiavelli and, if the tribunes act for the people, it appears the people are not participating in government but electing someone to stand for them.[162]

## ELECTIONS

Unlike Greece, where the directly elected assembly was involved in administrative decisions, in Rome the people elected leaders to direct matters of state. One of the great advantages of republics is election as the means of selecting leaders, according to Machiavelli. He states that after the expulsion of the Tarquins, the people of Rome elevated citizens to the consulship, the highest political office, "not by inheritance or by deception or by violent ambition but by free votes," *per suffragi liberi*.[163] Free votes can be taken to mean voting is not weighted according to class, with the wealthier votes counting more. Moreover, contrary to historical fact, in Machiavelli's Rome voting operates by majority rule, which assumes plebeians and patricians are electing consuls together.[164] Elections, which Machiavelli terms "virtuous successions," enable republics to select wise rulers to succeed one another rather than depend on the vagaries of

[158] Ibid.

[159] Straussian scholars make much of Book III, chapter 11.

[160] Book III, chapter 8.

[161] Book III, chapter 11, and Book I, chapter 51. The senate decided to give men in the military a public wage and win the public favor in order to continue to wage war. The tribunes tried to tell the plebs that this wage was not a beneficent gift, for the people would have to pay additional taxes for the wage, but the people accepted the wage nonetheless.

[162] At this juncture it appears that Machiavelli has anticipated Madison in devising a territorial republic based on election.

[163] Book I, chapter 20. Bausi ed., 123. Bausi also suggests "libere elezioni." See also Book I, chapters 18 and 58.

[164] Millar, *The Roman Republic in Political Thought*.

inherited succession.[165] People are better judges of officeholders than princes or small oligarchies.

> I also believe that a prudent man should never flee the popular judgment in particular things concerning distributions of ranks and dignities, for only in this does the people not deceive itself; and if it deceives itself at some time, it is so rare that a few men who have to make such distributions will deceive themselves more often.[166]

In another chapter of the *Discourses*, Machiavelli praises the people's wisdom in electing nobles to the consulate after they realized that though their class as a whole deserved additional political offices, no single plebeian was qualified for the post of tribune with consular power.[167] And in the following chapter it appears that there is a more cynical explanation for plebeian humility: the senate manipulated the candidates so that no viable plebeian would be selected.[168] "It corrupted some vile and very ignoble plebeian who, mixed with the plebeians of better quality who ordinarily asked for it, also asked them for it."[169] Patricians still manage to manipulate the system to their advantage. Ancient Rome suddenly loses its guiding clarity and becomes obscure. We are lost in a strange and fragmentary world. Elections seem to be acclamations of preexisting power arrangements rather than transformative events.[170] In ancient Rome, the patricians determined the policy agenda, and the role of the people was the selection of elite leaders or approval of elite policies.[171] Then again, this example also proves the wise judgment of the people who resolutely chose to elect the most qualified candidates regardless of caste.[172]

Following the mixed government tradition, elections in the *Discourses* are for class-specific institutions and will take place in separate assemblies. In the early days of the Roman republic, patricians compose the senate and the consulate,

[165] Book I, chapter 20, 54.

[166] Book I, chapter 47, 98–9.

[167] Book I, chapter 47, 97. "As it had to pass judgment on its men particularly, it recognized their weakness and judged that no one of them deserved that which the whole together appeared to it to deserve." Such an attitude tacitly approves the status quo. However, the chapter still praises the people rather than criticizing them, which remains unusual, for fear of the demos is a recurrent theme in political theory from Plato to Tocqueville.

[168] Book I, chapter 48.

[169] Ibid., 99.

[170] Machiavelli does not mention lot, the time-honored means by which citizens were randomly selected rather than elected to take political office. For a searching examination of the use of lot in ancient and modern political practice and its eventual disappearance, see Bernard Manin, *The Principles of Representative Government* (Cambridge: Cambridge University Press, 1997). Lot was used in medieval and Renaissance Florence, and Machiavelli would use it in *Discourse on the Reform*. He appears to allude to some sort of lot in Book I, chapter 48.

[171] The man who convened the senate chose the motions to be put to vote, and the senate controlled the agenda of Rome.

[172] For a cogent analysis of this chapter, see McCormick, "Machiavellian Democracy: Controlling Elites," 75.

while the tribunate is reserved for the plebeians. This situation does not endure, for the common people realize that the tribunate is not a sufficient protection from patricians.[173] Plebeians begin to pursue higher political offices. Determined to prevent the consulate from being entirely open to plebs, the senatorial class reaches a compromise: The people would elect four tribunes with consular power, a post created to give plebs a share in consular authority. As already described, despite the compromise elites still contrived to obviate the effect of opening the consulate to the common people.[174]

Plebeians could also be dictators as Machiavelli noted in Book I, chapter 5.[175] Does the right of plebeians to stand for high office contravene the intention of class-specific advocacy institutions? When plebeians became eligible for magisterial offices, they also became eligible for election to the senate. Machiavelli endorses the opening of the consulate to plebeian participation. "Therefore it was fitting at an early hour that the plebs have hope of gaining the consulate, and it was fitting that it come to the effect."[176] Machiavelli seems to think that the attempts by the people to share the spoils and offices held by the nobility is not necessarily wrong nor does it negate the purpose of class-specific institutions. Access to high office is one of the means by which the people maintain equal power with the nobility because the tribunate remains a class-specific office reserved for ordinary people and charged with protecting their interests *despite* the opening of the consulate to plebeians; because patricians always find novel and ingenious ways to manipulate the system to their advantage (witness the machinations of Coriolanus in Book I, chapter 7), so new ways such as opening magisterial offices to plebeians must be devised to keep up with them; and finally, because one of the benefits of life in a republic Machiavelli mentions early in the *Discourses* is the fact that "children are born free and can, through their virtue, become princes."[177] By princes Machiavelli means not a princely ruler, but one chosen via a "virtuous succession" to assume the highest offices in a republic, such as that of a consul, which is the republican equivalent of a hereditary prince, "as through the mode of electing it has not only two in succession but infinite most virtuous princes who are successors to one another."[178]

Three points are worth raising. Machiavelli recommends that the choice of officials be decided by election rather than by a random selection such as lot. The

[173] Book I, chapter 47.
[174] Book I, chapter 48.
[175] Book I, chapter 5, 19. "I say that when Marcus Menenius was created dictator and March Fulvius, master of the horse, *both of them plebians*, [emphasis added] so as to look into certain conspiracies that had been made in Capua against Rome."
[176] Book I, chapter 60, 122. For more on the plebeian struggle for access to the consulate, see Coby, *Machiavelli's Romans*, 80.
[177] Book II, chapter 2, 132.
[178] Book I, chapter 20, 54; see also Book III, chapter 34, 290. Machiavelli maintains faith in the discerning power of the masses.

various bodies represent citizens according to socio-economic status or class rather than by neighborhood or region. And people elect special citizens to represent them – make decisions on their behalf – rather than participating directly.

## ASSEMBLIES AND FREEDOM OF SPEECH

As previously mentioned, Polybius' Book VI stated that the assemblies were the popular element in the ideal balanced constitution. While the tribunate captivates Machiavelli, assemblies are not irrelevant, for they too are the loci of Machiavellian innovation. Roman assemblies and the the Great Council of Florence were venues for voting rather than discussion, which was not permitted. Freedom of speech is not a political principle commonly associated with Machiavelli's political thought, so focused is it, with undeniable urgency, on individual and group action.[179] However, free speech is one of the core principles of his envisioned republic, valuable in its own right and as an index to the vitality of a popular state. In Book I, chapter 58, Machiavelli praises the virtue of the people over that of princes. His praise of the people and popular government reveals a thinker acutely aware of the importance of dialogue. A people may err and become tumultuous and licentious, but, repeating the statement in Book I, chapter 54, a wild and willful crowd "can easily be spoken to by a good man, and it can easily be returned to the good way," and what was once a fault is revealed to be a virtue. However, it is not so with princes, for "there is no one who can speak to a wicked prince, nor is there any remedy other than steel." The contrast between dialogue and violence continues: "to cure the illness of the people words are enough, and for the prince's steel is needed." Free speech is not only a virtue of popular government; it explains the poor reputation of the people:

> the opinion against peoples arises because everyone speaks ill of peoples without fear and freely, even while they reign; princes are always spoken of with a thousand fears and a thousand hesitations.[180]

In Machiavelli's remembered Rome:

> [a] tribune or any other citizen whatever, could propose a law to the people, on which every citizen was able to speak, either in favor or against, before it was decided.[181]

In reality, the presiding magistrate controlled debate, but Machiavelli's vision preserves open discussion before a vote is taken and also before a critical election:

[179] Rightly so, as most revolutionary regimes, including the Swiss, the Netherlands, and the United States, are the products of drastic action.
[180] Book I, chapter 58, 119.
[181] Book I, chapter 18, 50.

So that peoples too do not lack these assemblies, good orderers of republics have ordered that when they have to create the supreme ranks of a city, where it would be dangerous to put inadequate men, and when it is seen that the popular vogue is directed toward creating someone who might be inadequate, it is permitted to every citizen and is attributed to his glory to make public in councils the defect of that one, so that the people, not lacking knowledge of him, can judge better.[182]

The ability to speak in the open on matters of public concern vanish when "only the powerful propose laws, not for the common freedom but for their own power; and for fear of them nobody can speak out against them".[183]

The annals of Rome tell of other practices. The vast spaces of the Forum conjured memories of the crowds that had once filled them, memories at once awe-inspiring and potentially useful for a republican in the modern world. Foremost among them was the appeal to the people, the traditional gesture that embodied the collective political mythology of the sovereignty of the people. Machiavelli relates an "accident" from the early days of Rome. When the plebs had taken refuge on the Sacred Mount, an act of noncooperation, they demanded appeals to the people from every magistracy in addition to the creation of a tribunate.[184] As much as the tribunate enables the people to match the power of the senate, popular appeals guarantee the security of citizens as well as political leaders from arbitrary punishment.[185]

When discussing how difficult it is to order a republic that will endure, almost as an afterthought, Machiavelli adds, "I say that among the other things that have to be considered by an orderer of a republic is to examine in which men's hands he puts the authority to shed blood against his own citizens."[186] In Florence, this last word over capital punishment was first invested in the captain of the people, "who was easily corrupted by the great," and then by the Eight, the *Otto de Guardia*, who were also corrupted: "the few (the eight) were always ministers of the few and of the most powerful." As in ancient Rome, the people will constitute the final court of appeal. Machiavelli offers a reason for opening up the legal process to mass participation: "The judges need to be very many because the few always behave in the mode of the few."[187]

[182] Book III, chapter 34, 289.

[183] Book I, chapter 18, 50.

[184] Book I, chapter 44. In the following chapter, Machiavelli praises one of the new laws Savonarola made when he reordered Florence after the first French invasion of 1494. "Among the other institutions *to secure the citizens*, he had a law made so that one could appeal to the people from sentences that the Eight and the Signoria gave in state cases." Book I, chapter 45 (emphasis added).

[185] Book I, chapter 5. Menenius surrendered the dictatorship and submitted himself to the judgment of the people "after the case had been aired, he was absolved."

[186] Book I, chapter 49.

[187] Book I, chapter 7, 25. For a discussion of this chapter and its assumptions about the wisdom of crowds, see McCormick, *Machiavellian Democracy*.

Machiavelli has offered an elected republic with divided powers in domestic and foreign policy, a senate with substantial authority, a popular tribunate with both legal and political powers, assemblies with open discussion, and a legal process that includes popular participation. But Machiavelli hints that assemblies can only function properly under certain conditions. Furthermore, it remains to be seen if such institutions incorporate the new citizens and vast territorial population Machiavelli recommended earlier.

## THE COLLECTIVE ACTION PROBLEM

"The desires of free peoples are rarely pernicious to freedom because they arise either from being oppressed or from suspicions that they may be oppressed."[188]

The people do not seek to oppress anyone, but they unite when in danger of oppression, which explains why Machiavelli puts the guard of freedom in the people. If the people want only to be left alone, as Machiavelli often remarks, it remains to be seen how they will be organized and united enough to guard freedom. The meaning of "guard freedom" requires elucidation. Moreover, if people can be manipulated by the great, tribunes corrupted, and rich men elected, one is forced to ask precisely how much power can ordinary people ever hope to have?

Individuals are ambitious, self-seeking, and disinclined to work together. While elites, small in number and usually related through marriage, can more easily overcome ingrained selfishness, building a shared sense of community among the common people of a large territory presents a greater difficulty. Building solidarity among the people is crucial, for without an active, vocal, organized populace, a republic will fall to a monarchy or a brutal oligarchy. In order for assemblies to function properly, people must be able to understand issues, recognize their common interests, and speak persuasively. Chapter 57 of Book I, "The Plebs Together Is Mighty, by Itself Weak," explores this problem. The many are often bold in speaking out against the decisions of a prince, but run to obey when alone. There is nothing weaker than a multitude without a leader, "it is easily put down, for once at home each man thinks of his safety," thus all dictatorships begin and tyrannies survive. A multitude has to choose a leader, "to correct it, to hold it united, and to think about its defense, as did the Roman plebs when it left Rome after the death of Virginia and made twenty tribunes among them to save themselves."[189] But a dedicated spokesman was not all:

> It appeared generally to the Roman plebs that it deserved the consulate because it had more part in the city, because it carried more danger in wars, because it was that which with its arms kept Rome Free.[190]

[188] Book I, chapter 4.
[189] Book I, chapter 57, 115.
[190] Book I, chapter 47.

Fighting and dying together for Rome not only made the plebs more conscious of their common interests vis à vis the patricians, it motivated them to seek additional powers in order to adequately contest the great.

"A city that lives free has two ends – one to acquire, the other to maintain itself free."[191] These two ends are not separate but complementary. Expansion enables a republic to remain autonomous, meaning not subject to a neighboring state. Expansion also enables the republic to maintain itself as a realm of liberty for its citizens. Machiavelli has established that in order to survive, a republic must expand. The corollary is that in order to expand, a republic needs a large army. A citizen army, as opposed to an army composed of mercenary professionals, organizes people. In that manner a popular citizen army is the democratic institution outside the city, just as the tribunate is within the city. A popular army gives people sufficient power to bargain with the great.

Pocock intriguingly claimed that Machiavelli's advocacy of the citizen soldier made the *Discourses* a more radical work than *The Prince*. Examining the *Discourses* alongside the *Art of War*, in light of the Aristotelian theory of the ideal citizen, it appears that Machiavelli militarized civic virtue, contending that only a citizen-solider willing to die for his homeland can truly be a good citizen. A virtue of spirit or will, as Pocock phrased it, enriches and quite possibly replaces the older, more sedate virtue of attending assemblies and reasoning in public about the common good. Interpreting Machiavelli to have advanced a novel theory of citizenship based on military service is highly significant, but focus on the individual citizen is a limitation. Without a doubt, Machiavelli believed participation in a popular army would be salutary for the individual citizen. Pocock did not explore an important corollary – the fact that a popular army on the scale Machiavelli envisions vastly increases the number of citizens.

Citizenship in Italian urban republics was not widespread.[192] As discussed in Chapter 2, Machiavelli emphasized Rome's generous grants of citizenship to inhabitants of conquered city-states. Expanding citizenship within Florence or any other urban republic was controversial. Giving citizenship and the political rights it entailed to former citizens of Pisa or Siena, if conquered, or Arezzo or any of the other formerly free republics that had come under the sway of Florence, was radical. The *governo largo* in Florence instituted by the Constitution of 1512, which had expanded the Great Council to about three thousand citizens, was considered much too large for many of the powerful elite, the *ottimati*, of Florence. It was in the garden of one of these *ottimati* who favored Venice and limiting citizenship and political rights, Bernardo Ruccellai, that Machiavelli took part in discussions that formed the basis of the *Discourses*. If the old ignored the vision as engaging in hopeless speculation, much as Guicciardini did, the young took heed.[193]

[191] Book I, chapter 29, 66.
[192] See Rubinstein, "Florentina Libertas."
[193] Consider the young attendees of the *Orti Orticellari*, who fomented rebellion.

"[F]or without *a great number of men, and well armed*, a republic can never grow, or, if it grows, maintain itself."[194]

Rome, Machiavelli reminds us, became great with an open immigration policy and by giving foreigners citizenship and the political rights citizenship entailed. Surrounding cities were conquered, but Rome was clever and far-sighted enough to make the people of conquered cities citizens rather than disenfranchised inhabitants, to encompass them in the embrace of Rome – an embrace that may have proven suffocating, but one that assured the republic's long-term survival. Without large numbers of people a city will never attain greatness, "for without this abundance of men one will never succeed in making a city great."[195] A city can increase its population by providing incentives "by love through keeping the ways open and secure for foreigners who plan to come to inhabit it so that everyone may inhabit it willingly," or by forcible resettlement, "by force through undoing the neighboring cities and sending their inhabitants to inhabit your city."[196] When Rome was still a kingdom, "eighty thousand men able to bear arms inhabited Rome" – surely one of the good orders established by the Tarquins.[197] Sparta and Athens were well armed and well organized as polities but neither had the population of Rome or the institutions to encourage it. Thus neither rose to Rome's greatness:

> No other cause of this can be brought up than that cited before: that through having thickened the body of its city by those two ways, Rome could already put in arms two hundred and eighty thousand men, and Sparta and Athens never passed beyond twenty thousand each.[198]

Sparta intentionally kept its population small:

> Besides not admitting them [foreigners] into marriages, into *citizenship*, and into the other dealings that make men come together, he [Lycurgus] ordered that leather money should be spent in his republic to take away from everyone the desire to come there, to bring merchandise there, or to bring some art there, so the city could never thicken with inhabitants.[199]

[194] Book I, chapter 6, 22 (emphasis added).

[195] Machiavelli's language in Book II, chapter 3 is redolent of republican empire, using *city* and *empire* repeatedly. This would seem to run counter to my argument that Machiavelli envisions an extended republic. My point is not that Machiavelli breaks cleanly with the civic republican tradition, which was an imperialist one, but that at times he sees beyond. He does revert to established terms, and that can mean a reversion to an old mindset. However, it does not always indicate as much as one must pay attention to how the terms are used. In addition, the argument is that Machiavelli is ambiguous and moves between a more novel approach to republican sovereignty and an older paradigm. Book II, chapter 3, 133.

[196] New inhabitants are not described as citizens yet (see *Discourses*, 134). Machiavelli also considers sending colonies of citizens of the old republic to new lands, devoting Book II, chapter 7 to "How Much Land the Romans Gave Per Colonist."

[197] *Discourses*, 135, see Book I, chapter 2.

[198] *Discourses*, 134.

[199] Ibid.

Sparta's policy is risky because "a small republic cannot seize cities or kingdoms that are sounder or thicker than it." Sparta could not hold its acquisitions as a tree cannot support a thick branch. This could never happen to Rome "since its stem was so thick it could easily support any branch whatever." The thick stem is a metaphor for a large capital city with a vast population, and it is evident that Rome did the opposite of Sparta – it did encourage commerce and other economic activity (merchandise and arts, which meant crafts and craft guilds). Unlike Sparta, Rome did allow marriages with foreigners and most significantly, it did admit foreigners into citizenship.

## A CITIZEN ARMY

Machiavelli's theory of the citizen army as a partial remedy for the urban-rural divide that prevented Florence from becoming "one organic growing state" was previously discussed. As well as forming a superior army, Machiavelli claims soldiers make better citizens, an assertion that presumes plebeian soldiers have been granted citizenship.[200] Enrolling huge numbers of the plebeians of conquered republics in the army and granting them political rights is of great consequence. More people have rights to participate in government, and they have an additional bargaining chip, so to speak, in their peaceful contestation with the great. This additional plebeian bargaining power comes not from the fear of armed revolt, but from plebians' sense of themselves organized as a class and from the knowledge that the defense, and therefore the life of the republic and the maintenance of its liberty, depend on them. Now we more fully understand the dual meaning of constituting the people as a guard of freedom. Through the tribunate, the people guard freedom by preventing noble usurpation and domination, which is the primary threat to a republic's internal freedom. Through a popular army, the people guard freedom by being deployed to its borders, by protecting the state, and by ensuring its continued existence as a free state. Ordinary people guard a free way of life inside borders (*sicurtà, libertà*, and *vivere civile*) and the independence of the republic from external conquest and servitude. Crucially, the people know this: that a free way of life depends on their willingness to die in war, so they make demands, which presupposes political rights, and the recognition that they bear the burden of war forces nobles to acquiesce to their demands.

> When the people wished to obtain a law, either they did one of the things said above or they refused to enroll their names to go to war, so that to placate them there was need to satisfy them in some part.[201]

[200] Pocock, *The Machiavellian Moment*, 200–1.

[201] Book I, chapter 4. Note the bargaining process described in the controversies over agrarian legislation (Book I, chapter 37; Book III, chapter 8) and consulate eligibility (Book I, chapter 13; Book I, chapter 39; Book I, chapters 47 and 48).

Ordinary people hold a trump card. Tiring of wars and wishing to have more influence over policy decisions that affect them, the Roman plebs thought "that it might be necessary either to remove the consuls or to regulate their power so that they did not have authority over people either outside or at home."[202]

Elsewhere, Machiavelli states that the plebians felt they deserved the consulate because they fought the wars that maintained Rome as a free state. Being the guard of liberty indirectly gives the people more power – a power they need because of the constant threat of elite manipulation and the imbalance of resources.[203] When discussing why Roman army commanders could not treat soldiers with harsh cruelty, Machiavelli reveals what being the guard of liberty through a popular army and a tribunate means: Ordinary soldiers were not subjects of but *partners with* the nobility:

> and because the Roman plebs had equal command in Rome with the nobility, one individual who became prince of it for a time could not manage it with cruelty and coarseness.[204]

Even in the military, which requires a hierarchy of command, the lowest soldier must be treated decently because outside a solider is a commander's political equal.

Not only are the people empowered to make demands, which are articulated by the tribunes, but the nobility compromises, even though they were not disposed to do so. The nobility has to compromise because the plebs provide defense. In this example, rather than open the consulate to plebeians, tribunes with consular power are created in order to preserve patricians' dignity, if not their power.[205] Given that Rome has vastly more plebeians with political rights

[202] *Discourses*, 84. Machiavelli states that the plebeians did not realize that Rome's enemies were the reason for Rome's constant wars. Instead, they wrongly attributed it to noble attempts to destroy the people by luring them away from the protection of the tribunes. Nevertheless, the plebeians prevail. Both sides compromise and tribunes with consular power are created. With respect to where "home" ends and outside begins, it is unclear whether the city of Rome is the boundary or the borders of the republic.

[203] The great already possess more resources and have a head start on acquiring more. See Book I, chapter 13 on the uses of religion. The office of tribunes with consular power is later eliminated. This could be seen as a victory for the nobles, but they had already managed to get patricians elected, as Machiavelli relates. However, Machiavelli seems to approve of the election of patricians in this instance because the plebeian agitation for consular power was based on a misapprehension.

[204] Book III, chapter 19, 260. The full quote is as follows: "I say: you have to rule either men who are ordinarily partners with you or men who are always subject to you. When they are partners with you, one cannot use punishment entirely, nor that severity on which Cornelius reasons; and because the Roman plebs had equal command in Rome with the nobility, one individual who became prince of it for a time could not manage it with cruelty and coarseness."

[205] Book III, chapter 19. They are later uncreated. Book I, chapters 47, 85, 96, and 97. The plebians actually elect one patrician to an office intended for them exclusively (Book I, chapter 13). This election probably means what the chapter of the title suggests – that people are better judges of specifics rather than generalities. However, later, after being manipulated

and these citizens fill the ranks of the army and know they do so, the healthy contestation Machiavelli prizes seems less opaque.

Confrontation remains nonviolent because humors are vented through appropriate orders (Book I, chapter 7) and also because of the constant threat of war. Common enemies do not unite the Romans to a consensus, but set up limits and require eventual compromise:

> For since the whole city – both the nobles and ignoble – was put to work on war, so many virtuous men emerged in every age, decorated from various victories, that the people did not have cause to fear any one of them, since they were very many and guarded one another.[206]

Thus war unites both classes in a common endeavor. The constant presence of war supplies a boundary that neither patrician nor plebeian will cross:

> The Roman republic was stirred up by the enmities of the nobles and of the plebs; nonetheless, when war was upon them, they sent out Quintius and Appius Claudius with the armies.[207]

For the discord and class suspicions to help rather than hurt the republic, there has to be some level of comity and shared commitment between classes.[208] An angry mob, for example, listens quietly to a dignified patrician, and domestic peace is restored.[209] The ability of the classes to work together "show[s] the goodness of all the orders of that republic."[210] Rome's decline begins when it has conquered all enemies. Foreign enemies were common enemies, and the constant waging of war united patrician and plebeian enough to keep discord within bounds of civil law and custom. Once Rome dominates abroad and has no external enemies, the boundary vanishes.

> For after the Romans had subdued Africa and Asia and rendered almost all Greece to obedience, they became secure in their freedom as it did not appear they had any more enemies who ought to give them fear.[211]

Compromise is no longer necessary, and discord spills over into violence. Moreover, plebeians lose their bargaining power when the threat of invasion diminishes. The fact that they fight the wars no longer carries the weight it once did, so the refusal to fight is no longer the ultimate trump it once was. At the same

by nobles under the guise of religion, the plebeians actually elect all patricians to be tribunes with consular power. This event could either emphasize the necessity of class-specific institutions or be meant to persuade elite readers that giving people power will not hinder elite control.

[206] Book I, chapter 31, 68.
[207] Book III, chapter 19, 260.
[208] Coby, *Machiavelli's Romans*, 31. "The common cause of defeating enemies in war helps to make friends of patricians and plebs."
[209] Book I, chapter 58.
[210] Book III, chapter 8.
[211] Book I, chapter 18, 50.

time, as Machiavelli tells us, inequality, most notably economic inequality, increases, and inequality is inimical to republics.[212]

At this point it might appear again that Rome has nothing to teach early modern republicans other than how to delay the corruption attendant upon all forms of government and human endeavor. The Polybian cycle may be slowed but cannot be escaped. It is possible, though, to elicit from scattered comments in the *Discourses* ministrations that might prevent a territorial republic from collapsing as the Roman republic did. First, Machiavelli condemns what he calls the "prolongation of commands."[213] Extending the authority of the consul abroad seemed sensible at first, but over time it "ruined the republic." As Machiavelli observed, "For the farther the Romans went abroad with arms, the more such extension appeared necessary to them and the more they used it."[214] Lengthening consuls' commands engendered two negative effects. One was that fewer citizens acquired experience leading campaigns, which restricted the pool of potential leaders. The second baleful consequence was that a consul would gain the loyalty of his soldiers at the expense of the senate and the republic at large. The rise of private armies enabled Sulla and Marius to wage civil war and, Caesar arose on the ashes. Prolonging commands enabled Rome to conquer too quickly with all the attendant effects of rapid territorial acquisition. The remedy, then, Machiavelli suggests, is not to prolong commands, which entails shorter wars and a less aggressive expansionist policy.[215] This remedy does not mean that a republic would be less able to defend itself and expand strategically as required, but simply that a warlike republic might last longer if it refined its vision of glory.

In addition to the long wars that extended commands, the long simmering controversy over the agrarian laws eventually exploded into violence. These were the two maladies that corrupted and destroyed the Roman body politic. Scholars have blamed both plebians and patricians equally for the destructive passions unleashed by the laws or have attributed more fault to one side or the other. Rather than apportion culpability, the remedy Machiavelli proposes warrants closer investigation. Eric Nelson demonstrates that Machiavelli's discussion of the agrarian laws in Book I, chapter 37, which appearing traditionally Ciceronian at first glance, actually contains a more original "profoundly

[212] Book I, chapters 17 and 18. I agree with Eric Nelson that Machiavelli is concerned about the pernicious effects of economic inequality as well as legal and political inequality. See Eric Nelson, *The Greek Tradition in Republican Thought* (Cambridge: Cambridge University Press, 2004), 77. In fact, it appears that, in Machiavelli's mind, the former engenders the latter. "This security and this weakness of their enemies made the Roman people no longer regard virtue but favour in bestowing the consulate, lifting to that rank those who knew better how to entertain man rather than those who knew better how to conquer enemies" (Book I, chapter 18, 50).

[213] Book III, chapter 24, 270.

[214] Ibid.

[215] Ibid.

anti-Roman strain in his thought."[216] As Machiavelli describes it, the agrarian laws "set forth that no citizen could possess more than so many *jugera* of land; in the other, that fields taken from enemies should be divided among the Roman people."[217]

The patricians shrewdly used all means available to distract the plebians and delay the laws. By the time the Gracchi revived the laws, the patricians had accumulated so much property and wealth from vast conquests and the plebians had been reduced to such a dire state of economic vulnerability that any discussion immediately inflamed a mutual hatred that could not be contained peacefully. Whereas Machiavelli appears to blame the nobility at the end of Book I, chapter 37, he also finds the law and, by extension, the Roman republic defective: "Because well-ordered republics have to keep the public rich and the citizens poor it must be that in the city of Rome there was a defect in this law."[218] However, the more significant point is that he praises the intention of the Gracchi for reviving the agrarian laws but states they were politically unsophisticated for doing so. "For to try to take away a disorder that has grown in a republic, and because of this to try to make a law that looks very far back, is an ill-considered policy."[219]

If there is a remedy for the vast inequality that tore the republic apart, Machiavelli implies that it would encompass a more carefully crafted statute along the lines of the agrarian laws. Although justice and a just distribution of resources do not appear to have entered his thinking or act as a criterion, the survival of the republic is an ultimate end, and this, it would seem, requires property, at the very least conquered property, be divided among citizen soliders, both to prevent the excessive accumulation of wealth on the part of the senatorial order and to ensure that soldiers remain loyal to the republic, in which they have a stake, rather than to their commanders, on whom they might otherwise depend for their livelihood.

## THE POWER OF PEOPLE

"Liberty, when men act in bodies, is power."[220] Machiavelli has often been studied as one of the premier theorists of power. While he does discuss how to acquire, maintain, and use political power (in the sense of power based on force and symbolized by the executioner), he also discusses another form of power, and this aspect of Machiavelli has been less or studied. The type of power in question is the opposite of power based on force; it is power based on

[216] Nelson, *The Greek Tradition*, 76.
[217] Book I, chapter 37, 79.
[218] Ibid. See also Book III, chapter 25, "On the Poverty of Cincinnatus and of Many Roman Citizens." See also Nelson, *The Greek Tradition*, 75.
[219] Book I, chapter 37, 81.
[220] Edmund Burke, *Reflections on the Revolution in France*, ed. Conor Cruise O'Brien (London: Penguin Books, 1968), 91.

cooperation.[221] This is the power of the people and Machiavelli could well be considered its first modern theorist.

In addition to expanding citizenship and establishing a popular army and a tribunate, Machiavelli envisioned a power based on popular will – a nonviolent, "cooperative" form of power, what Vaclav Havel referred to as the "power of the powerless," a collective *virtù*, to ensure that the people of a modern extended republic would not be oppressed by elites. Florence's past as a populist republic of guilds as well as the protests and popular movements that filled the streets of Florence and other European cities in the fifteenth and sixteenth centuries intensified Machiavelli's unique vision of the Roman crowds. Machiavelli saw the Roman crowd with new eyes: not as a mob but as a group acting collectively with distinct aims and goals. "The Plebs Together Is Mighty, by Itself Weak."[222] Wherever the reader turns in the *Discourses*, there are people – people flooding into the streets, boycotting the army, abandoning the city.[223] Collectively, the people are as proud and as self-possessed as the senate. To protest the tyrannical actions of the newly created Decemvirate, the armies leave their posts and go with the people to the Sacred Mount, "where they stayed until the Ten laid down the magistracy."[224] The Roman people defy the senate and take refuge in the Etruscan town of Veii after the invasions of the Gauls.[225] When the plebs are suspicious of the actions of the government, as when they suspected that tax money had been usurped by private citizens, the plebs "begin to make a crowd and to make many tumults to its own purpose in the city." However, this mysterious form of power that intrigues Machiavelli is precarious. To prevent self-interest and individual fear from dominating a crowd and dissipating its collective power, the people have to elect a leader "to hold it united, and to think about its defense."[226]

The power of government depends on civil obedience. As political activists from Mohandas Gandhi, to Martin Luther King, to Vaclav Havel have understood, the power of the people depends on civil disobedience. From the examples in the *Discourses*, it is reasonable to claim that Machiavelli recognized the enormous potential in civil disobedience. Early in the *Discourses*, he observes that "the tumults of Rome rarely engendered exile and very rarely blood." Paradoxically, Machiavelli envisions popular participation through organized noncooperation with the government. All Machiavelli's examples are of nonviolent political action. Machiavelli is often thought of as the theorist of the economy of violence. However, in the *Discourses*, he envisions a state based on the rejection of

[221] Jonathan Schell, *The Unconquerable World* (New York: Metropolitan Books, 2003).
[222] Book I, chapter 57.
[223] "The Senate against the people, running tumultuously through the streets, closing shops, the whole plebs leaving Rome." "They refused to enroll their names to go to war." Book I, chapter 4.
[224] Book I, chapter 40. After this, "Tribunes and consuls were created, and Rome was brought back to the form of its ancient freedom."
[225] Book I, chapter 57.
[226] Ibid.

political violence and the embrace of its cooperative equivalent. See the people "running tumultuously through the streets, closing shops, the whole plebs leaving Rome."[227] More specifically:

> Among these the city of Rome had this mode: that when the people wished to obtain a law, either they did one of the things said above or they refused to enroll their names to go to war, so that to placate them there was need to satisfy them in some part.

When the plebs are suspicious of the actions of the government, as when they suspect that tax money had been usurped by private citizens, the plebs "begin to make a crowd and to make many tumults to its own purpose in the city." The genius of Rome lies in the fact that it created orders to respond to popular agitation with an institutional procedure and thus channeled people power into an effective check on government policy,[228] as when the tumults encouraged by Manilus lead the senate to appoint a dictator to inquire into the claim that public monies were directed to private coffers.[229] Machiavelli's vision of Roman people power was grounded in history as well as his imagination. The Roman plebs had a tradition of resisting the aristocrats when they felt oppressed.[230] The Roman people did have a voice concerning policies that affected them.[231] "Popular agitation forms the background to the attacks on senatorial policy over Jugurtha and to the subversion of Sulla's measures through the restoration of grain distributions and of the full powers of the tribunes."[232]

In early modern Europe, ordinary people were participating in politics in ways remarkably similar to Machiavelli's suggestive descriptions of the Roman plebs.[233] Tax revolts and conscription riots were the most common forms of collective resistance to unpopular policies.[234] Such resistance was primarily

[227] Book I, chapter 4.

[228] Gaetano Mosca has an interesting comment in this regard: "Of all the ancient states, republican Rome was the one in which juridical defense was most solidly established, and in which civil strife was, therefore, least bloody and least frequent. During the protracted conflicts between patricians and plebians there was no lack of disorders in the Forum. But for whole centuries there was no case of a faction violently usurping power or exiling its adversaries." Gaetano Mosca, *The Ruling Class* (New York: McGraw-Hill, 1939), 204.

[229] Book I, chapter 8. "Then the dictator at once had him summoned, and the two came out in public confronting each other, the dictator in the midst of the nobles and Manilus in the midst of the plebs." It is interesting to note that many communities in early modern Germany arranged debates between Catholics and Evangelicals as part of the political process leading to the adoption of reform.

[230] Lintott, *The Constitution of the Roman Republic*, 196.

[231] The extent to which this capability ever led to any results or improvement in the condition of the plebian class remains under debate by Roman historians.

[232] Lintott, *The Constitution of the Roman Republic*, 205.

[233] Book I, chapter 2. "When the Roman nobility became insolent for the causes that will be told below, the people rose up against it; so as to not lose the while, it was constrained to yield to the people its part."

[234] Te Brake, *Shaping History*, 7.

local, and the basic unit of popular political action in sixteenth-century Europe was the chartered town or rural village; hence people acting in defense of local freedoms, homes, and conditions, illustrated Machiavelli's claim that "the people want only not to be oppressed."[235]

In 1525, a peasant rebellion swept across southern Germany. Representatives of three peasant armies drew up "The Twelve Articles of the Peasantry of Swabia," which united a broad coalition of subjects in the goal of transforming southern German society from a land of serf and lord to a free society. Five years earlier, Castile had exploded in the great *Comunero* revolt, in which the urban communes led by textile workers from the city hall in Segovia rebelled against the domineering Spanish monarchy. In Florence, the fierce sermons of the Dominican priest Savonarola ignited an urban insurrection that overthrew the Medici in 1494 – a feat of collective action Machiavelli witnessed and remembered. Another popular rebellion would again overthrow the Medici and reinstate the Florentine republic – fittingly in 1527, the year of Machiavelli's death. Savonarola's religiously inspired movement of the people presaged the Reformation. Undoubtedly the greatest example of the power of the people in the sixteenth century, the Protestant Reformation, a political as well as religious rebellion, was made possible by popular action in response to evangelical preaching. Primarily a municipal movement, urban reformations gathered steam and spread through Germany and Europe. Protestantism, it has been written, "embodied a muffled revolution against the alliance of imperial and noble authorities." The Protestant Reformation was by and large an extraordinary movement of ordinary people in towns and villages, the product of an alliance among rural peasants, urban artisans, lawyers, and popular preachers. Religion enabled resistance movements to overcome boundaries separating city and country, rich and poor. In the second half of the sixteenth century, the United Provinces of the Northern Netherlands revolted against their imperial Catholic Spanish overlords, with the Dutch performing the feat of popular liberation from an occupying empire Machiavelli prayed would be fulfilled by the Italians.

In the next century would come the rebellion to dwarf all others, the rebellion that for a year threatened to transform the basis of social and political authority in Europe: the Revolt of Naples. For a few months starting in July of 1647, ordinary people challenged what seemed to be the inevitable movement of the age toward rule by a few, backed, as it often is, by force. The revolutionary coalition declared its independence from Spain and the creation of a

[235] In addition to te Brake, *Shaping History*, 31, see also George Rude, *The Crowd in History: A Study of Popular Disturbances in France and England 1730–1848* (New York: John Wiley & Sons, 1964), as well as Natalie Zemon Davis, *Society and Culture in Early Modern France* (Stanford: Stanford University Press, 1975). "The aim of the people is more honorable than that of the nobility, since the latter desire to oppress others, while the former desire not to be oppressed." *The Prince*, chapter 9.

revolutionary republic in October 1647. Had it been successful, the revolt could have set Naples on a different historical course, but Spanish military force defeated the urban revolution and henceforth the Madrid government would treat Naples with more coercive force.[236] The problem the people of Naples and other people across Europe faced was that revolt was easy; securing a durable transfer of power over the long term was much more difficult.

Charles Tilly has noted that the conditions that are conducive to the appearance of revolutionary situations are differ significantly from those conditions that give rise to revolutionary outcomes that engender striking transformations of political power.[237] A prime example is the futility of the expansion of the Florentine political class in 1495, bitterly resented by the elite of Florence.[238] Electoral controls were so powerful that the elite could allow the Great Council to be expanded without fear of any challenge to their political leadership. The popular revolt did not percolate down to effect real change.[239] There were many revolutionary situations in early modern Europe but few revolutionary outcomes. Whether by stealth or by force, elites prevailed. While Europe seethed with rebellions, political theorists, except for Machiavelli, basked in esoterica. "From 1530 on to the late sixteenth century there was a great fashion for solving problems of political instability by spinning ideal schemes."[240]

The political dynamics of the Reformation process are instructive in understanding the problem Machiavelli, as someone aware of the potential power of the people, faced. The broader the territorial scale of the revolt, as it moved from urban to territorial, the more likely princes would prevail. "As local conflicts aggregated into general war, the likelihood of a well organized and durable popular political challenge on that scale diminished while the collective strength of princes increased."[241] Another reason revolts rarely led to enduring republican forms of government was the lack of arms. Rural peasants and urban communities did not possess arms, and ruling elites were systematically monopolizing them. The challenge before Machiavelli is to institutionalize people power on a territorial scale. This, as we have seen, Machiavelli attempted to do by making a popular army a civic institution.

In light of history, Machiavelli's awareness of the potential power of the people is remarkably prescient. Thus did his excavation of ancient Roman political life enable him to see past the prejudices of the day. It was his awareness of the power of the people that made him dare hope the liberation of Italy might

[236] Te Brake, *Shaping History*, 135.
[237] Charles Tilly, *European Revolutions 1492–1992* (Oxford: Blackwell, 1993), 10–15.
[238] Gilbert, *Machiavelli and Guicciardini*.
[239] As Najemy observed, "Expanding the base of the pyramid made its pinnacle rest more securely." *From Corporatism to Consensus*.
[240] Martines, *Power and Imagination*.
[241] Te brake, *Shaping History*, 40–6. Peasant armies in the countryside were defeated while urban reform movements were successful.

be accomplished in his lifetime.[242] The ability to see backward and forward beyond his time may have led him to overestimate his own epoch. However, one of the most powerful forces of the modern age is the will of the people to reject foreign rule, so not without reason did leaders of the Risorgimento look back on Machiavelli as a father of the movement to unite the Italian nation.

## SCANDALOUS GENTLEMEN AND GOOD CITIZENS

In the Baroque period, political writers' rejection of Machiavelli "was motivated not least by their fear of a theory of state which could be used to *overturn the established social and political order*."[243] Political writers who chided Machiavelli for the amoralism of *The Prince* were all too aware of the revolutionary potential of the *Discourses*. The prevailing aristocratic bias took root in the mind of formerly civic Italy, and the next generation of political thinkers would see the people as a wild beast to be watched, regulated, and kept out of government.[244]

At this juncture, chapter 55 of Book I is instructive both for its emphasis on the social conditions conducive to republican government and for its praise of a particular region that possesses such characteristics. Book I, chapter 55, contends "That Where There Is Equality, a Principality Cannot Be Made, and Where There Is Not, a Republic Cannot Be Made." With reference to Germany, Machiavelli observes that a political and uncorrupt way of life survives in republics where people "maintain among themselves an even equality" and have no gentlemen. Gentlemen are dangerous, the origin of corruption and scandal. Gentlemen, he explains, do not have to work for a living because they are able to live grandly off the income from their property.

> Such as these are pernicious in every republic and every province, but more pernicious are those who, beyond the aforesaid fortunes, command from a castle and have subjects who obey them. Of these two species of men the kingdom of Naples, the town of Rome, the Romagna, and Lombardy are full. From this it arises that in these provinces no republic or political way of life has ever emerged, for such kinds of men are altogether hostile to every civilization.[245]

[242] In the words of Gramsci, Machiavelli's works were addressed to "the revolutionary class of the time, the Italian people and nation, the democracy that gave birth to the likes of Pier Soderini rather than Valentino." Gramsci, *The Prison Notebooks*, vol. II, trans. and ed. Joseph A. Buttigieg (New York: Columbia University Press, 1996), notebook 4, book 8.

[243] Koenigsberger, *Estates and Revolutions*, 290 (emphasis added).

[244] Martines, *Power and Imagination*.

[245] Book I, chapter 55, 111. "Questi tali sono perniziosi in ogni republica e in ogni provincial; ma piú perniziosi sono quelli che, oltre alle predette fortune, comandano a castella, e hanno sudditi che ubbidiscono a loro. Di queste due spezie di uomini ne sono piene il regno di Napoli, terra di Roma, la Romagna e La Lombarida. Di qui nasce che in quelle provincie non è mae surta alcuna republica né alcuno vivere politico, perché tali generazioni di uomini sono al tutto inimici d'ogna

"Castles" are crenellated fortresses and the "subjects," *sudditi*, are retainers who might also serve as mercenaries. The point to be taken is that subjects *obey*. There is no dialogue; communication proceeds through a one-way command. Obedience captures a master-servant relationship strikingly similar to that of republics and conquered cities – a relationship diametrically opposed to the equal partnership Machiavelli finds in ancient Rome. Because of such conditions, a political life cannot take root in Naples or Lombardy. People cannot assume equal command politically from a situation of complete social or economic subjection. Again, as a republic destroys freedom by dominating its subjects abroad, rich men of leisure destroy freedom by controlling all resources and dominating their subjects.

Hans Baron called Book I, chapter 55, the most meaningful assertion of the republican spirit found in Renaissance thought because of its emphasis on the ingredients of republican and lawful political life.[246] Machiavelli draws a notable connection. *Vivere civile* cannot exist where there is too much inequality. In such provinces, full of gentlemen and vast inequality, lords and masters, a kingdom may be introduced because the kingly arm might "place a check on the excessive ambition and corruption of the powerful."

Machiavelli then points to the example of Tuscany to illustrate his theory. The preponderance of urban republics, especially the three proud ones that remain independent in Tuscany (namely, Florence, Siena, and Lucca), is highly unusual.

> All this has arisen because in that province there is no lord of a castle and no or very few gentlemen, but there is so much equality that a civil way of life could easily be introduced there by a prudent man having knowledge of the ancient civilizations.[247]

Moving back to the general, he observes, if you want to make a republic in a province full of baronial lords or landed gentleman (the two categories of nobility), you must eliminate all of them. If you want to make a kingdom in a province where there are no gentlemen, you have to make them. Find those men who have an ambitious and restless nature, then give them possessions and power over others. It is only then that you have the right conditions for a kingdom or worse. Human nature has endowed men with ambition and a thirst

civilità." Bausi ed., 265–6. Bausi observes that Machiavelli is probably thinking of the Orsini and Colonna families with respect to Rome.

[246] Hans Baron, "Machiavelli: The Republican Citizen and the Author of *The Prince*," *The English Historical Review* LXXVI (1961): 217–53. Baron distinguishes *vivere politico* from *vivere civile*.

[247] Book I, chapter 55, 112. "Tutto è natto per non essere in quella provincial alcuno signore di castella e nessuno o pochissimi gentili uomini, ma esservi tanta equalità che facilmente da uno uomo prudente, e che delle antiche civilità avesse cognizione, vi s'introdurrebbe uno vivere civile." Bausi ed., 267. Machiavelli adds, "But its misfortune has been so great that up to these times it has not been beaten by any man who has been able or known how to do it." Book I, chapter 55, 112. "Ma lo infortunio suo è stato tanto grande che infini a questi tempi non si è abbattuta a alcuno uomo che lo abbia possuto o sapto fare." Bausi ed., 267. *Abbattuta* is also reminiscent of what a prince must do to fortune in chapter 24 of *The Prince*.

for trouble, but they only become a problem when given extra possessions and resources that translate to social and economic power. This is a critical point overlooked by scholars who claim people and the great are equally dangerous to the health of the republic. Human nature is not to blame, for it is only when human nature is aided and abetted by excessive wealth and status that trouble arises for republics. Venice does not call his theory into question because the Venetian aristocracy is not a feudal aristocracy. They work for a living, engage in commerce, and do not have castles or serfs. They do not dominate in quite the same way.[248]

At this point it will help to identify the elites, the *grandi*, whom Machiavelli refers to in both ancient Rome and sixteenth-century Florence. The patricians of Rome were a closed class distinguished by birth as well as status and wealth. Rich plebeians could gradually join the patrician class through marriage, but opportunities were slim. In the Middle Ages, Florence possessed a "magnate class" that bore a slight resemblance to the feudal aristocracy of Europe, a resemblance consisting mainly in the ability to foment disorder rather than in antique lineage.[249] In the fifteenth century, a new economic nobility, made possible by Florence's dynamic banking and wool economy, superseded the old nobility of blood. The use of terms such as *nobile*, *grandi*, and various synonyms such as *ottimanti* and *signori*, were suggestive of power, status, and possibly heritage until the middle of the sixteenth century and the refeudalization of Tuscany under the grand dukes established a closed, more easily identifiable class.[250] The elite in Florence might be of ancient aristocratic extraction, but such lineage was rare. In part because there was a degree of social mobility in commercial Florence, its mercantile elite, though powerful, had little in common with the landed aristocracy elsewhere in Italy. In Tuscany, there were elites but no *gentiluomini* living in castles using income generated from great estates while contributing nothing to *civilità*. Despite the civic equality and lack of landed nobility, there were mercantile elites, prominent *grandi*, who expected to take a leading role in politics and would bring down a regime that denied them that role, just as they had brought down the republic of Soderini.[251]

[248] "But that name of gentlemen among them is a name of dignity and reputation without being founded upon any of those things that make them be called gentleman in other cities." Book I, chapter 5, 113.

[249] Gene Brucker, *Florentine Politics and Society 1343–1378* (Princeton: Princeton University Press, 1962), 29.

[250] Book I, chapter 5.

[251] See Felix Gilbert, "Florentine Political Assumptions." When the Florentine popular republic disenfranchised the magnates, it arguably made the regime unstable because the magnates became determined to destroy the regime by colluding with external enemies or leaders of the wealthier guilds. See Martines, *Power and Imagination*, 48–50.

Previous chapters argued that Machiavelli had hopes for Tuscany and parts of central Italy.[252] In *Making Democracy Work: Civic Traditions in Modern Italy*, Robert Putnam found that civic virtues or what he termed civic trust or "social capital" had survived, despite the depredations of the centuries, in precisely those parts of Italy Machiavelli thought most suited for a republic – in Tuscany and central Italy, which were predominantly urban and lacked a powerful feudal nobility, and where the economy was based on small businesses, craft, production, and trade rather than on agriculture. Gentlemen are "hostile to every civilization" because they have too much power, and the hierarchical social relations that accompany them destroy the reciprocity needed to maintain civil life, *civilità*, which encompasses civil and political ways of life (*vivere civile* and *vivere politico*). Pocock states that Machiavelli's meaning in Book I, chapter 55, is vague.[253] Actually, Machiavelli's meaning seems quite clear: social domination conditions political domination.[254] Machiavelli's point is even sharper: a republic needs enough people of the middling sort, as well as a popular army, for institutions to function properly. Institutional design is not enough. For the tribunes to protect the people and act on their behalf, for people to speak openly in assemblies and understand shared interests, for ordinary people to make accusations unafraid, a republic needs a citizen army and a certain "even equality" among citizens. No matter how ingenious the modes and orders devised, with extremes of wealth and poverty a republic is impossible.

Recall that Tuscany supports independent republics thirsting for freedom, so fertile is its ground that "a civil way of life" could be introduced "in that province" by "a prudent man having knowledge of the ancient civilizations." Machiavelli had pondered the possibility of introducing a league of republics in Tuscany as a second-best option for republics to expand territorially. The operative point is that Machiavelli muses about introducing a republic in the "province" of Tuscany, not in the city. His vision at this point is no longer city-centric but involves introducing a republican way of life on a territorial rather than urban scale.

## ORDINARY PEOPLE: PLEBEIANS IN THE RENAISSANCE

Machiavelli appears to believe that there are a variety of people in his era who collectively mirror the plebeians of Rome. In the ancient world, the term *plebeian*

[252] Pisa, Siena, and Lucca were free republics. Pisa was under Florentine rule but periodically rebelled, as discussed in Chapter 2. Ferrara and Urbino were accustomed to princely rule of a humane variety. The papal territories that included the lands around Rome, Perugia, Bologna, and the Romagna were closer to corrupt states; therefore, Machiavelli offers advice on how to govern corrupt states and bring them closer in line to a free way of life (kingly arm or civil principality), which is consonant with his gradualist approach to territorial consolidation.

[253] Pocock, *The Machiavellian Moment*.

[254] In recent decades, political science scholarship has elaborated on this basic intuition.

encompasses all those who were forced to sell their labor in return for wages. The plebeians of Rome, the *populi Romanus*, comprised the poor freemen, peasants, the masses of urban working people, artisans, shopkeepers, and craftsmen. In brief, the plebs were the common or ordinary people who formed the majority of Roman citizens in contrast to the small elite of a lucky few thousand forming the patrician and equestrian social orders.[255] In the sixteenth century, the peasants and rural artisans in the countryside and the mercantile bourgeoisie and craftsmen of the cities were the functional equivalent of the Roman plebs in socio-economic status if not in political rights. Ordinary people in early modern Europe – peasants, artisans, notaries, doctors, apothecaries, teachers, and the urban middle classes – were behind the *Comunero* revolt in Spain and popular reformations in Germany and Switzerland. Later in the seventeenth century, they led the second Reformation of France and the Low Countries and the revolutionary struggles in Spain and southern Italy.[256] The most spectacular revolt of the next century, the Revolt of Naples, was fomented by a fisherman and a lawyer, encapsulating the alliance between the middle classes and working classes into a political force broad enough to challenge the powerful small elite class.[257]

In Florence, the plebs included the *popolo minuto*, the little people, comprising the members of guilds – cloth workers, glassmakers, blacksmiths, merchants, notaries, painters, and sculptors.[258] The Italian countryside was highly diverse. Across the Tuscan state, in Siena, Pisa, Prato, Arezzo, the city-states of the former Florentine empire, and the territories conquered by Cesare Borgia, the Romagna and Urbino, there were thousands of small towns, villages, each with peasants, landholders, farmers, professionals, smiths, cobblers, doctors, notaries, apothecaries, and teachers.[259] Unlike the Roman plebs, many of these people did not realize they had interests in common. *Campanilismo*, city walls, and the stark contrasts between urban and rural ways of life kept ordinary people apart and prevented them from making common cause. Popular resistance had to be organized on a geographically and socially wider basis than had been necessary before.[260] Gramsci, intensely aware of this historical imperative, stated that Machiavelli wanted the great mass of peasant farmers to burst onto the political scene.[261] It is probable that Gramsci was projecting his

[255] Mouritsen, *Plebs and Politics*; Lintott, *The Constitution of the Roman Republic*.

[256] Wayne te Brake, in *Shaping History*, examines the aforementioned revolts/popular movements, the success of which depended on the inclusion of some elites and the people beyond the city walls, the rural peasantry and villages.

[257] Christopher F. Black, *Early Modern Italy, A Social History* (London: Routledge, 2001).

[258] Ibid.

[259] Ibid. See also Bonadeo, "The role of the people in the works and times of Machiavelli," 351–77. Bonadeo argues that it is impossible to give the term a precise socio-political meaning. Guarini states that his argument is not entirely convincing.

[260] Koenigsberger, *Estates and Revolutions*.

[261] Gramsci might be reflecting the experience of the French Revolution backward to Machiavelli. Exactly how could sixteenth-century peasants "burst" onto the political scene and stay there?

early-twentieth-century Marxist hope to involve the peasants and proletariat of Italy in political life onto Machiavelli. It is also possible that he may have hit upon something. Contemporary perspectives simultaneously obscure and illuminate. It is true that Machiavelli was devoted to a life-long campaign for a citizen militia, drawn from residents of the *contado* as well as people within the walls of Florence. Though a civic militia was a popular humanist trope, Machiavelli's reading of Rome made it into something more. As we have seen, a popular mass army forms a critical buttress in an enlarged republic. Participation in a citizen army would cultivate the loyalty of poorer citizens. Moreover, a mass citizen army would empower ordinary people by increasing the number of paid soldiers, taxpayers, and potential public officials. A wise and venerable Roman policy was "to make its citizens defenders of their freedom."[262] This effort to enlarge the military and the number of citizens serving in it entails grants of citizenship.

## TERRITORIAL CITIZENSHIP

Machiavelli admires Rome's sweeping grants of citizenship and states his admiration clearly in chapter 3 of Book II: If one wishes to make a city a territorial polity, one "should contrive with all industry to make it full of inhabitants, for without this abundance of men one will never succeed in making a city great." In the final chapter of the *Discourses*, Machiavelli describes Roman citizenship. Rome was so generous in its grants of citizenship to immigrants, it created some disorder.[263] Throughout the *Discourses*, Rome's generous grants of citizenship are implicitly contrasted with the parsimony of Florence and Venice. Rome extended citizenship so much so that it prevented a potential tyranny from forming. A key quote is found in Book I, chapter 40, in the course of relating Appius' misguided attempt to become tyrant of Rome: "But Appius could not accomplish the mode of gaining over the countryside to himself since the countryside and Rome were one and the same thing." Machiavelli appears to believe that Rome had, figuratively speaking, torn down the walls that divided city from countryside and had extended sovereignty across a broad

Machiavelli certainly wanted ordinary people back on the scene (see Book I, chapter 6, for instance), but on the scene to stay, and this meant carefully crafted institutions for the middle and working classes as well as peasants. Pocock offers a fine discussion of the middle and working class caste divisions in Machiavelli's Florence.

[262] Book I, chapter 23.

[263] "A Republic Has Need of New Acts of Foresight Every Day If One Wishes to Maintain It Free." Because of the liberality that the Romans practiced in giving citizenship to foreigners, so many new men were born in Rome and they began to have so much share in the votes that the government began to vary. Book III, chapter 49, 309. "Erano in Roma, per la liberalità che I romani usavano di donare la civilità a' foresteiri, nate tanti genie nuovi, che le cominciavano avere tanta parte ne' suffragii, che il governo cominciava a variare." Bausi ed., II: 787. "Di .... civilità" means to concede citizenship "cittadinanza."

territory.[264] Machiavelli's Rome was a sovereign territorial republic. At this point it would be useful to briefly survey Rome's citizenship and immigration policy with which Machiavelli was familiar through his reading of Livy and Cicero.

Ancient Rome granted citizenship at a level of generosity remarkable to this day. Depending on the particular group or individual being granted citizenship – Latin, Etruscan, Samnites, Greeks, Rome utilized various juridical methods.[265] In the early republic, Romans granted citizenship as a reward, usually to city-states that had come to Rome's aid or, as it comes down to us from Livy, to recognize the honor and dignity of a conquered city-state's citizens, as was the case with Privernum in 309 BC.[266] The most common type of citizenship awarded was that of citizenship without voting rights, *civitas sine suffragio*, which entitled an individual to the same legal protections and obligations, including taxes and military service, of any Roman citizen without the right to vote or stand for election to public office.[267] Rome offered the cities of the Henrici, the Aequi, and the Volsci, familiar to readers of Livy as Rome's early antagonists, and later the Sabines and Umbrians, the rank of *civitas sine suffragio*.[268] Rome also sent its own citizens to conquered cities in order to link it to Rome; such citizens were henceforth defined as *municeps*. The experience of Capua and the surrounding territory of the Campania is highly instructive. Rome granted Campanians citizenship so that they could serve in the Roman army. As the historian C. Nicolet relates, a Campanian veteran who settled in Rome might acquire full citizenship and then stand for office. The majority of Campanians remaining in their home city became citizens without voting rights. More significant for our purposes, Capua and its citizens "were allowed to keep

[264] Of course Machiavelli does vary his terminology, describing Rome as a state, a city, and a republic. In Book III, chapter 30, 279, for example, he states that Camillus "put Lucius Quintius in charge of the third army, which he enrolled so as to keep the city guarded and the gates and the court defended in every case that might arise." Clearly, this statement can be used as evidence that Machiavelli remains firmly embedded in the urban framework, that his political vision is city centric, and that he has failed to overcome the conceptual blinders of his time to envision a territorial state. He does appear to oscillate between terminology that speaks to a territorial sovereignty and the older terminology of a city and its territorial empire. However, in this instance, Machiavelli discusses an incident in the very early days of Rome, before it began to expand, so it would be proper to emphasize the urban nature of the Roman state. It is the expansion of Rome to encompass surrounding republics into a political unit more robust than the weak Florentine or Venetian empire that is the subject of Machiavelli's study.

[265] C. Nicolet, *The World of the Citizen in Republican Rome*, trans. P. S. Falla (Berkeley: University of California Press, 1980), 25–6.

[266] Machiavelli, following Livy, writes of the esteem of Roman senate for Privernum's citizens. Nicolet observes that the real motive for awarding citizenship might have been to keep the Privernates under careful watch.

[267] Nicolet, *The World of the Citizen*, 27.

[268] According to Nicolet, this variant of citizenship vanished from 180–160 BC at the same time the voting rights of freedmen became a salient political issue and cites Livy 45.15.4–5.

their own laws and magistrates."[269] Capua's senate and magistrates continued to exist with limited, localized authority. Another method of integration Machiavelli mentions repeatedly was the use of colonies. Roman citizens moved to conquered territories, founded settlements formally linked to Rome, which non-Romans could join and then become citizens. A result of the Social War of 91–89 BC was that all these variations ended and in one great gesture all Italians (citizens of allied states on the peninsula) were granted Roman citizenship. Taking place over decades, this massive expansion of the citizen body "turned the whole of Italy into a single city-state."[270] By the census of 70 BC, there were over 900,000 citizens.[271]

## TERRITORIAL INSTITUTIONS/MACHIAVELLI'S FEDERALISM

The impression given in the *Discourses* is that the contestation and political life take place in the capital city of Rome, and this invites one to wonder how partner towns and their people participate. The reality for citizens residing in the city of Rome as well as for citizens with voting rights in partner towns was one of limited participation.[272] Cicero did recollect crowds from all over Italy converged in the capital for elections, games, and the census of 70 BC.[273] Cicero himself courted voters all over Italy during his campaign for the consulship during the late republic (63 BC) and traveled to Cisalpine Gaul to cultivate voters. Whether Cicero's campaign is indicative of the voting power of Italians outside the urban core of Rome remains debated.[274] Despite the radical increase in the number of citizens, Rome did not appear to alter its institutions or processes to accommodate more citizens living outside the urban core, which limited opportunities for the exercise of citizenship on the part of Italians, though this too is debated.[275] However, Rome's inability to overcome problems of space only solved comparatively recently with theory and practice of representation, should not obviate the originality of Machiavelli's theory of indirect government.[276] While often classified as an exponent of imperial expansion, Machiavelli's recommendations certainly differ from reigning civic republican doctrine and Florentine theory and practice of empire in his day. The aspects of

[269] Nicolet, *The World of the Citizen*, 28.
[270] Nicolet, *The World of the Citizen*, 25.
[271] Mouritsen, *Plebs and Politics*, 118.
[272] "Until 145 hardly more than 1 per cent of the citizens could take part in legislation and perhaps also in the elections of lower magistrates." Mouritsen, *Plebs and Politics*, 32.
[273] Cited in Mouritsen, *Plebs and Politics*, 118, note 85.
[274] Mouritsen, *Plebs and Politics*, 121.
[275] For a reading of the Roman Republic as more "democratic" in practice, see Fergus Millar, *The Crowd in the Late Republic* (Ann Arbor: University of Michigan Press, 1998).
[276] And it is possible to argue based on Machiavelli's view of freedom in France that so long as the majority of people are left alone, structural barriers to the participation of citizens who do not live near the capital city are unproblematic.

Machiavelli's thought involving his attempt to solve what this work describes as the problem of the extended republic constitute an unrecognized step in the history and theory of federalism.

Rome "got many partners throughout all Italy who in many things lived with it under equal laws." Only in exceptional cases does Machiavelli recommend outright centralization, which placed him firmly at the forefront of state-building policy in the sixteenth century (a wise stance stamped out by the ideologically driven state builders in the seventeenth). From his discussions in both *The Prince* and the *Discourses*, Machiavelli generally recommends the gradual integration of conquered territories. Comparative political scientists have noticed the many times Machiavelli recommends working with the composite nature of states, allowing conquered cities to keep their own laws and customs *while participation in the army builds loyalty to a greater republic*. Machiavelli reminds readers that the harshest servitude is that which submits one to a republic and that princes are kinder to subject territories. He approves of the manner in which Rome made conquered towns allies and partners.[277]

Most intriguing is the knowledge Machiavelli received from Livy on Rome's unique method for consolidating its acquisitions in Italy, namely the Latin colonies.[278] More than the varieties of citizenship or sending colonies as briefly described earlier, Rome's favored method for extending its authority was through the new communities called Latin colonies. Rome granted many communities a juridical rank midway between citizens and subject allies, which was consonant with the rank given to the cities of the former Latin league. The Latins retained significant autonomy, including their own system of justice, meaning they lived under their own public and private laws and were entitled to some of the rights possessed by Roman citizens. The obligations of Rome and the colony were enshrined in a charter. From Livy, it is possible to conclude that as many as thirty Latin colonies existed by the second Punic War.[279] None of the Latin colonies revolted during the battle of Cannae; thus the *jus latinum* represents a unique process through which Rome consolidated its expansion through indirect government. More specifically, from Livy we know the Latin colonies were obligated to contribute a specific number of troops and funds to Rome. When the senate discussed the amount the colonies were required to send (*supplementum*), the senate would discuss the amounts with delegations from the colonies. These delegations reveal Rome "to have been a state of the federal type, at least in its relations when colonies and allies."[280] The new Latin colonies, this ingenious method of Rome, then, is what Machiavelli means when he writes:

[277] At the same time, Machiavelli advises a prince to undercut local elites and make overtures to the people (see chapter 19), a seeming contradiction unless one interprets it as a strategy of liberation and state building.

[278] The following discussion of the Latin colonies is taken entirely from Nicolet, *The World of the Citizen*, 30–1.

[279] Nicolet citing Livy at 23.12.15.

[280] Nicolet, *The World of the Citizen*, 31.

"The foundation of its state was the people of Rome, the Latin name, the other partner towns in Italy and their colonies,"[281] The "latin name" is what he recommends Florence embrace, and this is a core element of his teaching.

The leading cities of Tuscany – Arezzo, Pisa, Pistoia, Volterra, Cortona, and Montepulciano – were fully urban and possessed the same social stratification as Florence. Applying his recommendations to the province for which he had such hopes, one would find vigorous populist politics on the local level while broader policy would be made in Florence, the likely capital. If Florence, like Rome, controlled external relations, this would solve the problem of authority that tended to enervate leagues. The extent to which Florence, like Rome, would have had something akin to "veto power" over local laws that conflicted with larger policy would depend on the specifics of the charter. However, it is probable that Machiavelli envisioned Florence, like Rome, retaining authority as the arbiter of conflicting laws. Composite states tended to grant localities self-government over local issues. Recalling the multiple times Machiavelli advises conquering princes and republics to refrain from breaking old laws and customs – a gradualist, conservative approach to consolidation at odds with his reputation as a radical innovator (though this was innovative in the context of Florentine territorial policy) – a union with federative elements appears to be contemplated. There is no profound exploration of divided sovereignty to match the intellectual debate surrounding the creation and early years of the American compound republic. The composite republic Machiavelli envisions is simply a stronger union than the republican confederation exemplified by the Tuscan league.

It is interesting to point out the territorial policy Cosimo de Medici pursued when he came to rule over Tuscany as prince, shortly after Machiavelli's death. In order to consolidate rule over the lands where Machiavelli had hoped an extended republic might rise, Cosimo centralized everything around Florence. To construct a territorial state on a landscape where the basic local unit was the town, Cosimo superimposed an ordering system that diminished the role of cities against territory and crushed aspirations for autonomy.[282] Tuscany became a state "based on well consolidated homogenous structures which covered the entire territory with great regularity."[283] Nevertheless, the Grand Duchy of Tuscany retained some features of the composite state. Siena was not subject

[281] Book II, chapter 30, 201. Machiavelli continues, "from which they drew so many soldiers that with them they were sufficient to combat and hold the world." Machiavelli adds that no town of the Latin name rebelled against Rome after the defeat of Cannae. Bausi notes that "il nome latino" refers to the allied Latin population. Bausi ed., 503.

[282] G. Chittolini, *La Formazione dello Stato regionale e le instituzioni del contado. Secole XIV e XV* (Turin: Einaudi, 1979), 324.

[283] Elena Fasano Guarini, "Tuscany, a Historical Map," *The Journal of Italian History* 2, no. 3 (1979), 522. See also Guarini, "Machiavelli and the Crisis of the Italian Republics," in *Machiavelli and Republicanism*, eds. Q. Skinner, G. Bock, and M. Viroli (Cambridge: Cambridge University Press, 1990), 17–40.

to Florentine magistrates and continued to have an autonomous administrative and jurisdictional structure.[284]

A new vision of indirect government, "the Latin name," generous grants of citizenship, and a citizen army comprise Machiavelli's Madisonian impulse. His contributions to the extended republic perhaps now may begin to receive fuller attention. Let us briefly turn to the two concepts from the Philadelphia Convention that Madison deployed to solve this basic problem: federalism and representation.

## THE MADISONIAN IMPULSE REVISITED

Whereas Niccolò Machiavelli would retire at night to read ancient authors, "to feed on the food that alone is mine," in the hope ancient statecraft might save republics and stem the tide of history, James Madison spent the spring of 1786, while on recess from the Virginia House of Delegates, cloistered at Montpelier, pouring over books on ancient and modern confederacies shipped from Paris by Thomas Jefferson.[285] Rather than elation at the wisdom of past experience, Madison's study revealed a recurrent weakness in all republican confederations from those of Ancient Greece to the present. Confederations were fragile structures dependent on the voluntary wills of the sovereign members. This lack of a hierarchy of authority made them weak and prone to shatter if the members could not reach agreement. There was no overarching authority to force compliance. Composite monarchies may have allowed cities and provinces to live by their own laws, but no one could doubt what would happen if a city chose to defy the central authority. Ireland, Hungary, and Aragon knew this well. The conclusion Madison drew was that there must be some sovereign authority superior to each of the states to guard against invasion, to keep the peace among the states, and to protect minorities at the mercy of state legislatures. The Achilles heel of confederacies and, as it happened, tyranny of the majority, could be remedied by one solution – a national government with a negative power over the legislative acts of the states.[286]

Madison's solution to what he referred to as the "centrifugal tendency of the States; which without it, will continually fly out of their proper orbits and destroy the order and harmony of the political system," was to construct a

[284] The state of Siena, which was vouchsafed to Cosimo by Philip II in 1557, remained an entity distinct from the state of Florence. See E. Fasano Guarini, "A Historical Map," *The Journal of Italian History*, 2, no. 3 (1979): 522.

[285] James Madison, "Notes on Ancient and Modern Confederacies," in *The Papers of James Madison*, eds. Robert A. Rutland et al. (Chicago: University of Chicago Press, 1975), 9: 3–4.

[286] LaCroix, *The Ideological Origins of American Federalism*, 138–9. I have relied extensively on LaCroix's work because she emphasizes that Madison's veto was intended to remedy the age old weakness of confederate leagues rather than viewing the veto primarily as a remedy for tyranny of the majority within state legislatures. Through this approach, one can see federalism clearly as the solution to the problem of the extended republic.

higher level of authority with its own arena of authority and lawmaking power, involving primarily commercial relations and foreign relations. Such authority would cast a net over the states, which would each retain its own sovereignty over traditional and somewhat more mundane tasks.[287] This net would prevent errant states from passing legislation like the New York Trespass Act of 1783 or taking similar actions endangering the interest of the whole. The national government then would not only act directly on citizens, it would have the authority to review legislation enacted by the states. In a creative act of republican appropriation, Madison modeled his form of ex-ante legislative review on the Privy Council of the British Crown, through which the king and his council reviewed colonial legislation to preserve harmony within the empire.[288] The national government would review state legislation before it took effect and retain the power to veto problematic legislation, as the national power defined it, a power also termed the "federal negative"[289] This would prevent states from intervening in foreign affairs or other matters of national interest and do something else, prevent states from, to use Madison's language, harassing one another. Rival territorial claims in the west were not the least of possible sources of friction among the states.

Thanks to Madison's eager ministrations, this privy council–inspired federal veto found its way into Article VI of the Virginia Plan, which gave the national legislature the right "to negative all laws passed by the several states."[290] The Virginia Plan dominated debate throughout June, but the delegates rejected the federal veto in a strong form on June 8 and a more limited version on July 17. A variety of reasons have been suggested for the general reluctance to accept a measure Madison believed so critical to the success of the union. Giving a legislature the power to veto state laws seemed to threaten to "enslave the states," in the words of Elbridge Gerry.[291] Whatever the reason, July 17 did not doom the endeavor because attention turned toward the suggestion from the New Jersey Plan, that the authority of the national government would rely on the

[287] June 8, 1787, in Max Farrand, *The Records of the Federal Convention of 1787* (New Haven: Yale University Press, 1966), 1: 165, cited in LaCroix, *The Ideological Origins of American Federalism*, 150.

[288] For more on the privy council in Madison's thought, see LaCroix, *The Ideological Origins of American Federalism*, 139–45, and Banning, *The Sacred Fire of Liberty*, 126–7.

[289] Lance Banning uses the terms "federal veto" and "federal negative" in Banning, *The Sacred Fire of Liberty*, 117, 188; and LaCroix uses "federal negative" in La Croix, *The Ideological Origins of American Federalism*.

[290] "The Virginia Plan," in *The Papers of James Madison* eds. Robert A. Rutland et al. (Chicago: University of Chicago Press, 1975), 10: 12–18. Similar in some ways is Article VIII, which proposed a Council of Revision to review laws passed by the national legislature before they took effect. See also Jack N. Rakove, *Original Meanings: Politics and Ideas in the Making of the Constitution* (New York: Knopf, 1996), 173.

[291] LaCroix, *The Ideological Origins of American Federalism*, 156. Gerry quote found in Madison's notes, June 8, 1787, in Farrand, *Records*, 1: 165–6, quoted in LaCroix, *The Ideological Origins of American Federalism*, 151.

judiciary rather than the legislature[292] Delegates preferred to modify the otherwise unsuccessful decentralizing New Jersey Plan's provision that treaties and acts of Congress were to be "the supreme law of the respective States," which would bind state courts. A resolution based on this plan passed unanimously after the defeat of the legislative negative, and with some additional editing the supremacy clause rose from the ashes of the federal veto.[293] As Gordon Wood has observed, the willingness to provide courts with such authority reflected a sea change in the understanding of legislative sovereignty.[294] Legislative excess engendered a variety of responses, one of which was an evolving understanding of the potential of the role of the judiciary. It was the conventional understanding that a court declaring a law void was nothing less than a usurpation of legislative sovereignty. People should be governed by representatives not by individuals appointed through some murky, probably nepotistic, process or other.[295] Through the supremacy clause, the authority to review legislation and resolve conflicts between state and federal law would be exercised by "the judicial power." Rules and sober interpretive canons would muzzle the passions of politics.[296]

But what of sovereignty? *Imperium in imperio* retained its hold on the mind, but an effective rejoined appeared. The judicial power did not usurp legislative sovereignty because the sovereignty of the people was superior to both, said James Wilson at the Pennsylvania Ratifying Convention in an assertion soon to become canonical.[297] Moreover, the supremacy clause christened a separate level of federal law that would enable sovereignty to extend and divide at multiple levels.[298] Though anti-Federalists espied the connection between the judiciary and a stronger union and countered that concurrent jurisdiction made no sense, the division of sovereignty put into effect by Article II endured.[299] Madison was undoubtedly the impulse behind the search for a solution for he had identified the problem, but he was not the architect of the solution; consistent he remained in his preference for a legislative solution. Taking a broader view of history, judicial review, still a nascent concept, would be the glue to bind the confederation together in a new compound but not consolidated republic. The supremacy clause would play its part in solving the problem that bedeviled Machiavelli and so many republican leagues and confederations that had splintered apart. It would make an extended republic possible.

[292] Rakove, *Original Meanings*, 173.
[293] LaCroix, *The Ideological Origins of American Federalism*, 162–3; Rakove, *Original Meanings*, 173–5.
[294] Wood, *The Creation of the American Republic*, 458.
[295] Wood, *The Creation of the American Republic*, 461.
[296] Rakove, *Original Meanings*, 175.
[297] Wood, *The Creation of the American Republic*, 530.
[298] LaCroix, *The Ideological Origins of American Federalism*, 169.
[299] For anti-Federalist critiques of judicial review, see Wood, *The Creation of the American Republic*, 529;,and Rakove, *Originial Meanings*,180.

And of the importance Machiavelli attributed to the citizens of republics – the sharpened wit, the fighting spirit, the ability "to reason about either public defense or public offence"?[300] In Florence at the height of the most popular republic, the Great Council of three thousand could gather in its specially constructed hall, but debate and discussion were not permitted. Citizens did rotate in and out of executive committees, so citizens had the chance to see things from the perspective of the palazzo rather than the piazza, but Florentine governing institutions were municipal rather than territorial. Unlike early modern Florence, ancient Rome was an elected republic and offered vast numbers of people living outside the capital formal political rights, but with the exception of the new Latin colonies' annual delegations to the senate, did not incorporate representation in its various assemblies.

When Madison famously redefined a republic as a polity where representatives govern rather than the people directly, he helped to stretch republicanism over and across multiple cities and territories in theory, and in fact the states composing the union were already larger than Florence and its territorial empire as well as the ideal size of Montesquieu. Representation was not an invention so much as it was an inheritance. Close to hand were the familiar colonial assembles – the Congress established by the Articles, and Parliament – all representative institutions filled via election.[301] Election was not the necessary mode of selection as early modern republics had made use of sortation, but medieval tradition and social contract theory had powerfully imprinted the value of consent as the wellspring of legitimate authority.[302] Election occurred in Rome, of course, but in the new American republic, election based on place rather than class prevailed. Only John Adams insisted, possibly in Machiavellian vein, upon the need to trap elites in a senate, a recusant mixed government theorist to the end. With the exception of Virginia and New York's Hudson Valley, American society was not starkly divided into classes, or "estates" to use the old terminology, and the new commercial society made the assumptions upon which mixed government rested appear simplistic.[303] But bidding adieu to mixed government cannot account for Americans' emphasis on place – territory, town, county – in electing state and national legislators. Conveniently, a feudal tradition helped republics make the transition to the modern age, ironically the one feudal element in France Machiavelli did not study.

Medieval assemblies, gathered most often to consent to taxation, were composed of representatives from territorial districts; the estates were divided by social group or estate, but within that, geographic locality determined

[300] Book I, chapter 16, 44.
[301] Rakove, *Original Meanings*, 205.
[302] Bernard Manin, *Principles of Representative Government* (Cambridge: Cambridge University Press, 1989).
[303] Wood, *The Creation of the American Republic*, 501.

composition.[304] So the House of Commons was filled with deputies elected by district, though by the eighteenth century these ancient districts ossified into "rotten boroughs." If Edmund Burke and the British political establishment argued that the deputy's home district was in principle irrelevant because his obligation was to govern with a view to the estate, the kingdom, and the empire as a whole, rather than as a conduit for local interests, Americans responded by reviving concepts of constituency and representation more medieval than enlightened.[305] A representative ought to be like the people who elected him, and his obligation was to express their interests before the assembly, thus this distinctively antediluvian understanding of representation appeared in the American focus on residential requirements, on proving one's connection to a place, in order to stand for election.[306] This notion of "actual representation" as Gordon Wood has described it would appear again and again in anti-Federalist criticisms of the new Constitution.[307] It had old roots as New England communities especially had a habit of sending binding instructions to accompany their elected representatives. Virginia and South Carolina communities were not too genteel for such methods. So tightly bound were representatives of state legislatures to their home communities that special interests dominated law making.[308] The dominance of special interests in state legislatures, the fact that representatives were too accountable to the people and the districts they served of course contributed, in part, to the growing sense of instability that prompted the Philadelphia Convention it the first place. Suffice it to say that Madison did hope electoral reform might be a benefit of "extending the republic beyond its sphere."[309] But the filtration mechanism he hoped might enable the wiser and more knowledgeable to populate the Congress, those gentleman able to take the broad national interest in mind, providing perhaps a glimmer of the old Roman senate, was intended to overlay, not replace, state and local politics, which continued to feature rapid rotation in elected office and affected people's everyday lives more directly than did the great issues of national import on which Congress deliberated. In the decades to follow, an unexpected development brought ordinary people back into the political process. With state and local bases, the Jeffersonian Democratic, Whig, and Republican parties mobilized masses of people during their heyday roughly from 1832 to 1908. Mobilization, however, is not participation. Extending popular government over a vast territory and uniting disparate states into a stronger union was no mean accomplishment. And yet, there were costs, for the experience of participation that life in a republic offers seemed all too often to vanish. Whether Machiavelli would have approved the costs we can only guess.

[304] Manin, *Principles of Representative Government*, 86–7.
[305] Bailyn, *The Ideological Origins of the American Revolution*, 162–4.
[306] Wood, *The Creation of the American Republic*, 185.
[307] Wood, *The Creation of the American Republic*, 129.
[308] Wood, *The Creation of the American Republic*, 185–93.
[309] Rakove, *Original Meanings*, 220.

## THE DISCOURSES AND ON THE ART OF BUILDING

The final chapter of the *Discourses*, chapter 49 of Book III, is entitled, "A Republic Needs New Acts of Foresight Every Day to Maintain It Free." This is fitting, as Machiavelli's last voyages to ancient Rome were taken to secure the maintenance of the extended republic. He searched Rome to discern how to extend the concepts, institutions, and ideology of city-state republics to large territorial states, to devise some form of participation for larger political units. It was a historical challenge of a high order. From the sixteenth to the eighteenth century, there was no greater enemy to free government than the voracious territorial states sprawling over lands and cities, consigning communal government and municipal liberties to memory.

Tocqueville understood the geo-political developments that rendered republics anachronisms. "The history of the world," he wrote in *Democracy in America*, "affords no instance of a great nation retaining the form of republican government for a long series of years." Elaborating upon the observation in a remarkable footnote pregnant with learning, he adds, "I do not speak of a confederation of small republics, but of a great consolidated republic." He continues:

> It may be said with confidence, that a great republic will always be exposed to more perils than a small one. All the passions that are most fatal to republican institutions increase with an increasing territory. The ambition of private citizens increases but love of country does not.[310]

"It is impossible to order a perpetual republic, because its ruin is caused through a thousand unexpected ways."[311] With that reflection, Machiavelli's enterprise draws to a close. It would remain for others "more loved by heaven" to build the first extended republic of the modern age. Machiavelli left behind the blueprints, the careful measurements of the terrain, the evocative sketches of the ruins of the Roman republic for what would have been the greatest of Renaissance creations. As a guide to the Roman art of state building, the *Discourses* is a companion to that other celebrated Renaissance instruction book, Leon Battista Alberti's *On the Art of Building*. One recovered the lost grandeur of Roman interior space while the other recovered the vast expanse of Roman political space.

[310] When discussing confederations, Tocqueville refers to Holland, the Germanic confederation, and the Swiss confederation.

[311] Book III, chapter 17.

# Epilogue

Niccolò Machiavelli died in 1527, the year of the infamous Sack of Rome. It was well he, who so longed to put an end to the occupation of Italy, did not live to hear of that ultimate humiliation from which, it has been alleged, Italy never recovered. In 1527, a revived Florentine republic was declared, only to fall in 1530, when Clement VII, the last Medici pope, and Charles V starved the city into surrender. In 1532, the *Ordinazioni* reconfigured the Florentine constitutional order, and what was once a de facto Medici hegemony became a hereditary seigneurial regime.[1] Henceforth, the Medici would be grand dukes of Florence. In 1537, Machiavelli's friend, Francesco Guicciardini, and other Medici allies found an eighteen-year-old Medici named Cosimo and appointed him grand duke of Florence. The venerable *ottimanti* imagined they would rule behind the scenes. They were wrong. The days of republican oligarchy were over too. With shrewd discipline, Cosimo set about consolidating his power, relying on new men from outside the walls of Florence. After acquiring exclusive powers in foreign affairs, he embarked upon a campaign to conquer Tuscany. He did everything Machiavelli recommended in *The Prince* but stopped short at founding a republic. In 1552, he added Piombino to his state. He then declared war on the independent Republic of Siena. After a heroic resistance aided by the many Florentine families opposed to the Medici, Siena surrendered in 1557, and in an act of feudal investiture, foreign to central Italy, the Holy Roman Emperor entailed Siena to Cosimo, and centuries of republicanism in Tuscany came to an end.[2]

In 1569, Pope Pius V conferred on Cosimo the crown of grand duke of Tuscany in recognition of the territorial extent of the Medici dominions. The

[1] Alessandra Contini, "Aspects of Medicean Diplomacy in the Sixteenth Century," in *Politics and Diplomacy in Early Modern Italy*, ed. Danila Frigo (Cambridge: Cambridge University Press, 2011), 57. See also F. Diaz, *Il Granducato di Toscana. I Medici* (Turin: UTET, 1976).

[2] Lucca would remain an independent republic.

use of the term Tuscany, rather than Florence or the hereditary lands of the Medici, enraged the Spanish and Austrian Hapsburgs because it acknowledged that the Medici now ruled a territorial state, rather than a mere city-state.[3] Machiavelli had discerned that the territorial state on the horizon for the Tuscany Cosimo formed was a well-structured, tough state that maintained its borders for three hundred years until the Napoleanic Wars, when it emerged in the form of the ancient Tuscan Republic, Erturia.[4] During the intervening three hundred years, a policy of re-feudalization had transformed Tuscany; economic dynamism and urbanity departed as the bankers and merchants of Florence, now endowed with sonorous titles and knightly airs, retired to recently purchased landed estates. Tuscan society had been remade to more closely resemble that of Naples and Lombardy. It might well be said that the Medici grand dukes poured salt into the civic life and even equality that had once made Tuscany such fertile ground for republics. Oddly, Machiavelli seemed to predict the future of Tuscany:

> In this mode, as soon as a tyranny arises after a free way of life, the least evil that results for those cities is not to go ahead further nor to grow more in power or riches, but usually – or rather always – it happens that they go backward.[5]

Only Venice, Lucca, and Genoa survived the age of mass armies with their independence intact, precariously, as oligarchical city-states shielded by a stance of defensive neutrality. The towns and extensive territories surrounding Rome; the conquests of Borgia, Julius II, and Leo X that would have swelled a Tuscan state to a far stronger size encompassing the Romagna; the state of Urbino, and the Marches of Ancona, with outlets to the sea, instead became a principality, known as the Papal States, that would endure until the Risorgimento. The proud, free city-states of Bologna and Perugia were reduced to impotent pieces of the papal state complex.[6] Those great gains of Borgia and the Medici that dangle for the taking in *The Prince* actually were primed for consolidation, but they remained in the possession of the popes, "who have states which they do not defend and subjects whom they do not govern."[7]

By the Treaty of Cateau-Cambrésis in 1569, all was lost:

> Sixty years of war between the great powers of Europe, France and Spain, with Italy as their battleground, killed what was left of city-states and their traditions. The tyrants obtained ducal or grand ducal titles. They modeled their courts on those of Spain and

[3] Elena Fasano-Guarini, *Tuscany: An Historical Map*, *The Journal of Italian History* 2, no.3 (1979): 522.

[4] G. Chittolini, *La formazione dello Stato regionale e le instituzioni del contado. Secoli XIV e XV* (Turin: Piccola Biblioteca Einaudi, 1979), 324.

[5] *Discourses*, Book II, chapter 2.

[6] G. Chittolini, "Cities, 'City-States,' and Regional States in Italy," in *Cities and the Rise of States in Europe A.D. 1000 to 1800*, ed. Charles Tilly (Boulder: Westview Press, 1994), 39.

[7] *The Prince*, chapter 11.

France. Naples, Sicily, and Milan were ruled by viceroys. Only Venice survived as a true republic.[8]

In the following decades and centuries, European political thought and practice were radicalized by a new theory, absolutism, which swallowed more relaxed ideas about composite monarchies. Ordering the state from the viewpoint of the ruler (in contrast to founding on the people) became the basic premise from which Bodin and Hobbes deduced their searing theories. The radicalism of the new Europe cannot be overstated, because the term used to describe it, the old regime, "obscured the novelty of the political and religious arrangements that emerged after the religious wars, suggesting instead that these were holdovers from the distant past."[9] The Revolt of the Netherlands was a balm to republicans across Europe in the later sixteenth century, but oligarchic and decentralized, the United Provinces of the Netherlands differed greatly from the populist republic Machiavelli envisioned for Tuscany.

> Any formation of a national popular collective will is impossible unless the great mass of peasant farmers bursts simultaneously onto political life. That was Machiavelli's intention through the reform of the militia, and it was achieved by the Jacobins in the French Revolution. That Machiavelli understood it reveals a precocious Jacobinism that is the germ of his conception of national revolution.

Excluding some of the now dated phrasing and hasty connections, Gramsci leaves us with the last of his many piercing insights. Machiavelli failed to help found a republic only if one limits one's gaze to Italy. For his state did come to pass: in France, the most assiduous student any Italian ever had, which became the powerful extended territorial republic Machiavelli imagined. The first French republic was the "Patria," the state that lived in people's hearts, defended by an army of ordinary citizens marching to the War Song for the Army of the Rhine. The rhetoric of the French Revolution was Rousseau; the reality was Machiavelli.

Older interpretations of Machiavelli ought not to be dismissed out of hand for both marxist and Risorgimento writers grasped, however imperfectly, the heart of Machiavelli's thought. As long as there are people determined to resist oppression by foreign occupiers or powerful elites, the theorist of ordinary people survives. What is more, Machiavelli never lost hope that his exploration of Rome might lead to a rebirth of popular government. To him, writing was more than an idle exercise; it was a political act.[10]

[8] H. G. Koenigsberger, "Republicanism, Monarchism, and Liberty," in *Royal and Republican Sovereignty in Early Modern Europe*, ed. R. Oresko (Cambridge: Cambridge University Press, 1997).

[9] Wayne te Brake, *Shaping History: Ordinary People in European Politics: 1500–1700* (Berkeley: University of California Press, 1998), 18.

[10] J. H. Whitfield, "Machiavelli, Guicciardini, Montaigne," *Italian Studies*, 28 (1973): 31–47. John Najemy, "Arti e Ordini in Machiavelli's *Istorie Fiorentine*," in *Essays Presented to Myron P. Gilmore*, ed. S. Bertelli (Florence: Sansoni, 1978), 161–91.

I indeed affirm it anew to be very true, according to what is seen through all the histories, that men can second fortune but not oppose it, that they can weave its warp but not break it. They should indeed never give up for, since they do not know its end and it proceeds by oblique and unknown ways, they have always to hope and, since they hope, not to give up in whatever fortune and whatever travail they may find themselves.[11]

[11] *Discourses*, Book II, chapter 29.

# Index

Page numbers in *italics* indicate maps.


absolutism, 55, 112, 177–78, 179, 201, 206, 217, 305. *See also* tyranny
Achaean League, 236
Act of Settlement of 1701 (England), 198, 215
Acts of Union of 1707 (England and Scotland), 203, 205
Acts of Union of 1536 and 1563 (England and Wales), 110, 198
Adams, John, 199, 205, 208, 209, 220, 228, 230, 299
advice and consent, 223
*aeque prinicapliter,* 110, 111, 126
Aequi (people), 292
Africa, 158, 169
Agathocles, 56n212
Agrarian laws, 171, 280–81
Alamanni, Luigi, 80nn61, 64
Alba, 107, 116
Albany Plan, 204n105
Alberti, Leon Battista, 81; *On the Art of Building,* 301
Alexander VI, Pope, 44–45, 50, 51, 54, 54n203, 112, 122; son of (*see* Borgia, Cesare)
Althusser, Louis, 16n16, 18n19, 64, 183, 190n43
ambition, 145–46
American republic, 4, 8, 72, 134, 196, 199–213, 220–38, 239, 295; as confederation (*see* Articles of Confederation); democracy and, 164; executive power and, 212–23, 218, 220–25, 227, 228n234; as extended republic, 10–11, 121; factions and, 243; foreign relations and, 133, 208, 209–10; international law and, 230; isolationism and, 229; legislative branch of (*see* Congress, U.S.); Lockean influence on, 226n223; Machiavelli's republic vs., 172; Madisonian Impulse and, 233–41, 296–300; national interest and, 145n77; natural protective barriers of, 172; outlook for, 183, 197; political parties and, 300; reason of state and, 228–31; Roman legacy to, 226–28; royal prerogative and, 218; state constitutions and, 204, 220, 221; states' position in, 225, 296–97; thirteen colonies of, 185; vulnerability of, 208; written constitution of (*see* Constitution, U.S.)
American Revolution, 8, 204
*ancien régime,* 197n74, 251n86, 305
Anderson, Perry, 181n148
Anglo, Sidney, 30n87; *Machiavelli, A Dissection,* 17, 18
anti-Federalists, 204n106, 225, 227, 298, 300; as traditional republicans, 233
Antwerp, 84–85
Appius, 104, 291
Aragon, 11, 82, 110, 124–25, 197, 296
Ardinghelli, Pietro, 33
Arezzo, 73, 100, 101, 102, 118, 140, 146, 171, 275, 290, 295
Arezzo rebellion (1502), 113–14, 157
aristocracy. *See* elites
Aristotle, 15n3, 78, 275; *Politics,* 248, 262, 266

armies. *See* citizen army; mercenaries; military; war
Armitage, David, 145n76
*arte del stato* (art of the state), 64, 64n247
Articles of Confederation, 10, 72, 121, 134, 172, 196, 197, 199, 200, 204–6, 212, 220, 299; foreign policy and, 209; main failing of, 206, 210, 234, 235
artisans, 290
Ascoli, Albert, 9n16, 18n19
assemblies, 150, 162–63, 172–74, 211, 213, 264, 265, 272–73; medieval, 299–300; proper function of, 274
Athens, 87, 105, 108, 276
Augustus, 226
Austria, 111, 198

balanced constitution, 215, 264, 272
balance of power, 127, 138, 147–48, 228, 229
balia of 1393 (Florence), 266
banking economy, 288
barbarians, 12, 17, 21, 23, 31, 59, 60, 66, 75, 282; republicanism undermined by, 71; sack of Rome (1527), 70, 130, 303; understanding of, 144
Baron, Hans, 26, 27n74, 40n137, 69n5, 96n139, 103n170, 119n244, 120, 264n133, 287; *The Crisis of the Early Italian Renaissance,* 3
barons, 45, 46
Bartlett, Josiah, 199n83, 204n106
Bates' Case (1609), 217n180
battle of. *See key word*
Bausi, Francesco, 78n54
Belgic confederacy, 236n15
Berlin, Isaiah, 2, 138
Bertelli, Sergio, 6, 113n217, 255n99
Black, Robert, 4
Blackstone, William, *Commentaries on the Laws of England,* 206–7
Board of the Ten, 148
Bodin, Jean, 177–78, 201, 204n106, 305; definition of sovereignty, 206; *Six Books of the Republic,* 13n5
Bolingbroke, Lord, 217, 233
Bologna, 36, 51, 54, 95, 120; papal conquest of, 126, 194, 289n252, 304
Borgia, Cesare, 3, 29, 30, 45, 56n212, 112, 139, 157; brutality of, 52–53; campaign of conquest by, 22–23, 50–54, 63, 115, 120, 122, 124, 126, 140, 163, 184, 304; Machiavelli's admiration for, 27n75, 30n87, 33, 34, 51, 52, 53, 60, 66, 124, 126, 177; papal father of, 54; rise of, 31; territorial consolidation by, 39, 50–55, 290; Tuscan unification aim of, 184
Borgia family, the Medici compared with, 54
Boscoli conspiracy (1513), 31–32
Botero, Fernando, 109
Bourbon France, 197–98, 203, 245
Brabant, 84, 256
Brady, Thomas, 185
Braganza, Duke of, 197
Brake, Wayne te, 49, 112n213
Braudel, Ferdinand, 70n10
Britain. *See* Great Britain
Brittany, 71
Brown, Alison, 6, 138n39, 139n43
Bruges rebellion (1477), 184–85
Brunelleschi, Filippo, 232
Bruni, Leonardo, 27n74, 68n1, 73n27, 102, 259; *Laudatio Florentinae urbis,* 103
Bull, Hedley, 70n10, 133n22, 135
Buondelmonti, Zanobi, 79–80, 80n65, 185
Burckhardt, Jacob, 64n247, 101n158, 137, 145–46
Burd, L. Arthur, 17, 29n84, 30n87, 39–40n135, 131n13, 246n63
Burgundy, 71, 256
Burke, Edmund, 300

Cabet, Étienne, 172
Caesar, Julius, 150, 226, 280
*Calamita d'Italia, Le* (defeat of Italy), 70
Calixtus, Pope, 54
Callières, François de la, 228
Cambridge School, 4, 12n1, 15n13, 17
Camillus (Roman consul), 169
Campanella, Tommaseo, 109, 142–43; *Sun State,* 172
Campania, 292
Cannae, battle of, 294
capitalism, 200
capital punishment, 273
Capponi family, 185
Capua, 112, 292–93
*carezze* policy, 156
Carrington, Edward, 209
Carthage, 78, 158
Cassirer, Ernst, 2, 4, 29n84
Castello, 37, *38*

Castile, 82, 84, 199; *Comunero* movement, 72–73, 121, 180, 256, 284, 292; Portuguese union with, 186, 197; Spanish union with, 110, 124–25, 197
Catalonia, 82, 186, 197
Catasto, 101
Catasto of 1427, 73
Cateau-Cambrésis, Treaty of (1559), 130, 304–5
Catholicism, 283n229, 284; Index, 1. *See also* papacy; Papal States
Catholic league, 121
Cavalcanti, Bartolomeo, 80n64, 184, 244
Chabod, Federico, 26–27, 55n208, 56n214, 75n38, 101n158, 193
Chancery (Florence), 34, 47, 98–99, 102, 139, 163
Charles I, King of England, 215, 218
Charles V, Holy Roman Emperor, 1, 130, 303
Charles VII, King of France, 173
Charles VIII, King of France, 14, 59, 116
Charles the Bold, Duke of Burgundy, 184
checks and balances, 133, 158, 159, 160–61n153, 162, 169–70, 170n190, 215, 239
Chiapelli, Fredi, 42n143, 188n34
Christianity, 106
Church. *See* Catholicism; papacy
Cicero, 103, 145n76, 226, 259n112, 292, 293
Ciompi regime, 57–58, 100, 180
Ciompi revolt (1376–81), 242
Circle of the *Orti Orcellari,* 24, 80, 92, 185
citadels. *See* fortresses
citizen army, 9, 11, 13, 21, 23, 67, 77, 90, 239, 271–83, 296, 305; citizenship from service in, 182, 275, 277, 291; as empowerment of ordinary people, 180–82, 260, 277–81, 285, 291, 294; extended republic and, 275; loyalty of, 182; rural and urban insurrections and, 180; state-building process and, 59, 179
citizenship, 11, 90, 233, 291–94, 296; equality of, 195; Florentine policy for, 101, 104, 275–76, 291; as grant for military service, 182, 275, 277, 291; Roman extension of, 26, 108, 113, 114, 117, 128, 156, 182, 239, 265, 275, 276, 277, 282, 291–93; Venetian grants of, 291; without voting rights, 292, 293
city, 31, 40, 66; as capital of territory, 111, 295; conqueror's territorial incorporation of, 13, 47, 48, 49, 53, 76, 90, 106, 107, 112–18, 128, 179; corruption and, 56; countryside and, 101–5, 180; federation formation and, 195, 295; league formation and, 71, 72–73, 118–21, 128, 180, 194, 199; politics as art of the, 41; population growth and, 276; Protestant Reformation and, 284; rebellions and, 113–15, 120, 180, 184–85, 186; as republic, 7, 9, 11, 58, 72–73, 86–88, 93, 95–98, 106, 107, 180, 196, 241, 287; state-building effect on, 97, 99; walled confines of, 85
city-states, 12, 133n22; ancient confederations of, 202; communal ideals and, 185; conquest of, 156, 275, 292; decline and obsolescence of, 14, 55, 87, 97, 130, 244–45, 304–5; feuding between, 143; Florentine rule and, 112, 120; independence advocacy, 120; major weakness of, 172; organization of, 46; territorial state vs., 19, 40, 55, 58, 71, 95–105, 178, 206, 240
civic humanism, 3, 4, 6, 17, 18, 19, 27n74, 81, 96n139, 138n39, 139, 179n242, 242, 243n48, 263, 290; Florence and, 102, 103, 120, 147, 263, 266; Florentine vs. Roman republics and, 94; freedom vs. tyranny and, 245; ideal prince and, 63; polis theory and, 258; territorial expansion and, 27n74, 96n139, 102, 103, 120; Tuscany, 125
civic republicanism, 123, 242, 262–63, 266; corruption and, 135n28; heart of tradition of, 259; Machiavellian theory vs. recent studies of, 138, 293–94
civic virtue, 182, 233, 289
civil disobedience, 269, 282
civil principality. *See* principality
civil tribunal, 52–53
Civil War, American, 227n233
Civil War, English, 23, 206, 207, 238
Civil War, Roman, 280
class, 4, 126–27, 143, 143n65, 161–62, 171, 187, 255; elections and, 299; foreign affairs and, 154–55; as foundation of mixed government, 214, 215; institutions specific to, 271; mercantile, 99, 291; power and, 289–91; representation by, 271–72; republics and, 287–88; social mobility and, 288; war as unifier of, 279. *See also* elites; people; plebians
Clement VII, Pope, 24n59, 33, 189, 191n50, 303
Clough, Cecil, 35
Cola di Rienzo, 198
Cold War, 231n246
Colish, Martha, 249n73
collective action, 5–6, 274–77, 282–84
colonies, 44, 121, 136, 293, 294–95, 299

Colonna family, 51
commerce, 71, 141, 200, 203, 210, 221, 255n99, 277; as basis of international relations, 135; confederations and, 203; Florence and, 242; treaties, 229; Tuscany and, 289; Venice and, 100, 288
common cause, 11
common good, 259; reason of state merger with, 144–45
common law, 206, 216, 216n176
common people. *See* people; plebians
communal-federal principle, 185
communal liberty, 255
commune, 72–73, 85, 99, 129, 146, 178, 263
composite state: absolutism and, 305; art of the, 64n247; citizen army as foundation of, 181; components of, 104–5; emergence of modern, 95, 177; expansion of, 195–96; foreign policy and, 133–34; formation of, 5–7, 9, 10, 12–13, 18, 43–49, 55, 57–64, 69; Holy Roman Empire as, 201–2; Italian fascination with, 70–71; liberty and, 245–46; Machiavelli's meaning of, 40, 41–42, 64n247, 69; maintenance of, 43, 47, 52–53, 110, 301; Medici potential for, 185, 239–40; mixed principality and, 126, 185; monarchy and, 19, 110, 128, 195–96, 202, 206, 224, 239–40; ordinary people as basis of, 63, 179–80, 191–92; popular politics and, 63, 179–80; power and, 134, 173–74, 177; prince as servant of, 60, 64; security of, 61–62, 173–74; theory of, 201–6, 295; viability of, 112, 128, 183; Westphalian system of, 130
*Comunero* revolt, 72–73, 121, 180, 256, 284, 290
condottiere system, 59, 173
confederated republic. *See* federalism
confederation, 10, 11, 184, 196, 202, 204–6; as anti-imperial force, 199; flaws of, 200, 206, 236; judicial review and, 298; republican expansion and, 118–19, 121, 234; veto power and, 216, 217, 224, 296–97, 296n286, 298; weaknesses of, 296. *See also* Articles of Confederation; leagues; Swiss Confederacy
confraternities, 255
Congress, U.S., 218n186, 220, 228n234, 300; international law and, 230; powers of, 222–24
Congress of the Confederation (1781–89), 205, 206, 209, 212, 220, 299
conquests. *See* territorial expansion
*consiglio grande*, 244
Consiglio Maggiore (Venice), 148
conspiracies, 60, 193
Constant, Benjamin, 248
Constitution, U.S., 199, 207, 234n7; "actual representation" and, 300; Article II (executive power), 220, 220n198, 298; opponents of, 237; ratification of, 227, 237; Supremacy clause, 298; war and treaty powers, 220–25; as written document, 191n54
Constitutional Convention (Philadelphia, 1787), 210, 211, 212–13, 221–25, 235, 300; New Jersey Plan, 220n198, 297–98; Virginia Plan, 212, 223, 297
constitutions, 24, 191–92, 198, 207, 208, 214, 217, 221, 275; balanced, 215, 264, 272; emergency procedures, 151, 153; mixed, 155, 221, 263; monarchies and, 214; of Roman republic, 208; unwritten and written, 191n54; of U.S. states, 204, 220, 221; of Venice, 243–44
consulate, Roman, 150, 158, 162, 163, 166, 168–72, 211, 226, 258, 264, 270; Cicero's campaign for, 293; plebian bid for inclusion in, 271, 278, 278n203; war and, 280
*contado*. *See* countryside
Contarini, Gasparo, 71, 244
Contini, Alessandra, 193n63
Coriolanus, 171
corruption, 21, 55n208, 56–57, 135n28, 175, 237, 274, 280, 286, 289n252
Cortona, 295
Council of the Commune (Florence), 148
Council of the Commune and the Podesta (Florence), 266
Council of the People (Florence), 148
countryside, 40, 101–5, 180
courts. *See* judicial power
Cowell, John, 216n176
craftsmen, 290
Croce, Benedetto, 2, 138
cronyism, 145
crowds, 282, 283
Cyrus II (the Great), King of Persia 50, 66

Dahl, Robert, 165n168
Dati, Giorgio, 27n74, 102
David, Jacques-Louis, *The Oath of the Horatii*, 81
Decemvirate, 282
Declaration of Independence (U.S.), 77n49
Declaration of Rights (Virginia), 237
DeGaulle, Charles, 191n52
della Palla, Battista, 80nn61,65

della Rovere family, 37
democracy, 164, 224, 235, 237, 240, 242; tyranny of the majority and, 296. *See also* representation
despotism. *See* absolutism; tyranny
Dicey, A. V., 215–16
dictatorship, 27, 77, 87–88, 133, 149–53, 224, 226, 271, 283; boundaries of, 152, 153; dangers of, 274
Dietz, Mary, 9n16, 17
diplomacy. *See* foreign relations
direct democracy, 237
*Discourses on the First Ten Books of Titus Livy* (Machiavelli): beginnings and, 232; dating of, 27, 37, 77, 77n50; dedicatees of, 79, 80, 185, 189; emphasis on popular involvement, 24, 41, 92; extended territory focus of, 58, 77–81; final chapter of, 301; formation of modern politics and, 7; Italian division and, 15–16; military policy and, 174, 175; modern state formation and, 5, 9, 21; monarchist strain found in, 56; on occupied territory, 111; overview of, 77–78; on *parlement*, 61; on political culture, 123; practicality of, 138; preface to, 81; preface to second book of, 34; *Prince* relationship with, 8, 26, 27–28, 131; private circulation of, 185; publication after Machiavelli's death of, 25, 185; purpose of, 1, 13, 13n1, 20, 27–28, 192; radicalism of, 275; as republican state-building guide, 2, 12–13, 24–28, 66n252, 185, 189–90, 229–30, 232, 301; revolutionary potential of, 286; rhetorical studies of, 4; Romans as exemplars for, 44; structure of, 78–79; territorial state and, 8, 11, 48, 53, 58, 64, 93; traditional terminology and, 242; Tuscany as focus of, 18n18, 55, 76; urban focus of, 86–88; years worked on, 25
Disraeli, Benjamin, 231
division of power. *See* separation of powers
dominions, 40, 101, 218
Drayton, William Henry, 199n83
dual sovereignty, 204n106
Dutch Republic. *See* United Provinces of the Netherlands

Eight, the (Florence), 273
elections, 11, 237–38, 239, 264, 269–72, 274, 292, 293; direct, 300; by place, 299–300; social class and, 270, 299. *See also* representation
elites: domination by, 268–69; elections and, 270; foreign policy and, 154, 155, 159, 160; Machiavelli's view of, 2, 60, 159n150, 252, 254n95, 286–89; military and, 181, 184; monarchy and, 57, 72, 85, 128, 195–96; politics and, 177, 215, 285, 286–87, 299; popular mass movements and, 256; power of the people and, 60, 162, 169–70, 258–63, 271, 278, 282; republics and, 9, 41n142, 89, 90, 185, 186, 247, 288; Roman senate and, 133, 215, 258, 270, 299; state-building process and, 63, 178, 188, 257; territorial expansion and, 90–91, 178, 179, 186; as Venetian economic base, 288
Elizabeth I, Queen of England, 216
Elliott, J. H., 197n76
emergency. *See* state of emergency
Emilia Romagna, 95, 126
Emmanuel Philibert, Duke of Savoy, 87
empire, 10, 47, 78, 93, 171, 218; alternatives to, 199; city-state as nucleus of, 96; colonies and, 44, 121, 136, 293, 294–95, 299; composite monarchy as alternative to, 195–96; incorporation and, 203–4; monarchs and, 109, 177; republican dread of, 198–99; republic expansion into, 27n74, 101–5, 198, 205, 227; Spain and, 197, 203–4; unitary, 206–7; Venetian loss of, 130. *See also* Ottoman Empire; Roman Empire
ends justify means, 64, 64n129, 77. *See also* reason of state
England. *See* Great Britain
English civil war, 206, 207, 213, 238
Enlightenment, 202, 229, 230, 239; legacy of, 68–69
equality, 3, 242, 280, 281, 286–87
Erizzo, Sebastiano, 244
Este dynasty, 36, 193
Etruria, 125, 304
Etruscan League. *See* Tuscan League
Etruscans, 114, 125–26, 128, 137, 171, 196
evangelicals, 283n229, 284
executive power, 10, 77, 132, 134, 153, 301; American republic and, 212–23, 218, 220–25, 227–28, 228n234; confederations and, 234; foreign affairs and, 153, 154, 209, 212–13, 214, 217, 231n246; indirect government and, 299; origination of modern doctrine of, 149; prerogatives of, 216–20, 224–25, 226, 227–28; problems of, 242–43; republican freedom and, 212; Roman republic and, 226; separation of powers and, 213, 214; as trust, 217–18; unitary executive and, 224–25; veto power and, 224; war and peace and, 221–25, 227–28

exile, 127
extended republic, 9, 13, 18, 24, 40, 46, 72, 92, 93–94, 104, 105–8, 128, 140, 193–201, 209, 232–301; American experience of, 10–11, 121, 197, 199, 225, 229, 234–300; autonomy and, 275; cautions about, 280; citizen army and, 275; common communal sense in, 274; confederation and, 118–19, 121, 234; construction of, 193–96; cooperative power and, 282; empire formation from, 198, 205; extension problems of, 10, 58, 76–81, 95, 118–22, 237–39; feasibility of, 236, 237; France as first, 305; leagues and, 118–22, 205, 234; Machiavelli's plan for, 184–88; as Machiavelli's goal, 12, 13, 238–39, 296, 301; Madisonian solution for, 58, 232, 233–41, 296–300; modes of expanding, 204–6; politics and, 177–82; power of, 178; preparation for, 261–62; problems of, 58, 76–81; recurrent weaknesses of, 296–97; survival of, 129–36; transition from territorial state to, 188–89; viability of, 178–79, 183. *See also* American republic; federalism; Roman republic

Fabius Maximus, 158, 162
factions, 48–49, 143n64, 145–46, 238, 242, 243
Faenza, 51
Fasano Guarini, Elena, 4, 8n32, 55n208, 101n158, 113n217, 242n43
fascism, 70
fear, 61–62
federalism, 195, 203, 205, 218, 225; foreign affairs and, 209–10, 213, 214, 221–22; Madison's solution for, 233–41, 296–300; theory of, 10, 11, 211–12; treaty power and, 223; weaknesses of, 296
*Federalist Papers* (Madison, Hamilton, Jay), 10, 72, 197, 199, 200–201, 204n106, 207, 210, 211, 223, 224, 225, 234n7, 235–36, 237n20
Federalists, 204n106, 227, 229
federation, 184, 195, 200, 211, 219–20, 295, *See also* federalism
Ferdinand II, King of Spain, 15, 59
Ferrara, 36–37, 84, 120, 126, 193; princely rule of, 194, 289n92
feudalism, 58, 70, 126, 127, 252, 288, 299; dissolution of, 173; France and, 254–55
Fiesole, 73, 100, 118
Flanders, 71, 84–85; urban rebellions, 184–85
Florence (Florentine republic), 3, 5, 10, 12, 22, 72, 84, 92, 118, 122–25, 143–49, 184, 196, 282, 287, 288, 290, 303; Borgia aim for, 51; Boscoli conspiracy and, 31–32; as capital of territorial entity, 111, 295; capital punishment and, 273; Catasto of 1427 and, 73; centralization of, 295; Ciompi regime and, 57–58; citizen participation and, 299; citizenship grants by, 101, 104, 275–76, 291; constitutional order and, 191–92; dual dominions of (*contado* and *distretto)*, 101–5; elite economy of, 288; elites of, 273, 275; European political struggles and, 58; expansionism and, 6, 10, 13, 23, 28, 34, 47–49, 48, 53, 63, 73–74, 76, 85, 93, 94, 95, 99–105, 107, 108, 109, 111–14, 117–22, 124, 128, 137, 141, 148, 171, 180, 188, 195, 205, 264n133, 285, 295–96; extent of republican empire of, 100–105; factionalism and, 145–46; failings of, 143–44; fall of (1494), 14, 24, 73, 114; fall of (1512), 15, 24; fall of (1530), 130, 198; foreign policy and, 44, 48–49, 136n30, 139–40, 142, 146–49, 154, 156, 157, 162, 163–64, 165, 175, 212; fortification of, 63, 115, 174; general statutes (1455) of, 101; governance of, 139, 148–49, 242–43, 263–66, 272, 275, 266 (*see also* Great Council of Florence); historically defining moment of, 96; imperial republicanism of, 27n74; liberty of, 102–3; lost territories of, 163; Machiavelli's involvement with, 14–15, 28–29, 31–32, 36, 47, 50, 60, 81, 98–99, 102, 104, 139, 142, 163, 174, 183, 233; Medici control of, 23, 24, 28, 31, 32, 33, 37, 47, 48, 54, 66, 74, 93, 142, 147–48, 191–93, 263, 303; Medici expulsions from, 9, 148, 193, 243, 256, 284; medieval magnate class of, 288; "middle way" policy of, 113, 116, 155–56; military deficits of, 163, 172, 174; militia of, 181; occupation policies of, 108, 109, 112, 113, 115–22, 128, 156; papacy and, 37, 38, 148; partisanship and, 189; political traditions of, 264–66; *popolo minuto* (ordinary people) of, 290; practicality of, 137–38; problems of, 145, 146–47; rebuilding aim of, 81; reduced status of, 14–15; restoration of (1494), 148; rival claims to, 184; Roman heritage as civic myth of, 103; Roman republic contrasted with, 90, 94, 167, 169; Savonarola reordering of, 6, 148, 256, 266, 273n184, 284; self-definition of, 96; Soderini morality and, 142; vulnerability of, 141, 208
*Florentina Libertas,* 102–3

Folchi, Giovanni, 32, 190–91
foreign policy, 10, 15n13, 28, 42n144, 46, 48–49, 50, 59, 98–99, 129, 132–36, 138–41, 147–48, 150–72, 208–31; American republic and, 221–25, 228–31; caution in, 140; checking process and, 169–70, 239; competing approaches to, 135–36; deliberation and, 166; division of powers and, 211, 212, 213, 221–25, 239, 274; emergency powers and, 150–53; executive power and, 153, 154, 209, 212–13, 214, 217, 231n246; form of government and, 133–34, 150–51, 210; internal coherence and, 145; international balance of power and, 127, 138, 147; internationalist tradition and, 135, 230–31; international law and, 129, 201–2, 230; isolationism and, 229; military power and, 133–35, 172 (*see also* war); money used in, 175; national interest and, 145, 145n77 (*see also* national security); natural protective barriers and, 172, 175; power politics and, 133–34, 135, 136–38, 175, 201; powers of the people and, 158–59, 161–72, 211, 240–41; prerogative power and, 217, 219–20; princely power and, 211–12; princely vs. republican approach to, 132n17, 166; realist school of, 135–36, 137; reason of state doctrine and, 141–46, 228–31; republic and, 104, 132–33, 134, 138–41, 146, 150–61, 201, 208–10, 231; Roman republic and, 129, 133, 135, 136, 154–62, 166–72, 211, 212, 222, 226–27, 239; temporization and, 44; transparency in, 267–68
Forli, Countess of, 63
fortifications, 49, 63, 65, 115–17, 128, 174
fortune, concept of, 19, 21; prince and, 124; whims of, 65–66
Forum, Roman, 273
Foscari, Doge of Venice, 99
Foucault, Michel, 197n74
France, 65, 97, 126, 141, 174, 191n52, 203; *ancien régime,* 197n74, 251n86, 305; Bourbon dynasty, 197–98, 203, 245; capital city, 111; as composite state, 104, 110; dominance by, 71; as exemplar of territorial state, 42, 46, 76, 77, 239, 244–45; First Republic, 305; Italian states and, 12, 13–14, 24, 37, 43, 44–45, 50, 51, 54, 59, 69, 73, 97n141, 113, 114, 124, 128, 129–30, 148, 157, 187, 304–5; League of Cambrai and, 130; leagues and, 121, 199; limited monarchy of, 11, 32–33, 58, 61–62, 244–45, 252; Machiavelli's diplomatic mission to, 46, 139, 245; Machiavelli's view of, 98, 99, 244–55, 305; military strength of, 4, 172, 173, 175, 176, 224; as model kingdom, 10, 61–62, 197–98, 251–52; occupation policy of, 49, 109; *parlements* of, 46, 61–62, 251–53, 254, 267, 268; political organization of, 34; religion and, 121, 292; revolutionary regime of, 81, 229, 305; strength of, 37, 70; unified kingdom of, 2, 10, 21, 22, 45, 55, 64, 70, 78, 84, 94, 175, 201, 245, 250; Valois dynasty, 110, 193, 245; wars with Spain, 304–5
Franklin, Benjamin, 204n5
fraud, 141–42
Frederick II (the Great), King of Prussia, 1, 128
freedom, 88–89, 123, 243, 247, 248, 252; citizen army's protection of, 277–78; citizenship and, 114; dialectic between necessity and, 177n230; French territorial state and, 245; laws supporting, 258–59; moral and political, 142; ordinary people as guardians of, 8, 260, 274–75, 277, 284; preservation of existing, 58, 194; republics and, 132n17, 150, 212, 245, 259; territorial expansion effects on, 58, 72, 76, 96; tyranny vs., 40n137, 46, 245, 274; wealth as endangerment to, 298. *See also* liberty
free speech, 272–73
Fregoso, Ottaviano, 116n231
French Revolution, 8, 81, 229, 305
Fubini, Riccardo, 146n81

Gandhi, Mohandas, 282
Gattoni, Maurizio, 5n18
Genoa, 49, 97n141, 304
Gentili, Alberico, 26
Gentillet, Innocent, 142–43
Germanic league, 236
Germany, 65, 85, 98, 109, 130, 286; free cities of, 184, 194, 202; Holy Roman Empire and, 84, 97, 109, 256; peasant leagues and, 121, 199; Peasants War (1525) and, 184, 185, 195–96, 256, 284; political organization of, 34; popular reformation in, 67, 284, 292; public debates and, 283n229, 284; strength of, 70; successful revolts and, 186. *See also* Prussia
Gerry, Elbridge, 222, 297
Ghent, 84–85; rebellion (1477), 184–85
Ghiribizzi letter (1513), 35n115
Giannotti, Donato, 71–72, 184, 244
Gierke, Otto, 70n10

Gilbert, Felix, 16–17, 24n59, 55n208, 132n16, 134n25, 136n30, 141, 238n26, 264n133
Gladstone, William, 231
Glorious Revolution of 1688 (England), 198, 207, 217, 218
Gordon, Thomas, *Sallust and Tacitus,* 226n222
*governo largo,* 132, 244, 275
Gracchi brothers, 58, 281
Gramsci, Antonio, 16n16, 18n29, 33, 64, 70, 76n42, 138, 286n242, 290–91; on reason of state doctrine, 143
Grand Duchy of Tuscany, 84, 87, 92, 127, 147, 153, 184, 192, 193, 288, 303–4; characteristics of, 295–96; formation of, 125; map, *83;* retention of border of, 304. *See also* Medici, Cosimo de
*grandi. See* elites
Grazia, Sebastian de, 9n37, 18n19, 20, 40n139, 64
Great Britain, 97, 109, 200, 220, 229; Act of Settlement (1701), 198, 215; Acts of Union (1707), 203, 205; Acts of Union (1536, 1543), 110, 198; American colonies, 121 (*see also* American republic); balanced government and, 215; Bill of Rights (1689), 217; civil war (1642–51), 206, 207, 213, 238; election districts, 300; foreign affairs, 209, 212, 213, 214, 231; Glorious Revolution (1688), 198, 207, 217, 218; isolation of, 201; legislative body of (*see* Parliament); as mixed government example, 263; monarchy of, 110, 198, 206; Privy Council, 218n186, 297; republican tradition and, 233; resistance to occupation of, 111; royal prerogatives and, 216–18; sovereignty concept and, 206–7; strength of, 70, 84; treaty power and, 222; unwritten constitution of, 191n54
Great Council of Florence, 24, 98, 148, 162, 196, 272; expansion of, 275, 285; lifetime chief executive of, 164; popular limitations on, 299
Greece, ancient, 214, 226, 236, 266n140, 269; direct democracy and, 237. *See also* Athens; Sparta
Grotius, Hugo, 135, 145n76, 201–2, 204, 230
Grubb, James S., 145, 255n99
guard of freedom, meaning of, 274–77
Guicciardini, Francesco, 14, 39, 58, 73, 92n121, 93, 138n39, 139, 159, 185, 192n57, 275, 303; *Storia d'Italia* (*History of Italy*), 70, 148
guilds, 242, 255, 259, 263, 266, 282, 290
gunpowder, 172

habeas corpus, 266; suspension of, 227n233
Habsburg dynasty, 76, 84, 99, 110, 111, 198, 304
Hale, J. R., 8, 50–51, 131
Hamilton, Alexander, 145n77, 200–201, 200n84, 208, 210, 211, 220, 223, 224–25, 226n223, 230, 235n12, 237n20, 239. *See also Federalist Papers*
Hankins, James, 6
Hannibal, 158, 162
Hanseatic League, 84, 85, 119
Hapsburg dynasty. *See* Habsburg dynasty
Harper, John Lamberton, 207n119
Harrington, James, 233
Hartz, Louis, 233n3
Havel, Vaclav, 282
Hegel, Georg Wilhelm Friedrich, 177n230
Helvetic Confederation. *See* Swiss Confederacy
Hendrickson, David, 207n119, 225n221
Henrici (people), 292
hereditary rights, 62, 65, 160, 192, 247
Hexter, J. M., 41–42n143
Hiero of Syracuse, 50
Hobbes, Thomas, 177–78, 206, 305; *The Leviathan,* 13n5, 206
Hodges, James, 203
Hohenstaufen dynasty, 85
Hohenzollern dynasty, 110
Holy Roman Empire, 14, 97, 98, 99, 139; as composite state, 201–2; conquests in Italy by, 130, 303; German republics and, 84, 97, 109, 256; League of Cambrai and, 130; papal power struggle with, 255; Swiss Confederacy's defeat of, 119, 121
Hörnqvist, Mikael, 27, 27n74, 103nn169, 170, 113n217, 115n224, 119n244, 120, 121n257, 132n18, 136n30, 154n124, 257n105, 263–64n133; *Machiaevelli and Empire,* 93
House of Commons (Britain), 300
House of Medici. *See* Medici family
Huguenot league, 121, 199
Hulliung, Mark, 27, 119n244
Hume, David, 236n16
Hungary, 84, 111, 198, 296

Imbault, 140
imitation, 81–82
immigration policy, 90; openness of Roman, 107, 276, 291–93
imperialism. *See* empire; territorial expansion
*imperio sopra,* 39n135
*imperium in imperio,* 207, 298

incorporating union, 202–3
Index, *Prince* placement on, 1
indirect government, 13, 126, 293, 294, 296, 299; of occupied territories, 110, 112
individual virtue. *See* virtue
inequality, 280, 281, 287
Inglese, Giorgio, 25–26
inheritance. *See* hereditary rights
innovation, 19n31, 27, 172, 233
insurrections. *See* rebellions
*intercessio* (Roman veto power), 266–67
international law, 129, 201–2, 230
international relations. *See* foreign policy
Ireland, 84, 110, 111, 203, 204, 296
Isabella I, Queen of Spain, 15
isolationism, 201, 229
Italian League, 147
Italian Renaissance. *See* Renaissance Italy
Italian Wars, 12–16, 69–71, 93, 130; dislocations from, 65; as historical turning point, 70
Italy: balance of power and, 147–48; central unitary state as goal for, 22–25; city antagonists and, 106–7; city-state sovereignty and, 255, 275; common history of, 125; communal liberty inheritance of, 255; condottiere system and, 59, 173; delayed development of, 75–76; disunity of, 55, 64, 66, 70–71, 134–35; as European battlefield, 304–5; foreign invasions of, 12–17, 21, 22, 23, 24, 31, 59, 60, 69–70, 73, 75, 76, 94, 95, 97n141, 113, 114, 124, 128, 129–30, 134, 148, 175–77, 233, 242, 303–5; French-Spanish wars over, 304–5; incompetent elites and, 65–67; Italian Wars' effect on, 70; larger state-building and, 255; League of Cambrai and, 130; liberation cause of, 36–37, 60, 66, 67, 183, 184, 187–90, 285–86; map (1494), *38;* ordinary people of, 290–91; papal territories and, 54, *83* (*see also* Papal States); reasons for decline of, 20–21; republican weaknesses of, 171, 207–8; republics of, 3, 289 (*see also* Florence: Venice); significance of year 1494 in history of, 14–15; ultimate political goal for, 12, 22; unification movement, 1–2, 10, 127, 187–88, 259 (*see also* Risorgimento); vulnerability of, 52
*ius commune,* 129

Jacksonian democracy, 164
Jacobeans, 198
James I, King of England (James VI of Scotland), 109, 203
Jay, John, 208, 209, 220, 235n12
Jay Treaty, 229
Jefferson, Thomas, 204n5, 208, 209, 227, 296; on survival of republic, 229–30
Jeffersonian Democrats, 300
Jesuits, 1
Jones, Philip, 255n99
judicial power, 11, 53, 213, 214, 239, 298; French *parlement* and, 251–53, 254n94; judicial review and, 298; legislative sovereignty and, 298; people's court of appeals and, 273; Tribune of the Plebs and, 265–69
Jugurtha, king of Numidia, 283
Julius II, Pope, 23, 37, 53, 54, 176n224; conquests of, 126, 304
*jus latinum,* 284
just war theory, 136n30, 230
Juvenal, 116

Kahn, Victoria, 20, 26
Kant, Immanuel, 135
King, Martin Luther, Jr., 282
King, Rufus, 222
kingdom, 250–53; description and meaning of, 245; France as model of, 10, 11, 61–62, 197–98, 251–52; Machiavelli analysis of, 45–46, 181; Spanish unification as, 2, 10, 15, 21, 55, 64, 78, 82, 84, 94, 124–25, 245; as territorial entity, 181. *See also* monarchy
Kocis, Robert, 26n71
Koenigsberger, H. G., 231, 240

LaCroix, Alison, 203, 204n105
Laslett, Peter, 213n160
Latin colonies, 294–95, 299
law. *See* common law; natural law; rule of law
law of nations. *See* international law
League of Cambrai, 130
leagues, 10, 84, 85, 93, 96, 98, 108, 128, 130, 196, 202, 206, 294; as anti-imperial force, 199–200; of cities, 71, 72–73, 118–21, 128, 180, 194, 199; fixed limits of, 119; republican expansion and, 118–22, 205, 234; ubiquity in early modern Europe, 121
legions, Roman, 168, 171
legislative power, 10, 213, 214, 215, 220; veto prerogative and, 216, 296–97, 298; war and peace and, 221–25. *See also* Congress; Parliament, Senate

Leo X, Pope, 5, 15, 23, 24, 28, 35, 54n203, 124, 154, 189; election of, 31; "Liberty of Italy" policy and, 36–37, 67, 185; Medici family and, 54; summit of political power of, 37; territorial policy of, 35–37, 38, 39, 54, 74, 75, 126, 304
liberal tradition, 233, 248
liberation, 8, 22; as Italian cause, 36–37, 60, 66, 67, 183, 184, 185, 187–90, 285–86; *Prince* as manifesto of, 16, 17, 22, 67
liberty, 3, 58, 102, 103, 173; citizen army as guard of, 278; communal, 255; Machiavelli's meaning of, 9, 11, 245–46, 248, 249; negative, 248, 250; as power, 281; state security vs., 173–74. *See also* freedom
limited government, 11, 45, 58, 198, 214, 215
Lincoln, Abraham, 227–28
Livy, Titus, 30n88, 76, 77, 78, 82, 92, 103, 105n182, 125, 160n152, 168, 171, 226, 257, 292; assemblies and, 163; on citizenship extension, 114; dictatorship and, 152; on foreign policy, 211; on Latin colonies, 294; *The Rise of Rome,* 232; on senate, 157. See also *Discourses on the First Ten Books of Titus Livy*
Locke, John, 62, 205, 213–14, 217n184, 221, 248; as American Founders influence, 226n223; liberal tradition and, 233; prerogative power definition of, 218–20; *Second Treatise on Government,* 77n49, 153, 213–14, 218
Lodi, Treaty of (1455), 146–47
Lombardy, 21, 29, 123, 207, 286, 304
Long Parliament (England), 214, 220
Lorenzo the Magnificent. *See* Medici, Lorenzo de
lot, selection of officials by, 270n170, 271–72
Louis IX, King of France, 61
Louis XII, King of France, 32–33, 43, 44–45, 59, 76n42, 109, 130
Louis XIV, King of France, unitary sovereignty of, 201
Lucca, 23, 37, 51, 74, 97n141, 100, 123–24, 125; Florence and, 102, 112, 120; as free republic, 287, 289n252, 304; map of, *83*

Machiavelli, Niccolò: admiration for Borgia, 27n75, 30n87, 33, 34, 51, 52, 53, 60, 66, 126, 127; on civil way of life, 123–24; comparative historical analysis and, 78; critics of, 142–43; death (1527) of, 70, 284, 303; deeds over words and, 168; diplomatic missions of, 28, 46, 48, 50, 98–99, 139, 245; doctrine of necessity and, 64, 64n247; educator self-image of, 20, 25, 33, 64, 75n36; exile of, 74–75; extended republic blueprint by, 238–39, 296, 301; factors behind political thought of, 75–76; Florentine positions of (*see under* Florence); France's significance for, 244–45; ideal prince of, 9–10, 13, 39; imitation concept of, 81–82; imprisonment and torture of, 31–32, 60, 142; innovative thought of, 19, 244, 293–94, 305; intellectual traditions in work of, 263; Italian Wars and, 12, 12–15, 70; "lords of Tuscany" phrase of, 122; Madisonian Impulse and, 10–11, 296–300; Medici employment of (*see under* Medici family); modern appraisals of, 1, 2–3, 69; originality of, 2–4; on people as power base, 181–82; as people's advocate, 1–2, 9–10, 60–61; political development of, 34–37, 39, 75–76; political experience of, 4, 28–29, 31, 34, 98, 139; political models for, 125–26, 177; political theory contributions of, 1–2, 4, 7, 9, 10, 12–13, 141–46, 178 (*see also* reason of state); political transitions and, 7–8, 12–16; political writers' views of, 286–91; "politics" meaning for, 41; populism and, 58, 60, 62; power theory and, 181–82, 281–86; prominent schools of thought on, 149; as realist, 63–64n245, 94, 135–36, 137, 138; republic of (*see under* republic); reputation for cruelty of, 53; Risorgimento linked with, 1–2, 10, 18, 69, 76n44, 286; sources of originality of, 2–3; two-sided nature of writings of, 29; ultimate goal of, 12; understanding of, 68–69; Venetian republic critiques by, 244; view of warfare of, 56n214, 59–60, 75, 134, 136n30, 172–77, 219, 222; works of: *The Art of War,* 15, 180, 275; *Discorso sopra il Riformare lo Stato di Firenze,* 190–91; *Discourse on Florentine Affairs after the Death of Lorenzo,* 24–25; *Florentine Histories,* 2; "On the Civil Principality," 58. See also *Discourses on the First Ten Books of Livy; Prince, The*
Machiavellian Moment, 233–34
Machiavellism, 64, 141–46
Madison, James, 10–11, 22, 153n122, 208, 209, 218n186, 226n223, 227, 229, 231, 265, 269n162; executive power and, 213, 220; factions and, 243; solution for republic of, 232, 233–41, 296–300; standing army and, 173; veto power and, 296n286; war

declaration power and, 222. *See also* Federalist Papers
Madisonian Impulse, 10–11, 233–41, 296–300
Madisonian Moment, 233, 234; definition of, 237–38
Magyar constitution, 198
Maitland, F.W., 197, 216
majority, 238, 269; tyranny of the, 296
Mallet, Michael, 55n208
Manilus, 283
Mansfield, Harvey, 39n135, 41–42n143, 78n54, 134, 224
Mantua, 36, 84, 139
Manzoni, Alessandro, 2
Marchand, J. J., 6
Marches of Ancona, 126, 304
Marcus Aurelius, Emperor of Rome, 62, 65
Marius, Gaius, 280
Marshall, John, 230
Martelli, Mario, 26
Martines, Lauro, 16n16, 20n34
Marx, Karl, 177n230
Mason, George, 237
Massachusetts constitution, 220
mass movements. *See* popular movements; rebellions
Maximilian I, Holy Roman Emperor, 77n50, 119, 130, 139, 199, 256
McCormick, John, 91n115, 160n153, 165n171, 267n146; *Machiavellian Democracy,* 132n18, 264n133
Medici, Clement de, 181
Medici, Cosimo de, Grand Duke of Tuscany, 125, 147, 153, 192, 193, 303–4 territorial policy of, 295–96, 303
Medici, Giovanni de, Cardinal. *See* Leo X, Pope
Medici, Giuliano de, 31, 33, 35, 54
Medici, Giuliano di Lorenzo de, 31
Medici, Giulio de, Cardinal, 189, 190–91; republican conspiracy against, 80. *See also* Clement VII, Pope
Medici, Lorenzo de (Lorenzo the Magnificent) (1449–92), 15, 28, 31, 32, 50; reappraisal of , 147–48
Medici, Lorenzo de, Duke of Urbino (1492–1519), 54, 55, 66, 124; ducal appointment of, 28, 37; as governor of Florence, 28, 33; as governor of Tuscany, 74; papal uncle of, 37, 54; *Prince* Dedicatory Letter to, 25, 28–31, 35, 50, 75, 189; state-building and, 51, 52, 62–63
Medici family, 60, 179; ascendancy of, 57, 147, 304; Borgias compared with, 33, 54; conspiracies against, 184; dominions of, 303–4; Florence and, 23, 24, 28, 31, 32, 37, 47, 48, 54, 66, 74, 93, 142, 147–48, 191–93, 263, 303; Florentine popular rebellions against, 9, 148, 193, 243, 256, 284; intrigues and plots against, 186; Italian liberation cause and, 21, 39, 189; Machiavelli and, 9n16, 17, 18, 31, 32, 33–34, 39, 56, 212; Machiavelli's view of unitary central Italian state under, 22–25, 66, 184, 185, 192; opponents of, 80nn61,64, 127; papacy and, 23, 54 (*see also* Clement VII; Leo X); *Prince* dedication to, 30–31, 34; princes in republic and, 189; Rome controlled by, 23, 48, 66, 74; territorial control and, 93, 124, 127, 185, 304; Tuscany and, 8, 23, 125, 127, 185, 239–40
medieval period: assemblies, 299–300; expediency doctrine, 64; Florentine magnate class, 288; guilds, 242; plenum of power, 215–16; republic, 242. *See also* feudalism; guilds
Meinecke, Friedrich, 4, 16, 56, 56n214, 131n13; definition of reason of state, 142
mercantile bourgeoisie, 99, 290
mercenaries, 53, 59, 65, 118, 176–77, 181
Michelangelo, 174
Middle Ages. *See* medieval period
middle class, 99, 143, 290
Miglio, Gianfranco, 42n145
Milan, 3, 84, 255n99; foreign conquests of, 129–30; French gain and loss of, 43; viceroy rule of, 305
military, 39, 59–60; advances in, 172–77; advantage of local troops (*see* citizen army); chains of command, 173; conscription, 133, 174; French strength and, 4, 172, 173, 175, 176, 224; ideal prince and, 13; mercenaries, 53, 59, 65, 118, 176–77, 181; occupation of conquered territory by, 43, 44, 111; personal army vs. mercenary, 53, 59, 65, 176–77 (*see also* citizen army); politicization of, 173–74; power of, 62, 133, 173, 276; private armies and, 280; reforms and, 176–77; Roman consuls and, 168–69, 226, 280; standing army and, 173, 179, 181, 217; state formation and, 178. *See also* war
militia. *See* citizen army
Millar, Fergus, 77n48, 264n135
mirror for princes, 9–10, 13, 16, 28, 63–64

mixed government, 185, 212, 214–15, 221, 246, 248, 258, 262–64, 299; elections and, 270–71; principality and, 126, 185
Modena, 36, 127
modern world, 70, 82–85
monarchy, 10, 12, 15, 22n48, 46n168, 181, 262; absolutism and, 55, 112, 177–78, 179, 206, 217, 305; alliance between elites and, 57; alternatives to, 199; composite, 19, 95, 110, 128, 195–96, 202, 206, 224, 239–40; critical weakness of, 192; dominance in sixteenth-century of, 7–8, 82, 84, 130; European warfare and, 53, 130, 133–34, 304–5; extended composite, 19; great age of, 177–82; imperialism and, 109, 177; as inevitable political order, 128; kingdom description and, 245; limited, 11, 45, 58, 214, 215, 217; local mobilization against, 200; Machiavelli's view of, 22n48, 56, 71; mercenary recruitments by, 181; militarism of, 133; nation-state and, 55, 104; northern European rise of, 76; Ottoman states as antithesis to, 45; Parliament and, 207, 214, 220; private rights and, 235; regional territorial, 7, 9, 45, 55, 72–73; republican transition from, 188–93; republic relationship with, 7, 39–40n135, 40, 40n135, 46n168, 71–72, 75, 85, 108, 131, 133, 238, 253–54; rise and power of, 131, 173; Roman republican defeat of, 192–93; royal prerogative and, 215–18, 221; sovereignty and, 82, 84, 207; standing army of, 181; territorial expansion and, 82, 84, 108, 178; territorial state and, 45, 55, 72–73, 104, 197; unification of, 2, 110–11, 124–25; war power and, 174, 228. *See also* France; Great Britain; Spain
money, 118, 175
Montagu, Edward Wortley, 226n222
Montepulciano, 295
Montesquieu, Charles de Secondat, Baron de, 150, 211–12, 220, 228n235, 254n94, 299; on feasibility of extended republic, 236–37; federative powers division and, 221n201; separation of powers statement, 214; works of: *Considerations on the Causes of the Greatness of the Romans and Their Decline,* 196; *Persian Letters,* 45; *The Spirit of the Laws,* 211, 214
moral freedom, 142
More, Thomas, *Utopia,* 172
Morelli, Americo, 80n61
Morgenthau, Hans, 70n10, 135, 135n29, 164
Morris, Robert, 220
Mosca, Gaetano, 283n228
Moses, 50, 66
Moulakis, Athanasios, 241n40
Mouritsen, Henrik, 264n135
Mutiny Act of 1689 (England), 217

Najemy, John, 4, 6, 32, 79n58, 138n39, 143n65, 181n248, 255n99
Naples, 21, 84, 123, 207, 255n99, 286, 304; French and Spanish claims for, 51; Holy Roman emperor's invasion of, 130; viceroy rule of, 305
Naples Revolt (1647–48), 186, 284–85, 290
Napoleonic Wars, 125, 304
national government, 296–97, 305
national interest, 145, 145n77
nationalism, 2
national security, 151, 173–74, 210; fortifications and, 49, 63, 65, 115–17, 128, 174; prerogative power and, 220, 224, 226, 227–28; republic and, 225. *See also* war; war powers
nation-state, 55, 68–70, 104; regional territorial state vs., 69
natural law, 177, 219
Navarre, 82, 84, 110
necessity: concept of, 19; dialectic between freedom and, 177n230
negative liberty, 248, 250
Nelson, Eric, 218n186, 280
Netherlands. *See* United Provinces of the Netherlands
*Neuva Planta* decrees (1707), 197
New Jersey Plan, 220n198, 297–98
New World, voyages of discovery to, 75–76, 197. *See also* American republic
New York constitution, 220
New York Trespass Act of 1783, 209–10, 297
Nicholson, Harold, 228n237
Nicolet, C., 292
Niebuhr, Reinhold, 135
Nietzsche, Friedrich, 137
Nine of the Militia (Florence), 14
nobility. *See* elites
nonviolent political action, 9–10, 282–83

occupation policy, 41, 77, 191–92, 291–96; alternative governance and, 46–49, 203; army use in, 43, 44, 111; Borgia method of, 52–53; citizenship awards and, 11, 104, 114, 156, 275, 276, 291–93; indirect rule and, 13, 126;

maintenance of conquests and, 43–49, 85, 108–22, 128, 294; rebellions and, 186; Roman vs. Florentine approach to, 90, 108, 109, 112, 113, 115–22, 128, 156
Office of the Tribunes. *See* Tribunes of the Plebs
oligarchy, 90, 185, 186, 262, 305
Olivares, Count-Duke of, 175
Orco, Remirro d', 52–53
orders. *See* constitutions
Ordinanza de Justice of 1293, 266
ordinary people. *See* people
*Ordinazioni* of 1532, 191, 263, 303
Orsini family, 51
*Orti Orcellari,* 24, 80, 92, 185
*ottimati* (Florentine elite), 275
*Otto de Guardia* (the Eight), 273
Ottoman Empire, 10, 45, 78, 84

Palermo, 186
Palimieri, Matteo, 102
Palladio, Alberto, 232
papacy, 125, 175n221; Borgias and, 54; Florence and, 148; Holy Roman emperors' power struggle with, 255; imperialism and, 177; legations, 127; map of estates of, *83;* Medici and, 54, 74; Roman Empire legacy to, 125; territorial consolidation by, 23, 35–37, *38*. *See also specific popes*
Papal States, 23, 37, *38*, 44, 50, 53, 54, 84, 85, 95, 124, 126, 130, 194, 289n252, 304
pardon power, 114, 216, 219
Paris, 111
Paris, Treaty of (1783), 210, 220
*Parlement* (France), 46, 61–62, 251–53, 254, 267, 268
Parliament, British, 207, 213, 214, 220, 299; elections, 300; right to dissolve, 216; supremacy of, 207, 215, 217
Parma, 126, 127
Paruta, Paolo, 244
Pastor, Ludwig von, 5
patricians. *See* elite
Patrimonium Sancti Petri, 126
patronage, 145, 186
Pavia, 102, 130
peace, 135, 221–25. *See also* war powers
Peace of Westphalia (1648), 206
peasants, 181, 290, 305; leagues, 121, 199; revolts, 184, 195–96, 256, 284
Penula, Marcus Centenius, 158
people: access to high office by, 271; as basis of composite state, 63, 179–80, 191–92; checking process and, 162, 169–70, 262–63; collective action by, 274–77; common cause and, 11; community and, 274; consolidation of, 63, 66; elite power-sharing with, 90, 91; equality of, 286–87; foreign policy powers of, 158–59, 161–72, 211, 240–41; as foundation of state, 57–58; free speech and, 272–73; as guardians of freedom, 260, 274–75, 277, 284; institutionalization of power of, 256–57; Italian states and, 290–91; Machiavelli as patriot of, 1–2, 9–10, 60–61; mass protest by, 282, 283; military service by (*see* citizen army); myth of sovereignty of, 273; occupations of, 289–91, 290; opinion vs. judgment and, 165n171; political fears of, 286; political mobility of, 160; political role of, 5, 6, 10, 22, 40–41, 152, 160–61, 177, 178, 179, 195, 231, 273, 282, 299; as power base, 191, 250–51, 281–86; prince's cultivation of, 57–58, 60–61, 65, 181, 187; Protestant Reformation and, 284; qualities of, 265–66; role in republic of, 9–10, 24, 89, 92, 150, 160n153, 166, 179, 242, 264; role in Roman republic of (*see* plebians); self-rule capability of, 195; solidarity among, 274; sovereignty of, 273, 298; state founded on, 128, 240 (*see also* republic); war empowerment of, 89–90, 92, 160, 162, 166–67, 260, 267, 277–78, 279, 291
"perpetual peace," 135
Perugia, 36, 50, 126; papal conquest of, 37, *38*, 126, 194, 289n252, 304
Pesaro, 126
Petrarch, 187, 198
Petrucci, Ottaviano, 198
Philadelphia Convention (1787). *See* Constitutional Convention
Philip II, King of Spain, 125, 296n284
Philip V, King of Spain, 197
Piacenza, 36, 126
Piccolomini, Enea Silvio, 98n146
Piedmont, 87, 110, 255
Pinckney, Charles, 212
Piombino, 303
Pisa, 23, 47–48, 51, 100, 125, 126, 290, 295; enmity toward Florence of, 73, 102, 111, 112, 113, 115, 116, 180; Florence's attack on (1505), 163; in Florence's *distretto,* 49, 101, 102, 112, 171, 275; Florence's loss of, 157; Florence's reconquest of, 120, 139; as free republic, 47, 194, 289n252; Machiavelli's experience with, 28; Medici and, 37

Pistoia, 48, 73, 295; Borgia conquest of, 53; in Florence's *distretto,* 100, 101, 112, 113, 117, 137; Machiavelli's experience with, 28; resistance to Florence by, 180
Pius II, Pope, 98
Pius V, Pope, 125, 303
Plato, 243, 243n48
plebians, 159, 171; agrarian laws and, 280, 281; collective action by, 282; expulsion of Tarquins and, 193; free speech and, 272–73; leadership and, 274–75; political participation by, 160–61n153, 161–62, 181–82; political rights of, 187, 278–79; popular appeals by, 273; power of, 9–10, 89, 92, 179, 257, 264, 283; right to stand for higher office of, 271; as Roman republic's foundation, 258–62; senate's relationship with, 157, 158, 166–67; significance of, 243, 256; trust in, 260; war empowerment of, 167, 181, 277, 279. *See also* Tribunes of the Plebs
plenum of power, 215–16
Pocock, J. G. A., 3, 6, 18–19, 19n31, 27, 64n247, 68n2, 96n138, 225n221, 238n26, 275, 289; American republican thought and, 233, 234
Poland, 84, 198, 210–11, 236
Pole, Reginald, 9n36
polis, theory of, 258
*politeia,* 248
political power: balance of, 127, 138, 147–48, 228, 229; based on popular will, 165–66, 256–57, 260–61, 281–86, 282; extra-legal, 219; financial backing for, 200; imbalances in, 253–54; nonviolent action and, 9–10, 282–83; participants in, 293–94; of powerless, 282; public vs. private, 153; revolutionary effects on, 285; social domination as condition for, 289. *See also* popular movements; power politics
political space. *See* sovereignty; territorial state
political thought, 201–4; international wars and, 133; Lockean liberalism and, 233; Machiavelli contributions to, 1–2, 4, 7, 9, 10, 12–13, 34–35, 75–76, 138, 141–46, 178, 233–34, 243, 263; pragmatism and, 112; rationality and, 138; reason of state and, 141–46; three schools of, 177; view of people and, 286
Polybius, 39n135, 78, 94n130, 168, 170n190, 208, 214–15, 226, 243n48, 257, 280; mixed government concept and, 246; popular assemblies and, 264–65, 272; regime analysis by, 262–63
Pompey, 226
popes. *See* papacy; Papal States: *specific popes*
*popolo minuto* (ordinary people), 290
popular army. *See* citizen army
popular assemblies. *See* assemblies
popular movements, 5, 6, 7, 8, 9, 10, 22, 40, 63, 67, 152, 160–61, 177–80, 184, 185, 195, 231, 256, 273, 282, 299. *See also* rebellions; revolution
popular sovereignty, 207, 231
popular tribune. *See* Tribunes of the Plebs
popular will, 165–66, 256–57, 260–61, 281–86, 282
population growth, 276–77
*populi Romanus,* 290 (*see also* plebians)
populism, 58, 60, 62, 132, 179, 199n81, 242, 305
Portugal, 186, 197
power. *See* political power; prerogative powers; public power; separation of powers
powerless, power of the, 282
power politics, 133–34, 135, 136–38, 175, 201
*pratiche* (consultations), 141
Prato, 100, 104, 290
preemptive war, 137
prerogative powers, 10, 153, 213, 215–20, 221–25; Locke definition of, 218–20; national security and, 220, 224, 226, 227–28
presidency, U.S., 218, 224; extraordinary emergency powers of, 227–28
prince: as benevolent and humane, 106, 116, 132n17; Borgia as model for, 124; campaign of conquest and, 58, 106, 124; civil government and, 93; consolidation by, 187–88, 194, 289n252; dissimulation by, 32; dominance of, 177; external powers of, 206; foreign policy as preserve of, 211–12; forms of rule of, 58; fortresses and, 116–17; fortune and, 124; as founder, 27; hereditary vs. new, 65; ideal, 9–10, 13, 16, 27, 39, 63–64; as innovator, 27, 32; Italian defeats and, 14, 175–76; Italian incompetence of, 65–67; methods of maintaining power of, 48–49; permanent state of emergency and, 64; popular support for, 185; public good and, 57–58, 60–61, 65, 181, 187, 189; rebellion leadership by, 185; republican realism and, 26; republic governance by, 189–92;

resistance to, 184; rule of law and, 58, 251; as servant of state, 60, 64; state formation and, 178, 246; territorial expansion and, 58, 253; territorial state rule by, 7, 8, 10, 21, 45, 131, 178, 183; as tyrant, 26, 27, 46; unification by, 94, 111; urban resistance to, 180; waging war by, 27, 59–60, 64, 124, 172–77, 219
*Prince, The* (Machiavelli), 12–67; amoralism and, 286; architectural metaphors in, 52; audience intended for, 32–33; authoritarian advice in, 27; basic structure of, 16–18, 39–49; Church condemnation of, 1; controversy over dating of, 25–26, 27, 77n50; critical views of, 26–27; critique of tyranny, 26; Dedicatory Letter, 23, 25, 28–39, 45, 50, 51, 75, 189; *Discourses* relationship with, 8, 26, 27–28, 131; diverse theories on design and purpose of, 1, 18–19; early versions of themes of, 35n115; educational aspect of, 20, 25; exhortation in final chapter of, 21, 24; failure of Italian unification and, 70; *Federalist Papers* and, 207; final three chapters of, 21, 24, 65–67; foreign affairs and, 153–54, 166; formation of modern politics and, 7, 9; ideological readings of (Cambridge School), 4; on innovation and individual virtue, 233–34; intent and purpose of, 13, 13n2, 17–18, 20, 27–28, 35, 59, 64, 75, 143, 239; kingdom analysis and, 45–46; as manifesto of liberation, 16, 17, 22, 67; as memorandum on conquest, 86; on military reforms, 176–77; mirrors for princes tradition and, 28, 63–64; modernity of, 2–3; modern state formation and, 5, 43–49; monarchist strain found in, 56; multiple dimensions of, 13, 19–20; original intent of, 35; original title of, 22; people vs. elite and, 60–61, 65; publication after Machiavelli's death of, 25; as revolutionary manifesto, 8–10; rhetorical conventions of, 4, 29–30, 29n84; second person pronoun forms in, 32–33, 66; seen as satire, 26; specific Italian situation and, 20–21; state-building emphasis of, 12–13, 39–40, 43–49; third-person use in, 33; urgency and vitality of, 8; year written (1513), 25
principality, 10, 12, 58; acquisition/governance of, 13, 41, 43–44, 45, 47, 50, 57–58, 77, 126, 127, 191–92, 295–96; city-state as, 46; hereditary, 62; liberty found in, 249; Machiavelli's meaning of, 246–47; mixed, 126, 185; republic distinguished from, 8, 66n251, 92, 247, 253; as territorial, 9; three types of, 247; transition into republic of, 10, 105–6, 183, 191; vulnerability of, 192
*Principatibus, De*. See *Prince, The*
private ambition, 145–46
private armies, 280
private power, public vs., 153, 159
private rights, 235
Privernum, Roman citizenship, 114, 156, 292
Privy Council (England), 218n186, 297
Protestant Reformation, 67, 186, 284, 285, 292
protests. *See* popular movements; rebellions
Prussia, 70, 110, 128, 198
public good, 159
public power: private vs., 153; transparency of, 159. *See also* people; plebians
Pufendorf, Samuel von, 202, 204–5, 230
Punic War, 294
Puritan England, 233
Putnam, Robert, *Making Democracy Work*, 289

Rahe, Paul, 15n13, 266n140
*raison d'état*. *See* reason of state
Rakove, Jack N., 10n41, 209n132, 210, 212n154, 221n200; "The Madisonian Moment," 234n7
Ravenna, Battle of, 130
realist school of international relations, 135–36, 137
reason of state, 64, 77, 133, 141–46; American republic and, 228–31; classic definition of, 142; different understandings of, 145n76
rebellions, 46, 120, 258; of early modern period, 256, 283, 284–85; of formerly free cities, 113–113–15, 120, 180, 184–86; general failures of, 285; Machiavelli political theory seen fomenting, 286; nonviolent regime change and, 9–10; throughout sixteenth century, 9, 184–85. *See also* revolution
Reconquista (Spain, 1492), 82
Reformation. *See* Protestant Reformation
Reggio Emilia, 36
regime change, 192; nonviolent, 9–10
regime types, classification of, 39–40n135, 262–63
regional territorial state, 7, 9, 45, 55, 72–73, 127; nation-state vs., 69
*Registri* (papal), 36
religion, 106, 283n229, 284; Church Index and, 1; leagues and, 121; political action and, 94n130, 284; secularization and, 234; wars

of, 238. *See also* papacy; Protestant Reformation
Renaissance Italy, 67, 75, 82; cities and, 31; city-state organization and, 46; culture of innovation and, 172; effect of French invasion on, 14; occupations of ordinary people and, 289–91; political system of, 12, 86; republican duality and, 102; "spirit of calculation" and, 137–38; Tuscany and, 125; wars and, 70
representation: "actual," 300; class and, 271–72; constituency and, 300; division of powers and, 274; indirect, 299; tyranny of the majority and, 296. *See also* democracy; elections; *specific governmental bodies*
republic, 2, 3, 4, 46, 123, 126–27, 189, 190; adaptability to change of, 66n251; alternative route to, 24; as anachronism, 301; challenges to ideals of, 133; citizen army protection of, 181–82; civic emergence of, 131–32; civic virtue and, 182, 233, 289; climate for establishment of, 26, 27, 57; commercial, 200; common good vs. reason of state doctrine and, 144–45; comparative historical analysis of, 78; confederations and, 11, 118–19, 234; as confined to small territory, 236; consensus and, 259; constitutional crises and, 151; construction from preexisting entities of, 193–96; critical weakness of, 180; critics of, 72; decline of, 7, 71–72, 97–98, 106, 198; definition of, 7, 40; democratization and, 240; eighteenth-century outlook for, 197; elections and, 269–72; elite power and, 9, 41n142, 89, 90, 185, 186, 247; European victories and, 84–85; expansion of (*see* extended republic); face-to-face polity and, 10; factionalism and, 145–46, 238; factors in subversion of, 133; foreign policy and, 104, 132–33, 134, 138–41, 146, 150–61, 201, 208–10, 231; free speech as core principle of, 272; free way of life and, 132n17, 150, 212, 245, 259; fundamental principles of, 233; leagues and, 10, 11, 93, 118; Machiavelli guides to organization of, 27–28; Machiavelli influence on future of, 56n212, 75, 76–77, 86, 183, 185, 233; Machiavelli interpretations of, 3, 15n13, 18, 19, 26, 27, 75, 170, 233, 245, 249, 274; Machiavelli modernization of, 75, 76, 131, 149–53, 160; Machiavelli's vs. American Founders' view of, 172; "Madisonian Impulse" and, 10–11, 233–41, 296–300; medieval guilds and, 242; monarchy relationship with, 7, 39–40n135, 40, 46n168, 71–72, 75, 85, 108, 131, 133, 188–93, 238, 253–54; organization of, 27–28; participation in, 9–10, 24, 89, 91, 92, 150, 260; political obstacles to, 180; power imbalances and, 253–54; prerogative, 218n186; princely governance of, 189–92; principality transition to, 10, 105–6, 185, 191; principality vs., 5, 8, 66n251, 92, 247, 253; prerogative, 218n186; problems of, 242–43; realism and, 26; reason of state doctrine and, 141–46, 230; refashioning for larger states (*see* extended republic); regime popularity of, 130–31; renewal of, 196; Roman model for, 121–22; Rucellai discussions of, 79–80; sixteenth-century conditions for, 7, 71–72, 130, 180; small size of, 236; social class and, 287–88; sovereignty and, 84–85, 130; spirit of, 287; strengths and weaknesses of, 92, 163, 171, 210; survival of, 19, 92, 129–36, 230; tradition and meaning of, 7, 233; transition to, 190–93; two ends of, 102; urban nature of, 7, 9, 11, 72–73, 86–88, 93, 95–98, 106, 107, 180, 241, 287; vulnerability of, 131, 133, 171, 197, 210–11; war resources and, 172–77, 260, 304. *See also* American republic; civic republicanism; Florence (Florentine republic); Roman republic; Venice (Venetian republic)
Republican party, 300
Restoration (England), 207
revolution, 8, 186, 284–85, 292; disputed succession and, 192; elite-local coalition and, 186; in England, 198, 207, 217, 218; in France, 81, 229, 305; Machiavelli linked with, 286; manifesto of, 8–10; nonviolent, 193. *See also* rebellions; *specific revolution*
Revolution of 1525 (German peasants), 184, 185, 195–96, 256, 284
rhetoric, 4, 17, 63n245; conventions in *Prince,* 4, 29–30, 29n84
rights, 235, 237
Risorgimento, 1–2, 10, 18, 69, 76n44, 286, 304; Machiavelli seen as father of, 1–2, 10, 18, 69, 76n44, 286
Romagna, 23, 24n59, 36, 44, 51, 123, 286, 290; Borgia organization of, 52–53, 120; as papal principality, 130, 194, 289n252, 304
Roman Empire, 10, 62, 78, 93, 96, 106, 125, 226, 227, 229; golden age of, 190; Rome as seat of, 111

Roman kingdom, 9, 24, 88, 192, 247, 265, 269, 276
Roman republic, 9, 24, 58, 87–94, 257–63; agrarian laws and, 280–81; assemblies and, 272; assimilation of foreigners by, 90, 107–18, 156; basis of greatness of, 276; beginnings of, 87, 88, 188–89, 190; cities under, 104, 118; citizen army and, 180–81, 277–81, 291; citizenship extension by, 26, 108, 113, 114, 117, 128, 182, 239, 275, 276, 277, 282, 291–93; civil disobedience and, 269; collapse of, 280; collective action and, 282; colonization policy of, 44, 121, 136, 293, 294, 299; common enemies and, 279; constitution of, 191n54, 208; corruption and, 56–57; crafting of, 87–88; decline and demise of, 171; dictatorship and, 87–88, 133, 149–50, 151, 224, 226; dreams of reestablishment of, 198; elections and, 269–72, 299; executive power and, 226; expansion policies of, 44, 49, 90, 93–94, 98, 111–22, 128, 179, 205–6, 293–95; expulsion of Tarquins from, 9, 24, 88, 192, 192–93, 247, 265, 269; foreign policy and, 129, 133, 135, 136, 154–62, 166–72, 211, 212, 222, 226–27, 239; France compared with, 252–53; freedom and, 247, 272–74; governmental bodies of, 272–74 (*see also* consulate; Senate; Tribunes of the Plebs); hereditary rulers and, 62, 65; imperial expansion and, 133 (*see also* Roman Empire); invasion threat to, 258; legacy of, 108–9, 226–28; legislative process and, 163; longevity of, 88; as Machiavelli's model republic, 76, 78, 81–82, 86, 92, 93, 121–22, 126, 128, 154, 163, 167, 196, 197, 205–6, 226, 232, 234, 240, 250n77, 257–62, 276, 301, 305; mixed government and, 214–15, 263, 264; occupation policy of, 47, 90, 108, 109, 112, 113, 115–22, 128, 156, 294; open immigration and, 107, 276, 291–93; patricians of, 288; people of (*see* plebians); power of, 259–60; stability of, 94; state-building art of, 301; territorial acquisition by, 9, 48, 76–77, 103, 105, 106, 107, 109, 112, 136, 137, 139–40, 171, 173n206, 196, 276; transition to empire from, 227; trust in ordinary people of, 260; veto power and, 162, 266–67; warfare approach of, 173n206, 175; war powers and, 155, 212, 213
Rome (city), 10, 57–58, 86–88, 123, 139, 257–58, 286; ancient commerce and growth of, 277, 281; barbarian invasions of, 282; as capital of extended territories, 111, 118, 277, 293; countryside united with, 101; legendary founding of, 87, 257n106; Machiavelli's view of, 21, 36; Medici control of, 23, 48, 66, 74; open immigration policy of, 107; papal territories and, 36, 289n252, 304; people of, 290; popular power and, 285; powerful families of, 51; sack of (1527), 70, 130, 303; Tuscan expansion and, 76. *See also* papacy
Romulus, 50, 87, 88, 188, 190
Rossiter, Clinton, 227n233
Rousseau, Jean-Jacques, 1, 3, 26, 143, 305
*rovina nostra, la* (destruction and suffering), 70
royal prerogative, 215–18, 221
Rubinstein, Nicolai, 6
Rucellai, Bernardo, 275
Rucellai, Cosimo, 77n50, 79–80, 80n61, 185
Rucellai gardens, 24, 80, 148
rule of law, 58, 135, 153n122, 248–49, 250, 251, 267
rural discontent, 180
Rush, Benjamin, 199n83, 228, 229
Russian Empire, 198

Sack of Rome (1527), 70, 130, 303
Sacred League (Castile), 180
Salisbury, Lord, 134n23
Sallust, 226; *Bellum Catilinae,* 103
Salutati, Coluccio, 102, 120
San' Andrea church (Mantua), 81
San Gimignano, 100
Sardinia, 255
Sasso, Gennaro, 6, 27, 50n187, 56, 66n252, 105n185, 113n217, 246
Savonarola, Girolamo, 6, 148, 196, 256, 266, 273n184, 284
Savoy, 87, 95, 110
Scali, Giorgio, 57–58
Schmitt, Carl, 153n122
Scipio, 158, 162, 169
Scotland, 84, 198, 203, 204, 204n5, 205
Secretary of the Ten (Florence), 139
secularization, 234
security, 61–62, 249, 250. *See also* national security
self-determination, 188
self-preservation, 142
self-rule, 12, 195
Senate, Roman, 133, 150, 154–62, 161n154, 205, 212, 264, 265, 280, 283, 300; advice and consent, 223; authority of, 274; checking

power and, 133, 158, 159, 160–61n153, 162, 169–70, 215; dictatorship and, 224; elites and, 133, 215, 258, 270, 299; expulsion of Tarquins by, 193; foreign affairs and, 133, 211, 213, 226; function of, 161n154; imperial expansion and, 133; makeup of, 159–60; popular opinion and, 157, 158, 166–67; presiding officer of, 169; roles of, 160–61, 223; war declaration by, 155, 166–67
Senate, U.S., 222–23
Senigallia, 37
separation of powers, 155n132, 161, 161n154, 214–20, 221, 274, 298; classic statement of, 214; foreign affairs and, 211, 212, 213, 221–25, 239, 274. *See also* checks and balances
Severus, Emperor of Rome, 62
Sicily, 95, 255, 305
Sidney, Algernon, 233
Siena, 23, 51, 91, 100, 123–24, 125, 126, 290; Florence and, 47, 48, 74, 112, 120, 171, 275; as free republic, 194, 287, 289n252, 295–96, 296n284; Machiavelli's experience with, 28; pontifical government and, 37, *38;* resistance to Florentine expansion, 102, 180; surrender to Cosimo de Medici of, 303; Tuscan duchy and, 125
Signoria (Florence), 148
Sixteen Gonfaloniere, board of (Florence), 148–49
Skinner, Quentin, 4, 6, 18, 19, 40n138, 103n170, 106n186, 138n40, 244n53, 249–50, 259n112
Skowronek, Stephen, 81n66
social class. *See* class
social contract theory, 77, 238n26, 299
social mobility, 288
Social War of 91–89 BC, 293
Socrates, death of, 243
Soderini, Francesco Cardinal, 50
Soderini, Piero, 31, 35n115, 66n251, 94, 142, 143, 160, 163, 164, 181, 244
Soderini family, 185, 288
soldiers. *See* citizen army; mercenaries; military
Solorzano Pereira, Juan de, 110
sovereignty, 82–85, 130; confederations and, 296, 298–99; definition of, 206; divided, 295; dual, 204n106; extensions of, 197n74, 203; international recognition of, 230, 231; leagues and, 203; location of, 207; map of political space, *83;* multilayered, 197, 207; of the people, 207, 231, 273, 298; unitary, 201–2, 205, 206–7, 298. *See also* state; nation-state; territorial state
Spain, 10, 37, 59, 65, 97, 141; *Comunero* revolt and, 72–73, 121, 180, 256, 284, 292; as dominant power in Italy, 130; Dutch revolts against, 8, 197, 200, 256, 284; invasions of Italy by, 12, 15, 24, 51, 69, 94, 95, 97n141, 128, 130, 148, 304–5; Italian liberation cause and, 187; League of Cambrai and, 130; Madrid as capital of, 111; military and, 175; Naples and, 51, 186, 284–85, 290; overseas empire of, 197, 203–4; popular opposition and, 180; Reconquista (1492), 82; strength of, 70, 198; as territorial state, 46, 72–73, 200; unified kingdom of, 2, 15, 21, 55, 64, 78, 82, 84, 94, 104, 110–11, 124–25, 197, 245; Visigoths and, 124–25; voyages of discovery of, 75–76; war spending and, 176n224; wars with France, 304–5
Sparta, 47, 78, 205, 261; limited population of, 276–77; Machiavelli's analysis of, 89, 90, 91, 92, 108, 276
*speculum principis*. *See* mirror for princes
speech freedom, 272–73
*spenegere,* meaning of, 47–48
Spinoza, Benedictus de, 1, 26, 143
standing army, 173, 179, 181, 217
state: definition of, 40; people as foundation of, 57–58; private ambition vs. interest of, 143n64; terminology standard, 133n22. *See also* nation-state; reason of state
state-building, 6, 10, 27, 39–42, 49, 58–59, 65, 256–57, 301; acquired territories and, 62–63; basis of, 87; Borgia program of, 50–55, 63; citizen army and, 59, 179; city exclusion from, 97, 99; in early modern period, 95, 96, 97; elite control of, 63, 178, 188, 257; hereditary power and, 62, 65; imitation of ancient practice, 81–82; Machiavelli's view of, 12–13, 39–40, 43–49, 294; monarchy and, 104; nation-state and, 55, 68–70, 104; popular basis of, 57–58, 63; regional scale of (1500–1700), 95. *See also* composite state; territorial state
state of emergency, 150–51, 153, 224; permanent, 64; prerogative power and, 219, 226, 227–28
"state within state" (*imperium in imperio*), 207, 298
*stato, lo,* meaning of, 41–42
Stephens, J. N., 75n38

Strauss, Leo, 2, 15n13, 17, 54n203, 55, 66n256, 138n40, 244n53, 266n140; on restoration of Rome's former glory, 257; on underlying structure of *The Prince,* 16
Straussian school, 12n1, 254n95, 262n127, 263
Strozzi family, 9, 80n64, 127, 185, 186, 193
Stuart monarchy, 203, 213, 216–17, 218, 233
succession. *See* hereditary rights
Sulla, 150, 280, 283
Supremacy clause, 298
Supreme Court, U.S., 228n234
Swabian League, 118
Swabian War of 1499, 195
Swiss Confederacy, 59, 119, 128, 184, 185, 199, 204, 236, 256; formation of, 84, 85, 121, 171; Machiavelli's view of, 194–95; military weakness of, 210; popular political action and, 6, 8, 10, 292; success of, 121

Tacitus, 98n146, 226; *Annals,* 39n135, 77n50
Tarquins, 9, 24, 88, 192–93, 247, 265, 269, 276
Tarkov, Nathan, 43n148
taxes, 163, 172, 173, 174, 175, 199; revolts, 283
Ten of Liberty and Peace (Florence), 28
Ten of War (Florence), 98, 99, 102, 147, 163, 165
territorial consolidation. *See* composite state; extended republic; federation
territorial expansion, 6, 9, 18, 52, 72–76, 95, 104, 163, 171, 253; Borgia as exemplar of, 50–55; *aeque principaliter* and, 110, 111, 126; city and, 101–5, 113–14; civic humanism and, 27n74, 96n139, 102, 103; colonization and, 44, 121, 136, 293, 294–95, 299; domestic expansion parallel with, 253; elites and, 90–91, 178, 179, 186; fortresses and, 63, 128; freedom and, 58, 72, 76, 96; incorporation of conquests, 43–49, 85, 108–18, 294; Machiavelli emphasis on, 39–40, 90–91, 197; means of, 50, 118, 137; monarchy and, 82, 84, 108, 178; money and, 175; necessity of, 90–91; populism and, 179; into regional state, 127; resistance to, 96, 113–14, 115; Roman dictatorship and, 149; sovereignty and, 82–85; state-building and, 62–63; subject population and, 49; union and, 110–11; as war's object, 136, 137. *See also* empire; occupation policy
territorial republic. *See* extended republic
territorial state: cities and, 58, 72–73, 85, 99–100, 104, 106–7, 118, 179, 180; city-state contrasted with,19, 40, 55, 58, 71, 95–105, 178, 206, 240; city-state transition to, 88; composite (*see* composite state); formation of, 46, 55, 177–78; France as embodiment of, 42, 46, 76, 77, 239, 244–55; invasion of Italian city-states by, 12, 22; Italian unification as, 21, 23; as Leo X geopolitical goal, 36–37, 54; Machiavelli's conception of, 22, 23, 39, 41, 55; as midway between league and empire, 205; military and, 59, 179; monarchy and, 45, 55, 72–73, 104, 197; new era of, 7–8, 9, 15, 19; other descriptive terms for, 244n53; princely rule of, 7, 8, 10, 21, 45, 131, 178, 183; rebellions and, 285; regional, 7, 9, 45, 55, 69, 72–73, 127; republican city tradition and, 58, 180; rise of, 128; self-rule of, 12; Spain as example of, 46, 72–73, 200; transition to extended republic of, 188–89; warfare capability of, 173. *See also* nation-state
Theseus, 50, 66
Thirty Years War, 206
Thucyidides, 15n13, 137, 258
Tilly, Charles, 112n213, 184, 285
Tinker, John, 63–64n245
Tocqueville, Alexis de, 164, 197n74, 252; *Democracy in America,* 301
Toledo (Spain), 72
Tommasini, Oreste, 2, 16
trade. *See* commerce
treaties: commercial, 229. *See also key word for specific treaties*
treaty power, 221, 222–23
Tribunes of the Plebs, 87–88, 92, 152, 169, 253, 258, 264, 273, 275, 278n203, 282; as class-specific, 271; creation and functions of, 265–69; veto power and, 162, 266–67
tribute, 49
Turkey. *See* Ottoman Empire
Tuscan League, 10, 108, 118–19, 120, 124, 128, 196, 204, 234, 295; republics and, 126–27, 289; territorial extent of, 122–23
Tuscany, 29, 44–45, 122–28, 207; as battleground of sixteenth century, 172–73, 304–5; Borgia campaign for, 22–23, 50, 51, 54, 63, 115, 120, 122, 140, 184; cities of, 125–26, 295; citizen leadership and, 182; as civic republican paradigm, 123; composition of, 22–23, 76; concept and tradition of, 125–28; elites in republican coalition of, 186, 288; Florentine expansion and, 13, 23, 47–49, 53, 73, 100–104, 112, 118–22, 139, 295; independent republics within, 287;

Machiavelli's political design for, 8, 9, 12, 13, 16n18, 19, 21–23, 55, 64, 67, 76, 88, 125–28, 183, 184–88, 239–40, 305; as Medici state, 8, 23, 125, 127, 185, 239–40, 303–4 (*see also* Grand Duchy of Tuscany); occupations of ordinary people in, 290; papal designs on, 44, 54, 122; preservation of freedom in, 58; republicanism's end in, 303; republican potential for, 125, 126–27, 183, 226, 289; unification aim for, 183, 184, 187, 194, 195–96; uniqueness of, 123–28. *See also* Florence; Lucca; Pisa; Siena; Urbino
Twelve Articles of the Peasantry of Swabia, 256n101, 284
Twelve Good Men, board of (Florence), 148–49
tyranny, 27, 44–46, 190, 250, 262; and absence of rule of law, 251; freedom vs., 40n137, 46, 245, 274; Machiavelli critique of, 26; of the majority, 296; popular protest against, 282; protections against, 274. *See also* absolutism
Tyrrhenian Sea, 74, 100

Umbria, 95, 126
unification: Italian movement for, 1–2, 10, 18, 69, 76n44, 127, 187–88, 259, 286, 304; Italian states vs. northern monarchies and, 70–72; by prince and, 94, 111. *See also* territorial state
union: forms of, 10, 202–4; Machiavelli recommendation of, 110–11
unionist paradigm, 225n221
Union of Utrecht, 200
unitary executive, 224–25
unitary sovereignty, theory of, 201–2, 205, 206–7, 298
United Provinces of Central Italy, 127
United Provinces of the Netherlands (Dutch Republic), 6, 10, 85, 121, 199–201, 203, 204, 212; cross-class interaction and, 187; military weakness of, 210; successful revolutions of, 8, 186, 197, 200, 256, 284, 305; weakness and strength of, 236
United States. *See* American republic
universalist tradition, 135
urban leagues, 71, 72–73, 118–21, 128, 180, 194, 199
urban republic. *See* city
Urbino, 126, 290; Borgia campaign for, 23, 51; Lorenzo Medici as duke of, 28, 37; papal conquest of, 36, 126, 304; pontifical government of, 37, *38;* princely rule of, 194, 289n252
*urbs Romana*, 78
utopias, 172–73

Val di Chiana revolt (1502), 113–14, 164
Valencia, 82, 197
Valladolid, 72
Valois dynasty, 110, 193, 245
Varchi, 80n64
Varro, 162
Vatican Secret Archives, 5, 36
Vattel, Emmerich de, 204, 230; *Law of Nations*, 202, 222
Vatter, Miguel, 267n146
Veientes (people), 137
Veii (Etruscan town), 282
Velvet Revolutions, 193
Venice (Venetian republic), 6, 80, 84, 97n141, 98, 101n158, 167, 304; aristocracy of, 288; citizenship grants by, 291; commerce and, 100, 288; Consiglio Maggiore, 148; constitution of, 243–44; diplomacy of, 145n77; emergency office of, 150–51; expansion position of, 85, 108, 120; international power politics and, 175, 201; loss of territorial empire of, 130; Machiavelli analysis of, 87, 89, 90, 91, 244; as mixed government example, 263; natural protective barriers of, 172, 175; political influence of, 243–44; power holders and, 261; Roman republic contrasted with, 169; territorial acquisition and, 118; territorial state and, 99–100; treatment of subject cities by, 48–49; vulnerability of, 90, 91
Ventura, Angelo, 101n158
Verona, 102
veto power, 216, 217, 224, 296–97, 296n286, 298; Roman republic and, 162, 266–67
Vettori, Francesco, 22, 31, 54, 59, 71, 73; Machiavelli letter to, 25, 28, 35n115, 78
Villari, Pasquale, 2, 190n48
Virgil, 116
Virginia Plan, 212, 221, 297
Virginia Ratifying Convention, 237
Viroli, Maurizio, 4, 9n16, 18n19, 20, 28n82, 41, 41n141, 75n36, 119n244, 121n257
virtue, 2, 19, 21, 56n214; confrontation between fortune and, 65, 66; mixed government theory and, 263; republican success and, 263; republics and, 233, 234, 289
Visconti, Gian Galeazzo, 3, 40n137, 96
Visconti family, 103, 120, 122, 125

Visconti wars, 97, 122, 266
Visigothic Hispania, 124–25
*vivere civile,* 58, 123, 250, 287
Volsci (people), 292
Volterra, 100, 118, 295
voting. *See* elections
voyages of discovery, 75–76, 79, 197
Vries, Jan de, 97

Wales, 110, 198
war, 27, 56n214, 59–60, 139, 165, 219; advances in, 172–77; class unity from, 279; continuous state of, 64, 71, 130, 133–34; dictatorship during, 77, 134, 151–52; essentiality of, 135; Florentine expansion and, 100; foreign policy and, 134–35; free way of life and, 277–78; international anarchy and, 258; Italy as French and Spanish battlefield, 304–5; just war theory, 136n30, 230; manpower and, 173 (*see* citizen army; mercenaries); as mother of all states, 69–70; necessity of, 136; people's empowerment by, 89–90, 92, 160, 162, 166–67, 260, 267, 277–78, 279, 291; pervasiveness in Europe of, 130, 133–34, 172–73, 206, 304–5; power politics and, 135, 136–38, 201; preemptive, 137; prince's waging of, 27, 59–60, 64, 124, 172–77, 219; recognition of sovereignty vs., 230; republic's ability to wage, 172–77, 260, 304; senate declaration of, 155, 166–67; taxes and, 163, 172, 173, 175, 199; territorial acquisition as object of, 136, 137; on two fronts, 75. *See also* military
war powers, 155, 209, 210–11, 226, 228; American republic and, 212–13, 220–25; Roman senate and, 155, 166–67, 211, 213; as royal prerogative, 124, 174, 217, 228
Washington, George, 209, 229
wealth, 118, 175, 200, 281, 288
Weber, Max 101n158
Westphalia, Peace of (1648), 206
Westphalian system, 130, 197
Whig party, 207, 300
Whitfield, J. H., 144n72
Wilson, James, 213, 221, 230, 298
Wilson, Woodrow, 228n237, 230–31
Witherspoon, John, 199n83, 204n5, 205
Wood, Gordon, 218n186, 233, 298, 300
wool economy, 288
Wootton, David, 35
World War I, 13–14, 230

Ypres, 84–85; rebellion (1477), 184–85

Zama, battle of, 158